REPUBLIQUE DU CAMEROUN
Paix - Travail - Patrie

MINISTÈRE DES POSTES ET TÉLÉCOMMUNICATIONS



COMPENDIUM OF TEXTS FROM THE POSTAL, TELECOMMUNICATIONS AND ICT SECTOR



2023 Edition



COMPENDIUM OF TEXTS
from the Postal, Telecommunications and ICT sector

- 2023 Edition -

SUMMARY

ORGANISATIONAL TEXTS

	Decrees
2	Decree No.2012/512 of 12 November 2012 to organize the Ministry of Posts and Telecommunications
32	Decree No.2004/095 of 23 April 2004 to create the Cameroon Postal Services company
33	Decree No.2016/425 of 26 October 2012 on the change of name and restructuring of the National Advanced School of Posts and Telecommunications
41	Decree No.2019/150 of 22 March 2019 on the organisation and functioning of the National Agency for Information and Communication Technologies
52	Decree No. 2019/263 of 28 May 2019 to reorganise the Cameroon Telecommunications Company
55	Decree No. 2019/264 of 28 May 2019 to approve the Articles of Association of the Cameroon Telecommunications Company
56	Decree No. 2020/727 of 03 December 2020 to lay down the reorganization and functioning of the Telecommunications Regulatory Agency

CROSS-SECTOR TEXTS

67	**Laws**
68	Law No. 98/013 of 14 July 1998 relating to Competition
74	Law No. 2010/021 of 21 December 2010 to govern electronic commerce in Cameroon
82	Framework-Law No. 2011/012 of 06 May 2011 on consumer protection in Cameroon
88	Law No. 2015/007 of 20 April 2015 to govern audiovisual activity in Cameroon

THE POSTAL SECTOR

117	**Laws**
118	Law No.2020/004 of 23 April 2020 governing postal activity in Cameroon
128	Law No. 2003/001 of 21 April 2003 to institute a minimum service in the postal sector
129	**Decrees**
130	Decree no.2002/2171/PM of 19 December 2002 to lay down conditions for the regulation and control of postal networks and services
133	Decree No. 2002/2173/PM of 19 December 2002 to regulate the issue and sale of postage stamps and postal fiduciary values and the organisation of philately
136	Decree No. 2004/110 of May 10, 2004 on the opening and functioning of a special treasury fund for the development of postal activities
138	Decree No. 2005/0704/PM of 21 March 2005 to lay down the implementation conditions for minimum service in the postal sector
140	Decree No. 2005/0706/PM of 21 March 2005 fixing the methods, rates of calculation and collection of postal royalties in Cameroon

144 Decree No. 2010/2427/PM of 12 August 2010 to regulate the conditions of consumption of the services of the concession holder of the public postal service by public administrations

146 Decree No. 2010/2428/PM of 12 August 2010 to lay down the modalities for the financing of the provision of universal postal service

150 Decree No. 2010/2429/PM Of 12 August 2010 fixing the authorisation terms for the installation and operation of postal networks and services

157 Orders

158 Order No. 00000013/MPT of 05 August 2010 to lay down conditions to declare the operation of postal networks

THE TELECOMMUNICATIONS AND ICT SECTOR

163 Laws

164 Law No 2001/0130 of 23 July 2001 to institute minimum service in telecommunications sector

165 Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon

187 Law No. 2010/012 of 21 December 2010 relating to cybersecurity and cybercrime in Cameroon

204 Law No. 2015/006 of 20 April 2015 amending and supplementing some provisions of law no. 2010/013 of 21 December 2010 governing electronic communications in Cameroon

209 Law No. 2023/009 of 25 July 2023 to institute the charter on child online protection in Cameroon

215 Decrees

216 Decree No. 2012/308/PM of 26 June 2012 to lay down management conditions for the Special Fund for Telecommunications

221 Decree No. 2012/309 of 26 JUNE 2012 to lay down management modalities of the Special Fund for Electronic Security Activities

226 Decree No. 2011/1521/PM of 15 June 2011 to lay down the implementation conditions of Law No 2010/021 of 21 December 2010 governing electronic trade in Cameroon

231 Decree No. 2012/1318/PM OF 22 May 2012 to lay down the conditions of allocation and the modalities of granting the authorisation to exercise the activity of electronic certification

236 Decree No. 2012/1639/PM of 14 June 2012 to lay down the declaration rules as well as the operating conditions of networks and installations subject to the declaration regime

240 Decree No. 2012/1640/PM of 14 June 2012 to lay down conditions for interconnection, access to electronic communications open to the general public and sharing of infrastructure

251 Decree No. 2012/1641/PM of 14 June 2012, to lay down portability conditions of subscribers' numbers of operators of electronic communication networks open to public

257 Decree No. 2012/1643/PM of 14 JUNE 2012 to lay down the conditions and modalities for mandatory safety audit of electronic communications

261 Decree No. 2013/0261/PM of 22 February 2013 to lay down the operating conditions of the electronic platform "One-Stop Shop for Foreign Trade Operation"

266 Decree No. 2013/0396/PM of 27 February 2013 to lay down the operation and control conditions for the use of radio frequencies

277 Decree No. 2013/0397/PM of 27 February 2013 on the organisation and functioning of the Inter-ministerial Committee for Frequency Band Allocation

279 Decree No. 2013/0398/PM of 27 February 2013 to lay down conditions for implementing the universal service and the development of electronic communications

285 Decree No. 2013/0399/PM of 27 February 2013 to lay down the modalities for protecting consumers of electronic communication services

290 Decree No. 2013/0400/PM of 27 February 2013 to lay down prior statement and authorisation modalities, as well as conditions to obtain approval certificate to provide, export, import or use cryptographic means or services

295 Decree No. 2013/0401/PM of 27 February 2013 to lay down the distribution scheme for the performance bonus under the penalties for the operators and carriers of electronic communications networks

297 Decree No. 2013/0402/PM of 27 February 2013 to lay down the management modalities of naming and addressing resources

301 Decree No. 2013/0403/PM of 27 February 2013 to lay down the maximum thresholds for public exposure to electromagnetic radiation

307 Decree No. 2015/3759 of 03 September 2015 to lay down the identification conditions of subscribers and terminal equipment of electronic communication networks opened to public

312 Decree No. 2017/2580/PM of 06 April 2017 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorisation regime

322 Decree No. 2017/6525/PM of 07 June 2017 amending and supplementing some provisions of Decree No. 2013/0261/PM of 22 February 2013 to lay down the conditions for the operation of the electronic platform "One-stop shop for foreign trade operations"

325 Decree No. 2018/0001/PM of 05 January 2018 to create a dematerialization platform within the framework of public contracts and to set its rules of use

329 Decree No. 2018/0002/PM of 5 January 2018 to lay down the terms and conditions for online procurement procedures in Cameroon

334 Decree No. 2020/5703/PM of 15 October 2020 amending and supplementing some provisions of Decree No. 2012/1642/PM of 14 June 2012 to lay down the conditions for the allocation and use of numbering resources

335 Decree No. 2022/10902/PM of 07 Decembre 2022 to lay down the conditions for reservation, allocation and use of numbering resources

343 Orders

344 Order No.00080/MINEFI/MINPT of 20 February 2002 relating to the dues, costs, contributions and royalties collected by the Telecommunications Regulatory Board

365 Order No.000013 /MINPOSTEL of 27 June 2012 to determine the terms and conditions for the approval of electronic communications terminal equipment and radioelectric installations

370 Order No.000014 /MINPOSTEL of 27 June 2012 to lay down certificate qualification criteria and technical specifications of electronic signatures creation device

373 Order No.00000015 /MINPOSTEL of 27 June 2012 to lay down the terms and conditions for unbundling the local loop of electronic communications networks

378 Order No. 00000010/MINPOSTEL of 17 April 2013 to lay down the distribution scheme for the royalties for the use of radio frequencies

379 Order No. 044/CAB/PM of 02 May 2013 to establish the distribution key for fees collected for entry and renewal of authorizations in the field of electronic communications

381 Joint Order No. 00000013/MINPOSTEL/MINFI of 10 May 2013 to fix the amounts and payment conditions of charges collected by the National Agency for Information and Communication Technologies

384 Order No. 016/PM of 20 February 2015 on the creation, organization and functioning of the Committee for Technological Watch and Control of the Conformity of the Software Parks of the State, Regional and Local Authorities and their respective divisions

387 Order No. 041/PM of 07 April 2017 to set out the distribution scheme of the fee for the use of addresses, prefixes and telephone numbers

388 Order No. 0000005/MINPOSTEL of 24 April 2017 to establish the procedures for obtaining approval in the field of electronic communications

392 Order No. 00000006/MINPOSTEL/MINFI of 02 May 2017 to determine the amounts and payment conditions for entry and renewal fees of licenses in the electronic communications sector

395 Order No. 00000007/MINPOSTEL/MINFI of 02 May 2017 to determine the amounts and methods of recovery of fees and charges for the reservation and allocation of numbering resources

398 Order No. 00000008/MINPOSTEL of 10 July 2017 to Specify the Terms and Conditions for the Application of Decree No. 2012/1641/PM of 14 June 2012 laying down the conditions for the portability of the numbers of subscribers of operators of electronic communications networks open to the public

403 Order No. 100/CAB/PM of 02 November 2017 to lay down the modalities for collection, distribution and repayment of fees collected by the Board in charge of the regulation of electronic communications

408 Order No.0000001/MINPOSTEL/MINFI of 17 January 2018 to amend some provisions of Order No.0000006/MINPOSTEL/MINFI of 02 May 2017 establishing the amounts and terms of payment of entry and renewal fees for licenses in the field of electronic communications

409 Joint Order No. 00000004/MINPOSTEL/MINFI of 17 April 2020 to establish the general procedures for determining the basis of contributions, dues and fees to which operators holding a first category license and receipt of prior declaration in the field of electronic communications are subject to

413 Decisions

414 Decision No.00000054/MINPOSTEL of 18 April 2013 to lay down the installation conditions of telecommunications relay towers and masts in Cameroon

418 Decision No.00000086/ART/DG/DAJPC of 22 May 2014 to set out the terms and conditions for the launching of promotional offers of electronic communications services by operators

420 Decision No. 00000087/ART/DG/DAJPC of 22 May 2014 to prescribe to operators the modalities governing gaming and the sending of unsolicited messages by cellular phone

422 Decision No. 00000191/ART/DG/DAJPC/SDAJ/SREG of 02 October 2014 to establish the terms of settlement of disputes between operators of electronic communications networks in Cameroon

431 Decision No. 0000110-2016/ART/DG/DT/SDSI of 15 June 2016 to define the methods for processing information from the electronic communications network and services subscription identification databases to be made available to the board

433 Decision No. 0000111-2016/ART/DG/DT of 15 June 2016 to set out the terms of marketing of subscriber identity modules for electronic communications networks and services

435 Decision No. 00000143/MPT/SG/DRPT of 05 July 2018 to establish the procedure for processing an application for exemption in view of deploying in Cameroon of a radio network whose VSAT stations are connected to a master station installed outside Cameroon

437 Decision No. 00000064/MINPOSTEL of 21 May 2019 fixing the conditions of access and installation of radio equipment on the Mount Mbankolo radio site

439 Specifications for the management of the Mount Mbankolo radio site

441 Decision No. 00000248/MPT/CAB/IGT/CT2 of 26 November 2019 to determine the conditions and rules of operation of the USSD resource for access to the national electronic communications aggregation platform

444 Decision No. 97/MPT/CAB of 22 June 2020 to set the promotional costs for the registration of domain names in ".cm"

ORGANISATIONAL TEXTS

DECREE No.2012/512 OF 12 NOVEMBER 2012 To organize the Ministry of Posts and Telecommunications

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government,

HEREBY DECREES AS FOLLOWS:

PART I
GENERAL POVISIONS

ARTICLE 1.- (1) The Ministry of Posts and Telecommunications shall be placed under the authority of a Minister.
(2) The Minister of Posts and Telecommunications shall be responsible for the development and the implementation of the government's Posts, Telecommunications and Information and Communication Technologies policy.
In this regard, he shall:

- Study, set up or make it possible to be set up infrastructure and equipment corresponding to the Posts and Telecommunications sectors;
- Ensure the development of Information and Communication Technologies (ICTs), as well as electronic communications in all their forms, in conjunction with the Administrations concerned;
- Ensure the promotion of investments in the sector, in conjunction with the Ministry of the Economy, Planning and Regional Development and the Bodies concerned;
- Ensure or make it possible to be carried out the training of the personnel of the sector;
- Monitor the activities of mobile or satellite telecommunications companies.
- Monitor activities relating to e-commerce and issues of cybersecurity and cybercrime, in conjunction with the Administrations concerned;
- Develop, analyse and keep statistics relating to the domain of Posts, Telecommunications and Information and Communication Technologies (ICTs);
- Monitor activities of regulatory Bodies operating in his sector of competence;
- Liaise with the Government and the Universal Postal Union (UPU), as well as with the International Telecommunication Union (ITU), in conjunction with the Ministry of External Relations.

He shall ensure the supervisory authority of:

- The Telecommunications Regulatory Board (TRB).
- The National Agency for Information and Communication Technologies (NAICT);
- The Cameroon Postal Services (CAMPOST);
- The Cameroon Telecommunications (CAMTEL);

In addition, he shall ensure the supervisory authority of the National Advanced School of Posts and Telecommunications (NASPT);

ARTICLE 2.- To carry out his missions, the Minister of Posts and Telecommunications shall have:

- A Private Secretariat;
- two (2) Technical Advisers;
- two (2) inspectorates General;
- A Central Administration;
- Deconcentrated Services.

PART II
PRIVATE SECRETARIAT

ARTICLE 3.- Under the authority of a Head of the Private Secretariat, the Private Secretariat shall be responsible of the Minister's private matters.

PART III
TECHNICAL ADVISERS

ARTICLE 4.-The Technical Advisers shall carry out any missions entrusted to them by the Minister.

PART IV
INSPECTORATE GENERAL OF SERVICES

ARTICLE 5.- (1) Under the authority of an Inspector General, the Inspectorate General of services shall be responsible for:

- The internal audit and the assessment of the functioning of the central services, institutions under the supervisory authority of the Ministry, as well as attached bodies and projects;
- Evaluating the performance of services in relation to the objectives set, in conjuncture with the Secretary General;
- Informing the Minister on the quality of the functioning and the administrative and financial output of services;
- The follow up of the implementation, and regular assessment, of organizational techniques and procedures as well as streamlining administrative work, in conjunction with the competent services of the Ministry in charge of Administrative Reform.
- Implementing the strategy for the fight against corruption, in conjuncture with the Ministry Unit for the Fight against Corruption.

(2) In addition to the Inspector General of services, it shall comprise three (03) Inspectors of services.

ARTICLE 6- (1) In the accomplishment of their duties, the Inspector General and the Inspectors shall have access to all the documents of the services they control.
In that capacity they may:

- Request in writing, information, explanations or documents from the officials of the services they control who shall be bound to comply within set time limits;
- On request and at any time, use the personnel they need from other services of the Ministry;
- Whenever need be, call on the forces of Law and order, after due notice from the Minister and in accordance with the legislation, to assist them or to make a written report of instances of misuse of public property.

(2) Following each inspection or control mission, a report shall be submitted to the Minister. A copy of the report shall also be forwarded to the Secretary General.
The Minister shall forward a copy of the report to the Minister in charge of Administrative Reform and to the Minister in charge of Higher State Control.
(3) The Minister shall forward a quarterly monitoring report, as well as an annual report on the activities of the Inspectorate General to the Prime Minister, Head of Government.

PART V
INSPECTORATE GENERAL IN CHARGE OF TECHNICAL MATTERS

ARTICLE 7.- (1) Under the authority of an Inspector General, the Inspectorate General in charge of Technical Matters shall be responsible for:

- Auditing and assessing the internal functioning of the technical services of the Ministry, as well as the institutions under the supervisory authority of the Ministry, and the attached bodies and projects;
- Evaluating the performance of the Ministry's technical services, institutions under its supervisory authority, as well as attached bodies and projects, in conjunction with the Secretary General;
- Informing the Minister on the quality of the functioning and the output of technical services;

- Controlling and assessing the implementation of Agreements on mutual recognition between Cameroonian certification authorities and foreign certification authorities.

(2) In addition to the Inspector General in charge of technical matters, it shall comprise three Inspectors.

ARTICLE 8.- (1) In the accomplishment of their duties, the Inspector General in charge of technical matters and the Inspectors shall have access to all the documents of the services they control.
In that capacity, they may:

- Request in writing, information, explanations or documents from the officials of the services they control who shall be bound to comply within set time limits;
- On request and at any time, use the personnel they need from other services of the Ministry;
- Whenever need be, call on the forces of Law and order, after due notice from the Minister and in accordance with the legislation, to assist them or to make a written report of instances of misuse of public property;

(2) Following each inspection or control mission, a report shall be submitted to the Minister. A copy of the report shall also be forwarded to the Secretary General.
(3) The Minister shall forward a quarterly monitoring report, as well as an annual report on the activities of the Inspectorate General in charge of technical matters to the Prime Minister, Head of Government;

PART VI
CENTRAL ADMINISTRATION

ARTICLE 9.- The Central Administration shall comprise:

- The Secretariat General;
- The Department of Posts, Telecommunications, and Information and Communication Technologies Regulation;
- The Department of Infrastructure, Equipment and Postal Networks;
- The Department of Regulation and Follow up of Postal Activities;
- The Department of Infrastructure and Information and Communication Technologies Access Networks;
- The Department of Information Systems and Networks Security;
- The Department of General Affairs;
- The Division of Projects, Studies and Prospective.

CHAPTER I
SECRETARIAT GENERAL

ARTICLE 10.-(1) The Secretariat General shall be under the authority of a Secretary General, who shall be the Minister's main collaborator and shall monitor the smooth functioning of the Ministry Affairs. To this end, he shall receive the necessary delegations of signature.
In this capacity, he shall:

- Co-ordinate the activities of the services of the Central Administration, Deconcentrated Services and Committees created within the Ministry and hold co-ordination meetings, the minutes of which he shall forward to the Minister;
- Define and codify internal procedures in the Ministry;
- Ensure the continuous training of the staff and, under the authority of the Minister, organize seminars, refresher courses, further training and specialization courses;
- Follow-up, under the authority of the Minister, the actions of attached services whose programme of action he shall approve and for which he shall receive an activity report;
- Ensure the speedy processing of files, centralize archives and manage the documentation of the Ministry.

(2) When the Secretary General is absent or unable to carry out his duties; the Minister shall designate a Director to stand in for him.

ARTICLE 11.-The following services shall be attached to the Secretariat General:

- The Legal Affairs Division;
- The International Co-operation Division;
- The Training Unit;

- The Follow-up Unit;
- The Communication Unit;
- The Computer Systems Unit;
- The Translation Unit;
- The Reception, Mail and Liaison Sub-Department;
- The Documentation and archives Centre.

SECTION I
LEGAL AFFAIRS DIVISION

ARTICLE 12.- (1) Under the authority of a Head of Division, the Legal Affairs Division shall be responsible for:
- Preparing and finalizing, all draft instruments, Laws or regulations initiated by the Ministry or submitted to the Minister for signature;
- Conducting the procedures for the settlement of disputes between operators and regulators;
- Expressing a legal opinion on matters concerning the Ministry;
- Codification of Laws and regulatory texts governing the activities of the Ministry;
- Ascertaining that all acts endorsed by the Ministry are lawful;
- Promoting and popularizing legal culture within the Ministry;
- Processing petitions for reprieve directed against the acts produced by the Ministry, in conjunction with the operational structures concerned;
- Defending the interests of the State before the courts when the Ministry is involved in a suit, in conjunction with the competent services of the Ministry of Justice.

(2) It shall comprise:
- the Regulation and Studies Unit
- the Litigation Unit.

PARAGRAPH I
THE REGULATION AND STUDIES UNIT

ARTICLE 13.- (1) Under the authority of a Unit Head, the Regulation and Studies Unit shall be responsible for:
- Conducting procedures for the settlement of disputes between operators and regulators;
- Preparing and finalizing all draft instruments, laws or regulations initiated by the Ministry or submitted to the Minister for signature;
- Expressing a legal opinion on matters concerning the Ministry;
- Promoting and popularizing legal culture within the Ministry;
- Ascertaining that all acts endorsed by the Ministry are Lawful.

(2) In addition to the Unit Head, it shall comprise two (02) Assistant Research Officers.

PARAGRAPH II
LITIGATION UNIT

14.- (1) Under the authority of a Unit Head, the Litigation Unit shall be responsible for:
- Processing petitions for hierarchical reprieve directed against the documents produced by the Ministry;
- Conducting the procedures for the settlement of disputes between operators and regulators;
- Defending the interests of the State before the courts when the Ministry is involved in a suit.

(2) In addition to the Unit Head, it shall comprise two (2) Assistant Research Officers.

SECTION II
INTERNATIONAL COOPERATION DIVISION

ARTICLE 15.- (1) Under the authority of a Head of Division, the International Cooperation Division shall be responsible for:
- Monitoring relations with sub-regional, regional and international organizations in the Posts, Telecommunications and Information and Communication Technologies sector;
- Promoting and monitoring bilateral, multilateral, sub-regional and regional cooperation in the Posts, Te-

lecommunications and Information and Communication Technologies sector;
- Following up files relating to State representation in organizations and national and international events in the Posts, Telecommunications and Information and Communication Technologies sector;
- Monitoring the payment of State contributions to sub-regional, regional and international organizations in the Posts, Telecommunications and Information and Communication Technologies sector.
- Monitoring jobs in international organisations in the domain of Posts, Telecommunications and Information and Communication Technologies with the aim of positioning high ranking national officials.

(2) It shall comprise:
- The International Posts, Telecommunications and Information and Communication Technologies Cooperation Unit;
- The Cooperation and Partnership Strategies Unit.

PARAGRAPH I
INTERNATIONAL POSTS, TELECOMMUNICATIONS AND INFORMATION AND COMMUNICATION TECHNOLOGIES COOPERATION UNIT

ARTICLE 16.- (1) Under the authority of a Unit Head, the International Posts, Telecommunications and Information and Communication Technologies Cooperation Unit; shall be responsible for:
- Monitoring relations with sub-regional, regional and international organizations in the Posts, Telecommunications and Information and Communication Technologies sector, in conjunction with Technical Departments;
- Monitoring the payment of State contributions to the Universal Postal Union, the Pan African Postal Union, the International Telecommunication Union, the African Telecommunication Union and other sub-regional, regional and international organizations in the Posts, Telecommunications and Information and Communication Technologies sector.

(2) In addition to the Unit Head, it shall comprise two (2) Assistant Research Officers.

PARAGRAPH II
COOPERATION STRATEGIES AND PARTNERSHIP UNIT.

ARTICLE 17.- (1) Under the authority of a Unit Head, the Cooperation Strategies and Partnership Unit; shall be responsible for:
- Defining cooperation and partnership strategies in the area of Posts, Telecommunications and Information and Communication Technologies;
- Fostering and seeking the funding of projects from international partners;
- Following up files of vacant posts in international Posts, Telecommunications and Information and Communication Technologies organizations;
- Following up the careers of Cameroonian senior staffs in international Posts, Telecommunications and Information and Communication Technologies organizations;
- Fostering international jobs;
- Following up international commitments;
- Elaborating and following up the implementation of the calendars of international meetings in the area of Posts, Telecommunications and Information and Communication Technologies;
- Elaborating files for the ratification of conventions and agreements with international Posts, Telecommunications and Information and Communication Technologies organizations;
- Centralizing and examining reports of missions made abroad;
- Preparing technically audiences granted by the Minister to representatives of international organizations and delegations of friendly countries, in conjunction with the Communication and Public Relations Unit.

(2) In addition to the Unit Head, it shall comprise two (02) Assistant Research Officers.

SECTION III
FOLLOW-UP UNIT

ARTICLE 18.- (1) Under the authority of a Unit Head, the Follow-up Unit shall carry out all studies and missions entrusted to it by the Secretary General. It shall be responsible for:

- Monitoring the activities of central and deconcentrated services of the Ministry;
- Making a summary of the programme of action, periodic statements and progress reports submitted by the central and deconcentrated services of the Ministry.

(2) In addition to the Unit Head, it shall comprise two (02) Assistant Research Officers.

SECTION IV
TRAINING UNIT

ARTICLE 19.- (1) Under the authority of a Unit Head, the Training Unit, in conjunction with the Ministry of Higher Education, shall be responsible for:

- Drafting, developing and following up the implementation of the Government policy in terms of teaching and training in the domain of posts, telecommunications and information and communication technologies;
- Participating in the drawing up and updating of the syllabuses of national Posts, Telecommunications and Information and Communication Technologies training schools;
- Following up and participating in the technical and pedagogical control of training schools placed under the supervisory authority of the Ministry;
- Ensuring the training prospective in the domain of posts, telecommunications and information and communication technologies;
- Relations with the national commission to evaluate training abroad;

(2) In addition to the Unit Head, it shall comprise four (02) Assistant Research Officers.

SECTION V
COMMUNICATION UNIT

ARTICLE 20.- (1) Under the authority of a Unit Head, the Communication Unit shall be responsible for:

- Implementing the Government's communication strategy within the Ministry;
- Drafting and formalizing specific messages of the Ministry;
- Gathering, preserving and analyzing press and audiovisual documentation of the Ministry;
- Making the most of Articles related to issues concerning the Ministry published in national and international newspapers;
- Permanently promoting the good image of the Ministry;
- Protocol and organisation of ceremonies;
- Entertaining the website and all other information electronic medium;
- Producing specialized programmes of the Ministry in the media;
- Organizing press conferences and other communication actions of the Minister;
- Drafting and publishing news magazines and any other publications concerning the Ministry.

(2) In addition to the Unit Head, it shall comprise two (02) Assistant Research Officers.

SECTION VI
COMPUTER SYSTEMS UNIT

ARTICLE 21.- (1) Under the authority of a Unit Head, the Computer Systems Unit shall be responsible for:

- Designing and setting up the Ministry's computer system master plan;
- Development, processing and maintenance studies of computer applications and networks of the Ministry;
- Setting-up and updating data bases relating to the Ministry's information system;
- Securing the Ministry's information system and preserving data;
- Developing, administrating and maintaining the Ministry's computer system;
- Technological intelligence in the domain of information system.

(2) In addition to the Unit Head, it shall comprise three (03) Assistant Research Officers.

SECTION VII
TRANSLATION UNIT

ARTICLE 22.- (1) Under the authority of a Unit Head, the Translation Unit shall be responsible for:
- The translation of the routine documents of the Ministry;
- Controlling the quality of translation;
- Setting up a terminological data base relating to Posts, Telecommunications and Information and Communication Technologies.

(2) In addition to the Unit Head, it shall comprise two (02) Assistant Research Officers responsible for translation into French and English respectively.

SECTION VIII
RECEPTION, MAIL AND LIAISON SUB-DEPARTMENT

ARTICLE 23.- (1) Under the authority of a Sub-Director, the Reception, Mail and Liaison Sub-Department shall be responsible for:
- Receiving, informing and orientating users;
- Receiving, sorting and distributing mail;
- Filing and keeping signed instruments;
- Reproducing and notifying individual Acts and distributing regulatory instruments as well as any other documents of the service;
- Sending reminders to services for the processing of files.

(2) It shall comprise:
- The Reception and Orientation Service;
- The Mail and Liaison Service;
- The Reminder Service.

ARTICLE 24.- (1) Under the authority of a Service Head, the Reception and Orientation Service shall be responsible for:
- Receiving documents;
- Receiving petitions;
- Receiving and informing users;
- Controlling the regularity of documents.

(2) It shall comprise:
- The Reception and Information Bureau;
- The Control of Regularity Bureau.

ARTICLE 25.- (1) Under the authority of a Service Head, the Mail and Liaison Service shall be responsible for:
- Registering and codifying physical files;
- Distributing mail;
- Filing and keeping signed instruments;
- Reproducing individual instruments and any other documents of the service;
- Notification of signed documents;
- Creating virtual instruments.

(2) It shall comprise:
- The “Incoming” Mail Bureau;
- The “Outgoing” Mail Bureau;
- The Reproduction Bureau.

ARTICLE 26.-(1) Under the authority of a Service Head, the Reminder Service shall be responsible for:
- Registering petitions of users;
- Sending automatic reminders to services in case of non respect of dateline for the processing of files;
- Initiating the reminder of other Ministries.

SECTION IX-
DOCUMENTATION AND ARCHIVES CENTRE

ARTICLE 27. (1) Under the authority of a Centre Head, the Documentation and archives Centre shall be responsible for:
- Designing and setting up a filing system for the Ministry's documentation;
- Gathering, pooling, preserving and reproducing the Ministry's documents;
- Keeping and disseminating the Ministry's archives;
- Managing the library;
- Subscribing to general publications concerning the Ministry;
- Relations with the National Archives.

(2) It shall comprise:
- The Documentation Service;
- The archives Service.
- The Library.

ARTICLE 28.- Under the authority of a Service Head, the Documentation Service shall be responsible for:
- Disseminating Laws and regulatory texts;
- Reproducing and disseminating instruments;

ARTICLE 29.- Under the authority of a Service Head, the archives Service shall be responsible for:
- Organizing and implementing the documentation filing system;
- Gathering, pooling and preserving archives;
- Relations with National Archives.

ARTICLE 30.- Under the authority of a Library Head, the Library shall be responsible for:
- Acquiring, cataloging and preserving physical and electronic documents likely to be used;
- Collecting, storing and putting at disposal internal and external public documents, available documentary date of all nature;
- Managing the library;
- Relations with the National Library.

CHAPTER II
THE DEPARTMENT OF POSTAL, TELECOMMUNICATIONS, INFORMATION AND COMMUNICATION TECHNOLOGIES REGULATION

ARTICLE 31.- (1) Under the authority of a Director, the Department of Postal, Telecommunications, Information and Communication Technologies regulation shall be responsible for:
- Studying and preparing the technical files relating to the adaptation of the Laws in force to technological, economic and social evolutions in the Postal, Telecommunications, Information and Communication Technologies sector;
- Drafting, implementing and following-up concession and authorization conventions;
- Fixing financing conditions for universal postal service obligations;
- Implementing the regulation in the domain of Posts, Telecommunications, Information and Communication Technologies;
- The Secretariat of the Inter-Ministerial Committee in charge of frequency allocation;
- Keeping Public Administrations phone directory and billing file for electronic communications consumption means;
- Preparing regulatory texts in the domain of pricing of electronic communications and universal services cost, and services provided by the Telecommunications Regulatory Board and the National Agency for Information and Communication Technologies;
- Preparing decisions and procedural memoranda for the implementation of regulatory texts;
- Assessing the implementation of the regulation, in conjunction with Telecommunications Regulatory Board, the National Agency for Information and Communication Technologies and the Department of Postal Activities Regulation and Control;

- Following-up the changing trend of national regulations in the world;
- Implementing the international regulation of postal, telecommunications, information and communication technologies networks and services;
- Drafting, implementing and following-up concession and authorization conventions;
- Preparing files relating to the issuance of Authorizations to operators and carriers;
- Implementing the national regulation of radio communications;
- Developing and implementing the national plan for frequencies allocation;
- Coordinating the international allocation of some frequencies;
- Following up frequencies use;
- Following up frequencies notification;
- Preparing Cameroon's participation to international, regional, sub-regional and bilateral gatherings in the postal sector;
- Engineering the frequencies spectrum, in collaboration with the Telecommunications Regulatory Board.

(2) It shall comprise:
- The Postal Services Regulation Sub-Department;
- The Sub-Department of Telecommunications, Information and Communication Technologies Regulation;
- The Sub-Department of Frequencies Management.

SECTION I
POSTAL REGULATION SUB-DEPARTMENT

ARTICLE 32.- (1) Under the authority of a Sub-Director, the Postal Regulation Sub-Department shall be responsible for:
- Studying and preparing the technical files relating to the adaptation of the laws in force to technological, economic and social evolutions governing the postal sector;
- Implementing and assessing the regulation in the domain of posts;
- Drafting, implementing and following-up concession and authorization conventions;
- Implementing dispute settlement and processing postal litigations;
- Fixing financing conditions for universal postal service obligations;
- Defining pricing principles and regulations for postal services and universal service cost;
- Preparing decisions and procedural memoranda for the implementation of regulatory texts in the postal sector;
- Preparing regulatory texts in the domain of postal networks interconnection and assessing the implementation of rules and regulations;
- Following up the evolution of regulations in the world;
- Drafting, implementing and following-up concession and authorization conventions;
- Preparing files relating to the issuance of Authorizations to operators and carriers.

(2) It shall comprise:
- The Regulation Service;
- The Accreditation Service.
- The Postal Litigation Service;
- The Price Setting Service.

ARTICLE 33.- Under the authority of a Service Head, the Regulation Service shall be responsible for:
- Studying and preparing the technical files relating to the adaptation of the laws in force to technological, economic and social evolutions or to the new Laws governing the postal sector;
- Implementing and assessing the regulation in the domain of posts
- Drafting, implementing and following-up concession and authorization conventions;
- Fixing financing conditions for universal postal service obligations;
- Defining pricing principles and regulations for postal services and universal service cost;
- Preparing decisions and procedural memoranda for the implementation of regulatory texts;
- Preparing regulatory texts in the domain of postal networks interconnection;
- Assessing the implementation of rules and regulations;
- Following up the evolution of the regulation in the world.

ARTICLE 34.- Under the authority of a Service Head, the Accreditation Service shall be responsible for:
- Drafting, implementing and following-up concession and authorization conventions;
- Preparing files relating to the issuance of Authorizations to operators and carriers.

ARTICLE 35.- Under the authority of a Service Head, the Postal Litigation Service shall be responsible for following up dispute settlement and processing postal litigation, in conjunction with the Legal Affairs Division.

ARTICLE 36.- Under the authority of a Service Head, the Price Setting Service shall be responsible for:
- Defining rates rules and principles in the domain of postal services;
- Assessing the universal postal service and compensation mechanism cost;
- Fixing financing conditions for universal postal service obligations;
- Defining pricing rules and principles for postal services;
- Validating the Public Postal Service cost;
- Following up payment of compensation with the other countries and international organizations, in conjunction with the Concession Holder.

SECTION II
TELECOMMUNICATIONS AND INFORMATION AND COMMUNICATION TECHNOLOGIES REGULATION SUB-DEPARTMENT

ARTICLE 37.- (1) Under the authority of a Sub-Director, the Telecommunications and Information and Communication Technologies Sub-Department shall be responsible for:
- Studying and preparing technical files relating to the adaptation of laws in force to technological, economic and social evolutions governing the Telecommunications and Information and Communications Technologies sector;
- Preparing technical files relating to the adaptation of laws in force to technological, economic and social evolutions;
- Preparing technical files relating to the adaptation of Laws in force in the domain of networks and information systems security;
- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector in the development of Telecommunications infrastructure and networks, within a competitive environment;
- Implementing and assessing the regulation, in conjunction with the Telecommunications Regulatory Board;
- Preparing decisions and procedure notes for the implementation of regulatory texts, in the domain of Telecommunications and Information and Communication Technologies;
- Keeping Public Administrations phone directory and pricing file for electronic communications consumption means;
- Adapting the regulation in force to the technological, economic and social evolutions;
- Following up the regulations in the world;
- Following up the implementation of international agreements and treaties in the domain of Telecommunications and Information and Communication Technologies;
- Developing the annual report on the regulation of Telecommunications and Information and Communication Technologies;
- Following up the implementation of the regulation in the domain of electronic communications services provision;
- Reviewing files in view of the formal issuance of authorizations to operators and carriers of Telecommunications networks opened to public, after examination of files thereto by the Telecommunications Regulatory Board;
- Reviewing files in view of the formal issuance of authorizations to the stakeholders of the sector of networks and information systems security, after examination of files thereto by the National Agency for Information and Communications Technologies;
- Assessing rules and regulations, in conjunction with the Telecommunications Regulatory Board and the National Agency for Information and Communication Technologies;
- Following up the implementation of the regulation in the domain of electronic communications networks setting up and/or operation;

- Fixing financing conditions for universal Telecommunications service obligations;
- Reviewing files in view of the formal issuance of authorizations to operators, after examination of files thereto by the Telecommunications Regulatory Board and the National Agency for Information and Communication Technologies;
- Defining pricing principles and rules for electronic communications services and the universal service cost, as well as services provided by the Telecommunications Regulatory Board and the National Agency for Information and Communication Technologies;
- Assessing the implementation of the rules and regulations, in conjunction with Telecommunications Regulatory Board and the National Agency for Information Communication Technologies.

(2) It shall comprise:
- The Networks Regulation Service;
- The Services Regulation Service;
- The Authorisations Service.

ARTICLE 38.- Under the authority of a Service Head, the Networks Regulation Service shall be responsible for:
- Preparing technical files relating to the adaptation of Laws in force to technological, economic and social evolutions or to the new Laws relating to Telecommunications infrastructure and networks;
- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector in the development of Telecommunications infrastructure and networks, within a competitive environment;
- Reviewing files in view of the formal issuance of authorizations to operators and carriers of Telecommunications networks opened to the public, after examination of files thereto by the Telecommunications Regulatory Board;
- Preparing regulatory texts in the domain of electronic communications networks interconnection;
- Following up the implementation of the regulation in the domain of electronic communications networks setting up and/or operation;
- Following-up the regulation evolution in the domain of Telecommunications infrastructure and networks;
- Following-up the implementation of international agreements and treaties in the domain of Telecommunications infrastructure and networks, as well as in the Information and Communication Technologies sector;
- Drafting the annual report on the regulation of Telecommunications and Information and Communication Technologies infrastructure and networks;

ARTICLE 39.- Under the authority of a Service Head, the Services Regulation Service shall be responsible for:
- Preparing technical files relating to the adaptation of laws in force to technological, economic and social evolutions relating to the provision of electronic communications services to the public;
- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector to the provision of electronic communications services to the public, within a competitive environment;
- Following-up the numbering management, in conjunction with the Telecommunications Regulatory Board;
- Following-up the implementation of the regulation in the provision of electronic communications services;
- Reviewing files in view of the formal issuance of authorizations to the networks security and information systems stakeholders, after examination of files thereto by the National Agency of Information and Communication Technologies;
- Following-up the implementation of agreements, conventions, treaties, recommendations and directives in the domain of Telecommunications and Information and Communication Technologies;
- Drafting an annual report on the regulation of electronic communications services provision.

ARTICLE 40.- Under the authority of a Service Head, the Authorisations Service shall be responsible for reviewing files in view of the formal issuance of authorisations, after the examination of the files thereto by the Telecommunications Regulatory Board and the National Agency for Information and Communication Technologies.

SECTION III
FREQUENCIES MANAGEMENT SUB-DEPARTMENT

ARTICLE 41.- (1) Under the authority of a Sub-Director, the Frequencies Management Sub-Department shall be responsible for:
- the implementation of the national radiocommunications regulation;
- Coordinating the international allocation of some frequencies;
- Following up the control of frequencies use;
- Following up the notification of frequencies;
- Preparing Cameroon's participation to international, regional, sub-regional and bilateral gatherings in the area of radiocommunication;
- Engineering the frequency spectrum, in collaboration with the Telecommunications Regulatory Board;

(2) It shall comprise:
- The Spectrum Planning Service;
- The Coordination Service;

ARTICLE 42.- Under the authority of a Service Head, the Spectrum Planning Service shall be responsible for:
- the implementation of the national radiocommunications regulation;
- Developing and implementing the national strategy for frequencies bands allocation;
- Engineering the frequency spectrum, in collaboration with the Telecommunications Regulatory Board;
- Preparing Cameroon's participation to international, regional, sub-regional and bilateral gatherings in the area of radiocommunication;
- Preparing meetings for the Inter-Ministerial Organ in charge of attributing frequency bands;
- Following-up the implementation of the resolutions taken by the Inter-Ministerial Committee in charge of frequencies bands allocation.

ARTICLE 43.- Under the authority of a Service Head, the Coordination Service shall be responsible for:
- Developing and maintaining the data base for frequency use;
- Following up the control of frequencies use;
- Following-up the execution of projects relating to frequency management;
- Coordinating the allocation of international frequencies;
- Notifying international frequencies, in conjunction with the Telecommunications Regulatory Board.

CHAPTER III
THE DEPARTMENT OF POSTAL INFRASTRUCTURE, EQUIPMENT AND NETWORKS

ARTICLE 44.- Under the authority of a Director, the Department of Postal Infrastructure, Equipment and Networks shall be responsible for:
- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector in the development of postal infrastructure and equipment, within a competitive environment;
- Developing national standards for postal infrastructure, equipment and networks, in conjunction with Administrations and Institutions concerned;
- Harmonizing standards for the interoperability and interconnection of postal networks;
- Examining homologation files of postal networks interoperability and interconnection partnerships;
- Popularizing postal infrastructure and equipment standards;
- Defining identification codes of postal networks;
- Following up and assessing the implementation of technical partnerships in the postal domain;
- Popularizing postal buildings and networks standards;
- Coding and addressing in the postal domain, in conjunction with the Administrations concerned;
- Ensuring the strategic watch of postal technologies and engineering;
- Fixing general objectives for the development of infrastructure and networks;
- Participating to the formulation and implementation of the Government policy in the postal sector;
- Identifying and formulating national infrastructure programs and projects, in conjunction with the sector operators;

- Implementing national infrastructure programs and projects;
- Developing, implementing and assessing the sector strategy of posts, in conjunction with operators and partners to the sector development;
- Developing and following up the implementation of the master plan for the development of national postal infrastructure, in conjunction with the sector operators;
- Identifying, studying and implementing measures aiming at promoting a harmonious and coherent development of national infrastructure;
- Following up the access to networks opened to the public;
- Following up the implementation of interconnection modalities of postal networks and provision conditions of postal services;
- Ensuring economic and social studies in the domain of posts.

(2) It shall comprise:
- The Sub-Department of Postal Infrastructure and Equipment;
- The Sub-Department of Postal Networks;
- The Sub-Department of Postal Planning and Development.

SECTION I

THE SUB-DEPARTMENT OF POSTAL INFRASTRUCTURE AND EQUIPMENT

ARTICLE 45.- (1) Under the authority of a Sub-Director, the Sub-Department of Postal Infrastructure and Equipment shall be responsible for:
- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector to the development of postal infrastructure and equipment, within a competitive environment;
- Developing national standards of postal infrastructure and equipment, in conjunction with Administrations and Institutions concerned;
- Popularizing postal infrastructure and equipment;
- Developing the national postal coding;
- Developing and implementing the postal addressing system, in conjunction with Administrations concerned;
- Ensuring the strategic watch of postal technologies and engineering.

(2) It shall comprise:
- The Service of Postal Infrastructure and Equipment;
- The Service of Postal Codification and Addressing;
- The Service of Postal Technological Watch.

ARTICLE 46.- Under the authority of a Service Head, the Service of Postal Infrastructure and et Equipment shall be responsible for:
- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector to the development of postal infrastructure and equipment, within a competitive environment;
- Developing national standards of postal infrastructure and equipment, in conjunction with Administrations and Institutions concerned;
- Popularizing postal infrastructure and equipment.

ARTICLE 47.- Under the authority of a Service Head, the Service of Postal Codification and Addressing shall be responsible for:
- Developing the national postal Codification;
- Developing and implementing the postal addressing system, in conjunction with Administrations concerned.

ARTICLE 48.- Under the authority of a Service Head, the Service of Postal Technological Watch shall be responsible for the strategic watch of postal technologies and engineering.

SECTION II
POSTAL NETWORKS SUB-DEPARTMENT

ARTICLE 49.- (1) Under the authority of a Sub-Director, the Postal Networks Sub-Department shall be responsible for:

- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector to the development of postal infrastructure and equipment, within a competitive environment;
- Developing national standards of postal infrastructure and equipment, in conjunction with the Administrations and Institutions concerned;
- Popularizing postal infrastructure and equipment;
- Developing the national postal Codification;
- Developing and implementing the postal addressing system, in conjunction with Administrations concerned;
- Ensuring the strategic watch of postal technologies and engineering;
- Developing national standards of postal networks, in conjunction with Administrations and Institutions concerned;
- Harmonizing standards for the interoperability and interconnection of postal networks;
- Examining homologation files of postal networks interoperability and interconnection partnerships;
- Defining postal networks identification codes;
- Following up and assessing the implementation of technical partnerships in the postal domain;
- Following up the access to networks opened to public;
- Following up the implementation of interconnection modalities of postal networks and provision conditions for postal services.

(2) It shall comprise:

- The Service of Postal Networks and Equipment;
- The Service of Standards and Codification;
- The Service of Technical Partnerships Follow up.

ARTICLE 50.- Under the authority of a Service Head, the Service of Postal Networks and Equipment shall be responsible for:

- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector to the development of postal infrastructure and equipment, within a competitive environment;
- Popularizing postal infrastructure and equipment;
- Developing national standards of postal infrastructure and equipment, in conjunction with Administrations and Institutions concerned;
- Harmonizing standards for the interoperability and interconnection of postal networks;
- Examining homologation files of postal networks interoperability and interconnection partnerships;
- Defining postal networks identification codes;
- Ensuring the strategic watch of postal technologies and engineering.

ARTICLE 51.- Under the authority of a Service Head, the Standards and Codification Service shall be responsible for:

- Developing standards relating to postal networks and services, in conjunction with Administrations and Institutions concerned;
- Ensuring the postal Codification and addressing, in conjunction with Administrations concerned;
- Developing the national postal Codification;
- Developing and implementing the postal addressing system, in conjunction with Administrations concerned.

ARTICLE 52.- Under the authority of a Service Head, the Service of Technical Partnerships Follow up shall be responsible for following up and assessing specific projects implemented with the support of International Organizations, in the domain of Posts and other partners to development.

SECTION III

POSTAL PLANNING AND DEVELOPMENT SUB-DEPARTMENT

ARTICLE 53.- Under the authority of a Sub-Director, the Postal Planning and Development Sub-Department shall be responsible for:

- Fixing general objectives for the development of infrastructure and networks;
- Participating to the development and implementation of the Government policy in the sector concerned;
- Identifying and developing national infrastructure programmes and projects, in conjunction with operators of the sector;
- Implementing national infrastructure programmes and projects;
- Developing, implementing and assessing the Posts, Telecommunications and Information and Communication Technologies sectoral strategy, in conjunction with the sector operators and development partners;
- Developing and following-up the implementation of the master plan for the development of Posts, Telecommunications and Information and Communication Technologies national infrastructure, in conjunction with the sector operators;
- Identifying, studying and implementing measures aiming at promoting a harmonious and coherent development of national infrastructure.

(2) It shall comprise each:

- The Planning Service;
- The Development Service;
- The Supervisory Authority Service.
- The Economic and Social Studies Service.

ARTICLE 54.- Under the authority of a Service Head, the Postal Planning Service shall be responsible for:

- Fixing general objectives for the development of infrastructure and networks;
- Participating to the development and implementation of the Government policy in the sector concerned;
- Identifying and formulating national infrastructure programmes and projects, in conjunction with operators of the sector;
- Identifying and studying infrastructure specific projects;
- Developing the Posts and Telecommunications sectoral strategy, in conjunction with the sub-sector and the sector operators, the civil society, donors and the sub-sector partners;
- Developing the master plan for the development of national infrastructure, in conjunction with operators of the sector;
- Identifying and studying measures aiming at promoting a harmonious development of national infrastructure.

ARTICLE 55.- Under the authority of a Service Head, the Postal Development Service, shall be responsible for:

- Following-up the service request evolution from private operators;
- Following-up the private operators offer;
- Drafting and publishing the annual report on technologies development;
- Following-up the implementation of conventions and authorisations specifications;
- Promoting new technologies to operators of the sector;
- Promoting sustainable development and environment protection in the sector.

ARTICLE 56.- Under the authority of a Service Head, the Supervisory Services, shall be responsible for:

- Drafting the general objective chart assigned to operators under the supervisory authority;
- Following up and assessing the offer of the universal service by operators under supervisory authority;
- Following up and assessing periodically the implementation of the plans of action of these operators;
- Proposing support modalities for the management of networks;
- Supporting in the setting up of equipment;
- Drafting the annual report on the evolution of demand and supply in public administrations and institutions.

- Following up the access to networks opened to the public;
- Following up the implementation of interconnection modalities for postal networks and provision conditions for postal services;
- Following up the execution of public postal service missions by Concession Holders;
- Following up measures aiming at guaranteeing the continuity of the public postal service in case of emergency.

ARTICLE 57.- Under the authority of a Service Head, the Economic and Social Studies Service shall be responsible for:

- Formulating and examining incentive measures aiming at encouraging and fostering the participation of the private sector to the implementation and development of postal services, within a competitive environment;
- Following up statistical data and operators' accounts;
- Ensuring economic and social studies in the postal domain.

CHAPTER IV
THE DEPARTMENT OF POSTAL ACTIVITIES REGULATION AND MONITORING

ARTICLE 58.- (1) Under the authority of a Director, the Department of Postal Activities Regulation and Monitoring shall be responsible for:

- Verifying, executing and ensuring the continuity of public service missions in the postal sector;
- Verifying the access to networks opened to the public in objective, transparent and non discriminatory conditions;
- Monitoring the implementation of Concession agreements and authorizations;
- Laying down technical modalities and conditions for the issuance of authorizations to set up and/or operate a postal network;
- Laying down technical modalities and conditions for postal services provision;
- Laying down technical modalities and conditions for the issuance of declaration receipts;
- Defining services pricing principles;
- Defining postal services pricing principles and rules;
- Laying down financing conditions for the universal postal service obligation;
- Monitory postal activities.

(2) It shall comprise:

- The Sub-Department of Postal Activities Regulation;
- The Control Brigade.

SECTION I
THE SUB-DEPARTMENT OF POSTAL ACTIVITIES REGULATION

ARTICLE 59.- (1) Under the authority of a Sub-Director, the Sub-Department of the Postal Activities Regulation shall be responsible for:

- Following up the implementation of the regulation;
- Developing Specifications of operators and carriers of postal networks opened to the public;
- Guaranteeing fair and loyal competition in the postal sector;
- Ensuring the regulation of carriers and operators activities of the postal sector;
- Verifying the execution and continuity of public postal service missions;
- Verifying the access to postal networks opened to the public, in objective, transparent and non discriminatory conditions;
- Arbitrating disputes between postal operators;
- Defining pricing principles of services provided;
- Following up banking by mail.

(2) It shall comprise:

- The Operators Service;
- The Price Setting and Accounts Service;
- The Accreditations Service;

- The Arbitrations Service.

ARTICLE 60.- Under the authority of a Service Head, the Operators Service shall be responsible for:
- Following up relations between the Ministry and operators;
- Following up the respect of Agreements and authorizations;
- Following up the respect of the minimum service.

ARTICLE 61.- Under the authority of a Service Head, the Price Setting and Accounts Service shall be responsible for:
- Defining pricing principles;
- Following up product accounts;
- Updating accounts with national and international organizations;
- Following up compensation payment with the other countries and international organizations;
- Following up the Treasury Special Appropriation Account for the Development of the Postal Activity.

ARTICLE 62.- Under the authority of a Service Head, the Accreditations Service shall be responsible for:
- Examining declaration files;
- Developing Specifications of operators and carriers of postal networks opened to public;
- Registering and studying authorizations applications;
- Preparing tender files relating to Concession Agreements.

ARTICLE 63.- Under the authority of a Service Head, the Arbitration Service shall be responsible for:
- Preparing litigation files;
- Preparing arbitration files of dispute between operators;
- Preparing arbitration files of dispute between operators and customers.

SECTION II
CONTROL BRIGADE

ARTICLE 64.- (1) Under the authority of a Brigade Chief, the Control Brigade shall be responsible for:
- Controlling the respect of Operators' specifications;
- Controlling the quality of service.

(2) In addition to the Brigade Chief, it shall comprise three (03) Controllers.

CHAPTER V
DEPARTMENT OF INFORMATION AND COMMUNICATION TECHNOLOGIES INFRASTRUCTURE AND ACCESS NETWORKS

ARTICLE 65.- (1) Under the authority of a Director, the Department of Information and Communication Technologies Infrastructure and Access Networks shall be responsible for:
- Developing, implementing and assessing the development strategy of the Information Society, in conjunction with Administrations and organizations concerned;
- Identifying and formulating access programs and projects to electronic communications services, in conjunction with operators of electronic communications networks opened to the public and partners concerned;
- Following up the implementation of users access applications and systems to electronic communications services;
- Identifying, studying and implementing measures aiming at promoting the harmonious development of networks access and electronic communications services;
- Promoting and popularizing information and communication technologies in all the sectors, in conjunction with Administrations and Organizations concerned;
- Ensuring research and development in the domain of Information and Communication Technologies, in conjunction with Administrations and Organizations concerned;
- Participating to the development of national standards of Information and Communication Technologies, in conjunction with Administrations and Organizations concerned;
- Ensuring the technological watch as concerns Information and Communication Technologies;
- Bringing technical support to the development of electronic communication services in Public Adminis-

trations and Deconcentrated Territorial Communities;
- Developing, implementing and assessing the Emergency Telecommunications Plan, in conjunction with the competent services of Administrations in charge of preventing disasters and crisis situation;
- Following up the management of the ".cm" national Internet domain;
- Centralizing statistical data in the domain of Information and Communication Technologies;
- Fixing general objectives for the development of infrastructure and networks.

(2) It shall comprise:
- The Sub-Department of Information and Communication Technologies Promotion and Popularization;
- The Sub-Department of Standardization of Information and Communication Infrastructure and Equipment;
- The Sub-Department of Telecommunications, Information and Communications Technologies Planning and Development.

SECTION I

SUB-DEPARTMENT FOR THE PROMOTION AND POPULARIZATION OF INFORMATION AND COMMUNICATION TECHNOLOGIES

ARTICLE 66.- (1) Under the authority of a Sub-Director, the Sub-Department for the Promotion and Popularization of Information and Communication Technologies shall be responsible for:
- Formulating, Implementing and assessing the development strategy of the Information Society, in conjunction with Administrations and Organizations concerned;
- Identifying and drawing up programmes and projects for access to electronic communications services, in conjunction with operators of electronic communications networks opened to the public and partners concerned.
- Following-up the implementation of applications and user access systems to electronic communications services;
- Identifying, studying and implementing measures aimed at promoting a harmonious development of network access and electronic communications services;
- Promoting and popularizing information and communication technologies in all sectors, in conjunction with the Administrations and institutions concerned;
- Technically assisting deconcentrated administrations and territorial communities in the development of their electronic communication services.
- Formulating and implementing emergency telecommunication plans, in conjunction with the competent services of the administrations in charge of the prevention of disasters and crisis situations.

(2) It shall comprise;
- The Information and Communication Technologies Promotion and Popularization Service;
- The Technical Support to Administrations Service;
- The Telecommunications Emergency Service;

ARTICLE 67.- Under the authority of a Service Head, the Information and Communication Technologies Promotion and Popularization Service shall be responsible for:
- Developing, implementing and assessing the development strategy of the Information Society;
- Promoting and popularizing information and communication technologies in all sectors, in conjunction with Administrations and Institutions concerned;
- Identifying and drawing up programmes and projects for access to electronic communication services, in conjunction with operators of networks opened to the public and partners concerned.
- Following-up the implementation of applications and users access systems to electronic communications services.
- Identifying, studying and implementing measures aimed at promoting a harmonious development of network access and electronic communications services.

ARTICLE 68.- Under the authority of a Service Head, the Technical Support to Administrations Service shall be responsible for:
- Technically assisting deconcentrated administrations and territorial communities in the development of their electronic communication services;

- Providing technical advice on the choice of electronic communications network access equipment in de-concentrated administrations and local councils;
- Providing permanent assistance for the maintenance of network access;
- Following up the technical set up and reception of network access to electronic communications in de-centralised administrations and territorial communities;

ARTICLE 69.- Under the authority of a Service Head, The Telecommunications Emergencies Service shall be responsible for:
- Formulating, implementing and assessing the Emergency Telecommunications Plan, in conjunction with the competent services of the administrations in charge of the prevention of disasters and crisis situations;
- Simulating local, national, and regional telecommunications emergencies in conjunction with the administrations concerned;
- Following up the Emergency Telecommunications Plan implemented by the operators of electronic communications networks opened to the public;

SECTION II

INFORMATION AND COMMUNICATION TECHNOLOGIES INFRASTRUCTURE AND EQUIPMENT STUDIES AND STANDARDISATION SUB-DEPARTMENT

ARTICLE 70.- (1) Under the authority of a Sub-Director, The Information and Communication Technologies Infrastructure and Equipment Studies and Standardisation Sub-Department shall be responsible for:
- Formulating national norms and standards of information and communication technologies, in conjunction with the administrations and institutions concerned;
- Promoting research and development in the domain of information and communication technologies, in conjunction with the administrations and institutions concerned;
- Developing and following up the management policy and use of IP addresses implemented by the National Agency for Information and Communication Technologies, in conjunction with the administrations and institutions concerned;
- Ensuring technological watch in the domain of information and communication technologies;
- Participating in the negotiation and the follow up of the implementation of international agreements and treaties in the domain of information and communication technologies;
- following up the management of the national internet domain name ".cm";
- producing statistical data in the domain of information and communication technology.

(2) It shall comprise:
- The Studies Service;
- The Standardisation Service;
- The Statistics Service.

ARTICLE 71.- Under the authority of a Service Head, the Studies Service shall be responsible for:
- developing and following up the management policy and use of IP addresses implemented by the National Agency for Information and Communication Technologies, in conjunction with the administrations and institutions concerned;
- research -development in the domain of information and communication technologies, in conjunction with the administrations and institutions concerned;
- ensuring technological watch in the domain of information and communication technologies;
- following up the management of the national internet domain name ".cm";

ARTICLE 72.- Under the authority of a Service Head, the Standardisation Service shall be responsible for formulating national norms and standards of information and communication technologies, in conjunction with the administrations and institutions concerned;

ARTICLE 73.- Under the authority of a Service Head, the Statistics Service shall be responsible for:
- Collecting, examining and disseminating statistical data relating to information and communication technologies;
- Setting up and developing forecast and modelling instruments.

SECTION III

THE SUB-DEPARTMENT OF TELECOMMUNICATIONS AND INFORMATION AND COMMUNICATION TECHNOLOGIES PLANNING AND DEVELOPMENT

ARTICLE 74.- (1) Under the authority of a Sub-Director, the Sub-Department of Telecommunications and Information and Communication Technologies Planning and Development shall be responsible for:

- fixing general objectives for the development of infrastructure and Telecommunications and Information and Communication Technologies networks;
- participating in the development and implementation of the Government policy in the Telecommunications and Information and Communication Technologies sector;
- identifying and drafting national infrastructure programmes and projects, in conjunction with operators of the Telecommunications and Information and Communication Technologies sector;
- following-up the implementation of identified projects and programmes;
- participating in the implementation of national infrastructure programmes and projects in the Telecommunications and Information and Communication Technologies sector;
- identifying and studying specific Telecommunications and Information and Communication Technologies infrastructure projects;
- developing and following-up the implementation of the Telecommunications and Information and Communication Technologies sector strategy, in conjunction with the sector operators, the civil society, donors and the sector partners;
- drafting and following-up the Master Plan for national infrastructure development, in conjunction with operators of the Telecommunications and Information and Communication Technologies sector;
- identifying, studying and implementing measures aiming at promoting a harmonious and coherent development of national infrastructure in the Telecommunications and Information and Communication Technologies sector;
- assessing the implementation of the sector strategy and the Master Plan for the development of Telecommunications and Information and Communication Technologies national infrastructure, in conjunction with operators and partners in the sector development.

(2) It shall comprise:

- the Infrastructure and Access Networks to Information and Communication Technologies Planning Service;
- the Infrastructure and Access Networks to Information and Communication Technologies Development Service;
- the Telecommunications and Information and Communication Technologies Sector Supervisory Authority Service.

ARTICLE 75.- Under the Authority of a Service Head, the Infrastructure and Access Networks to Information and Communication Technologies Planning Service shall be responsible for:

- fixing general objectives for the development of Telecommunications and Information and Communication Technologies infrastructure and networks;
- participating in the drafting and implementation of the Government policy in the Telecommunications and Information and Communication Technologies sector;
- identifying and developing Telecommunications and of Information and Communication Technologies national infrastructure programmes and projects, in conjunction with Telecommunications and Information and Communication Technologies operators;
- identifying and studying specific Telecommunications and Information and Communication Technologies infrastructure projects;
- drafting the Telecommunications and Information and Communication Technologies sector strategy, in conjunction with the sector operators, the civil society, donors and development partners;
- drafting the Master Plan for the development of Telecommunications and Information and Communication Technologies national infrastructure, in conjunction with operators of the sector;
- identifying and studying measures aiming at promoting a harmonious and coherent development for Telecommunications and Information and Communication Technologies national infrastructure.

ARTICLE 76.- Under the authority of a Service Head, the Telecommunications and Information and Communication Technologies Development Service shall be responsible for:
- following-up the evolution of the request for services from private operators of the Telecommunications and Information and Communication Technologies sector;
- following-up the private operators offer of the Telecommunications and Information and Communication Technologies sector;
- drafting and publishing the annual report on the development of technologies;
- following-up the implementation of Agreements and authorizations specifications;
- identifying and promoting new technologies vis-à vis operators of the Telecommunications and of Information and Communication Technologies sector;
- participating in the promotion of a national industry in the Telecommunications and of Information and Communication Technologies sector;
- promoting sustainable development and protecting the environment in the Telecommunications Information and Communication Technologies sector.

ARTICLE 77.- Under the Authority of a Service Head, the Telecommunications and Information and Communication Technologies Sector Supervisory Authority Service shall be responsible for:
- drafting the general objectives table assigned to operators under supervisory authority;
- following-up and assessing the universal service offer by operators under supervisory authority;
- ensuring the follow-up and the periodic assessment of the implementation of operators action plans in the Telecommunications and of Information and Communication Technologies sector;
- proposing support modalities to the management of networks;
- supporting the putting in place of equipment;
- drafting the annual report on the evolution of offer and the demand in Public Administrations and Institutions.

CHAPTER VI
NETWORKS AND INFORMATION SYSTEMS SECURITY DEPARTMENT

ARTICLE 78. - (1) Under the authority of a Director, the Networks and Information Systems Security Department shall be responsible for:
- developing and following-up the implementation of the national policy in the domain of electronic communications networks and information systems protection and security, and the security audit certification, in conjunction with the National Agency for Information and Communication Technologies;
- promoting electronic communications networks and information systems security;
- following-up the evolution of issues related to the security of networks and certification activities;
- coordinating the national plan of the activities leading to the securement and the protection of electronic communications networks and information systems;
- controlling the compliance of files relating to the issuance of authorizations to Certification Authorities, security Auditors, security consultants, security solutions integrators, publishers of security software and other security service providers;
- controlling the compliance of files relating to the issuance of Mutual Recognition Agreements to foreign certification authorities with Cameroon certification authorities;
- controlling the compliance of files relating to the issuance of homologation titles for cryptography equipment after examining the files thereto by the National Agency for Information and Communication Technologies;
- laying down pricing principles and rules for networks and information systems security services, as well as services provided by the National Agency for Information and Communication Technologies;
- popularizing protective measures for the populations against cybernetic criminal acts;
- securing the State's critical infrastructure and Public Administrations and deconcentrated Territorial Communities applications, in conjunction with Administrations and Organisations concerned;
- centralizing statistical data in the domain of cybersecurity and cybercrime;

(2) It shall comprise:
- the Sub-Department of Security Technologies;

- the Sub-Department of Network Security Services;

SECTION I

THE SUB-DEPARTMENT OF SECURITY TECHNOLOGIES

ARTICLE 79. - (1) Under the authority of a Sub- Director, the Sub-Department of Security Technologies shall be responsible for:

- Developing, implementing and monitoring the national policy for networks security and certification in the domain of electronic communications networks and information systems protection and security, certification and security audit, in conjunction with Administrations and Organizations concerned;
- following-up the evolution of issues related to the security of networks and certification activities;
- controlling the compliance of files relating to the issuance of authorizations to Certification Authorities, security Auditors, security consultants, security solutions integrators, publishers of security software and others security service providers;
- controlling the compliance of files relating to the issuance of Mutual Recognition Agreements to foreign certification authorities with Cameroon certification authorities;
- controlling the compliance of files relating to the issuance of homologation titles for cryptography equipment;
- securing Public Administrations and deconcentrated Territorial Communities applications, in conjunction with Administrations and Organizations concerned;
- centralizing statical data concerning the use of security technologies;
- Popularizing protective measures for the populations against cybernetic criminal acts;
- promoting and popularizing networks security technologies.

(2) It shall comprise:

- the Security Audits Service;
- the Accreditation Service;
- the Promotion and popularization of Security Technologies Service.

ARTICLE 80.- Under the authority of a Service Head, the Security Audit Service shall be responsible for:

- developing a national strategy in the domain of security audit of electronic communications networks and information systems;
- using security audit reports, obligatory and periodical of enterprises concerned, carried out by the National Agency of Information and Communication Technologies;
- keeping statistical data relating to the vulnerability of networks and information systems.

ARTICLE 81.- (1) Under the authority of a Service Head, the Accreditation Service shall be responsible for:

- Studying files for issuing accreditations particularly to Certification Authorities, Security Auditors, security consulting firms, integrators of security solutions, security software publishers and other providers of security services;
- studying draft agreements on mutual recognition between Cameroonian certification authorities and foreign certification authorities;
- studying files for the homologation of cryptographic and security equipment, after processing of applications by the National Agency for Information and Communication Technologies;

ARTICLE 82. - (1) Under the authority of a Service Head, the service of Promotion and Popularization of Security Technologies shall be responsible for:

- securing Public Administrations and deconcentrated Territorial Communities applications, in conjunction with Administrations and Organizations concerned;
- promoting and popularizing network security technologies;
- following-up the evolution of issues related to the security of networks and certification activities;
- popularizing protective measures for the populations against cybernetic criminal acts;
- keeping statistical data concerning the use of security technologies;

SECTION II
SUB-DEPARTMENT OF NETWORK SECURITY SERVICES

ARTICLE 83. - (1) Under the authority of a Sub-Director, the Sub-Department of Network Security Services shall be responsible for:
- promoting the security of electronic communications networks and information systems;
- coordinating at the national level activities aiming at securing and protecting electronic communications networks and information systems;
- determining pricing principles and rules of network security services, information systems and services provided by the National Agency for Information and Communications Technologies;
- Supporting technically, the securement of the State critical infrastructure and Public Administrations and Deconcentrated Territorial Communities Applications;
- developing support mechanisms and modalities for civil society initiatives in the area of cybersecurity;
- supporting research and development as far as cybersecurity is concerned, in conjunction with training institutions.

(2) It shall comprise:
- the Support to Public Administrations Service;
- the Studies and Forecast Service.

ARTICLE 84. - Under the authority of a Service Head, the Support to Public Administrations Service shall be responsible for:
- promoting the security of electronic communications networks and information systems;
- coordinating, at the national level, activities aiming at securing and protecting electronic communications networks and information systems;
- providing technical assistance decentralized administrations and territorial communities in ensuring their network security;

ARTICLE 85.- Under the authority of a Service Head, the Studies and Forecast Department shall be responsible for:
- determining pricing principles and rules of network security services, information systems and services provided by the National Agency for Information and Communications Technologies;
- developing support mechanisms and modalities to civil society initiatives in the area of cyber security;
- supporting research and development in the domain of cybersecurity, in conjunction with training institutions.

CHAPTER VIII
DEPARTMENT OF GENERAL AFFAIRS

ARTICLE 86.(1) Under the authority of a Director, the Department of General Affairs shall be responsible for:
- Implementing Government's policy as far as the management of the Ministry's human resources are concerned;
- implementing the Government policy in the domain of training the Ministry's staff;
- recruiting subordinate staff;
- coordinating the development of a training plan for internal staff;
- Following up the improvement of working conditions;
- Preparing internal staff management instruments;
- Preparing the transfer of staff within the Ministry;
- Examining the disciplinary files of internal staff;
- Applying the legal and regulatory texts
- related to the expenditure of the Ministry's personnel;
- Preparing elements of the salary of the Ministry's staff and it accessories;
- the Ministry's working personnel;
- computerizing and validating salary for recruitment, promotion, appointment, grade promotion and wage progression;
- laying down and validating the salary for various compensations and allowances;

- computerizing and validating family allowance benefits;
- updating payroll master file;
- drafting, liquidating and signing Concession instruments for the rights to pension and life annuity after visa by of competent authorities;
- drafting, liquidating and signing of instruments granting compensation pensions of occupational diseases after visa by competent authorities;
- Updating the card index of internal staff;
- Drafting, executing and monitoring the Ministry budget;
- preparing tender files and following up the execution of Public Contracts within the Ministry;
- controlling the respect of procedures for the award of contracts;
- managing file and statistics on public contracts;
- keeping public contracts documents;
- following up proper conduct of works and service provisions;
- managing and maintaining the Ministry's movable and immovable property.

(2) It shall comprise:
- The SIGIPES Management Unit;
- The Sub-Department of Personnel, Salary and Pensions;
- The Sub-Department of Budget, Equipment and Maintenance.

SECTION I
SIGIPES MANAGEMENT UNIT

ARTICLE 87.-(1) Under the authority of a Unit Head, the SIGIPES Management Unit shall be responsible for:
- Centralising and updating on a regular basis the card index of the personnel and salary;
- Editing salary documents;
- Running and maintaining the computer applications of the Sub-Department of Personnel, Salary and Pensions;

(2) In addition to the Unit Head, it shall comprise two (02) Assistant Research Officers.

SECTION II
SUB-DEPARTMENT OF PERSONNEL, SALARY AND PENSION

ARTICLE 88. (1) Under the authority of a Sub-Director, the Sub-Department of Personnel, Salary and Pension shall be responsible for:
- centralizing and permanently updating the personnel and salary physical files of the Ministry;
- preparing the transfer of staff within the Ministry;
- following up the careers of the personnel;
- developing the training sector plan of the personnel of the Ministry;
- preparing the management instruments of internal staff;
- examining the disciplinary files of internal staff;
- social action and support to association and cultural life;
- running and maintaining the computer applications of the Sub-Department of the State Personnel, Salary and Pensions;
- managing pensions;
- preparing elements of the salary of the Ministry's staff and it accessories;
- computerizing and validating salary for recruitment, promotion, appointment, grade promotion and wage progression;
- laying down and validating the salary for various compensations and allowances;
- computerizing and validating family allowance benefits;
- updating payroll master file;
- drafting, liquidating and signing Concession instruments for the rights to pension and life annuity after visa by of competent authorities;
- drafting, liquidating and signing of instruments granting compensation pensions of occupational diseases after visa by competent authorities;

(2) It shall comprise:
- The Personnel Service;
- The Salary and Pensions Service;
- The Social Action Service;
- The Training Service.

ARTICLE 89. (1) Under the authority of a Service Head, the Personnel Service shall be responsible for:
- Preparing instruments relating to the management of staff;
- Management of working positions;
- Forward management of staff, in conjunction with the Ministry in charge of Public Service;
- Centralising training needs;
- Examining the disciplinary files of staff;
- Updating the card index of staff.

(2) It shall comprise:
- The Card Index Bureau;
- The public servant Personnel Bureau;
- The non-public servant Personnel Bureau;
- The Forward Management bureau;

ARTICLE 90. (1) Under the authority of a Service Head, the Salary and Pensions Service shall be responsible for:
- Preparing salary and payment decisions;
- Processing family allowance files;
- Preparing the elements of salary, its accessories and pensions;
- Computerizing and validating the salary for recruitment, promotion, appointment, staff promotion and upgrading instruments;
- Computerizing and validating the salary for various compensations and allowances;
- Computerizing and validating family allowance salary;
- updating payroll master file;
- Drafting, liquidating and signing Concession instruments for rights to pension and life annuity after visa by competent authorities;
- Drafting, liquidating and signing instruments granting compensation pensions and occupational diseases after visa by competent authorities;
- financial processing of files of occupational diseases and risks;
- salary documentation and archives;
- preparing pension instruments;
- drawing up pension listings;
- Claims relating to salary, in conjunction with the Ministry in charge of finance.

(2) It shall comprise:
- The Salary and Miscellaneous Services Bureau;
- The Pension Bureau
- The Petition and reminder Bureau.

ARTICLE 91.- Under the authority of a Service Head, the Social Action Service shall be responsible for:
- Informing the staff on assistance procedures relating to professional illness, industrial accidents and medical coverage, in conjunction with the ministries in charge of finance and health;
- Following up the improvement of working conditions in the services;
- Supporting association and cultural life of the personnel.
- organizing and following up seminars and practicum for the ministry's staff.

ARTICLE 92.- Under the authority of a Service Head, the Training Service is responsible for organising and monitoring seminars and courses for the Ministry's staff.

SECTION III

SUB-DEPARTMENT OF BUDGET, EQUIPMENT AND MAINTENANCE

ARTICLE 93.- (1) Under the authority of a Sub-Director, the Sub-Department of Budget, Equipment and Maintenance shall be responsible for:
- Preparing and following up the execution of the Ministry's budget;
- Managing and maintaining all the movable and immovable property of the Ministry.
- preparing tender files and following up the implementation of Public Contracts within the Ministry.

(2) It shall comprise:
- The Budget and Equipment Service;
- The Public Contracts Service;
- The Maintenance Service.

ARTICLE 94. Under the authority of a Service Head, the Budget and Equipment Service shall be responsible for:
- preparing and executing the Ministry's budget;
- managing and maintaining all movable and immovable property of the Ministry;
- preparing tender files and following up the performance of Public Contracts within the Ministry.

(2) It shall comprise:
- The Public Investment Budget Bureau;
- The Special Funds for Telecommunications engagements' Following up Bureau;
- The Special Development Funds for Postal Activities' engagements' Following up Bureau;
- The Special Fund for Electronic Security Activities engagements' Following up Bureau
- The Equipment Bureau.

ARTICLE 95.-(1) Under the authority of a Service Head, the Public Contracts Service shall be responsible for:
- preparing Tender Files or contractors shortlist file;
- ensuring the respect and follow up of public contracts procedures and controlling the performance of public contracts, in conjunction with the ministry in charge of public contracts;
- keeping the public contracts file and statistics of the Ministry;
- following up litigations on public contracts;
- preserving the Ministry public contract documents;
- transmitting all documents relating to public order to the ministry in charge of public contracts.

(2) It shall comprise:
- the Tender Files Bureau
- the Public Contracts performance follow up and control Bureau.

ARTICLE 96.- (1) Under the authority of a Service Head, the Maintenance Service shall be responsible for:
- The maintenance of equipment and infrastructure;
- The maintenance of buildings;
- The cleanliness of offices and their surroundings.

(2) It shall comprise:
- The maintenance Bureau;
- The Cleanliness Bureau.

CHAPTER VIII
THE PROJECTS, STUDIES AND PROSPECTIVE DIVISION

ARTICLE 97.- (1) Under the authority of a Division Head, the Projects, Studies and Prospective Division shall be responsible for:
- coordinating the implementation of cross sector or specific programmes and projects;
- evaluating and following up the implementation of the above mentioned programmes and projects;
- keeping a data bank on cross sector or specific projects;
- observing, analysing and assessing telecommunications contracts, in conjunction with the Telecommunications Regulatory Board;
- assessing social and economic stakes in the domain of telecommunications and information and communication technologies;
- assessing economic stakes of the regulation;

- preparing the specifications of contracts to be entrusted to the Bureau of Studies;
- keeping and publishing statistical data on Telecommunications and Information and Communication Technologies;
- preparing meetings for the Inter-ministerial Committee in charge of controlling the consumptions of public services electronic communication means;
- keeping the phone directories and billing file for the electronic communications means consumption of social and economic studies for public Administrations, in the domain of Telecommunications and Information and Communication Technologies;
- identifying and developing national infrastructure programmes and projects, in conjunction with operators of the sector;
- implementing national infrastructure programmes and projects;
- developing, implementing and assessing the Telecommunications and of Information and Communication Technologies sector strategy, in conjunction with operators and development partners of the sector;
- developing and following up the implementation of the Master plan for the development of Telecommunications and Information and Communication Technologies national infrastructure, in conjunction with the sector operators;
- identifying, studying and implementing measures aiming at promoting a harmonious and coherent development of national infrastructure.

(2) It shall comprise:
- the Projects Unit;
- the Economic Studies and Prospective Unit.

SECTION I
PROJECTS UNIT

ARTICLE 98.- (1) Under the authority of a Unit Head, the Projects Unit shall be responsible for:
- Coordinating the implementation of transversal and specific programmes and projects;
- Assessing and following up the execution of these programmes and projects;
- Keeping a data bank on transversal and specific projects.

(2) In addition to the Unit Head, it shall comprise five (05) Project Engineers.

SECTION II
THE ECONOMIC STUDIES AND PROSPECTIVE UNIT

ARTICLE 99.- (1) Under the authority of a Unit Head, the Economic Studies and Prospective Unit shall be responsible for:
- observing, analysing and assessing telecommunications contracts, in conjunction with the Telecommunications Regulatory Board;
- assessing social and economic stakes in the domain of telecommunications and information and communication technologies;
- assessing economic stakes of the regulation;
- preparing specifications for contracts to be entrusted to the Bureau of Studies;
- keeping and publishing statistical data on Telecommunications and Information and Communication Technologies;
- preparing meetings of the Inter-ministerial Committee in charge of controlling the consumptions of public services electronic communication means;
- keeping the phone directories and the billing file for the consumption of Public Administrations electronic communications.

(2) In addition to the Unit Head, it shall comprise two (02) Assistant Research Officers.

PART VII
EXTERNALS SERVICES

ARTICLE 100.-The Deconcentrated Services of the Ministry of Posts and Telecommunications shall be made up of Regional Delegations.

COMMON CHAPTER
REGIONAL DELEGATIONS OF POSTS AND TELECOMMUNICATIONS

ARTICLE 101.- (1) Under the authority of a Regional Delegate, the Regional Delegations of Posts and Telecommunications shall be responsible for:
- Coordinating and animating all the services located in the Region;
- The management of the Ministry's human, material and financial resources in the Delegation;
- Following up the implementation of Laws and regulations in the area of posts, telecommunications, information and communication technologies and information systems;
- Following up the implementation of the development strategy of posts, telecommunications, information and communication strategies and information systems;
- providing technical assistance to administrations and public institutions for studies, installation and maintenance of electronic communications networks;
- Following up the implementation of measures for controlling the consumption of electronic communications means by public services in the region;
- sensitizing people on cybercrime and measures of protection;
- ensuring the popularization of measures to protect people against acts of cybercrime;
- Following up the implementation of measures for networks security and information systems in the region;
- Following up the execution of infrastructure development projects and supply of electronic communication services in the region;
- Publishing statistical data on posts, telecommunications and information and communication services;
- Following up the management of the radio frequency spectrums;
- Promoting and popularizing the use of postal services and electronic communications services.

(2) It shall comprise:
- The Postal Activities Follow up Service;
- The Electronic Communications Service;
- The Network and Information Systems security service
- The General Affairs Service;
- The Regional Brigade of Postal Activities control.

SECTION I
POSTAL ACTIVITIES FOLLOW UP SERVICE

ARTICLE 102.- (1) Under the authority of a Service Head, the Postal Activities Follow up Service shall be responsible for:
- Following up the enforcement of Laws and regulations in the area of posts;
- Following up the implementation of the development strategy of postal activities;
- Publishing statistical data on postal activities;
- promoting and popularising the use of postal services;
- the follow-up, carry out and continuity of public postal service missions;
- following up and controlling postal infrastructure and equipment;
- Following up access to networks opened to the public in objective, transparent and non-discriminatory conditions.

(2) It shall comprise:
- The Follow-up Bureau;
- The Postal Networks and Services Bureau
- The Regulation Bureau.

SECTION II
ELECTRONIC COMMUNICATIONS SERVICE

ARTICLE 103. Under the authority of a Service Head, the Electronic Communications Service shall be responsible for:
- Following up the implementation of laws and regulations in the area of telecommunications and infor-

mation and communication technologies;
- Following up the implementation of the development strategy of telecommunications and information and communication technologies;
- Following up the implementation of measures for controlling the consumption of electronic communications means by public services in the region;
- Following up the execution of infrastructure development projects and supply of electronic communication services in the region;
- Keeping statistics relating to Telecommunication and Information and Communication Technologies;
- Following up the management of radio frequency spectrums;
- Promoting and popularising the use of electronic communication services;
- Providing technical assistance to administrations and public institutions in the domain of studies, establishment and maintenance of electronic communications networks

(2) It shall comprise:
- The technical Support Bureau;
- The Operators Follow-up Bureau;
- The Radio communication Bureau.

SECTION III
NETWORKS AND INFORMATION SYSTEMS SECURITY SERVICE

ARTICLE 104.- (1) Under the authority of a Service Head, the Networks and Information Systems Security Service shall be responsible for:
- Following up the implementation of legislation and regulation in the area of networks security and information systems;
- Monitoring the implementation of the development strategy of network security and information systems;
- providing technical assistance to administrations and public institutions in the protection of information systems and electronic transaction security;
- Following up the implementation of measures relating to security of networks and information systems in Regions;
- publishing statistics in the area of cyber offences;
- promoting and popularizing the use of security technologies;
- sensitizing people on cybercrime and measures of protection;
- disseminating measures to protect people against acts of cybercrime;
- Following up the respect for cyber liberties and vices.

(2) In addition to the Service Head, it shall comprise two (2) Studies Engineers.

SECTION IV
GENERAL AFFAIRS SERVICE

ARTICLE 105.- Under the authority of a Service Head, the General Affairs Service shall be responsible for:
- The management of the human, material and financial resources of the Delegation;
- the financial commitments of the Delegation;
- Following up the training of the personnel of the Delegation.

(2) It shall comprise:
- The human Resource and Training Bureau;
- The Budget and Equipment Bureau;
- The Mail and Archives Bureau

SECTION V
THE REGIONAL BRIGADE OF POSTAL ACTIVITIES CONTROL

ARTICLE 106.- (1) Under the authority of a Brigade Head, the
Regional Brigade of Postal Activities control shall be responsible for:
- investigating on, reporting and proceedings against offences committed in the postal domain;

- following up the regulation of the activities of the postal sector carriers and operators.

(2) In addition to the Brigade Head, it shall comprise three (03) Regional Controllers.

PART VIII

MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 107.- Divisional Delegations may be created if necessary and organized by a Decree of the President of the Republic, at the instigation of the Minister in charge of Posts and Telecommunications.

ARTICLE 108.-The following shall have the rank of:

- **Secretary General**:
  - The Inspector General.
- **Director in the Central Administration**:
  - Technical advisers;
  - Inspectors;
  - Heads of Divisions
- **Deputy Director in the Central Administration**:
  - Regional Delegates.
- **Sub-Director in the Central Administration**:
  - Unit Heads;
  - the Head of Centre;
  - The Brigade Head.
- **Service Head in the Central Administration**:
  - Assistant Research Officers;
  - Project Engineers;
  - Studies Engineers;
  - The Head of the Private Secretariat.
  - The Library Head;
  - The Regional Brigade Heads Service Head;
  - Regional Controllers.

ARTICLE 109.- Appointments to the duty posts provided for in this Decree shall be made in accordance with the job descriptions established in the organizational chart appended hereto.

ARTICLE 110.- All previous provisions repugnant hereto, in particular those of Decree No. 2005/124 of 15 April 2005 to organize the Ministry of Posts and Telecommunications are hereby repealed.

ARTICLE 111.- This Decree shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French.

Yaounde, 12 November 2012

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

DECREE No.2004/095 OF 23 APRIL 2004 To create the CAMEROON POSTAL SERVICES company

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of Law No. 99/002 of 07 April 1999 to govern postal activity;
Mindful of Law No. 99/016 of 22 December 1999 on the general rules and regulations governing public establishments and public and para-public enterprises;
Mindful of Decree No. 99/151 of 13 July 1999 to organise the Ministry of Posts and Telecommunications, amended and supplemented by Decree No. 2000/185 of 14 July 2000;
Mindful of Decree No. 2001/326 of 16 October 2001 to reorganise the Caisse d'Epargne Postale du Cameroun;
Mindful of Decree No. 2002/216 of 24 August 2002 to reorganise the Government,

HEREBY DECREES AS FOLLOWS:

ARTICLE 1.- It is hereby created, as from the date of signature of this decree, a public capital company named CAMEROON POSTAL SERVICES, abbreviated "CAMPOST".

ARTICLE 2.- The purpose of CAMPOST shall be:
- to perform the public postal service missions conceded to it by the State;
- to establish and operate postal networks;
- to provide postal services of a financial nature.

ARTICLE 3.- All provisions of Decree No. 99/149 of 13 July 1999 to create the Société Nationale des Postes du Cameroun and Decree No. 2001/326 of 16 October 2001 to reorganise the Caisse d'Epargne Postale du Cameroun are hereby repealed.

ARTICLE 4.- The assets and liabilities of the former Société Nationale des Postes du Cameroun and the former Caisse d'Epargne Postale du Cameroun shall be vested in CAMPOST.

ARTICLE 5.- The staff of the former Société Nationale des Postes du Cameroun and the former Caisse d'Epargne Postale du Cameroun shall be transferred to CAMPOST.

ARTICLE 6.- The modalities for the transfer of the assets and personnel of the former Société Nationale des Postes du Cameroun and the former Caisse d'Epargne Postale du Cameroun to CAMPOST shall be determined by a joint order of the Ministers in charge of finance and the postal sector.

ARTICLE 7.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 23 April 2004

Paul BIYA

PRESIDENT OF THE REPUBLIC

DECREE No. 2016/425 OF 26 OCTOBER 2016 on the change of name and restructuring of the National Advanced School of Posts and Telecommunications.-

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of Law No. 2001/005 of 16 April 2001 on the orientation of Higher Education;
Mindful of Law No. 2007/006 of 26 December 2007 on the financial regime of the State;
Mindful of Decree No. 92/050 of 24 March 1992 instituting the statute of National advanced School of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government,

HEREBY DECIDES AS FOLLOWS:

CHAPITER I
GENERAL PROVISIONS

ARTICLE 1.- The National Advanced School of Posts and Telecommunications, abbreviated as "NASPT", shall be known as the "National Advanced School of Posts, Telecommunications and Information and Communication Technologies", abbreviated as "SUP'PTIC".

ARTICLE 2.- (1) SUP'PTIC is a public institution of higher learning with a special status.
(2) SUP'PTIC has legal personality and financial autonomy.
(3) Its Head Office is located at Yaoundé.
(4) Training and applied research centres and incubators in the fields of posts, telecommunications and information and communication technologies may, as the need arises, be created by joint order of the Minister in charge of posts and telecommunications and the Minister in charge of higher education after deliberation by the Board of Directors.

ARTICLE 3.- (1) SUP'PTIC shall be placed under the technical supervision of the Ministry in charge of posts and telecommunications, under the academic supervision of the Ministry in charge of higher education and under the financial supervision of the Ministry in charge of finance.
(2) The fields and conditions of exercise of technical and academic supervision shall be determined by specific texts.

ARTICLE 4.- (1) SUP'PTIC shall be responsible for higher vocational education, specialised technical training, continuing education and applied research in the field of posts, telecommunications and information and communication technologies (ICT), as well as in the management of enterprises in these fields.

- In this respect, it shall provide:
- the initial training in the fields of posts, electronic communication techniques, security of networks and information systems, management techniques and management of companies from the posts and electronic communications, regulation and laws of the posts and electronic communication sectors;
- the upgrading, recycling and specialisation of staff in the postal, electronic communications and ICT sectors;
- studies and applied research in the fields of posts, electronic communications and ICT;
- technical support to administrations and public, parapublic or private organisations in the postal, electronic communications and ICT sector;

- the technological watch in order to update training courses in the posts, telecommunications and ICT sector;
- In general, it is responsible for vocational training in the Postal, electronic communication and ICT sector.

(2) SUP'PTIC shall carry out any other mission entrusted to it by the Government in relation to its purpose.

CHAPTER II
ORGANISATION AND FUNCTIONING

ARTICLE 5.- The management bodies of SUP'PTIC are:
- The Senate;
- The Management.

SECTION
THE SENATE

Article 6.- (1) The Board of Directors is composed as follows:
Chairperson: a person appointed by decree of the President of the Republic.
Members:
- one (01) representative of the Presidency of the Republic;
- one (01) representative of the Prime Minister's Office;
- one (01) representative of the Ministry in charge of Posts and Telecommunications;
- one (01) representative of the Ministry in charge of Higher Education;
- one (01) representative of the Ministry in charge of Public Service;
- one (01) representative of the Ministry in charge Finance;
- one (01) representative of the Ministry in charge of Vocational Training;
- one (01) representative of the teaching staff elected by its peers;
- one (01) representative of the non-teaching staff elected by its peers;
- one (01) representative of the students elected by its peers.

(2) The Chairperson of the Senate may invite any person, because of his/her expertise on a matter on the agenda of the session, to take part in the work of the Council in an advisory capacity.
(3) The members of the Senate shall be appointed by the administrations and bodies they represent.
(4) The composition of the Senate shall be established by an order of the Prime Minister at the request of the Minister in charge of posts and telecommunications.

ARTICLE 7.- (1) Members of the Senate shall be appointed for a term of three (3) years, renewable once (01).
(2) The term of a member of the Senate shall end at the normal expiry of its duration, by death or resignation. It shall also end following the loss of the capacity which had motivated the appointment or by dismissal for gross misconduct or behaviour incompatible with the duties of member of the Senate.
(3) In the event of death during the term of office or in all cases where a member of the Senate is no longer able to exercise his/her mandate, he/she shall be replaced, according to the same procedures and forms as those which governed his/her appointment, for the remaining period of the term of office.

ARTICLE 8.- The Chairperson and the members of the Senate shall be subject to the restrictive measures and incompatibilities provided for by the legislation in force.

ARTICLE 9.- (1) The Senate shall have the broadest powers to define and direct the general policy and evaluate the management of the SUP'PTIC within the limits set by its corporate purpose.
As such, it shall:
- adopt the organisational chart, the internal regulations, the salary scale and determine the benefits of the teaching and non-teaching staff, upon the proposal of the Director;
- set the objectives and approve the programmes of activity in accordance with the global objectives of SUP'PTIC;
- adopt the budget and the activity reports of SUP'PTIC;
- decide on any measure likely to improve the services offered by SUP'PTIC;

- approve the description, tuition and competition fees on the proposal of the Director;
- approve the status of teachers;
- recruit and dismiss the non-teaching management staff;
- appoint, on the proposal of the Director, to positions of responsibility up to the rank of Deputy Director;
- set the session allowances of members of the Senate as well as of the Council for Education, Studies, Research and Science, within the limits of the ceilings set forth by the regulations in force;
- adopt the administrative account, the management account, the management-subjects account and the financial statements;
- accept all donations, bequests and subsidies;
- adopt the organisational plan of the SUP'PTIC staff;
- determine the general guidelines for the provision of services;
- authorise the participation of SUP'PTIC in associations, groupings or other organisations;
- approve the performance contracts having an impact on the budget or all other agreements, including loans;
- adopt the advancement and promotion of teachers;
- approve new training programmes on the proposal of the Director;
- adopt the resolutions and recommendations of the Council for Education, Studies, Research and Science.

(2) The Senate may delegate some of its powers to the Director. The Director shall be accountable for the use of such delegation.

ARTICLE 10.- (1) The Senate shall meet in ordinary session twice (02) a year upon convocation by its Chairperson, one (01) of which shall be for the vote of the budget and one (01) for the adoption of the annual financial statements to examine the functioning of SUP'PTIC.
(2) It may also, when circumstances so require, meet in extraordinary session, upon convocation by its Chairperson or at the request of two thirds (2/3) of the members.
(3) Any member of the Senate who is unable to attend a meeting of the Senate may be represented by another member duly mandated. However, no member of the Senate may represent more than one member at the same session.
(4) Any member present or represented at a meeting of the Senate shall be deemed to have been duly convened.
(5) If the Chairperson is unable to attend, the Senate shall elect a Chairperson from among its members by a simple majority of the members present or represented.

ARTICLE 11.- (1) The Chairperson of the Senate shall preside over the sessions of the Senate and ensure the implementation of its resolutions.
(2) The secretariat of the Senate shall be provided by the Director of SUP'PTIC, assisted by his deputy.

ARTICLE 12.- (1) Membership to the Senate shall be free of charge. However, the members of the Senate, as well as the personalities invited in an advisory capacity, shall receive a session allowance and may claim reimbursement of expenses incurred during sessions, upon presentation of supporting documents.
(2) The Chairperson of the Senate shall benefit from a monthly allocation.
(3) The session allowance and the monthly allocation referred to in paragraphs 1 and 2 above, are determined by the Senate, within the limits of the ceiling provided for by the regulation in force.

ARTICLE 13 .- (1) Notices of meeting and documents relating to the session shall be sent by e-mail, fax or by any other means in writing to the members of the Senate, at least fifteen (15) days before the date scheduled for the meeting. This period shall be reduced to seven (07) days in case of emergency.
(2) The convocations shall specify the date, venue, time and agenda.

ARTICLE 14.- (1) The Senate may only deliberate if at least two thirds (2/3) of its members are present or represented.
(2) Each member has one vote.
(3) The deliberations of the Senate shall be recorded in minutes in a special register kept at the SUP'PTIC's Head Office and co-signed by the Chairperson and the Secretary of the meeting. The minutes shall mention the names of members present or represented, as well as those of the persons invited in their advisory capa-

city. It shall be read and approved by the Senate at the next meeting.
(4) Resolutions of the Senate shall be passed by a simple majority of the votes of the members present or represented. In the event of a tie, the Chairperson shall have the casting vote.
(5) Resolutions of the Senate shall be co-signed by the Chair and one member.

SECTION II
THE MANAGEMENT

ARTICLE 15.- (1) The Management of SUP'PTIC is placed under the authority of a Director assisted by a Deputy Director in charge of studies, both appointed by decree of the President of the Republic.
(2) The Director and the Deputy Director are appointed, for a term of three (03) years, renewable twice (02).
(3) The remuneration and benefits of the Director and the Deputy Director shall be fixed by the Senate, within the limits of the ceilings set by the regulations in force.

ARTICLE 16.- (1) The Director shall be responsible for the administration and management of SUP'PTIC, under the control of the Senate to which he shall report on his management.
As such, it shall:
- submit for adoption to the Senate, a draft organisational chart and internal regulation, as well as the remuneration scale and the benefit of the staff;
- prepare the budget, the annual activity report, as well as the accounts and financial statements which he/she submits to the Senate for approval and adoption;
- prepare the deliberations of the Senate;
- ensure the administrative, technical and financial management of the SUP'PTIC;
- appoint the officials of SUP'PTIC, subject to the competences of the Senate;
- recruit, manage, grade and dismiss the non-teaching staff, not in management, in accordance with the organisational plan of the staff decided by the Senate;
- designate the representatives of SUP'PTIC to the general assemblies and to the councils of other administrations or organisations;
- assess the permanent staff;
- place the staff on mission inside and outside the national territory;
- manage the SUP'PTIC's movable and immovable, tangible and intangible assets, in accordance with its corporate purpose and the legal and regulatory provisions in force;
- establish the rates of service provision in accordance with the general strategy defined by the Senate;
- submit to the Senate, after the opinion of the Council for Education, Studies, Research and Science, the proposals for recruitment, promotion and termination of the duties of the teaching staff;
- negotiate agreements and submit them to the Senate for approval;
- take, in cases of emergency, any precautionary measures necessary for the proper functioning of SUP'PTIC, on condition that he reports to the Senate;
- arrange and sign contracts and agreements, supervise the implementation and control in strict compliance with the budget, and in accordance with the legal and regulatory provisions in force;

(2) The Director of SUP'PTIC may delegate part of his powers to the Deputy Director or to one of his immediate collaborators for acts of current management.
(3) The Director of SUP'PTIC shall ensure the general policing of the establishment, discipline and the animation of the community life.
(4) The Director represents SUP'PTIC in all matters of civil life and in justice. To this end, he may bring any legal action to defend the interests of the SUP'PTIC.

ARTICLE 17.- The organisation and functioning of the Management of SUP'PTIC shall be established by an organisational chart approved by the Senate at the request of the Director.

ARTICLE 18.- (1) The Director shall be accountable to the Senate, which may pronounce sanctions against him/her in the event of gross mismanagement or behaviour likely to harm the smooth running or the image of SUP'PTIC under the conditions and according to the conditions set forth by the regulations in force.
(2) The Chairperson of the Senate shall for this purpose convene an extraordinary session during which the Director shall be heard.

(3) The Senate may impose the following sanctions on the Director and/or his Deputy:
- suspension of some of his powers;
- suspension from all duties for a limited period of time;
- suspension from all duties, accompanied by a proposal for dismissal addressed to the President of the Republic.

(4) In the event of suspension of the Director from his duties, the Senate shall take the necessary measures to ensure the smooth running of the SUP'PTIC.

(5) The decisions referred to in paragraph (3) above shall be taken by a majority of two thirds (2/3) of the members of the Senate and shall be transmitted for information to the Ministers in charge at the request of the Chairperson of the Senate.

ARTICLE 19.- (1) Under the authority of the Director, the Deputy Director shall be the Director of Studies. In this capacity, and in relation with his collaborators, he shall:
- coordinate the development of teaching programmes and ensure their application;
- organise courses, practical work, examinations, schooling, internships and recycling;
- monitor the implementation of research programmes;
- ensure discipline;
- coordinate and animate the pedagogical activities of the Divisions;
- keep a file on the teaching and research careers of teachers and propose measures likely to contribute to their promotion;
- ensure the development of activities connected to the sports and cultural activities of SUP'PTIC;
- coordinate the design of courses;
- propose to the Director of SUP'PTIC, actions with a view to enriching the school's library, the pedagogical and technical material as well as exchanges of teachers and researchers;
- prepare annually, on behalf of the Director of SUP'PTIC, a report on teaching and research activities.

(2) In case of temporary impediment of the Director for a period not exceeding three (03) months, the Deputy Director shall ensure the interim.

(3) In the event of vacancy of the office of the Director due to death, resignation or permanent impediment duly noted by the Senate, and while waiting for the appointment of a new Director by the competent authority, the Senate shall take all measures to ensure the smooth functioning of SUP'PTIC.

CHAPTER III
EDUCATION AND TRAINING

ARTICLE 20.- SUP'PTIC shall guarantee equal access to training to any person of Cameroonian nationality who meets the required academic conditions within the limits of its intake capacity.

(2) Persons of foreign nationality, meeting the academic requirements stipulated in paragraph 1 above, may also be admitted to SUP'PTIC, in accordance with international practice and/or the conditions and agreements signed between Cameroon and the countries of origin of the applicants.

ARTICLE 21.- Studies at SUP'PTIC are organised in cycles and courses of study, divided into Bachelor, Master and Doctorate/PhD.

ARTICLE 22.- The conditions of admission to SUP'PTIC, the duration of training, the organisation and the regime of studies, as well as the other modalities of its functioning are established by particular joint texts of the Ministers in charge of the academic supervision and the technical supervision.

ARTICLE 23.- (1) For the accomplishment of its academic missions, SUP'PTIC has the following management structures:
- a Council for Education, Studies, Research and Science;
- a Council of Professors;
- a Disciplinary Council.

(2) The modalities of organisation and functioning of the structures referred to in paragraph 1 above shall be fixed by special joint texts of the Ministers in charge of academic supervision and technical supervision, after the opinion of the Senate.

CHAPTER IV
FINANCIAL PROVISIONS

SECTION I
RESOURCES

ARTICLE 24.- (1) The resources of SUP'PTIC shall be constituted notably by:
- subsidies and contributions from the State, local government authorities and any other public or private, national or foreign organisation;
- the contribution of the Special Telecommunications Fund;
- the contribution from the Special Postal Activities Fund;
- the contribution from the Special Fund for Electronic Security Activities;
- Income from the provision of services;
- competition fees;
- student registration and tuition fees;
- proceeds from the disposal of assets;
- donations and bequests;
- loans in accordance with the regulations in force;
- funding from partners;
- all other possible resources which are allocated to it or whose management is entrusted to it with regard to its missions.

(2) The financial resources of SUP'PTIC are public resources managed according to the rules provided for by the financial regime of the State. However, the funds coming from international conventions and agreements shall be managed according to the rules provided for by these conventions and agreements.

SECTION II
THE BUDGET AND ACCOUNTS

ARTICLE 25.- The Director shall be the chief authorizing officer of the SUP'PTIC's budget. At its request, secondary authorizing officers may be designated by the Senate.

ARTICLE 26.- The annual budget of SUP'PTIC adopted by the Senate shall be submitted for approval to the Minister in charge of finance at the request of the Minister in charge of posts and telecommunications.

ARTICLE 27.- (1) The budget of SUP'PTIC shall be balanced in revenue and expenditure and shall be presented according to the budgetary and accounting nomenclature provided for by the regulations in force.
(2) The budgetary year of SUP'PTIC runs from 1st January to 31st December of each year.

ARTICLE 28.- All the revenues of SUP'PTIC and all its expenditures shall be included in the budget adopted by the Senate.

SECTION III
CONTROL AND MONITORING OF THE MANAGEMENT

ARTICLE 29.- (1) An Accounting Officer shall be appointed to SUP'PTIC by the Minister of Finance.
(2) The Accounting Officer shall record all the revenues and expenditures of SUP'PTIC. He/she shall control the regularity of the authorisation of receipts, payments and expenditure ordered by the Director.
(3) He shall ensure the recovery of rights and products under the authority of the Director.
(4) The payment of expenditure authorised shall be made solely to the Accounting Officer.

ARTICLE 30.- (1) The Accounting Officer is personally responsible for his financial and accounting operations. At the end of each financial year, he/she shall prepare a management account to be submitted to the Senate for approval.
(2) The accounting officer's management account is subject to the judgment of the Audit Chamber of the Supreme Court.

ARTICLE 31.- (1) A Financial Controller shall be appointed to SUP'PTIC by the Minister in charge of Finance.
(2) The Financial Controller shall be responsible for controlling the acts generating revenue and expenditure taken by the Director or by his collaborators. He shall be responsible, in general, for controlling the execution of the budget in accordance with the regulations in force.

ARTICLE 32.- (1) The Director shall draw up at the end of each financial year, an administrative account including all statements relating to the situation of all accounts, deposit and portfolio accounts as well as inventories of receivables and receipts.
(2) It shall submit to the Senate and, as the case may be, to the Minister in charge of finance and to the Ministers in charge, periodic statements and an annual activity report.

ARTICLE 33.- (1) The Accounting Officer and the Financial Controller shall present to the Senate their respective reports on the execution of the budget of SUP'PTIC.
(2) Independent audits may be carried out by the Senate or the supervisory authority.

ARTICLE 34.- SUP'PTIC is required to publish annually an information note presenting the state of its assets and liabilities and summarizing its annual accounts in a newspaper of legal announcements.

ARTICLE 35.- SUP'PTIC is subjected to the control of competent public services, within the conditions lay down by the laws and regulation in force.

CHAPTER V
HUMAN RESOURCES

ARTICLE 36.- The human resources of SUP'PTIC include teaching and non-teaching staff.

SECTION I
THE TEACHING STAFF

ARTICLE 37.- The teaching staff of SUP'PTIC includes:
- permanent teachers;
- associate teachers;
- part-time teachers;

ARTICLE 38.- (1) Permanent teachers are recruited among professionals of the postal, telecommunications and Information and Communication Technologies sector and graduates of higher education.
(2) The permanent teachers shall be recruited by the Senate according to the needs expressed by the Director, after consultation with the Council for Education, Studies, Research and Science.
(3) Permanent teachers are governed, based on the event, by the general statute of the civil service or by the texts of higher education for their advancement and promotion in grade.

ARTICLE 39.- The associated teachers are personnel placed at the disposal of SUP'PTIC within the framework of international cooperation or partnership and fulfilling the conditions envisaged by the regulations in force.

ARTICLE 40.- (1) The part-time teachers are recruited among the members of the teaching body of higher education, public agents and professionals of the private sector.
(2) Part-time teachers shall be recruited by the Director according to the conditions determined by the Senate.

ARTICLE 41.- The conditions of remuneration and the advantages of the teaching staff of SUP'PTIC are fixed by the Board of Directors.

SECTION II
NON-TEACHING STAFF

ARTICLE 42.- SUP'PTIC may employ:
- directly recruited staff;
- civil servants on secondment;
- State employees under the Labour Code who are assigned to it at the request of the Director, after authorisation by the Senate.

ARTICLE 43.- Civil servants on secondment and State employees assigned to SUP'PTIC shall be subject, throughout the duration of their employment within the institution, to the texts governing the said institution and to the labour legislation, subject, as far as civil servants are concerned, to the provisions of the General Statute of the Public Service of the State relating to retirement, promotion and the end of secondment and, possibly, to the special statutes.

ARTICLE 44.- Disputes between the staff and the SUP'PTIC shall be subject to the jurisdiction of the ordinary courts.

CHAPTER VI
MISCELLANEOUS TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 45.- The assets of the National Advanced School of Posts and Telecommunications shall be transferred to SUP'PTIC.

ARTICLE 46.- The assets of SUP'PTIC shall consist of movable and immovable property assigned to it by the State.

ARTICLE 47.- (1) The property of the public domain and the national domain, as well as the property of the private domain of the State, transferred to SUP'PTIC in accordance with the land legislation, shall keep their original status.
(2) The property of the private domain of the State transferred in priority shall be definitively integrated into the assets of SUP'PTIC.
(3) The property forming part of the private domain of the SUP'PTIC shall be managed in accordance with ordinary law.

ARTICLE 48.- (1) The teaching staff in service at the National Advanced School of Posts and Telecommunications shall continue to be governed by their original status subject to the change of status in accordance with the regulations in force.
(2) Students undergoing training at the National Advanced School of Posts and Telecommunications on the date of publication of this decree shall be governed by the regulations under which they were admitted to the said School until the end of their studies.

ARTICLE 49.- All previous provisions to the contrary shall be hereby repealed, in particular Decree No. 92/050 of 24 March 1992 to lay down the statutes of the National Advanced School of Posts and Telecommunications.

ARTICLE 50.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé on 26 October 2016

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

DECREE No. 2019/150 OF 22 MARCH 2019 On the organisation and functioning of the National Agency for Information and Communication Technologies.-

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of Law No. 2001/010 of 23 July 2001 to institute the minimum service in the telecommunications sector;
Mindful of Law No 2010/012 of 21 December 2010 on Cybersecurity and Cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Law No. 2010/021 of 21 December 2010 to govern Electronic Commerce in Cameroon;
Mindful of Law No.2017/010 of 12 July 2017 to lay down the general rules and regulations governing public establishments;
Mindful of Decree No. 2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government, amended and supplemented by Decree No. 2018/190 of 02 March 2018,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This decree shall provide for the organisation and operation of the National Agency for Information and Communication Technologies, abbreviated "NAICT", hereinafter referred to as "the Agency".

ARTICLE 2.- (1) The Agency shall be a public establishment of a technical status, with legal personality and financial autonomy.
(2) Its Head Office is located in Yaoundé.
(3) Branches may, as and when necessary, be established in other cities of the country upon decision of the Board of Directors.

CHAPTER II
MISSIONS AND POWERS

SECTION I
MISSIONS

ARTICLE 3.- The Agency shall ensure, on behalf of the State:
a) the promotion and monitoring of the actions of public authorities on information and communication technologies (ICTs);
b) the regulation, control and monitoring of activities connected to the security of information system and electronic communication networks as well as the electronic certification in collaboration with Telecommunications Regulatory Board.

PARAGRAPH I

PROMOTION AND MONITORING OF THE ACTION OF PUBLIC AUTHORITIES ACTION IN THE FIELD OF INFORMATION AND COMMUNICATION TECHNOLOGIES

ARTICLE 4.- Within the framework of the missions of promotion and follow-up of the action of the public authorities in the field of information and communication technologies, the Agency is namely in charge of:

a) participating in the development or revision and monitoring of the implementation of the national ICT development strategy;
b) identifying the common needs of public services with respect to IT equipment and software;
c) ensuring the harmonisation of technical standards and proposing technical references, in order to foster interoperability between information systems and the follow-up of their implementation;
d) providing its expertise to administrations for the design and development of their technical purposes;
e) coordinating the setting up and ensuring the monitoring of Web Sites, Intranet and Extranet of the State and public organisations;
f) contributing to the technical training of university trainers, advanced schools, government high schools, colleges, teacher training colleges and primary schools;
g) participating in personnel training actions of the State in the ICT domain, by providing recommendations on the content of technical training and on the syllabuses of professional examinations and competitive examinations;
h) maintaining the technical cooperation relationship with public or private international bodies acting in this domain, following the conditions provided for by the legislation in force. In this light, it is responsible for the registration of the domain name ".cm";
i) developing the policy and procedures for the registration of ".cm" domain names, hosting, root server administration, and the granting of ".cm" Registrar approval;
j) ensuring the availability of Internet Protocol (IP) addresses in Cameroon and their operation in a secure environment;
k) ensuring professional conduct in the use of ICT as well as the protection of intellectual property, consumers, public morals and privacy.

PARAGRAPH II

REGULATION, CONTROL AND MONITORING OF ACTIVITIES RELATED TO THE SECURITY OF ELECTRONIC COMMUNICATION NETWORKS AND INFORMATION SYSTEMS

ARTICLE 5.- (1) Within the framework of it missions of regulating, monitoring and following-up activities related to the security of information systems, to electronic communication networks as well as to electronic certification, the Agency is notably in charge of:

a) taking part in the development of the national policy on the security of electronic communication networks and certification;
b) ensuring the security of national cyberspace, including online transactions, information systems and electronic communication networks;
c) setting up mechanisms to ensure the regulation and the security of Internet at the national level;
d) setting up mechanisms to resolve disputes on the one hand, between ICT operators and on the other hand, between operators and users, for problems that are connected to contents and quality of service;
e) assessing applications for accreditation and preparing specifications of certification authorities and submitting them to the Minister in charge of telecommunications for signature;
f) ensuring, on behalf of the State, the management of the digital certificate cycle and the security of the applications of public administrations and bodies;
g) ensuring the quality of the electronic certification service;
h) issuing opinions on draft contracts for the provision of services in the field of information and communication technologies in general and in cyberspace in particular, between administrations and third parties;
i) controlling compliance with issued electronic signatures;
j) giving an advisory opinion on texts related to his/her field expertise;
k) controlling the security activities of electronic communication networks, information systems and certification;

l) assessing applications for approval of cryptography means and issuing approval certificate for security equipment;
m) preparing conventions of mutual recognition with foreign parties and submitting them to the Minister in charge of telecommunications for signature;
n) ensuring the technological watch and issuing alerts and recommendations in terms of the security of electronic communication networks, information systems and certification;
o) ensuring the technological watch and issuing alerts and recommendations in terms of the security of electronic communication networks, information systems and certification;
p) carrying out or commissioning security audits of publicly available electronic communications networks, publicly available information systems, information systems processing or storing personal data or data relating to persons other than employees of the entities responsible for such information systems;
q) ensuring the monitoring, detection and provision of information on IT risks and cybercrimes;
r) producing statistics on cybersecurity and cybercrime;
s) carrying out any other task of general interest that may be entrusted to it by the State authorities.

(2) The Agency is the root certification authority and the public administration certification authority.

(3) The Agency shall carry out mandatory and periodic security audits of electronic communications networks and information systems of operators and providers of electronic communications services.

(4) The activities of the Agency for securing cyberspace shall include preventive and remedial activities.

(5) Operators of electronic communications networks and operators of information systems shall provide NAICT with all necessary collaboration in its cyberspace security and security audit activities. This collaboration shall include the deployment of any device within the network or information system and compliance with the requirements for the proper functioning of that device.

(6) The Agency shall participate in digital investigations and enquiries, on its own initiative or in cooperation with the security services.

SECTION II
POWERS

ARTICLE 6.- (1) In order to carry out its missions, NAICT shall have powers of monitoring, investigation, injunction, coercion and sanction.

In this respect, it shall be empowered to:

- appoint its sworn agents who may, as a result, access premises, land or means of transport for professional use, request communication of any professional document and take a copy, collect, on summons or on the spot, information and justification;
- have cyber offences which can only be revealed by systematic, unannounced and multiple checks on those involved in the sector, established by judicial police officers and sworn-in agents and commissioned for this purpose by the Agency;
- collect information, financial statements and the necessary documents from network operators, certification authorities, security auditors, security software publishers, other security service providers and security service suppliers within the framework of their agreements and specifications in order to ensure that they comply with the obligations imposed on them by the legislative and regulatory texts in force;
- hear disputes in the first instance:
  - between certification authorities and between them and users;
  - between accredited auditors and between the latter and the audited structures;
  - between registrars of ".cm" domain names, and between the latter and users, or disputes between users;
- impose and/or propose sanctions on certification authorities, security service providers, security auditors and security software publishers that do not comply with the regulations in force;
- take the necessary precautionary measures to ensure the continuity of the service and to protect the interests of users.

(2) The Agency shall have a Committee to deal with disputes.

(3) A specific text of the Agency's Board of Directors shall determine the organization and operating procedures of the Committee referred to in subarticle 2 above.

CHAPTER III
THE SUPERVISORY AUTHORITY

ARTICLE 7.- The Agency is placed under the technical supervision of the Ministry in charge of telecommunications.
In this regard, the technical supervision shall ensure that:
- the activities carried out by the Agency are in conformity with the guidelines of the Government's public policies in the sector concerned, subject to the powers granted to the Board of Directors;
- the resolutions of the Board of Directors comply with the laws and regulations, as well as with the guidelines of sector policies.

ARTICLE 8.- The Agency is placed under the financial supervision of the Ministry in charge of finance.
In this regard, the financial supervision shall ensure that:
- the operations with financial implications comply with public finance regulations, on the one hand, and that the accounts are in order a posteriori on the other hand;
- the regularity of the resolutions of the Board of Directors with financial implications, the sustainability of financial commitments and the general consistency of the Agency's performance plans with sector programmes.

ARTICLE 9.- (1) The Minister in charge of telecommunications and the Minister in charge of finance shall, in conjunction with the Board of Directors, assist in monitoring the performance of the Agency.
(2) The General Manager shall transmit to the supervisory authorities and the Board of Directors all documents and information relating to the activities of the Agency.

CHAPTER IV
ORGANISATION AND FUNCTIONING

ARTICLE 10.- The Agency is managed by two (02) bodies:
- the Board of Directors;
- the General Management.

SECTION I
BOARD OF DIRECTORS

ARTICLE 11.- The Board of Directors of the Agency includes eleven (11) members.
Beside the Chairperson, the Council is made up as follows:
- one (01) representative of the Presidency of the Republic;
- one (01) representative of the Prime Minister's Office;
- one (01) representative of the Ministry in charge of telecommunications;
- one (01) representative of the Ministry in charge of finance;
- one (01) representative of the Ministry in charge of justice;
- one (01) representative of the Ministry in charge of planning;
- one (01) representative of the Ministry in charge of defence;
- one (01) representative of the General Delegation for National Security;
- one (01) representative of the Telecommunications Regulatory Board;
- one (01) representative of the personnel elected by his/her peers;

ARTICLE 12.- (1) The Chairperson of the Board of Directors of the Agency shall be appointed by decree of the President of the Republic for a term of three (03) years renewable once (01).
(2) The members of the Board of Directors of the Agency shall be appointed by decree of the President of the Republic for a term of three (03) years, renewable once (01).

ARTICLE 13. - (1) The term of office of a Board member shall end:
- by death or resignation;
- following the loss of the capacity that motivated the appointment;

- by dismissal following a gross misconduct or acts incompatible with the function of Director;
- at the normal expiry of its term.

(2) In the event of cases provided for in subarticle 1 above, the replacement of a Board member is provided for in the same manner as his appointment.

ARTICLE 14.- (1) Six (06) months before the expiry of the term of office of a member of the Board of Directors, the Chairperson of the said Board shall refer the matter to the structure which he/she represents with a view to his/her replacement.
(2) No member shall be eligible to serve once his or her term of office has expired.
(3) In the event of the expiry of the term of office of the Chair of the Board of Directors, the Minister responsible for technical supervision shall refer the matter to the appointing authority.
(4) In the event of death during the term of office or in all cases where a board member is no longer able to exercise his or her mandate, the body which appointed him or her shall designate another Director to continue the mandate.

ARTICLE 15.- (1) The Chairperson and the members of the Board of Directors shall be subject to the restrictive measures and incompatibilities provided for by the legislation in force.
(2) The Chairperson and the members of the Board of Directors, as well as all other persons invited to take part in the meetings of the Board, shall furthermore be bound by the obligation of discretion with regard to information, facts and acts of which they become aware in the performance of their duties.

ARTICLE 16.- (1) The Chairperson of the Board of Directors receives a monthly allowance as well as other benefits. The amount of the monthly allowance as well as the benefits are determined by the Board of Directors, in accordance with the regulations in force.
(2) Board members are entitled to a session allowance set by a resolution of the Board of Directors, within the limits defined by the regulations in force. They may be reimbursed for expenses incurred during sessions, upon presentation of supporting documents.
(3) The Board of Directors may grant its members exceptional remuneration for missions and mandates entrusted to them, or authorise the reimbursement of travel expenses and expenses incurred in the interest of the Agency, subject to the prior authorisation of the Board.

ARTICLE 17.- (1) The Board of Directors defines and guides the general policy of the Agency and evaluates its management, within the limits set by its missions and in accordance with the laws and regulations in force. To this end, the Board of Directors shall:

a) set the objectives and approve the action programmes of the activities in its field of competence in the sector;
b) adopt the budget together with the Agency's draft performance report and close the accounts;
c) approve the annual performance reports;
d) adopt the organizational chart and the internal regulations;
e) authorize the recruitment of all staff in accordance with the recruitment plan proposed by the General Manager and validated by the Board of Directors;
f) authorise the dismissal of staff, on the proposal of the General Manager;
g) appoint, on the proposal of the General Manager, to positions of responsibility at the rank of Directors, Subdirectors, and similar positions;
h) accept all donations, bequests and subsidies;
i) approve performance contracts or other agreements, including loans, prepared by the General Manager and which have an incidence on the budget;
j) authorise any disposal of movable or immovable, tangible or intangible property;
k) ensure compliance with the rules of governance and conduct audits to guarantee the sound management of the Agency;
l) set the remuneration and benefits of the staff, on the proposal of the General Manager, in compliance with the laws and regulations in force, the Internal Regulations and the budget estimates;
m) determine the remuneration and benefits of the General Manager and the Deputy General Manager, in compliance with the laws and regulations in force;

n) authorize the participation of the Board in associations, groups or other professional bodies whose activities are necessarily related to its missions;
o) ensure the annual publication of a report on the status and development of activities within its jurisdiction.

(2) The Board of Directors may delegate some of its powers to the General Manager.

ARTICLE 18.- (1) The Chairperson of the Board of Directors shall convene and chair the meetings of the Board. He/she ensures the implementation of its resolutions.
(2) The Chairperson of the Board of Directors may invite any person, because of his/her expertise on a matter on the agenda of the session, to take part in the work of the Board in an advisory capacity.

ARTICLE 19.- (1) In the event of vacancy of the Chairmanship of the Board of Directors due to the death, resignation or default of the Chairperson, the sessions of the Board of Directors are convened by the Minister in charge of Finance at the request of the General Manager or of two-thirds (2/3) of the members of the Board of Directors.
(2) The sessions of the Board of Directors convened in compliance with subarticle 1 above are chaired by a member of the Board elected by his/her peers.

ARTICLE 20.- (1) Upon convocation by its Chairperson, the Board of Directors must meet at least two (02) times a year in ordinary session, including :
- one session devoted to the examination of the performance project and the adoption of the budget which is held before the beginning of the following financial year;
- one session for the closing of accounts which shall be held no later than the 30 June.

(2) The Board of Directors may be convened in extraordinary session on a specific agenda, at the request of its Board chair or of two thirds (2/3) of its members.
(3) The Board Chair shall be deemed to have failed if he/she fails to convene at least two (02) sessions of the Board of Directors per year.
(4) In the event that the Chairperson refuses to convene a session of the Board in accordance with subarticle 1 above, two-thirds (2/3) of the members shall refer the matter to the Minister in charge of finance who shall convene the Board on a specific agenda.

ARTICLE 21.- (1) The invitations, together with the files to be examined, shall be sent to the members by any means that leaves a written record, at least fifteen (15) days before the date scheduled for the session.
(2) In case of emergency, the time limit provided for in subarticle 1 above may be reduced to five (05) days.
(3) The invitations shall specify the date, venue, time and agenda.

ARTICLE 22.- (1) Any member of the Board of Directors who is unable to attend a meeting may be represented by another member.
(2) No Board member may, during the same session, represent more than one Board member.
(3) Any member present or represented at a meeting of the Board of Directors shall be deemed to have been duly convened.
(4) If the Chairperson is unable to attend, the Board of Directors shall elect a Chairperson from among its members by a simple majority of the members present or represented.

ARTICLE 23.- (1) The Board of Directors shall examine any item placed on the agenda either by the Chairperson or at the request of two-thirds (2/3) of the members.
(2) The secretariat of the Board of Directors shall be provided by the General Manager of the Agency.

ARTICLE 24.- (1) The Board of Directors shall not validly deliberate on any item on its agenda unless at least two thirds (2/3) of its members are present or represented. If the quorum is not reached at the time of the first convocation, it shall be reduced to half of the members of the Board of Directors for the next convocation.
(2) Each member has one vote.
(3) Resolutions of the Board of Directors shall be passed by a simple majority of the votes of the members present or represented. In the event of a tie, the Chairperson shall have the casting vote.

ARTICLE 25.- (1) The decisions of the Board of Directors shall be adopted in the form of resolutions. They are signed during the meeting by the Chairperson of the Board of Directors or the Chairperson of the meeting, as the case may be, and a Board member.
(2) The decisions of the Board of Directors take effect as from their adoption, subject to the contrary provisions of the laws and regulations in force.

ARTICLE 26.- (1) The deliberations of the Board of Directors shall be recorded in minutes in a special register kept at the Agency's Head Office and co-signed by the Chairperson and the Secretary of the meeting. The minutes shall mention the names of members present or represented, as well as those of the persons invited in their advisory capacity. They shall be read and approved by the Board of Directors at the next meeting.
(2) The minutes of the meetings are recorded in a special register kept at the head office of the Agency.

ARTICLE 27.- (1) The Board of Directors may create, from among its members and as necessary, Committees and Commissions for the accomplishment of its missions.
(2) The members of the Committees or Commissions benefit from working facilities and allowances within the limits set by the regulations in force.

SECTION II
THE GENERAL MANAGEMENT

ARTICLE 28.- (1) The General Management of the Agency shall be placed under the authority of a General Manager, who may be assisted by a Deputy General Manager.
(2) The General Manager and the Deputy General Manager are appointed by decree of the President of the Republic, for a term of three (03) years, which may be renewed twice (02).
(3) The renewal provided for in subarticle 1 above is tacit.
(4) In all events, the cumulative terms of office of the General Manager and the Deputy General Manager may not exceed nine (09) years.
(5) The General Manager and the Deputy General Manager are subject to the restrictive measures and incompatibilities provided for by the legislation in force.

ARTICLE 29.- The General Manager shall be responsible for the management and implementation of the general policy of the Agency, under the control of the Board of Directors to which he/she shall regularly report on his/her management.

ARTICLE 30.- (1) Under the control of the Board of Directors, the General Manager is responsible for implementing the general policy and management of the Agency.
As such, its missions are therefore to:

a) ensure the administrative, technical and financial management of the Agency;
b) draw up the Agency's annual programme of activities;
c) prepare the budget and performance project, produce the administrative account and the annual performance report;
d) provide the secretariat for the work of the Board of Directors, in which it shall participate in an advisory capacity;
e) prepare the resolutions of the Board of Directors and ensure their execution;
f) propose a staff recruitment plan to the Board of Directors;
g) appoint to positions of responsibility subject to the powers vested in the Board of Directors;
h) manage the movable and immovable, tangible and intangible assets of the Agency, in accordance with its tasks and the powers of the Board of Directors.

(2) The General Manager may delegate part of his powers.

ARTICLE 30.- The General Manager shall represent the Board in all acts of civil life and in court.

ARTICLE 31.- (1) The General Manager or the Deputy General Manager, if any, is responsible to the Board of Directors, which may sanction him/her in case of gross mismanagement or behaviour likely to harm the good functioning or the image of the Board.

(2) In the events provided for in subarticle 1 above, the Chairperson of the Board of Directors is required to convene an extraordinary session during which the General Manager or the Deputy General Manager is heard.
(3) The file containing the grievances shall be transmitted to the General Manager or the Deputy General Manager at least ten (10) days before the scheduled date of the special session.
(4) The debate before the Board of Directors shall be contradictory.
(5) The Board of Directors may validly deliberate only if at least two-thirds (2/3) of its members are present. No representation is allowed in this event.

ARTICLE 32.- (1) The Board of Directors may impose the following sanctions on the General Manager or the Deputy General Manager:
- suspension of some powers;
- suspension of his/her functions for a limited period with immediate effect;
- suspension from office with immediate effect, accompanied by a request for dismissal addressed to the appointing authority.

(2) Decisions shall be transmitted for information to the Minister in charge of telecommunications and the Minister in charge of finance, at the request of the Chairperson of the Board of Directors.

ARTICLE 33.- In the event of suspension of the functions of the General Manager or the Deputy General Manager, the Board of Directors shall take the necessary measures to ensure the proper functioning of the Board.

ARTICLE 34.- (1) In the event of temporary incapacity of the General Manager, the Deputy General Manager shall act as acting General Manager.
(2) In the event that the General Management is not provided with a Deputy General Manager, the interim shall be ensured by an official having at least the rank of Director, designated by the General Manager.
(3) In the event of vacancy of the position of the General Manager due to death, resignation or expired term of office, the Board of Directors shall make necessary arrangements for the proper functioning of the Agency, pending the appointment of a new General Manager by the appointing authority.

ARTICLE 35.- The remuneration and benefits of the General Manager and the Deputy General Manager are set by the Board of Directors by a two-thirds (2/3) majority of its members, in compliance with the ceilings provided for by the regulations in force.

CHAPTER V
STAFF

ARTICLE 36.- (1) The Agency may make use of:
- staff recruited by the Agency;
- civil servants on secondment and State employees covered by the Labour Code placed at the disposal of the Agency;
- occasional, seasonal and temporary staff whose recruitment, remuneration and contract termination procedures are set out in the staff regulations.

ARTICLE 37.- Civil servants on secondment and government employees subject to the Labour Code who are placed at the disposal of the Agency shall be subject to labour legislation throughout their employment, subject to the provisions of the General Statute of the Civil Service and the specific statutes relating to retirement, promotion, and termination of secondment.

ARTICLE 38.- (1) Civil servants on secondment and government employees covered by the Labour Code are, regardless of their original status, fully covered by the Agency.
(2) The assumption of responsibility referred to in subarticle 1 above, concerns the salary and its accessories, allowances, bonuses and other benefits provided by the Agency.

ARTICLE 39.- (1) The civil and/or criminal liability of the Agency staff shall be subject to the rules of ordinary law.
(2) Disputes between the staff and the Agency shall be subject to the jurisdiction of the ordinary courts.

ARTICLE 40.- The act of appointment of the General Manager and the Deputy General Manager shall not confer on them the status of employees of the Agency, unless they are previously in a contractual relationship with the Agency.

CHAPTER VI
FINANCIAL PROVISIONS

SECTION I
RESOURCES

ARTICLE 41.- The resources of the Agency shall consist of:
- proceeds from services;
- State subsidies;
- a share of entry fees and/or renewal fees for authorisations granted to providers of network and information system security services;
- a share of penalties imposed by the Agency in accordance with the legislation in force;
- the para-fiscal taxes whose collection is authorized by legislative and regulatory texts;
- a share of the resources of the Special Fund for Telecommunications (SFT);
- a share of the resources of the Special Fund for Electronic Security Activities (SFE);
- 0.5% of the turnover of the operators of electronic communications networks for the operation of the agencies;
- a share of the fee for the use of addresses, prefixes and telephone numbers;
- resources from the management of the ".cm";
- a share of the fees for the use of frequencies deductible from the share allocated to the Treasury;
- donations and bequests;
- any other resources that may be allocated to it.

ARTICLE 42.- The financial resources of the Agency are public funds.
As such, they shall be managed in accordance with the rules laid down by the financial regime of the State and other public entities.

SECTION II
THE BUDGET AND ACCOUNTS

ARTICLE 43.- The financial year of the Agency shall begin on 1st January and end on 31st December of each year.

ARTICLE 44.- (1) The General Manager shall be the chief authorized vote holder of the Agency's budget.
(2) On the proposal of the General Manager, secondary authorised vote holders may be appointed by the Board of Directors.

ARTICLE 45.- (1) The draft annual budget together with the performance project including the investment plans of the Agency shall be prepared by the General Manager and adopted by the Board of Directors.
(2) The budget shall be presented in the form of sub-programmes consistent with national and local public policy objectives.
(3) The budget of the Agency shall be balanced in revenue and expenditure.
(4) All the revenues of the Agency and all its expenditures shall be included in the budget adopted by the Board of Directors.

ARTICLE 46.- (1) The budget adopted by the Board of Directors shall be transmitted, for information, to the Minister in charge of telecommunications and to the Minister in charge of finance, for approval.
(2) The budget is enforceable as soon as it is adopted by the Board of Directors, subject to the contrary provisions of the laws and regulations in force.

ARTICLE 47.- The accounts of the Agency shall be regular and accurate and shall give a true and fair view of its assets and financial situation.

ARTICLE 48.- (1) The Agency shall keep three types of accounts:
- a budgetary account of revenues and expenditures;
- a general accounting system;
- cost accounting.

(2) The Agency may also keep other types of accounts.

SECTION III
CONTROL AND MONITORING OF MANAGEMENT

ARTICLE 49.- The Specialised Financial Controller and the Accounting Officer appointed to the Agency shall carry out their duties in accordance with the laws and regulations in force, except where otherwise provided for in international conventions duly ratified by Cameroon and published. In this event, the organic texts of the Agency shall specify the methods of financial management.

ARTICLE 50.- (1) The Accounting Officer shall be appointed to the Agency by order of the Minister in charge of finance.
(2) The Accounting Officer shall record all revenues and expenditures of the Agency. He shall check the regularity of revenue authorisations, authorisations and payments ordered by the General Manager.
(3) Payment of authorised expenditure shall be made only to the Accounting Officer of the Agency.

ARTICLE 51.- (1) The Specialised Financial Controller shall be appointed
to the Agency by order of the Minister in charge of finance.
(2) The Financial Controller shall be in charge of the control of transactions generating revenue and expenditure taken either by the General Manager or by his/her subordinates. He/she shall be responsible, in general, for controlling the execution of the budget.

ARTICLE 52.- (1) The General Manager shall draw up, at the end of each financial year, all statements relating to the situation of all bank accounts, deposit and portfolio accounts. He/she shall also draw up the inventories as well as the statement of receivables and payables.
(2) The General Manager shall submit to the Board of Directors and, as the case may be, to the Minister in charge of finance and the Minister in charge of telecommunications, the administrative and management accounts and the annual performance reports within six (6) months of the end of the financial year.

ARTICLE 53.- (1) The Financial Controller and the Accounting Officer shall present to the Board of Directors their respective reports on the implementation of the Agency's budget.
(2) Copies of these reports shall be sent to the Minister in charge of finance, the Minister in charge of telecommunications and the General Manager of the Agency.

ARTICLE 54.- (1) The Minister in charge of finance shall monitor the management and performance of the Agency. To this end, the Agency shall send to the Minister in charge of finance all documents and information relating to the life of the establishment which must be kept available to the board members under ordinary law, in particular, activity reports, reports by financial controllers, and annual financial statements.
(2) In addition, the Agency shall publish annually an information note presenting the state of its assets and debts, and summarizing its annual accounts in a legal notice newspaper and in the national press.
(3) The Minister in charge of finance may also request the production of financial statements for a period of less than one year.

ARTICLE 55.- Independent audits may be requested by the Board of Directors, the Minister of Finance and the Minister in charge of telecommunications.

CHAPTER VII
PRECAUTIONARY MEASURES

ARTICLE 56.- (1) Notwithstanding the provisions of this decree, in the event of a serious crisis likely to jeopardize the missions of general interest, the corporate purpose or the sector objectives of the Government, a provisional Administrator may be appointed by decree of the President of the Republic, in place of the Board's

governing bodies.
(2) The legal instrument appointing the provisional administrator shall specify his or her duties and the duration of his or her term of office, which in any event shall not exceed one (01) month.
(3) At the end of his/her term of office, the Interim Administrator shall produce a report of his activities and all his management actions.

CHAPTER VIII
MANAGEMENT OF ASSETS

ARTICLE 57.- (1) The assets of the public domain, of the national domain and of the private domain of the State, transferred to the Agency in accordance with the land legislation, shall keep their original status.
(2) The property of the private domain of the State transferred in ownership to the Agency shall be permanently integrated into its assets.
(3) The property forming part of the private domain of the Agency shall be managed in accordance with ordinary law.

ARTICLE 58.- (1) Under the control of the Board of Directors, the management of the assets of the Agency shall be under the authority of the General Manager.
(2) The management of assets referred to in subarticle 1 above includes the acquisition of goods and their disposal.

ARTICLE 59.- (1) In case of alienation of any property of the Board, the General Manager shall require the prior authorization of the Board of Directors. He shall keep the situation of the assets up to date for the Board of Directors, which shall be examined in one of its sessions.
(2) The Board of Directors may validly deliberate only if at least two-thirds (2/3) of its members are present.

CHAPITER IX
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 60.- The dissolution and liquidation of the Agency shall be carried out in accordance with the legislation in force.

ARTICLE 61.- (1) The Agency is subject to the Public Contracts Code, subject to the exceptions provided for by specific texts.
(2) The General Manager is the Contracting Authority for all public contracts.

ARTICLE 62.- The Internal Tender Board for the award of public contracts set up within the Agency shall ensure the rules of transparency, competition and fair price.

ARTICLE 63.- All previous provisions contrary to this decree are hereby repealed, in particular those of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies.

ARTICLE 64.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaounde on 22 March 2019

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

DECREE No. 2019/263 OF 28 MAY 2019 To reorganise the Cameroon Telecommunications Company.-

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of the OHADA Uniform Act relating to the rights of commercial companies and economic interest groups;
Mindful of Law No. 2001/010 of 23 July 2001 to institute the minimum service in the telecommunications sector;
Mindful of Law No 2010/012 of 21 December 2010 on Cybersecurity and Cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon, amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Law No. 2010/021 of 21 December 2010 to govern Electronic Commerce in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Law No. 2015/007 of 20 April 2015 to govern audiovisual activities in Cameroon;
Mindful of Law No.2017/011 of 12 July 2017 to lay down the general rules and regulations governing public establishments;
Mindful of Law No. 2018/012 of 11 July 2018 relating to fiscal regime of the State and other public entities;
Mindful of Decree No. 98/198 of 08 September 1998 to create the Cameroon Telecommunications Company, together with its subsequent amendments;
Mindful of Decree No. 2018/355 of 12 June 2018 to lay down common rules applicable to contracts awarded by public enterprises;
Mindful of Decree No. 2011/408 of 11 December 2011 to organise the Government, amended and supplemented by Decree No. 2018/190 of 02 March 2018,

HEREBY DECREES AS FOLLOWS:

ARTICLE 1.- (1) This decree reorganises the "Cameroon Telecommunications" Company, abbreviated "CAMTEL" and hereinafter referred to as "CAMTEL".
(2) CAMTEL has a legal personality and a financial autonomy.
(3) Its Head Office is located in Yaounde.
(4) CAMTEL may, as the need arises, have branches in the form of annexes, antennas, agencies, offices, warehouses or representations.
(5) The branches referred to in paragraph 4 above may be created within the national territory by resolution of the Board of Directors.

ARTICLE 2.- (1) CAMTEL shall have the State of Cameroon as its sole shareholder.
(2) CAMTEL's shareholding may be open to other public or private entities.
(3) The Articles of Association of CAMTEL shall provide for the conditions of participation in the share capital.

ARTICLE 3.- (1) The purpose of CAMTEL is to own, operate and provide electronic communication infrastructures and services within the framework of the legal instruments granted to it for this purpose by the competent authorities.
(2) CAMTEL especially ensures:
- the study, installation, operation and maintenance of any necessary system for the supply of electronic communications services throughout the national territory, as well as during the connections of local

and national networks to foreign networks;
- the implementation of commercial, industrial, movable, immovable and financial operations directly or indirectly connected to the above services or instrumental to foster their development.

As such, it is in charge of:
- providing all public electronic communications services at national and international level;
- setting up national and international electronic communications infrastructures and equipment;
- installing, operating and maintaining electronic communications networks for the routing of national and international traffic;
- managing and operating electronic communications networks and services for commercial purposes;
- participating in any global electronic communications system;
- acquiring and operating any concession, rights and privileges relating to the operation of electronic communications networks and services;
- participating in the negotiation and conclusion of agreements with any body with a view to promoting the development of electronic communications;
- taking stakes in national or foreign electronic communications companies.

ARTICLE 4.- (1) CAMTEL shall be placed under the technical supervision of the Ministry in charge of telecommunications and under the financial supervision of the Ministry in charge of finance.
(2) The technical supervision ensures that the resolutions of the Board of Directors comply with the laws and regulations in force, as well as with the guidelines of sector policies.
(3) The financial supervision shall ensure the regularity of the resolutions of the Board of Directors with financial implications, the sustainability of financial commitments and the general consistency of the CAMTEL's performance plans with sector programmes.

ARTICLE 5.- (1) The technical and financial supervisions, in conjunction with the Board of Directors, shall contribute to monitoring the CAMTEL's performance.
(2) CAMTEL shall send to the technical and financial supervisory authorities all documents and information relating to the activities of the company, in particular financial statements, the auditor's report and activity reports.
(3) The Minister in charge of technical supervision shall send to the President of the Republic an annual report on the situation of CAMTEL.

ARTICLE 6.- (1) The management of CAMTEL shall be ensured by three bodies:
- a General Assembly;
- a Board of Directors;
- a General Management.

(2) The missions, composition, organisation and functioning of the bodies referred to in paragraph 1 above shall be laid down in the statutes.

ARTICLE 7.- The staff of CAMTEL shall include:
- staff directly recruited by CAMTEL;
- the recruitment of civil servants on secondment;
- State agents covered by the Labour Code placed at the disposal of CAMTEL;
- occasional, seasonal and temporary staff whose recruitment, remuneration and contract termination procedures are set out in the staff regulations.

ARTICLE 8.- Civil servants on secondment and State agents covered by the Labour Code placed at the disposal of CAMTEL shall be subject to labour legislation throughout their employment, subject to the provisions of the General Statute of the Civil Service and specific statutes relating to retirement, promotion and the end of secondment.

ARTICLE 9.- (1) Civil servants on secondment and State agent covered by the Labour Code who are placed at the disposal of CAMTEL shall, regardless of their original status, be fully covered by CAMTEL.
(2) The assumption of responsibility referred to in paragraph 1 above, concerns the salary and its accessories, allowances, bonuses and other benefits provided by CAMTEL.

ARTICLE 10.- (1) The resources of CAMTEL shall consist of:
- the share capital;
- the proceeds from services provided;
- the proceeds from its own activities;
- the proceeds from possible sales and rentals;
- income from the disposal of some of its assets;
- loans, holdings and investments;
- miscellaneous contributions;
- resources from cooperation;
- donations and bequests;
- any other resource that may be allocated to it by the regulations in force.

ARTICLE 11.- The accounting system of CAMTEL shall be that provided for by the OHADA Uniform Act relating to the law of Commercial Companies and Economic Interest Groups.

ARTICLE 12.- (1) CAMTEL's assets shall consist of movable and immovable property assigned to it by the State.
(2) The assets of the public domain, of the national domain and of the private domain of the State, transferred to CAMTEL in accordance with the land legislation, shall keep their original status.
(3) The property of the private domain of the State transferred in ownership to CAMTEL shall be permanently integrated into its assets.
(4) The property forming part of the private domain of CAMTEL shall be managed in accordance with ordinary law.

ARTICLE 13.- (1) Under the control of the Board of Directors, the management of the assets of CAMTEL shall be under the authority of the General Manager.
(2) The management of assets referred to in paragraph 1 above includes the acquisition of goods and their disposal.

ARTICLE 14.- (1) CAMTEL shall be subject to the common provisions applicable to public enterprises' contracts.
(2) A resolution of the Board of Directors shall specify the conditions for the organisation and operation of the Internal Tender Board, the appointment of its members and the evaluation of tenders.

ARTICLE 15.- (1) A decree of the President of the Republic shall approve the Articles of Association of CAMTEL.
(2) Any modification of CAMTEL's Articles of Association shall be subject to the same rules as those provided for their approval.

ARTICLE 16.- All previous contrary provisions are hereby repealed, notably those of Decree No. 98/198 of 8 September 1998 to create the Cameroon Telecommunications Company, together with its subsequent amendments.

ARTICLE 17.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaounde on 28 May 2019

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

DECREE No. 2019/264 OF 28 MAY 2019 To approve the Articles of Association of the Cameroon Telecommunications Company.-

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of the OHADA Uniform Act relating to the rights of commercial companies and economic interest groups;
Mindful of Law No. 2017/011 of 12 July 2017 to lay down the general rules and regulations governing public establishments;
Mindful of Law No. 2018/012 of 11 July 2018 relating to fiscal regime of the State and other public entities;
Mindful of Decree No. 98/198 of 08 September 1998 to create the Cameroon Telecommunications Company, together with its subsequent amendments;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government, amended and supplemented by Decree No. 2018/190 of 02 March 2018;
Mindful of Decree No. 2018/355 of 12 June 2018 to lay down common rules applicable to contracts awarded by public undertakings;
Mindful of Decree No. 2019/263 of 28 May 2019 to re-organise the Cameroon Telecommunications Company,

HEREBY DECREES AS FOLLOWS:

ARTICLE 1.- The Articles of Association of the Cameroon Telecommunications Company, abbreviated "CAMTEL", are hereby approved, as attached to this Decree.

ARTICLE 2.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 28 May 2019

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

DECREE No. 2020/727 OF 03 DECEMBER 2020
To lay down the reorganization and functioning of the Telecommunications Regulatory Agency.-

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of the OHADA Uniform Act Relating to Commercial Companies and Economy lnterest Groups, adopted on 30 January 2014 at Ouagadougou;
Mindful of Law No. 98/13 of 14 July 1998 relating to competition;
Mindful of Law No. 2001/10 of 23 July 2001 to institute minimum service in the area of the telecommunications sector;
Mindful of Law No. 2010/13 of 21 December 2010 governing electronic communications in Cameroon, as amended and supplemented by Law No. 2015/6 of 20 April 2015;
Mindful of Law No. 2018/11 of 11 July 2018 to lay down the Cameroon Code of Transparency and Good Governance in public finance management;
Mindful of Law No. 2018/12 of 11 July 2018 relating to the fiscal regime of the State and other public entities;
Mindful of Law No. 2017/10 to lay down the general rules and regulations governing public establishments;
Mindful of Decree No. 2019/320 of 19 June 2019 to lay down conditions for implementing some provisions of Law No. 2017/10 and Law No. 2017/11 to lay down the general rules and regulations governing public establishments and public corporations;
Mindful of Decree No. 2019/322 of 19 June 2019 to lay down categories of public establishments and the remuneration, allowances and benefits of their managers;
Mindful of Decree No. 2011/408 of 9 December 2011 to organize the Government, as amended and supplemented by Decree No. 2018/190 of 02 March 2018,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This decree lays down the organization and functioning of the Telecommunications Regulatory Agency, abbreviated to 'TRA", and hereinafter referred to as "the Agency".

ARTICLE 2.- (1) The Agency shall be a special public establishment, with legal personality and financial autonomy.
(2) It shall be governed by the private accounting rules, in accordance with the provisions of the OHADA Uniform Act Relating to Commercial Companies and Economic Interest Groups.
(3) The headquarters of the Agency shall be in Yaounde. It may be transferred to any other venue on the national territory, by resolution of the Board of Directors.
(4) Branches of the Agency may be set up within the national territory, as and when necessary, by resolution of the Board of Directors.

ARTICLE 3.- (1) The Agency shall be under the technical supervisory authority of the ministry in charge of telecommunications and under the financial supervisory authority of the ministry in charge of finance.
(2) The purpose of the technical supervisory authority shall be to ensure that the activities carried out by the Agency are compliant with Government public policy guidelines in the electronic telecommunications sector, subject to the powers devolved on the Board of Directors.

ln addition, it shall ensure compliance of the resolutions of the Board of Directors with the laws and regulations, as well as with sector policy guidelines.
(3) The purpose of the financial supervisory authority shall be to ensure that the Agency's management transactions with a financial impact are compliant with public finance regulations on the one hand, and the post-audit regularity of accounts, on the other hand.
ln addition, it shall ensure the regularity of the resolutions of the Board of Directors with a financial impact, the sustainability of financial commitments and the overall consistency of Agency performance plans with sector programmes.

ARTICLE 4.- (1) The technical and financial supervisory authorities, in conjunction with the Board of Directors, shall contribute towards monitoring the performance of the Agency.
(2) The Agency shall submit to the technical and financial supervisory authorities ail documents and information relating to its management, including performance projects, action plans, annual performance reports, auditors' reports, the administrative and management accounts, the updated situation of the staff and the salary grid.
(3) The technical and financial supervisory ministries shall, each in its own sphere, submit to the President of the Republic an annual report on the situation of the Agency.

CHAPTER II
MISSIONS AND POWERS

SECTION I
MISSIONS

ARTICLE 5.- (1) The Agency shall ensure, on behalf of the State, the regulation, control and monitoring of the activities of dealers, network operators and providers of electronic communication services. It shall also ensure compliance with the principle of equal treatment of users in ail electronic communication companies.
As such, it shall be responsible for:

- ensuring the implementation of laws and regulations in the field of telecommunications and information and communication technologies;
- ensuring that networks open to the public are accessed under objective, transparent and non-discriminatory conditions;
- ensuring healthy and fair competition in the telecommunications and information and communication technology sector;
- sanctioning operators' failures to fulfil their obligations as well as anti-trust practices;
- defining principles governing the pricing of the services provided;
- reviewing license applications and preparing decisions relating thereto;
- formally issuing declaration receipts;
- defining the conditions and obligations for interconnection and infrastructure sharing;
- issuing an official opinion on all draft laws and regulations relating to electronic communications;
- ensuring the assignment and control of the frequency spectrum;
- preparing tender documents for concessions and licenses;
- drawing up and managing the numbering plan;
- submitting to the Government any proposals and recommendations for the development and modernization of the telecommunications and information and communication technology sector;
- assigning addressing resources;
- examining files for the approval of terminal equipment and preparing the related decisions;
- issuing approvals; ensuring consumer protection;
- performing any other general interest task, it may be assigned by the Government in the telecommunications and information and communication technology sector.

(2) The Agency shall ensure implementation of the universal service and the development of electronic communications nationwide.
(3) The Agency shall support any initiative aimed at training and building the capacity of the personnel responsible for regulating the telecommunications sector.
(4) The Agency shall collect the Special Telecommunications Fund resources in accordance with the regulations in force.

(5) The Agency shall collaborate with the National Agency for Information and Communication Technologies in regulating activities relating to electronic communications networks and information systems security.
(6) The Agency shall collaborate with the body responsible for audiovisual regulation as part of the regulation of audiovisual activities.
(7) Prior to referral to any court, the Agency shall seek to settle disputes between electronic communications network operators relating, in particular, to interconnection or access to an electronic communications network, local loop unbundling, numbering, frequency interference, physical co-location and infrastructure sharing.

SECTION II
POWERS

ARTICLE 6.- For the purposes of its missions the Agency shall have the powers of regulation, control, investigation, injunction, coercion and sanction.
As such, it shall be empowered to:

(a) appoint its Sworn Officers who may thus:
- access premises, land or means of transport used for work purposes;
- request disclosure of any professional document and keep a copy thereof;
- collect information and supporting documents by way of summonses or spot checks;

(b) adopt the rules of procedure for referral and settling of inter-operator disputes;
(c) ensure the establishment of offences that may be revealed only through systematic and frequent control of sector operators by criminal investigation officers and sworn officers recruited for that purpose;
(d) collect the necessary information and documents from network operators and service providers, in accordance with their agreements and specifications, to ensure that they comply with their obligations under the laws and regulations in force;
(e) settle disputes between certification authorities, network and information systems security service providers, on the one hand, and between the latter and users, on the other hand;
(f) order the withdrawal of the operation license of any holder of an authorization that fails to comply with the formal notice served on it, in accordance with the conditions and procedures for the issuance thereof;
(g) inflict sanctions against defaulting operators and dealers. Such sanctions shall be enforceable decisions;
(h) take the necessary precautionary measures to ensure continuity of service delivery and protect the interests of users.

CHAPTER III
MANAGEMENT ORGANS

ARTICLE 7.- (1) The management organs of Agency shall be:
- The Board of Directors;
- Management.

SECTION I
BOARD OF DIRECTORS

ARTICLE 8.- (1) Comprising 12 (twelve) members, the Board of Directors shall be chaired by a personality appointed by decree of the President of the Republic.
Besides the Chairperson, the Board of Directors of the Agency shall be composed as follows:
- 1 (one) representative of the Presidency of the Republic;
- 1 (one) representative of the Prime Minister's Office;
- 1 (one) representative of the ministry in charge of telecommunications;
- 1 (one) representative of the ministry in charge of finance;
- 1 (one) representative of the ministry in charge of defence;
- 1 (one) representative of the ministry in charge of justice;

- 1 (one) representative of the Delegation General for National Security;
- 1 (one) representative of the ministry in charge of communication;
- 1 (one) representative of the National Agency for Information and Communication Technologies;
- 1 (one) Agency-elected staff representative;
- 1 (one) representative of users and beneficiaries of electronic communication services, at the behest of the technical supervisory minister.

ARTICLE 9.- (1) The Chairperson of the Board of Directors of the Agency shall be appointed by decree of the President of the Republic for a three-year term, renewable once.
(2) The instrument appointing the Board Chairperson shall automatically confer on him/her the status of Board member.
(3) In case of expiry of the term of office of the Board Chairperson, the technical supervisory minister shall refer this to the appointing authority.

ARTICLE 10.- On the proposal of the ministries or bodies which they represent, members of the Board of Directors shall be appointed by decree of the President of the Republic for a three-year term, renewable once.

ARTICLE 11.- (1) A Board member, s term of office shall end:
- through death or resignation;
- following loss of the capacity that warranted his/her appointment;
- through dismissal as a result of gross conduct or actions incompatible with the duties of Board member;
- upon its normal expiry.

(2) In the cases provided for in (1) above, a Board member shall be replaced following the same procedures as for his/her appointment.

ARTICLE 12.- (1) Six (6) months prior to the expiry of a Board member's term of office, the Board Chairperson shall refer this to the entity he/she represents for his/her replacement.
(2) No Board member may sit on the Board beyond the expiry of his/her term of office.
(3) In case of death of a Board member during his/her term of office or, in any case, where a Board member is no longer able to exercise his/her mandate, the ministry or body that he/she represents shall designate another Board member to continue the term of office.

ARTICLE 13.- (1) The Chairperson and members of the Board of Directors shall be subject to the restrictive and incompatibility measures provided for by the legislation in force.
(2) The duties of Chairperson and member of the Board of Directors shall be incompatible with any direct or indirect holding of interests in an electronic communications sector company, or any paid position in an electronic communication company, or for which remuneration in whatever form is paid by such company.

ARTICLE 14.- (1) The Board of Directors shall have powers to formulate and guide the Agency's overall management policy and assess its management, within the limits set by its corporate purpose and in accordance with the laws and regulations in force.
As such, it shall:
(a) set the Agency's objectives and approve its draft performance plans;
(b) adopt the Agency's budget, draft performance plan and approve annual accounts and financial statements;
(c) approve annual performance reports;
(d) adopt the Organization Chart and Internal Rules and Regulations;
(e) authorize staff recruitment in accordance with the recruitment plan proposed by the Director-General and approved by the Board of Directors;
(f) authorize staff dismissal, on the proposal of the Director-General;
(g) appoint to the positions of sub-director, director and persons ranking as such, on the proposal of the Director-General;
(h) accept all grants, legacies and subsidies;
(i) approve performance contracts or all other agreements prepared by the Director-General and having an impact on the budget;

(j) authorize any disposal of movable or immovable, tangible or intangible property, in accordance with the provisions of Sections 64 and 65 of the above-mentioned Law No. 2017/010;
(k) ensure compliance with rules of governance and conduct audits to ensure proper management of the Agency;
(l) fix staff remunerations and benefits, in accordance with the laws and regulations in force, the Internal Rules and Regulations and budget estimates;
(m) fix the monthly remunerations and benefits of the Director-General and the Deputy Director-General, in accordance with the laws and regulations in force;
(n) fix the amount of the allowance and benefits of the Board Chairperson as well as the allowances of Board members, in accordance with the regulations in force;
(o) fix the staff salary scales and benefits proposed by the Director-General, in accordance with the laws and regulations in force, the Internal Rules and Regulations and budget estimates;
(p) authorize the participation of the Agency in professional associations, groups or bodies whose activity is necessarily linked to its duties;
(q) adopt any measure that may improve the services provided by the Agency, notably the simplification of administrative procedures;
(r) see to the publication of an annual report on the status and development of activities in the telecommunications and communication and information technologies sector in Cameroon.

(2) The Board of Directors may delegate some of its powers to the Director General.

ARTICLE 15.- The Board Chairperson shall convene and chair Board meetings. He shall ensure the implementation of Board resolutions.

ARTICLE 16.- The Director-General shall provide secretarial services for Board meetings.

ARTICLE 17.- (1) When convened by its Chairperson, the Board of Directors shall compulsorily meet at least twice a year in ordinary session, including:
- once to examine the draft performance plan and adopt the budget before the beginning of the next financial year; and
- once to close accounts no later than 30 June of the current year.

(2) The Board Chairperson shall be deemed to have failed in his/her duty where he/she does not convene at least 2 (two) Board meetings a year.
(3) The Board of Directors may be convened in extraordinary session to examine a specific agenda at the request of its Chairperson or 2/3 (two thirds) of Board members.
(4) In case of refusal to convene a Board meeting or in the event of silence on the part of the Board Chair due to permanent incapacity established by the Board of Directors, 2/3 (two thirds) of members shall refer this to the minister in charge of finance who shall convene the Board of Directors to consider a specific agenda.

ARTICLE 18.- The Board of Directors shall consider any item included on the agenda by the Chairperson or at the request of 2/3 (two thirds) of Board members.

ARTICLE 19.- (1) In case of vacancy of the position of Board Chairperson as a result of death, resignation or failure of the Chairperson, Board meetings shall be convened by the financial supervisory minister, at the behest of the Director-General or 2/3 (two thirds) of Board members.
(2) Where the initiative is taken by 2/3 (two thirds) of Board members, they shall submit to the financial supervisory authority, a request to convene the Board of Directors, bearing the signatures of those requesting.
(3) The financial supervisory authority shall convene the Board of Directors, at the behest of the Director-General.

ARTICLE 20.- The Board of Directors may be convened in extraordinary session to consider a specific agenda at the request of its Chairperson or 2/3 (two thirds) of Board members.

ARTICLE 21.- (1) Convening notices and sessions documents shall be sent to members by letter, fax, telegram, electronic mail or through any means leaving a paper trail at least 15 (fifteen) days prior to the date of the meeting.

(2) Convening notices shall indicate the agenda, date, venue and time of the meeting.
(3) In case of emergency, the time limit provided for in (1) above may be reduced to 5 (five) days.

ARTICLE 22.- (1) Any Board member who is absent may be represented at the Board session by another Board member. However, no Board member may represent more than one Board member during the same session.
(2) Any Board member present or represented in a Board meeting shall be considered as having been duly convened.
(3) Where the Board Chairperson is unavoidably absent, the Board of Directors shall elect a pro tem Chair from among its members, by a simple majority of members present or represented.

ARTICLE 23.- (1) The Board of Directors may validly consider an agenda item only if at least 2/3 (two thirds) of its members are present or represented. Where the quorum is not attained on a first sitting, another sitting shall be convened where the quorum shall be reduced to half the Board members.
(2) Each member shall have one vote. Board decisions shall be taken by a simple majority of votes of members present or represented. In the event of a tie, the Chairperson shall have the casting vote.
(3) Board proceedings shall be recorded in minutes signed by the Board or Pro-tem Chairperson and one Board Member. The minutes shall indicate the names of members present or represented and those of persons invited in an advisory capacity. The minutes shall be read and approved during a Board meeting.
(4) The minutes shall be entered in a special register kept at the headquarters of the Agency.

ARTICLE 24.- (1) Decisions of the Board of Directors shall be in the form of resolutions. They shall be signed on the spot at Board meetings by the Board or Protem Chairperson, where applicable, and one Board Member.
(2) Decisions of the Board of Directors shall take effect from the date they are adopted, subject to any contrary provisions of the laws and regulations in force.

ARTICLE 25.- (1) For the performance of its missions, the Board of Directors may set up internal Committees and Commissions, as and when necessary.
(2) Committee or Commission Members shall be entitled to working facilities and allowances within the limits of the ceilings set under the regulations in force.

ARTICLE 26.- (1) The Chairperson of the Board of Directors shall be entitled to a monthly allowance as well as benefits. The amount of the monthly allowance and benefits shall be fixed by the Board of Directors, in accordance with the regulations in force.
(2) Board Members shall be entitled to a session allowance fixed by resolution of the Board of Directors, within the limits set by the regulations in force. They may claim reimbursement of the expenses incurred during the session, upon presentation of supporting documents.
(3) The Board of Directors may grant Board Members exceptional remuneration for various missions and tasks entrusted to them, or authorize the reimbursement of travel and mission expenses, as well as expenses incurred in the interest of the Agency.

SECTION II
MANAGEMENT

ARTICLE 27.- (1) The Agency shall be managed by a Director-General, who may be assisted by a Deputy Director-General.
(2) The Director-General and the Deputy Director-General shall be appointed by decree of the President of the Republic, for a 3 (three)-year term of office, renewable twice.
(3) The renewal provided for in (2) above shall be tacit.
(4) In any case, the cumulative term of office of the Director-General and the Deputy Director-General shall not exceed 9 (nine) years.
(5) The duties of Member of Government or personality ranking as such, Member of Parliament, Judicial Officer of a court or Member of the Constitutional. Council shall be incompatible with those of Director-General or Deputy Director General.

ARTICLE 28.- (1) Under the supervision of the Board of Directors, the Director General shall be responsible for managing and implementing the Agency's general policy.
As such, he shall, in particular:

(a) carry out the technical, administrative and financial management of the Agency;
(b) prepare the draft budget and progress report, produce the administrative account as well as the annual progress report;
(c) prepare resolutions of the Board of Directors, attend Board meetings in an advisory capacity and execute Board decisions;
(d) propose a staff recruitment plan to the Board of Directors;
(e) appoint officials to duty posts subject to the powers devolved to the Board of Directors;
(f) manage the movable, immovable, tangible and intangible assets of the Agency, in accordance with its corporate purpose and the powers of the Board of Directors;
(g) submit to the Board of Directors for adoption, the draft organization chart of the Agency, internal rules and regulations, staff rules, the staff salary and benefits scale;
(h) prepare the Agency's investment plan, activity reports, as well as the accounts and financial statements to be submitted to the Board of Directors for approval and closure;
(i) assess and dismiss staff subject to the powers of the Board of Directors;
(j) recruit staff, in accordance with the recruitment plan approved by the Board of Directors;
(k) propose to the Board of Directors the appointment and dismissal of the Agency's representatives in the General Meetings and on the Boards of Directors of other companies;
(l) in case of emergency, take any precautionary measure necessary for the proper functioning of the Agency, and report thereon to the Board of Directors;
(m) carry out purchases, enter into and sign contracts, agreements and conventions, ensure execution and control thereof in strict compliance with the budget, and in accordance with the laws and regulations in force.

(2) The Director-General may delegate part of his powers.

ARTICLE 29.- The Director-General shall represent the Agency in ail civil acts and in court.

ARTICLE 30.- (1) The Director-General or Deputy Director-General shall be answerable to the Board of Directors, which may sanction them in case of gross management misconduct or behaviour likely to adversely affect the smooth running or image of the Agency.
(2) In the cases provided for in (1) above, the Chairperson of the Board of Directors shall convene an extraordinary Board meeting during which the Director General or Deputy Director-General shall be heard.
(3) The indictment file shall be sent to the Director-General or the Deputy Director-General at least 10 (ten) days before the scheduled date of the· extraordinary meeting.
(4) Hearing before the Board of Directors shall be adversarial.
(5) The Board of Directors shall validly deliberate only in the presence of at least 2/3 (two thirds) of its members. No proxies shall be allowed in this case.

ARTICLE 31.- (1) The Board of Directors may impose the following sanctions against the Director-General or Deputy Director-General:

- suspension of some powers;
- suspension from duty for a limited period, with immediate effect;
- suspension from duty with immediate effect coupled with a dismissal request sent to the appointing authority.

(2) The decisions shall be forwarded, for information, to the Agency's technical and financial supervisory ministers, on the initiative of the Chairperson of the Board of Directors.

ARTICLE 32.- Where the Director-General or Deputy Director-General is suspended from duty, the Board of Directors shall take the necessary measures to ensure the smooth running of the Agency.

ARTICLE 33.- (1) Where the Director-General is unavoidably absent, the Deputy Director-General shall deputize.
(2) Where the position of Deputy Director-General is vacant, the Director General shall appoint an official ranking at least as Director, to deputize.

(3) Where the position of Director-General becomes vacant as a result of death, resignation or end of tenure, the Board of Directors shall take all necessary measures to ensure the proper functioning of the Agency, pending the appointment of a new Director-General by the appointing authority.

CHAPTER IV
FINANCIAL PROVISIONS

SECTION I
RESOURCES

ARTICLE 34.- The Agency's financial resources shall comprise:
- a share of entry and/or renewal of authorization fees for activities in the telecommunications sector;
- a share of the penalties instituted by the law governing electronic communications;
- a share of the fee for radio frequency use;
- a share of the fee for the use of addresses, prefixes and numbers or blocks of numbers;
- the Agency's operating fee payable by network operators and electronic communications service providers, in accordance with the regulations in force;
- parafiscal charges collected' as authorized under the laws in force;
- proceeds of service delivery;
- gifts and legacies;
- any other resources that may be allocated to it under the regulations in force.

ARTICLE 35.- (1) The financial resources of the Agency shall be public funds. As such, they shall be managed in accordance with the rules laid down in the financial regime of the State and other public entities.
(2) The Agency's resources shall be collected in accordance with the legislation relating to the State debt recovery.
(3) For the recovery referred to in (2) above, the Agency shall have the preferential right of the Treasury.

SECTION II
BUDGET AND ACCOUNTS

ARTICLE 36.- The Agency's financial year shall begin on 1 January and end on 31 December of each year.

ARTICLE 37.- (1) The Director-General shall be the principal authorizing officer of the Agency's budget.
(2) On the proposal of the Director-General, delegated authorizing officers may be designated by the Board of Directors.

ARTICLE 38.- (1) The draft annual budget together with the performance project including the Agency's investment plans shall be prepared by the Director-General and adopted by the Board of Directors.
(2) The budget shall be presented in the form of coherent sub-programmes, with national or specific public policy objectives.
(3) The Agency's budget shall be balanced in revenue and expenditure.
(4) All the Agency's revenue and expenditure shall be entered in the budget adopted by the Board of Directors.

ARTICLE 39.- (1) The budget adopted by the Board of Directors shall be forwarded, for information, to the minister in charge of telecommunications, and for approval, to the minister in charge of finance.
(2) The budget shall be rendered enforceable once adopted by the Board of Directors, except otherwise provided by the laws and regulations in force.

ARTICLE 40.- The Agency's accounts shall be kept in accordance with the rules of the OHADA accounting system. The Agency's accounts must be regular and give a true and fair view of its assets and financial position.

ARTICLE 41.- In the event of a budget surplus at the end of the financial year, 50% (fifty percent) of such surplus shall be allocated to the Special Telecommunications Fund, and the other 50% shall be used for the acquisition of regulation and control equipment.

SECTION III
AUDITING AND MONITORING OF ACCOUNTS

ARTICLE 42.- The Agency shall be subject to audit by the competent State bodies.

ARTICLE 43.- (1) The Board of Directors shall appoint one or more auditors chosen from among the experts enrolled in the National Order of Chartered Accountants of Cameroon (ONECCA), following a call for candidates issued by the Director·General.
(2) The Board of Directors shall determine the fees of the Auditor(s) whose term of office may not exceed 3 (three) years, renewable once.

ARTICLE 44.- (1) The following persons may not be auditors: Board Members, the Director-General, the Deputy Director-General, Director in charge of finance and accounting, Agency staff, as well as their spouses, ascendants, descendants in a direct or collateral line, or any person who receives remuneration from these persons as a result of a permanent activity other than that of auditor.
(2) Where any one of such reasons arises in the course of an Auditor's tenure, such auditor must so inform the Board and cease duties forthwith.

ARTICLE 45.- (1) The auditor's duties shall include the following:
- conduct all audits and verifications that he/she deems appropriate throughout his/her tenure, and obtain all documents deemed useful;
- without this entailing his/her liability, bring to the attention of the Board of Directors, the supervisory authorities, the representative of the Public Prosecutor's Office, any irregularities or criminal acts that he/she may have discovered;
- prepare reports and communicate the findings thereof to the Board of Directors in a timely manner.

(2) He/she shall be bound by the generally accepted auditing obligations and arrangements.

CHAPTER V
STAFF

ARTICLE 46.- (1) The following may be part of the staff of the Agency:
- personnel recruited by the Agency;
- civil servants on secondment;
- State employees governed by the Labour Code placed at the disposal of the Agency;
- seasonal, casual and temporary staff whose recruitment, remuneration and contract termination terms and conditions shall be laid down in the staff rules and regulations.

(2) Civil servants on secondment and State employees governed by the Labour Code placed at the disposal of the Agency shall, throughout the period of their employment, be liable to the labour laws, subject to the provisions of the General Rules and Regulations Governing the Public Service and special regulations relating to retirement, advancement and end of secondment.
(3) The Agency's staff may under no circumstances be wage earners, receive remuneration in any form whatsoever, or have a direct or indirect interest in an enterprise in the telecommunications and information and communication technology sector.

ARTICLE 47.- (1) Civil servants on secondment and State employees governed by the Labour Code placed at the disposal of the Agency shall, regardless of their status or origin, be entirely managed by the Agency.
(2) The management referred to in (1) above shall concern the payment of salaries and salary incidentals, allowances, bonuses and other benefits provided by the Agency.

ARTICLE 48.- (1) The civil and/or criminal liability of the Agency staff shall be subject to the rules of ordinary law.
(2) Conflicts between staff and the Agency shall fall under the jurisdiction of ordinary law courts.

ARTICLE 49.- The instrument to appoint the Director-General and the Deputy Director-General shall not confer on them the status of employees of the Agency, unless the persons concerned were previously under contract with the Agency.

CHAPTER VI
PROPERTY OF THE AGENCY

ARTICLE 50.- (1) The Agency's property shall comprise movable and immovable assets assigned to it by the State.
(2) Public, national and private State property transferred for use to the Agency, in accordance with the State property laws, shall maintain their original status.
(3) Private State property. transferred to the Agency for ownership shall be finally incorporated into its assets.
(4) Assets forming part of the Agency's private property shall be managed in accordance with ordinary law.

ARTICLE 51.- (1) The Director-General shall be responsible for managing the Agency's property, under the supervision of the Board of Directors.
(2) The property management referred to in (1) above shall concern assets acquisition and disposal.

ARTICLE 52.- (1) The Director-General shall seek the prior authorization of the Board of Directors in case of disposal of the Agency's property. He/she shall update the Board of Directors on the status of property which shall be examined during one of its sessions.
(2) The authorization of the Board of Directors shall be in the form of the resolution adopted by at least two thirds (2/3) of its members.

CHAPTER VII
PUBLIC CONTRACTS

ARTICLE 53.- (1) The Agency shall not be subject to the previsions of the Public Contracts Code.
(2) The Board of Directors shall ensure the rules of transparency, competition, equal treatment of bidders and fair pricing.
(3) A resolution of the Board of Directors shall specify the terms and conditions of the organization and ·functioning of the internal tenders board, appointment of its member and evaluation of bids.

CHAPTER VIII
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 54.- (1) ln the event of a serious crisis likely to jeopardize public interest duties, the corporate purpose or Government's sector-specific objectives, a provisional administrator may be appointed by decree of the President of the Republic, in lieu of the Agency's governing bodies.
(2) The instrument appointing the Provisional Administrator shall specify his/her duties and the duration of his/her tenure, in accordance with the regulations in force.

ARTICLE 55.- The Agency's Board members and staff shall be bound by professional secrecy with regard to any information, facts, acts or intelligence they have become privy to in the performance of their duties, and by the obligation of discretion.

ARTICLE 56. All previous provisions repugnant hereto, in particular those of Decree No. 2012/203 of 20 April 2012 to lay down the organization and functioning of the Telecommunications Regulatory Agency, are hereby repealed.

Article 57.- This decree shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaoundé, 03 December 2020

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

CROSS-SECTOR TEXTS

LAW No. 98/013 OF 14 JULY 1998
Relating to Competition

The National Assembly deliberated and adopted,
The President of the Republic hereby enacts the law set out below:

PART I
GENERAL PROVISIONS

Article 1.- This law defines the conditions of competition on the domestic market.

Article 2.- (1) The provisions of this law shall apply to all sectors of the national economy, to the production and/or the marketing of products and services in the national territory by natural persons or public, semi-public or private corporate bodies.
(2) They shall equally apply, where the effects of anticompetitive practices caused by enterprises located outside the national territory are felt on the domestic market, subject to agreements and treaties binding Cameroon to the host country of the said enterprises.

PART II
ANTICOMPETITIVE PRACTICES

Article 3. - All practices whose aim is to check, distort or significantly restrict competition on the domestic market shall be forbidden.

Article 4.- (1) The prohibition stipulated in Article 3 above shall apply to anticompetitive practices carried out within the framework of:
- relations between competitors or potential competitors operating at the same level of production or marketing;
- relations between non-competing enterprises operating at different levels of the production and/or marketing chain;
- unilateral measures taken by an enterprise or a group of enterprises having a dominant position on the market.

(2) The anticompetitive practices referred to in the paragraph above shall be those arising from:
- agreements and arrangements between enterprises;
- abuses by an enterprise or a group of enterprises in a dominant position;
- mergers and acquisitions.

CHAPTER I
ANTICOMPETITIVE AGREEMENTS

Article 5.- (1) Agreements and arrangements between natural persons and/or corporate bodies with commercial autonomy with a view to:
- fixing prices, tariffs, scales of charges or discounts, or preventing the fixing of such prices, tariffs, scales of charges or discounts;
- limiting production capacities and quantities manufactured, sold, stored, leased or transported;
- jointly fixing bidding conditions in a call for tenders without informing the person who launched the said call for tenders, shall be prohibited.

(2) Agreements and arrangements with a view to eliminating or considerably restricting competition on the

market either by preventing access to a market or by sharing in any way whatsoever buyers or salers on a market, shall also be prohibited.

Article 6.- However, the above-mentioned agreements and arrangements may not be prohibited as provided by Article 5 above under the following conditions:

a) where they have been previously notified to the National Competition Committee referred to in Article 21 of this law;
b) where the National Competition Committee concludes that such agreements and arrangements clearly help to enhance economic performance by:
   - reducing the prices of the good or service concerned in the agreement or arrangement;
   - considerably improving the quality of the said good or service;
   - improving efficiency in the production or distribution of such good or service.

Article 7.- (1) The special dispensation referred to in Article 6 above shall be granted only where there is proof that the net contribution to efficiency cannot be achieved in the absence of the agreement or arrangement called in question and that the said agreement or arrangement is less restrictive to competition than other agreements or arrangements which give rise to the same enhancement of efficiency.
(2) The proof of enhancement referred to in paragraph (1) above shall rest with the parties to the agreement or arrangement.

Article 8.- (1) The agreement and arrangement referred to in Article 5 above shall be sanctioned only where it has been established that such agreement and arrangement reduce market competition.
(2) The following shall not constitute sufficient proof of the existence of an agreement or arrangement:
- similarity of prices and sales conditions;
- alignment with the prices or sales conditions of another competitor, even if such prices or sales conditions result from an agreement or arrangement.

Article 9.- (1) The practices referred to in Article 5 above shall be null and void and shall not be demurable either to the parties to the agreement or arrangement or to third parties or even to the contracting parties. Any interested party may refer to the authority in charge of competition with a view to abolishing the said practices.
(2) The abolition referred to in paragraph (1) above may relate solely to the particular clause of the agreement and arrangement which introduces the practices object of the complaint.

CHAPTER II
ABUSES BY AN ENTERPRISE OR A GROUP OF ENTERPRISES WITH A DOMINANT MARKET POSITION

Article 10.- Pursuant to the implementation of this law, the dominance of an enterprise shall be determined inter-alia by:
- its market share;
- its technological edge over the other competitors;
- obstacles of all kinds which it raises to block the entry of new enterprises into the market.

Article 11.- (1) An enterprise or a group of enterprises takes advantage of its dominant position on the market when it indulges in practices which significantly restrict competition on the said market.
(2) To this end, the enterprise;
- adopts measures which aim at preventing a rival enterprise from setting up in the market or at ousting the said competitor;
- exerts pressure on distributors in order to prevent them from selling the products of its rivals;
- indulges in actions which aim to raise the production costs of its rivals.

Article 12.- Where the practices of an enterprise which is in a dominant position aim at improving economic performance especially through the reduction of production or distribution costs, such practices shall not be considered improper even if they result in the elimination of competitors, the curbing of their activities or the limitation of market access possibilities for new enterprises.

Article 13.- Any case of abuse of a dominant position may be referred to the National Competition Committee only where the practice has been going on for less than twenty-four (24) months.

CHAPTER III
MERGERS AND ACQUISITION OF ENTERPRISES

Article 14.- (1) Economic operators may freely engage in mergers and the acquisition of enterprises in order to improve the competitiveness of goods and services sold on the domestic and foreign markets.
(2) However, where a merger or acquisition of enterprises reduces competition or seems likely to have this effect, such merger or acquisition shall be prohibited, subject to the cases provided for in Article 17 below.

Article 15.- Within the meaning of this law:
a) **merger** means any transfer of the property of one or more companies to another which gives rise to a new company or to the absorption of the company transferring its property;
b) **acquisition** means any total or partial transfer of the shares, assets, rights and obligations of one or more companies to another company which enables the latter to exercise control over all or part of the activities of the transferring companies.

Article 16.- The following factors shall be taken into account in the appreciation of the anticompetitive nature of a merger or an acquisition:
- obstacles to the entry of new competitors in to the market, notably tariff and non-tariff barriers on imports;
- the degree of competition between the autonomous decision-making centres in the market;
- the eventuality of the disappearance from the market of an enterprise which is party to the merger or acquisition, or the assets transferred.

Article 17.- Any merger or acquisition which seriously undermines, or is likely to seriously undermine competition may be permitted where the parties to the merger or acquisition prove to the National Competition Committee that:
a) the merger has improved or will improve the performance of the national economy in a way that outweighs the negative effects of the merger or acquisition on market competition;
b) the said performance would not be achieved without the merger or acquisition.

Article 18.- Enterprises intending to engage in a merger or an acquisition transaction and whose joint turnover and those of affiliated enterprises taken separately exceed the ceiling set by order of the Minister in charge of competition on the proposal of the National Competition Committee must declare their intention to merge to the said Committee and may carry out their transaction only after a period of three (03) months with effect from the date of reception of the declaration by the committee.

Article 19.- (1) Where in the course of the three (03) months referred to in Article 18 above, the National Competition Committee is unable to give a final ruling on the declaration for want of information which must be solicited within the thirty (30) days following the date of declaration, it shall notify the enterprises declaring the merger or acquisition, of its provisional ruling. It shall behove the enterprises to comply with the provisional ruling which shall not be in effect beyond 6 (six) months from the date of declaration of the merger or acquisition to the Committee. Upon expiry of this period, the fusion or merger shall be considered authorized.
(2) The request for supplementary information referred to in paragraph 1 above must be given consideration within the 30 (thirty) days following notification of the enterprises concerned.

Article 20.- A case of merger or acquisition which seriously undermines competition may be referred to the National Competition Committee only if it has been in existence for less than 24 (twenty-four) months.

PART III
NATIONAL COMPETITION COMMITTEE

Article 21.- A National Competition Committee is hereby set up. The composition and functioning of the Committee shall be defined by statutory instruments.

Article 22.- The National Competition Committee shall be an ancillary organ of the ministry in charge of competition. It shall:

- examine and give an opinion on all matters relating to competition policy in Cameroon, especially on draft legal and statutory instruments likely to influence competition on the domestic market;
- identify, control and, where applicable prosecute and punish anticompetitive practices defined in this law;
- provide expert opinion and the assistance necessary to make a court ruling on competition.

PART IV
OFFENCES AND PENALTIES

CHAPTER I
OFFENCES

Article 23.- The anticompetitive practices referred to in Part II above shall constitutive offences against the provisions of this law where they seriously undermine or threaten to undermine competition.

CHAPTER II
SANCTIONS

Article 24.- Offences against the provisions of this law shall result in either fines or orders to stop the offending practice and may be accompanied by a binding order and payment for damages.

Article 25.- Where the National Competition Committee established that a firm has wrongly used its dominant position, in the meaning of the provisions of Article II of this law, it shall order such a firm to stop its wrongful practices.

Article 26.- (1) Where a merger or acquisition considerably reduces competition, the National competition Committee shall either order the dissolution of the new enterprise or require that some assets or shares be relinquished to eliminate the harmful consequences on competition.
(2) Where the National Competition Committee established that a planned merger or acquisition will considerably reduce competition, it shall order the parties to the transaction to either stop it or to relinquish control over part of the assets or shares, to maintain the level of competition on the market.

Article 27.- The conclusion of agreements or arrangements such as those referred to in Article 5 of this law and any infringement to the provisions of Article 25 and 26 above shall be punished by a fine which shall be equal to 50% of the profits or to 20% of the turnover resulting from transactions carried out in Cameroon during the financial year preceding the one in which the offence was committed.

Article 28.- Where such offences are repeated, the fines stipulated in Article 27 above shall be doubled.

Article 29.- The fines referred to in Articles 27 and 28 above may be applied to offences which are not current.

Article 30.- Where an anticompetitive practice involves several enterprises the fines stipulated in Articles 27 and 28 above shall be applicable to each enterprise involved in the offence.

Article 31.- Where a fine is unpaid at the due date as stipulated in Article 44 below, a late payment fine, calculated on the basis of 1% of the original fine for each day, shall be imposed on the defaulting enterprise.

Article 32.- (1) Where an enterprise violates the provisions of Articles 25, 26, 27 and 28 above, the National Competition Committee may order the temporary closure of the offending enterprise.
(2) The temporary closure referred to in Article 32 (1) above shall involve only the production lines of the goods implicated, in the case of an enterprise with several lines of production.

Article 33.- Enterprises which suffer losses as a result of anticompetitive practices may request compensation for damages provided that they are able to show proof of links between such practices and the losses they have incurred.

PART V
PROCEDURES FOR ESTABLISHING OFFENCES AND FOR INSTITUTING LEGAL PROCEEDINGS

CHAPTER I
ESTABLISHING OFFENCES

Article 34.- The anticompetitive practices defined in the provisions of this law shall be established by a report to that effect.

Article 35.- (1) Reports shall be drawn up by members of the National Competition Committee after investigations following a complaint lodged by a natural person or a corporate body; or after investigations initiated by the members themselves.
(2) Members of the National Competition Committee shall take the oath before the court of First Instance of their place of work.
(3) They shall be bound to uphold professional secrecy in their work, except with respect to such government services as justice and judicial police.

Article 36.- Members of the National Competition Committee in carrying out investigations as provided for in Article 35 above and on presentation of the Committee identification card may:

a) request any commercial or industrial enterprise, craftsman, cooperative, agricultural concern or professional body to furnish them with any information or document necessary for the conduct of such investigation;
b) request proofs in support of the marketing conditions for the goods and services provided;
c) have free access to all premises used for industrial and commercial purposes, even where such premises belong to third parties and whether or not a judicial police officer is present; however, where such premises are private dwellings or where such visits occur outside regular working hours, the chairperson of the National Competition Committee must request the presence of a judicial police officer which shall be ordered by the President of the Court of First Instance of the area;
d) conduct hearings in which persons being heard may, if they so desire, be assisted by counsel;
e) refer documents where they deem it necessary; such documents must, however, be returned to their owners as soon as the investigation is over or the purpose of the referral is achieved.

Article 37.- (1) The report shall state the nature, the date and the place of the established offences or control carried out.
(2) The report shall state that its content was read out to the offender, that he/she was asked to sign it and that he was given a copy thereof.
(3) The report shall be exempted from stamp and registration duties.
(4) The report shall state, until proven otherwise, that the material facts therein are true.

Article 38.- A report must be drawn up following any referral of documents in accordance with the provisions of Article 37 above and a list of the referral items attached thereto.

CHAPTER II
PROSPECTION OF OFFENCES

Article 39.- The report establishing anticompetitive practices under this law shall be examined by the National Competition Committee, in order to determine whether an offence was committed and the penalties to be imposed.

Article 40.- (1) The penalties decided upon by the National Competition Committee after examination of the offences shall be notified to the offenders by post with acknowledgement of receipt or by any verifiable means

indicating that the said offenders had been served.
(2) The fines imposed shall be recovered and paid into the public treasury by a revenue collector appointed by the Minister in charge of finance as an agent of the National Competition Committee, without prejudice to payment of unpaid taxes.

Article 41.- (1) The offenders may, within a time-limit of 45 (forty-five) days following notification of the penalties, challenge the decisions of the National Competition Committee through a letter forwarded, with acknowledgement of receipt to the chairperson of the said Committee.
(2) The letter referred to in paragraph 1 above shall be accompanied by evidence to support the dismissal petition.

Article 42.- Where within a time-limit of 15 (fifteen) days from the date of reception of the letter referred to in Article 41 above, the National Competition Committee and the petitioner fail to agree over the litigious matter, the petitioner shall refer the matter to the court of First Instance where the head office of the National Competition Committee is located. The ruling of the court shall be final. In the absence of such a ruling, the decision of the National Competition Committee shall stand.

Article 43.- Where the decision of the National Competition Committee is challenged and in order to avoid a deterioration of the level of market competition, the petitioner shall be bound to observe the injunctions made to him/her by the Committee, pending the end of the law-suit.

Article 44.- Where the offender fails to pay the fine within a time-limit of 60 (sixty) days from the date he/she received the notification, the collection order issued against him/her, added to the penalty referred to in Article 31 above, shall be forwarded to the competent services for a recovery by the treasury department, or the file shall instead be forwarded to the legal department to institute criminal proceedings.

Article 45.- (1) The criminal proceedings referred to in Article 44 above shall be instituted following a complaint lodged by the chairperson of the National Competition Committee with the State Counsel having jurisdiction.
(2) The rules of procedures, appeals and enforcement of judgments shall be those of ordinary law. The accused shall be summoned to appear at the next hearing and a summary ruling handed down.
(3) Payment of the fine shall end the proceedings.

PART VI
MISCELLANEOUS AND FINAL PROVISIONS

Article 46.- The proceedings of fines imposed as penalties for the various offences provided for in this law shall be paid into the Public Treasury.

Article 47.- All previous provisions repugnant to this law, in particular, those relating to competition as provided for the Law No. 90/31 of 10 August 1990 to govern commercial activity in Cameroon are hereby repealed and shall so remain.

Article 48.- This law shall be registered, and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 14 July 1998

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

LAW No. 2010/021 OF 21 DECEMBER 2010
To govern electronic commerce in Cameroon

The Parliament deliberated and adopted, the President of the Republic hereby enacts the law set out below:

PART I
GENERAL PROVISIONS

ARTICLE 1.- This law governs electronic commerce in Cameroon.

ARTICLE 2.- For the purposes of this law and its implementing instruments, the following terms shall mean:
Commercial activity: Any activity for the production and exchange of goods and services carried out using electronic or material media, by any natural person or corporate body in accordance with the provisions of the laws, regulations and conventions governing trade;
Certification authority: The body entrusted with the mission of generating and allocating public and private electronic keys and certificates;
Digital certificate: An electronic document protected by the electronic signature of the person who issued it and which attests, upon verification, to the authenticity of its content;
Qualified electronic Certificate: An electronic certificate issued by an authorized certification structure;
Client: Any natural person or corporate body using electronic means to conduct business with a trader;
Electronic Commerce: A commercial activity whereby a person uses electronic means to supply or ensures the supply of goods or services;
Commercial Communication: Any form of communication intended to directly or indirectly promote the goods, services or image of a company, an organization or an individual having a commercial, industrial, artisanal activity or engaged in a regulated profession;
Consumer: Any natural person or corporate body benefiting from the services or using commercial products to satisfy his/her personal needs or those of his/her dependants;
Electronic Mail: Any text, voice, audio or video message sent through a communication network, stored in a server of the network or in the terminal equipment of the recipient until the latter retrieves it;
Service recipient: Any natural person or corporate body who, for professional purposes or otherwise, uses electronic means, in particular, to search for information or make it accessible;
Electronic signature generating system: All the equipment and/or private encrypting software approved by a competent authority, intended for the creation of electronic signatures;
Electronic signature verification system: All the equipment and/or public encrypting software authorized by a competent authority, which a certification authority uses to ascertain an electronic signature.
Electronic Document: All the data stored or saved in the memory of any media by a computer system or similar mechanism and which may be read or seen by a person or such a system or mechanism. This shall also include bill-posting and print-outs or any other such data;
Data relating to the creation of signatures: Unique data such as codes or private cryptographic keys, which the signatory uses to generate an electronic signature;
Electronic Correspondence: Exchanges conducted through electronic documents;
Electronic Data Interchange (EDI): Electronic transmission of information from computer to computer according to agreed standard rules for structuring information;
Data Message: Information created, sent, received or stored using electronic, optical or analog means, in particular, but not exclusively, the electronic data interchange (EDI). electronic messaging, telegraphy, telex and telecopy;
Electronic means of payment: Means enabling its holder to carry out distance payments through telecommunications networks;

Electronic signature product: Any material product, software or specific element of the said product, intended to be used by a certification service provider to deliver electronic signature services, or intended to be used in creating or verifying electronic signatures;
Commercial Advertising: Information published using various media to make a product or service known, with a view to inducing the public to buy or use it;
Electronic Signatory: The person who owns a signature generating device and who acts either in his personal name or as a representative of a natural person or corporate body;
Electronic Signature: Signature obtained by an asymmetrical encryption algorithm that helps to authenticate the sender of a message and verify the integrity thereof;
Information System: Any isolated device or group of interconnected or linked devices, which ensure or one or more of whose elements ensure automated data processing according to a programme.

PART II
PRINCIPLES GOVERNING THE EXERCICE OF ELECTRONIC COMMERCE-RELATED ACTIVITIES

CHAPTER I
RESTRICTIONS AND EXCEPTIONS

ARTICLE 3.- (1) The exercise of electronic commerce shall be free, except:
- legally authorized money games, betting and lotteries;
- activities concerning legal representation and aid; - activities carried out by public notaries.

(2) The exercise of electronic commerce shall be subject to compliance with the provisions relating to:
- conditions for setting up and operating an insurance company, as provided for under relevant international and national instruments;
- anti-trust practices and economic concentration;
- the prohibition or authorization of unsolicited advertising sent by electronic mail;
- the Customs Code of the Central African Economic and Monetary Community;
- the General Tax Code;
- rights protected by intellectual property laws and regulations.

ARTICLE 4.- Under the conditions laid down by regulation, the administrative authority may on a case by case basis, take restrictive measures on the free exercise of electronic commerce activities in case of disturbance or serious and great risk of undermining public order and security, the protection of minors, public health, defence of national interest or the protection of natural persons.

CHAPTER II
ELECTRONIC ADVERTISING

ARTICLE 5.- (1) Any advertisement that is accessible through an online service shall clearly identify:
- the natural person or corporate body for whom the advertisement is made;
- the promotional offers such as discounts, premiums or gifts, as well as competitions or promotional games, the conditions for participation of which shall be easily accessible, precise and unambiguous.

(2) The provisions of Article 1 shall apply without prejudice to the provisions that punish misleading advertising.

ARTICLE 6.- Unsolicited advertising material made by a service provider by electronic mail shall be clearly and unequivocally identified once the recipient receives it.

ARTICLE 7.- (1) It shall be forbidden to engage in direct prospecting through a call processor, fax machine or an electronic mail using the address, in any form whatsoever, of a natural person or corporate body that has not expressed prior consent to receive direct prospecting by such means.
(2) Direct prospecting shall mean sending any message intended to directly or indirectly promote goods, services or the image of a person selling goods or providing services.

ARTICLE 8.- (1) Members of regulated professions shall be authorized to use advertising in the exercise of their activities, subject to compliance with professional rules of independence, dignity and honour of the profession as well as confidentiality and loyalty to customers and the other members of the profession.
(2) Professional organizations and associations shall prepare the codes of conduct to specify the information which may be provided for advertising purposes in compliance with the rules referred to in paragraph I above.

CHAPTER III
CONTRACTS SIGNED BY ELECTRONIC MEANS

ARTICLE 9.- The signing of contracts by electronic means shall be allowed subject to the conditions laid down by the laws and regulations in force.

ARTICLE 10.- The regime of written contracts shall apply to electronic contracts in terms of consent, their legal effect, validity and implementation, except for the following contracts:
- contracts which create or transfer rights over immovable property, except for renting rights;
- contracts for which the law requires the intervention of courts, public authorities or professions exercising public authority;
- surety and guarantee contracts produced by persons acting for purposes not coming under their professional or commercial activity;
- contracts governed by family law and succession law.

ARTICLE 11.- (1) Bids made electronically concerning the supply of goods and services shall be accompanied by the contractual conditions applicable thereto such that they can be stored and reproduced. Without prejudice to the conditions of validity mentioned in the said bids, the authors of the bids shall remain bound as long as remaining accessible online is their own doing.
(2) The bids referred to in Article 11(1) above shall clearly specify:
- the various steps to follow in concluding an electronic contract;
- the technical means that helps the user to spot any errors made in keying in data and to correct them before concluding the contract;
- the proposed language(s) for concluding the contract;
- in case of archiving the contract, the conditions for such archiving by the author of the bid and the conditions for accessing the contracts in the archives;
- the means for electronically consulting the professional and commercial rules which the author of the bid undertakes, where necessary, to abide by.

(3) The general contractual terms and conditions must be provided to the recipient such that it can keep and reproduce them.
(4) Sub-articles 1 and 2 of this Article above shall not apply to contracts signed exclusively through the exchange of electronic mail or though equivalent individual messages. There may also be exceptions to the provisions of the said sub-articles in agreements signed between professionals.

ARTICLE 12.- (1) A contract may be deemed to be validly concluded only if the recipient of the bid previously had the possibility of verifying the details and total price of its order, and correcting any errors before confirming the bid to express acceptance.
(2) The author of the bid shall, within a period of no more than five (5) days, acknowledge online receipt of the order addressed to it.
(3) The order, confirmation of acceptance of the bid and acknowledgement of receipt shall be deemed to have been received when the parties to which they are addressed can access them.
(4) Sub-articles 1 and 2 above shall not apply to contracts concluded exclusively through the exchange of electronic mail or through equivalent individual messages. There may also be exceptions to the provisions of the said sub-articles in agreements signed between professionals.

ARTICLE 13.- (1) Where a paper document is required for the validity of a legal act, it may be issued and kept in an electronic form under the conditions stipulated in Articles 1317 and seq. of the Civil Code, relating to written proof.
(2) Where a handwritten note is required, even by the person making the undertaking, the latter may append

the note electronically where the conditions for appending the note are such as to guarantee that it can be done solely by such person, except for the provisions of paragraph 1 above for:

- private agreements relating to family law and succession law;
- private agreements relating to personal or real sureties, civil or commercial, except where they are signed by an individual for the purposes of its profession.

ARTICLE 14.- Where the contract is concluded electronically and concerns an amount equal to or exceeding that fixed by regulation, the professional contracting party shall keep the ascertaining paper version for a period equally specified by regulation and ensure access thereto at all times by its contracting party if the latter so requests.

CHAPTER IV
ELECTRONIC COMMERCIAL TRANSACTIONS

ARTICLE 15.- (1) Prior to the conclusion of a contract, the seller shall be bound, during electronic commercial transactions, to provide the consumer with the following information in a clear and intelligible manner:

- the identity, address and telephone number of the seller or service provider;
- a complete description of the steps for the conduct of the transaction;
- the nature, characteristic and price of the product;
- the cost of delivery and, where applicable, the insurance rates of the product and the required taxes;
- the duration of validation of the supply of the product at fixed prices;
- the conditions of commercial guarantees and after sales service;
- the payment conditions and procedures and where applicable, the proposed credit conditions;
- the conditions and deadlines for delivery, execution of the contract and the consequences of failure to honour the commitments;
- the possibility of revocation and its timeframe;
- the procedure for confirming the order;
- the procedure for returning the product, change of product or refund;
- the cost of using telecommunication means where they are assessed using a reference other than the applicable rate;
- the conditions for terminating the contract where it is signed for an unspecified period or for a period of over 1 (one) year;
- the minimum contract period for contracts relating to long-term or periodic supply of a product or service.

(2) The information under sub-article 1 above must be provided electronically and put at the disposal of the consumer for consultation at all stages of the transaction.

ARTICLE 16.- (1) It shall be prohibited for the seller to deliver a product not ordered by the consumer where it is accompanied by a request for payment.

(2) In case of delivery of a product not ordered by the consumer, the latter may not be requested to pay its price or the cost of its delivery.

(3) The cost of returning products delivered without any order shall be borne by the seller.

ARTICLE 17.- Before concluding a contract, the seller shall allow the consumer to make a final statement of all his/her choices, confirm or modify the order as he/she may desire and consult the electronic certificate relating to its signing.

ARTICLE 18.- Unless otherwise agreed by the parties, the contract shall be concluded at the address of the seller and on the date of acceptance of the order by the latter through an electronic document signed and addressed to the consumer.

ARTICLE 19.- The seller shall have a period of ten (10) days with effect from the date of signature of the contract to provide the consumer, at the request of the latter, with a paper or electronic document containing all the information relating to the sales operation.

ARTICLE 20.- (1) Subject to the provisions of section 15 above, the consumer may revoke its order within a period of fifteen (15) days:
- for goods, with effect from the day following the date the consumer receives them;
- for services, with effect from the date of conclusion of the contract.

(2) The revocation notice shall be transmitted electronically or by any other relevant means.
(3) Where the goods have not been damaged by the consumer, the seller shall be bound to refund the amount received within fifteen (15) days from the date of return of the goods or the revocation of the service.
(4) The consumer shall bear the cost of returning the goods.

ARTICLE 21.- Subject to payment of damages to the consumer, the latter may, within fifteen (15) days of the date of delivery, return the product as it is where it does not meet the conditions of the order or where the seller has failed to deliver on schedule. In such a case, the seller must refund the amounts received to the consumer within fifteen (15) consecutive days following the date of return of the product.

ARTICLE 22.- Subject to Article 15 of this law and except in cases where the sales contract or the goods and services arising there from may contain obvious or hidden defects, the consumer may not renounce the order where it:
- requests the service to be delivered prior to the expiry of the deadline for revocation and the seller acted accordingly;
- receives products packaged accordingly to personalized deteriorated or expired due to the expiry of the validity periods;
- detects delivered or downloaded audio or video recordings or computer software;
- buys newspapers and magazines.

ARTICLE 23.- Where the sales operation is wholly or partially covered by a loan granted to the consumer by the seller or by a third party under a contract concluded between the seller and the third party, revocation by the consumer shall be tantamount to termination, without penalty, of the loan agreement.

ARTICLE 24.- Except in cases of improper use, the seller shall bear, in case of sale after testing, the risks to which the product may be exposed and this, up to the end of the testing period of the product. All disclaimer clauses repugnant to the provisions of this article shall be null and void.

ARTICLE 25.- (1) Where the product or service ordered is unavailable, the seller shall inform the customer or consumer at least 24 (twenty-four) hours before the delivery date set in the purchase or service contract. Where applicable, the seller or service provider shall refund to the customer the total amounts received for the delivery of the product or provision of the service.
(2) In case of force majeure, the contract shall be terminated where the seller fails to honour its commitments and the consumer shall be reimbursed all amounts paid, without prejudice to damages.

ARTICLE 26.- the seller must prove the existence of prior information, confirmation of the information listed in Article 15 above, compliance with timeframes and the consent of the consumer. Any agreement repugnant hereto shall be null and void.

ARTICLE 27.- Payment operations may be carried out in public services electronically under the conditions laid down by the laws and regulations in force.

ARTICLE 28.- (1) The holder of the electronic means of payment shall notify the issuer of the loss or theft of the said means or instruments used to operate it, as well as any fraudulent use it is aware of.
(2) The issuer of an electronic means of payment shall include the appropriate means for such notification in the contract concluded with its holder.

ARTICLE 29.- (1) Cases of fraud notwithstanding, the holder of the electronic means of payment shall:
- until he/she notifies the issuer, bear responsibility for the loss or theft of the means of payment or the fraudulent use thereof by a third party;
- not be held responsible for the use of the electronic means of payment after notifying the issuer.

(2) The use of the electronic means of payment without presentation of the said means of payment and identification by electronic means shall not commit its holder.

PART III
RESPONSIBILITY OF SERVICE PROVIDERS AND INTERMEDIARIES

CHAPTER I
OBLIGATION TO INFORM

ARTICLE 30.- (1) Without prejudice to other obligations to inform provided for by the laws and regulations in force, any person operating as a service provider in the domain of electronic commerce shall be bound to ensure that the end-users of the said service and the authorities have easy, direct and permanent access to the following minimum information:

- in case of a natural person, his/her full name and, in case of a corporate body, its company name, physical address, email address and its telephone number;
- where it is subject to the formalities for registration in the trade and personal property credit register, its registration number, its registered capital and head office address;
- where it is subject to the value added tax and identified by an individual number in keeping with Book I of the General Tax Code, its taxpayer's number;
- where its activity is subject to an authorization regime, the name and address of the authority that issued the authorization;
- where he/she is a member of a regulated profession, reference to the applicable professional rules, his/her professional title, the name and order or the professional organization to which he/she belongs.

(2) The obligations to inform and forward the contractual conditions referred to in Aricle 11 and Paragraph 1 above shall be fulfilled electronically in accordance with the conditions laid down by regulation.

ARTICLE 31.- (1) Subject to the conditions for setting rates and taxes under the laws and regulations in force, any person operating as a service provider in the domain of electronic commerce shall even in the absence of an offer of contract, as long as he/she indicates a price, do so clearly and unequivocally and, in particular, where the delivery taxes and fees are included.

ARTICLE 32.- Every service provider shall be bound to store and keep data relating to any commercial transaction carried out by electronic means in accordance with the laws and regulations in force.

CHAPITRE II
STORAGE, CONSERVATION AND TRANSMISSION OF DATA

ARTICLE 33.- Any natural person or corporate body engaged in automatic, intermediate and temporary storage for the sole purpose of making subsequent transmission of contents more efficiently shall not be criminally or vicariously liable for such contents, except in the following cases:

- it has modified the contents, failed to keep to their conditions for access and the usual rules for updating them or has obstructed the authorized and ordinary use of the technology used to obtain data;
- it has failed to act promptly to remove the contents he/she stored or make access thereto impossible, once it effectively became aware either of the fact that the contents transmitted initially have been removed from the network or due to the fact that it has become impossible to access the contents transmitted initially, either on account of the judicial authorities having ordered removal from the network of the contents transmitted initially or denial of access thereto.

ARTICLE 34.- (1) The electronic document shall be stored on an electronic medium making it possible to:

- consult its content throughout its validity period;
- keep it in its final form in order to ensure the integrity of its content, conserve the information relating to its provenance and destination as well as the date and place of its issuance or reception.

(2) The preserved electronic document as well as that of the paper document shall be both authentic.

(3) The issuer shall undertake to keep the electronic document in the format in which it was issued. The recipient shall undertake to keep the electronic document in the format in which it is received.

PART IV
SECURING AND AUTHENTICATION OF DATA AND INFORMATION

CHAPTER I
ELECTRONIC CERTIFICATE AND SIGNATURE

ARTICLE 35.- (1) Any natural person or corporate body shall be authorized to use the electronic certificate and signature in electronic commerce under the conditions laid down by a separate instrument.
(2) Official documents may be authenticated in government services using electronic certificates and signatures under the conditions laid down bya separate instrument.

ARTICLE 36.- Anyone using an electronic signature device shall:
- take the precautionary measures set forth in the instruments in force to avoid any unauthorized use of the personal equipment concerning its signature;
- report any unauthorized use of its signature to the certification authority;
- ensure the accuracy of all the information it provides to the said authority;
- ensure the veracity of all the information it provides to any person whom it has asked to rely on its signature.

ARTICLE 37.- In case of violation of the provisions of Article 36 above, the holder of the signature shall be held responsible for the tort caused to another person.

ARTICLE 38.- The conditions for exercising the activities of certification authority shall be laid down in a separate instrument.

ARTICLE 39.- The certification authority shall keep an electronic register of certificates at the disposal of users.

CHAPTER II
EQUIVALENCES

ARTICLE 40.- (1) The certificates and signatures issued by a certification authority based abroad shall have the same value as those issued by a certification authority based in Cameroon, where such an authority is recognized under a mutual recognition agreement signed by the competent authorities of the States concerned.
(2) The conditions for the legal recognition of electronic certificates and signatures issued from third countries shall be defined in a separate instrument by default.

PART V
ESTABLISHING OFFENCES AND SANCTIONS

ARTICLE 41.- (1) All violations of the provisions of this law and its implementing instruments shall be established by criminal investigation officers with general jurisdiction, sworn officers of the Ministries in charge of telecommunications and advertising, the electronic regulation and certification authority, as well as those of economic control, in accordance with the conditions set forth in the laws and regulations in force.
(2) Reports establishing offences, as well as objects and documents seized shall be transmitted to the State Counsel with territorial jurisdiction.

ARTICLE 42.- Whoever illegally uses, the electronic signature of another shall be punished with the penalties provided in Article 219 of the Penal Code.

ARTICLE 43.- Whoever is found guilty of breaching the provisions of Articles 15, 17, 19, 21, 24 and 25 of this law shall be punished with a fine ranging from 250,000 to 2,500,000 FCFA.

ARTICLE 44.- Whoever takes advantage of the weakness or ignorance of another to make him/her enter, through an electronic sale, into commitments in cash or on credit in any form whatsoever, where it is proven that such a person is not capable of appreciating the extent of the commitments he/she is making or detecting

the trick or tactics being used to convince him/her to subscribe thereto or that he/she was under duress shall be punished with the penalties set forth in Article 349 of the Penal Code.

ARTICLE 45.- The certification authority and/or its officers who disclose, cause or participate in the disclosure of information entrusted to them within the framework of the exercise of their activities shall be punished with the penalties provided in Article 310 of the Penal Code, except for those whose publication or communication are authorized by the holder of the certificate either in writing, by electronic means or in the cases provided by the law in force.

ARTICLE 46.- Any violation of the provisions of Articles 9 and 10 of this law shall be punished with the penalties set forth in Articles 37 and 38 of Law No. 90/031 of 10 August 1990 governing commercial activity.

PART VI
TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 47.- Any natural person or corporate body engaged in electronic commerce on the date of enactment of this law shall have a period of six (6) months within which to comply with these provisions.

ARTICLE 48.- This law shall be registered, published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, on 21 December 2010

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

FRAMEWORK-LAW No. 2011/012 OF 06 MAY 2011
On consumer protection in Cameroon

The National Assembly deliberated and adopted,
The President of the Republic hereby enacts the law set out below:

CHAPTER I
GENERAL PROVISIONS

Article 1.- (1) This law lays down the general framework of consumer protection.
(2) It shall apply to all transactions relating to the supply, distribution, sale and exchange of technology, goods and services relating to consumer protection.
(3) The transactions referred to in Subparagraph (2) above shall concern notably the health, pharmacy, food, water, housing, education, financial services, banking, transport, energy, and communication sectors.

Article 2.- The following definitions shall apply under this law and its implementation instruments:
- **consumer**: any person who uses products to meet his own needs and those of his dependents rather than to resell, process or use them within the context of his profession, or any person enjoying the services provided;
- **restrictive business practice**: any business practice that requires the consumer to buy, lease or purchase any technology, good or service as a condition or precondition to buy, rent or obtain any other technology, good or service;
- **unfair business practice**: any business practice that, within the framework of the promotion of the sale, use or supply of a good, service or technology, adopts a method, including an oral or written declaration or a visual representation that compromises fairness in a transaction;
- **abusive clause**: any clause that is or that seems to be imposed on the consumer by a supplier or service provider having a better economic situation compared to the consumer, giving the former an unfair, unreasonable or excessive advantage over the latter;
- **consumer contract**: a contract, excluding the lease or employment contract, concluded between a consumer and a supplier of a good or service provider for the sale or supply of a good, technology or service.

CHAPTER II
CONSUMER PROTECTION PRINCIPLES

Article 3.- The national consumer protection policy shall be based on treaties, laws and regulations in force, in particular the following principles:
a) the principle of protection according to which consumers have the right to the preservation of life, health, safety and environment in the consumption of technology, goods or services;
b) the principle of satisfaction according to which consumers have the right to satisfy their basic or essential needs in the health, food, water, housing, education, energy, transport, communication and any other domains mentioned under this law;
c) the principle of information according to which consumers have the right to access to information to enable them to make an informed choice during any transaction concerning the supply of technology, goods and services;
d) the principle of equity according to which consumers have the right to fair, non-discriminatory treatment by suppliers of technology, goods and services;
e) the principle of redress according to which consumers have the right to full compensation for the wrongs

or losses incurred which, according to this law or other regulations, shall be attributable to suppliers or providers.

f) the principle of participation according to which consumers have the right and freedom to form voluntary autonomous and independent consumer associations or organizations to promote and protect or participate in the promotion and protection of the rights provided for under this law.

CHAPTER III
PROTECTION OF CONSUMERS' ECONOMIC AND TECHNOLOGICAL INTERESTS

Article 4.- Unfair, restrictive or anticompetitive business practices, as well as abusive terms in consumer contracts shall be regulated and monitored and, as much as possible, prohibited in all contracts and transactions governed by this law.

Article 5.- (1) Contractual clauses that:

- exempt, exclude, reduce or limit the liability of suppliers or service providers for defects, deficiencies or shortages of any kind in technology, the good supplied or service rendered;
- imply the loss of rights and freedoms guaranteed consumers or limit the exercise thereof;
- create unjust, unreasonable, unfair or repressive contractual terms or conditions, or that transfer liability for defects, deficiencies or shortages not immediately obvious to the consumer;
- impose a unilateral arbitration clause shall be void.

(2) A competent court may automatically declare the contractual terms referred to in paragraph (1) above void.

Article 6.- (1) Standard agreements or adherence contracts must be drafted in English and French in characters that are visible and legible at first glance by anyone with normal vision. They must be regulated and controlled to provide legal protection to the consumer.

(2) The agreement or contracts referred to in paragraph (1) above should also contain terms that are clear and easy for the public to understand, without making reference to other contracts, rules, practices, instruments and documents unknown to the public or not put at its disposal before or during the execution of such contracts.

(3) Parties to an agreement or contract shall each be given and shall keep a copy of the instruments or documents containing or providing evidence for the transaction.

Article 7.- The consumer shall have the right to withdraw, within a period not exceeding 14 (fourteen) days with effect from the date of signature or execution of a contract; from receiving a technology, good or service when the contract is concluded, irrespective of the venue, on the initiative of the supplier, vendor or his employees, agents or servants.

Article 8.- (1) Restrictive and unfair trade practices that may impinge on consumers' rights, notably accords, mergers, abuse of dominant position, market sharing, false, deceptive or abusive advertising, shall be strictly prohibited.

(2) Business practices that limit or may limit a competitor's access to the market shall be prohibited.

Article 9.- Concerning the granting of loans to consumers for the supply of technology, goods and services, the supplier or service provider must inform the consumer in writing about the cash price, interest amount, annual interest rate, interest rate on arrears, number of instalments, frequency and periodicity of such instalments and total amount payable.

Article 10.- (1) The vendor, supplier or provider of a technology should provide or deliver to the consumer a product, technology, good or service that meets the minimum requirements of sustainability, utilization and reliability and guarantees his legitimate satisfaction.

(2) The technology, good or service provided or delivered must be accompanied by a manual, receipt or any other document containing, inter alia, information on technical features, mode of operation, utilization and warranty.

(3) An after-sales service must be provided to consumers for transactions relating to durables.

Article 11.- Where defective, used, reconditioned or repaired goods are sold to consumers, mention must be expressly, clearly and distinctly made thereof on invoices, receipts, vouchers or accounting documents.

Article 12.- (1) The sale or purchase of a technology, good or service that is conditional on the purchase by the same consumer of another technology, good or service shall be prohibited and punishable.
(2) The consumer should not be deprived of the opportunity to acquire a technology, good or service, except where a specific instrument bar him from doing so.

Article 13.- Each technology, good or service supplier or provider must provide the consumer with correct, adequate, clear and legible information, in English and French, concerning the goods and services offered to enable him/her make appropriate and rational choices before concluding a contract.

Article 14.- Any advertising intended for consumers must comply with laws and regulations governing the display of prices and conditions of sale.

CHAPTER IV
PHYSICAL SAFETY AND ENVIRONMENTAL PROTECTION

Article 15.- The competent authorities and consumer groups should establish and strengthen appropriate institutional frameworks to ensure that activities relating to the management, collection and disposal of hazardous or toxic waste, water management and wastewater treatment comply with the laws and regulations in force governing environmental protection.

Article 16.- (1) Any locally produced or imported technology or good must be inspected, tested and measured by the relevant authorities to ensure that it is safe for consumption and complies with national and international environmental, health and safety standards.
(2) The sale of a technology or good that has not initially complied with national environmental, health and safety standards shall be prohibited.
(3) Any technology or product that constitutes a potential hazard should, upon ascertaining that state, be immediately withdrawn from the market and returned for testing at the supplier's or vendor's expense, without prejudice to other penalties provided for by the laws and regulations in force.

Article 17.- Standards for food, pharmaceutical products and drugs shall be compulsory and comply with those laid down by relevant international organizations and cover chemical and biological safety.

Article 18.- (1) Any consumer good or service posing a risk to human and animal health and the environment must include a user manual in English and French, comprising readily visible warnings to allow normal use under maximum security conditions.
(2) The producer or supplier of a technology, good or service supplied or sold to a consumer shall be liable for damage caused by such technology, good or service, where it is established that the consumer was not adequately informed about the risk posed by the technology, good or service.

Article 19.- (1) The sale of unpackaged foods, with the exception of raw products, shall be prohibited.
(2) The packaging of any product sold must comply with the standard on the labelling of pre-packaged foods in Cameroon.

Article 20.- The granting of patents, trademarks, copyrights, brands, licenses, permits or any other document issued by the competent authorities to producers or suppliers of goods, technology or services shall not exempt beneficiaries thereof from liability for harm effectively caused to customers attributable to them or others in the hazardous goods distribution chain.

CHAPTER V
CONSUMER EDUCATION AND PARTICIPATION IN DECISION-MAKING

Article 21. - Consumers shall have the right and freedom to form voluntary, autonomous and independent consumer associations or organizations with well-defined domains and areas of intervention. They may participate in public decision-making structures.

Article 22.- Consumer associations shall be apolitical and non-profit making groups. Within the framework of their activities, they must refrain from:
- promoting commercial and/or political activities;
- inserting commercial advertisements in their publications;
- making selective commercial use of information and advice intended for consumers.

Article 23.- The objectives of consumer associations shall be, among others, to:
- promote and protect consumers' interests;
- represent the individual or collective interests of consumers before the State or public and private sector suppliers and providers;
- collect and process objective information on goods and services available on the market;
- implement consumer training and education programmes.

Article 24.- Consumer education and information programmes shall focus notably on:
- health;
- nutrition and prevention of water-and food-borne diseases, as well as food spoilage;
- food sanitation;
- environmental health;
- safety and hazards associated with products;
- standards, particularly those relating to product labelling;
- information on weights and measures, prices and quality, availability of goods and services and environmental conservation;
- laws and regulations governing consumption, notably concerning compensation for harm caused by technologies, goods and services provided.

Article 25.- (1) A National Consumer Council placed under the Minister in charge of consumption is hereby established.

(2) The National Consumer Council shall be an advisory body with the duty to:
- promote the exchange of ideas between public authorities, consumers' and employers' organizations;
- foster dialogue between persons defending consumers' interests and delegates of employers' organizations on issues relating to consumer protection;
- give opinions on all draft laws and regulations likely to affect the consumption of goods and services or consumer protection;
- examine all issues relating to the consumption of goods and services or consumer protection submitted to it by the Government.

(3) The organization and functioning of the National Consumer Council provided for under Article 25 (1) above shall be laid down by regulation.

CHAPTER VI
COMPENSATION FOR DAMAGE SUFFERED BY CONSUMERS

Article 26.- (1) The defence of the interests of a consumer or group of consumers in court or before any arbitration body may be individual or collective.

(2) Individual defence shall be the one carried out by the aggrieved consumer or his successors.

(3) Collective defence shall be conducted by a consumers' organization or non-governmental organization involved in consumer protection.

Article 27.- (1) The injured consumer or his successor, or one of the structures referred to in Article 26 (3) above shall lodge an action before the competent courts or arbitration bodies to defend the interests of consumers.
(2) The action referred to in paragraph (1) above may be preventive or remedial.
(3) Preventive action shall be that which seeks to remove the threat of infringement of consumers' rights. It may be lodged only by a consumers' association or a non-governmental organization.
(4) Remedial action shall be that which stems from the infringement of the rights of a consumer or group of consumers.

Article 28.- During any trial proceedings concerning consumer protection, the burden of evidence to the contrary of the allegations shall lie with the vendor, supplier or service provider.

Article 29.- Decisions taken within the framework of proceedings instituted by a consumers' organization or non-governmental organization shall have all their beneficial effects on all consumers and may be invoked by a consumer or group of consumers to obtain compensation for the loss suffered.

Article 30.- (1) As part of consumer protection, an appeals committee responsible for public arbitration services in disputes related to consumer protection is hereby established in each subdivision.
(2) The organization and functioning of the committees referred to in paragraph (1) above shall be laid down by regulation.

Article 31.- (1) The consumer may request the cancellation or revision of the contract, without prejudice to the right to compensation for the damage suffered.
(2) The request for cancellation shall be based on hidden defects or faults affecting the quality of the technology, good or service under contract.
(3) The consumer may request the replacement or repair of the technology, good or service at the expense of the vendor, supplier or service provider, without prejudice to his right to compensation for the damage suffered.
(4) During the repair period which shall not exceed 15 (fifteen) days with effect from the date of return of the good or discovery of a defective technology or service, the vendor, supplier or service provider must provide the consumer with an alternative good, technology or service in order not to inconvenience him/her. Failure or inability to supply shall give rise to damages negotiated with the consumer.
(5) Under the terms of the negotiation provided for in paragraph (4) above, the unsatisfied consumer shall have the right to appeal.

CHAPTER VII
PENAL PROVISONS

Article 32.- (1) Whoever gives false information on the quality of technology, goods or services supplied to a consumer shall be punished with imprisonment of from six months to two years or with a fine of from 200,000 (two hundred thousand) to 1000,000 (one million) francs, or with both such imprisonment and fine.
(2) Whoever gives false information to the competent authorities or to any consumer structure, body or association during an investigation under this law shall be punished with the penalties provided for in paragraph (1) above.
(3) The consumer may request the replacement or repair of the technology, good or service at the expense of the vendor, supplier or service provider, without prejudice to his right to compensation for the damage suffered.
(4) During the repair period which shall not exceed 15 (fifteen) days with effect from the date of return of the good or discovery of a defective technology or service, the vendor, supplier or service provider must provide the consumer with an alternative good, technology or service in order not to inconvenience him. Failure or inability to supply shall give rise to damages negotiated with the consumer.
(5) Under the terms of the negotiation provided for in paragraph (4) above, the unsatisfied consumer shall have the right to appeal.

Article 33.- Corporate bodies may, without prejudice to the criminal liability of the executives or employees of sales, supply or service, technology or commodity companies, be sentenced to double the fines provided for in Article 32 above, if their executives or employees committed offences during or in the exercise of their functions within the structures.

Article 34.- (1) Where one of the offences referred to in this chapter is prejudicial to a consumer, the amount of compensation for the damage suffered shall be doubled, plus legal interest with effect from the date of receipt or loss.
(2) In such case, the temporary execution of the reimbursement of the principal shall be imposed irrespective of any appeal.

Article 35.- Any clause exempting, limiting liability or reducing the scope of guarantees contained in the contract for sales, supply of goods or technology or delivery of a service to a consumer shall be null and void.

Article 36.- Corporate bodies whose executives are found guilty of offences under this law may be subject to additional penalties laid down by the Penal Code.

CHAPTER VIII
MISCELLANEOUS AND FINAL PROVISIONS

Article 37.- Consumer contracts shall be interpreted to preserve the rights of consumers.

Article 38.- The conditions for applying this law shall, as and when necessary, be laid down by regulation.

Article 39.- This law, which repeals all previous provisions repugnant thereto, shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaoundé, 06 May 2011

Paul BIYA

PRESIDENT OF THE REPUBLIC

LAW No. 2015/007 OF 20 APRIL 2015
To govern audiovisual activity in Cameroon

The Parliament deliberated and adopted, the President of the Republic hereby enacts the law set out below:

PART I
GENERAL PROVISIONS

CHAPTER I
PURPOSE, SCOPE AND DEFINITIONS

SECTION I
PURPOSE AND SCOPE

ARTICLE 1.- This law governs audiovisual activities in Cameroon. It is designed, in particular, to:
- define the legal systems applicable to audiovisual activities;
- determine the rights and obligations of operators in the audiovisual sector;
- determine the conditions for providing audiovisual services.

ARTICLE 2.- This law shall apply to activities and services relating to the production, programming, publishing and provision of audiovisual content without prejudice to the provisions of the law on electronic communications.

SECTION II
DEFINITIONS

ARTICLE 3.- For the purposes of the provisions of this Law and of the regulations issued for its implementation, and without prejudice to the provisions of the Law on Electronic Communications, Cybersecurity and Cybercrime, the following definitions shall apply:

1. **conditional access**: making audiovisual content available in a discriminatory manner through technological processes of encryption/decryption and/or authentication;
2. **aggregator**: provider of audiovisual services that makes several channels available to the public;
3. **audiovisual content aggregator**: a legal entity which brings together programmes from audiovisual service providers, content producers or television channels in order to put together one or more packages for broadcast to the public;
4. **self-promotion**: a message broadcast on the initiative of an audiovisual communication operator and intended to promote its own programmes or ancillary products directly derived from those programmes and designed specifically to enable the public to benefit from or participate in those programmes;
5. **broadcast channel**: the frequency space available in a multiplex for the broadcast of channels and having a predefined standard capacity in bits per second;
6. **channel**: a set of programmes arranged in a continuous flow in a specific time slot and owned by a producer;
7. **audiovisual communication**: any making available to the public or categories of the public, by means of electronic communications, of signs, signals, writing, images, sounds or messages of any nature which do not have the character of private correspondence;

8. **emergency audiovisual communication**: audiovisual service intended to inform the public in a crisis situation;
9. **mass audiovisual communication**: dissemination of audiovisual services to large and heterogeneous groups of individuals;
10. **electronic communication**: the broadcasting, transmission or reception of signs, signals, writing, images or sounds by electromagnetic means;
11. **audiovisual content**: an ordered and logical sequence of signs, sounds and still or moving images conveying a message;
12. **service distributor**: any person who enters into a contractual relationship with service publishers with a view to constituting an offer of audiovisual communication services made available to the public via an electronic communications network;
13. **producer**: any natural or legal person who owns one or more channels for which he has editorial responsibility;
14. **service producer**: any legal person governed by public or private law who has editorial responsibility for one or more audiovisual services consisting of programmes which he has produced, co-produced, commissioned to be produced, purchased or commissioned to be purchased with a view to having them broadcast;
15. **public audiovisual communication enterprises**: legal persons governed by public law with legal personality and financial autonomy, whose purpose is to provide audiovisual services to the public;
16. **ministry in charge of audiovisual communication**: administration in charge of the preparation and implementation of the Government's general policy on audiovisual communication;
17. **pull mode**: a technological process that allows large and heterogeneous groups of individuals to access freely or conditionally audiovisual content stored in an audiovisual content platform;
18. **push mode**: a technological process enabling a content platform operator to implement mass communication;
19. **multiplex**: a digital stream carried by a frequency and used to carry a number of programmes, associated services, interactive services, signalling data;
20. **satellite television operator**: a natural or legal person who provides, via satellite, audiovisual services, television channels belonging to national or international producers, to a private network of subscribers by satellite reception;
21. **cable television operator**: any natural or legal person who provides, by terrestrial broadcasting means, audiovisual services, television channels belonging to national or international producers, to a private network of subscribers;
22. **audiovisual content broadcasting operator**: any legal person governed by public or private law who has one or more audiovisual broadcasting networks;
23. **multiplex operator**: any legal person governed by public or private law having a technical platform for aggregating one or more radio or television channels into one or more multiplexes;
24. **conditional access system operator**: any natural or legal person having a conditional access system open to the public;
25. **public or private multiplexing and broadcasting operator**: any legal person governed by public or private law who owns a technical platform which makes it possible to assemble packages of free or pay channels and to broadcast them;
26. **audiovisual content delivery platform**: any technical device which, through an interface, makes it possible to provide mass communications;
27. **audiovisual content storage platforms**: a set of technical devices which allow audiovisual content to be stored for the future needs of publishers and producers;
28. **producer's or aggregator's access point**: the place where a multiplexing and broadcasting operator establishes the interface facilities;
29. **audiovisual producer**: any natural or legal person who provides the resources necessary for the production of an audiovisual work;
30. **audiovisual production**: a radio and/or television programme which the service producer designs and/or produces in-house by its own means or has designed and produced by third parties;
31. **national audiovisual production**: all audiovisual works produced by companies under Cameroonian law whose content is strongly rooted in the national social, cultural, political and economic environment;

32. **own production**: programmes designed and/or produced directly by a service producer and which cannot be constituted either by the repeated broadcasting or by the simultaneous or deferred retransmission of programmes of another service producer;
33. **audiovisual programme**: a set of audiovisual contents arranged in a continuous sequence and accompanied by opening and closing credits;
34. **advertising**: a set of processes and techniques designed to attract the attention or curiosity of a public by informing it about a good or service in order to persuade it to buy, use or adopt it;
35. **audiovisual advertising**: a message broadcast on radio or television in return for payment or for similar consideration with a view to promoting the supply of goods or services:
36. **advertising network**: any legal person acting on behalf of an advertising medium, with a view to marketing advertising space opened by the latter for the benefit of advertisers;
37. **cable broadcasting network**: technical device allowing the transport and distribution of audiovisual programmes and channels by cable;
38. **satellite broadcasting network**: technical device allowing the transport and distribution of programmes and audiovisual channels by satellite;
39. **terrestrial broadcasting network**: technical device enabling the transport and distribution of programmes and audiovisual channels by terrestrial radio;
40. **reseller**: any natural or legal person who markets products or services provided by a content operator or a network operator;
41. **audiovisual service**: provision of audiovisual content;
42. **value-added service**: products or services which are complementary to the products or services provided by audiovisual communication undertakings;
43. **universal service**: the minimum set of audiovisual services, whether paid or free of charge, of good quality, accessible to the whole population under affordable tariff conditions irrespective of geographical location;
44. **conditional access system**: a technical device which, irrespective of the mode of transmission used, makes it possible to restrict access to all or part of one or more audiovisual communication services to the public authorised to receive them;
45. **personal mobile television**: the possibility of accessing television services on a mobile basis on a permanent and unlimited basis, whether for payment or free of charge;
46. **digital terrestrial television (DTT)**: an offer of television channels, whether free or pay, broadcast in digital mode by terrestrial radio.

CHAPTER II
GENERAL PRINCIPLES

Article 4.- (1) Audiovisual communication is free.
(2) It is performed within the framework of this law and subject to the respect of the legislative and regulatory provisions in force.

Article 5.- Audiovisual activities must respect the fundamental principles, notably:
- public order and good morals;
- the requirements of national defence;
- the republican form, unity and territorial integrity of the State, as well as the democratic principles governing the Republic;
- the dignity of the human person;
- diversity of expression of thought and opinion;
- bilingualism;
- equality of citizens and non-discrimination.

Article 6.- Everyone has the right to benefit from audiovisual communication services, regardless of their geographical location on the national territory.

Article 7.- Subject to the provisions of the law governing electronic communications, the provision of audiovisual services is subject to compliance with requirements guaranteeing:

- compliance with the norms and standards in force;
- the safety of users and personnel operating audiovisual communication networks;
- the rational use of audiovisual radio frequencies;
- the interoperability of networks and terminal equipment;
- compliance with the limits on the exposure of populations to electromagnetic radiation and electromagnetic compatibility.

Article 8.- (1) Without prejudice to the provisions of the laws and regulations in force, producers shall be free to design their programmes.
(2) They shall be responsible for the content of their programmes.
(3) The content of the programmes shall not in any case:
- incite hatred, violence or discrimination against a person or a group of persons on the grounds of their origin, sex, tribe, ethnicity, race or religion;
- incite to immorality, to behaviour prejudicial to health, to the safety of persons and property or to the protection of the environment;
- carry, in any form whatsoever, false allegations, indications or presentations that are likely to mislead consumers.

Article 9.- (1) The State shall ensure the promotion of the production of national audiovisual works.
(2) The producers of audiovisual services shall be obliged in particular to:
- provide diverse and balanced information;
- present the facts objectively and without discrimination;
- promote the creation of national artistic works;
- encourage the production of national and local audiovisual works.

(3) The State shall ensure the training of personnel in audiovisual techniques. Legal persons governed by public law other than the State and legal persons governed by private law shall contribute to the training of personnel in audiovisual techniques.
(4) The State shall ensure the preservation, as a collective memory, of audiovisual goods and services.

PART II
LEGAL REGIMES APPLICABLE TO AUDIOVISUAL ACTIVITIES

CHAPTER I
GENERAL PROVISIONS

Article 10.- Audiovisual activities are subject to the following regimes:
- Concession;
- License;
- Accreditation;
- Approval.

CHAPTER II
PROVISIONS SPECIFIC TO EACH REGIME

SECTION I
CONCESSION

Article 11.- The following activities are subject to the concession regime:
- the storage and conservation of audiovisual content as a collective memory;
- multiplexing and/or broadcasting.

PARAGRAPH I
STORAGE AND CONSERVATION OF AUDIOVISUAL CONTENT

Article 12.- The activities of storage and conservation of audiovisual contents as a collective memory shall

consist of the collection of programmes from publishers, producers and any holder of works of national production, with a view to their conservation in the national audiovisual heritage.

Article 13.- (1) The activities of storage and conservation of audiovisual contents shall be the responsibility of the State.
(2) However, the State may concede to a legal person of public law the activity of storage and conservation of audiovisual contents, according to the conditions and modalities set by the laws and regulations in force.

Article 14.- The concession holder in charge of the storage and conservation of audiovisual contents as a collective memory agrees to respect the general conditions of storage and packaging of audiovisual programmes defined by the legislative and regulatory texts in force, as well as the clauses contained in the specifications drawn up for this purpose.

PARAGRAPH II
MULTIPLEXING AND/OR BROADCASTING OF AUDIOVISUAL COMMUNICATION SIGNALS

Article 15.- The activities of multiplexing and/or broadcasting of audiovisual communication signals consist of the collection of programmes and other audiovisual services from the producers of services benefiting from an appropriate operating licence, their technical grouping and their broadcasting to the various audiences.

Article 16.- (1) The activities of multiplexing and/or broadcasting of audiovisual communication signals shall be the responsibility of the State.
(2) However, one or more legal entities of public or private law may benefit from a multiplexing and/or broadcasting concession agreement, according to the terms and conditions set by the laws and regulations in force.

Article 17.- The concession holder in charge of the multiplexing and/or broadcasting of audiovisual communication signals agrees to respect the general conditions of multiplexing and/or broadcasting set by the laws and regulations in force, as well as the clauses contained in the specifications drawn up for this purpose.

Article 18.- The concession of the activity of operator of multiplexing and/or broadcasting of audiovisual communication signals shall be granted to any legal entity of public or private law in accordance with the laws and regulations in force.

Article 19.- (1) The issuance and renewal of a multiplexing and/or broadcasting of audiovisual communication signals concession agreement shall be subject to the payment of a financial consideration called respectively entry fee or renewal fee as the case may be.
(2) The amount and the terms of payment of the entry fee or the renewal fee of the concession shall be determined in the concession agreement and approved by decree of the President of the Republic.
(3) Audiovisual operators holding a concession agreement shall be subject, throughout the period of validity of their agreement, to the payment of the fees, taxes and charges set by the legislation and regulations in force.
(4) The conditions for the deployment of multiplexes and broadcasting networks for audiovisual communication signals shall be defined in the specifications attached to the agreement.
(5) The multiplexing and/or broadcasting concession agreement for audiovisual communication signals as well as the related specifications shall be signed by the Ministers in charge of electronic communications, audiovisual and finance.

Article 20.- (1) The body in charge of electronic communications regulation and the body in charge of audiovisual regulation shall approve the technical and financial offer of access to the infrastructures of the multiplexing and/or broadcasting operators of audiovisual communication signals, as well as the conditions that apply to the operators with regard to their own access to the elements of their network or their equipment.
(2) Operators of multiplexing and/or broadcasting of audiovisual communication signals shall provide access to their networks and technical facilities under objective, transparent and non-discriminatory conditions.
(3) Operators of multiplexing and/or broadcasting of audiovisual communication signals shall be obliged to

grant requests for access to their broadcasting infrastructure by holders of a licence or accreditation.
(4) Access to the infrastructure for multiplexing and/or broadcasting audiovisual communication signals shall be the subject of a private law agreement between the parties. The agreement shall specify the technical, financial and administrative conditions of access and broadcasting of programmes.

Article 21.- For the acquisition of real estate necessary for the accomplishment of their missions, which are of public utility, the concession holders may request from the competent authorities of the State, an expropriation for public utility, or the provision of state-owned land in accordance with the legislation in force.

Article 22.- (1) Interconnection and access by the multiplexing and/or broadcasting operator of audiovisual communication signals to the networks of electronic communication operators open to the public shall be subject to an agreement between the parties.
(2) The agreement shall specify the technical, financial and administrative conditions provided for by the regulations on infrastructure sharing, interconnection or access to electronic communications networks open to the public.

Article 23.- The activities of multiplexing and/or broadcasting of audiovisual communication signals shall be governed by the law on electronic communications.

SECTION II
LICENCE

Article 24.- (1) The following activities are subject to the licensing regime:
- publishing activities;
- service producer;
- aggregator;
- aggregator of audiovisual content;
- distributor of audiovisual services;
- conditional access system operator.

(2) Apart from the aspects related to the broadcasting infrastructure, the following activities shall be subject to the licensing regime established by this Law:
- producers of personal mobile television services;
- satellite television operators;
- operators of cable television;
- operators of platforms for the broadcasting of audiovisual content.

Article 25.- (1) The activities of producers and aggregators are incompatible with the activities of operators of broadcasting networks.
(2) The provisions referred to in paragraph 1 above shall not apply to operators of the public audiovisual sector.

Article 26.- Foreign satellite television operators wishing to offer audiovisual services on a paying basis shall be required to create companies under Cameroonian law and shall sign conventions to this effect, together with specifications previously submitted for validation by the body in charge of audiovisual regulation.

Article 27.- Content platform operators may only broadcast stored content if it is placed under the editorial responsibility of an audiovisual content editor holding a valid licence.

Article 28.- Encryption, decryption and authentication activities for the provision of audiovisual services shall be governed by the legislation in force on cybersecurity and cybercrime.

Article 29.- (1) The licence with specifications shall be issued by the Minister in charge of broadcasting.
(2) The modalities for issuing the licence referred to in paragraph 1 above shall be determined by regulation.

(3) The specifications referred to in paragraph 1 above shall specify the rights and obligations of the licence holder.

Article 30.- (1) Subject to compliance with the provisions of the OHADA Uniform Act on commercial companies, for any modification of the distribution of the shares of the licence holder, and/or any modification of the shares involving the entry of a new partner or shareholder, an application for approval shall be filed with the body in charge of audiovisual regulation.
(2) The body in charge of audiovisual regulation shall ensure that the modification is not such as to:
- lead to an indirect transfer of the licence granted;
- undermine the diversity of audiovisual operators through cross-shareholdings;
- unbalance the sector.

(3) Any natural or legal person who holds any fraction equal to or greater than five percent (5%) of the capital or voting rights in the general assembly of a licensed company shall be required to inform the body in charge of audiovisual regulation within one (01) month from the date of crossing this threshold.

Article 31.- (1) An audiovisual service operator already holding a licence, or a natural or legal person belonging to it, may hold, directly or indirectly, a stake in the share capital and/or voting rights of another operator holding a licence with the same corporate purpose.
(2) However, this holding may not exceed thirty per cent (30%) of the capital or voting rights, and must not under any circumstances confer control of the company in which it holds the said holding.
(3) Such participation is permitted if it does not infringe on the principle of multiple operators and if it does not lead to a dominant position.

Article 32.- An operator in the audiovisual sector who is already a licensee, a natural person or a legal entity, acting alone or in concert with other shareholders, may not control the activities of another operator who is a licensee or an authorization holder with the same corporate purpose.

Article 33.- (1) The issuance or renewal of a licence is subject to the payment of a financial contribution called "entry fee" or "renewal fee" as the case may be.
(2) The amount of the entry fee or the renewal fee and the terms of payment shall be set by a joint order of the Ministers of Finance and Audiovisual.
(3) The procedures for allocating and distributing entry and renewal fees to the various stakeholders in the sector shall be laid down by regulation.
(4) Notwithstanding the provisions of sub-article 3 above, a performance bonus deducted from the entry or renewal fee shall be paid to the staff in charge of the regulation of the audiovisual sector.
(5) The implementation terms of sub-articles 3 and 4 above shall be determined by regulation.

Article 34.- (1) Audiovisual licence holders shall be subject to the payment of an annual fee amounting to four and a half per cent (4.5%) of their turnover excluding taxes.
(2) The body responsible for audiovisual regulation shall ensure the collection and distribution of the fee referred to in sub-article 1 above.
(3) The conditions for allocation and distribution of the fee referred to in sub-article 1 above shall be determined by regulation.

SECTION III
ACCREDITATION

Article 35.- The accreditation regime applies to the production and provision of audiovisual programmes limited in time and space. It includes namely:
- the coverage of cultural, commercial or social events, festivals, exhibitions and trade fairs;
- events involving appeals to public generosity.

Article 36.- (1) The accreditation issued by the body in charge of audiovisual regulation shall determine the period of its validity. The related frequencies shall be temporarily assigned by the body in charge of electronic communications regulation, in accordance with the regulations in force.

(2) The accreditation shall specifically lay down the conditions for the provision of audiovisual communication services specific to this category of services.
(3) The accredited audiovisual communication service shall only concern the promotion of the subject of the event.

Article 37.- (1) The procedures for issuing accreditation shall be laid down by regulation.
(2) The applicant for accreditation shall be subject to the payment of fees, the rates and terms of payment of which shall be determined by regulation.

SECTION IV
APPROVAL

Article 38.- The following activities are subject to the approval regime:
- the marketing of products or services provided either by publishers or by producers;
- the installation of audiovisual content storage platforms;
- the installation and adjustment of audiovisual production equipment;
- the operation of audiovisual production resource centres;
- the marketing of production equipment and reception terminals;
- the provision of value-added services related to the digital television environment.

Article 39.- (1) The approval shall be issued by the body in charge of audiovisual regulation.
(2) The applicant for approval shall be subject to the payment of fees and charges, the amounts and methods of collection and/or payment as well as distribution of which shall be defined by regulation.

CHAPTER III
PROVISIONS COMMON TO THE VARIOUS REGIMES

SECTION I
OBLIGATIONS COMMON TO OPERATORS

Article 40.- (1) Audiovisual service producers shall be required to :
- comply with the obligations of broadcasting quotas of national audiovisual production and independent production;
- comply with the specific obligations of investment in national production in accordance with their respective specifications;
- comply with the 'Conditions of eligibility for the national package of channels defined by the body in charge of audiovisual regulation;
- put in place measures to ensure the accessibility of programmes to the hearing and/or visually impaired;
- comply with the principles and conditions of access to the multiplexing and/or broadcasting platform defined by the body responsible for audiovisual regulation.

(2) Audiovisual content aggregators shall be required to comply with the minimum compulsory themes contained in the channel packages, as well as with the modalities for the provision of other types of content, as defined by the body in charge of audiovisual regulation.

Article 41.- Public or private audiovisual operators holding a licence or accreditation are required to respond, in accordance with the legislation in force, to requests from administrative, judicial, military or police authorities, as well as those of the Minister in charge of audiovisual and the body in charge of audiovisual regulation.

Article 42.- Newspapers and television news, information programmes and magazines or other genres relating to the exercise of political rights may not contain advertisements or be sponsored. They must be free of advertorials.

Article 43.- (1) Legal entities of public or private law which do not produce or market services for which advertising is prohibited may, within the framework of sponsorship, contribute to the financing of audiovisual programmes with the aim of promoting their image, their activity or their achievements.
(2) The conditions under which such contributions may be made shall be determined in the specifications.

Article 44.- It is forbidden for any natural or legal person to lend his name or company name, in any way whatsoever, to any person who applies for the delivery of an operating licence for an audiovisual communication service.

Article 45.- The access services of the operators of the audiovisual sector, holders of a licence or an authorisation shall comply with the following rules:
- the broadcasting of programmes leading to the access points must have the same quality of service as that of the electronic communications emanating from the network offering the access;
- the quality, maintenance and operational requirements of the access equipment must be the same as those of the network providing access.

SECTION II
RULES COMMON TO THE ALLOCATION OF OPERATING LICENCES

Article 46.- (1) After examining the relevant applications, the issue of licences, accreditations and approvals may be refused for the following reasons:
- the protection of public order;
- the needs of national defence or public security;
- the technical or financial inability of the applicant to meet the obligations of the performance of his/her activity on a long-term basis;
- the sanctions to which the holder in question has been subjected, making it inappropriate to maintain his operating licence.

(2) Any refusal to issue a licence, accreditation or approval must be justified and notified to the applicant.

Article 47.- On the grounds of constraints related in particular to the saturation of channels and the availability of frequencies, the imperatives of market structuring, the needs of the sector's organization or, in general, the government policy on audiovisual communication, the Minister in charge of the audiovisual sector, in collaboration with the Minister in charge of electronic communications, may submit the issuance of a licence for the provision of a service in the audiovisual sector to a competitive bidding procedure.

Article 48.- (1) Licences, accreditations and approvals shall be renewed under the same conditions and in the same form as those which governed their issue, except in the following cases:
- the financial situation of the holder no longer allows him to continue providing services in the audiovisual sector, subject of his/her operating licence, under satisfactory conditions;
- the sanctions to which the holder in question has been subject make it inappropriate for him to continue to hold his/her operating licence.

(2) In the events of non-renewal referred to in sub-article 1 above, the operator concerned must put an end, without delay, to the activity which is the subject of his operating licence and dismantle his production equipment within a period not exceeding six (06) months from the date of notification of the decision of non-renewal.
(3) Failure to comply with the dismantling deadline shall result in the confiscation of the production equipment in favour of the State and, where applicable, its sale by public auction.

Article 49.- Licences, accreditations and approvals issued in accordance with the provisions of this law are personal and non-transferable.

Article 50.- (1) The granting and/or renewal of the audiovisual licence is subject to the payment of contributions, fees and charges in accordance with the regulations in force.
(2) Audiovisual licence holders shall be subject to the payment of the annual audiovisual fees provided for in Article 34 of this law for the entire duration of the validity of their operating licence.

(3) The body in charge of audiovisual regulation, in collaboration with the body in charge of electronic communications regulation, shall draw up and regularly update the plans of the transmitters' networks, established on the basis of information regularly provided by the companies of the audiovisual sector, and shall indicate the technical possibilities of broadcasting radio and television programmes by terrestrial means, at the national and local levels.
(4) The information referred to in sub-article 3 above must be made available to the body in charge of regulating the audiovisual sector in the forms, methods, media and transmission frequencies that it shall determine.

Article 51.- The holders of operating licences are required to inform the body in charge of regulation of any modification in the distribution of the social capital or in the management of the company.

PART III
ASSIGNMENT OF FREQUENCIES TO SERVICES IN THE AUDIOVISUAL SECTOR

Article 52.- (1) The assignment of radio frequencies to audiovisual operators shall be carried out by the body in charge of the regulation of electronic communications, after the consent of the body in charge of the regulation of the audiovisual sector.
(2) Radio frequencies may only be used by holders of an operating licence or an authorisation to provide audiovisual services, issued by theMinister in charge of audiovisual services.
(3) The technical control of the use of radio frequencies assigned to audiovisual communication operators and broadcasting operators shall be ensured by the body in charge of the regulation of electronic communications in collaboration with the body in charge of the regulation of audiovisual services.
(4) The conditions of collaboration between the two institutions shall be determined by a joint order of the Minister in charge of the audiovisual sector and the Minister in charge of electronic communications.

Article 53.- (1) The use of radio frequencies for the broadcasting of audiovisual communication services, by terrestrial radio, in digital mode, shall be subject to compliance with the technical conditions defined by the regulations in force.
(2) The use of radio frequencies by multiplexing and/or broadcasting operators shall be subject to the payment of a fee, the amount and payment terms of which shall be determined by a regulatory text.

PART IV
PACKAGING AND STORAGE OF AUDIOVISUAL CONTENT

Article 54.-(1) Producers of audiovisual services shall be required to package and store copies of their programmes for a period of forty-five (45) days.
(2) The period referred to in sub-article 1 above shall be extended to sixty (60) days in order to comply, where necessary, with the requisitions of administrative and judicial authorities in accordance with the regulations in force.

Article 55.- Any natural person or legal entity carrying out an activity of packaging and storage of audiovisual contents, for the purpose of reuse, may only be held liable for these contents in one of the following cases:
- when it has modified these contents or has not complied with their conditions of access and the usual rules regarding their updating or has hindered the lawful and usual use of the technology used to obtain the data;
- where it has not acted promptly to remove the contents it has stored, as soon as it has actual knowledge of the fact that the competent authorities have ordered its removal.

Article 56.- (1) Producers of audiovisual programmes in the public or private sector shall be required to:
- insert in their programmes, urgent communiqués from the authorities and law enforcement agencies relating to the security of persons and property;
- inform the public of legislative and regulatory acts subject to publication under the urgency procedure.

The concession holder agrees to respect the general conditions of storage and packaging of audiovisual programmes defined by the legislative and regulatory texts in force, as well as the clauses contained in the specifications drawn up for this purpose.

PART V
PROTECTION OF CATEGORIES

CHAPTER I
PROTECTION OF VULNERABLE AUDIENCES

Article 57.- (1) Audiovisual operators shall ensure the protection of minors in the programmes made available to the public.
(2) They shall ensure that programmes likely to impair the physical, mental or moral development of children and adolescents are not made available to the public, except where it is ensured, by the choice of the time of broadcast or by any appropriate technical means that the latter are not likely to be exposed to them.

Article 58.- Operators of on-demand audiovisual services shall, where necessary, create a "trusted space" in their catalogue which offers families and young audiences a set of "all-audience" programmes only, free of extracts, trailers, messages and any content or services which are subject to restrictions for vulnerable persons.

Article 59.- Audiovisual service operators shall contribute to the promotion and protection of the rights of women, minorities and vulnerable persons in accordance with international legal instruments duly ratified by Cameroon and the laws and regulations in force.

CHAPTER II
PROTECTION OF CONSUMERS OF AUDIOVISUAL PROGRAMMES

Article 60.- (1) Without prejudice to the legislation in force on consumer protection, operators of audiovisual services shall be required to respect the principles of protection, satisfaction, equity and participation in the broadcasting of their programmes.
(2) In this respect, the consumer of audiovisual services is entitled, in particular, to:
- the protection of his/her privacy, health and the environment in the use of audiovisual equipment, goods and services;
- the quality, permanence and safety of audiovisual services and programmes;
- the redress of grievances and compensation for damages suffered attributable to operators in the audiovisual sector;
- the availability and continuity of service;
- prior information on the reasons for suspension of the contract;
- referral to the body responsible for regulating the audiovisual sector and to consumer protection bodies of complaints against service providers in the audiovisual sector;
- the response of the audiovisual service provider to these complaints;
- freedom to form associations or bodies to defend the interests and rights of consumers of audiovisual sector services.

PART VI
SPECIAL FUND FOR THE DEVELOPMENT OF THE AUDIOVISUAL SECTOR

Article 61.- (1) A Special Fund for Audiovisual Development is hereby established.
(2) The mission of the Fund is to support projects/programmes related to the audiovisual sector, in particular activities aimed at promoting the development of a national audiovisual sector.

Article 62.- (1) The resources of the Fund shall come from:
- the share of the annual fees collected from the audiovisual operators holding the operating licences according to the modalities fixed by a regulatory text;
- the share of the annual fees collected by the body responsible for assigning radio frequencies;
- the share of the entry and renewal fees for the concessions of operators of electronic communications networks open to the public;
- the share of the proceeds of the fines instituted by this law;

- any subsidies from the State;
- any other resources that may be allocated to it by the public authorities;
- donations and bequests.

(2) The resources of the Fund shall be collected by the body in charge of audiovisual regulation.

Article 63.- The resources of the Fund shall be destined, as a priority, to:
- the development of a national audiovisual industry;
- the access of the greatest number of citizens to the universal audiovisual service;
- the support of independent national production.

Article 64.- A decree of the President of the Republic determines the modalities of organisation and operation of the Special Fund for Audiovisual Development.

PART VII
DEVELOPMENT OF THE PUBLIC AUDIOVISUAL SECTOR

Article 65.- The public audiovisual sector shall ensure, in the general interest, the public service missions intended to satisfy the needs of the populations in the field of culture, education, information and entertainment through public audiovisual companies.

Article 66.- (1) The public enterprises of multiplexing and/or broadcasting shall set up innovative equipment and infrastructures in compliance with international norms and standards, in order to allow the broadcasting of the programmes of the service producers of the audiovisual sector throughout the national territory or abroad.

(2) Public audiovisual production companies shall set up innovative services, develop new production techniques and audiovisual sector services. Their programmes shall contribute to the promotion of the Cameroonian culture, the history of Cameroon and the creative genius of its people both within and outside the national territory.

Article 67.- In order to carry out their missions, public sector broadcasting companies shall benefit from public funding under the conditions and in accordance with the modalities laid down by the laws and regulations in force.

Article 68.- The organization of the public audiovisual sector is determined by specific texts of the President of the Republic.

PART VIII
APPROVAL OF AUDIOVISUAL EQUIPMENT

Article 69.- (1) Multimedia equipment, production equipment and reception terminals, imported or manufactured in Cameroon and intended for use by households or for marketing, must be approved by the competent State services by brand, type and model.

(2) The purpose of the approval of audiovisual equipment referred to in sub-article 1 above consists in:
- guaranteeing compliance with the essential requirements and verifying the conformity of terminal equipment and radio installations with the technical norms and standards required by the provisions of this law;
- guaranteeing the health and safety of users;
- ensuring that terminal equipment allows access to the services of all producers.

Article 70.- (1) A compulsory sticker shall be established to be affixed on each production equipment, on any reception terminal or decoder, approved before its sale, distribution, installation or use in Cameroon by the competent services of the State.

(2) Applicants for approval of equipment shall be required to pay the application fee and the sticker, the amounts and methods of collection and/or payment of which shall be determined by specific texts.

Article 71.- The modalities for issuing approval certificates for the import, supply, installation of equipment as well as the operation of laboratories for the testing and measurement of multimedia and audiovisual equipment are determined by regulation.

PART IX
SETTLEMENT OF AUDIOVISUAL DISPUTES

Article 72.- (l) The body in charge of audiovisual regulation shall be competent to hear, before any court action is taken, disputes between operators of the audiovisual sector on the one hand and beneficiaries of audiovisual services and producers of audiovisual services on the other hand.
(2) The competence of the body in charge of the regulation of the audiovisual sector as provided for in sub-article 1 above, is only possible in case the facts, subject of the dispute, do not constitute a criminal offence.
(3) The body in charge of audiovisual regulation may be referred to by a producer, by a service distributor, by a service provider or any other interested person.

Article 73.- The modalities for the settlement of disputes shall be determined by regulation.

PART X
CONTROLS AND SANCTIONS SCHEMES FOR INFRINGEMENTS IN THE AUDIOVISUAL ACTIVITY

CHAPTER I
CONTROL AND ADMINISTRATIVE SANCTIONS

Article 74.- When infringements of audiovisual activities do not constitute offences, the body in charge of audiovisual regulation shall take measures to put an end to them.

Article 75.- (1) In the event of failure by the holder of an operating licence to comply with its legislative and regulatory obligations as well as those of the specifications, the body in charge of audiovisual regulation shall give formal notice to the holder of the licence to comply with the provisions relating to the licence which is the subject of its activity, within a period of fifteen (15) days. It shall inform the Minister in charge of audiovisual activities.
(2) Where the holder of an operating licence fails to comply with the formal notice provided for in sub-article 1 above, the Minister in charge of audiovisual, upon proposal of the body in charge of audiovisual regulation, may impose one of the following sanctions on the holder, based on the seriousness of one of the following breaches:
- the suspension of its operating licence for a maximum period of one (01) month;
- the reduction of the duration of his operating licence by one (01) year;
- the withdrawal of the operating licence if the body responsible for audiovisual regulation considers that the sanction(s) imposed on the holder or the fine(s) imposed on him/her justify it because of the seriousness of the acts that prompted them.

(3) In the event of serious infringement of legislative and regulatory provisions by the holder of an operating licence, the Minister in charge of audiovisual may, upon proposal of the body in charge of audiovisual regulation, and after having heard the party in question, decide (...)
(4) The revocation of an operating licence shall not entitle the holder to any compensation.

Article 76.- (1) The Minister in charge of audiovisual may, upon proposal of the body in charge of audiovisual regulation, decide the withdrawal of the licence and the forfeiture of its holder in the event of a decision of early dissolution, judicial liquidation with or without authorization for the continuation of the company or bankruptcy.
(2) Decisions to grant and withdraw licences and authorizations shall be published in accordance with the regulations in force.

Article 77.- (1) Without prejudice to the above-mentioned administrative sanctions, the Minister in charge of audiovisual may, if necessary, submit a request to the competent court for infringement of this law, following the procedure of urgency.

(2) The decision issued by the court referred to may be accompanied by a fine for the benefit of the State or the legal person of public law concerned.

CHAPTER II
ESTABLISHMENT OF OFFENCES AGAINST AUDIOVISUAL ACTIVITIES

Article 78.- Infringements of audiovisual activities governed by the provisions of this law shall be recorded either by the Judicial Police Officers or by sworn agents of the Ministry in charge of audiovisual activities, or by the body in charge of audiovisual regulation, in accordance with the provisions of the Criminal Procedure Code.

Article 79.- (1) Officials of the Ministry in charge of audiovisual shall take an oath before the competent court of their first duty station before carrying out any activity as a sworn official.
(2) The formula of the oath provided for in sub-article 1 above is as follows: "I (full name), swear to carry out my duties as an official in charge of the control and surveillance of audiovisual activities, in accordance with the laws and regulations of the Republic of Cameroon, and to preserve in all circumstances the secrecy of the information of which I have knowledge on the occasion or in the exercise of my duties",
(3) Taking of the oath shall give rise to the issue of a professional card bearing the mention of fulfilment of the formality of oath taking. The said card must be presented to the alleged perpetrator of the offence to be recorded.

Article 80.- Official statements of offences against audiovisual activities shall be drawn up in accordance with the provisions of the Criminal Procedure Code and transmitted without delay to the State prosecutor with territorial jurisdiction.

CHAPTER III
PUNISHMENT FOR OFFENCES AGAINST AUDIOVISUAL ACTIVITIES

Article 81.- An audiovisual operator who, while benefiting from an operating licence, assigns or transfers it to a third party, or lends his/her name or company name, in any manner whatsoever, to a person applying for the issuance of an operating licence for an audiovisual communication service, shall be punished by a fine of thirty million (30,000,000) to one hundred million (100,000,000) CFA francs.

Article 82.- An audiovisual operator who provides audiovisual services without having subscribed to the technical obligations of encryption is punished by a fine of thirty million (30,000,000) to one hundred million (100,000,000) CFA francs.

Article 83.- Any licensed audiovisual operator who modifies the distribution of shares in his/her company and/or modifies the shares involving the entry of a new partner or shareholder in the capital of the said company without the approval of the competent authority shall be punished by a fine of fifty million (50,000,000) to one hundred and fifty million (150,000,000) CFA francs.

Article 84.- A fine between one hundred million (100,000,000) and three hundred million (300,000,000) CFA francs shall be imposed on any natural or legal person of foreign nationality who holds, directly or indirectly, more than forty-nine percent (49%) of the capital or voting rights in a company holding a licence to operate any of the audiovisual communication activities referred to in this law.

Article 85.- A fine between one hundred million (100,000,000) and three hundred million (300,000,000) CFA francs shall be imposed on a licensed audiovisual operator or any natural or legal person who controls, alone or in concert with other shareholders, the activities of another licensed operator or an authorisation with the same corporate purpose.

Article 86.- A fine of fifty million (50,000,000) to three hundred million (300,000,000) CFA francs shall be imposed on any public or private operator of a multiplex and broadcasting of audiovisual communication signals who, without legitimate reason, refuses requests for access to the technical platform to licence or accreditation holders.

Article 87.- A fine of fifty million (50,000,000) to two hundred million (200,000,000) CFA francs shall be imposed on the public or private operator of a multiplex and broadcasting of audiovisual communication signals who, through its technical platforms, establishes or operates, or provides a network, sub-network or audiovisual service to persons who do not have a licence or accreditation.

Article 88.- (1) Any person who transmits, or causes to be transmitted, regardless of the technical means used, an audiovisual programme without holding a licence or accreditation shall be punished by a fine of one hundred million (100,000,000) to five hundred million (500,000,000) CFA francs.
(2) In addition to the payment of the fine provided for in sub-article 1 above, the authority shall confiscate and/or dismantle the incriminated equipment, object of the offence.

Article 89.- An audiovisual operator who violates a decision to suspend or withdraw his operating licence shall be punished with a fine of fifty million (50,000,000) to three hundred million (300,000,000) CFA francs.

Article 90.- An audiovisual operator who does not respect the clauses of the specifications shall be punished by a fine of fifty million (50,000,000) to three hundred million (300,000,000) CFA francs.

Article 91.- An audiovisual operator who does not respect the obligations relating to the provision of information and necessary documents required by the legislation in force shall be punished by a fine of fifty million (50,000,000) to one hundred million (100,000,000) CFA francs.

Article 92.- (1) A fine of two hundred million (200,000,000) to three hundred million (300,000,000) CFA francs shall be imposed on the de jure or de facto manager of a company representing a distributor of satellite services, who makes available to the public an offer of services in the audiovisual sector without having obtained an operating licence.
(2) The penalties of sub-article 1 above shall also apply to the de jure or de facto manager of a distributor of terrestrial radio services who has made available to the public an offer of services of the audiovisual sector on a frequency other than that allocated to him/her or who has carried out his activity in violation of the provisions concerning the power or the location of the transmitter.

Article 93.- (1) Any person who manufactures, imports or holds for sale or offer for sale or installation, equipment, material, device or instrument designed, in whole or in part, to fraudulently receive broadcast programmes, where these programmes are intended for a specific public which accesses them in return for remuneration paid to the operator of the service, shall be punished by a fine of twenty-five million (25,000,000) to seventy-five million (75,000,000) CFA francs.
(2) The penalties provided for in sub-article 1 above shall also apply to the person who orders, designs, organizes or broadcasts an advertisement promoting, directly or indirectly, an equipment, material, device or instrument mentioned in sub-article 1 above.

Article 94.- The penalties provided for by this law are doubled in the event of a recurrent offence.

Article 95.- The rules of procedure applicable to the prosecution of offences under this law are those laid down by the Criminal Procedure Code and the legislation in force concerning social communication.

PART XI
MISCELLANEOUS AND FINAL PROVISIONS

Article 96.- The norms, technical specifications, and transitional measures for migration to digital broadcasting are defined by regulation.

Article 97.- The distribution and management modalities of the proceeds of the financial resources released during the transition from analogue to digital broadcasting are determined by regulation.

Article 98.- The companies of the public audiovisual sector, resulting from the organization of the said sector, benefit by right from the operating licence corresponding to the exercise of their activity.

Article 99.- Specific texts state, as necessary, the implementing modalities of this law.

Article 100.- This law, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French.

Yaoundé, 20 April 2015

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

THE POSTAL SECTOR

LAWS

LAW No.2020/004 OF 23 APRIL 2020
Governing postal activity in Cameroon

The Parliament deliberated and adopted;
the President of the Republic hereby enacts the law set out below:

PART I
GENERAL PROVISIONS

CHAPTER I
PURPOSE AND SCOPE

ARTICLE 1.- (1) This law governs postal activity in Cameroon.
(2) It seeks to promote the harmonious, balanced and sustainable development of postal networks and services, in order to ensure the contribution of the postal sector to the development of the national economy and meet the various needs of users and the population.
In this regard, it:
- lays down conditions for setting up, operating and developing postal networks and services ;
- guarantees the public postal service;
- defines the conditions for private sector participation in the development of postal activity ;
- promotes postal services as instruments of economic, socio-political and cultural development.

ARTICLE 2.- (1) This law shall apply to all types of postal services provided directly or indirectly by any postal enterprise, regardless of its legal status, its corporate purpose, the location of its head office or main office, the nationality of its owners, its capital or management.
(2) Financial postal activities and the postal payment service s as laid down in the arrangements of the Universal Postal Union (UPU), carried out by public or private postal operators, shall also be governed by the provisions of this law. Without prejudice to the provisions of the relevant laws and regulations in force.

ARTICLE 3.- This law shall not apply to postal networks, equipment and/or facilities set up by the State to collect, transport or distribute mail, items or goods intended for national defence or public security, or for the internal needs of a public or private body, in conformity with UPU resolutions and directives.

CHAPTER II
DEFINITIONS

ARTICLE 4.- Within the meaning of this law and its implementing regulations, the following definitions shall apply:
Postal activity: All postal services which, within the framework of domestic or external relations, enable directly or indirectly:
- the collection, sorting, transmission and delivery of postal items;
- the issuance of postage stamps and postage supplies;
- the post-office transfer of money or postal money order and other conceded financial services;

Delivery: Transmission of postal items ln any form, from one place to another through specific channels;
Administration in charge of posts: Ministry or any other such agency, as the case may be, vested, on behalf of the government, with general jurisdiction over the postal sector;
Addressing: aet of assigning addresses to enable the location of natural or legal persons, places, dwellings or premises;

Digital addressing: addressing carried out by means of a data-processing technique;
Address: indication enabling the precise location of a place, a residence, an activity, or an enterprise;
Aerogram: Air mail comprising lightweight paper folded to form its own envelope; it must be marked "air mail" on the front, and must contain no enclosure;
Postage (franking): Charge for the conveyance of a postal item usually prepaid by one or more postage stamps or any other franking machine or any other accepted postage metre;
Postal directory: Book published annually containing the list of subscribers to the postal address service, making it possible to contact them by mail;
Box: Pigeonhole, bag, receptacle or electronic address system set up in the postal network establishment, used to deposit mail or any postal article or to receive incoming messages, transmitted and received by a user;
Letterbox: Receptacle for receiving mail;
Electronic letterbox: Electronic system that makes it possible to deposit or read a message in confidential and remote manner by means of a telecommunications network to be transmitted to a user;
Private letterbox: Receptacle in which mail is deposited at the residence of the user;
Post box: Box, bag, etc. comprising a number that conforms to the principle of a national code and installed in a postal network establishment to receive mail intended for a user whose address is identified by this number;
Electronic postmark: Electronic code that affixes the trusted time and date stamp of an electronic data, in a given form and at a given time, and involving one or more parties;
Specifications document: Document specifying the technical conditions and operating terms required of any operator or provider of postal services open to the public;
Post office box: Receptacle or box that enables distribution of mailing items outside the usual post box, available for professionals and individuals willing to receive mail matter on various sites open to that end;
Cecogram: Literature for the blind;
Postal cheque: Payment voucher from the holder of a post office account to debit from his account a sum to be collected by himself or to be credited to another postal or bank account;
Postal parcel: Dispatch containing goods or items of any type, excluding letters, the weight of which may be up to 30 (thirty) kilograms in international relations, and 50 (fifty) kilograms within the national territory;
Post office current account Current account managed by a specialized postal establishment;
Concession: Contract whereby the State grants a public or private operator the right to manage at its own risks, a public postal or electronic communications service under specific obligations;
Reply coupon: Coupon issued by the UPU International Office and sold by public postal operators of member countries to senders and usable for prepaying the postage for the reply to a letter sent to another member country.
Mail: All postal items;
Accelerated mail: Any time-certain express or expedited mail;
Postal registered electronic mail: Secured and reliable means of exchanging electronic messages, allowing anauthenticated sender proof of mailing to one or several equally authenticated addressees and of delivery;
Hybrid mail: Digital postal service whereby mail is delivered using a combination of electronic or physical delivery, involving digital data being transformed into physical letter items for final delivery to its addressee;
Distribution: Final phase of processing dispatches which consists in handing the item to the receiver or placing it at his disposal either at the counter, his residence or in his post office box or place of duty, or any other relevant address;
Document: Letter-post item, postal parcel or EMS dispatch consisting of any written, drawn, printed or digital information medium, to the exclusion of goods;
Mailing package: Tool or instrument used for packaging and protecting the content of a mail item to be dispatched in the postal network;
Postal correspondence: Written communication that must be dispatched and handed to the address indicated by the sender on the mail itself or on its envelope. Books, catalogues, newspapers and periodicals do not constitute postal correspondence;
Letter post item: Any message except postal parcels;
Mail matter: Mail bearing a full address to which it must be dispatched by the postal service provider. It includes correspondences, books, catalogues, newspapers, periodicals. printouts, packs, literature for the blind, money orders and postal parcels containing goods with or without commercial value;

Interconnection: Shared services provided by two postal operators, to enable all their respective clients to communicate freely with each other;
Letter: Any item or correspondence dispatched in a sealed or open envelope and considered by the sender and receiver, or by one of them as a personal and current correspondence and which may weigh up to 2 (two) kilograms;
Money order in cash: Money order whereby the client who initiates a transaction, pays cash at a post office counter and requests cash payment of the full amount to the beneficiary without any deduction;
Out-payment money order: Money order whereby clients that initiate a transaction order the debit of their accounts held by an operator and request payment of the full amount in cash to the beneficiaries without any deduction;
Pay-in money order: Money order where by the customer who initiates a transaction pays cash at the counter of a post office or a financial institution and requests the full payment into the beneficiary's account managed by a postal administration;
Postal money order: Certificate issued by a postal or financial institution and paid for by another postal or financial institution, in Execution of a money transfer order, irrespective of the method of transmission;
Urgent money order: Money order whereby the customer delivers the postal payment order and requests its transmission, within thirty minutes, and the payment at the first request of the recipient, of the full amount to the beneficiary, at any access point on the network of the operator or the operator's correspondent;
Cash on delivery money order: Postal money order whereby the recipient of "cash on delivery" remits money or orders the debit of his account and requests payment of the full amount to the sender of the "cash on delivery" item;
Merchandise: Dispatch by letter-post, parcel post or EMS mailing consisting of any tangible and movable object other than money, excluding documents;
Postal courier service: Service organized before, during and alter the physical, electric or electronic dispatch of messages, mail items or goods for distribution to recipients;
Public postal service mission: All general interest activities of the postal sector undertaken under the conditions defined by this law;
Electronic banking: All computer and electronic techniques applied to the conduct of banking transactions;
Postal operator: Any natural person or corporate body operating a postal network open to the public or providing a service that falls under postal activity;
Dominant or powerful operator: Any operator with considerable power on service or service group market equivalent to at least 25% of the volume of such market. The dominant position of an operator is also measurable through:

- its ability to influence the market;
- its turnover in relation to the size of the market;
- its control over the means of access to the end user;
- its experience in service provision on the market.

Regulatory body: Public body in charge of regulating, controlling, monitoring competition and arbitrating conflicts between postal sector players;
Access point: Physical or virtual facility where the user of a postal service may perform postal payment or courier services;
Postal Police: Staff of the control brigades of the regulatory body in charge of monitoring and controlling the postal transactions traffic of postal operators;
General delivery (Poste restante): A mail delivery service or a department of a post office that handles the delivery of mail to person s having no permanent street address in the service area or cannot receive their mail through the usual delivery methods;
Direct mail: Any advertising or marketing flyers containing an identical message, with the exception of the name and address of the recipient and sent to a significant number of persons;
Postal fee: Financial dues paid by any operator in return for the exercise of postal or post-related activity, intended for the development of the postal sector;
Collection: Act of picking up mail deposited by the customers in previously determined deposit sites for dispatching;
Independent network: Network operated by a natural or le9al person for third party needs;
Postal network: All organizations and resources used by the postal service provider to process mail and undertake postal financial transactions;

Public internal network: Network operated by a legal person under public law for its own postal service needs;
Postal financial services: All postal services of a financial nature provided by public or private postal operators under conditions laid down by law;
Innovative services: Services based on information and communication technologies (ICTs) or any other technology including online, logistics, hybrid mail and electronic banking services;
Logistics services: Any integrated, customized and value-added solution that may include the collection, receipt, processing, storage, handling, shipping, transfer, transport and physical delivery of single or bundled documents or goods;
Minimum service: All measures taken to guarantee continuity of the postal service under serious circumstances such as strikes, uprising, riots, revolts, revolutions, wars, mutinies, boycotts, piracies or any other circumstances having the same effect;
Postal payment service: All financial services provided on the national territory consisting of the money order in cash, the out-payment money order, the inpayment money order, the urgent money order and the postal transfer;
Universal postal service: Quality basic postal service provided on a permanent basis to customers at affordable and harmonized prices and, where permissible, anywhere in the national territory by the operator responsible for the mission obligations provided for in the Acts of the Universal Postal Union (UPU);
Public postal service: All general interest postal services, including those of a financial nature, provided under conditions laid down by law, to guarantee equal access to all customers at affordable rates;
Reserved service: Part of postal activity reserved exclusively for the operator in charge of universal postal service missions, in full or partial satisfaction of its obligations;
Post office money transfer: Service provided by any postal operator against payment, and consisting in the transfer of funds or money, on the instructions of a customer, for sight payment to a correspondent without passing through a bank or postal account, whether this movement is carried out through physical or electronic means, without prejudice to the maximum authorized through securities, as specified by the monetary authority;
Postal transportation: Professional activity consisting in transferring mail matter from a collection point to another point for processing or distribution;
Postal giro transfer: Operation consisting in transferring funds by debiting a current postal account and crediting another account.

PART II
PUBLIC POSTAL SERVICE

ARTICLE 5.- (1) The State shall guarantee everyone access to the public postal service.
(2) The public postal service referred to in (1) above shall include:
- the universal postal service;
- financial postal services;
- reserved services;
- non-reserved services;
- special postal services.

CHAPTER I
UNIVERSAL POSTAL SERVICE

ARTICLE 6.- The universal postal service shall include the basic postal services provided nationwide by the State to all segments of the population, on a permanent and regular basis, according to specific quality standards and at low cost, at the access points of the operator in charge of the universal service.

ARTICLE 7.- The universal postal service shall be provided in compliance with the principles of equality, continuity and adaptability, seeking the best economic and social efficiency. Save in case of force majeure, it may not be interrupted or suspended for any reason whatsoever.

ARTICLE 8.- (1) The universal postal service shall include:
- the minimum required postal service;

- mandatory supplementary services;
- optional additional services.

(2) The minimum required postal service shall include collection, sorting, dispatch and distribution of:
- postal items of up to 2 (two) kilograms;
- literature for the blind or cecograms weighing up to 7 (seven) kilograms;
- special bags weighing up to 30 (thirty) kilograms;
- parcels weighing up to thirty (30) kilograms domestically and internationally.

It shall also include issuing and payment of money orders.

(3) Mandatory supplementary services shall include:
- referral services for airmail and priority mail items originating from letter-post;
- registered mail services for non-priority mail items originating from letter-post and surface mail for destinations to which there is no priority service or airmail;
- registered mail services for all mail items arriving from the letter-post;
- priority mail items originating from the letter-post shall consist of items which are urgently required for delivery and distribution and for which the customer has paid the indicated charge;
- domestic expedited mail.

(4) Optional supplementary services shall include:
- new services based on information and communication technologies (le Ts);
- postal financial services;
- other postal services.

ARTICLE 9.- (1) The operator in charge of the universal postal service must:
- have a national network open to the public;
- ensure provision of the universal postal service under conditions laid down in the specifications document;
- provide interconnection facilities for messages, goods and funds presented by other licensed operators.

(2) The universal postal service shall be provided in compliance with quality, accessibility and low cost standards nationwide.

ARTICLE 10.- The universal postal service delivery shall be subject to the following rules:
- ensure the safety of users, staff and facilities of the service provider;
- ensure the confidentiality of correspondence and the integrity of their content;
- ensure the protection of personal data and protection of the privacy of users or customers;
- environmental protection.

ARTICLE 11.- (1) The inequitable charges borne by the operator as universal postal service shall be offset in order of priority through:
- granting of a reserved service to the postal operator in charge of the universal service;
- payment by the Special Postal Development Fund of the negative differential between the turnover generated by the reserved service and the inequitable charges borne;
- a subsidy paid annually by the State.

(2) In case of a positive differential, the excess shall be considered as an advance on the universal postal service compensation for the following year.

CHAPTER II
FINANCIAL POSTAL SERVICES

ARTICLE 12.- (1) Financial postal services shall comprise:
- the postal funds transfer service;
- the postal cheque service;
- the post office savings service;
- the currency exchange service;
- the receivables and c-a-d service;
- the postal payment services;

- the means of payment and the post office money transfers used by or for the benefit of public administrations and branches thereof;
- deposits of surety bonds for public accountants;
- microfinance for unbanked population;
- any other service related to similar services.

(2) The post office money transfer service shall comprise services and transactions whereby funds are transferred within the country and abroad by any secured means, physical or electronic.

(3) The postal cheques service shall comprise all current account opening and management services and transactions.

(4) The post office savings service shall comprise all services and transact ions designed to receive money deposits by natural persons and legal persons.

(5) The currency exchange service shall comprise all foreign currency purchase and sale transactions conducted in accordance with the relevant regulations in force.

(6) The receivables and c-o-d service shall comprise all services and transactions inherent in:

- recovery of receipts, invoices, promissory notes and commercial bills, drafts or bills of exchange, bank cheques and, in general, all non-protestable commercial or other claims, with the exception of claims expressly stated in the postal regulation;
- the dispatch and delivery of c-o-d items.

CHAPTER III
RESERVED POSTAL SERVICES

ARTICLE 13.- (1) In return for the provision of universal postal service, the State shall grant the designated postal operator a residual monopoly referred to as reserved services.

(2) The reserved services referred to in (1) above shall comprise:

- receipt, sorting, transport and delivery of domestic and international items of correspondence of up to 500 (five hundred) grams for ordinary mail and 100 (one hundred) grams for expedited mail;
- issuance and sale of postage stamps, postage tax stamps, official stamps, reply coupons and all other postage supplies intended for postage and philately, labelled "Republic of Cameroon" or bearing any other sign, seal or symbol of the Republic;
- the post office box service and the digital postal address allocation, hosting and valorization service;
- direct mailing.

(3) The procedures for issuing and manufacturing postage stamps shall be laid down by a separate instrument.

CHAPTER IV
NON-RESERVED POSTAL SERVICES

ARTICLE 14.- (1) Non-reserved services shall include:

- services and operations consisting in the receipt, sorting, transport and delivery of mail items weighing above the weight limit for reserved services;
- services and operations consisting in the receipt, sorting, transport and delivery of books, catalogues, newspapers, periodicals and postal parcels;
- postal money transfer, chequeing accounts or savings accounts services and transactions;
- equity participation in domestic and foreign postal companies;
- all industrial, commercial, financial or tangible or intangible property activities or transactions in Cameroon or abroad, in any form whatsoever, provided that such activities or transactions may be related to one of the services listed above or any other similar, related or complementary item;
- innovative services.

(2) For general interest purposes, the State may supplement the list of non-reserved services referred to in (1) above.

CHAPTER V
SPECIAL POSTAL SERVICES

ARTICLE 15.- (1) The State may entrust genera l interest duties to the designated postal operator for the purpose, among other things, of contributing to:
- the discharge of some specific duties of the State with regard to national territorial defence and security;
- the implementation of State policy with regard to participation in environmental protection;
- the implementation of the State 's regional development policy;
- participation in a public safety warning system;
- the development of information and communication technologies;
- public information;
- the implementation of Government's social and cultural programmes.

(2) The conditions for discharging the duties referred to in (1) above shall be laid down in a separate instrument.

PART III
LEGAL REGIME OF POSTAL NETWORKS AND SERVICES

CHAPTER I
GENERAL PROVISIONS

ARTICLE 16.- Postal networks and services shall be subject to any of the following regimes:
- concession;
- authorization;
- declaration.

CHAPTER II
COMMON PROVISIONS FOR THE CONCESSION. LICENCE AND/OR DECLARATION REGIMES

ARTICLE 17.- (1) Concessions, licences and declarations granted pursuant to the provisions of this law shall be persona l and non-transferable.
(2) Holders of any of the operating permits refer red to in (1) above that fail to comply with a formal notice served on them shall be liable to the penalties provided for in this law.

ARTICLE 18.- (1) Obtaining or renewing a concession or licence shall be subject to payment of an initial or renewal fee, as the case may be.
(2) The amount of the initial and renewal fees referred to in (1) above, and the conditions for their collection shall be laid down by regulation.
(3) The initial or renewal fees referred to in (1) above shall be collected by a postal regulatory body.
(4) The initial or renewal fees referred to in (1) above shall be shared among the Treasury, the Special Postal Development Fund and the postal regulatory body.
(5) Conditions for the breakdown of the initial and renewal concession and licence fees shall be laid down by regulation.

ARTICLE 19.- (1) Holders of a concession or licence shall be liable to payment of an annual postal fee representing 5% of turnover exclusive of taxes, of which 3% for the development of the postal sector and 2% for postal sector regulatory activities.
(2) Conditions for the collection and breakdown of the fee referred to in (1) above shall be laid down by regulation.

ARTICLE 20.- (1) Postal money transfer shall be liable to payment of a tax representing 1% of the amount to be transferred, for the development of the postal sector.
(2) The tax referred to in (1) above shall be collected by the licence or concession holder and paid to the regulatory body.
(3) Conditions for the breakdown of the tax referred to in (1) above shall be laid down by regulation.

ARTICLE 21.- (1) Postal operators shall be required to submit their financial statements for the previous year to the regulatory body, no later than 30 April of each year.
(2) Within 30 (thirty) days of receipt of the financial statements, the regulatory body shall send to the postal operator referred to in (1) above a statement showing the amount of the fee due for the previous year.

ARTICLE 22.- Postal operators shall be required to pay the fees and taxes provided for under this law within 60 (sixty) days of receipt of the statement referred t0 in Section 21 (2) above.

ARTICLE 23.- The postal fees and taxes assessed prior to collection of an operating permit shall remain due and shall be collected in accordance with the regulations in force.

ARTICLE 24.- (1) Postal operators shall be required to comply with checks and audits by the regulatory body and any other competent or duly authorized body.
(2) Any opposition to checking or audit by concession or authorization holders shall attract the penalties provided for under this law and the criminal laws in force.

ARTICLE 25.- Postal operators shall be required to use, in their networks, only approved equipment and packaging, in accordance with the standards laid down under the laws and regulations in force.

ARTICLE 26.- (1) Postal operators shall be bound to comply with the principles of inviolability and confidentiality of correspondence.
ln that regard, they may not:
- disclose the content or origin of correspondence;
- open correspondence and read the contents there of through any means whatsoever;

(2) The provision of (1) above relating to the opening of correspondence shall not apply where the operator repackages damaged correspondence in order to preserve content thereof.
(3) The operators referred to in (1) above shall be bound by the confidentiality of correspondence Even after cessation of their postal activity.
(4) Poste restante (Genera] delivery), registered items, or those with a declared value intended for minors that may be handed over to them only with the authorization of their parents or guardians.

ARTICLE 27.- (1) Postal operators must keep, for a maximum period of two (2) months from the date of deposit, postal items that were not delivered, or paid to the receiver or its legal representative or returned to the sender.
(2) Beyond the two-month period, the items referred to in (1) above shall be handed over to a specialized unit set up within the regulatory body.

CHAPTER III
PROVISIONS SPECIFIC TO CONCESSION, LICENCE AND/OR DECLARATION REGIMES

SECTION I
CONCESSION

ARTICLE 28.- (1) The State may, by agreement stipulating the rights and obligations of the concession holder and the conceding authority, transfer to a corporate body under public or private law the discharge of its universal postal service missions as defined in this law, as well as the obligations resulting from the Acts of the Universal Postal Union and Restricted Unions applicable to Cameroon.
(2) The concession regime shall comprise the operation of:
- the reserved service;
- the universal postal service, namely the required minimum postal service;
- mandatory supplementary services and optional supplementary services.

ARTICLE 29.- (1) The agreement shall cover in particular:
- the purpose of the designated operator's mission;
- the duration of the concession;
- the conditions for renewing, amending and/or terminating the agreement;

- the principle of annual fee payment;
- the granting of exclusive universal postal service duties;
- the establishment of postal networks and services open to the public;
- the issuing and selling of postage stamps and postage supplies;
- payment by government services and public establishments and enterprises
- for services provided by the concession holder;
- the provision of infrastructure for operating of postal networks and services;
- the determination of the quickest means of mail routing and distribution;
- the conditions for providing the universal postal service.

(2) Specifications shall be appended to the concession agreement referred to in (1) above, defining in particular:

- the nature and characteristics of the framework for carrying out activities:
- the conditions for service access, sustainability, quality, safety and availability;
- the nationwide service coverage obligation;
- the obligation to inform the ministry in charge of posts and the regulatory body, of any interruption in the provision of the universal postal service, the measures taken and the time required to re-establish the said service;
- the commercial operating conditions required to ensure equal treatment of users;
- the obligation to communicate, at least one month prior to entry into force, of any useful information on the rates of non-reserved services falling under the universal postal service;
- cast accounting for the services covered by the reserved service, the universal postal service and the special postal services;
- updating of the catalogue of services relating to the universal postal service and the reserved service, as well as the applicable tariffs;
- national defence and public security directives;
- the obligation to submit to the regulatory body, the Minister in charge of posts and the Minister in charge of finance, at the beginning of each financial year, the balance sheet of the reserved service and the universal postal service provided during the previous year;
- the use of postal services by the State;
- the conditions or the use of the public property made available to the concession holder;
- the obligation to provide the universal postal service, particularly the conditions under which they are provided;
- the availability of services, by type and terms and conditions of their provision in terms of set goals;
- service quality standards;
- nationwide coverage in term s of establishment and development of a public postal network, post offices and rural service coverage;
- equal treatment of users/customers;
- neutrality and confidentiality of services;
- special services provision and remuneration conditions;
- the determination and modification of the tariffs applicable to each service by facilitating access to the universal postal service for all the social segments of the population;
- service tariffs and quality control;
- the principles of the financial and accounting organization of the postal operator in charge of the universal postal service and the obligation for the latter to carry outcost accounting, thus enabling the costing of each service provided.

(3) The specifications defined in (2) above shall be widely publicized.

ARTICLE 30.- (1) The concession agreement and specifications shall be negotiated by the Ministries in charge of Posts and Finance, and the duly mandated representative of the concession holder.

(2) The signing of the concession agreement and the specifications by the parties referred to in (1) above shall be subject to prior authorization by the President of the Republic.

ARTICLE 31.- In return for its universal postal service obligations, the concession holder shall be eligible for reserved services.

ARTICLE 32.- The quality and pricing standards of each universal postal service delivery shall be laid down by separate instruments.

ARTICLE 33.- (1) Actions or practices intended or likely to hinder the functioning of the public postal service or to prevent, restrict or distort competition between postal sector operators shall be prohibited.
(2) Difficulties of access to certain parts of the national territory shall not constitute grounds for exemption from the obligation to ensure equal access to the universal postal service.

SECTION II
LICENCE

ARTICLE 34.- A licence shall be issued to any natural or legal person of a network, to provide to the public the non-reserved postal services referred to in (14) above.
The said services shall include:
- the receipt, sorting, transport and delivery of mail and/or newspapers;
- the receipt of mail and/or newspapers;
- the sorting of mail and/or newspapers;
- the distribution of mail and/or newspaper;
- the transport of mail and/or newspapers;
- expedited mail and the post office money transfer.

ARTICLE 35.- The authorization shall cover, in particular:
- the purpose of the operating permit;
- the service area;
- the duration of the licence;
- the conditions for renewal, amendment and/or termination;
- the principle of payment of authorized fees and charges;
- the establishment of postal networks and services open to the public.

ARTICLE 36.- A separate instrument shall specify the service area of the authorization referred to in Sections 34 and 35 above.

ARTICLE 37.- The licence shall include specifications relating to:
- the nature and characteristics of the service area:
- the conditions for ensuring the continuity, quality and neutrality of the service;
- compliance with the technical requirements regarding access to service, where applicable, its interconnection with other networks and its operational compatibility with the latter;
- national defence and public security directives;
- conditions of operation necessary to ensure fair competition, without prejudice ta the exclusivity related to the mission of the universal postal service conceded;
- the duration and conditions for the termination and renewal of the authorization;
- the obligation to use approved equipment;
- cost accounting;
- the requisite measures for the protection of health and the environment and for town planning and regional development purposes, including, where applicable, the conditions of public property occupancy and the conditions for infrastructure sharing;
- the fees and taxes due;
- the type of statistical information ta be provided and its periodicity;
- the level of confinement required for postal money transfer activities;
- the origin and reason for post office money transfer;
- sender, beneficiary and transaction identification details.

ARTICLE 38.- The terms and conditions for issuing and renewing the licence shall be laid down by law.

ARTICLE 39.-(1) It shall be prohibited for a postal operator or group of postal operators holding a licence to engage in any action or practice intended or likely to:

- create an unlawful dominant position on the domestic market or a considerable part thereof;
- create vis-a-visa person or customer having no equivalent solution, a state of economic dependency.

(2) Unlawfulness may in particular consist of an unjustified or discriminatory refusal of access to a postal network open to the public, or one providing a postal service, as well as an unjustified or discriminatory severance of established commercial relations, or setting of stiff requirements for the provision of a similar service.

ARTICLE 40.- Any contractual clause concerning a practice prohibited by Section 39 above shall be null and void, without prejudice to the criminal prosecution provided for by this law.

SECTION III
DECLARATION

ARTICLE 41.- (1) Postal activities carried out in the following networks shall be subject to a simple declaration made to the postal regulatory body:

- internal public networks;
- internal private networks;
- independent public and private networks whose departure and arrival points are Jess than 1000 (one thousand) metres apart.

(2) The declaration provided for in (1) above shall also apply to the routing of mail and/or newspapers by natural persons or legal persons.

(3) The occasional routing of mail and/or newspapers shall be free when the cumulative number of mail and/or newspapers is less than 9 (nine).

(4) The conditions for operating the networks referred to in (1) above and the conditions for declaration shall be laid down a separate regulatory instrument.

PART IV
REGULATION, SUPERVISION AND CONTROL Of POSTAL NETWORKS AND SERVICES

ARTICLE 42.- (1) The activities of postal operators shall be regulated, supervised and controlled by a body in charge of postal regulation.

(2) The postal regulatory body referred to in (1) above shall regulate, supervise and control the activities of postal service operators and suppliers on behalf of the State. It shall also ensure compliance with the principle of equal treatment of users in all postal enterprises, as well as the provision of universal postal service nationwide.

In that capacity, it shall:

- see to the implementation of laws and regulations governing postal activities;
- ensure that access to postal networks and services is provided under objective, transparent and non-discriminatory conditions;
- ensure sound and fair competition in the postal sector;
- define the principles to govern the regulation and approval of postal service tariffs;
- define conditions and obligations concerning the interconnection and sharing of infrastructure;
- participate in drafting and implementing a national codification and addressing plan, in conjunction with the Postal Administration, the Universal Postal Union and Restricted Unions;
- see to the fulfilment of obligations relating to the national postal coverage map;
- see to the traceability, supervision and control of mail items;
- see to the provision of postal services by operators under security conditions that comply with the Acts and Regulations of the International Postal Union, in conjunction with national and international security services;
- prepare and disseminate model documents and regulation procedure manuals, in conformity with the rules and regulations in force;
- provide, as and when necessary, any technical support required by postal operators;

- collect and centralize documents and statistics on the functioning of the postal sector, with a view 10 setting up a databank;
- prepare a quality assurance benchmark for the operators concerned;
- assess the quality of services provided;
- punish breaches by postal operators in accordance with the regulations in force;
- publish and disseminate the official postal directory;
- distribute postal indicia for the approval of postal packaging and equipment;
- ensure compliance with the standards of postal equipment, infrastructure, materials and packaging;
- opine on draft laws and regulations governing the postal sector;
- ensure the collection of initial fees and those for concession and licence renewal, postal fees and the tax referred to in Sections 18 and 19 above, as well as penalties;
- ensure timely processing of undeliverable mail items;
- ensure compliance with the standards for setting up and operating various postal services;
- ensure the continuity and regularity of services provided to the public;
- ensure access to the universal service, in accordance with the regulations in force;
- ensure that operators fulfil their obligations;
- ensure compliance with rules governing the interconnection, sharing and interoperability of postal networks and infrastructure;
- issue declaration receipts;
- submit to Government any proposal or recommendation designed to develop and modernize the postal sector;
- participate in international activities concerning its missions;
- carry out any general interest assignment which the Government may entrust to it in the postal sector;
- see to consumer protection.

ARTICLE 43.- The funds of the regulatory body shall comprise:
- a share of initial fees or those for concession and licence renewal paid by postal operators;
- revenue from the production and dissemination of the directory of universal postal service subscribers;
- proceeds from service provision;
- postal fees for the functioning of the regulatory body;
- revenue from postal indicia and stamps relating to the approval of postal equipment and packaging;
- a share of the penalties imposed on operators;
- Government subsidies;
- gifts and legacies;
- any other earmarked funds which could be allocated to it.

ARTICLE 44..- A decree of the President of the Republic shall lay down the organization and functioning of the regulatory body.

PART V
DEVELOPMENT OF THE POSTAL SECTOR

CHAPTER I
POSTAL ADMINISTRATION

ARTICLE 45.- (1) The Postal Administration shall ensure the formulation and implementation of the postal sector policy, taking into account the Government's development needs and priorities in this domain.
(2) Such policy shall aim to safeguard the public and universal service missions, ensure the balanced coverage of the national territory, and liberalize postal activity through the participation of private operators.

ARTICLE 46.- The Postal Administration shall be responsible for the planning and development of the postal sector.
In that capacity, it shall promote:
- a postal communication market through the planning of investments for the construction of postal network and service facilities throughout the national territory;

- the harmonious and controlled development of the postal sector to adapt it to the criteria of liberalized and well organized sectors of activity;
- domestic savings.

CHAPTER II
SPECIAL POSTAL SECTOR DEVELOPMENT FUND

ARTICLE 47.- A Special Postal Sector Development Fund hereinafter referred to as the "Fund", is hereby set up.

ARTICLE 48.- The resources of the Fund shall consist of:
- a share of the initial fees or those for concession and licence renewal of postal operators;
- the postal fee referred to in Section 19 above;
- a share of the tax collected on postal money transfer transactions in Cameroon;
- various contributions from the State;
- grants and legacies;
- budget surpluses of the postal regulatory body;
- any other resource that may be allocated thereto.

ARTICLE 49.- (1) The resources of the Fund shall be public funds intended to finance postal sector programmes, based on priorities set by the Minister in charge of posts, including the following:
- postal sector development operations;
- universal postal service missions;
- payment of the State's financial contributions to international organizations, as well as missions for participation in international events in the postal sector;

and
- training.

(2) The resources of the Fund shall be collected by the regulatory body and deposited in a sub-account of the single Treasury account opened at the Central Bank at the request of the Minister in charge of posts.
(3) Conditions for the management of the Special Postal Development Fund shall be laid down by decree of the President of the Republic.

CHAPTER III
CODIFICATION, ADDRESSING AND POSTAL DIRECTORY

ARTICLE 50.- (1) The Ministry in charge of posts shall develop and see to the implementation of a postal codification and physical and digital addressing plan, in accordance with the provisions of this law and the Acts and Regulations of the Universal Postal Union and other Restricted Unions.
(2) As part of the codification and addressing operations referred to in (1) above, every owner of a built-on property for collective or individual use shall be required to provide a space reserved for the operator in charge of the universal postal service to install post boxes indicating the physical or digital postal address and mailboxes, accessible to postal delivery staff.
(3) The operator in charge of the universal postal service shall have the exclusive right to assign digital postal addresses and install, along public roads, mail boxes intended for postal delivery.
(4) Owners of built-on property for collective or individual use shall be responsible for protecting the mail boxes referred to in (2) above.
(5) The codification and addressing operations referred to in (1) above must ensure equal access for users of various postal networks and services.
(6) Conditions for the implementation of (5) above shall be laid down by regulation.

ARTICLE 51.- (1) The designated postal operator shall be required to forward the list of mailbox subscribers and its digital addressing system to the regulatory body for purposes of publication of the postal directory. However, subscribers shall reserve the right to refuse the publication of their postal addresses under conditions laid down by regulation.

(2) Conditions for the production and publication of the postal directory referred to in (1) above shall be laid down by regulation.

CHAPTER IV
POSTAL INFRASTRUCTURE AND EQUIPMENT

ARTICLE 52.- (1) Postal infrastructure and equipment intended to be connected or to be used in operating a network open to the public, in particular post office money transfer, shall be subject to prior approval.
(2) The procedure for the approval referred to in (1) above shall be laid down by a separate instrument.

ARTICLE 53.- Marketing of postal equipment, infrastructure and packaging shall be free nationwide.

CHAPTER V
POSTAL NETWORKS AND SERVICES INTERCONNECTION, SHARING AND ACCESS

ARTICLE 54.- (1) Operators of networks open to the public shall be required to grant requests from any operator of a postal service open to the public for interconnection, sharing and access under objective, transparent and non-discriminatory conditions.
(2) Conditions for the implementation of (1) above shall be laid down by regulation.

PART VI
DISPUTE SETTLEMENT

CHAPTER I
AMICABLE SETTLEMENT

ARTICLE 55.- (1) Disputes arising between postal operators, between postal operators and consumers in the exercise of the postal activity shall be heard by the regulatory body, before referral to a court.
(2) The regulatory body shall exercise such competence only in cases where the facts of the dispute do not constitute an offence.
(3) In the cases provided for in (1) above, the matter shall be referred to the regulatory body by way of a stamp-free complaint filed either by a postal operator, a consumer association, or the aggrieved consumer.

ARTICLE 56.- (1) Upon receipt of the complaint, the regulatory body may, automatically or at the request of one of the parties, attempt conciliation to seek an amicable solution to the dispute. It may take such measures as it deems appropriate to that effect, including the assistance of external experts.
(2) The conciliation report shall be produced within a maximum period of 30 (thirty) days from the date the complaint is filed with the regulatory body.
(3) In case of partial or total conciliation, the regulatory body shall draft a conciliation report signed by all the parties. The report shall serve as a conciliation decision establishing the amicable settlement of the dispute.
(4) In case of partial conciliation, the report shall specify the points on which agreement has been reached and those on which disagreement persists. The section of the report establishing agreement shall serve as a conciliation decision, enforceable pursuant to ordinary law.
(5) In case of failure of the conciliation procedure initiated by the agency, a non-conciliation report shall be drawn up.

CHAPTER II
DISPUTE SETTLEMENT BODY

ARTICLE 57.- (1) The regulatory body shall have an internal dispute settlement body.
(2) The dispute settlement body referred to in (1) above shall have 45 (forty-five) days from the date of submission of the conciliation request to make a decision. Its decision shall be served on the parties through a bailiff.

ARTICLE 58.- (1) Any party challenging a decision of the dispute settlement body may do so either before another dispute settlement body or ordinary law courts.
(2) The decisions rendered by the seized dispute settlement body shall specify the technical and financial bases thereof. They shall be binding on the parties which must comply therewith within 30 (thirty) days. They shall be forwarded to the regulatory body which may publish them.

ARTICLE 59.- Where the dispute between the operators is such as to paralyze the normal working of postal networks or services, the regulatory body shall, before the final settlement of the dispute, take any precautionary measure to ensure service continuity or the normal working of networks.

ARTICLE 60.- (1) Recourse to any of the procedures provided for in Section 58 above shall not delay the execution of the total or partial conciliation decision.
However, a stay of execution may be ordered by the appellate body of the regulatory body.
(2) Delay of execution of a decision shall be ordered where clearly, the decision is likely to have direct consequences or where, on the one hand, subsequent to the service thereof, new facts of exceptional gravity emerge, and where, on the other hand, evidence is adduced that has the potential, at the stage of investigation, to cast serious doubt on the legality thereof.

ARTICLE 61.- When postal operators resort to ordinary law courts, the procedure applicable shall be that of summary trial. In such case, the civil court seised of the matter must render its decision within no more than 60 (sixty) days of the institution of proceedings.

PART VII
ESTABLISHMENT OF OFFENCES, FORMAL NOTICE, ADMINISTRATIVE AND CRIMINAL PENALTIES

CHAPTER I
ESTABLISHMENT OF OFFENCES

ARTICLE 62.- (1) Without prejudice to the prerogatives of the Legal Department and general jurisdiction, Criminal investigation Officers, investigations, establishment of facts and prosecution of postal offences shall be the responsibility of sworn officials specifically appointed by the regulatory body.
(2) The officials referred to in (1) above shall, at the behest of the regulatory body, take the oath before the competent court prior to assuming duty, under the conditions laid down by regulation.
(3) In the discharge of their duties, the sworn officials of the regulatory body may:
- conduct spot checks and draw up reports on any postal offences committed;
- under the supervision of the State Counsel, conduct searches, seize material used in committing criminal offences and shut down premises, in accordance with the laws in force.

(4) In the discharge of their duties and in particular, for the identification and arrest of suspects, the officials referred to in (1) above shall, at their request, be assisted by the forces of law and order.

ARTICLE 63.- (1) Establishing an offence shall give rise to a report wherein the legally authorized investigating officer accurately presents the facts effectively observed and the statements taken.
(2) The report shall be signed by the investigating officer and the perpetrator of the offence.
(3) Where the offender refuses to sign the report, this shall be mentioned in the authentic copy of the report.
(4) The report shall be submitted to the State Counsel or any other authority with territorial jurisdiction within a period of no more than 8 (eight) days.

CHAPTER II
FORMAL NOTICE AND ADMINISTRATIVE PENALTIES

ARTICLE 64.- After establishment or verification of the facts, the regulatory body may, either automatically or at the behest of the Ministry in charge of posts, a professional organization, an approved postal service consumer association, or a concerned natural or legal person, sanction offending postal operators in accordance with the laws and regulations governing their activities or the decisions taken to ensure the implementation thereof.

ARTICLE 65.- The holder of a concession, licence or declaration receipt issued in accordance with this law or a post office money transfer operator that fails to abide by the obligations under the laws and regulations in force, may be served a formal notice to comply within 30 (thirty) days of the date of service. The regulatory body may publish the formal notice.

ARTICLE 66.- (1) The postal operator that fails to comply with the formal notice provided for in Section 65 above may be inflicted with one of the following penalties by the regulatory body:
- suspension of permit for a maximum period of 6 (six) months;
- reduction by one year of operating licence period;
- withdrawal of operation permit.

(2) Without prejudice to the administrative penalties provided for in (1) above, the regulatory body shall forward the file to the Legal Department to institute legal proceedings, where the breach established is likely to constitute an offence.

ARTICLE 67.- The concession or licence holder or the post office money transfer operator in Cameroon that fails to submit financial statements to the regulatory body within the time limit provided for in Section 21 above, shall be served a formal notice to do so within 30 (thirty) days of the date of service.

ARTICLE 68.- (1) Where the regulatory body detects irregularities in the financial statements of the concession or licence holder or of the money transfer operator, such holder or operator shall be served a formal notice to correct the irregularities detected within 30 (thirty) days.
(2) Where, at the end of the period prescribed by the formal notice referred to in (1) above the concession or licence holder fails to make the expected corrections, the regulatory body shall order an audit to review the impugned financial statements.
(3) Where the audit confirms the accuracy of the financial statements submitted by the concession or licence holder, the costs of the audit shall be borne by the regulatory body.
(4) Notwithstanding the provisions of (3) above, the concession or licence holder or the post office money transfer operator shall be required to pay in advance the amount of the fee from the impugned financial statements.

ARTICLE 69.- (1) The holder of a concession, licence, declaration or post office money transfer operator caught in the act of using unapproved equipment and/or packaging to process correspondence items and postal financial services shall be served a notice to comply with the relevant regulations within no more than thirty (30) days of the formal notice.
(2) The concession or licence holder that fails to comply by the end of the period of formal notice shall be liable to an automatic tax and the amount of the penalty due shall be equivalent to 20% of the turnover exclusive of tax for the previous financial year in the business segment in question.

CHAPTER III
ADMINSTRATIVE PENALTIES

ARTICLE 70.- (1) Persons who establish or operate a postal network or service without an operating permit shall be liable to a penalty equivalent to twice the initial fee corresponding to their category of activity.
(2) Operators of postal networks who, without legitimate reasons, do not comply with requests for interconnection or access to a postal network shall be liable to a penalty of from CFAF 1 000 000 (one million) to 5 000 000 (five million).
(3) Postal network operators who are accomplices to fraudulent interconnection on their network shall be liable to a penalty of from 1 000 000 (one million) to 8 000 000 (eight million).
(4) The penalty provided for in (3) above shall apply to postal operators who establish or operate a network or sub-network, or provide a postal service to persons who do not have an operating permit.
(5) Postal operators who violate a decision to suspend or withdraw their operating permit shall be liable to a penalty of from 5 000 000 (five million) to 10 000 000 (ten million).
(6) Postal operators who violate the reserved postal activity segment shall be liable to a penalty of from CFAF 2 0000 00 (two million) to 5 000 000 (five million).

(7) Postal operators who violate a clause in their operating permit or specifications shall be liable to a penalty of from CFAF 500 000 (five hundred thousand) to 2 000 000 (two million).
(8) Postal operators who do not forward the financial statements of their structure to the Agency within the deadline set by the formal notice served on them in accordance with this law, shall be liable to a penalty of from CFAF 5 000 000 (five million) to 10 000 000 (ten million).
(9) Postal operators who do not keep cost accounting shall be liable to the penalty provided for in (8) above.
(10) Concession or authorization holders who oppose an inspection or audit provided for by the regulations in force shall be liable to a penalty of CFAF 10 000 000 (ten million).
(11) Operators who do not forward to the regulatory body postal parcels not delivered within the deadlines provided for in Section 27 above, shall be liable to a penalty of CFAF 20 000 (twenty thousand) per postal parcel.
(12) Postal operators who use unapproved equipment and/or packaging in their respective networks shall be liable to a penalty of from CFAF 1 000 000 (one million) to 5 000 000 (live million).

ARTICLE 71.- The penalties provided for in Section 70 above may be doubled in case of a previous offender.

ARTICLE 72.- (1) After consulting the regulatory body, the ministry in charge of posts may cancel the concession or authorization and revoke the operating permit of the concession, authorization or declaration receipt holder in the event of an early decision to dissolve, judicial liquidate with or without an authorization to continue the company or declare bankruptcy.
(2) Any concession, authorization or declaration receipt holder shall be required to inform the ministry in charge of posts and the regulatory body of any change in the distribution of the share capital or in the management of the company.
(3) Where the change referred to in (2) above is deemed to be at variance with public interest, the ministry in charge of posts may, alter consulting the regulatory body, terminate the concession, authorization or declaration and revoke the said operating permit.
(4) The regulatory body may decide to discontinue the declared activities.

ARTICLE 73.- The regulatory body shall be granted the preferential rights of the Treasury over the collection of claims relating to initial or renewal fees, royalties, taxes and penalties resulting from the exercise of postal activity.

ARTICLE 74.- (1) The fees, royalties, taxes and penalties provided for in this law, the collection of which is the responsibility of the regulatory body shall, in the absence of timely payment, be the subject of a notice of assessment which shall be enforceable for forced recovery, drawn up by the regulatory body.
(2) The notice of assessment provided for in (1) above shall be declared enforceable without charge by the president of the competent court. The president of the court may not refuse to endorse the notice of assessment, under pain of being personally liable for the values for which it was issued.
(3) The notice of assessment declared enforceable shall be served on the debtor by registered letter with acknowledgement of receipt. The notice shall contain a summons to pay the claimed fees without delay and they shall be immediately payable.
(4) The notice of assessment declared enforceable shall interrupt the current limitation period against the regulatory body and replace it with the ordinary law limitation period.
(5) The regulatory body may, after an unheeded formal notice, attach the bank accounts of the liable postal operator, without prejudice to the penalties provided for in in the event of non-payment by the due date, and after a formal notice, the sums duly settled.

ARTICLE 75.- The Director-General, the Accounting Officer and controllers of the regulatory body shall act in lieu of and with the same prerogatives as the persons authorized in the General Tax Code and the Manual of Tax Procedures for the collection of duties, royalties and penalties relating to the postal activity.

ARTICLE 76.- The provisions of the General Tax Code and the Manual of Tax Procedures shall apply mutatis mutandis to the collection of the duties, royalties and penalties provided for in this law and which have become due. They shall also apply to the penalty for shortcomings in filing the turnover returns, failure to file in turnover returns, payment defaults and delay.

ARTICLE 77.- The penalties provided for in this law shall be collected by the regulatory body and distributed between the staff responsible for regulation, in accordance with the conditions laid down by regulation.

ARTICLE 78.- Where there is need for immediate safeguard of the public postal service, the ministry in charge of posts, in conjunction with the regulatory body may, after hearing the party or parties concerned, take all precautionary measures.

ARTICLE 79.- The regulatory body shall publish its decisions imposing penalties on postal operators.

CHAPTER IV
CRIMINAL PENALTIES

ARTICLE 80.- Whoever carries out the following shall be punished with imprisonment of from 6 (six) months to 2 (two) years and a fine of from CFAF 10 000 000 (ten million) to 30 000 000 (thirty million) or with only one of such penalties:
- postal activity without an operating permit;
- operates a network or provides postal services, despite a decision to suspend or withdraw the permit concerned;
- uses an operating permit belonging la another person.

ARTICLE 81.- Any person who damages a postal facility built in accordance with the provisions of Section 50(2) and (3) of this law shall be liable to imprisonment of from 3 (three) months to 1 (one) year and a fine of from CFAF 50 000 (fifty thousand) to 200 000 (two hundred thousand), or to only one of these two penalties.

ARTICLE 82.- (1) Any person involved in the operation of a postal service who commits one of the offences below shall be liable to imprisonment of from 2 (two) to 5 (five) years and a fine of from CFAF 100 000 (one hundred thousand to 500 000 (live hundred thousand), or only one of these two penalties:
- violates the confidentiality of correspondence;
- diverts the correspondence of others;
- destroys pieces of mail that are not discarded.

(2) The provisions of (1) above shall not apply to persons who:
- had obtained the consent of the addressor/addressee of the correspondence;
- intercept and use private mail following an authorization issued as part of a judicial investigation;
- provide a postal service to the public and who intercept and use a postal parcel or private mail, as part of the general tasks of monitoring postal services or unannounced checks carried out with a view to optimizing such services or verifying their quality, where such interception and/or use is necessary to provide the services referred to in the preceding paragraph.

ARTICLE 83.- Whoever discloses, publishes and/or uses the contents of a correspondence without the authorization of the addressor or addressee shall be punished with imprisonment of from 3 (three) months to 3 (three) years and a fine of from CFAF 500 000 (five hundred thousand) to 1 000 000 (one million), or only one of these two penalties.

ARTICLE 84.- Whoever signs and dispatches a mail or postal parcel under an assumed name with intent to harm others, shall be punished with the penalties provided for in Section 81 above.

ARTICLE 85.- (1) Whoever fraudulently uses a postal network open to the public with full knowledge of the facts, and benefits from the services obtained from the fraudulent use of a postal network as mentioned in (1) above, shall be punished with imprisonment of from 1 (one) to 3 (three) years and a fine of from CFAF 2000000 (two million) to 5 000 000 (five million).

(2) The court may, in addition, order closure of the premises and the confiscation of equipment and materials in any of the cases referred to in (1) above.

ARTICLE 86.- Whoever engages in prohibited actions and/or practices, as provided for in Sections 24 and 26 of this law, shall be punished with imprisonment of from 6 (six) months to 2 (two) years and a fine of from CFAF 2 000 000 (two million) to 10 000 000 (ten million).

ARTICLE 87.- Whoever fraudulently abstracts or destroys mail and/or newspaper for the purpose of causing sabotage or prejudice shall be punished with imprisonment of from 2 (two) to 5 (five) years and a fine of from CFAF 2 000000 (two million) to 5000000 (five million).

ARTICLE 88.- Whoever uses already used postage stamps, overprints on postage stamps or abuses a franchise, shall be punished with imprisonment of from 10 (ten) days to 1 (one) year and a fine of from CFAF 5 000 (five thousand) to 50000 (fifty thousand).

ARTICLE 89.- Whoever forges or alters postal equipment and/or packaging, approval stickers, stamps, franking impressions or reply coupons issued by the postal administration of a foreign country or whoever sells, offers or makes use of the said objects shall be punished with imprisonment of from 10 (ten) days to 6 (six months) and a fine of from CFAF 5 000 (five thousand) to 50 000 (fifty thousand).

PART VIII
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 90.- (1) Private operators authorized to provide postal services to the public shall acquire the postal facilities and equipment necessary to carry out their activities and shall have them approved in accordance with the approval procedure set forth in Section 25 of this law.
(2) Notwithstanding the provisions of (1) above, private operators willing to use all or part of the public equipment and facilities in some localities shall contact the concession holder through a written application. The concession holder shall be required to respond within a maximum of 60 (sixty) days of receipt of the said application.
(3) The private operators referred to in (2) above may seek leave of the concession holder to carry out an activity covered by the reserved service under the same conditions as those specified in (2) above.

ARTICLE 91.- (1) The use by a private operator of public facilities and equipment shall be the subject of an agreement between the said operator and the concession holder referred to in Section 28 of this law.
(2) The agreement referred to in (1) above shall determine the technical and financial conditions for the use of such facilities and equipment.
(3) The agreement shall be subject to approval by the regulatory body which may, after formal notice, request an amendment thereto, particularly where it considers that the agreement does not sufficiently contribute to the proper discharge of public service missions.

ARTICLE 92.- The terms and conditions for the issue and marketing of postage stamps and postal trust securities, as well as the organization of philately, shall be laid down by regulation.

ARTICLE 93.- Postal activities carried out on the national territory by multinational operators shall be in accordance with this law and the agreements signed and ratified by Cameroon.

ARTICLE 94.- Each year, the Finance Law shall fix the State's contributions to public service, universal service and sector development missions, intended to feed the Fund provided for in Section 47 of this law.

ARTICLE 95.- A joint order of the Minister in charge of posts and the Minister in charge of finance shall fix the tariffs for the services provided by the postal regulatory body, procedures followed by this body, as well as the approval instruments provided for by this law.

ARTICLE 96.- (1) Operating permits issued prior to the date of enactment of this law shall remain valid for a period of 1 (one) year from the date of enactment of this law.

(2) Holders of operating permits for one or several postal networks and services issued prior to the date of enactment of this law, and who wish to continue their activities, shall be required to submit an application for renewal to the postal regulatory body, 1 (one) year to the expiry of the operating permit.

ARTICLE 97.- At the end of the period provided for in Section 96 above:
- the permit shall become invalid because the holder has not been identified and has not submitted a new application;
- the ministry in charge of the posts may, in the event of renewal of the operating permit, change its content or include some conditions thereto, with a view to preserving public service missions.

ARTICLE 98.- The ministry in charge of the posts shall perform the regulatory functions until the effective establishment on the regulatory body provided for in Section 42 of this law.

ARTICLE 99.- Separate instruments shall, as and when necessary, lay down conditions for the implementation of this law.

ARTICLE 100.- All previous provisions repugnant hereto, notably Law No.2006/19 of 29 December 2006 governing postal activity in Cameroon, are hereby repealed.

ARTICLE 101.- This law shall be registered, published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 23 April 2020

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

LAW No. 2003/001 OF 21 APRIL 2003
To institute a minimum service in the postal sector.-

The National Assembly has deliberated and adopted, the President hereby promulgates the following:

ARTICLE 1.- This law shall institute a minimum service in the postal sector throughout the national territory.

ARTICLE 2.- The minimum service shall be a policy designed to guarantee the continuity of the public postal service in the circumstances provided for in Article 3 below.

ARTICLE 3.- The operators of the postal sector shall be bound by the minimum service in the event of strike, insurrection, riot, revolt, revolution, war, mutiny, boycott, piracy or any other circumstance of equivalent effect.

ARTICLE 4.- The Minister in charge of posts or the administrative authorities shall ensure the effectiveness of the minimum service.

ARTICLE 5.- In the event of non-execution of the minimum service, the Minister in charge of posts shall inform the administrative authority concerned for requisition of the law enforcement authorities.

ARTICLE 6.- The implementation modalities of this law shall be specified by decree.

ARTICLE 7.- This law shall be registered, published according to the procedure of urgency, and inserted in the Official Gazette in English and French.

Yaoundé, 21 April 2003

Paul BIYA.

THE PRESIDENT OF THE REPUBLIC

DECREES

DECREE No.2002/2171/PM OF 19 DECEMBER 2002
To lay down conditions for the regulation and control of postal networks and services.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No 99/002 of 7 April 1999 governing postal activities;
Mindful of Decree No 92/089 of 4 May 1992 specifying the Prime Minister´s attributions, as amended and supplemented by Decree No 95/145 of 4 August 1995;
Mindful of Decree No 97/206 of 7 December1997 to appoint a Prime Minister;
Mindful of Decree No 99/151 of 13 July 1999 to organize the Ministry of Posts and Telecommunications, amended and supplemented by Decree No 2000/185 of 14 July 2000;
Mindful of Decree No 2002/216 of 24 August 2002 to reorganize the Government,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This Decree is to lay down conditions of regulation and control of postal networks and services.

ARTICLE 2.- The administration in charge of posts shall insure the regulation, control and follow up of activities of public and private operators of postal sector.

CHAPTER II
POSTAL SECTOR ACTIVITIES REGULATION

ARTICLE 3.- The regulatory mission assigned to the Administration in charge of posts shall consist in:
- supervising the postal sector;
- fixing general conditions for the establishment and operation of postal networks and services;
- insuring the respect of postal sector operators rights and obligations, especially, the public service obligation;
- insuring the official grant to operators of agreements and declaration receipts for postal networks opened to the public;
- controlling the implementation and continuity of public service missions;
- controlling access to networks opened to the public in objective, transparent and non discriminatory conditions;
- defining conditions and obligations of inter-connection between different networks;
- insuring mediation or conciliation between postal sector operators;
- insuring the effectiveness of the nominal service;
- guarantying a sound and fair competition between postal sector operators;

ARTICLE 4.- Subject to the provisions of the Law governing postal activity, may exercise in the postal sector, any company, whatever be its judicial status, the localization of its headquarters or its main branch, the citizenship of the owners of its capital or its directors.

ARTICLE 5.- Any operator of a postal service or network shall prove that its installations guaranty the security

of collection, transportation and distribution of mails and parcels he shall be in charge of.

ARTICLE 6.- (1) Postal sector operators shall be bound to respect the following principles:
- Equal treatments for users;
- Confidentiality and security of mails and parcels;
- Service quality and availability;
- Regular adaptation of their service delivery.

(2) Failure to observe the provisions of the above subsection (1) shall expose the offender to sanctions provided by Laws and regulations in force.

ARTICLE 7.- (1) Subject to legal provisions to organize and regulate the sector activities, public or private operators exercising in the postal domain shall be liable to insure permanent service delivery on the national territory in accordance with the conditions of their respective specifications.
(2) While exercising their missions, every time and everywhere, public or private operators of the postal sector are meant to observe special provisions to guaranty the security of goods and persons, quality of service and public morality.
(3) To that effect, the reception, the transportation and distribution of the following are forbidden:
- Explosive objects;
- Compressed gases;
- Flammable liquids and solids;
- Toxic objects or materials;
- Radioactive or corrosive materials;
- Other dangerous materials which transportation requires special precautions.

CHAPTER III
CONTROL

ARTICLE 8.- The Administration in charge of posts is competent for the control of licensed, authorized or declared postal services and networks operation, in the forms specified by the Law governing postal activity.

ARTICLE 9.- The Administration in charge of the posts, within its attributions may request the service of custom, police or health agents to make sure that the respect of the above mentioned article 7 is effective, as well as texts on postal regulation in force.

ARTICLE 10.- The search, assessment, legal proceedings to punish offences committed in the postal sector shall be carried out by sworn in agents appointed by the Administration in charge of posts with no harm to prerogatives known as that of the public prosecution office and officers of the judicial police whose competence is general in this matter.

ARTICLE 11.- In the course of their missions, sworn in agents may, on their request, receive an assistance from the Law enforcement forces.

ARTICLE 12.- While accomplishing their missions, sworn in agents shall:
- make unexpected controls and notify committed offences as regards post on a report;
- carry out, with the Public Prosecutor authorization, searches, confiscation of materials used to commit offences and put seals on the premises in accordance with the Laws in force.

ARTICLE 13.- (1) In case of duly reported offence, the Administration in charge of posts shall transmit a call to order to the offender. If the latter does not come forward, the Administration in charge of posts shall make an injunction for him to conform, in a maximum deadline of fifteen (15) days, to regulatory provisions or the prescriptions of the agreement whereby he exercises its activity.
(2) When a postal sector service provider does not conform to the injunction at the end of the deadline mentioned in subsection (1) above, the Administration in charge of posts may pronounce one of the following administrative sanctions:
- Suspension of the operating credentials for a maximum period of six (6) months.

(3) Withdrawal of the credentials with no harm to the administrative sanctions mentioned in subsection (2) above, the file shall be sent to court for a public trial when the notified offense shall constitute a crime.
(4) The Administration in charge of posts shall be liable before any sanction, to communicate to the presume offender the charges against him, by recorded delivery with reception notice or through any other mean that leaves a written proof. He disposes of a three (3) day deadline from the reception date to consult the corresponding file and to deposit a written comment.

CHAPTER IV
TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 14.- All operators already exercising in the postal sector shall be liable to subscribe one of the exercising conventions of this activity during the three (3) months following the publication of this Decree.

ARTICLE 15.- The Administration in charge of posts may not be referred to for cases prior to the enactment of this Decree in the framework of its missions.

ARTICLE 16.- Except for contrary legal provisions, decisions of the Administration in charge of posts shall be published.

ARTICLE 17.- Operators of the postal sector may carry out activities provided by the Law governing postal activity, except of the issuing of stamps that is under the exclusive attributions of the public operator; subject to the strict respect by the latter of the approval procedure supervised by the Administration in charge of posts.

ARTICLE 18.- (1) Postal activities exercised on the national territory by operators of transnational companies must conform with the Law and conventions duly ratified by Cameroon.
(2) They shall be subjected to the provisions of Law No 99/002 of 7 April 1999 governing postal activity.

ARTICLE 19.- Conflicts between operators of the postal sector shall be subjected to the arbitration of the Administration in charge of posts and; if necessary, to that of Common Law courts.

ARTICLE 20.- Every prior repugnant provisions on postal services control and regulation shall be repealed.

ARTICLE 21.- The Minister in charge of posts is charged of the implementation of this Decree which shall be registered and published according to the procedure of urgency and inserted in the Official Gazette in English and French.

Yaounde, 19 December 2002

Peter MAFANY MUSONGE

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2002/2173/PM OF 19 DECEMBER 2002
To regulate the issue and sale of postage stamps and postal fiduciary values and the organisation of philately.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 99/002 of 07 April 1999 to govern postal activity;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145 of 04 August 1995;
Mindful of Decree No. 97/206 of 07 December 1997 to appoint a Prime Minister;
Mindful of Decree No. 99/149 of 13 July 1999 on the creation, organisation and functioning of the Société Nationale des Postes du Cameroun;
Mindful of Decree No. 99/151 of 13 July 1999 to organise the Ministry of Posts and Telecommunications, amended and supplemented by Decree No. 2000/185 of 14 July 2000;
Mindful of Decree No. 2002/216 of 24 August 2002 to reorganise the Government;

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- Within the meaning of this decree:
- Postage stamps are vignettes of various formats with different values adapted to postal tariffs and used essentially for franking items of correspondence;
- Postal fiduciary values consist of postage stamps, reply coupons, aerograms and philatelic souvenirs;
- Philately is the study or collection of postage stamps, documents or related objects generally referred to as “philatelic souvenirs.”

CHAPTER II
THE ISSUE AND SALE OF POSTAGE STAMPS AND POSTAL FIDUCIARY VALUES

ARTICLE 2.- The issue and sale of postage stamps and fiduciary postal values shall be granted to a designated operator "concession holder", in accordance with the provisions of Law No. 99/002 of 7 April 1999 governing postal activities.

ARTICLE 3.- The concession holder shall under no circumstances assign, transfer or sub-license totally or partially the exercise of this activity which remains subject to the administrative approval procedure as described below with the aim of guaranteeing the security and reliability of the securities issued.

ARTICLE 4.- The issue of postage stamps and postal fiduciary values shall be carried out according to an annual or bi-annual programme called "Philatelic Programme". This programme shall be drafted by the concession holder and approved by an interministerial commission called the National Commission for Philatelic Programmes, hereinafter referred to as "the Commission".

ARTICLE 5.- (1) The commission shall be constituted as follows:
Chairperson: The Minister in charge of Posts;

Members:
- the chairperson of the board of directors of the concession holder;
- one (1) representative of the Presidency of the Republic;
- one (1) representative of the Prime Minister's Office;
- one (1) representative of the Ministry in charge of Territorial Administration;
- one (1) representative of the Ministry in charge of Industrial and Commercial Development;
- one (1) representative of the Ministry in charge of Tourism;
- one (1) representative of the Ministry in charge of Culture;
- one (1) representative of the General Delegation for National Security;
- one (1) representative of the National Gendarmerie;
- two (2) personalities appointed by the Ministry in charge of Posts for their competence in this field.

(2) The secretariat of the Commission shall be provided by the concession holder.

(3) The Chairperson of the Commission may call upon any natural or legalentity to attend the work of the Commission in an advisory capacity, on account of his or her competence in the items on the agenda.

ARTICLE 6.- (1) The members of the Commission other than the Chairperson shall be appointed by their respective administrations.

(2) The composition of the Commission shall be established by a decision of the Minister in charge of Posts.

(3) The duties of the members of the Commission shall be free of charge. However, they shall receive a sitting allowance, the amount of which shall be determined by the Minister in charge of Posts.

ARTICLE 7.- (1) The Commission shall meet, as and when necessary, upon the invitation of its Chairperson, six (6) months before the beginning of the period scheduled for broadcasting, except in cases of force majeure.

(2) The Commission may only validly deliberate when two thirds (2/3) of its members are present. Its decisions shall be taken by a simple majority of the votes cast, the Chairperson having the casting vote in case of a tie.

ARTICLE 8.- (1) At the beginning of each meeting, the concession holder shall be bound to present a detailed report on the management of stamps and postal securities of the previous Philatelic Programme.

(2) The Commission, in selecting the themes and subjects of the Philatelic Programme, shall ensure that the image of Cameroon is safeguarded.

ARTICLE 9.- The Philatelic Programme shall be made enforceable by an order of the Minister in charge of Posts.

ARTICLE 10.- On grounds of national sovereignty, commemorative issues outside the programme may be carried out by the concession holder. In this event, the Commission shall be convened to decide in accordance with the provisions of Articles 7 and 8 above.

ARTICLE 11.- The procedures for ordering, receiving and marketing postage stamps and postal securities are defined by the concession holder. The latter shall comply with the regulatory provisions on security in Cameroon and the Universal Postal Union.

CHAPTER III
ORGANIZATION OF PHILATELY

ARTICLE 12.- (1) The organization and promotion of national philately, as well as the representation of Cameroon at various international philatelic events shall be the responsibility of the concession holder, in collaboration with the Minister in charge of Posts.

(2) In this regard, the concession holder shall ensure the preparation and custody of the national and international philatelic stock in compliance with the provisions of the Universal Postal Union instruments. It is the intermediary of philatelists, their groups and their organizations.

ARTICLE 13.- (1) Each issue of postage stamps or postal fiduciary values shall be subject to a free distribution of philatelic tributes.

(2) The philatelic tributes shall consist, in addition to perforated stamps, of deluxe proofs, souvenir sheets, "first day" envelopes bearing a cancelled stamp and, where appropriate, of non-perforated stamps not having postage value.
(3) The quantity and type of philatelic tributes, as well as the list of beneficiaries, shall be fixed by the Commission during the approval meetings of the Philatelic Programme, on the proposal of the concession holder.
(4) The list of beneficiaries of philatelic tributes shall include Cameroonian and foreign personalities. For the granting of philatelic tributes to foreign personalities, the rule of reciprocity must be respected.
(5) The list of beneficiaries of philatelic tributes shall be determined by an order of the Minister in charge of posts.

ARTICLE 14.- Any issue of postage stamps or postal fiduciary values made by the concession holder shall be subject to a legal deposit, in accordance with the regulations in force.

ARTICLE 15.- In the event of reprinting after the first deposit, only the global declaration of the number of copies successively printed after the first circulation shall be subject to legal deposit for each calendar year.

ARTICLE 16.- Any copy deposited must be identical to the copies made available to the public.

CHAPITER IV
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 17.- (1) Postage stamps and postal fiduciary values shall be legal tender indefinitely in Cameroon, unless a decision is taken to withdraw them from sale or destroy them by incineration.
(2) Decisions on withdrawal and destruction shall be taken by an order of the Minister in charge of posts, after a reasoned opinion of the Commission specially convened for this purpose.
(3) The above-mentioned order shall lay down the procedures for withdrawal.
(4) The incineration report shall be drawn up in six (6) copies and signed by all the members of an ad hoc committee designated for this purpose by the Commission. These copies shall be distributed as follows:

- one (1) to the Ministry of Posts and Telecommunications;
- three (3) to the concession holder;
- one (1) to the commission;
- one (1) to the Supreme State Audit accompanied by a report from the Commission.

ARTICLE 18.- The Minister in charge of posts shall be responsible for the implementation of this decree which shall repeal all previous contrary provisions and shall be registered and published in the Official Gazette in English and French./-

Yaoundé, 19 December 2002

The Prime Minister, Head of Government,

(s) Peter Mafany Musonge

DECREE No. 2004/110 OF MAY 10, 2004
On the opening and functioning of a special treasury fund for the development of postal activities.-

THE PRESIDENT OF THE REPUBLIC,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- The present Decree creates under the Minister in charge of posts, a special treasury allocation account for the development of the postal activity.

ARTICLE 2.- The Minister in charge of finance, delegates by order, his powers as vote holder of accounts off budget, to the Minister in charge of Posts for the management of the special fund allocation account created by this Decree.

CHAPTER II
RESOURCES AND USE OF THE SPECIAL ALLOCATION ACCOUNT

ARTICLE 3.- The special fund allocation account provided for in the annual finance bill results essentially from:
- deductions over the year from private operators of the granted activities stated in article 9 of law n°99/002 of may 7, 1999 governing postal activity;
- the Contributions of the telecommunications sector to the postal sector;
- any other deduction upon public or private operators to finance the missions of postal public service;
- the State conributions;
- donations and legacies.

ARTICLE 4.- The special allocation account resources set out in article 3 above, are intended for the financing of:
- the postal sector development operations;
- the postal public service missions;
- training.

CHAPTER III
FUNCTIONING AND MANAGEMENT OF THE OF THE SPECIAL ALLOCATION ACCOUNT

ARTICLE 5.- Applications for the activities listed in article 4 above to be financed by the special treasury allocation account are submitted to the Minister in charge of posts.

ARTICLE 6.- A postal commission is created known as the “commission”. It shall assist the minister in charge of Posts in the management of the special treasury allocation account.
To that effect the commission:
- sets the criteria for the selection of the applications for financing received;
- Give its advice on projects and their financing applications;
- Ensures the execution of the projects and the effective use of the funds to be allocated;
- Carries out other missions assigned to it by the Minister.

ARTICLE 7.- The funding of operations by the special treasury allocation account shall be decided by the Minister in charge of posts upon advice of the commission.

ARTICLE 8.- (1) The commission shall be made up as follows:

- **President**: A personality appointed by the Minister of Posts;
- **Vice-President**: A personality appointed by Minister in charge of finance.
- **Members**:
  - Two representatives of the Minister in charge of Posts one of them being in charge of the secretarial duties of the commission;
  - A representative of the ministry in charge of finance;
  - A representative of the National School of Posts and Telecommunications;
  - A representative of the Telecommunication s Regulatory Board;
  - Three representatives of the postal and parcel sector operators named by their peers; two mail operators and one for the money transfer institutions/companies.

(2) The members of the commission shall be appointed by their various administrations or socio professional organs.
(3) The structure of the commission shall be established by a decision of the minister in charge of Posts.
(4) The members of the commission shall be entitled to a session allowance, the amount of which is set by the minister in Charge of Posts.
(5) The running expenditures of the Commission shall be borne by the special treasury allocation account.

ARTICLE 9.- The commission shall meet at least once in a semester when convened by the Minister in Charge of Posts

ARTICLE 10.- The commission may deliberate validly if only at least two thirds of its members are present. When such quorum is not reached after the first convocation it is brought down to half the members of the commission in the next convocation.

ARTICLE 11.- (1) At the end of each fiscal year, the Minister of Posts shall establish a user account for all revenues and expenses related to the special fund allocation account.
(2) The user account shall be transferred to the Minister in charge of finance.

ARTICLE 12.- Revenue recovery and payment of expenditure of the special fund allocation account shall be managed by an accounting officer who shall:

- be authorised to handle funds and or values and as such, shall be responsible for their safekeeping;
- Be entitled to sign the cheque;
- Be responsible for the authenticity of the records.

(2) The accounting officer shall be responsible for the financial and accounting operations. At the end of each fiscal year, he shall establish a detailed management account of all revenues and expenditure made.
(3) The management account is liable to the Minister of Finance.

ARTICLE 13.- (1) The accounting officer shall be appointed among the treasury accountants by order of the Minister in charge of finance.
(2**)** In his capacity as public accountant, he is liable to caution to surety bond and to the respect of disciplinary rules of accounting management applicable to public accountants.

ARTICLE 14.- The special fund allocation account created by the present Decree shall be opened at the Bank of Central African States

CHAPTER IV:
FINAL PROVISION

ARTICLE 15.- The Minister of posts and Telecommunications and the Minister of Finances are responsible each in his sphere of competence for the implementation of this Decree which shall be registered and published in the official gazette in English and in French.

Yaounde, 10 May 2004

Paul BIYA

PRESIDENT OF THE REPUBLIC

DECREE No. 2005/0704/PM OF 21 MARCH 2005 To lay down the implementation conditions for minimum service in the postal sector.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 99/002 of 07 April 1999 to govern postal activity;
Mindful of Law No. 2003/01 of 21 April 2003 to institute the minimum service in the postal sector;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145 of 04 August 1995;
Mindful of Decree No. 99/151 of 13 July 1999 to organise the Ministry of Posts and Telecommunications and its subsequent amendment texts;
Mindful of Decree No. 2004/320 of 08 December 2004 to organise the Government;
Mindful of Decree No. 2004/321 of 08 December 2004 to appoint a Prime Minister;
Mindful of Decree No. 2004/322 of 08 December 2004 to form the Government;

HEREBY DECREES AS FOLLOWS:

ARTICLE 1.- This decree shall lay down the modalities for the implementation of Law No. 2003/01 of 21 April 2003 to establish a minimum service in the postal sector.

ARTICLE 2.- The minimum service shall be established in the event of strike, insurrection, riot, revolt, revolution, war, mutiny, boycott, piracy or any other circumstance of equivalent effect.

ARTICLE 3.- The following shall be subject to the minimum postal service:
- The concession holder of the public postal service and any other legal person under public law operating in the postal sector;
- The legal persons of private law operating in the postal sector.

ARTICLE 4.- The regulatory authority shall ensure compliance with the minimum service.

ARTICLE 5.- The persons and installations involved in a minimum service shall benefit, during the duration of the said service, from the protection of the law enforcement authorities.

ARTICLE 6.- During the execution of the minimum service and in the event of extreme difficulty, priority shall be given to the administrations in charge of security, national defence and health training.

ARTICLE 7.- When the conditions are met, the Minister in charge of posts shall determine, by order, the duration of the requisition of the various categories of personnel working in the postal sector and necessary for the operation.

ARTICLE 8.- The requisition of personnel must be justified by the disruptions sufficiently serious to jeopardize either to the continuity of the postal service or to the coverage of the essential needs of the population in postal services.

ARTICLE 9.- Failure to comply with the provisions relating to a minimum service as set out above shall incur the responsibility of its author and expose him/her to the criminal penalties provided for by the law governing postal activities and its implementing texts, without prejudice to administrative sanctions.

ARTICLE 10.- The Minister in charge of Posts and the Minister in charge of Territorial Administration, shall be each in charge of the execution of this Decree, which shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, on 21 March 2005

Ephraim INONI

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2005/0706/PM OF 21 MARCH 2005 Fixing the methods, rates of calculation and collection of postal royalties in Cameroon.-

THE PRIME MINISTER,
HEAD OF GOVERNMENT,

MINDFUL of the Constitution;
MINDFUL of Law No 99/002 of 7 April 1999 governing the postal sector;
MINDFUL of Law No 98/013 of 14 July 1998 relating to competition;
MINDFUL of Law No 99/016 of 22 December 1999 on the general statutes of public establishments, and Public and Parapublic Companies;
MINDFUL of Decree No 921089 of 4 May 1992 spelling out the functions of the Prime Minister, modified and supplemented by Decree No 95/145 of 4 August 1995;
MINDFUL of Ordinance No 62/OF/04 of 7 February1962 stipulating the presentation and executing conditions of the budget of the Republic of Cameroon, on income, expenditure and all other related operations modified and supplemented by Law N0 2002/001 of 19 April 2002;
MINDFUL of Decree No 99/151 of 13 July 1999 organizing the Ministry of Posts and Telecommunications and subsequent modifying texts;
MINDFUL of Decree No 2004/110 of 10 May 2004 creating and stipulating the functioning of the Special Appropriation Account with mission to develop the postal sector;
MINDFUL of Decree No 2004/320 of 8 December 2004 organizing the Government;
MINDFUL of Decree No 2004/321 0f 8 December 2004 appointing a Prime Minister;
MINDFUL of Decree No 2004/322 of 8 December 2004 setting up a new Government,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree shall fixe the methods rates of calculation and collection of postal royalties by operators of the postal sector in compliance with Decree No 2004/110 0f 10 May 2004 creating and spelling out the functioning of the Special Appropriation Account for the development of the postal sector.
(2) The Postal royalty is the amount of money paid to operate in the postal sector. It shall constitute the contribution of the operator, public or private, to the development of the postal sector.
(3) The postal royalty which shall be paid into the Special Appropriation Account for the development of the postal sector shall serve the financing of:
- developmental operations of the postal sector;
- missions of the public postal sector;
- training and research.

ARTICLE 2.- The postal royalty shall be managed by an official designated by the Special Appropriation Account to develop the postal sector.

CHAPTER II
SCOPE

SECTION I
PERSONS LIABLE

ARTICLE 3.- (1) Shall be liable to the postal royalty, all persons or corporate bodies, public or private operating in either of the two categories described in sub paragraph (2) below, irrespective of their legal status, corporate status, location of headquarters or of their main establishment, the nationality of the investors or managers, operating permanently or occasionally, directly or through intermediaries, any activity of the postal sector enumerated here below in Section 2 of this chapter.

(2) In line with this Decree, postal networks and services are of two (2) categories:
- **category 1:** national and international postal networks and services;
- **category 2:** national postal networks and services.

SECTION II
TAXABLE OPERATIONS

ARTICLE 4.- The provisions of this Decree are applicable to all postal services within, from and/or to Cameroun.

The following activities shall be taxed:
- the collection, selection, transportation and distribution of mails and parcels through the post;
- press distribution service;
- management and attribution of post boxes;
- issue and sale of postage stamps and postal figurines;
- money transfer through non-banking institutions.

CHAPTER III
CALCULATION METHODS

SECTION I
FACT GENERATING ROYALTY

ARTICLE 5.- The postal royalty shall be generated through the operation of postal services.

SECTION II
BASIS OF CALCULATION OF ROYALTY

ARTICLE 6.- Elements for the calculation of postal royalty shall be based on all amounts or stocks and shares, all benefits, property or services received or still to be received by the postal operator, including profits from terminal dues, transit goods, and assessed contributions in the operation of postal services.

ARTICLE 7.- Incidental expenses on services provided to beneficiaries shall be included among the factors for determining postal royalty cited in article 6 above.

ARTICLE 8.- The following factors shall not be considered in calculating postal royalty:
- payments not related to postal services.
- transportation of mails, goods and assets by the postal operator for internal use.

SECTION III
ROYALTY RATES

ARTICLE 9.- The postal royalty shall be made of:
- an admission, valid for a period of five (5) years renewable in accordance with the postal services provided by the operator in conformity with the authorization and reporting systems. The admission shall be determined without prejudice to the provisions related to the prices of activities that are yet to be agreed upon.

a) Mail activities
i) Mails that weigh 1kg or less than, normal delivery and the press
Category 1……. CFAF 15 000 000/5years;
Category 2……..CFAF 5 000 000/5years;
ii) Express mail (only)
Category 1…….CFAF 40 000 000/5years;
Category 2……CFAF 30 000 000/5years;
iii) Mails that weigh 1kg or less, normal or express delivery
Category 1……CFAF 45 000 000/5years;
Category 2…….CFAF 35 000 000/5years

b) Money transfer activities
i) Normal money transfer
Category 1……..CFAF 25 000 000/5years;
Category 2……CFAF 15 000 000/5years
ii) Express money transfer (through telecommunications means)
Category 1……CFAF 75 000 000 / 5years;
Category 2……CFAF 40 000 000 / 5years.

- an ad valorem duty of 8% applied to the determining factors for calculation as defined in articles 6, 7 and 8 of this Decree.

SECTION IV
SETTLEMENT AND ISSUING

ARTICLE 10.- (1) All dues payable shall first and foremost be notified, then cleared through a voucher issued by the Authorising officer at the Special Appropriation Account for the development of the postal activity.
(2) The base is rounded off to the thousand francs below. The amount of postal royalty is rounded off to 10 francs above.
(3) A voucher is drawn up by the Authorising officer at the Special Appropriation Account for the development of the postal activity and transmitted to the accounting officer for payment, against a receipt issued to the operator.
(4) The operator shall leave a photocopy of the receipt with the Authorising officer at the Special Appropriation Account for the development of the postal activity.

ARTICLE 11.- The Amount of postal royalty shall not be shifted to the price of services provided. It shall be deductible upon the determination of the tax on the operator's revenue.

CHAPTER IV
RECOVERY

SECTION I
PAYMENTS

ARTICLE 12.- The amount of the postal royalty is paid for the admission:

- On obtaining the authorization or declaration from the Minster in charge of Posts.

For ad valorem duty:

- After declaration of the amounts earmarked in Article II of chapter III of this Decree.

The operator shall be informed on the means of payment and shall leave his monthly receipt with the officer in charge of the Special Appropriation Account for the development of the postal activity before the 10th of the month, following that of the realization of the revenues concerned.

ARTICLE 13.- The operator shall pay his admission fee to the accounting officer before obtaining the authorization or the declaration.

ARTICLE 14.- (1) The ad valorem duty of the postal royalty is paid monthly to the accounting officer when depositing the declaration; he shall be issued a receipt.
(2) The operator shall give a photocopy of his receipt to the Authorising officer of the Special Appropriation Account for the development of the postal activity to update his file.

ARTICLE 15.- All monthly declarations related to the royalty shall lead to the production of a rights issue report by the Authorizing Officer of the Special Appropriation Account for the development of the postal activity to be underwritten by the accountant.

ARTICLE 16.- All unpaid dues or other amounts related to the postal royalty must be paid within the deadline, failure which the Authorizing Officer of the Special Appropriation Account for the development of the postal activity shall issue an assessment of contributions notice which is a summons to pay. The accounting officer may, from now onwards, engage forceful recovery procedures for the benefit of the treasury.

SECTION II
OBLIGATION OF TAXPAYERS

ARTICLE 17.- Any person liable for the postal royalty shall:
- make available to the Authorizing Officer of the Special Appropriation Account for the development of the postal activity, within 10 days after the end of each month, a Transaction Reporting for the previous month;
- at the end of the financial year, the operator shall submit to the Authorizing Officer of the Special Appropriation Account for the development of the postal activity, within thirty (30) days, a declaration recapitulating revenues realized on postal activities as stipulated in Article 4 of this Decree, and on royalties produced.

Yaounde, 21 Mars 2005

Ephraim INONI

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2010/2427/PM OF 12 AUGUST 2010
To regulate the conditions of consumption of the services of the concession holder of the public postal service by public administrations.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2006/019 of 29 December 2006 to govern postal activity in Cameroon;
Mindful of Law No. 2007/006 of 26 December 2007 on the fiscal regime of the State;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2004/095 of 23 April 2004 to create the Cameroon Postal Services (CAMPOST);
Mindful of Decree No. 2004/320 of 08 December 2004 to organise the Government, amended and supplemented by Decree No. 2018/268 of 07 September 2007;
Mindful of Decree No. 2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2009/222 of 30 June 2009 to appoint a Prime Minister, Head of Government,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This decree shall regulate the conditions of consumption of the services of the postal concession holder by public administrations.

ARTICLE 2.- The provisions of this decree shall be applicable to the following public administrations:
- the Presidency of the Republic and related services;
- the Parliament;
- the Prime Minister's Office and related services;
- the Economic and Social Council;
- the Supreme Court;
- the Constitutional Council;
- ministries and related services.

ARTICLE 3.- The following shall be excluded from the scope of this decree: public companies and parastatals, public establishments, regional and local authorities.

CHAPTER II
PAYMENT OF POSTAL SERVICES

ARTICLE 4.- Public companies or parastatals and public establishments, as well as regional and local authorities mentioned in article 3 above, shall be required to pay all charges relating to postal services consumed.

ARTICLE 5.- (1) Each public administration referred to in Article 2 above shall be bound to provide a budget line intended to cover the costs of consuming postal services.
(2) The postal concession holder shall draw up and submit monthly invoice of its consumption to each of these administrations.

ARTICLE 6.- The authorized vote holder of the public service concerned shall be responsible for the payment of postal consumption costs and the invoices shall be cleared in accordance with the rules of public accounting principles in force.

CHAPTER III
POSTAL EXEMPTION

ARTICLE 7.- (1) The postal exemption shall be the dispensation from postal taxes granted under certain conditions resulting from the quality of the sender or the addressee.
It shall be valid in the following relations:

- items sent by the Administration in charge of the postal sector;
- letter-post items exchanged between:
  a) the Administration in charge of posts and foreign postal administrations;
  b) the Administration in charge of posts and restricted postal unions;
  c) the Postal Administration and the Universal Postal Union (UPU);
- letter-post items, parcel post items, postal financial services items addressed to or sent by prisoners and civilian internees;
- Literature for the Blind from or to specialized institutions.

(2) The beneficiaries of the above-mentioned postal franchise shall be required to present their items of correspondence at the determined deposit points and in accordance with the procedures defined by the postal concession holder.

CHAPITER IV
FINAL PROVISIONS

ARTICLE 8.- All previous contrary provisions are hereby repealed, namely those of Decree No. 2002/2172/PM of 19 December 2002 to regulate the conditions of consumption of services of the Société Nationale des Postes du Cameroun by public administrations.

ARTICLE 9.- The Minister of Posts and Telecommunications and the Minister of Finance shall be responsible, each in his or her area of competence, for the implementation of this decree which shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 12 August 2010

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2010/2428/PM OF 12 AUGUST 2010
To lay down the modalities for the financing of the provision of universal postal service.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Decree No. 2006/019 of 29 December 2006, to govern the Postal Activity in Cameroon;
Mindful of Law No. 2003/001 of 21 April 2003 to institute a minimum service in the postal sector;
Mindful of Decree No. 92/089 of 4 May 1992 to lay down the attributions of the Prime Minister, as amended and supplemented by Decree No. 95/145bis of 4 August 1995;
Mindful of No. 2004/320 of 8 December 2004 to organize the government, as amended and supplemented by Decree No. 2007/268 of 7 September 2007;
Mindful of Decree No. 2005/124 of 15 April 2005 to organize the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2009/222 of 30 June 2009, to appoint the Prime Minister, Head of Government,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

Article 1.- This decree shall lay down the modalities for financing of the provision of universal postal service in Cameroon.

Article 2.- (1) Terms defined in the Constitution, Conventions of the Universal Postal Union (UPU) Rules and Agreements shall have the meaning given to each of them, when used in this decree, unless expressly provided otherwise.

(2) For the purposes of this Decree, the following definitions shall be applicable:

1. **Regulatory Authority**: public body responsible for regulation, supervision, monitoring competition and arbitration between postal sector actors
2. **Authorization:** Agreement given by the competent authority to an individual or corporate body to operate a network and / or postal service under specific conditions for mail processing.
3. **Distribution**: the final stage of mail processing that consists in forwarding the item to the addressee or in making it available, either at the counter, at home, or in the post office box, either in his work-place, or any other address.
4. **Mail**: item addressed in the final form in which it must be delivered by the postal service provider. In addition, these may be items of correspondence, books, catalogs newspapers, periodicals, printed matters and postal parcels containing goods with or without commercial value.
5. **Essential Requirement**: necessary steps to ensure, in the general interest, confidentiality of correspondence security of users and funds deposited by them, staff and postal operators' facilities, interconnection of their networks and respect for individual freedoms and privacy, and in general, provide territory planning and environment protection.
6. **Certification**: procedure used to assess the compliance of some postal activities, equipment and infrastructure to be installed and operated in a postal public network.
7. **Interconnection**: reciprocal services provided by two postal operators that allow all their customers to communicate freely among themselves.
8. **Mission of public postal service**: all general interest activities performed under conditions defined by law in the postal sector.

9. **Postal Operator**: any individual or corporate body operating a postal network opened to the public or providing a service coming under the postal activity.
10. **Routing plan**: all communication channels, by which items of correspondence are forwarded from collection to delivery.
11. **Postal network**: the whole organization and resources of all kinds used by the provider of a postal service, which contribute to carry out mail processing and postal financial operations.
12. **Minimum service**: all measures to ensure the continuation of the public postal service in serious circumstances such as strikes, insurrections, riots, rebellions, revolutions, wars, mutinies, boycotts, piracy, or any other circumstances having an equivalent effect.
13. **Public postal service:** all postal services of general interest, including financial service, provided under conditions laid down by the law, to ensure equal access to all the customers at affordable rates.

These services are:

- collection, processing, transport and delivery of postal items up to two kilograms;
- cecogrammes up to seven kilograms;
- collection, processing, transport and delivery of postal items up to twenty kilograms;
- mail bags containing newspapers, periodicals books and printed documents identical with the' same addressee and the same address called «M» bags up to 30 kilograms;
- registered items and insured items;
- national accelerated delivery;
- mail box system as defined in Article 3 paragraph 5 of the Postal Law referred to above;
- money orders services;
- means of payment and transfer of funds used by or for the benefit of government and their components;
- deposits of security and guarantees of public accounting officers;
- small savings and microfinance in favor of those excluded from the banking system;
- retirement savings

14. **Universal postal service**: offering high quality basic postal service, providing permanently to customers at affordable and homogenous prices, and, as far as possible, at any point of the national territory by the operator responsible for obligations and missions stemming from Acts of the Universal Postal Union (UPU). Under the law, this offer is concerned with services listed by the Universal Postal Convention.
15. **Service booked:** Service booked: a segment of the postal service exclusively designed to the operator responsible for public service missions, in full or partial consideration of its obligations;
16. **Postal Transport**: professional activity of the transfer of mail from a collection point to another point for processing or distribution.

Article 3.- The universal postal service is the subject of a program of the Government in which are particularly organized and planned the respective roles of the State, the Postal Regulatory Board and the public service concessionary operator.

Article 4.- As part of its development mission, the State ensures the continuation in creating and modernizing the public postal network, to bring people of postal services closer together, regardless of their place of residence.

Article 5.- A concession-holder of public postal service is vested of institutional intermediary role for supplementing the state in these operating activities, including stamps or stickers showing that the probative execution of services are authentic.

CHAPTER II
FUNDING MECHANISMS

Article 6. Any operator which complies with the requirements and justifies the provision of a universal postal service as defined in the specifications, under conditions laid down in Article 16 of Law No. 2006/01 9 of 29 December 2006 governing the postal service is entitled to financing of this activity.

Article 7. The special fund for development in the postal sector provided for in Articles 31, 32 and 33 of Law

No. 2006/019 of 29 December 2006 governing the postal activity contributes to the universal postal service financing.

Article 8. (1) The Postal Regulatory Authority in collaboration with the concession holder shall submit to the approval of the Minister in charge of Posts during the preparation of the State budget for the following year, a draft of the contributions expected from the State for the financing of the Universal Postal Service.
(2) The Postal Regulatory Authority shall, after consultation with postal operators, submit to the minister in charge of Posts, projects relating to other required fund levies for the Universal Postal Service in accordance with the provisions of Article 33 of Law No.2006/019 of 29 December 2006 governing the postal activity in Cameroon.
(3) The Minister in charge of Posts, in collaboration with the Minister in charge of economy, ensures the research and negotiation for various funding from development partners national and international donors, to support development objectives of the Universal Postal Service throughout the national territory.

Article 9. (1) The reserved service is granted and protected for the benefit of the public postal concession holder for full or part financing of its obligations of the Universal Postal Service.
(2) The concession holder shall submit to the Postal Regulatory Authority , the analytical accounts of the impact of the operation of this market share on the balance of its activities.

Article 10. The Minister in charge of Posts, upon a proposal from the Postal Regulatory Authority:
- can, at the beginning of each calendar year, schedule the plan document involving the standard of performance of the Universal Postal Service which may occur during the year;
- can close the annual budget allocated to the financing of the Universal Postal Service as far as the special fund for development of the postal sector is concerned, after consultation with the concession holder;
- shall submit to the Prime Minister an annual report on the situation of the Universal Postal Service.

CHAPTER III
CONTROL AND SANCTIONS

Article 11. The administration in charge of Posts ensures, in collaboration with Postal Regulatory Authority, the organization of control missions to prevent any interference with the normal operation of the Universal Postal
Service.
These missions shall focus on:
- Compliance with the terms contained in the respective specifications of postal operators;
- The recognition and prosecution by sworn officers committed by the Postal Regulatory Authority, for the repression of postal infractions pursuant to Articles 21 to 26 of the Law governing the postal activity in Cameroon;
- The recognition and prosecution by legally competent authorities for the repression of all cases of embezzlement of funds for financing of the Universal Postal Service.

Article 12. The State shall, as appropriate, take the measures it deems legitimate and necessary to monitor and safeguard the effective implementation of the universal postal service, according to the standards set by the administration in charge of Posts, in accordance with international conventions and treaties. For this purpose, it may unilaterally terminate any agreement, execution contract of public service missions, which do not meet the interests of the entire national community.

Article 13. Non-compliance with agreements under the implementation of the universal postal service may result in suspension or withdrawal of authorization or to the termination of the concession agreement, upon a proposal from the Universal Postal Service without prejudice to potential criminal prosecution under Articles 38 to 48 of the law governing the postal activity in Cameroon.

Article 14. The Universal Postal Service shall ensure the execution of obligations related to the universal postal service, according to its missions defined in Law No. 2006/019 of 29 December 2009 governing the postal activity referred to above, in order to facilitate the development of competition between various postal actors.

CHAPTER IV
MISCELLANEOUS AND FINAL PROVISIONS

Article 15. The provision of the universal postal service remains a public service obligation of the State whose specifications can be extended, according to specific requirements of sovereignty or development. This provision is ensured in accordance with the principles of solidarity and cohesion of government action.

Article 16. Public administrations and decentralized local communities, provide as appropriate, their collaboration to safeguard the principles of execution of missions of the universal postal service provided for in Article 16 of the law governing the postal activity for the establishment and citizen ownership of postal culture.

Article 17. The administration in charge of Posts ensures the harmonious implementation of the universal postal service obligations in the fields below, without their limited to:

- Security;
- currency;
- Customs;
- territorial administration;
- Transport;
- Agriculture and Environmental Protection
- Public health;
- Information and communications technologies
- Sustainable development.

Article 18. This decree shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaounde, the 12 August 2010

Philemon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2010/2429/PM OF 12 AUGUST 2010 Fixing the authorisation terms for the installation and operation of postal networks and services.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Decree No. 2006/019 of 29 December 2006, to govern the Postal Activity in Cameroon;
Mindful of Decree No. 92/089 of 4 May 1992 to lay down the competences of the Prime Minister, as amended and supplemented by Decree No. 95/145bis of 4 August 1995;
Mindful of Decree No. 2004/320 of 8 December 2004 to organize the Government, as amended and supplemented by Decree No. 2007/268 of 7 September 2007;
Mindful of Decree No. 2005/124 of 15 April 2005 to organize the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2009/222 of 30 June 2009, to appoint the Prime Minister, Head of Government,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

Article 1.- This decree shall fix the terms of the authorisation for the installation and operation of postal networks and services by private operators.

Article 2.- (1) Terms defined in the Constitution, Conventions of the Universal Postal Union (UPU), Rules and Agreements shall have the meaning given to each of them, when used in this Decree, unless expressly provided otherwise.

(2) For the purposes of this Decree, the following definitions shall be applicable:

a) **Authorization:** Agreement given by the competent authority to an individual or corporate body to operate a network and/or postal service under specific conditions for mail processing.
b) **Distribution:** the final stage of mail processing that consists in forwarding the item to the addressee or in making it available, either at the counter, at home, or in the post office box, either in his workplace, or any other address.
c) **Interconnection:** reciprocal services provided by two postal operators that allow all their customers to communicate freely among themselves.
d) **Postal Operator:** any individual or corporate body operating a postal network opened to the public or providing a service coming under the postal activity.
e) **Routing plan:** all communication channels, by which items of correspondence are forwarded from collection to delivery.
f) **Postal network:** the whole organization and resources of all kinds used by the provider of a postal service, which contribute to carry out mail processing and achieve postal financial operations.
g) **Public postal service:** All postal services of general interest, including financial service, provided under conditions laid down by the law, to ensure equal access to all the customers at affordable rates.

These provisions are:

- collection, sorting, transportation and delivery of postal items up to two kilograms;
- cecogrammes up to seven kilograms;
- collection, sorting, transportation and delivery of postal items up to twenty kilograms;
- mail bags containing newspapers, periodicals books and printed documents identical with the same addressee and the same address called «M» bags up to 30 kilograms; registered items and insured items;

- national accelerated delivery;
- the mail box system as defined in Article 3 paragraph 5 of the Postal Law referred to above;
- money order services;
- the means of payment and transfer of funds used by or for the benefit of government and their components;
- deposits of security and guarantees of public accounting officers;
- the small savings and microfinance in favor of those excluded from the banking system,
- the retirement savings,

h) Universal postal service: permanently provides high quality basic postal services, to customers, at affordable and homogenous prices, and, as far as possible, at any point of the national territory by the operator responsible for obligations and missions stemming from Acts of the Universal Postal Union (UPU). Within the framework of the law, this service provision is concerned with services listed by the Universal Postal Convention.

i) Postal Transportation: professional activity of the dispatch of mail from a collection point to another point for processing or distribution.

Article 3.- The provisions of this decree shall apply to:
- postal services and networks operated by any operator than the concession holder referred to in Article 8 of Law No. 2006/019 of 29 December 2006 establishing the postal activity;
- Independent private postal services and networks.

Article 4.- For the purpose of this decree, postal networks and services shall include the two following categories:
Category one: networks and services with national and international scopes
Category two: networks and services with a national scope

Article 5.- (1) The networks below are not concerned by the provisions of this decree:
- internal public networks;
- Internal private networks;
- Independent public networks whose points of departure and arrival have a distance of less than 1000 metres.

(2) An order of the Minister in charge of posts shall specify the modalities for the setting up and operation of postal networks and services referred to in Paragraph (1) above.

CHAPTER II
MODALITIES FOR THE GRANTING OF THE AUTHORISATION TO INSTALL AND OPERATE POSTAL NETWORKS AND SERVICES

SECTION I
PROCEDURE AND CONDITIONS FOR THE GRANTING OF AUTHORIZATIONS

Article 6.- (1) The authorization file application shall comprise:
- a stamped application;
- the legal statuses of the company;
- a certified true copy of the official identity card of the applicant or that of a representative, in case of a company;
- a criminal record excerpt not older than three months of the promoter, director or manager, in case of a corporate body;
- a certificate certifying his registration at the Trade and Personal Property Registers;
- a certificate certifying the opening of a bank or postal account;
- a location plan of the headquarters of the company;
- a description of all the services to be offered;
- a description of the network to be covered;
- a license title for the current financial year;
- a supporting document of a non-refundable payment receipt issued by the Postal Regulatory Board,

whose amount is fixed by a special instrument of the Minister in charge of Posts.
(2) The complete application file shall be deposited in six (06) copies against a receipt, at the Postal Regulatory Board .

Article 7.- (1) Any authorization application shall be subject to a response, within a maximum period of thirty (30) days, from the acknowledgement of receipt of the application.
However, within the period referred to in (1) the applicant may be asked to provide additional information. In this case, the period runs from the acknowledgement of receipt of the last document of the file.
(2) After the period of thirty (30) days referred to in Paragraph (1) above, the authorisation is deemed granted. In this event, the applicant must go to the Postal Regulatory Board and pay for the charges provided for in this effect.

Article 8.- (1) The authorization to operate shall be refused in the following cases:
- incomplete file;
- absence of competent staff of the postal sector;
- risk of public disorder;
- Needs for national defence and public security;
- Technical and financial inability of the applicant to sustainably face his obligations relating to his activity;
- an applicant who has been subject to one of the sanctions provided for by the Law governing the postal activity.

(2) Any refusal to provide an authorization to the applicant must be justified and notified to the latter within the period mentioned in Article 10 above.

Article 9.- (1) The installation and operation authorizations of postal networks and services shall be issued by the Minister in charge of Posts.
(2) The authorization and possible specifications granted to them shall be published in the Legal Notice Newsletter.
(3) The Ministry in charge of Posts shall issue the authorization to the applicant on the basis of the payment of an annual fixed charge.

Article 10.- (1) The duration of the authorization shall be ten (10) years renewable.
(2) The authorization does not give any exclusive rights to its holder on the segments of the market operated by the latter.
(3) The authorization shall be personal, non-transferrable and cannot be leased or given as a security.

Article 11.- (1) The operator is bound to make known its intention to renew the authorization within a period of six (6) months before the expiry date.
(2) The Postal Regulatory Board shall notify the operator of the authorization renewal conditions or of the reason for refusal, within a period of sixty (60) days from the date of renewal application.

PART II
INSTALLATION AND OPERATION CONDITIONS

Article 12.- The installation and operation conditions of networks opened to the public shall be laid down by the specifications attached to the authorization, in accordance with the provisions of the Law governing the postal activity.

Article 13.- (1) The operator shall take all the necessary measures to:
- ensure the inviolability of objects, funds and values given unto them;
- maintain the services in strict neutrality and without discrimination;
- guarantee the confidentiality of services offered;
- ensure the security of objects, funds and values received.

(2) The operator shall be responsible for sensitising its entire staff on the obligations and sanctions they incur under the provisions of the Criminal Code, including those provided by the Law governing the postal activity.

Article 14.- When the operator calls on service marketing companies, he must ensure, within the contractual relationship between him and these companies, compliance with:

- its obligations relating to the confidentiality and neutrality conditions of corresponding objects, funds and values;
- its commitments towards the Administration in charge of Posts.

Article 15- (1) Postal services and network operators are subject to the payment of charges, taxes, duties and contributions related to their categories under the applicable regulations.
(2) The payment mentioned in Paragraph (1) above are due, even if the holder of the authorization does not use it.

Article 16- (1) The operator shall provide the Postal Regulatory Board, with encrypted data relating to the operation of its network within the financial and commercial area. He agrees to communicate the following data:

a) without delay, any modification of the capital;
b) at least two months before their implementation;
  - the modifications of one of the elements featuring on the authorization application;
  - the description of the entire services offered;

c) before their implementation, tariff and terms and conditions of the service offer;
d) according to a frequency that will be determined by the Postal Regulatory Board.
  - the turnover and traffic data; information needed for the calculation of contributions to the obligation of the Universal Postal Service, to the creation and development of the postal activity;
  - data relating to the quality of service, including those related to relevant indicators that enable its assessment and to routing agreements of mailing piece signed with other private, national or foreign operators;

e) all routing agreements, once they are signed

(2) To a reasoned application of the Postal Regulatory Board, the operator is required to provide other necessary information, which shall be treated in compliance with the business and this shall especially include:

- contracts between the operator and distributors, dealers or commercial companies;
- infrastructure sharing agreements;
- contracts with clients;
- all information necessary to check compliance with competition conditions and agreement or contracts signed between the operator's subsidiaries, companies belonging to the same group or the activity areas of the operator which are different from those covered by the authorization.

Article 17.- The Postal Regulatory Board shall be responsible for monitoring compliance with the authorization conditions. This control shall be carried out within conditions laid down in special acts.

Article 18.- The specifications of operators describe the network installation and operation conditions, including:

- the nature, characteristics and network coverage areas;
- the guarantee conditions for continuity, quality, neutrality and confidentiality of service;
- the nature and characteristic of services offered;
- the compliance with the technical prescription relating to service access and relationship with other operators;
- the necessary operating condition to ensure fair competition, without the prejudice of transferred public service missions;
- the duration, the transfer and renewal conditions of the authorization;
- calculation and revision modalities of the contribution payable for the participation to development of the postal sector nationwide.

Article 19.- (1) Carriers of networks opened to the public are bound to comply, within objective, transparent and non-discriminatory conditions. with the interconnection request of any operator of a postal service opened to the public

(2) The implementation modalities of this service shall be laid down in mutual agreement with the parties concerned.

Article 20.- (1) The authorized carrier is bound to inform the public of its tariffs and terms and conditions of his service offer. He shall forward them to the Postal Regulatory Board before making them public.
(2) The service provided shall be opened to all those who ask for it, in compliance with the terms and conditions of the operators offer. To this effect, the authorized carrier shall organise a distribution network and his services such that it satisfies all requests within the coverage area.
(3) Contracts signed with the partners shall specify the service supply conditions and their technical characteristics, as well as appeal and compensation procedures available to the user in the event of a prejudice. These contracts cannot include clauses contrary to the provisions of the Law governing the postal activity or to the regulatory provisions taken for its implementation.
(4) The authorization issued can equally include provisions aimed at protecting the rights of clients, while considering namely, the commercial methods of services offered.

CHAPTER III
ADMINISTRATIVE SANCTIONS

Article 21.- The Postal Regulatory Board can, either ex officio or upon request from the Administration in charge of Posts, a professional 01 organization, an accredited operator association or users of postal services or an individual or a corporate body, supporting a reason to act, sanction, after observation and verification, the shortcomings of the postal service operators or providers, in accordance with the legislations and regulations governing their activity or the decisions taken to ensure their implementation.

Article 22.- (1) In the event of violation of the legal and/or regulatory provisions, the Postal Regulatory Board shall formally notify the default operator to comply within a maximum period of fifteen (15) days, in accordance with the legislations and regulations in force and/or with the prescriptions under which he carries out his activity.
(2) When a Postal service carrier or provider does not comply with the formal notice at the expiry of the period referred to in Paragraph (2) above. the Administration in charge of Posts, upon proposal of the Postal Regulatory Board, can impose by order on him, one of the following sanctions:
- Suspension of the authorization a maximum period of six (6) months;
- withdrawal of the authorization.

(3) The Administration in charge of Posts, after obtaining the opinion of the Postal Regulatory Board and prior to any sanction, is required to notify the alleged offender of the case against him, the latter shall have up to three working days to consult the related file and react to it in writing.

Article 23.- The holder of an authorization can see the latter been revoked, in the event of an anticipated dissolution, judicial liquidation or bankruptcy.

Article 24.- Subject to a cancellation of title or a forfeiture, the holder of an authorization shall notify the Postal Regulatory Board of any modification incurred:
- in the distribution of the shared capital or in the company's management;
- in a technical condition of networks operation.

Article 25.- The Minister in Charge of Posts can impose, upon proposal of the Postal Regulatory Board, the cancellation and authorization granted when the amendment referred to in the afore-mentioned Article shall be deemed contrary to public interest.

CHAPTER IV
MISCELANEOUS AND FINAL PROVISIONS

Article 26.- The implantation of independent postal private networks is subordinate to compliance with the prescriptions on environment, hygiene, public health, territorial development and town planning, enacted by the regulations in force.

Article 27.- The authorizations issued shall not give rise to the occupation of public domain, nor private properties, without having the necessary titles or agreements.

Article 28.- The Minister of Posts and Telecommunications shall be responsible for the implementation of this Decree, that repeals all contrary prior provisions, especially those of the Decree 2002/2174/PM of 19 December 2002 laying down the postal networks and services installation and operation modalities.

Article 29.- This Decree shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French.

Yaounde, the 12 August 2010

Philemon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

ORDERS

ORDER No. 00000013/MPT OF 05 AUGUST 2010
To lay down conditions to declare the operation of postal networks.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 2006/019 of 29 December 2006, to govern the Postal Activity;
Mindful of Decree No. 2004/320 of 08 December 2004, to organize the Government, as amended and supplemented by Decree No. 2007/268 of 07 September 2007;
Mindful of Decree No. 2005/124 of 14 April 2005, to organize the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2009/223 of 30 June 2009 to reshuffle the Government,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

Article 1.- This Order shall lay down conditions to declare the operation of postal networks in Cameroon.

Article 2.- (1) The declaration shall be made prior to the performance of activities referred to in Article 3 below.
(2) It shall aim at:
- ensuring that the service provided does not fall under the authorization scheme
- verifying that the service follows the basic requirements provided for by the Law;
- ensuring that the service provided is exclusively done so and belongs to the declarant.

Article 3.- Provisions of this Order shall apply to any natural person or body corporate wishing to operate in compliance with provisions of the Law No. 2006/019 of 29 December 2006 governing the postal activity, one of the following activities under the declaration scheme:
- operation of internal public networks;
- operation of internal private networks;
- operation of public and private independent networks of which points of departure and arrival are separated by less than one thousand (1,000) meters;
- personal conveyance by individuals, of mails and/or of newspaper, when the cumulative number of mail and/or copies of newspaper is between ten (10) and twenty-nine (29).

Article 4.- Provisions of this Order shall not apply to postal services referred to in Articles 9, 10 and 11 of the Law No. 2006/019 of 29 December 2006 governing the postal activity.

CHAPTER II
PROCEDURE OF PRIOR DECLARATION

Article 5.- Any natural person or body corporate wishing to set up one of the networks referred to in Article 3 above, shall submit to the Postal Regulatory Board, a prior declaration file in four (04) copies, composed of the following items:
a)- a declaration form provided by the Postal Regulatory Board, including information relating to the declarant person or body corporate;
b)- a payment receipt of an amount of CFA two hundred thousand (200,000) francs issued by the Postal Regulatory Board;

c)- a technical file including:
- the type of service provided and the physical description of the location;
- the description of the nature and characteristics of the network;
- the schedule of operating the network;
- the conveyance plan;
- the complete address of the declarant.

Article 6.- (1) After study of the file by the Postal Regulatory Board, within a period of thirty (30) working days from the date of submission, the declarant shall receive a receipt of declaration signed by the Minister in charge of Posts.
(2) The receipt of declaration is published in a journal of legal notices.
(3) The receipt of declaration is personal and non-transferrable.
(4) After this deadline of 30 days, the applicant is free to work as a matter of right.

Article 7.- The thirty (30) day-period shall be suspended if, after study, the declarant is requested to provide further information relating to his/her file. The period shall start from the date of filing the necessary file.

Article 8.- Any change of network shall be subject to a new declaration following conditions referred to in Article 5 above.

CHAPTER III
CONTROL AND SANCTIONS

Article 9.- The Postal Regulatory Board may, when necessary, carry out controls in accordance with the provisions of the Law governing the Postal Activity under Articles 20 to 28.

Article 10.- (1) Without prejudice of the criminal sanctions referred to in Articles 38 to 48 of Law No. 2006/019 of 29 December 2006 governing the Postal Activity, any natural person or corporate body, who establishes, makes established, operates, makes operated a postal network as referred to in Article 3 of this Order without declaring, shall be put on notice to comply with the laws and regulations within a period of fifteen (15) days. After this deadline, the Postal Regulatory Board may impose one or both of the following sanctions:
- Seizure of equipment;
- Sealing of the premises to keep the equipment.

(2) The Minister in charge of Posts may, upon proposal of the Postal Regulatory Board, terminate the activity if the amendment referred to in Article 8 above is deemed contrary to public interest.

CHAPTER IV
TRANSITION AND FINAL PROVISIONS

Article 11- Natural persons or corporates bodies already operating the afore-mentioned Postal Networks and Services, shall have three (03) months from the date of signature of this Order, to comply with it.

Article 12.- This Order shall be registered, published according to the procedure of urgency and inserted into the Official Gazette in English and French./-

Yaoundé, on 05 August 2010

Jean-Pierre BIYITI bi ESSAM

THE MINISTER OF POSTS AND TELECOMMUNICATIONS

THE TELECOMMUNICATIONS AND ICT SECTOR

LAWS

LAW No 2001/0130 OF 23 JULY 2001
To institute a minimum service in telecommunications sector

The National Assembly deliberated and adopted, during its plenary session of 28 June 2001, Bill No. 703/PJL/AN set out below:

ARTICLE 1:- This Law institutes a minimum service in the telecommunications sector.

ARTICLE 2:- (1)Enterprises, bodies governed by public or private Law operating in the telecommunications sector shall be bound to compulsory minimum service under serious circumstances relating to strikes, uprising, riots, revolts, revolutions, wars, mutinies, boycotts, piracies, or other circumstances having the same effect.
(2) Minimum service shall be renewable as much as possible if need be.

ARTICLE 3:- The Minister in charge of Telecommunications, the Telecommunications Regulatory Board and local competent administrative authorities may, if need be, request for the forces of Law and order in compliance with the regulations in force, to implement minimum service.

ARTICLE 4:- The terms and conditions of the implementation of this Law shall be fixed by a Decree.

ARTICLE 5:- This Law shall be registered and published, according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaounde, 23 July 2001

CAVAYE YEGUE DJIBRIL

PRESIDENT OF THE NATIONAL ASSEMBLY

LAW No. 2010/013 OF 21 DECEMBER 2010 Governing electronic communications in Cameroon.-

The National Assembly has deliberated and adopted, the President of the Republic hereby enacts the following:

PART I
GENERAL PROVISIONS

ARTICLE 1.- This law regulates electronic communications in Cameroon.
To this respect, it

- aims at promoting the harmonious development and the stability of electronic communication networks and services, in view of ensuring this sector's contribution to national economic development, and to satisfy the many needs of the users and the population;
- lays down the conditions for establishing and operating electronic communication networks as well as providing electronic communications services in compliance with the prescriptions of national defence and public security;
- encourages and promotes the participation of the private sector in the development of electronic communications in a competitive setting.

Article 2:- (1) This law shall apply to the various services in the field of electronic communications on the national territory, provided by any electronic communications enterprise, regardless of its legal status, the location of its registered office or main establishment, the nationality of its owners, its capital or its managers.
(2) The following shall be excluded from the scope of implementation of this law:

- broadcasting and cable television companies in respect to their programme production and programming activities;
- State facilities established for the needs of national defence or public security.

Article 3.- (1) The establishment and operation of networks and the provision of electronic communications services shall be subject to compliance with the essential requirements.
(2) The essential requirements referred to in paragraph 1 above are necessary to guarantee in the general interest:

- the safety of users and operating staff of electronic communication networks;
- the protection of networks, and particularly the protection of exchanges of control and management information pertaining to networks;
- where appropriate, the proper use of radio frequency spectrum;
- the interoperability of networks and terminal equipment, as well as the protection of personal data;
- compliance with exposure limits to electromagnetic radiation and electromagnetic compatibility.

Article 4.- All persons have the right to benefit from electronic communication services, regardless of their geographical location on the national territory.

Article 5.- For the purposes of this law and the regulations issued thereunder, the following definitions shall apply:

1. **Subscriber**: a natural or legal entity who is party to a contract with an operator for the use of electronic communication services;

2. **Access**: making available to an operator network elements or electronic communications services with a view to the provision of electronic communications services by the said operator;
3. **Administration in charge of Telecommunications**: Ministry or Minister, as the case may be, vested, on behalf of the Government, with general competence over the Telecommunications and Information and Communication Technologies sector;
4. **Board**: autonomous public body responsible for the regulation, control and monitoring of telecommunications and information and communication technology activities;
5. **Approval**: recognition instrument issued to a natural or legal entity of the right to carry out the activity of installer or test laboratory in the field of electronic communications, approval by the Board to a natural or legal person of the right to carry out an activity in the Telecommunications and Information and Communication Technologies sector;
6. **Universal directory**: book, list or file containing mainly or exclusively data concerning the subscribers of an electronic communication service and made available to the public, with a view to allowing exclusively or mainly the identification of the end-user's telephone number;
7. **Assignment of a radio frequency or channel**: authorisation given for the use by a radio station of a given radio frequency or channel under specified conditions;
8. **Frequency allocation band**: entry in the frequency allocation bands table of a given frequency band for use by one or more terrestrial or space radiocommunication services, or by the radiocommunication service under specified conditions;
9. **Authorisation**: right conferred by the State on a natural or legal person to carry out a given activity in the Telecommunications and Information and Communication Technologies sector, entailing a certain number of obligations.
10. **Local loop**: the physical circuit connecting the customer's termination point to the main distribution frame or equivalent facility of a fixed electronic communications network open to the public;
11. **Submarine cable** refers to a physical medium for electronic communications signals which, uses the marine environment as the cable route. It is said to be "international" when it links two or more States;
12. **Interconnection catalogue**: technical and tariff offer for interconnection published by operators of electronic communications networks open to the public.
13. **Co-location**: provision of space and technical resources necessary for the hosting and connection under reasonable conditions of the relevant equipment of an operator in the framework of a reference offer;
14. **Inter-ministerial Board**: inter-ministerial structure responsible for the allocation of radio frequency bands;
15. **Electronic communication**: the broadcasting, transmission or reception of signs, signals, writing, images or sounds by electromagnetic means;
16. **Electronic emergency communications**: emergency calls or electronic communications in the event of disasters, distress and emergency situations;
17. **Consumer**: any natural person who uses or requests for a publicly available electronic communications service for non-business purposes;
18. **Cryptography**: a set of services implementing the principles, means and methods of transforming data in order to hide their semantic content, establish their authenticity, prevent their modification from going unnoticed, prevent their repudiation' and prevent their unauthorised use;
19. **Local loop unbundling**: refers to a service including associated services, such as co-location, offered by an operator of an electronic communications network open to the public, to enable a third party operator of an electronic communications network to access all or part of the first operator's local loop elements in order to serve its subscribers directly;
20. **Terminal equipment**: any apparatus, facility or set of facilities intended to be connected to a network termination point and which transmits, receives or processes electronic communications signals. It does not include equipment allowing access to audiovisual communication services broadcast over the air or distributed by cable, except where such equipment also allows access to other electronic communications services;
21. **Operator of alternative infrastructures**: a legal person governed by public law or a company holding a public service concession, having infrastructures or rights capable of supporting or contributing to the support of electronic communications networks, without being itself an operator of electronic communications networks open to the public;

22. **Provision of an electronic communications network**: the establishment, operation, monitoring or making available of an electronic communications network;
23. **Radio spectrum management**: a set of administrative and technical actions aimed at ensuring the rational use of the radio spectrum by users;
24. **Homologation**: an expert assessment and verification operation carried out by an approved body to certify that the prototype of electronic communications equipment and systems meets the regulations and technical specifications in force;
25. **Alternative infrastructures**: Installation or set of installations operated by public service concession holders and capable of ensuring or contributing to ensuring either the transmission or the transmission and routing of communications signals;
26. **Interconnection**: A special form of access consisting of the physical and logical linking of public electronic communications networks used by the same or a different operator, in order to enable users to communicate with each other or to access services provided by another operator;
27. **Interoperability of terminal equipment**: the ability of terminal equipment to operate with the network and other terminal equipment providing access to the same service;
28. **Radio installation, station or equipment**: electronic communications installation, station or equipment which uses radio frequencies for the propagation of waves in free space. Radio installations include, inter alia, networks using satellite capacity;
29. **Roaming**: a service that allows communications to be transferred from one allocation network to another, while keeping the same telephone number or allowing subscribers to access one or more satellite systems;
30. **Licence**: an instrument representing an administrative operation allowing, for a given period of time, the exercise of some activities in the telecommunications and information and communication technologies sector according to a set of specifications;
31. **Operator**: natural or legal person operating an electronic communications network open to the public or providing an electronic communications service to the public;
32. **Dominant operator:** refers to an operator of a publicly available electronic communications network whose market share (percentage of revenue or traffic of that operator in relation to the revenue or traffic of all operators) in the relevant market segment is equal to or greater than a percentage to be determined by the Board;
33. **Operator of electronic communications networks**: a person holding a concession or licence;
34. **Termination point**: Physical point through which users access an electronic communications network open to the public. These connection points are part of the network;
35. **Number portability**: the possibility for a subscriber to use the same subscription number, irrespective of the operator or network operator to which he or she subscribes, even if he or she changes operator or network operator;
36. **Cryptography service**: operation aimed at implementing, on behalf of others, cryptographic means;
37. **Radiocommunication**: transmission by means of radio waves of information of any kind, in particular sound, text, images, conventional signs, digital or analogue expressions, remote control signals, signals intended for locating or determining the position of the movement of objects;
38. **Broadcasting**: radio communication whose broadcasts are intended for direct reception by the public;
39. **Backbone network**: a set of facilities for the conveyance of electronic communications and the provision of electronic communications services between the distribution network and the backbone network;
40. **Distribution network**: a set of facilities for the conveyance of electronic communications and the provision of electronic communications services from local intelligent equipment to the subscriber;
41. **Electronic communications network open to the public**: a set of electronic communications networks established or used for public purposes;
42. **Electronic communications network**: Transmission systems, active or passive, and, where applicable, switching and routing equipment and other resources which permit the conveyance of signals by wire, by radio, by optical or by other electromagnetic means, including satellite networks, fixed (circuit- and packet-switched, including Internet) and mobile terrestrial networks, electricity grid systems, insofar as they are used for the transmission of signals, networks used for radio and television broadcasting and cable television networks, irrespective of the type of information transmitted;

43. **Private network**: an electronic communications network reserved for private use or shared by a closed group of users;
44. **Independent private network**: a network established between several domains, sites or private properties and which, as a result, uses the public domain, including over the air and/or third party sites or private properties;
45. **Internal private network**: an electronic communications network established entirely on the same estate, site or private property, without using the public domain, including radio space, or third party property;
46. **Virtual private network**: a private electronic communications network which can use the infrastructure of a public network to transmit data which are protected through the use of encryption or encapsulation techniques;
47. **Rural network**: an electronic communications network fully established for rural populations;
48. **Resale of traffic**: the act of purchasing wholesale traffic from a concession holder operator, with a view to reselling them at retail to its own customers;
49. **Carrier selection**: a mechanism that allows a user to choose between one or a combination of authorised public electronic communications network operators or authorised telecommunications service providers to carry some or all of their calls;
50. **Value-added service**: service offered to the public through the public electronic communications network by means of computer systems allowing access to data relating to specific domains in order to consult or exchange them;
51. **Data transmission service**: service of simple transport of data, without processing;
52. Elec**tronic communications service**: a service consisting wholly or mainly of the provision of electronic communications;
53. **Carrier service**: a service merely for the conveyance of information, the purpose of which is either to transmit or to transmit and convey signals between termination points of an electronic communications network, without subjecting such signals to any processing other than that necessary for their transmission, routing and control;
54. **Public telephone service**: the commercial operation for the public of direct real-time voice transfer between fixed or mobile users;
55. **Telex service**: the commercial operation of the direct transfer, by exchange of signals of a telegraphic nature, of typed messages between users at the termination points of an electronic communications network;
56. **Universal service**: a minimum set of defined good quality services which is accessible to the whole population on affordable tariff conditions irrespective of geographical location;
57. **Easement**: the right to install infrastructure and equipment on, over or under private property;
58. **Radio easement**: an easement which consists of a limitation on the height of obstacles in defined areas around transmitting or receiving centres, in order to prevent any disturbance of the radio waves transmitted or received by these centres;
59. **Global Mobile Satellite Communications Systems** (GMPCS): a fixed or mobile, broadband or narrowband, global or regional, geostationary or non-geostationary, existing or planned satellite system providing electronic communications services directly or indirectly to end-users from a constellation of satellites;
60. **Community telecentre**: a common infrastructure that offers electronic communications services from a terminal or terminals made available to a community to enable it to communicate at an affordable price;
61. **Telecommunications**: any transmission, emission or reception of signs and signals, writing, images, sounds or information of any nature, by wire, optical, radio or other electromagnetic system;
62. **Cable television**: the transmission or retransmission of broadcasting signals received by satellite or by an appropriate ground-based or locally produced system to subscribers through a cable or wireless network;
63. **User**: a natural or legal person using an electronic communications service for private or business purposes without necessarily subscribing to that service.

PART II
LEGAL REGIME FOR ELECTRONIC COMMUNICATIONS NETWORKS AND SERVICES

Article 6.- (1) The following shall be the exclusive domain of the State and may not be the subject to a concession:
- legislation and regulations relating to electronic communications;
- management of the frequency spectrum and national orbital positions.

(2) The following belong to the exclusive domain of the State and may be the subject to a concession to one or more legal persons under public or private law, under the conditions defined in Article 9 below:
- the construction and operation throughout the national territory of landing points for submarine cables
- the construction and operation of teleports to one or more satellite networks.

Article 7.- The establishment and/or operation of networks as well as the provision of electronic communication services are subject to one of the following regimes:
- authorisation;
- declaration.

CHAPTER I
AUTHORIZATION REGIME

Article 8.- There are three types of authorization:
- Concession;
- Licence;
- Approval.

SECTION I
CONCESSION

Article 9.- (1) The following State domains may be the subject of a concession, in whole or in part, to one or more legal persons under public or private law by means of agreements fixing, in particular, the rights and obligations of the beneficiary of this concession:
- the establishment and operation of electronic communications networks with national coverage open to the public, excluding transport networks;
- the establishment and operation of electronic communications transport networks, including the operation of submarine cable landing stations and teleports to one or more satellite networks.

(2) The concession is granted to any corporate body, bidder to a competitive invitation to tender and that is committed to adhere to the provisions of this law, as well as the specification clauses governing the terms and conditions to establish and operate electronic communication networks.

(3) The concession referred to in paragraph 1 of this Article shall be subject to compliance with the requirements contained in a specification attached to the agreement and relating to:
- the nature, characteristics and coverage area of the service;
- the conditions of permanence, quality and availability of the service;
- the conditions of confidentiality and neutrality of the service with regard to the messages transmitted;
- the network and service norms and standards;
- the use of assigned frequencies;
- the requirements for national defence and public security, the protection of health and the environment and town planning objectives;
- the operator's contribution to research, training and standardisation in the field of electronic communications;
- the conditions of interconnection and, where applicable, the principle of payment of charges for access to electronic communications networks open to the public;
- the conditions of infrastructure sharing;
- the terms of contribution to the general missions of the State and, in particular, to the missions and charges of universal service and regional planning;
- the free routing of emergency electronic communications;

- the commercial operating conditions necessary to ensure fair, objective, transparent, non-discriminatory competition at affordable prices, without distorting or hindering the exercise of free competition, ensuring equal treatment of all users;
- the duration, termination and renewal conditions;
- the modalities for calculating and revising the contribution payable for participation in the development of electronic communications throughout the territory.

(4) The concession agreement and the specifications negotiated and drawn up in accordance with the legislation and regulations in force shall be approved by decree of the President of the Republic.

(5) The holder of a concession agreement shall be subject to the payment of a financial consideration, fees and contributions, the terms of which shall be specified in the said agreement.

SECTION II
LICENCE

Article 10.- (1) The licence shall be issued to any natural or legal person to establish and operate, in particular:

- any supporting service;
- radio networks in one or more localities with the exception of those referred to in Article 9 above;
- independent private networks excluding those referred to in Article 16 below;
- temporary networks;
- experimental networks;
- collection and/or distribution networks for the provision of electronic communications services to the public;
- electronic communications networks open to the public in rural areas;
- virtual networks open to the public;
- telephone number portability.

(2) The modalities for the establishment and/or operation of the electronic communications networks and services referred to in paragraph 1 above shall be defined by regulation.

(3) The licence issued shall be subject to compliance with a set of specifications relating to:

- the nature, characteristics and coverage area of the service;
- the conditions of permanence, quality and availability of the network and the service;
- the conditions of confidentiality and neutrality with regard to the messages transmitted and the information linked to electronic communications;
- the conditions required for the protection of health and the environment and by the objective of regional and urban planning, including, where applicable, the conditions of occupation of the public domain and the terms of infrastructure sharing;
- the requirements of national defence and public safety;
- compliance with the technical requirements concerning access to the service, its interconnection with other support services and the compatibility of its operation with those services;
- the free routing of emergency electronic communications;
- the conditions necessary to ensure the interoperability of services;
- the obligations imposed on the operator to enable it to be monitored by the Board;
- information on the contractual conditions for the provision of the service and consumer protection;
- the duration, termination and renewal conditions of the licence;
- the arrangements for calculating and revising the contributions payable;
- the terms of contribution to the general missions of the State and, in particular, to the missions and charges of universal service and regional planning;

(4) The holder of a licence may provide the public with value-added services linked to its licence, in accordance with the modalities defined by regulation.

Article 11.- The licence holder is subject to the payment of fees and contributions, the terms of which are specified by the regulations in force and in the specifications.

Article 12.- Owing to technical constraints inherent in the availability of frequencies, the Administration in charge of Telecommunications may submit the issuance of a licence for the establishment and/or operation of an electronic communications radio network open to the public to a competitive bidding procedure.

Article 13.- Activities in the area of electronic communications carried out on the national territory by foreign institutions and bodies enjoying the personality of international law shall be carried out in accordance with the agreements signed and ratified by the Republic of Cameroon. Such activities shall be subject to licensing in accordance with this Law, unless otherwise stipulated in the said agreements.

SECTION III
APPROVAL

ARTICLE 14. - (1) The following are subject to an approval:
- the activity of installer of electronic communications equipment and infrastructure;
- laboratories for testing and measuring electronic communications equipment;
- the approval of terminal equipment which is intended to be connected to a public electronic communications network;
- radio installations.

(2) The procedures for obtaining approval shall be laid down by regulation.

CHAPTER II
DECLARATION REGIME

Article 15.- (1) The following activities shall be subject to a prior declaration against receipt:
- the provision of value-added services to the public;
- the provision of Internet services to the public;
- the resale of telephone traffic;
- any electronic communications service from Global Mobile Satellite Communications System (GMPCS) terminals;
- the use of a leased line with a capacity of more than 10 megabits per second.

(2) The declaration shall be subject to operating conditions relating to:
- the nature and technical characteristics of the equipment, the coverage area and the provisional implementation schedule;
- the conditions of permanence, availability, quality and neutrality of the service;
- compliance with the technical requirements concerning access to the service, its interconnection with other support services and the compatibility of its operation with those services;
- the requirements for national defence and public security;
- the methods of calculating the contributions payable for participation in the development of electronic communications throughout the national territory.

Article 16.- The following may be established by simple declaration against receipt:
- private internal networks;
- independent private networks other than radio networks whose termination points are less than 300 metres apart and whose links have a capacity of less than 10 megabits per second;
- radio installations consisting exclusively of low-power, short-range equipment, the categories of which are determined by the Administration in charge of Telecommunications.

Article 17.- The modalities for obtaining a declaration as well as the conditions of operation of the networks and installations referred to in Article 16 above are determined by a specific text.

Article 18.- The provision of electronic communication services other than those referred to in Articles 9, 10, 14, 15 and 16 above is free, subject to compliance with the essential requirements referred to in Article 3 of this law.

Article 19.- No one may, in territorial waters, on board a ship or boat, in airspace, on board an aircraft or any other medium subject to Cameroonian law, hold a radio communication transmitter and/or receiver, or establish and operate a non-public radio communication station or network without having declared and obtained a licence.

CHAPTER III

PROVISIONS COMMON TO THE AUTHORIZATION AND DECLARATION REGIMES

Article 20.- (1) The issuance and renewal of a concession agreement or a licence shall be subject to the payment of a financial consideration known respectively as the "entry fee" and the "renewal fee", the amounts and payment terms of which shall be fixed by decree of the President of the Republic, on the joint proposal of the Minister in charge of Telecommunications and the Minister in charge of Finance.
(2) Concession agreements, licences, approvals and declaration receipts issued pursuant to the provisions of the preceding chapters shall be personal and non-transferable. They shall be published in a newspaper for legal notices as well as, where applicable, the specifications attached to them.
(3) A performance bonus deducted from the resources collected in respect of the entry fee and the renewal fee shall be granted to the staff responsible for the regulation of the telecommunication and information and communication technology sector;
(4) The implementation terms of paragraph 3 above shall be specified by regulation.

Article 21.- (1) The Administration in charge of Telecommunications may cancel the licence, the approval or the declaration receipt and declare the forfeiture of its holder in the event of a decision of early dissolution, judicial liquidation with or without authorization for the continuation of the enterprise, or bankruptcy.
(2) Any holder of a concession, licence or declaration receipt shall be required to inform the Board referred to in Article 36 below of any change in the distribution of the share capital or in the management of the company.
(3) Where the modification provided for in paragraph 2 above is deemed to be contrary to the public interest, the Board shall refer the matter to the Administration in charge of Telecommunications, with a view to cancelling the concession, the licence, the approval or the receipt of declaration.

Article 22.- In accordance with the regulations in force, this law provides for:
- the opening to nationals, of public or private law, of the capital of the holders of concession agreements when it is held by foreigners and this, from the beginning, of the commercial operation;
- the integration of nationals, under public or private law, in the management bodies of companies with majority foreign capital.

Article 23.- (1) Operators and managers of electronic communications networks shall keep cost accounting to determine the costs, revenues and returns of each network operated and each service offered.
(2) The accounts and summary statements, drawn up no later than six months following the closing date of the financial year, may be submitted to audits, at the operators' expense, by an approved body designated by the Board.
(3) The purpose of the audit is to ensure that the summary statements reflect in a regular and sincere manner the costs, revenues and returns of each network operated or each service offered.

Article 24.- Persons authorized to establish an electronic communications network open to the public and providers of electronic communications services, as well as their staff, shall be bound to secrecy regarding the content of users' communications.

Article 25.- Actions and practices whose purpose or effect is to prevent, restrict or distort competition in the electronic communications market are prohibited.

Article 26.- (1) Operators and providers of electronic communications networks shall be required to provide, at the request of the Board or the Administration in charge of telecommunications, the necessary information, documents and data, within the time limits.
(2) The information held by the Board shall be transmitted to the Administration in charge of telecommunications, at its request.

PART III

UNIVERSAL SERVICE AND DEVELOPMENT OF ELECTRONIC COMMUNICATIONS

CHAPTER I

UNIVERSAL SERVICE

Article 27.- The right referred to in article 4 of the present law is constituted by:
- The possibility offered to any person to be connected to public networks and to have access to basic electronic communication services;
- the benefit of other electronic communication services according to the coverage area of each service;
- freedom of choice of the provider of electronic communications services;
- equal access to electronic communications services;
- access to basic information on the conditions for the provision of electronic communications services and their pricing.

Article 28.- (1) The universal service obligation for electronic communications covers the provision of good quality electronic communications services to all, at affordable tariff conditions, on an uninterrupted basis.
(2) The following are considered to be part of the universal service obligation for electronic communications:
- the possibility of connection to the public telephone network ;
- the provision of public access points to electronic communications services throughout the national territory;
- access to emergency services;
- the possibility for some social groups to benefit from special measures;
- the routing of electronic communications to and from subscription points;
- the free routing of emergency electronic communications;
- the provision of a universal printed and electronic subscriber directory and a free information service;
- any other activity in the Telecommunications and Information and Communication Technologies sector determined by the public authorities.

(3) Universal service is a dynamic concept whose content is subject to periodic review by the Administration in charge of Telecommunications.

Article 29.- The operators' specifications shall determine the obligations and conditions for the provision of the universal service of electronic communications.

Article 30.- The financing of the costs attributable to the universal service obligation is ensured by all the operators of the electronic communications networks open to the public and by all the providers of electronic communications services to the public, under the conditions set forth by the respective agreements or specifications.

Article 31.- A specific text shall determine the modalities for sharing the revenues resulting from the production and publication of the universal subscriber directory.

CHAPTER II

DEVELOPMENT OF ELECTRONIC COMMUNICATIONS

Article 32.- The development of electronic communications consists notably in:
- serving rural areas not covered by the operators' specifications;
- reducing the deficit in the coverage of the national territory by means of electronic communications eligible for subvention;
- reorganising the frequency spectrum;
- supporting research, training and standardisation in the field of electronic communications;
- supporting the development of underprivileged sectors of the national economy through the use of electronic communications;
- Paying the State's financial contributions to international organisations in the telecommunications and

information and communication technologies sector;
- any other activity that contributes to the development of the Telecommunications and Information and Communication Technologies sector.

Article 33.- The implementation terms of the universal service and the development of electronic communications are determined by regulation.

CHAPTER III
FINANCING UNIVERSAL SERVICE AND THE DEVELOPMENT OF ELECTRONIC COMMUNICATIONS

Article 34.- (1) A Special Fund for Telecommunications is hereby established.
(2) The resources of the Special Fund for Telecommunications referred to in paragraph 1 above shall come, in particular, from:
- the annual contributions from operators of electronic communications services, up to 3% of their turnover excluding taxes;
- state subsidies;
- revenues from the production and publishing of the universal subscriber directory;
- the budgetary surplus of the Board referred to in Article 36 below;
- the portion of the entry and renewal fees resulting from the sale and renewal of authorisations;
- donations and bequests.

(3) The resources of the Special Fund for Telecommunications are public funds intended, in accordance with the priorities established by public authorities, to finance:
- the universal electronic communications service;
- the development of electronic communications throughout the country;
- the development of information and communication technologies;
- activities connected to the security of electronic communication networks and information systems.

(4) The resources of the Special Fund for Telecommunications shall be collected by the Board referred to in Article 36 below and deposited in an account opened at the Central Bank.
(5) Network operators and service providers shall be subject to the payment of an annual fee of 1.5% of their turnover excluding tax, for the operation of the Board, in accordance with the terms and conditions laid down by a regulatory text.
(6) A committee shall be set up to validate priority projects for universal service and the development of telecommunications and information and communication technologies.
The operating terms of this Committee shall be determined by a regulatory text.
(7) The Minister in charge of telecommunications shall be the authorized vote holder for expenditures from the Fund.
(8) A decree of the President of the Republic shall determine the modalities of management of the Special Fund for Telecommunications.

PART IV
REGULATION AND CONTROL OF ELECTRONIC COMMUNICATIONS

CHAPTER I
POLICY FOR THE DEVELOPMENT OF THE TELECOMMUNICATIONS AND INFORMATION AND COMMUNICATION TECHNOLOGIES SECTOR

Article 35.- (1) The Administration in charge of telecommunications shall ensure the preparation and implementation of the sector policy of Telecommunications and Information and Communication Technologies, taking into account the technological evolution in this sector, the development needs and the priorities of the government in this field. It shall ensure the implementation of this policy and compliance with the relevant legislation and regulations.
(2) The Administration in charge of telecommunications shall also ensure, among other things:
- the supervision of the telecommunications and information and communication technologies sector, the supervision of public telecommunications and information and communication technologies companies;
- representing the State at international organisations and events concerning telecommunications and in-

formation and communication technologies;
- determining the number of operators in each market segment, taking into account scarce resources;
- guaranteeing the optimal use of the scarce resources available, taking into account the economic constraints of the markets;
- launching invitations to tender for concessions and licences;
- signing concession agreements;
- formal issuing of licences to operators and licensees, after the Board has given its opinion;
- the definition of a tariff policy;
- the conduct of strategic sector studies.

CHAPTER II
REGULATION AND MONITORING OF THE ACTIVITIES OF ELECTRONIC COMMUNICATIONS OPERATORS AND SERVICE PROVIDERS

Article 36.- (1) This law establishes a Telecommunications Regulatory Board, hereinafter referred to as "the Board", with legal personality and financial and decision-making autonomy.
(2) The Board provided for in paragraph 1 above shall ensure, on behalf of the State, the regulation, control and monitoring of the activities of operators in the telecommunications and information and communication technologies sector. It also ensures adherence to the principle of equal treatment of users in all electronic communication companies.
In this respect, its missions include:
- ensuring the application of legislative and regulatory texts relating to telecommunications and information and communication technologies;
- ensuring that access to open networks to the general public is done under objective, transparent and non-discriminatory conditions;
- guaranteeing healthy and fair competition in the telecommunications and information and communication technologies sector;
- sanctioning the breaches of operators to their obligations as well as the anti-competitive practices;
- defining the principles governing the pricing of the services provided;
- examining licence applications and preparing the relevant decisions;
- formally delivering the receipts of declaration;
- laying down conditions and obligations for interconnection and sharing of infrastructures;
- issuing an opinion on all draft legislative and regulatory texts relating to electronic communications;
- ensuring the assignment and control of the frequency spectrum;
- preparing the tender documents for concessions and licenses;
- establishing and managing the numbering plan;
- submitting to the Government any proposal and recommendation aimed at developing and modernizing the telecommunications and information and communication technologies sector;
- assigning addressing resources;
- advising on approval files of terminal equipment and preparing related decisions;
- delivering the approvals;
- carrying out any other mission of general interest that the Government may entrust to it in the telecommunications and information and communication technologies sector.
- guaranteeing consumer protection;

(3) The Board referred to in paragraph 1 above shall be placed under the technical supervision of the Ministry in charge of Telecommunications and under the financial supervision of the Ministry in charge of Finance.
(4) A decree of the President of the Republic shall determine the organization and functioning of the Board.

CHAPTER III
MANAGEMENT OF THE FREQUENCY SPECTRUM

Article 37.- (1) The radio frequency spectrum is part of the public domain of the State.
(2) The Administration in charge of Telecommunications shall ensure, on behalf of the State, the management of the frequency spectrum provided for in paragraph 1 above. In this capacity, its general mission shall be to coordinate, plan, control and optimize the use of the said frequency spectrum in accordance with national

needs and in conformity with the provisions of the Convention, the Constitution and the Radio Regulations of the International Telecommunication Union, as well as other relevant international treaties.
(3) The allocation of radio frequency bands shall be entrusted to the Inter-ministerial Committee for Frequency Band Allocation (CIABAF), placed under the authority of the Administration in charge of Telecommunications.
(4) The organization and functioning of the Committee referred to in paragraph 3 above shall be the subject of a specific text.

Article 38.- In the event of interference caused by transmitting or receiving radio stations, the Committee referred to in paragraph 3 of Article 37 above may prescribe any technical measure to remedy it.

Article 39.- (1) The use of frequencies shall be subject to the payment of a fee determined by regulation.
(2) The payment and distribution terms of this fee between the Public Treasury, the Committee referred to in paragraph 3 of Article 37 and the Board, shall be determined by a special text issued by the Minister in charge of Telecommunications.

Article 40.- (1) The Administration in charge of Telecommunications may, after consulting the Board, limit the number of frequency assignment agreements.
(2) Where the number of frequency assignment agreements is limited, the Board may issue such agreements only after a call for competition.

Article 41.- The conditions for operating and monitoring the use of frequencies shall be laid down by regulation.

CHAPITER IV
INTERCONNECTION AND ACCESS TO THE NETWORK

Article 42.- (1) Operators of electronic communications networks open to the public shall be required to grant, under objective, transparent and non-discriminatory conditions, requests for interconnection and access to the network from any operator of electronic communications services open to the public who holds a concession, a licence or a receipt of declaration.
(2) Interconnection and access to the network shall be the subject of an agreement between the parties, which shall determine, in particular, the technical and financial conditions, in accordance with the provisions of this Law and those of its implementing texts.
(3) The agreement provided for in paragraph 2 above shall be subject to approval by the Board, which may request its amendment at any time if it considers that the conditions of competition and interoperability of electronic communications networks and services are not guaranteed.
(4) The request for interconnection shall be made in writing and addressed directly to the recipient operator by any means that leaves a written record. The receiving operator shall be required to reply within a maximum of sixty (60) days from the date of receipt of the request. After this period, the applicant may refer the matter to the Board in accordance with the provisions of Articles 66, 67, 68 and 69 of this Law.
(5) Every operator operating a fixed telephony network open to the public shall publish a reference offer for unbundled access to its local loop and related resources each year, in accordance with its specifications.
(6) Related facilities include, inter alia, those facilities associated with the provision of unbundled access to the local loop, such as co-location of connecting cables and relevant IT systems to which access is necessary to enable a beneficiary to provide competitive basic services.
(7) Operators holding concessions shall publish, in accordance with the conditions laid down in their specifications, the interconnection catalogues previously approved by the Board.

Article 43.- (1) A request for interconnection and network access may not be refused if it is justified in terms of the applicant's needs, on the one hand, and the operator's ability to meet them, on the other. Reasons shall be given for any refusal of interconnection.
(2) The cost of interconnection shall be borne by the applicant.
(3) In the event of disagreement between the parties, the dispute shall be submitted to the Board.

Article 44.- The modalities for unbundling the local loop and for the provision of telephone service to the public shall be laid down in a specific text.

CHAPTER V
INFRASTRUCTURE SHARING

Article 45.- The infrastructures of electronic communication networks open to the public established on the public domain may be used by other operators for the provision to the public of any electronic communication service.

Article 46.- (1) The sharing of infrastructures shall be the subject of an agreement between the two parties concerned, which shall determine, in particular, the technical and financial conditions, in compliance with the provisions of this law and its implementing texts. This agreement shall be subject to approval by the Board, which may request that it be amended at any time if it considers that the conditions of interoperability of the networks are not guaranteed. The said agreement shall, where appropriate, be published in a legal notice newspaper at the Board's initiative.
(2) The request for infrastructure sharing shall be made in writing. The operator managing the infrastructures concerned shall be required to reply within a maximum of sixty (60) days from the date of receipt of the request.
(3) A request for infrastructure sharing may not be refused if it does not create any disturbance or other technical difficulty with regard to the proper establishment of the network and the proper operation of the service. Any refusal of infrastructure sharing shall be justified.
(4) In the event of disagreement between the two parties, the dispute shall be brought to the attention of the Board with a view to finding a solution.

Article 47.- Operators of alternative infrastructures are required to transfer, under the supervision of the Administration in charge of telecommunications, to the network operator, any surplus capacity they may have after having deployed infrastructures intended for their own needs, and/or rights of way over the public domain, easements, rights of way, civil engineering works, arteries and pipes as well as high points that they have.

Article 48.- The conditions of interconnection, access to the network and sharing of infrastructures shall be determined by regulation.

CHAPTER VI
NUMBERING AND ADDRESSING

Article 49.- (1) The Board shall establish and manage the national numbering and addressing plan. This plan shall determine all the addresses and numbers used to identify the termination points of electronic communications networks and services, to route calls and to access the internal resources of the networks, in accordance with the recommendations of the International Telecommunication Union. It shall ensure equal and simple access by users to the various networks and services and the equivalence of numbering formats.
(2) The addressing resources referred to in paragraph 1 above include, in particular, the semaphore point codes and the electronic communication network codes.

Article 50.- (1) The Board shall allocate addresses, prefixes and numbers or blocks of numbers to operators who request them, under objective, transparent and non-discriminatory conditions, in return for a fee to be set by regulation.
(2) The conditions of use of these addresses, prefixes, numbers or blocks of numbers shall concern:
- the type of service for which use of the resources is reserved;
- the efficient and relevant use of the numbers allocated;
- the compliance with number portability requirements;
- the payment of usage fees.

(3) Subscribers to an electronic communications network open to the public shall be entitled to the number portability service under the conditions laid down by regulation.

(4) The conditions for the rental and use of addresses, prefixes, numbers or blocks of numbers provided for in paragraph 1 of this Article shall be specified in the management rules issued by the Board, where applicable, in the operators' specifications.

CHAPTER VII
CONSUMER PROTECTION

Article 51.- Consumers, in their relations with operators, are entitled to a subscription contract, the template of which is validated beforehand by the Board.

Article 52.- Consumers of electronic communication services have the right, namely to:
- access to electronic communication services, with quality and regularity standards inherent to its nature, throughout the national territory;
- freedom to choose his\her service provider;
- non-discrimination in terms of access and conditions of use of the service;
- adequate information concerning the conditions of supply of services, tariffs and other charges relating thereto;
- the inviolability and secrecy of his communications, except in the legally and regulatory applicable conditions;
- at his/her request, the non-disclosure of his/her access identifier;
- the non-suspension of the service provided, except for non-compliance with the clauses of his/her contract;
- prior information on the suspension clauses of the contract;
- referral of complaints against the service provider to the Board and to consumer protection bodies;
- answers from the service provider regarding his/her complaints;
- compensation for damages resulting from the breach of his/her rights.

Article 53.- The consumer of electronic communication services has the obligation to:
- make proper use of the electronic communication services, equipment and networks made available to them;
- respect public property;
- communicate to the competent authorities any irregularities or illegal acts committed by the providers of electronic communication services.

Article 54.- Operators shall take all measures relating in particular to the protection of privacy, security, information on the quality of service, tariffs and costs of electronic communications.

CHAPTER VIII
IDENTIFICATION OF SUBSCRIBERS AND TERMINALS

Article 55.- (1) Operators of electronic communications networks open to the public, as well as service providers, shall be required to identify subscribers and terminals at the time of any subscription. They shall keep up-to-date lists.
(2) The procedures for the identification of subscribers and terminals referred to in paragraph 1 above shall be determined by regulation.

CHAPITER IX
TERMINAL EQUIPMENT

Article 56.- (1) The marketing of terminal equipment on the national territory is free. However, when such equipment is intended to be connected to a network open to the public, it must be approved under the conditions stipulated by this law. In all cases, approval shall be required for radio installations, whether or not they are intended to be connected to a network open to the public.
(2) The purpose of the approval referred to in paragraph 1 above is to guarantee compliance with the essential requirements and to verify the conformity of terminal equipment and radio installations with the norms

and standards in force in Cameroon, as well as their interoperability.
(3) A regulatory text shall define the approval procedures for radio installations intended to be connected to electronic communication networks.

Article 57.- (1) A regulatory text shall define the maximum thresholds for exposure to electromagnetic radiation emitted by equipment used in electronic communication networks or any other equipment emitting electromagnetic radiation, when the public is exposed to it.
(2) Compliance with these thresholds may be verified on site by bodies meeting the quality requirements laid down in a statutory instrument.

CHAPTER X
CRYPTOGRAPHY SERVICES

Article 58.- (1) The supply, export, import or use of cryptographic means or services associated with the transmission of information shall be subject to:
- prior declaration, when the sole purpose of this means or service is to authenticate a communication or to ensure the integrity of the message transmitted;
- prior authorisation in other cases.

(2) However, the conditions listed in paragraph 1 above shall not apply to cryptographic functions integrated in sector application software used by users.
(3) A specific text shall determine the conditions under which the declaration and the authorization mentioned in this Article shall be made.

PART V
ELECTRONIC COMMUNICATION EASEMENTS

Article 59.- To prevent interference in the propagation of radio waves emitted or received by centres of any kind operated or controlled in the general interest, the competent administrative authority shall establish easements.

Article 60.- (1) The concession holders of the State's rights as provided for in Article 9 paragraph 1 and the operators of networks open to the public, duly authorised, shall benefit from a right of way on the public road domain and from easements on the parts of collective buildings and allotments assigned to a common use, as well as on the ground and subsoil of non-built properties, in accordance with the legislation and regulations applicable in the matter.
(2) The operators referred to in paragraph 1 above shall benefit from the same rights and easements on the non-road public domain, subject to the signature with the concessionary or managing authority of the public domain in question of agreements conferring such rights and easements. Such rights and easements may give rise to the payment of fees, in compliance with the principle of equality between operators.
(3) Operators of networks open to the public, authorised in accordance with Article 9 paragraph 1 of this law, may occupy the public road domain by installing works insofar as such occupation is not incompatible with its use.

Article 61.- In order to ensure the conservation and normal operation of electronic communication networks, easements may be instituted for the protection of cables and network lines.

Article 62.- The existence of an easement may not impede the right of owners or co-owners to demolish, repair, modify or close their property. However, the owners or co-owners must, at least three (3) months before undertaking any work likely to affect the works, inform the beneficiary of the easement.

Article 63.- The installation of infrastructures and equipment must be carried out with respect to the environment and the aesthetic quality of the place and in the least harmful conditions for private properties and the public domain.

Article 64.- When the easements lead to the removal or modification of a property, in the absence of an amicable arrangement, the property shall be expropriated for public utility, in accordance with the laws and regulations in force.

PART VI
ADMINISTRATIVE AND PENAL PROVISIONS

CHAPTER I
SETTLEMENT OF DISPUTES BETWEEN OPERATORS

Article 65.- (1) The Board shall be competent to handle, prior to referral to any court, disputes between operators of electronic communication networks relating, in particular, to interconnection or access to an electronic communication network, unbundling of the local loop, numbering, frequency interference, physical co-location and infrastructure sharing.
(2) The Board's competence as provided for in paragraph 1 above is possible only if the facts, which are the subject of the dispute, do not constitute a criminal offence.
(3) In order to provide a better framework for the sector and because of its technical nature, the Board shall have a body responsible for the settlement of disputes in accordance with the laws and regulations in force.
(4) The Board may, on its own initiative or at the request of one of the parties, attempt to conciliate in order to find an amicable solution to the dispute. It may take such measures as it considers appropriate for this purpose, including, where appropriate, the assistance of internal or external experts. The conciliation decision must be taken within a maximum of thirty (30) days from the date of referral to the Board.
(5) If the dispute is settled out of court in whole or in part, the Board shall draw up a conciliation report signed by all the parties and the Board. In the light of the minutes, which shall constitute an agreement between the parties, the Board shall take a conciliation decision establishing the amicable settlement of the dispute. This conciliation decision shall be notified to the parties, who shall comply with it within thirty (30) days.
(6) If the conciliation procedure initiated by the Board fails, a record of non-conciliation shall be drawn up. The Board shall refer the matter to the body referred to in paragraph 3, which shall initiate the necessary enquiries and investigations in order to rule on the dispute.
(7) The body referred to in paragraph 3 above shall decide on the request within forty-five (45) days from the date of filing of the decision, which shall be notified to the parties by bailiff's writ.
(8) The decisions of the body may be appealed against, either before the arbitrator or before the ordinary courts.
(9) The reasoned decisions rendered by the arbitrators shall specify the technical and financial conditions that justify them. They shall be binding on the parties, who shall comply with them within thirty (30) days, and shall be communicated to the Board which may publish them.
(10) Where the dispute between the operators is of such a nature as to paralyse the normal functioning of the electronic communications networks or services, the Board shall take, before any final settlement of the said dispute, any precautionary measure enabling the continuity of the service or the functioning of the networks.
(11) Resort to one of the procedures provided for in paragraph 8 above shall not suspend the execution of the decision when the dispute concerns one of the areas referred to in paragraph 1 above. However, the stay of execution may be ordered by the appeal court or by the representative of the Board after hearing.
(12) A stay of execution of the decision shall be ordered, on the one hand, if the decision is likely to entail manifestly excessive consequences or if new facts of exceptional gravity have arisen subsequent to its notification and, on the other hand, if a plea is raised which, in the light of the investigation, creates serious doubts as to its legality.
(13) Where operators of electronic communications networks resort to the ordinary courts, the procedure applicable is that of urgency. In this case, the civil court referred to shall be obliged to dispose of the case within a maximum of sixty days from the commencement of the proceedings.

CHAPTER II
ADMINISTRATIVE PROVISIONS

Article 66.- The Board may, either ex officio or at the request of the Administration in charge of Telecommu-

nications, a professional organization, an approved association of users or a natural or legal person concerned, sanction, after ascertaining or verifying, the breaches of network operators or providers of electronic communications services, in accordance with the legislative and regulatory provisions relating to their activities or the decisions taken to ensure their implementation.

Article 67.- Where the holder of a concession agreement, a licence, an approval or a declaration receipt, issued in application of this law, does not comply with the obligations imposed on him/her by the legislative and regulatory texts, he/she may be given formal notice to comply.

Article 68.- (1) In the event of a duly noted failure to comply, in accordance with Articles 66 and 67 above, the Board shall give formal notice to the offending operator to comply with the legislative and regulatory provisions or with the requirements of the legal instrument under which he carries out his activity, within a maximum period of fifteen (15) days. It may render the formal notice public.
(2) Where a network operator or electronic communications service provider fails to comply with the formal notice provided for in paragraph 1 above, the Board may impose one of the following sanctions on it:
- the suspension of its operating licence for a maximum period of one (01) month;
- reduction of one (01) year on the duration of his operating licence;
- withdrawal of the operating licence.

Article 69.- Without prejudice to the sanctions provided for in Article 68 above,
(1) Operators and providers of electronic communications networks who, without legitimate reasons, refuse requests for interconnection, access to a network or to the electronic communications service to other operators in the sector, shall be liable to a fine between 100,000,000 (one hundred million) francs and 300,000,000 (three hundred million) francs.
(2) Operators and providers of electronic communications networks who establish or operate an electronic communications network or service without an operating licence shall be liable to a fine of 100,000,000 (one hundred million) to 550,000,000 (five hundred and fifty million) francs.
(3) Operators of electronic communications networks who, on becoming aware of a fraudulent connection to their network, maintain such a network shall be liable to a fine of 50,000,000 (fifty million) to 150,000,000 (one hundred and fifty million) francs.
(4) Operators and providers of electronic communications networks who have an electronic communications network, subnetwork or service established or operated or provided to persons who do not have an operating licence shall be liable to the fine provided for in paragraph 2 above.
(5) Electronic communications network operators and electronic communications service providers who violate a decision to suspend or withdraw their operating licence shall be liable to a fine of 200,000,000 (two hundred million) to 400,000,000 (four hundred million) francs.
(6) Operators of electronic communications networks and providers of electronic communications services who violate the provisions of Article 55 above relating to the identification of subscribers and terminals shall be liable to a fine of 200,000,000 (two hundred million) to 500,000,000 (five hundred million) francs.
(7) Operators and providers of electronic communications networks who fail to comply with any of the clauses of their specifications shall be liable to a fine of 100,000,000 (one hundred million) to 200,000,000 (two hundred million) francs.
(8) Operators and suppliers of electronic communications networks who fail to comply with the following shall be liable to a fine of 50,000,000 (fifty million) to 150,000,000 (one hundred and fifty million) francs:
- the obligations to provide the Board and the Administration in charge of telecommunications with the information required by the regulations in force concerning the use of radio frequencies and electronic communications equipment;
- the deadlines for providing the information required by the regulations in force;
- the obligations relating to the identification of subscribers and terminals of electronic communications networks.

(9) The fines provided for in paragraph 3 above shall be imposed on operators of electronic communications networks who fail to comply with :
- the obligations to provide the Board and the administration in charge of telecommunications with the information required by the regulations in force or by the latter with regard to the interconnection of public electronic communications networks;

- the obligations relating to the provision to the Board and the Administration in charge of telecommunications of information concerning cost accounting and auditing of accounts, as required by the regulations in force or as required by the latter;
- the obligations relating to the publication of tariff offers;
- the obligations to provide the Board and the Administration in charge of telecommunications with the information required by the regulations in force or required by the latter with regard to the universal service;
- the obligations relating to the provision to the Board and the Administration in charge of telecommunications of information concerning research and training and the universal subscriber directory.

(10) Operators and providers of electronic communications networks and electronic communications services who fail to comply with the obligations relating to the provision to the Board and to the Administration in charge of telecommunications of the required information other than that referred to in paragraphs 7 and 8 above shall be liable to a fine of 25,000,000 (twenty-five million) to 75,000,000 (seventy-five million) francs.
(11) All fines shall be imposed by the Board in accordance with a procedure established by regulation.
(12) The fines provided for above shall be recovered by the Board.
(13) A performance bonus deducted from the resources recovered in respect of fines shall be granted to the staff responsible for regulating the telecommunications and information and communication technologies sector.
(14) The implementation conditions of paragraphs 12 and 13 above shall be specified by regulation.

Article 70.- Any person who has no intention of interrupting electronic communications and who orders an action that has the effect of interrupting electronic communications shall be liable for compensation in accordance with the legal provisions in force.

Article 71.- Any natural or legal person who, without prior authorisation, carries out any of the activities subject to one of the regimes provided for by this law, shall be given formal notice. After the formal notice, the dismantling of its installations follows at its expense.

Article 72.- (1) In case of a serious event affecting the security of the State, the President of the Republic may order operators and service providers to take any measure, ranging from restricting access to some services to temporarily suspending electronic communications in all or part of the national territory.
(2) In the event of serious and immediate infringement of the laws and regulations governing electronic communications, the Board may, after hearing the parties concerned, order precautionary measures to ensure the continued operation of the networks.

Article 73.- The Board may not be notified of facts dating back to over five (05) years if no action to investigate, establish or punish them has been taken before that period.

CHAPTER III
PENAL PROVISIONS

Article 74:- (1) Without prejudice to the prerogatives of the State prosecutor's office and judicial police officers with general jurisdiction, sworn agents specially designated by the Board are responsible for the investigation, recording and prosecution of offences committed in the area of electronic communications. They shall take an oath before the competent court, at the request of the Board, in accordance with the procedures laid down by regulation.
(2) In the performance of their duties, the Board's sworn agents may:
- carry out unannounced checks and draw up reports on infringements committed in the field of electronic communications;
- carry out, under the supervision of the State Prosecutor, searches and the seizure of equipment used in the perpetration of criminal acts and the closure of premises, in accordance with the texts in force.

(3) The agents referred to in paragraph 2 above shall benefit, at their request, from the assistance of the forces of law and order in the exercise of their duties and in particular, for the identification and arrest of suspects.

Article 75.- (1) The establishment of an offence must give rise to the drafting of a report in which the legally empowered official responsible for recording the offence accurately describes the facts of which he/she has established the existence and the statements he/she has recorded.
(2) The report shall be signed by the official who issued the report and by the offender.
(3) Where the offender refuses to sign, the report shall be deemed authentic until proven otherwise and shall not be subject to confirmation.
(4) The report shall be transmitted to the State Prosecutor or any other territorially competent authority within a period not exceeding eight (08) days.

Article 76.- (1) Any person on board a vehicle or any other device who voluntarily, or through negligence or failure to observe the regulations, breaks an electronic communications cable or causes damage to it which may interrupt or hinder all or part of electronic communications, shall be required, upon arrival, to notify the nearest local authorities of the breakage or damage to the cable of which he is guilty.
(2) The offences provided for in paragraph 1 above may be recorded by reports drawn up by officers of the Judicial Police and agents of the Public Force.
(3) Any person found guilty of the offences referred to in paragraph 1 above shall be punished by imprisonment for a period of three (03) months to one (01) year and a fine of 1,000,000 (one million) francs to 5,000,000 (five million) francs, or by one of the two fines only.

Article 77.- The criminal penalties applicable to unfair competition provided for by the specific texts on the subject are doubled when the competition relates to the field of electronic communications.

Article 78.- (1) Notwithstanding the liability of the managers and agents of the operators and providers of electronic communication networks and services who are legal entities, the pecuniary liability of the latter may be incurred if it is established that the offence committed by the natural person has resulted in the enrichment of the company or if it was committed in the exercise or on the occasion of the exercise of his duties within the company.
(2) In the events provided for in paragraph 1 above, the fine imposed shall be the maximum provided for by the text punishing the offence.

Article 79.- Within the framework of the crackdown on infringements provided for in this law, the stay of execution cannot be ruled.

Article 80.- Any person who, while participating in the performance of an electronic communications service, violates the secrecy of correspondence or who, without the authorisation of the sender or recipient, discloses, publishes or uses the content of the said correspondence, is punished by imprisonment for a period of six (6) months to two (2) years and a fine of 1,000,000 (one million) to 5,000,000 (five million) francs or one of these two punishments only.

Article 81.- (1) Any person who, by means of an electromagnetic, acoustic, mechanical or other device, voluntarily or involuntarily intercepts a private communication and discloses it shall be liable to the penalties provided for in Article 77 above.
(2) The provisions of Articles 80 and 81 paragraph 1 shall not apply to:
a) to persons who have obtained the express consent of either the originator of the private communication or the recipient of the said communication;
b) to persons who intercept a private communication at the request of a judicial authority in accordance with the laws applicable in the field:
c) persons who provide an electronic communications service to the public and who intercept a private communication in any of the following events;
   - in the course of monitoring the service or of an unannounced check necessary for technical or operational reasons for the provision of the service and for verifying its quality;
   - where such interception is necessary for the provision of the service;
   - where such interception is necessary to protect rights or property directly related to the provision of an electronic communications service.
d) to members of the Inter-ministerial Committee for Radio frequency Band Allocation and the Board, in

respect of a private communication intercepted for the purpose of identifying, isolating or preventing the unauthorised use of a frequency or transmission.

Article 82.- (1) Any person who fraudulently uses for personal purposes an electronic communications network open to the public or fraudulently connects to a private line by any means shall be punished by imprisonment for a period of one (01) year to five (05) years and a fine of 5,000,000 (five million) to 200,000,000 (two hundred million) francs, or by one of these two punishments only.
(2) The penalties provided for in paragraph 1 above shall be doubled in the event of use open to the public by the perpetrator of the fraud.

Article 83.- (1) Any person who knowingly uses services obtained by means of the offence referred to in Article 78, paragraph 1, above, shall be punished by imprisonment for a term of six (6) months to two (2) years and a fine of 1,000,000 (one million) to 5,000,000 (five million) francs, or by one of these two penalties only.
(2) The penalties provided for in paragraph 1 above shall be doubled in the event of use open to the public.

Article 84.- (1) Any person who transmits, without authorization, signals or correspondence from one place to another, either by means of electronic communication equipment or by any other means defined in Article 78 of this Law, shall be liable to imprisonment for a period of one (1) month to one (1) year and to a fine of 1,000,000 (one million) to 5,000,000 (five million) francs.
(2) The court referred to may also order the confiscation of the installations, devices or means of transmission, or their destruction at the expense of the offender.

Article 85.- Anyone who knowingly transmits or puts into circulation false or misleading distress signals or calls on the radio channel shall be punished by imprisonment of between six (6) months and one (1) year and a fine of between 1,000,000 (one million) and 10,000,000 (ten million) francs.

Article 86.- Anyone who disturbs, by using a frequency or a radio installation, without possessing the necessary authorisation provided for by this law, the radio broadcasts of an authorised service is punished by imprisonment of one (01) month to one (01) year and a fine of 1,000,000 (one million) to 5,000,000 (five million) francs.

Article 87.- Anyone who makes radio transmissions by deliberately using a call sign of the international series allocated to a State station or to an authorized private station is punished by imprisonment of three (03) months to one (01) year and a fine of 1,000,000 (one million) to 5,000,000 (five million) francs.

Article 88.- Anyone who, by any means, deliberately causes the interruption of electronic communications is punished by imprisonment of two (02) to five (05) years and a fine of 5,000,000 (five million) to 50,000,000 (fifty million) francs.

Article 89.- Anyone who fraudulently removes one or more drivers through direct or indirect participation in an electronic communication service shall be punished by imprisonment of one (01) to five (05) years and a fine of 5,000,000 (five million) to 25,000,000 (twenty-five million) francs.

Article 90.- Anyone who imports, manufactures or holds with a view to marketing, distributes free of charge or for a fee, connects to a network open to the public or advertises terminal equipment and electronic communications installations which have not been approved under the conditions provided for in this law shall be punished by imprisonment for a period of two (02) to five (05) years and a fine of 1,000,000 (one million) to 20,000,000 (twenty million) francs, or by one of these two penalties only.

Article 91.- Infringements of easements as provided for in this law are punishable by imprisonment for a period of six (6) months to two (2) years and a fine of 1,000,000 (one million) to 20,000,000 (twenty million) francs or one of these two penalties only.

Article 92.- Anyone who, in territorial waters or on the continental shelf adjacent to the territory of Cameroon, voluntarily breaks a submarine cable or causes or attempts to cause damage to it that is likely to interrupt all or part of electronic communications shall be punished by imprisonment of two (02) to five (05) years and a

fine of 500,000,000 (five hundred million) to 800,000,000 (eight hundred million) francs.

Article 93.-Any person who, in maritime zones, breaks a submarine cable through carelessness, imprudence, negligence or non-compliance with regulations, or causes damage to it that interrupts all or part of electronic communications, and who fails to make a declaration within twelve hours to the local authorities of the nearest Cameroonian port, shall be punished by imprisonment for a period of three (3) months to one (1) year and a fine of 50,000,000 (fifty million) to 250,000,000 (two hundred and fifty million) francs, or one of the two penalties.

Article 94.- Where the offences referred to in Articles 90 and 91 above are committed in territorial waters or on the continental shelf adjacent to the territory of Cameroon by a member of the crew of a Cameroonian or foreign vessel, they shall fall within the jurisdiction of the courts of Yaounde or those of:

- the home port of the vessel on which the perpetrator is embarked;
- the first Cameroonian port where the vessel will land, whose territorial jurisdiction extends to the maritime extension of the place of the offence.

Article 95.- (1) Without prejudice to the implementation of the provisions of the Customs Code, any person who exports or imports a means of cryptography without authorisation shall be punished by imprisonment for a period of one (01) to three (03) months and a fine of 1,000,000 (one million) to 20,000,000 (twenty million) francs, or either of these two penalties.

(2) In the event of a conviction, the Court may also order the confiscation of cryptographic means and, in addition, prohibit the person concerned from requesting such authorisation for a maximum period of two (02) years.

PART VII
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

Article 96.- (1) This law creates a body called the "National Agency for Information and Communication Technologies" NAICT, responsible for promoting and monitoring the action of public authorities in the field of information and communication technologies.

In this respect, NAICT's missions include:

- drawing up and monitoring the implementation of the national strategy for the development of information and communication technologies;
- identifying the common needs of public services with respect to IT equipment and software;
- ensuring the harmonisation of technical standards and proposing technical references, in order to foster interoperability between information systems;
- providing its expertise to administrations for the design and development of their technical purposes;
- coordinating the setting up and ensuring the monitoring of Web Sites, Intranet and Extranet of the State and public organisations;
- contributing to the technical training of university trainers, government high schools, colleges, teacher training colleges and primary schools;
- participating in personnel training actions of the State in the Information and Communication Technology domain, by providing recommendations on the content of technical training and on the syllabuses of professional examinations and competitive examinations;
- maintaining the technical cooperation relationship with public or private international bodies acting in this domain, following the conditions provided for by the legislation in force. In this light, it is responsible for the registration of the names of domains ".cm";
- setting up mechanisms to resolve disputes on the one hand, between Information and Communication Technologies' operators and on the other hand, between operators and users, for problems that are specifically connected to contents and quality of service (spamming, phishing, hacking);
- ensuring professional conduct in the use of Information and Communication Technologies as well as the protection of intellectual property, consumers, public morals and privacy;
- developing policy and procedures for the registration of the ".cm" domain names, hosting, administration of root servers, allocation of authorisation of the ".cm" Registrar;
- planning, allocating and controlling Internet addresses (IP) in Cameroon;

- setting up mechanisms to ensure the security of Internet at the national level;
- regulating information technologies, communication and Internet.

(2) The organisation and functioning of NAICT shall be determined by a decree of the President of the Republic.

Article 97.- (1) Public telecommunications and information and communication technology companies existing on the date of enactment of this Law shall benefit by right from the concession for the exercise of activities related to their corporate purpose.
(2) Any change in these companies must be approved by the President of the Republic.

Article 98.- (1) Other holders of valid concessions and authorisations have a period of one (01) year from the date of enactment of this law to comply with its provisions.
(2) To this end, the compliance of concession agreements and authorisations in force on the date of enactment of this law shall be determined by agreement between the parties.

Article 99.- (1) The staff and assets of the Telecommunications Regulatory Board established by Law No. 98/014 of 14 July 1998 governing telecommunications in Cameroon and the National Agency for Information and Communication Technologies established by Decree No. 2002/092 of 8 April 2002 shall be vested in the Telecommunications Regulatory Board and NAICT respectively, established by this Law.
(2) The status conferred by the two above-mentioned bodies on staff transferred to the Telecommunications Regulatory Board and NAICT under paragraph 1 above shall under no circumstances be less favourable than that held by the persons concerned at the date of their transfer.

Article 100.- (1) The fees for frequency management, entry fees and licence renewal fees shall be collected by the Board.
(2) A specific text shall determine the distribution key for the fees referred to in paragraph 1 above.

Article 101.- A joint order of the Minister in charge of Telecommunications and the Minister in charge of Finance shall determine the rates for services provided by the Board and, where applicable, by the Inter-ministerial Committee provided for in Article 37 of this law, as well as the costs of proceedings before the Board and the methods of collecting them.

Article 102.- Holders of authorisations referred to in Articles 9, 10, 14, 15 and 16 of this law shall be required to register with the Board or, where applicable, with the Administration in charge of telecommunications within six (6) months of the date of enactment of this law. Otherwise, they are deemed to have renounced the benefit of their authorisations.

Article 103.- Specific texts determine, as necessary, the implementation terms of this law.

Article 104.- This law, which repeals all previous contrary provisions, shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaounde, 21 December 2010

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

LAW No. 2010/012 OF 21 DECEMBER 2010 Relating to cybersecurity and cybercrime in Cameroon

The National Assembly deliberated and adopted, the President of the Republic hereby enacts the law set out below:

PART I
GENERAL PROVISIONS

ARTICLE 1.- This law governs the security framework of electronic communication networks and information systems, defines and punishes offences related to the use of information and communication technologies in Cameroon.
Accordingly, it seeks notably to:
- build trust in electronic communication networks and information systems;
- establish the legal regime of digital evidence, security, cryptography and electronic certification activities;
- protect basic human rights, in particular the right to human dignity, honour and respect of privacy, as well as the legitimate interests of corporate bodies.

ARTICLE 2.- This law shall not cover the specific applications used in national defense and security.

ARTICLE 3.- The electronic communication networks targeted by this law shall include:
Satellite, ground and electronic networks when they are used to route electronic communications and audio-visual communication broadcast or distribution networks.

ARTICLE 4.- Within the meaning of this law and its implementing instruments, the following definitions shall be accepted:
(1) **Illegal access**: unauthorized intentional access to all or part of an electronic communication network, an information system or terminal equipment;
(2) **Administration in charge of telecommunications**: Ministry or Minister as the case may be, invested with general powers over telecommunications and information and communication technologies by the Government;
(3) **Algorithm**: series of basic mathematical operations to be applied to data to achieve a desired result;
(4) **Asymmetric algorithm**: cipher algorithm using a public key to cipher and a private key (different)to decipher messages;
(5) **Symmetric algorithm**: cipher algorithm using the same key to cipher and decipher messages;
(6) **Active attack**: action modifying or altering the resources targeted by the attack (violation of the integrity and confidentiality of data);
(7) **Passive attack**: action that does not alter its target (eavesdropping, invasion of privacy);
(8) **Integrity violation**: action carried out intentionally to substantially disrupt or disable an information system, electronic communication network or terminal equipment by inputting, transmitting, damaging, deleting, deteriorating, altering, supressing or making data inaccessible;
(9) **Security audit**: systematic examination of components and security actors, policies, actions, procedures and resources used by an organization to protect its environment, conduct compliance tests controls to assess the adequacy of (organizational, technical, human and financial) resources allocated for risks, optimization, efficiency and performance;
(10) **Authentication**: safety criteria defined using a specific process to verify using a specific process to verify the identity of a person or entity and ensure that the identification given corresponds to the identity of the person initially registered;
(11) **Certification Authority**: trusted authority responsible for the creation and assignment of public and private keys and electronic certificates;

(12) **Root Certification**: structure put in place in charge of mission of accreditation of certification authorities, validating certification policy of certification authorities accredited, validating and signing certification authorities accredited certificates;
(13) **Digital certificate**: electronic record secured by the electronic signature of the person who issued it after ensuring that it certifies the authenticity of its contents;
(14) **Qualified electronic certificate**: digital certificate issued by a licensed Certification Authority;
(15) **Electronic certification**: issuance of electronic certificates;
(16) **Cipher**: the transformation of information using a secret key to make it illegible to anyone except those possessing special knowledge of the key;
(17) **Key**: in a cipher system, it corresponds to a mathematical value, a word, or a phrase which enables the ciphering or deciphering of a message with the help of the encryption algorithm;
(18) **Private key**: key used in asymmetric cipher mechanism (or public key cipher) which belongs to an entity and kept secret;
(19) **Public key**: used to cipher a message in an asymmetric system distributed freely;
(20) **Secret key**: key known to the sender and recipient used to cipher and decrypt using the symmetric cipher mechanisms;
(21) **Source code**: all technical specifications, with no restrictions on access or implementation of a software or communication protocol, interconnection, interchange, or data format;
(22) **Audiovisual communication**: public communication by television and radio broadcasting services;
(23) **Electronic communication**: electromagnetic emission, transmission or reception of signs, signals, writings, images or sounds;
(24) **Confidentiality**: maintenance of the confidentiality of information and transactions to prevent unauthorized disclosure of information to non-recipients enabling the reading, listening, intentional or accidental, illegal copying during storage, processing or transfer;
(25) **Content**: all information relating to data belonging to individuals or legalentities, transmitted or received through electronic communication networks and information systems;
(26) **Illegal content**: content that infringes on human dignity, privacy, honour or national security;
(27) **Electronic mail**: messages in the form of text, voice, sound, image transmitted through a public communication network, stored in a network server or the recipient's terminal equipment until he receives it;
(28) **Encryption**: use of codes or signals to convert information to be transmitted in the form of signals that are not understood by others;
(29) **Cryptography**: all resources used to analyse initially encrypted information to be decrypt;
(30) **Encrypted text**: encrypted or encoded message;
(31) **Cryptography**: use of mathematical algorithm to encrypt information in an attempt to make it unintelligible to those who are not authorized to access it;
(32) **Cybercriminality**: infraction of the law carried out through cyberspace using means other than those habitually used to commit conventional crimes;
(33) **Cybersecurity**: technical, organizational, legal, financial, human, procedural measures for prevention and deterrence and other actions carried out to attain set security objectives through electronic communication networks and information systems, and to protect privacy;
(34) **Certification practice statement**: practices (organization, operational procedures, technical and human resources) that the competent certification authority applies within the framework of the provision of this service in accordance with the certification of a policy or policies it undertook to comply with;
(35) **Decryption**: reverse of encryption;
(36) **Denial of service**: attack by saturation of a resource of information system or electronic communication network to make it collapse and unable to provide expected services;
(37) **Distributed Denial of Service**: simultaneous attack of the resources of an information system or electronic communication networks in order to saturate and simplify the effects of interference;
(38) **Availability**: security criterion of sources of electronic communication networks, information systems and terminal equipment being accessible and usable as required (time factor);
(39) **Device for electronic signature creation**: equipment and/or private encryption software certified by a competent authority, configured to create an electronic signature;
(40) **Device for electronic signature verification**: equivalent and/or public encryption software certified by a competent authority used by a certifying authority to verify electronic signatures;
(41) **Data**: representation of facts, information or concepts in a form suitable for processing by terminal equipment, including a c allowing it to perform a function;

(42) **Connection data**: data relating to the access process in an electronic communication;
(43) **Traffic data**: data relating to an electronic communication indicating the origin, destination, route, time, date, size and duration or type of underlying service;
(44) **Terminal equipment**: equipment, installation or facilities to be connected to the endpoint of an information system which broadcasts, receives, processes and stores information data;
(45) **Reliability**: ability of an information system or electronic communications network to operate without any incident for a very long time;
(46) **Provider of electronic communication services**: natural person or corporate body providing services consisting entirely or mainly in the provision of electronic communications;
(47) **Impact severity**: assessment of the gravity of an incident, weighted by its frequency of occurrence;
(48) **Data integrity**: safety criterion defining the status of an electronic communications network, an information system or terminal equipment that remains intact and helps ensure that resources have not been altered (modified or destroyed) intentionally and accidentally to ensure their accuracy, reliability and durability;
49) **Illegal interception**: accessing data from an electronic communications network, an information system or terminal equipment without having the right or authorization to do so;
(50) **Lawful interception**: illegal or unauthorized access to the data of an electronic communications network, an information system or terminal equipment;
(51) **Intentional Intrusion**: intentional and unauthorized access to an electronic communications network or an information system with the intent of causing harm or deriving economic, financial, industrial, or security benefit or sovereignty;
(52) **Intrusion by intellectual challenge**: intentional access without right to an electronic communications network or an information system with the intent of taking up an intellectual challenge that can help improve the performance of the organisation's security system;
(53) **Deceptive software**: software that performs operations on a user's terminal equipment without initially informing him of the exact nature of the operations to be performed on his terminal equipment by the software or without asking his approval for the software to perform the operations;
(54) **Spyware**: specific deceptive software that collects personal information (most visited websites, passwords etc.) from a user's electronic communications network;
(55) **Potentially unwanted software**: software having the features of a deceptive software or spyware;
(56) **Plain text**: version of a message that is intelligible to and understandable by all;
(57) **Cryptographic means**: equipment or software designed or modified used in transforming data, be it information or signals, using secret codes or to perform an inverse operation with or without a secret code to guarantee the storage or transmission of data and ensure the confidentiality and control of their integrity;
(58) **Non-repudiation**: security criterion that ensures the availability of evidence that can be used to prove the traceability of an electronic communication that has taken place;
(59) **Certificate policy**: set of rules that define standards to be respected by Certification Authorities when providing their services, indicating the applicability of a certificate to a particular community and/or class of applications with common security requirements;
(60) **Security policy**: security benchmark established by an organization which reflects its security strategy and specifies the means to achieve it;
(61) **Provision of cryptographic service**: operation aimed at implementing cryptographic solutions on behalf of others;
(62) **Electronic communication's network**: active or inactive transmission systems, and where applicable, switching and routing equipment and other resources that enable signal routing by wire, radio, optical means or other electromagnetic means, including satellite, terrestrial networks, fixed (circuits, or packets switching including the internet) and mobile networks, systems using electrical networks, provided they are used to transmit signals, networks used for radio and television and cable television networks, irrespective of the type of information transmitted;
(63) **Telecommunication networks**: installation or group of installations used in the transmission and routing of telecommunication signals, or exchange of command and management information associated with its signals between network points;
(64) **Security**: situation in which someone or something is not exposed to any danger. Mechanism to prevent any havoc or their attendant effects;
(65) **Certification services**: service provided by a Certification Authority.

(66) **Electronic communication's service**: service consisting wholly or mainly in the provision of electronic communications, except the content of audiovisual communication services;
(67) **Representative**: individual acting on his own behalf or on behalf of the person or entity he represents, which involves a device for creating an electronic signature;
(68) **Electronic signature**: signature obtained by an asymmetric encryption algorithm to authenticate the sender of a message and verify its integrity;
(69) **Advanced electronic signature**: electronic signature obtained using a qualified electronic certificate;
(70) **Open standard**: communication, interconnection or exchange and interoperable data format protocol whose technical specifications and access are public and have no restriction or implementations;
(71) **Detection system**: system that helps detects incidents that could lead to security policy violations and help diagnose potential intrusions;
(72) **Information system**: devices or group of interconnected or related devices performing, by itself or by one or many of its components, automatic data processing, in line with a program;
(73) **Vulnerability**: security breach resulting either intentionally or accidentally by a violation of security policy in the architecture of an electronic communications network, in designing an information system.

ARTICLE 5.- The terms and expressions not defined under this law shall maintain their definitions and meanings as provided for in international legal instruments to which Cameroon adheres, notably the Constitution and the Convention of the International Telecommunications Union, the Radio Communications Regulation and the International Communications Regulation.

PART II
CYBERSECURITY

CHAPTER I
GENERAL POLICY OF ELECTRONIC SECURITY

ARTICLE 6.- The Administration in charge of Telecommunications shall formulate and implement the electronic communication's security policy by taking into account technological developments and Government priorities in this domain.
Accordingly, it shall:
- promote the security of electronic communication networks and information systems and monitor the evolution of issues related to security and certification activities;
- coordinate activities that contribute to the security and protection of electronic communication networks and information systems at national level;
- ensure the settling up of an electronic communication's security framework; draw up the list of Certification Authorities; represent Cameroon in international bodies in charge of activities related to the security and protection of electronic communication networks and information systems.

CHAPTER II
REGULATION AND MONITORING OF ELECTRONIC SECURITY ACTIVITIES

ARTICLE 7.- (1) The National Agency for Information and Communication Technologies, hereinafter referred to as Agency, instituted by the law governing electroniccommunication in Cameroon, shall be responsible for the regulation of electronic activities in collaboration with the Telecommunications Regulatory Board.
(2) The Agency referred to in Subsection 1 above shall be responsible for the regulation, control and monitoring of activities related to the security of communication networks, information systems and electronic certification on behalf of the State. Accordingly, its mission shall be to:
- examine applications for accreditation and prepare the specifications of certification Authorities and submit them to the Minister in charge of telecommunications for signature;
- control the compliance of electronic signature issued;
- participate in the development of the national policy on the security of electronic communication networks and certification;
- give an advisory opinion on instruments that fall under its area of competence;
- control activities aimed at ensuring the security of electronic communication networks, certification and information systems;

- examine application for the certification of cryptographic and issue certificates of homologation for security equipment;
- prepare arguments of mutual recognition with foreign parties and submit them to the Minister in charge of Telecommunication for signature;
- monitor technological developments and issue warnings and recommendations regarding the security of electronic communication networks and certification;
- participate in search, training and studies related to the security of electronic communication networks, certification and information systems;
- ensure the regularity and efficiency of security audits of information systems in accordance with established standards, public bodies and Certification Authorities;
- monitor, detect and provide information on computer-related risk and cybercriminal activities;
- carry out any other mission of general interest assigned to it by the supervisory authority;

(2) A decree of the Prime Minister shall determine the modalities of implementation of Subsection 1 above.

ARTICLE 8.- (1) The Agency shall be the Root Certification Authority.
(2) The Agency shall be the Certification Authority of the Public Administration.

ARTICLE 9.- (1) The Certification Authorities, security auditors, editors of security programs and their untaxed turnover value intended to a fund named "Special Fund for Security Activities", intended to finance search, development, training and studies in respect of cyber security.
(2) The resources referred to in Subsection 1 above shall be collected by the Agency and deposited in an account opened at the Central Bank.
(3) A Committee is hereby created to be in charge of the validation of priority project for research, development, training and studies in the domain of cyber security.
(4) The Minister of Telecommunications shall be the authorizing officer for expenses made to under the fund referred to in Subsection 1 above.
(5) The conditions and terms of collection and management of this contribution shall be defined by regulation.

CHAPTER III
LEGAL REGIME OF CERTIFICATION ACTIVITIES

ARTICLE 10.- Electronic certification activities shall be subject to prior approval. It shall be carried out by Certification Authorities.

ARTICLE 11.- The following activities may be subject to authorization;
- the setting up and exploitation of infrastructure to issue, preserve and deliver qualified electronic certificates;
- the provision of public keys to all public users;
- the provision of security auditing, security programs editing and other authorized security services to the public.

ARTICLE 12.- The conditions and terms for granting the authorization referred to in article 10 above shall be laid down by regulation.

CHAPTER IV
SECURITY ACTIVITIES

ARTICLE 13.- (1) Electronic communication networks and information systems of operators, certification authorities and electronic communication service providers shall be subject to an obligatory security audit.
(2) The conditions and terms for the conduct of the security audits provided for in Subsection 1 above shall be laid down by regulation.

ARTICLE 14.- The staff of the Agency and experts recruited to carry out audit operations shall be required to maintain professional secrecy.

CHAPTER V
ELECTRONIC CERTIFICATION

ARTICLE 15.- (1) Qualified electronic certificates shall be valid only for the objects for which they were issued.
(2) Devices used to design and verify qualified certificates shall, from the technological standpoint, be neutral, standardized, certified and interoperable.

ARTICLE 16.- (1) Certification Authorities shall be responsible for prejudice caused to people who relied on the certificates they presented as qualified in the case where:
- the information contained in the certificate on the date of its issuance was inaccurate;
- the data prescribed such that certificate could be considered as qualified was incomplete;
- the issuance of the qualified certificate did not give rise to the verification that the signatory holds the private convention corresponding to the public convention of the certificate;
- certification Authorities and certification service providers, as the case may be, have not registered the repeal of the qualified certificate and placed this information at the disposal of third parties.

(2) Certification Authorities shall not be responsible for the prejudice caused by the use of the qualified certificate that exceeds the limits fixed for its use or the value of transactions for which it can be used, provided that such limits appear in the qualified certificate and are accessible to users.
(3) Certification Authorities must justify adequate financial guarantee, allocated particularly for the payment of sums they may owe people who relied logically on the qualified certificates they issue, or an insurance that guarantees the pecuniary consequences of their civil professional responsibility

CHAPTER VI
ELECTRONIC SIGNATURE

ARTICLE 17.- The advanced electronic signature shall have the same legal value as that handwritten signature and produce the same effects as the latter.

ARTICLE 18.- An advanced electronic signature must meet the following conditions:
- the data related to signature creation shall be exclusively linked to the signatory and be under his exclusive control;
- each modification shall be easily detectable;
- it shall be created using a protected device whose technical characteristics shall be defined by the Minister in charge of telecommunications;
- the certificate used to generate signatures shall be a qualified certificate. An instrument of the Ministry in charge of telecommunications shall determine the criteria of the qualification of certificates.

CHAPTER VII
ELECTRONIC CERTIFICATES AND SIGNATURES ISSUED BY CERTIFICATION AUTHORITIES

ARTICLE 19.- The certification authority that validated an electronic certificate may not retract.

ARTICLE 20.- (1) An electronic certificate issued outside the national territory shall produce the same legal effects as qualified certificate issued in Cameroon, provided that there is a decision recognizing the issuing authority by the Minister in charge of telecommunications.
(2) The interoperability of qualified electronic certificates shall be regulated by an instrument of the Minister in charge of telecommunications.

CHAPTER VII
ELECTRONIC DOCUMENT

ARTICLE 21.- Any person wishing to affix his electronic signature to a document can create the signature using a reliable device whose technical characteristics shall be determined by instrument of the Minister in charge of telecommunications.

ARTICLE 22.- Any person using an electronic signature device must:
- take minimum precautions fixed by the instrument referred to in article 21 above to avoid any illegal use of the encoding elements or personal equipment related to its signature;
- inform the Certification Authority about any illegitimate use of its signature;
- ensure the authenticity of all the data he declared to the electronic certification service provider and to any person he requested to trust his signature.

ARTICLE 23.- In the events of failure to honor the commitments under article 22 above, the holder of the signature shall be responsible for the injury caused to others.

CHAPTER IX
PROTECTION OF ELECTRONIC COMMUNICATION NETWORKS, INFORMATION SYSTEMS AND PERSONAL PRIVACY

SECTION I
PROTECTION OF ELECTRONIC COMMUNICATION NETWORKS

ARTICLE 24.- Electronic communication networks operators and electronic communication service providers must take all the necessary technical and administrative measures to guarantee the security of the services provided. To that end, they shall be bound to inform users about:
- the risks of using their networks;
- the specified risk of security violation, notably the denial of services distributed, abnormal rerouting, traffic points, traffic and usual ports, passive and active listening, intrusion and any other risk;
- the existence of techniques to ensure the security of their communications.

ARTICLE 25.- (1) Network operators and communication service providers shall be bound to conserve traffic connection data for a period of 10 (ten) years.
(2) Network operators and communication service providers shall set up mechanisms for monitoring the traffic data for their networks. Such data may be accessible in the course of judicial enquiries.
(3) Network operators and communication service providers shall be liable where the use of the data referred to in Subsection 2 above undermines the individual liberties of users.

SECTION II
PROTECTION OF INFORMATION SYSTEMS

ARTICLE 26.- (1) Operators of information systems shall take every technical and administrative measure to ensure the security of services offered. To this end, they shall have standardized systems enabling them to at all times identify, assess, process or manage any risks relating to the security of the information systems of the services provided directly or indirectly.
(2) Operators of information systems shall set up technical mechanisms to avoid any hitches that may be prejudicial to the steady functioning of systems, their integrity, party users, confidentiality of data and physical security.
(3) The mechanisms provided for in Subsection 2 above shall be subject to the approval and visa of the Agency.
(4) Information systems platforms shall be protected against any radiation or intrusion that may impair the integrity of data transmitted and any other external attack notably, through intrusions detection system.

ARTICLE 27.- Corporate bodies whose activity is to provide access to information systems shall be bound to inform users of:
- the dangers associated with the use of unprotected information systems notably for private individuals;
- the need to install parental control devices;
- specific security violation risks, notably the generic family of viruses;
- the existence of permanent technical means to restrict access to certain services and propose to them at least one of such means notably, the use of the most recent operating systems, the use of snit-viruses against spyware, misleading viruses, the activation of personal firewalls, intrusion detection systems and activation of automatic updating.

ARTICLE 28.- (1) Operators of information systems shall inform users of the prohibition to use electronic communication networks for the publishing of illicit content or any other act that is likely to affect the security of networks or information systems.
(2) Such prohibition shall equally concern the designing of misleading viruses, spywares, potentially undesirable software or any other device leading to fraudulent practices.

ARTICLE 29.- (1) Operators of information systems shall be bound to set up mechanisms for monitoring and controlling access to the data of their information systems for a period of 10 (ten) years.
(2) Operators of information network systems shall be bound to set up mechanisms for monitoring and controlling access to the data of their information systems. Such data may be accessible in the course of judicial enquiries.
(3) The installations of operators of information systems may be subject to search or seizure, on the order of a judicial authority, under conditions provided for by the laws and regulations in force.

ARTICLE 30.- (1) Operators of information systems shall assess and revise their security systems, and where necessary, make the appropriate modifications to their security practices, measures and techniques according to technological change.
(2) Operators of information systems and users may cooperate mutually with a view to implementing the security practices, measures and techniques of their systems.

ARTICLE 31.- (1) Electronic communication networks and information systems content providers shall be bound to ensure the availability of material, as well as the data stored in their installations.
(2) They shall be bound to set up filters in order to avoid any attacks that may be prejudicial to personal data and the privacy of users.

ARTICLE 32.- (1) Electronic communication networks and information systems shall be subject to a regime of compulsory and periodic auditing of their security systems by the Agency.
(2) Security audit and severity scale rating shall be undertaken each year or as required by the prevailing circumstances.
(3) Audit reports shall be confidential and addressed to the Minister in charge of Telecommunications.
(4) An instrument of the Minister in charge of telecommunications shall fix conditions for rating the severity scale.

SECTION III
OBLIGATION OF ACCESS, SERVICES AND CONTENT PROVIDERS

ARTICLE 33.- Persons whose activity consists in providing access to electronic communication services shall inform their subscribers of the existence of technical means of restricting access to certain services, of choosing them and propose to them at least one of such means.

ARTICLE 34.- (1) The person in charge, even gratuitously, of the storage of signals, written material, images, sounds or messages of any nature supplied by the users of such services may be liable.
(2) However, the liability under Subsection 1 above shall not apply where:
- the said persons where not effectively aware of the illicit nature of the facts or circumstances characterizing them as such;
- once they became aware of the facts, acted promptly to withdraw such data or render them inaccessible.

ARTICLE 35.- (1) The persons referred to in articles 33 and 34 above shall be bound to preserve, for a period of 10 (ten) years, data enabling the identification any person who contributed to the creation of the services they provided.
(2) They shall provide the persons who edit electronic communication services with the technical means enabling them to fulfill the identification conditions referred to in articles 37 and 38 below.
(3) A judicial authority may request the providers referred to in articles 33 and 34 above to communicate communication data referred to in Subarticle 1 above.

ARTICLE 36.- The competent court referred to shall rule, within a maximum time-limit of 30 (thirty) days, on

all measures to prevent or stop any damage caused by the content of an electronic communication service.
ARTICLE 37.- Persons engaged in editing electronic services shall inform the public of:

- their full name, domicile and telephone numbers and, where they are subject to trade registration, personal property loan formalities and their registration number, in case of corporate bodies;
- their company or corporate name and head offices, telephone numbers and where they are corporate bodies subject to trade registration, personal property loan formalities, their registration number, share capital, head office addresses, in case of corporate bodies;
- the name of the publisher or co-publisher and, where necessary, that of the editor in chief;
- the name, company or corporate name, address and telephone number of the provider referred to in articles 33 and 34 above.

ARTICLE 38.- (1) Persons editing an electronic communication's service may place at the disposal of the public only the name, company or corporate name and the address of the provider.
(2) The person referred to in articles 33 and 34 above shall be bound to confidentiality.

ARTICLE 39.- (1) Any person who is victim of defamation by means of electronic communication's service shall have the right to reply and may request for correction.
(2) Conditions for the insertion of a rejoinder of reply shall be those provided for by the instruments in force:

ARTICLE 40.- (1) Any person engaged in transmitting electronic communications networks content or providing access to an electronic communication network may not be liable where they:

- Requested the contentious transmission:
- Select or modify the content transmitted.

(2) Any person whose activity for the sole purpose of rendering its subsequent transmission more efficient, is the automatic, intermediary and temporary storage of content transmitted by a provider, maybe criminally or civilly liable in respect of such content only in cases where they modify such content, do not comply with the required conditions of access and ordinary updating rules or where they impede the licit and normal use of the technology used to obtain data.

SECTION IV
PROTECTION OF PRIVACY

ARTICLE 41.- Every individual shall have the right to the protection of their privacy. Judges may take any protective measures notably, sequestration or seizure to avoid or end the invasion of privacy.

ARTICLE 43.- Content providers shall be responsible for data transmitted through their information system notably, if such content may entail infringement if human dignity, injury to character and invasion of privacy.

ARTICLE 44.- (1) It shall be forbidden for any natural person or corporate body to listen, intercept and store communications and traffic data related thereto, or to subject them to any other means of interception or monitoring without the consent of the users concerned, save where such person is so authorized legally.
(2) However, technical storage or prior to transmission of any communication shall be authorized for electronic communications' networks and information systems operators, without prejudice to the principle of confidentiality.

ARTICLE 45.- The recording of communications and traffic data related thereto in a professional setting with a view to providing digital evidence of an electronic communications shall be authorized.

ARTICLE 46.- (1) electronic communications networks and information systems content providers shall be found to conserve such content and stored data in their installations for a period of the 10 (ten) years.
(2) electronic communications networks and information systems content providers shall be bound to set up liters in order to contain any attacks that may be prejudicial to the personal data in privacy of users.

ARTICLE 47.- The use of electronic communications networks and information or accessing information systems for the purpose of storing information or accessing information stored in the terminal equipment of a natural person or corporate body shall be made only with their prior consent.

ARTICLE 48.- (1) The sending of electronic messages for prospecting purposes by dissimilating the sender identity or without indicating the valid address to which the addressee mat send a request aimed at blocking such information shall be prohibited.
(2) The sending of electronic mails by usurping the identity of another user shall be prohibited.

SECTION V
INTERCEPTION OF ELECTRONIC COMMUNICATIONS

ARTICLE 49.- Notwithstanding the provisions of the Criminal Procedure Code, in case of crimes or offences provided for hereunder, criminal investigation officers may intercept records or transcribe any electronic communications.

ARTICLE 50.- In the event of encoding, compression or ciphering of data transmitted by electronic communications networks or electronic communications service providers, clear corresponding interceptions shall be provided to the services that requested them.

ARTICLE 51.- The personnel of electronic communications networks operators or electronic communications service providers shall be bound to secrecy for any requests they receive.

PART III
CYBER CRIMINALITY

CHAPTER I
PROCEDURAL LAW PROVISIONS

ARTICLE 52.- (1) In case of any cyber offence, criminality Investigation Officers with general jurisdiction and authorized officials of the Agency shall carry out investigations, in accordance with the provisions of the Criminal Procedure Code.
(2) Prior to assuming duty, authorized officials of the Agency shall take an oath before the competent Court of First Instance as follows: "I swear to perform my duties loyally and to always abide by the responsibilities bestowed on me, to keep secret information I am aware of on the occasion of or in the discharge of my duties".
(3) Criminal Investigation Officers and authorized officials of the Agency, may in the course of investigations, have access to means of transport, any professional premises, with the exception of private residences, with a view of seeking and recording offences, requesting the production of all professional documents and taking copies thereof and gathering any information and evidences, upon a summons or in situ.

ARTICLE 53.- (1) Cybercriminal-related searches may concern data. Such data may be physical material or copies made in the presence of persons taking part in the search.
(2) When a copy of seized data is made, it may, for security reasons be destroyed on the instruction of the State Counsel.
(3) On the approval of the State Counsel, only objects, documents and data used as evidence may be kept under seal.
(4) Persons present during searches may be requested to provide information on any seized objects, documents and data.

ARTICLE 54.- Searches and seizures shall be carried out in accordance with the provisions of the Criminal Procedure Code, taking into account the loss of validity of evidence.

ARTICLE 55.- (1) When it appears that data seized or obtained in the course of an investigation or inquiry has been the subject of transformation, thus hindering clear access or is likely to impair the information it contains, the State Counsel, the Examining Judge or the Court may request any qualified natural person or corporate body to perform technical operations to obtain the clear version of the said data.
(2) When a cryptographic means has been employed, judicial authorities may request the secret conversion of the encrypted text.

ARTICLE 56.- The request provided for in article 50 above may be made to any expert. In case, it shall conform with the provisions of the Criminal Procedure Code relating to the commissioning of an expert.

ARTICLE 57.- (1) Cameroonian judicial authorities may set up a rogatory commission at, both the national and international level, any corporate body or natural person to search the elements of cybercrime offences of which at least one of the elements was committed on Cameroonian territory or which one of the offenders or accomplices resides on the said territory.
(2) Subject to rules of reciprocity between Cameroon and foreign countries with which it has concluded a judicial cooperation agreement, rogatory commissions shall be executed in accordance with the provisions of the Criminal Procedure Code.

ARTICLE 58.- (1) Natural persons or corporate bodies that provide cryptographic services aimed performing a duty of confidentiality shall be bound to hand over to criminal investigation officers or authorized officials of the Agency, at their request, the conversion of data transformed by means of the services that they deliver.
(2) Criminal investigation officers and authorized officials of the Agency may request the service providers referred to in sub-section 1 above to implement these agreements of their own motion, except where they are unable to satisfy such requests.

ARTICLE 59.- (1) For the purpose of investigation or examination, the hearing or interrogation of a person and/or confrontation of several persons may be carried out on several locations on the national territory linked by electronic communications means that ensure the confidentiality of transmissions. A report shall be drawn up on the operations carried out in each location. Such operations may be subject to audiovisual and/or sound recording.
(2) According to the prevailing circumstances, their interpretation may be done by means of electronic communications in the course of a hearing, interrogation or confrontation.
(3) The provision of this article shall equally be applicable for the concurrent implementation, on a location situated outside the national territory, of mutual assistance requests from foreign judicial officers or acts of mutual assistance performed outside the national territory, at the request of Cameroonian judicial authorities.
(4) Conditions for the implementation of this section shall be defined by regulation.

CHAPTER II
OFFENCES AND PENALTIES

ARTICLE 60.- (1) When a Certification Authority is non-complaint, the Agency may, after serving a warning on the structure for comment, prohibit the circulation of the means of cryptography concerned.
(2) The prohibition of circulation shall be applicable throughout the national territory. It equally entails, for the provider, the obligation to withdraw;
- the means of cryptography whose circulation among commercial publishers was prohibited;
- materials that constitute a means of cryptography and whose circulation was prohibited and that was acquired directly or through commercial publishers for a consideration.

(3) The means of cryptography concerned could be put back into circulation once the previous obligations are fulfilled and duly ascertained be the Agency.

ARTICLE 61.- (1) Agency personnel and experts of corporate bodies in charge of security audits who without any authorization, disclose confidential information they are privy to on the occasion of a security audit shall be punished with imprisonment for from 03 (three) months to 03 (three) years and a fine of from 20,000 (twenty thousand) to 100,000 (one hundred tousand) CFA francs.
(2) Refusal to comply with the summons of authorized officials shall be punished with imprisonment for from (three) 03 months to (four) 04 years.
(3) Whoever, by any means whatsoever, obstructs, gives incitement to resist or prevent the conduct of the investigation provided for in this section or refuses to provide information or documents related, thereto shall be punished with imprisonment for from 01 (one) to 05 (five) years or a fine of from 100,000 (one hundred thousand) to 1,000,000 (one million) CFA francs or both of such fine and imprisonment.

ARTICLE 62.- (1) Whoever presents the content or activity to the person referred to in articles 33 and 34 above,

as illicit so as to cause the withdrawal or stop the publication hereof, knowing such information to be untrue, shall be punished with imprisonment for from 01 (one) to 05 (five) years and a fine of from 200,000 (two hundred thousand) to 2,000,000 (two million) CFA francs.
(2) The publisher, under pain of a fine of from 100,000 (one hundred thousand) to 2,000,000 (two million) CFA francs shall be bound to insert within 48 (forty-eight) hours of their reception, the response of any person designated in the electronic communications service.

ARTICLE 63.- (1) The de jure or de facto manager of a legal person carrying out the activity defined in Articles 33 and 34 of this law, who has not kept the elements of information referred to in Articles 25 and 29 above, shall be punished by an imprisonment of one (01) to five (05) years and a fine of 40,000 (forty thousand) to 4,000,000 (four million) CFA francs.
(2) The de jure or de facto manager of a corporate body exercising the activity defined in articles 37 and 38 who fails to comply with the provisions of the said article shall be liable to the same sanctions.

ARTICLE 64.- (1) Corporate bodies shall be criminally liable for offences committed on their account by their management structures.
(2) The criminal liability of corporate bodies shall not preclude that of natural persons who commit such offences nor are accomplices.
(3) The penalties to be meted out on defaulting corporate bodies shall be fines of from 5,000,000 (five million) to 50,000,000 (fifty million) CFA francs.
(4) The penalties provided for in Sub-section 3 above, notwithstanding one of the following other penalties may equally be meted out on corporate bodies:

- dissolution in case of a crime or felony punishable with respect to natural persons with imprisonment of 03 (three) years and above and where the corporate body has departed from its declared object to aid and abet the incriminating acts;
- definitive prohibition or temporary prohibition for a period of not less 05 (five) years, from directly or indirectly carrying out one or more professional or corporate activities;
- temporary closure for a period of not less than 05 (five) years under the conditions laid down in article 34 of the Penal Code of the establishments or one or more establishments of the company that was used to committing the incriminating acts;
- barring from bidding for public contracts either definitively or for a period of not less than 05 (five) years;
- barring from offering for public issues either definitively or for a period of not less than 05 (five) years;
- prohibition for a period of not less than 05 (five) years from issuing checks other than those to be used by the drawer to withdraw money from the drawer or certified checks or from using payment cards;
- seizure of the device used or intended to be used in committing the offence or the proceeds of the offence;
- publication or dissemination of the decision taken either through the print media or through any electronic means of communication to the public.

ARTICLE 65.- (1) Whoever, without any right or authorization, proceeds by electronic means to intercept or not during transmission, intended for, whether or not within an electronic communications network, an information systems or a terminal device shall be punished with imprisonment for from 05 (five) to 10 (ten) years or a fine of from 5,000,000 (five million) to 10,000,000 (ten million) CFA francs or both such fine and imprisonment.
(2) Any unauthorized access to all or part of an electronic communications network or an information system or a terminal device shall be liable to the same sanctions in accordance with Subsection 1 above.
(3) The penalties provided for in Subsection 1 above, shall be doubled where unauthorized access violates the integrity, confidentiality, availability of the communication network or the
(4) Whoever, without any right allows access to an electronic communications network or an information system as an intellectual challenge shall be punished in accordance with Subsection 1 above.

ARTICLE 66.- (1) Whoever causes disturbance or disruption of the functioning of an electronic communications network or a terminal device by introducing, transmitting, destroying, erasing, deteriorating, altering, deleting data and rendering data inaccessible shall be punished with imprisonment for from 02 (two) to 05 (five) years or a fine of from 1,000,000 (one million) to 2,000,000 (two million) CFA francs or both of such fine and imprisonment.
(2) Whoever uses the deceptive or undesirable software to carry out operations on a user's terminal device without first informing the latter of the true character of the operation which the said software is likely to da-

mage, shall be punishable with the same penalties.
(3) Whoever uses potentially undesirable software to collect, try to collect or facilitate any of such operations in order to access information of the operator or supplier of an electronic network or services and commit a crime shall be punishable in accordance with Subsection 1 above.

ARTICLE 67.- Causing serious disturbance or disruption of the functioning of an electronic communications network or terminal equipment by introducing, transmitting, changing, deleting or altering data shall constitute a breach of the integrity of an electronic communications network or an information system and shall be punishable in accordance with article 66 above.

ARTICLE 68.- (1) Whoever fraudulently gains access or remains in all or part of an electronic communications network or an information system by transmitting, destroying, causing serious disturbances or disruption to the functioning of the said system or network shall be punished with imprisonment for from 05 (five) to 10 (ten) years or a fine of from 10,000,000 (ten million) to 50,000,000 (fifty million) CFA francs or both of such fine and imprisonment.
(2) The same penalties provided for in Subsection 1 above shall be doubled where such acts result in the deletion or change to the data contained in the information system or a change in its functioning.

ARTICLE 69.- Whoever accesses all or part of an electronic communications network, an information system or terminal equipment without authorization and in violation of security measures in order to obtain information or data relating to an information system connected to another information system shall be punished with imprisonment for from 05 (five) to 10 (ten) years or a fine of from 10,000,000 (ten million) to 100,000,000 (one hundred thousand million) CFA francs or both of such fine and imprisonment.

ARTICLE 70.- Whoever causes through saturation, the attack of an electronic communications network device or an information system with the intention to cause its collapse thus preventing it from rendering the expected services, shall be punished with a fine of from 1,000,000 (one million) to 05 (five million) CFA francs.

ARTICLE 71.- Whoever without permission, introduces data and information system Law N°2010/012 of 21 December 2010 relating to cybersecurity and cybercriminality in Cameroon or an electronic communications network in or to delete or change the data contained therin, shall be punished with imprisonment for from 02 (two) to 05 (five) years of and a fine for from 1,000,000 (one million) to 25,000,000 (twenty five million) CFA francs.

ARTICLE 72.- Whoever without authorization and for financial gain, uses any means to introduce, alter, erase or delete electronic data such as to cause damage to someone else's property shall be punished with the penalties provided for in article 66 above.

ARTICLE 73.- (1) Whoever uses an information system or a counterfeit communication network to falsify payment, credit or cash withdrawal card, or uses or attempts to use, in full knowledge of the facts, a counterfeit or falsified payment, credit or withdrawal card shall be punished with imprisonment for from 02 (two) to 10 (ten) years and a fine of from 25,000,000 (twenty five million) to 50,000,000 (fifty million) CFA francs or both of such fine and imprisonment.
(2) Whoever deliberately accepts to receive electronic communicationss payment using a forged or falsified payment, credit or cash withdrawal card shall be punished in accordance with Subsection 1 above.

ARTICLE 74.- (1) Whoever uses any device to receive the privacy of another person by attaching, recording or transmitting private or confidential electronic data without the consent of their authors shall be punished with imprisonment for from 01(one) to 02 (two) years and a fine of from 1,000,000 (one million) to 5,000,000 (five million) CFA francs.
(2) Whoever, without authorization, intercept personal data in the course of their transmission, from one information system to another, shall be punished in accordance with Subsection 1 above.
(3) Whoever, even through negligence processes or causes the processing of personal data in violation of the conditions precedent to their implementation shall be punished with implementation from 01(one) to 03 (three) years and a fine of from 1,000,000 (one million) to 5,000,000 (five million) or both of such fine and imprisonment.

(4) Whoever uses illegal means to collect the personal data of another in order to invade his or her privacy and undermine his or herself esteem shall be punishable with imprisonment for from 6 (six) months to 02 (two) years or a fine of from 1,000,000 (one million) to 5,000,000 (five million) or both of such fine and imprisonment.
(5) The penalties provided for in Sub-section 4 above shall be doubled when anyone stores or has someone else store in a computerized memory, without the expressed consent of the person concerned, personal data that directly or indirectly discloses his/her tribal origin, political opinions, religious beliefs, trade union membership or values.
(6) The penalties provided for in Sub-section 5 above shall apply to persons found guilty of diverting information, in particular during the recording, filing or transmission thereof.
(7) Whoever keeps information in works or in figures beyond the legal time-limit specified in the application for a prior opinion or declaration for use of data processing shall be punished with imprisonment for from 06 (six) months to 02 (two) years or a fine of from 5,000,000 (five million) to 50,000,000 (fifty million) CFA francs or both of such fine and imprisonment.
(8) Whoever discloses personal information that undermines the consideration due to the victim shall be punished with the penalties provided for in Sub-section 7 above.

ARTICLE 75.- (1) Whoever for financial gain, records or publishes images that undermine the bodily integrity of another person through electronic communications or an information system without the consent of the person concerned shall be punished with imprisonment for from 02 (two) years to 05 (five) years or a fine of from 1,000,000 (one million) to 5,000,000 (five million) CFA francs or both of such fine and imprisonment.
(2) This section shall not apply where such recording and publication fall under the normal exercise of profession aimed at informing the public on where they are carried out in order to be used as evidence in Court in accordance with the provisions of Criminal Procedure Code.

ARTICLE 76.- Whoever uses electronic communications or an information system to design, carry or publish a child pornography message or a message likely to seriously injure the self respect of a child shall be punished with imprisonment for from 5 (five) years to 10 (ten) years or a fine of from 5,000,000 (five million) to 10,000,000 (ten million) CFA francs or both of such fine and imprisonment.

ARTICLE 77.- (1) Whoever uses electronic communications or an information system to act in contempt of race or religion shall be punished with imprisonment for from 02 (two) years to 05 (five) years or a fine of from 2,000,000 (two million) to 5,000,000 (five million) or both of such fine and imprisonment.
(2) The penalties provided for in Subsection 1 above shall be doubled where the offence is committed with the aim to stirring up hatred and contempt between citizens.

ARTICLE 78.- (1) Whoever uses electronic communications or an information system to design, to publish or propagate a piece of information without being able to attest its veracity or prove that the said piece of information was true, shall be punished with imprisonment for from 06 (six) months to 02 (two) years or a fine of from 5,000,000 (five million) to 10,000,000 (ten million) CFA francs or both of such fine and imprisonment.
(2) The penalties provided for in Subsection 1 above shall be doubled where the offence is committed with the aim of disturbing public peace.

ARTICLE 79.- Penalties against private acts of indecency set forth in article 295 of the Penal Code shall be punished with imprisonment for from 05 (five) years to 10 (ten) years or a fine of from 5,000,000 (five million) to 10,000,000 (ten million) CFA francs where the victim has been put in contact with the author of the said act using electronic communication or an information system.

ARTICLE 80.- (1) Whoever for consideration or free of charge, uses electronic communications or an information system to publish, attach, record or transmit an image showing acts of pedophilia or a minor shall be published with imprisonment for from 01 (one) to 05 (five) years or a fine of from 5,000,000 (five million) to 10,000,000 (ten million) CFA francs or both such fine and imprisonment.
(2) Whoever uses electronic means whatsoever to offer, provide or publish, import or export an image or picture portraying pedophilia shall be punished with the penalties provided for in Subsection 3 above.
(3) Whoever keeps an image or picture betraying pedophilia in an electronic communications network or an information system shall be punished with imprisonment for from 01 (one) to 05 (five) years or a fine of

from 5,000,000 (five million) to 10,000,000 (ten million) CFA francs or both such fine and imprisonment.
(4) The penalties provided for in Sub-section 3 above shall be doubled where an electronic communication network is used to publish an image or picture of a minor.
(5) The provisions of this section shall equally apply to pornographic pictures showing minors.

ARTICLE 81.- (1) The following offences shall be punishable with the penalties provided for in article 82 bellow where they are committed using an electronic communication network or an information system:
- offering, producing, providing child pornography for publication;
- acquiring child pornography for oneself or for someone else using an information system;
- where adult persons make sexual proposals to minors below 15 years old or to a person having the features of a minor;
- dissemination or transmission of child pornography using an information system.

(2) Child pornography shall be any act which visually presents:
- a minor involved in sexually explicit behavior;
- any person with the physical features of a minor involved in sexually explicit acts;
- real image of a minor involved in sexually explicit acts.

ARTICLE 82.- The penalties provided for in section 79 above shall be doubled for whoever uses electronic communication devices to commit or attempt to commit any act of indecency on a minor less than 15 (fifteen) years old.

ARTICLE 83.- (1) Whoever uses electronic communication devices to make sexual proposal to a person of the same sex shall be punished with imprisonment for from 01(one) to 02 (two) years or a fine of from 500,000(five hundred thousand) to 1,000,000 (one million) CFA francs or both of such fine and imprisonment.
(2) The penalties provided for in subsection (1) shall be doubled if sexual proposals are followed by sexual intercourse.

ARTICLE 84.- (1) Whoever fraudulently becomes acquainted with delays access to or deletes electronic messages addressed to another shall be punished with imprisonment for from 06 (six) months to 02 (two) years of a fine of from 500,000(five hundred thousand) to 1,000,000 (one million) CFA francs or both of such fine and imprisonment.
(2) The same penalties provided for in Subsection (1) shall apply against whoever, without authorization, intercepts, diverts, uses or divulge electronic messages sent or received by electronic means or proceeds to install equipment designed for such interception.

ARTICLE 85.- The penalties provided for in article 84 above shall apply against whoever, being responsible for a public service mission and acting in the discharge or during the discharge of his/her duties, diverts or facilitates the diversion, deletion or access to electronic messages or reveals the content thereof.

ARTICLE 86.- (1) The penalties provided for in article 71 above shall apply against whoever imports, keeps, offers, transfers, sells or provides, in any form whatsoever, a computer program, a password, an access code or any similar computer data designed and/or specially adapted to facilitate access to all or part of an electronic communication or information system.
(2) Whoever causes serious disturbance or disruption on an electronic communication, whoever uses electronic communication net work or an information system with the intention of breaching the integrity of the data, shall be punishable with the penalties provided for in Subsection 1 above.

ARTICLE 87.- Authors of the offences provide for in article 86 above shall be punishable with the following additional penalties:
- Seizure in accordance with the conditions laid down in article 35 of the Penal Code, of any object used or intended to be used to commit the offence or considered to be the proceed thereof, with the exception of objects likely to be reinstituted;
- Prohibition, in accordance with the conditions laid down in article 36 of the Penal Code, for a period of not less than 05 (five) years from the holding of a public office or carrying out a socio-professional activity where the offence was committed in the discharge or during the discharge of one's duties;
- Closure, in accordance with the conditions laid down in article 36 of the Penal Code, for a period of not

less than 05 (five) years, of establishment or of one or more of the establishments of the company that was used to commit the offence;
- Barring, for a period of not less than 05 (five) years, from public contracts.

ARTICLE 88.- (1) Whoever knowing about the secret decoding convention, a cryptographic means likely to have been used to prepare, facilitate or commit a crime or felony, refuses to hand over the said convention to judicial authorities or to use it upon request by such authorities shall be punishable with imprisonment for from 01 (one) to 05 (five) years or a fine of from 1,000,000 (one million) to 5,000,000 (five million) CFA francs or both of such fine and imprisonment.
(2) Where such refusal occurs whereas the handing over or use of the convention could have helped prevent the commission of the crime or felony or limit the effects thereof, the penalties provided for in Subsection 1 shall be increased to imprisonment for from 03 (three) to 05 (five) years and a fine of from 1,000,000 (one million) to 5,000,000 (five million) CFA francs.

ARTICLE 89.- There shall be no suspended sentence for the offences provided for in this law.

PART IV
INTERNATIONAL COOPERATION AND MUTUAL JUDICIAL ASSISTANCE

CHAPTER I
INTERNATIONAL COOPERATION

ARTICLE 90.- (1) In the discharge of their duties, Cameroonian Certification Authorities may, under the control of the Agency, conclude conventions with foreign Certification Authorities.
(2) The conditions for concluding the conventions referred to in Subsection 1 above shall be laid down by regulation.

CHAPTER II
INTERNATIONAL AND MUTUAL JUDICIAL ASSISTANCE

ARTICLE 91.- (1) Unless otherwise provided for by an international convention to which Cameroon is a signatory, request for judicial assistance from Cameroonian judicial officers to foreign judicial officers shall be sent through the Ministry in charge of External Relations, Enforcement documents shall be sent to the authorities of the requesting state through the same channel.
(2) Requests for mutual judicial assistance from foreign authorities to Cameroonian judicial authorities must be presented through diplomatic channels by the foreign Government concerned. Enforcement documents shall be sent to the authorities of the requesting state through the same channel.
(3) In case of emergency, requests for judicial assistance from Cameroonian or foreign authorities may be sent directly to the authorities of the requested state for enforcement. The enforcement document shall be dispatched to the relevant state authorities under the same conditions.
(4) Subject to international conventions, request for mutual judicial assistance from foreign authorities to Cameroonian judicial authorities shall be subject to an opinion of foreign Government concerned. Such opinion shall be forwarded to the relevant judicial authorities through diplomatic channels.
(5) In case of emergency, requests for mutual judicial assistance from foreign judicial authorities shall be forwarded to the State Counsel or Examining Magistrate with territorial jurisdiction.
(6) Where the State Counsel receives a request for mutual judicial assistance directly from authority, but which can only be enforced by the Examining Magistrate, he shall forward it to the latter for enforcement or refer to the General Prosecutor in the case provided for in article 94 below.
(7) Before proceeding to enforce a request for mutual assistance forwarded directly to him, the Examining Magistrate shall immediately communicate same to the State Counsel for an opinion.

ARTICLE 92.- (1) Requests for mutual judicial assistance from foreign judicial officers shall be enforced by the State Counsel or Judicial Police Officers or Agents requested for this purpose by the said State Counsel.
(2) The request shall be enforced by the Examining Magistrate or Judicial Police officers acting on the rogatory commission of the Examining Magistrate where they require certain procedural measures which can be ordered or enforced only during a preliminary investigation.

ARTICLE 93.- (1) Requests for mutual judicial assistance from foreign judicial officers shall be enforced in accordance with the procedure laid down by the Criminal Procedure Code.
(2) However, where the request for assistance so specifies, it shall be enforced in accordance with the procedure explicitly indicated by the relevant authorities of the requesting state, without such rules, violations of the right of the parties or procedural guarantees provided for by the Criminal Procedure Code.
(3) Where the request for mutual assistance cannot be enforced in accordance with the requirements of the requesting state, the relevant Cameroonian authorities shall immediately inform the authorities of the requesting State of such impossibility and specify under what conditions the request may be enforced.
(4) The relevant Cameroonian authorities and those of the requesting state may subsequently agree on the onward processing of the request, where necessary, by subjecting it to compliance with such conditions.
(5) Irregularity in the transmission of the request for judicial assistance shall constitute grounds for nullity of actions undertaken in enforcing such a request.

ARTICLE 94.- (1) Where the enforcement of a request for judicial assistance from a foreign judicial authority is such as can breach public law and order or negatively affect the essential interests of the nation, the State Counsel to whom the request is addressed or who is appraised thereof shall forward same to the General Prosecutor who shall transmit to the Minister in charge of Justice and where necessary, inform the Ste Counsel of such transmission.
(2) Where the request is forwarded to the Minister in charge of Justice, he shall inform the requesting authority, where necessary, that it is not possible to totally or partially accede to the request. Such information shall be communicated to the judicial authority concerned and shall block the enforcement of the request for mutual judicial assistance or the return of the enforcement papers.

PART V
TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 95.- The conditions for applications of this law shall, and as when necessary, be laid down by implementation instruments.

ARTICLE 96.- Authorizations and declarations for the supply, import and export of cryptographic devices issued by the relevant authorities shall remain valid until the expiry of the time limit specified therein.

ARTICLE 97.- This law shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaounde, 21 December 2010

Paul BIYA

PRESIDENT OF THE REPUBLIC

LAW No. 2015/006 OF 20 APRIL 2015 Amending and supplementing some provisions of law no. 2010/013 of 21 December 2010 governing electronic communications in Cameroon

The Parliament deliberated and adopted,
the President of the Republic hereby
enacts the law set out below:

ARTICLE 1.- The provisions of Articles 5, 6, 9, 10, 14, 20, 34, 36, 50, 56, 81, 83, 84 and 94 are amended and completed as follows:

ARTICLE 5.- (new) For the purposes of this law and the regulations issued thereunder, the following definitions shall apply:
5- Approval: licence issued to a natural or legal person to carry out the activity of installer, test laboratory or seller of equipment in the field of electronic communications;
15- Electronic communications: the broadcasting, transmission or reception of signs, signals, writing, images or sounds by electromagnetic or optical means;
20- Terminal equipment: equipment, installation or set of installations intended to be connected to a network termination point and which transmits, receives or processes electronic communications signals;
33- Electronic communications network operator: any person holding a concession or licence for the operation of an electronic communications network open to the public or the provision of services or the provision of infrastructure in the field of electronic communications.

ARTICLE 6.- (new) (1) The following shall fall within the exclusive domain and may not be the subject of a concession:
- legislation and regulations relating to electronic communications;
- management of the frequency spectrum and national orbital positions.

(2) The State shall be responsible for and may grant concessions to one or more legal persons by virtue of public or private law, under the conditions defined in Article 9 below:

- the construction and operation throughout the national territory of landing points for submarine cables;
- the construction and operation of teleports to one or more satellite networks;
- the establishment and operation of multiplexes and broadcasting networks.

ARTICLE 9.- (new) (1) The following State domains may be the subject of a concession, in whole or in part, to one or more legal persons under public or private law by means of agreements fixing, in particular, the rights and obligations of the beneficiary of this concession:
- the establishment and operation of electronic communications networks with national coverage open to the public;
- the establishment and operation of electronic communications transport networks.

(2) The concession shall be granted to any legal entity that agrees to comply with the provisions of this Law, the clauses of the specifications, as well as the general provisions concerning:
- the nature, characteristics and coverage area of the service;
- the conditions of permanence, quality and availability of the service;
- the conditions of confidentiality and neutrality of the service with regard to the messages transmitted;
- the network and service norms and standards;
- the use of allocated frequencies;
- the requirements for national defence and public security, the protection of health and the environment

and town planning objectives;
- the operator's contribution to research, training and standardisation in the field of electronic communications;
- the conditions of interconnection and, where applicable, the principle of payment of charges for access to electronic communications networks open to the public;
- the conditions of infrastructure sharing;
- the terms of contribution to the general missions of the State and, in particular, to the missions and charges of universal service and regional planning;
- the free routing of emergency electronic communications;
- the commercial operating conditions necessary to ensure fair, objective, transparent, non-discriminatory competition at affordable prices, without distorting or hindering the exercise of free competition, ensuring equal treatment of all users;
- the duration, termination and renewal conditions;
- the modalities for calculating and revising the contribution payable for participation in the development of electronic communications throughout the national territory.

(3) Subject to the penalties provided for by the regulations in force, the electronic communications operators shall ensure, prior to the broadcasting of audiovisual content, that the aggregators and publishers have an appropriate operating licence obtained in accordance with the legislation and regulations in force.

ARTICLE 10.- (new) (1) The licence shall be issued to any natural or legal person to establish and operate, in particular:
- any supporting service;
- radio networks in one or more localities with the exception of those referred to in Article 9 above;
- independent private networks excluding those referred to in Article 16 below;
- temporary networks;
- experimental networks;
- collection and/or distribution networks for the provision of electronic communications services to the public;
- electronic communications networks open to the public in rural areas; virtual networks open to the public;
- passive infrastructures supporting electronic communications networks.

(2) The modalities for the establishment and/or operation of the electronic communications networks and services referred to in paragraph 1 above shall be defined by regulation.

(3) The licence issued shall be subject to compliance with a set of specifications relating to:
- the nature, characteristics and coverage area of the service;
- the conditions of permanence, quality and availability of the network and the service;
- the conditions of confidentiality and neutrality with regard to the messages transmitted and the information linked to electronic communications;
- the conditions required by the protection of health and the environment and by the objective of regional and urban planning, including, where applicable, the conditions of occupation of the public domain and the terms of infrastructure sharing;
- the requirements of national defence and public safety;
- the compliance with the technical requirements concerning access to the service, its interconnection with other support services and the compatibility of its operation with those services;
- the free routing of emergency electronic communications;
- the conditions necessary to ensure the interoperability of services;
- the obligations imposed on the operator to enable it to be monitored by the Board;
- the information on the contractual conditions for the provision of the service and consumer protection;
- the duration, termination and renewal conditions of the licence;
- the arrangements for calculating and revising the contributions payable;
- the terms of contribution to the general missions of the State and, in particular, to the missions and charges of universal service and regional planning;

(4) The holder of a licence may provide the public with value-added services related to its licence, in accordance with the regulations in force.

***ARTICLE 14**.- (new)* (1) The following are subject to an approval:
- the activity of installer of electronic communications equipment and infrastructure;
- the laboratories for testing and measuring electronic communications equipment;
- the sale of electronic communications equipment.

(2) The procedures for obtaining approval shall be laid down by regulation.

***ARTICLE 20**.- (new)* (1) The issuance and renewal of a concession agreement or a licence shall be subject to the payment of a financial consideration called respectively "entry fee" and "renewal fee".
(2) The amount and the terms of payment of the entry fee or the renewal fee of the concession shall be determined in the concession agreement and approved by decree of the President of the Republic.
(3) The renewal of a concession shall be subject to the payment of the operator's debts to the State.
(4) The right of renewal shall be obtained following negotiations which shall take into account namely:
- the evolution of the market;
- the operator's turnover;
- the compliance with the specifications.

(5) The amount of the entry and renewal fees for licences, as well as the terms of payment, shall be fixed by a joint order of the Minister in charge finance and Minister in charge of telecommunications.
(6) Entry and renewal fees shall be collected by the Telecommunications Regulatory Board.
(7) A performance bonus deducted from the entry or renewal fee shall be paid to the staff in charge of regulating the telecommunications and information and communication technologies sector.
(8) The modalities for the allocation and distribution of entry and renewal fees shall be determined by an order of the Minister in charge of telecommunications and Minister in charge of finance.

***Article 34**.- (new)* (1) A Special Fund for Telecommunications is hereby established.
(2) The resources of the Special Fund for Telecommunications referred to in paragraph 1 above shall come, in particular, from:
- the annual contributions from operators and service providers of electronic communications services, up to 3 % of their turnover excluding taxes;
- state subsidies;
- revenues from the production and publishing of the universal subscriber directory;
- the budgetary surplus of the Board referred to in Article 36 below;
- the portion of the entry and renewal fees resulting from the sale and renewal of authorisations;
- donations and bequests.

(3) The resources of the Special Fund for Telecommunications are public funds intended, in accordance with the priorities established by the Minister in charge of telecommunications, Minister in charge in finance:
- the universal electronic communications service;
- the development of electronic communications throughout the country;
- the development of information and communication technologies;
- activities connected to the security of electronic communication networks and information systems.

(4) The resources of the Special Fund for Telecommunications shall be collected by the Board referred to in Article 36 below and deposited in an account opened for this purpose in an approved financial institution.
(5) Network operators and service providers shall be subject to the payment of an annual fee of 1.5% of their turnover excluding taxes, for the operation of the Board in charge of the regulation of telecommunications up to 1% and the Board in charge of information and communication technologies up to 0.5%, in accordance with the terms and conditions laid down by a regulatory text.
(6) A committee shall be set up to validate priority projects for universal service and the development of telecommunications and information and communication technologies.
(7) The Minister in charge of telecommunications shall be the authorized vote holder for expenditures from the Fund.
(8) A decree of the President of the Republic shall determine the modalities of management of the Special Fund for Telecommunications.

***ARTICLE 36**.- (new)* (1) The regulation, control and monitoring of the activities of operators and providers of electronic communications services shall be carried out by a Regulatory Board, hereinafter referred to as the Board.

(2) The Board provided for in paragraph 1 above shall ensure compliance with the principle of equal treatment of users in all electronic communications companies.
For that reason, its missions are therefore to:

- ensuring the application of legislative and regulatory texts relating to telecommunications and information and communication technologies;
- ensuring that access to networks open to the public is provided under objective, transparent and non-discriminatory conditions;
- guaranteeing healthy and fair competition in the telecommunications and information and communication technologies sector;
- sanctioning the breaches of operators to their obligations as well as the anti-competitive practices;
- defining the principles governing the pricing of the services provided;
- examining licence applications and preparing the relevant decisions;
- formally delivering the receipts of declaration;
- laying down conditions and obligations for interconnection and sharing of infrastructures;
- issuing an opinion on all draft legislative and regulatory texts relating to electronic communications;
- ensuring the assignment and control of the frequency spectrum;
- preparing the tender documents for concessions and licenses;
- establishing and managing the numbering plan;
- submitting to the Government any proposal and recommendation aimed at developing and modernizing the telecommunications and information and communication technologies sector;
- assigning addressing resources;
- examining files for the approval of terminal equipment and preparing the relevant decisions;
- issuing approvals;
- guaranteeing consumer protection;
- carrying out any other mission of general interest that the Government may entrust to it in the telecommunications and information and communication technologies sector.

(3) The organization and functioning of the Board referred to in paragraph 1 above shall be determined by decree of the President of the Republic.

***ARTICLE 50*.- (new)** (1) The Board shall allocate addresses, prefixes and numbers, under objective, transparent and non-discriminatory conditions, to operators who so request, in return for a fee, the amount of which shall be fixed by joint order of the Ministerin charge of telecommunications and Minister in charge of finance.
(2) The fee referred to in paragraph 1 above shall be collected by the Telecommunications Regulatory Board and distributed in accordance with the procedures laid down by regulation.
(3) The conditions of use of these addresses, prefixes, numbers or blocks of numbers shall concern:

- the type of service for which use of the resources is reserved;
- the efficient and relevant use of the numbers allocated;
- the payment of usage fees.

(4) Subscribers to an electronic communications network open to the public shall be entitled to the number portability service under the conditions laid down by regulation.
(5) The conditions for the rental and use of addresses, prefixes, numbers or blocks of numbers provided for in paragraph 1 above shall be specified in the management rules issued by the Board, where applicable, in the operators' specifications.

***ARTICLE 56*.- (new)** (1) Electronic communications equipment and radio installations, whether or not they are intended to be connected to electronic communications networks open to the public, shall be subject to approval, under the conditions provided for in this law.
(2) The purpose of the approval referred to in paragraph 1 above is to guarantee compliance with the essential requirements and to verify the conformity of electronic communications equipment and radio installations with the norms and standards in force in Cameroon, as well as their interoperability.
(3) A regulatory text shall define the procedures for the approval of electronic communications equipment and radio installations referred to in paragraph 1 above.

***ARTICLE 81*.- (new)** (1) Any person who, by means of an electromagnetic, acoustic, mechanical or other device, voluntarily or involuntarily intercepts a private communication and discloses it shall be liable to the penalties

provided for in Article 80 above.

(2) The provisions of Articles 80 and 81 paragraph 1 shall not apply to:

a) to persons who have obtained the express consent of either the originator of the private communication or the recipient of the said communication;
b) to persons who intercept a private communication at the request of a judicial authority in accordance with the laws applicable in the field;
c) persons who provide an electronic communications service to the public and who intercept a private communication in any of the following events:
   - in the course of monitoring the service or of an unannounced check necessary for technical or operational reasons for the provision of the service and for verifying its quality;
   - where such interception is necessary for the provision of the service;
   - where such interception is necessary to protect rights or property directly related to the provision of an electronic communications service.
d) to members of the Inter-ministerial Committee for Radio frequency Band Allocation and the Board, in respect of a private communication intercepted for the purpose of identifying, isolating or preventing the unauthorised use of a frequency or transmission.

ARTICLE 83.- (new) (1) Any person who knowingly uses services obtained by means of the offence referred to in Article 82, paragraph 1, above, shall be punished by imprisonment for a term of six (6) months to two (2) years and a fine of 1,000,000 (one million) to 5,000,000 (five million) francs, or by one of these two penalties only.

(2) The penalties provided for in paragraph 1 above shall be doubled in the event of use open to the public.

ARTICLE 84.- (new) (1) Any person who transmits, without authorization, signals or correspondence from one place to another, either by means of electronic communication equipment or by any other means defined in Article 82 of this Law, shall be liable to imprisonment for a period of one (1) month to one (1) year and to a fine of 1,000,000 (one million) to 5,000,000 (five million) francs.

(2) The court referred to may also order the confiscation of the installations, devices or means of transmission, or their destruction at the expense of the offender.

ARTICLE 94.- (new) Where the offences referred to in Articles 92 and 93 above are committed in territorial waters or on the continental shelf adjacent to the territory of Cameroon by a member of the crew of a Cameroonian or foreign vessel, they shall fall within the jurisdiction of the courts of Yaounde or those of:

- the home port of the vessel on which the perpetrator is embarked;
- the first Cameroonian port where the vessel will land, whose territorial jurisdiction extends to the maritime extension of the place of the offence.

ARTICLE 2.- This law, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, on 20 April 2015

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

LAW No. 2023/009 OF 25 JULY 2023
To institute the charter on child online protection in Cameroon

The Parliament deliberated and adopted, the President of the Republic hereby enacts the law set out below:

CHAPTER I
GENERAL PROVISIONS

Section 1: This law relates to the charter on child online protection in Cameroon.

Section 2: This law shall apply to all activities involving children in the cyberspace.

Section 3: For the purposes of this law and the implementing instruments thereof, natural or legal person that holds a concession or the following definitions shall apply:
Child pornography: data of any nature or form that visually depicts a child engaging in or being subjected to sexually explicit act or realistic images of a child engaging in or being subjected to sexually explicit conduct ;
Child: any person below the age of 18 (eighteen);
Content provider: any natural or legal person that disseminates information through an online service;
Cybercrime: breach of the law through the cyberspace using means other than those habitually used to commit conventional crimes;
Cyberspace: global network combining telecommunications resources, server computers and clients, intended for the exchange of electronic messages, multimedia information and files while using a common protocol allowing the routing of messages in independent packets;
Electronic communication operator: a concession or licence-holding natural or legal person operating an electronics communications network open to the public, or supplying an electronics communications services;
ICT: information and communications technologies;
Inapropriate content: information or image that might promote psychoactive, substance abuse, discrimination and exclusion, unlawful or dangerous behaviors suicide or violence ;
Information system: all organized sources of information used to collect, store, process and disseminate information ;
Internet cafe manager: anyone operating a centre that is open to the public and provides telecommunications/ICT services;
Internet service provider: natural or legal person that provides access to the Internet;
Internet: set of interconnected global networks that allows computers and servers to communicate efficiently using a common communication protocol ;
Information and communication technology regulatory body: public agency responsible for regulating, controlling and monitoring activities related to securing electronic communication networks and information systems;
Paedophilia: periodic or permanent intention, propensity, inclination to seek sexual pleasure from minors of both sexes;
Parental control: filter or monitoring system which parents can set up to limit and control their children's access to a medium;
Protection: any measure intended to prevent, mitigate and address the risks associated with children use of the internet;
Search engine provider: any person or company specializing in the design and delivery of application software that makes it easy for people to find the information they are looking for online using keywords or phrases;
Social network promoter: person or company specializing in the creation and delivery of platforms with primary purpose to connect users with each other;

Social media: web application that enables the user to create and post the content he/she generates and build online social networks by connecting user's profiles;
Social network: cluster of people or organizations that exchange, communicate and share ideas around a common topic and comprising sites where each user creates a profile;

CHAPTER II
ROLE OF PUBLIC AUTHORITIES AND THE PRIVATE SECTOR

I. ROLE OF PUBLIC AUTHORITIES

Section 4: Public authorities shall ensure the development of an appropriate environment for the safe use of the internet by children.
To this end, the ministry in charge of telecommunications, in conjunction with other relevant administrations, shall draw up and implement a National Action Plan on Child Online Protection.

Section 5: The National Action Plan on Child Online Protection shall aim in particular to:
- ensure secure access to the internet by the child for his/her learning, the development of his/her potential and his/her fulfilment;
- raise awareness among stakeholders of the child protection chain on the perverse effects of the Internet;
- ensure that audiovisual professionals consider child protection when processing and disseminating information.

Section 6: The ministries in charge of education and youth, in collaboration with the ministry in charge of telecommunications, shall draw up training curricula on the responsible use of the internet and social media with particular focus on child online protection.

Section 7: The ministry in charge of women's affairs and the family, in collaboration with the ministry in charge of telecommunications, shall develop training modules for parents on the use of the internet as part of positive parenting programmes.

Section 8: The ministry in charge of social affairs shall provide appropriate training to childcare workers on the prevention, detection and management of online child abuse.

Section 9: The ministry in charge of communication shall raise the awareness of the media and ensure that the content they provide to children is appropriate.

Section 10: (1) The ICT regulatory body shall use the preventive and repressive means required to protect children in the national cyberspace.
(2) A separate instrument shall lay down the role of the ICT regulatory body with respect to child online protection.

II. ROLE OF THE PRIVATE SECTOR

Section 11: (1) Together with public authorities, the private sector shall contribute to making the Internet safer for children.
(2) The private sector shall respect children's rights and prevent or remedy the infringement of such rights directly resulting from its operations, products and services.
(3) The private sector shall take part in raising awareness and educating children, families and communities, in particular, by providing accurate information about sites not suitable for children.

Section 12: In providing their services, the private sector shall take steps to reduce the availability of and access to content that could harm the dignity and integrity of children.

Section 13: Companies that develop or offer new technology products and services must assist the users thereof, especially children, to understand how they work and master their appropriate use.

CHAPTER III
RESPONSABILITIES OF CYBERSPACE ACTORS AND SANCTIONS

I. **OBLIGATIONS**

PARAGRAPH I
GENERAL OBLIGATIONS

Section 14: When so requested by competent authorities, every internet access provider, digital content provider or social network platform provider must suspend access to the internet, their digital content or social network, for any user who is at the origin of the publication of content offensive to the dignity and integrity of children.

Section 15: When so requested by authorities, every search engine provider must discontinue indexing of content offensive to the dignity and integrity of children .

Section 16: Internet access providers, digital content providers or search engine providers, social network promoters and cybercafé managers shall be bound to inform the competent authorities of all acts constituting child pornography and block sites identified as offensive to the dignity and integrity of the child.

Section 17: Data controllers or their subcontractors shall be required to comply with the regulations in force regarding the protection of children's rights.

Section 18: (1) Save with legitimate reason, online advertising must not portray children in a position of vulnerability.
(2) On no account shall online advertising take advantage of the inexperience or naivety of children.

Section 19: (1) Online advertising directed at children must not be such as can compromise their education or contain any visual depiction, written or oral message likely to cause bodily or moral harm to children.
(2) Online advertising must not be used to take advantage, change or attempt to break the trust or respect children have in their parents, teachers or other persons responsible for their moral or intellectual education.

PARAGRAPH II
SPECIFIC OBLIGATIONS

Section 20: (1) Internet service providers shall provide users with guidelines on:
- best practices in the cyberspace;
- activities that undermine the dignity and integrity of children, as well as their related consequences.

(2) Internet access providers shall set up mechanisms for reporting content or behavior that undermines the dignity and integrity of children.
(3) The content referred to in (2) above must be reported to the ICT regulatory body and security services by any means that leaves a written trails.
(4) The mechanisms referred to in (2) above may also be used to block access to or delete such content.

Section 21: (1) Internet providers shall available to users procedures and technical resources to facilitate the control of children's access to the Internet.
(2) Internet service providers shall make available parental control devices for the purpose of monitoring, filtering and blocking sites containing content that undermines the dignity and integrity of children.

Section 22: Content providers shall be responsible for the content posted on electronic communications networks or information systems particularly when such content undermines the dignity and integrity of children.

Section 23: (1) Online content and service providers shall describe the nature of the content or services they offer and specify their target age groups.
(2) Content providers shall implement a default privacy setting in the systems that collect, process, store, market and publish personal data, including information on the user's location and Internet browsing habits, where such data concerns children.
(3) Furthermore, content providers shall set up mechanisms to immediately remove or block access to publications offensive to the dignity and integrity of children.

Section 24: Electronic communication network operators shall promote mechanisms for reporting publications that undermine the dignity and integrity of children.

Section 25: (1) Electronic communication network operators and information systems operators shall facilitate the deployment by the ICT regulatory body of any device aimed at protecting the dignity and integrity of children within their network or information system.
(2) They shall also facilitate the data collection operations necessary for digital and judicial investigations.
(3) They must comply with the requirements for the proper functioning of the device referred to in paragraph 1 above.

Section 26: (1) Audiovisual communication operators shall ensure the protection of children in programmes posted online and available to the public, To this effect, they shall, as and when necessary, create a safe space which offers families and children a set of "all-audience" programmes only, free of extracts, trailers, messages and any content or services which are subject to restrictions for children.
(2) They must obtain the consent of parents or guardians before filming or recording children.
(3) Service providers must ensure that publishing the images or recordings takes into account the best interests of the child.

II. ADMINISTRATIVE SANCTIONS

Section 27: Where an online violation of children's rights does not constitute an offence, the ICT regulatory body shall, in conjunction with the Telecommunications Regulatory Board and the National Communication Council, take steps to put an end to such violation.

Section 28: In the event of failure to comply with their obligations, the ICT regulatory body shall issue a demand letter to the internet access providers, content providers, electronic communication network operators, online advertising professionals and audiovisual communication operators, requesting them to comply within 15 (fifteen) days.

Section 29: Where Internet access providers, content providers, electronic communication network operators, online advertising professionals and audiovisual communication operators fail to heed the warning referred to in Section 28 above, the ICT regulatory body shall impose a penalty of between 1 000 000 (one million) and 10 000 000 (ten million) CFA francs against them.

III. CRIMINAL PROCEDURE AND PENALTIES

Section 30: Audio or video recordings or recordings by any other electronic means of conservation may be admissible as evidence.

Section 31: Writing in electronic form shall be admitted in the same way as paper-based documents and shall have the same probative value as the latter, provided the person from whom it originates is duly identified and that it has been made out and stored in a manner capable of ensuring its integrity.

Section 32: (1) Infringements of the provisions of this law shall be established by criminal investigation officers with general jurisdiction, sworn agents of the ICT regulatory body or of the ministries in charge of telecommunications and advertising, in accordance with the conditions laid down by the laws and regulations in force.
(2) Reports establishing the infringements as well as the objects and documents seized shall be forwarded to the public prosecutor with jurisdiction.

Section 33: (1) Any Internet service provider who, after becoming aware of the existence of content or behavior that violates the dignity and integrity of children, fails to report same to the competent authorities, to block or delete same, shall be punishable with fine of from 25 000 000 (twenty-five million) to 250 000 000 (two hundred and fifty million) CFA francs.
(2) The following shall be punishable with the penalties provided for in paragraph 1 above:
- any content provider who allows content offensive to the dignity and integrity of children to flourish on the electronic communication networks or information systems under his/her control;
- any electronic communication network operator or information systems operator who obstructs the de-

ployment by the ICT regulatory body of a device aimed at protecting the dignity and integrity of children within its network or information system, or the collection of data necessary for digital and judicial investigations;
- any advertising professional who uses inappropriate content to broadcast children's advertisements;
- any advertising professional who, under his responsibility and without a legitimate reason, causes the posting online of an advertising message presenting children in a situation of danger or taking advantage of the inexperience or naivety of the latter, and of the fragility of persons with disabilities and any other vulnerable person due to their physical or moral condition.

(3) In case of a repeat offence, the court may also order:
- a ban, permanently or for a period of at least 1 (one) year, from directly or indirectly exercising one or more professional or social activities;
- the temporary closure for a period of at least 1 (one) year of the establishment that was used to perpetrate the criminal acts, under the conditions provided for in Section 344 of the Penal Code;
- the publication of the decision taken, by any electronic means of communicating to the public.

Section 34: (1) Any electronic communication operator who involves children in electronic communication without the written authorization of their parents or guardians shall be punished with the penalties provided for in Section 344 of the Penal Code.
(2) The penalties provided for in paragraph 1 above shall also apply to whoever allows the publication, via electronic means or an information system, under his control, of an advertising message likely to compromise the education of children, cause them bodily or moral harm, alter or attempt to break the trust or respect children have in parents, teachers or other persons responsible for their moral or intellectual education.

Section 35: Whoever discloses the identity of a child in a situation of vulnerability in treating issues likely to harm the child, especially when there is a risk of stigmatization after such disclosure, Shali be punished with imprisonment of from 1 (one) month to 2 (two) years and fine of from 5 000 (five thousand) to 500 000 (five hundred thousand) CFA francs.

Section 36: A penalty of imprisonment of from 1 (one) to 3 (three) years and fine of from 5 000 000 (five million) to 10 000 000 (ten million) CFA francs or only one of such imprisonment and fine shall be imposed against any promoter of online games and bets who fails to prevent a child from having access to such games and bets, by not adopting the following measures:
- publish on the homepage of the gaming site and on the registration pages a visible text which explicitly prohibits access by children to the gaming service;
- require the player to swear about his or her age and enter his or her identification data;
- require the player to use online payment methods prohibit access to children.

Section 37: Whoever produces, bears or disseminates, through an electronic communication means or an information system, a message about child pornography or likely to seriously harm the dignity of a child, shall be punished with imprisonment of from 5 (five) to 10 (ten) years and fine of from 5 000 000 (five million) to 10 000 000 (ten million) CFA francs or only one of such imprisonment and fine.

Section 38: Whoever uses an electronic communication means or an information system to fix, record, publish, make available or transfer, for a fee or free of charge, an image showing paedophilic acts perpetrated on a child shall be punished with imprisonment of from 3 (three) to 6 (six) years and fine of from 5 000 000 (five million) to 10 000 000 (ten million) CFA francs or only one of such imprisonment and fine.

Section 39: (1) Whoever keeps in an electronic communication network or in an information system an image or representation of a paedophilic nature shall be punished with imprisonment of from 1 (one) to 5 (five) years and fine of from 5,000,000 (five million) to 10 000 000 (ten million) CFA francs or only one of such imprisonment and fine.
(2) The penalties provided for in paragraph 1 above shall be doubled where an electronic communication network has been used to disseminate an image or representation of the child to the public.
(3) The provisions of this Section shall also apply to pornographic images of children.

Section 40: Whoever:
- offers, produces or makes available child pornography for distribution;

- acquires child pornography for himself or provides same to a third party through an information system;
- of legal age, makes sexual advances to children less than 16 (sixteen) years old or a person posing as such;
- posts or transmits child pornography through an information system, using an electronic communication network or an information system shall be punished with imprisonment of from 2 (two) to 5 (five) years and fine of from 5 000 000 (five million) to 10 000 000 (ten million) CFA francs or only one of such imprisonment and fine.

Section 41: Whoever commits an indecent act against a child through an electronic communication means shall be punished with imprisonment of from 10 (ten) to 20 (twenty) years and fine of from 10 000 000 (ten million) to 20 000 000 (twenty million) CFA francs or only one of such imprisonment and fine.

Section 42: (1) Whoever, being of legal age, uses electronic communication means to make sexual advances to a child or a person posing as such shall be punished with imprisonment of from 2 (two) to 5 (five) years and fine of from 1 000 000 (one million) to 5 000 000 (five million) CFA francs or only one of such imprisonment and fine.
(2) The penalties provided for in paragraph 1 above shall be doubled where the accused uses ruse, psychological pressure, violence or blackmail via an electronic communication means, to get a child send out sexually explicit or implicit photos or videos of himself/herself.
(3) The penalties provided for in paragraph 2 above Shall also apply where the online sexual proposals lead to a physical meeting, a violation of the child's dignity or a sex offence.

Section 43: (1) Whoever uses an electronic communication means or an information system to fix, record, publish or transfer, for a fee or free of charge, any sexual content involving a child shall be punished with imprisonment of from 5 (five) to 10 (ten) years and fine of from 5 000 000 (five million) to 10 000 000 (ten million) CFA francs or only one of such imprisonment and fine.
(2) Whoever offers or makes available sexual content involving a child shall be punished with the penalties provided for in paragraph 1 above.
(3) In case of a repeat offence, the penalties provided for in paragraphs 1 and 2 above Shall be doubled.

Section 44: Whoever keeps sexual content involving a child in an electronic communication network or information system shall be punished with imprisonment of from 1 (one) to 5 (fives) years and fine of from 5 000 000 (five million) to 10 000 000 (ten million) CFA francs or only one of such imprisonment and fine.

Section 45: Whoever exposes a child to sexual content shall be punished with imprisonment of from 2 (two) to 5 (five) years and fine of from 1 000 000 (one million) to 5 000 000 (five million) CFA francs or only one of such imprisonment and fine.

Section 46: Whoever habitually consults sites containing images of child pornography shall be punished with imprisonment of from 2 (two) to 5 (five) years and fine of from 1 000 000 (one million) to 5 000 000 (five million) or only one of such imprisonment and fine.

CHAPTER IV
MISCELLANEOUS AND FINAL PROVISIONS

Section 47: All previous provisions repugnant here to are repealed.

Section 48: The conditions for implementing this law shall, as and when necessary, be laid down by separate instruments.

Section 49: This law shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaounde, 25 July 2023

PAUL BIYA

PRESIDENT OF THE REPUBLIC

DECREES

DECREE No. 2012/308 OF 26 JUNE 2012 To lay down management conditions for the Special Fund for Telecommunications.-

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of Law No. 2010/012 of 21 December 2010 on Cybersecurity and Cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Decree No. 2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This decree sets out the management modalities of the Special Fund for Telecommunications, abbreviated to SFT, hereinafter referred to as "the Fund".

ARTICLE 2.- The Fund is under the authority of the Minister in charge of telecommunications.

CHAPTER II
RESOURCES AND EXPENDITURE OF THE FUND

SECTION I
RESOURCES OF THE FUND

ARTICLE 3.- (1) The resources of the Fund shall come from:
- the annual contributions from operators and providers of electronic communications services, up to 3 % of their annual turnover excluding taxes;
- state subsidies;
- revenues from the production and publishing of the universal subscriber directory;
- budget surpluses of the Telecommunication Regulatory Board;
- the portion of the entry and renewal fees resulting from the sale and renewal of authorisations;
- donations and bequests.

(2) The fund's resources are public funds. As such, they shall be managed in accordance with the laws and regulations in force.
(3) The Fund's resources are recovered by the Telecommunications Regulatory Board and are deposited in an account opened at the Central Bank by the Minister in charge of telecommunications.

ARTICLE 4.- (1) The Telecommunications Regulatory Board shall ensure the effectiveness of the payment of contributions by operators.
(2) Network operators and providers of electronic communications services shall be required to pay their contributions for the previous year by latest the 31 March of the following year.
(3) The Telecommunications Regulatory Board shall verify the accuracy of the turnover figures declared by network operators and providers of electronic communications services.
(4) In the event of doubt as to the sincerity of the declared turnover, the Telecommunications Regulatory

Board reserves the right to commission an audit at the expense of the operator and/or provider.

SECTION II
EXPENSES OF THE FUND

ARTICLE 5.- The resources of the Fund shall be used primarily to finance:
- the universal electronic communications service;
- the development of the telecommunications sector and information and communication technologies throughout the national territory;
- the training and capacity building of the sector's human resources;
- the payment of Cameroon's financial contributions to international organisations in the telecommunications and information and communication technologies sector.

ARTICLE 6.- The Fund's operations are carried out through three (3) separate and independent windows, namely:
- the Universal service window;
- the development window of electronic communications throughout the national territory;
- The development window of Information and Communication Technologies.

ARTICLE 7.- The purpose of the universal service window is to finance projects and pay for services performed in order to provide all citizens with good quality electronic communication services, uninterruptedly and at affordable tariff conditions.
In this respect, this financing relates in particular to activities connected with:
- the provision of public access points to electronic communications services throughout the national territory;
- the connection of any person to public networks and access to basic electronic communications services;
- access to emergency services and free information;
- the implementation of special measures for certain social groups;
- the free routing of emergency electronic communications;
- the production and publishing of the universal subscriber directory.

ARTICLE 8.- The purpose of the electronic communications development window is to finance projects and cover the services provided, in particular:
- serving rural areas not covered by the operators' specifications;
- reducing the deficit in the coverage of the national territory by means of electronic communications eligible for subsidy;
- readjusting the frequencies spectrum;
- supporting the development of underprivileged sectors of the national economy through the use of electronic communications;
- supporting research, training and standardisation in the field of electronic communications;
- paying the State's financial contributions to international organisations in the telecommunications and information and communication technologies sector;
- providing the technical, financial and accounting audit services referred to in Article 23;
- providing any other activity that contributes to the development of electronic communications.

ARTICLE 9.- The purpose of the information and communication technologies development window is to finance projects resulting from the national information and communication technologies strategy and any activity contributing to the promotion of information and communication technologies.

CHAPTER III
MANAGEMENT OF THE FUND

ARTICLE 10.- (1) The Prime Minister, Head of Government, shall determine the annual budget of the Fund as well as the list of corresponding priority projects, on the proposal of the Minister in charge of telecommunications, after receiving the consent of the Committee in charge of validating projects, referred to in Article 15

of this decree.
(2) The Minister in charge of telecommunications shall submit to the Prime Minister, Head of Government, not later than 31 December of the current financial year, a report on the physical and financial execution of the projects.

ARTICLE 11.- (1) An Accounting Officer appointed by order of the Minister in charge of finance from among the Treasury accountants shall be responsible for the execution of the Fund's financial operations.
As such, it shall:
- register all the budgetary revenue and expenditure of the Fund;
- ensure the payment of expenditure carried out on the Fund;
- ensure the regularity of the Fund's expenditure.

(2) The Accounting Officer alone shall be empowered to handle any funds or assets and sign cheques relating to the disbursement of funds. He/she shall be responsible for the keeping of accounts and the accuracy.
(3) The payment of expenditure authorised by the authorised vote holder shall be made solely to the Fund's Accounting Officer.
(4) The Accounting Officer is personally responsible for his/her financial and accounting operations. At the end of each financial year he shall draw up a revenue and expenditure account.
(5) The management account is submitted to the appraisal of the Audit Bench.

ARTICLE 12.- (1) The Accounting Officer shall be subject to the regulations applicable to public accountants.
(2) The Fund management is governed by public accounting rules.

ARTICLE 13.- The Financial Controller of the Ministry in charge of telecommunications shall carry out the control of expenditures in accordance with the laws and regulations in force.

ARTICLE 14.- At the end of each financial year, the Minister in charge of telecommunications shall draw up an administrative account of the Fund's resources.

CHAPITER IV
PROJECTS COMMITTEE

ARTICLE 15.- (1) A Committee is hereby established to validate priority projects for universal service and the development of telecommunications and information and communication technologies, hereinafter referred to as the "Committee".
(2) The Committee shall assist the Minister in charge of telecommunications in validating, monitoring and evaluating the priority projects to be financed by the Fund, in the context of carrying out the tasks assigned to it.
(3) The Committee is responsible for:
- defining the criteria for the assessment of services within the framework of the missions allocated to the Fund;
- examining and proposing to the Minister in charge of telecommunications the projects to be carried out in the areas of universal service, training and capacity building of personnel, development of electronic communications and information and communication technologies throughout the national territory;
- ensuring the follow-up and control of the execution of projects financed by the Fund;
- examining, for opinion, the requests submitted by operators and promoters of projects.

ARTICLE 16.- The Committee shall validate and submit to the Minister in charge of telecommunications, not later than 30 November of the current financial year, the list of priority projects from the three windows referred to in Article 6 above, likely to be financed by the Fund for the following year.

ARTICLE 17.- (1) The Committee shall be composed as follows:
- Chairperson: A person appointed by the Prime Minister, Head of Government, upon proposal of the Minister in charge of telecommunications.

- Members:
  - one (01) representative of the Presidency of the Republic;
  - one (01) representative of the Prime Minister's Office;
  - one (01) representative of the Ministry in charge telecommunications;
  - one (01) representative of the Ministry in charge finance;
  - one (01) representative of the Ministry in charge of defence;
  - one (01) representative of the Ministry in charge Communication;
  - one (01) representative of the Ministry of Territorial Administration;
  - one (01) representative of the Ministry of Regional Development;
  - one (01) representative of the Telecommunication Regulatory Board;
  - one (01) representative of the National Agency for Information and Communication Technologies;
  - one (01) representative of the operators of electronic communications networks, appointed by its peers;
  - one (01) representative of communication network service providers designated by its peers;

ARTICLE 18.- (1) The members of the Committee shall be appointed by the administrations and bodies they represent.
(2) The composition of the Committee shall be established by decision of the Minister in charge of telecommunications.
(3) If a member loses the capacity in which he sits on the Committee, he shall immediately cease to be a member. In this case, the structure he/she represents shall replace him/her.

ARTICLE 19.- (1) The Committee shall meet in ordinary session at least once every three months upon convocation by its Chairperson. It may meet in extraordinary session at the request of the Minister in charge of telecommunications.
(2) Any member unable to attend a session could be represented. However, no one may represent more than one member during the same session.
(3) The Committee may validly deliberate only if half of its members are present or represented. The presence of the operators' representatives is necessary for the validation of the Committee's deliberations, except where they have been duly convened on two (2) occasions without action.
(4) The Chairperson of the Committee may invite any person to participate in the meetings of the Committee, in an advisory capacity, on the basis of their expertise, on the items on the agenda.
(5) The resolutions of the Committee are sent to the Minister in charge of telecommunications.

ARTICLE 20.- (1) A Technical Secretariat shall be set up within the Committee, coordinated by the Department of Telecommunications Planning and Development of the Ministry in charge of telecommunications, to carry out its missions.
(2) The Technical Secretariat is a support body, in charge namely of:
- preparing the Board's meetings;
- drafting minutes as well as proceedings of the Committee's meetings;
- preparing the draft budget of the Fund to be submitted to the Committee for validation;
- working out the draft budget of the Committee;
- collecting, keeping and classifying the documentation and archives of the Committee;
- encouraging those responsible for the sector to identify, design and programme projects with a high impact on reducing the digital divide;
- preparing the projects to be submitted to the Committee, as well as the programmes and activities eligible for the Fund's resources;
- facilitating the work of the different stakeholders of the Fund;
- producing statistics for the activities carried out;
- elaborating the draft quarterly, biannual and annual report of the Committee;
- conducting a permanent assessment of the activities carried out;
- supervising all preparatory technical works at the Committee's meetings.

(3) The organizational and operational procedures of the Technical Secretariat of the Committee shall be specified in a text issued by the Minister in charge of telecommunications.

CHAPTER V
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 21.- Operators and service providers shall be liable, in the event of failure to pay contributions to the Fund within the period stipulated in Article 4, paragraph 2 of this Decree, to the penalties provided for in Articles 68 and seq. of Law No. 2010/013 of 21 December 2010, after formal notice from the Telecommunications Regulatory Board.

ARTICLE 22.- The promoters of projects financed by the Fund shall be required to submit to the Committee, for evaluation, the progress reports on the said projects by 30 November of the current financial year and final implementation reports, latest three years after the end of the projects.

ARTICLE 23.- (1) No later than 31 March of the following financial year, the Minister in charge of telecommunications shall recruit, through a call for tenders, an independent auditor, chosen from among firms of established reputation, to carry out a technical and financial audit of the expenditure financed by the Fund during the previous financial year.
(2) The audit report referred to in paragraph 1 above shall be sent, in its original version, with any comments made by the Minister in charge of telecommunications, to the Prime Minister, Head of Government, to the Supreme State Audit and to the Minister in charge of finance.

ARTICLE 24.- (1) The commitments made may not, under any circumstances, exceed the amount of the Fund's annual budget.
(2) The Fund cannot raise loans.
(3) When at the end of a financial year the Fund's resources exceed its commitments, the surplus shall be transferred to the Fund's budget for the following financial year.
(4) Activities not carried out at the end of a financial year shall be carried over to the next financial year, upon proposal of the Minister in charge of telecommunications.

ARTICLE 25.- Assets of any kind acquired with the resources of the Fund shall remain the property of the State.

ARTICLE 26.- (1) Operators and providers of electronic communications services shall be required to pay, within three (3) months, the arrears due on the date of signature of this Decree.
(2) Operators and service providers may not claim compensation for their investments.

ARTICLE 27.- (1) The functions of the Chairperson, members of the Committee and members of the Technical Secretariat are free of charge. However, during meetings, they and the persons invited in an advisory capacity may be paid an allowance, the amount of which shall be determined by a decision of the Minister in charge of telecommunications.
(2) The budget of the Committee shall be managed according to the rules of public accounting.

ARTICLE 28.- The operating costs of the Committee and the Technical Secretariat shall be determined by an order of the Prime Minister, Head of Government, upon proposal of the Minister in charge of telecommunications.

ARTICLE 29.- This decree, which abrogates decree No.2006/268 of 04 September 2006 to lay down the terms and conditions for managing the Special Fund for Telecommunications, shall be registered and published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaoundé, 26 June 2012

Paul BIYA

THE PRESIDENT OF THE REPUBLIC

DECREE No. 2012/309 OF 26 JUNE 2012
To lay down management modalities of the Special Fund for Electronic Security Activities.-

THE PRESIDENT OF THE REPUBLIC,

Mindful of the Constitution;
Mindful of Law No2010/012 of 21 December 2010 relating to cybersecurity and cybercrime in Cameroon;
Mindful of Law No 2010/013 of 21 December to govern electronic communications in Cameroon;
Mindful of Law No 2010/021 of 21 December 2010 to govern electronic trade in Cameroon;
Mindful of Decree No 2005/124 of 15 April 2005 to organize the Ministry of Posts and Telecommunications;
Mindful of Decree No 2011/408 of 09 December to organize the Government;
Mindful of Decree No 2012/180 of 10 April 2012 to lay down the organization and functioning of the National Agency for Information and Communication Technologies,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This decree shall lay down the management modalities of the Special Fund for Electronic Security Activities abbreviated "SFE", hereinafter referred to as the "Fund".

ARTICLE 2.- The Fund shall be under the authority of the Minister in charge of telecommunications.

CHAPTER II
FUND RESOURCES AND EXPENDITURES

PART I
RESOURCES OF THE FUND

ARTICLE 3.- (1) The fund's resources shall stem from:
- State subsidies;
- annual contributions, accredited certification authorities, security auditors, security software firms and some licensed security service providers, to the tune of 1.5% of their -tax free turnover;
- donations and legacy.

(2) The fund's resources shall be public funds. As such, they shall be managed with respect to the rules and laws in force.
(3) The Fund's resources shall be collected by the National Agency for Information and Communication Technologies and shall be deposited in an account opened at the Central Bank by the Minister in charge of telecommunications.

ARTICLE 4.- (1) The National Agency for Information and Communication Technologies shall ensure effective payments of the contributions of accredited certification authorities, securities, security software firms and other approved security service providers.
(2) The accredited certification authorities, security auditors, security software firms and other approved security service providers, are required to pay their contributions of the preceding year not later than the 31st March of the next year.

(3) The National Agency for Information and Communication Technologies shall ensure the control of the accuracy of the turnover declared by the accredited certification authorities, security auditors, security software firms and other approved security service providers.
(4) In the event of any doubt on the accuracy of the declared turnover, the National Agency for Information and Communication Technologies shall reserve the right to conduct a financial and accounting audit at the expense of the applicant.

PART II
EXPENSES OF THE FUND

ARTICLE 5.- the fund's resources shall be meant:
- developing and promoting activities related to the security of electronic communication networks and information systems;
- studies and research on cyber-security;
- training, building human capacities on cybersecurity.

ARTICLE 6.- Interventions under this Fund shall be carried out through three (3) separate and independent counters, they shall include:
- the development and promotion counter for activities related to the security of networks and information systems throughout the national territory;
- the studies and research counter on cyber-security;
- the counter of training and human resources capacity building on cyber-security.

ARTICLE 7.- The development and promotion counter of activities related to cyber-security shall aim at financing projects and paying for services rendered particularly under:
- the support to the development activities related to the security of networks, information systems and certification;
- the support for installation of mechanisms intended to ensure the security and the technological developments of networks and information systems at the national level;
- financial contributions of the State to international organisations in charged of cybersecurity issues;
- technical, financial and accounting auditing of service providers mentioned in article 24;
- any other activity that contributes to the building of network security and information systems.

ARTICLE 8.- The purpose of the window of studies and research in the cybersecurity area shall be for the financing and payment of programmes and projects services related to the studies and research in the area of cybersecurity.

ARTICLE 9.- The purpose of the training and human capacity building window in the area of cybersecurity is to finance and pay for programmes and projects services related to the area of training and human capacity building in cybersecurity.

CHAPTER III
MANAGEMENT OF THE FUND

ARTICLE 10.- (1) The Prime Minister, Head of Government, shall adopt the annual budget allowance of the Fund as well as the priority projects list, upon proposal of the Minister in charge of Telecommunications, after obtaining the assent of the Committee in charge of the validation of projects, mentioned in article 15 of this decree.
(2) The Minister in charge of Telecommunications shall forward to the Prime Minister, Head of Government, not later than the 31st December of the current financial year, a report on the physical and financial implementation of the projects.

ARTICLE 11.- (1) An Accounting Officer appointed by Order of the Minster of Finance among the treasury accountants shall be in charge of implementing the financial transactions of the Fund. As such, he shall:
register all the budgetary revenue and expenditure of the Fund;

- ensure the payment of expenditure carried out on the Fund;
- ensure the regularity of the expenditure of the Fund.

(2) Only the accounting officer is competent to effect changes on funds or values and sign cheques related to the disbursement of funds. He shall be responsible for the keeping of accounts and the accuracy of entries.
(3) The payment of expenditures authorised by the authorising officer shall be done only by the Fund's Accounting Officer.
(4) The Accounting Officer shall be personally responsible for its financial and accounting transactions. He is oblige to establish a management account at the end of each financial year.
(5) The management account is submitted to the appraisal of the Audit Bench

ARTICLE 12.- (1) The Accounting Officer is submitted to the rules applicable to public accountant.
(2) The Fund management is governed by the public accounting rules.

ARTICLE 13.- The Financial Controller of the Ministry in charge of Telecommunications shall audit the expenditure in accordance with the laws and regulations in force.

ARTICLE 14.- At the end of each financial year, the Minister in charge of Telecommunications established an administrative report of the Fund's report.

CHAPTER IV
COMMITTEE OF PROJECTS

ARTICLE 15.- (1) A committee in charge of the validation of research priority projects, development, training and cyber-security studies was created, hereinafter referred to as " the Committee".
(2) The Committee shall assist the Minister in charge of Telecommunications in the validation, monitoring and evaluation process of priority projects to be financed by the Fund, under the implementation of missions that are set onto the Committee.
(3) The Committee is responsible for:

- the definition of the services assessment criteria under the missions set onto the Fund;
- examining and proposing to the Minister in charge of Telecommunications, projects to be implemented under the development of networks security activities and information systems nationwide, training and personnel capacity building;
- ensuring the monitoring and control of services implementation as well as projects and programmes agreed;
- ensuring the intended use of resources allocated to the execution of the Fund's services, studies and projects;
- presenting an opinion on projects likely to be financed by the Fund as well as on the amount allocated to each project;
- giving an opinion on the petition filed by certification authorities, security auditors, security software firms or security service providers and project promoters.

ARTICLE 16.- The Committee shall validate and submit to the Minister in charge of telecommunications, not latest than the 30th November of the current financial year, the priority projects list drawn from the three (03) counters mentioned in article 7, likely to be financed by the Fund for the following financial year.

ARTICLE 17.- The Committee shall be made up as follows:

- **Chairperson**: A personality appointed by the Prime Minister, Head of Government, upon proposal of the Minister of Telecommunications.
- **Members**:
  - one (01) representative of the Presidency of the Republic;
  - one (01) representative of the Prime Minister's Office;
  - one (01) representative of the Ministry in charge of telecommunications, a (01) representative of the Ministry in charge of Finance;
  - one (01) representative of the Ministry in charge of Defence;
  - one (01) representative of the Ministry in charge of Justice;

- one (01) representative of the Ministry in charge of Territorial Administration;
- one (01) representative of the Ministry in charge of Commerce;
- one(01) representative of the General Delegation for National Security;
- one (01) representative of the Secretariat of State for Defence in charge of the Gendarmerie;
- one (01) representative of the General Directorate for External Security;
- one (01) representative of the National Agency for Information and Communication Technologies;
- one (01) representative of the Telecommunication Regulatory Board;
- two (02) representatives of the certification authorities for security auditors,
- security software firms, suppliers and other security service providers, appointed by their peers.

ARTICLE 18.- (1) Members of the committee are appointed by the administrations and bodies they represent.
(2) The composition of the Committee is established by a decision of the Minster in charge of Telecommunications.
(3) When a member loses the quality for which he seats in the Committee, he immediately ceases to be a member. In such a case, the structure he represents shall proceed with his replacement.

ARTICLE 19.- (1) The Committee shall hold an ordinary session at least once per quarter upon convocation of the President. The Committee can hold an extraordinary session upon request from the Minster in charge of Telecommunications.
(2) Any member unable to attend a session could be represented. Nonetheless, no one can, during the same session represent more than one member.
(3) The Committee may validly deliberate only if half of its members are presents or represented. The presence of at least one representative of accredited certification authorities, security auditors, security software firms and other approved security service providers is necessary for the validation of the Committee's deliberations, unless when they have been duly summoned twice without effect.
(4) The President of the Committee can invite any person to take part to the Committee's meetings, in an advisory capacity, because of his qualifications, on the items of the agenda.
(5) The resolutions of the Committee are forwarded to the Minister in charge of Telecommunications.

ARTICLE 20.- (1) To achieve its missions, a Technical Secretariat was established under the Committee and is coordinated by the Directorate in charge of infrastructures and Network Access to ICT in the Ministry in charge of telecommunications.
(2) The Technical Secretariat is a support body, in charge namely of:
- preparing the Committee's meetings;
- drafting minutes as well as proceedings of the Committee's meetings;
- working out the draft budget of the Fund to be submitted for validation by the Committee;
- working out the draft budget of the Committee;
- collecting, keeping and classifying the documentation and archives of the Committee;
- arousing from senior officers of the sector the desire to identify, design and programme high impact projects on network security and information systems;
- preparing projects to be submitted to the Committee as well as programmes and eligibles activities to the Funds resources;
- facilitating the work of the different stakeholders of Fund;
- producing statistics for activities carried out;
- developing the daft quarterly, biannual and annual report of the Committee;
- conducting a permanent assessment of activities carried out;
- supervising all preparatory technical works at the Committee's meetings;

(3) The organisation and functioning conditions of the technical secretariat of the Committee are specified in the regulation of the ministry in charge of Telecommunications.

CHAPTER V
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 21.- The accredited certification authorities, security auditors, security software firms and security service providers shall be subjected, in the event of non payment of their contribution to the Fund within the

time limit referred to in Article 4 Paragraph 2 of this Decree, to penalties set out in article 60 and in accordance with law No 2010/012 of 21stDecember 2010, after formal notice of the National Agency for Information and Communication Technologies.

ARTICLE 22.- Promoters of the projects financed by the Fund are expected to forward to the Committee, for assessment, their progress reports on 30thNovember of the current financial year and the final implementation reports of the said projects, latest, three months after the end of projects.

ARTICLE 23.- (1) Latest on 31st March of the next fiscal year, The Minister in charge of Telecommunications shall recruit, by invitation to tender, an independent auditor, selected among renown firms in order to proceed with the technical and financial auditing of expenditures financed by the Fund during the past financial year.
(2) The audit report mentioned in the above paragraph 1 is forwarded, in original version accompanied possibly with the observations of the Minister in charge of Telecommunications, to the Prime Minister, Head of Government, to the Services in charge of Higher State Control as well as to the Minister in charge of Finance.

ARTICLE 24.- (1) Undertakings implemented, shall not in any case, Exceed the amount of the Fund annual budget.
(2) The Fund cannot raise loans.
(3) If at the end of a financial year, the Fund revenue is higher than the undertakings, the surplus shall be repaid to the Fund's budget of the next fiscal year.
(4) Activities not implemented at the end of the financial year, are forwarded to the next one, upon proposal of the Minister in charge of Telecommunications.

ARTICLE 25.- Assets of any kind, acquired by means of the Fund's resources, shall remain under the State ownership.

ARTICLE 26.- (1) The functions of President, member of the Committee and member of the Technical Secretariat are free. However, during meetings, an allowance may be granted to them, as well as to those invited in their advisory capacity, which amount is set by a decision of the Minister in charge of telecommunications.
(2) The Committee's budget is managed in compliance with the public accounting rules.

ARTICLE 27.- The functioning charges of the Committee and the Technical Secretariat shall be set by an order of Prime Minister, Head of Government, upon proposal of the Minister in charge of telecommunications.

ARTICLE 28.- This decree shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in French and English.

Yaoundé, 26 June 2012
Paul BIYA

THE PRESIDENT OF THE REPUBLIC

DECREE No. 2011/1521/PM OF 15 JUNE 2011 To lay down the implementation conditions of Law No 2010/021 of 21 December 2010 governing electronic trade in Cameroon.

THE PRIME MINISTER HEAD OF GOVERNMENT,

Mindful of the Constitution
Mindful of Law No 2010/021 of 21 December 2010 to govern electronic commerce in Cameroon;
Mindful of Decree No 92/089 of 4 May 1992 to specify the duties of the Prime Minister, as amended and supplemented by Decree No 95/145-bis of 4 August 1995;
Mindful of Decree No 2004/320 of 8 December 2004 to organize the Government, as amended and supplemented by Decree No 2007/268 of 7 September 2007;
Mindful of Decree No 2009/222 of 30 June 2009 to appoint the Prime Minister, Head of Government,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

Article 1.- This decree shall lay down the implementation conditions of Law No 2010/021 of 21 December 2010 governing electronic commerce in Cameroon.

Article 2.- (1) Electronic commerce is an economic activity through which a person carries out or ensures, by electronic means, the supply of goods and services.
(2) Electronic commerce shall also include services such as those that involve the supply of online information, whether or not they are paid for, commercial communication, research tools, access and retrieval section, access to a communication network or one that stores information, even if they are not paid for by those who receive them.
(3) The supply of a product or service that has not been ordered by a consumer shall not be a commercial activity according to the meaning given in Article 2 of the Law that governs electronic commerce in Cameroon.

CHAPTER II
ACTIVITIES OF ELECTRONIC COMMERCE

Article 3.- (1) People working in this domain of electronic commerce and based in a third world country, must specify the applicable Law and have the approval of the receiver of the proposed service.
(2) However, the Law applicable in this country shall not question the warranty given to the consumer in accordance with the analogue provisions in force in Cameroon.

Article 4.- Notwithstanding provisions of Article 3 of this decree, freedom in carrying out activities related to electronic commerce may be limited, as the case may be, by the administrative authority when it shall be adversely affected or when there shall be a serious and grave risk to adversely affect public order and security, the protection of minors, the protection of public health, the preservation of interests of national defense or the protection of individuals.

Article 5.- (1) Anyone who carries out the activity of electronic commerce in Cameroon shall have the obligation to supply the following information to consumers:

- an electronic and postal address for eventual complaints;
- a telephone or fax number:
- indications on the provisions related to the protection of personal data;
- important features of the proposed product or service;
- the price of the goods or service, all taxes included;
- the validity period of the offer;
- the invoicing currency, modalities of payments, deliveries or execution and, if need be, terms of the proposed credit;
- the consequences of a poor execution or a non- execution of obligations by the supplier;
- the existence or absence of a retraction right;
- information related to after sale services and to existing trade warranties;
- conditions related to the date and time of signing the contract, to the duration and the termination of online contracts;
- the reimbursement means of money paid by the consumer in case of retraction on his part;
- the cost of using an online service;
- the consequences of the absence of information confirmation related to online services;
- The name of the publication editor, if need be;
- The cost of delivery, if need be.

(2) The information given must be unequivocal, easily accessed and permanent on the home page of the web site of the electronic supplier of goods or services.

Article 6.- (1) The information mentioned in Article 5 above must be given by all means adapted to the service used and accessible at all stages of the transaction, in accordance with the principles governing the protection of legally disabled persons such as minors and incapable persons.
(2) The electronic supplier of goods or services must set up a service that shall enable the consumer to dialogue with him directly.
(3) The consumer is not bound to any engagement related to goods or services that he did not expressly requested for. Any unsolicited supply shall be simply prohibited when it matches a demand for payment, in whatever form. The absence of a reply by the consumer cannot be considered as consent.

Article 7.- (1) To ensure that the consumer is aware of the obligations to which he has subscribed, the person who proposes, through electronic means and as a professional, the supply of goods and services, shall put at the disposal of the customers the contract terms applicable in a way that enables their conservation and reproduction.
(2) Without prejudice of the validity conditions mentioned in the offer, its author shall remain bound to it as long as it is accessible through electronic means.
(3) The offer shall also highlight:

- The different stages to follow in order to conclude the contract through electronic means;
- The technical means that enable the user, before the signing of the contract to identify errors made during the typing of data and to correct them;
- The languages proposed for the signing of the contract;
- The archiving modalities by the author of the offer and conditions to access archived contracts in case of archiving;
- How to consult online professional and commercial rules to which the author has to submit, if need be.

Article 8.- When a contract is signed through electronic means and includes an amount that exceeds or is equal to CFA twenty thousand (20.000) francs, the professional contracting party shall ensure the preservation of the written copy for a period of ten (10) years and shall guaranty, at every moment, its access to his co contracting party if the latter requests for it.

Article 9.- (1) The information given in Article 7 above must be accessible and be reproduced, when need arises, by the consumer in view of preserving them.
(2) In any case, for the contract to be legally concluded, the receiver of the offer must have the possibility of verifying the detail of his order and its total amount, and asking for the correction of possible errors, before confirming it to show his acceptance.

(3) The author of the offer must acknowledge receipt without delay and through electronic means the order that was addressed to him.
(4) The order, the confirmation of acceptance of the offer and the acknowledgement of receipt shall be considered as received when the parties to which it is addressed can access it.

Article 10.- (1) A simple letter related to the conclusion or execution of a contract can be sent through electronic mail.
(2) The stamp of a dispatch date shall result from an electronic procedure whose reliability is assumed until the contrary is proven.

Article 11.- (1) A registered letter related to the signing and execution of a contract may be sent through electronic mail provided that the mail be handled by a third party according to a procedure that helps identify the third party, designate the sender, guarantee the identity of the receiver and ascertain whether or not the letter was delivered to the receiver.
(2) The content of the letter, chosen by the sender, can be printed by a third party on hard copy, to be distributed to the receiver or addressed to him through electronic means. In the last case, if the receiver is not a professional, he must have requested for the dispatch through this means or must have accepted its usage in the course of previous exchanges.
(3) An acknowledgement of receipt can be addressed to the sender through electronic means or by any other means that will enable him preserve the mail.

Article 12.- The proof of the existence of a prior information, a confirmation of this information, the respect of deadlines and the consent of the consumer shall be the responsibility of the electronic supplier of goods and services.

Article 13.- (1) For every contract signed through electronic means, the consumer shall be given a period of fifteen (15) working days to retract, without giving reasons why and without penalty.
(2) However, if the electronic supplier of goods and services does not satisfy the information obligations, the retraction period shall be three (3) months. The consumer shall exercise his right to retract on any sustainable back-up material.

Article 14.- (1) If the information referred to in Article 5 above are given within a period of three (3) months, the deadline of fifteen (15) working days in view of retracting shall start from the day of the reception of information by the consumer, that is:
- For services, from the day the contract was signed;
- For products, from the day the product was received.

(2) The exercise of the right to retract shall suppose that the consumer is given the possibility to try the object ordered or to use it. However, this provision shall not apply for services whose execution was done just once.

Article 15.- (1) The consumer may only exercise, unless contrary agreement, the right to retract for contracts of:
- supplies of services whose execution started with his consent before the end of the retraction deadline;
- supplies of products made according to its specifications or which, due to their nature, cannot be re-sent because they are likely to rapidly deteriorate or expire;
- supplies of audio, video recordings or computer software found or directly downloaded by him;
- supplies of periodical, news papers or magazines;
- conclusion of sales during auction sales;
- insurance policy of less than one month;
- financial services whose price depends on fluctuations of the financial market that may occur during the retraction period.

(2) The financial services mentioned in Paragraph 1 above shall especially be services such as foreign exchange transaction, instruments of the monetary market, securities and other negotiable securities, systems of collective investments, contracts that have ended, exchange contracts on interest rate or on currency, and exchange contracts on the flow of shares or of share index.

Article 16.- (1) The right to retract may be exercise when the ordered product has deteriorated during transportation.
(2) The amounts likely to be imputed on the consumer due to the exercise of his right to retract are direct levies for resending the ordered goods. However, these costs shall no longer be borne by him if the electronic supplier of goods and services has not delivered the right product.

Article 17.- The execution modalities of the right to retract must imperatively be mentioned in the general conditions of sales proposed by the electronic supplier of goods and services.

Article 18.- For products and services that are not subject to a right to retract, the following additional information must be given to the consumer:
- The features of the operation system or of the equipment necessary for the effective use of the ordered product or service.
- The approximate time and the cost of eventual download of a product or of a service and, if need be, the terms and conditions of the license contract;
- The technical features to restart a download of a product or a service interrupted.

Article 19.- (1) The electronic supplier of goods and services must execute the order within a period of fifteen (15) days starting from the date the contract was signed, unless the parties think otherwise.
(2) In case of default in contract execution due to the unavailability of goods or services ordered, the consumer must be informed in writing and the contract shall be resolved by right.

Article 20.- (1) When a consumer is performing his retraction right, he may be bound to pay only the part of the cost proportionately determined for the service effectively provided by the electronic supplier of goods and services.
(2) The electronic supplier of goods and services shall send to the consumer, within a period of fifteen (15) days, all the amounts received in accordance with the signed contract, except the amount to be paid in conformity with Paragraph 1 above.
(3) This deadline shall run from the date of reception of the notification of the said retraction.

Article 21.- (1) If the reimbursement is not done within the required period, the amount owed shall increase by right starting from the following day of the expiration of the said deadline, in accordance with legal rates in force.
(2) The reimbursement must be done by the electronic supplier of goods and services without charges and in the same conditions of payment.
(3) The refusal of an electronic supplier of goods and services to reimburse the amount received from a customer who is performing his retraction rights is punishable by a six (06) months to one (01) year prison term with a fine of CFA three hundred thousand (300 000) francs, or by one of the two sanctions only.

CHAPTER III
SECURITY MEASURES FOR ELECTRONIC COMMERCE TRANSACTIONS

Article 22:- (1) Within the framework of electronic commerce activities electronic, electronic writing is allowed as well as writing on paper and on the same conclusive force like the latter. This is subject to identification of the sender and given that it is established and preserved in conditions that guarantee its integrity.
(2) The preservation of documents in electronic form must be done within a period of ten (10) years and in the following conditions:
- The information contained in the data message must be accessible, legible and intelligible for subsequent consultation;
- The data message must be preserved in the form in which it was created, sent or received or in a form that can show that its content has not been modified or altered and that the document sent and the one preserved are strictly identical;
- The information that help determine the origin and destination of the data message, as well as indications of the time and date it was sent or received has to be preserved if they exist.

Article 23.- The supplier of goods or services by electronic means who claims to carry out an obligation must prove that it exists and when he claims to have delivered them, he must show proof that the obligation does not exist or has expired.

Article 24.- Subject to legal and regulatory provisions or to a valid agreement between parties, the judge shall settle written evidence conflicts by determining at all cost, the most convincing title, no matter the means of writing.

CHAPTER IV
MISCELLEANEOUS AND FINAL PROVISIONS

Article 25.- (1) Any individual or corporate body who carries out electronic trade in Cameroon shall be by right responsible towards his co-contracting party, for the good performance of his obligations stemming from the contract, that his obligations be performed by him/herself or any other service suppliers, and without prejudice of his/her recourse right against the latter.
(2) However, the individual or corporate body may exonerate his/herself from all or a part of his/her responsibility by showing the evidence that the non-performance or bad performance of the contract shall be due to a case of force majeure.

Article 26.- (1) The contractual responsibility of the electronic supplier of goods and services shall be automatically engaged in case of non-performance of his/her obligations.
(2) The obligation for result that lies on the electronic supplier of goods and services shall imply that he/she is required to repair prejudice stemming from consequences of his/her own shortcomings.

Article 27.- This Decree shall be recorded, published according to the urgency procedure, then inserted in the Official Gazette in French and in English./-

Yaounde, 15 June 2011

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2012/1318/PM OF 22 MAY 2012 To lay down the conditions of allocation and the modalities of granting the authorisation to exercise the activity of electronic certification.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 to institute the minimum service in the telecommunications sector;
Mindful of Law No.2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2010 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2010 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This decree lays down the terms and conditions for granting authorisation to carry out the activity of an electronic certification authority.
(2) It is issued pursuant to the provisions of Articles 10 and 12 of the above-mentioned Law No. 2010/012.

ARTICLE 2.- To implement this decree, the following definitions are accepted:
1) **Authorisation**: a right entrusted by the State to a corporate body in order to carry out a given activity in the telecommunications and information and communication technologies sector and it entails some obligations;
2) **Electronic certificate**: an electronic document secured by the electronic signature of the person who issued it and who, after verification, certifies that the content is authentic;
3) **Qualified electronic certificate**: an electronic certificate issued by an approved certification authority;
4) **Electronic certification**: issuance of electronic certificates;
5) **Confidentiality**: the act of keeping private information and transactions in order to pre-empt the unauthorised disclosure of information to unauthorised recipients. This can give room to an illegal, intentional or accidental reading, hearing and copy during their storage, process or transfer;
6) **Electronic signature creation device**: all public equipment and/or software used for encryption which are approved by a competent authority and set up to create an electronic signature;
7) **Electronic signature verification**: all public equipment and/or software used for encryption which are approved by a competent authority and which help a certification authority verify an electronic signature;

8) **Reliability**: the ability for an information system or electronic communications network to work trouble-free for a long period of time;
9) **Data integrity**: a security criterion specifying the state of an electronic communications network, an information system or a terminal equipment that remained undamaged. This helps make sure that data is not altered (modified or destroyed) intentionally or accidentally, so as to guarantee their accuracy, reliability and sustainability;
10) **Interoperability of certification equipment**: the ability for certification terminal equipment to work with the network and other terminal equipment, making it possible to access a same service;
11) **Security**: a situation in which someone or something is secured. A mechanism designed to prevent a harmful event, or to curb its effects;
12) **Electronic signature**: a signature obtained by an asymmetric encryption algorithm that helps authenticate the sender of a message and check its integrity.

CHAPTER II
PROCEDURE FOR ISSUING AND VALIDITY REGIME OF THE AUTHORISATION

ARTICLE 3.- (1) Any legal person wishing to carry out the activity of electronic certification authority must meet the following conditions:
- be an entity under Cameroonian law;
- employ at least three (3) full-time experts in electronic certification;
- indicate the origin and the amount of the planned financing, specifying the identity of the main financial backers;
- provide the evidence of the company's financial capacity and the guarantee of financing for the project;
- specify the nature and level of the planned investments;
- provide the business plan of the company;
- not be in a position incompatible with the conditions for exercising any commercial profession in accordance with the legislation in force.

(2) The experts referred to in paragraph 1 above must meet the following conditions:
- be of Cameroonian nationality and reside in the territory of Cameroon;
- enjoy their civic rights;
- be a holder of an engineering degree in computer science or telecommunications or an equivalent degree and be registered with the National Order of Electrical Engineers.

ARTICLE 4.- (1) The application for an authorisation to carry out the activity of an electronic certification authority, stamped at the tariff in force, shall be sent to the National Agency for Information and Communication Technologies, hereinafter referred to as "NAICT", by registered letter or by any other means in writing.
(2) If the application is made electronically, it shall be followed by the submission of a physical file to NAICT.
(3) The applications referred to in paragraph 1 above must contain the following documents:

a) An administrative file including:
- an information sheet provided by NAICT, duly completed and signed by the applicant for authorisation;
- a copy of the registration in the Trade and Personal Property Credit Register;
- a tax file;
- a receipt of payment of the fees for studying the file issued by NAICT;
- a declaration on the honour of the legal representative not to exercise another professional activity that could give rise to a conflict of interest with the certification activity;
- the required financial guarantees, in particular the commitment of financial institutions approved by the monetary authority;
- an insurance certificate guaranteeing the pecuniary consequences of its professional civil liability.

b) A technical file including:
- the characteristics of the network security devices used for the provision of certification services;
- the certification practice document (CPS);
- the state of the material and financial resources to be mobilised;
- the quantity and quality of human resources to be mobilised;
- the conditions for the interoperability of certification systems and the interconnection of certificate registers;
- a copy of the employment contracts concluded with its qualified personnel;
- a statement of the rules relating to information on its services and the certificates issued and to be kept

by the electronic certification provider;
- the estimated and quantitative estimates of the investment in the works;
- the characteristics of the equipment and devices to be used for the provision of electronic certification services, together with a diagram of the certification device;
- the plan of the supplier's premises and a detailed description of the security procedures adopted to secure the premises.

ARTICLE 5.- (1) NAICT shall respond to the applicant's request within a maximum period of forty-five (45) days from the date of receipt of the documents.
(2) NAICT may request for additional information. In this case, the deadline mentioned in paragraph (1) above shall begin from the date of reception of the additional information.

ARTICLE 6.- (1) Authorisations shall be issued on the basis of a report drawn up by NAICT. This report shall include an evaluation of the technical, financial and human resources.
(2) The draft authorisation, together with the report on the study of the file, shall be forwarded to the Minister responsible for telecommunications for signature.

ARTICLE 7.- (1) The authorisation is granted on a personal basis for a renewable period of ten (10) years.
(2) The electronic certification authority may not modify the technical conditions of operation, in particular the opening or closing of a registration authority, nor the change of the location of servers without the agreement of NAICT.

ARTICLE 8.- (1) Applications for authorisation shall be refused in the following cases:
- if the applicant for authorisation does not provide NAICT with the necessary information it requires to complete the file within a period of one (01) month, as from the date of notification by registered letter or any other means in writing;
- if the conditions provided for in the specifications relating to the exercise of the electronic certification authority are not met.

(2) In the event of refusal of authorisation, the applicant may not recover the costs of studying the file.

ARTICLE 9.- (1) The certification authority may not open or close a branch or agency, nor change the location of servers or add servers without the agreement of NAICT.
(2) The certification authority must notify NAICT, by any means that leaves a written record, of any change in its legal status, its domicile, its managers and any assignment or transfer of its shares.

ARTICLE 10.- (1) NAICT's sworn agents have the right to obtain the communication of all information or documents necessary for the accomplishment of their control mission.
(2) In the event of a failure to comply noted in a report by the agents referred to in paragraph 1 above, NAICT shall give formal notice to the authority concerned to comply, within a maximum period of fifteen (15) days, with the legislative and regulatory provisions or with the prescriptions of the legal instrument by virtue of which it carries out its activity.
(3) Where the holder does not comply with the formal notice provided for in paragraph 2 above, NAICT shall take all necessary precautionary measures, including the suspension of the authorisation for a period of six months, renewable once.
(4) During the period of suspension, the activities of the certification authority shall be managed by NAICT insofar as they are not contrary to the laws and regulations in force.
(5) The certification authority concerned by the withdrawal or suspension and NAICT shall inform the holders of the certificates.
(6) Where the holder of the authorisation does not comply with the formal notice provided for in Article 10, paragraph 2 above, the Minister in charge of telecommunications shall withdraw the authorisation, on the proposal of NAICT.

ARTICLE 11.- (1) In the event of a serious violation of the legal and regulatory provisions in force with regard to electronic certification, NAICT shall propose to the Minister in charge of telecommunications the immediate withdrawal of the authorisation, without prejudice to criminal proceedings, particularly in the following cases:

- obtaining an authorisation on the basis of false declarations or any other illicit means;
- failure to fulfil its obligations under the laws and regulations in force;
- failure to comply with the provisions set out in the specifications;
- violation of the conditions on the basis of which the authorisation was granted.

(2) The authorisation shall be withdrawn after a hearing of the certification authority concerned; the decision to withdraw shall set the date on which the withdrawal takes effect.

(3) In the event of withdrawal of the authorisation, NAICT shall be responsible for transferring all or part of the activity of the authority concerned to another authority under the conditions defined in Article 14 of this Decree.

ARTICLE 12.- The decision to suspend or withdraw an authorisation may be appealed against in accordance with the conditions and procedures laid down by the texts in force.

ARTICLE 13.- (1) The transfer of certificates to another electronic certification authority may occur in the following cases:

a) Ceasing of activities:

In this event, the ceasing certification authority and NAICT shall inform :

- by any means that leaves a written record, the holders of the certificates in force of its desire to transfer the certificates it has issued to another authority, within a period of three (3) months, before the planned transfer;
- of the identity of the electronic certification authority to which the certificates will be transferred;
- of the possibility of refusing the intended transfer, as well as the time limits and modalities for refusal.

b) Withdrawal or suspension:

In this event, the certification authority subject to a withdrawal or suspension measure and NAICT shall inform:

- by any means in writing to the holders of the certificates, of the decision to transfer;
- of the possibility of refusing the intended transfer, as well as the time limits and modalities for refusal.

(2) Certificates shall be cancelled if their holders express their refusal in writing or by electronic means.

(3) Until a transfer agreement is concluded with another certification authority, NAICT shall assume the tasks of the failing or ceasing Certification Authority.

(4) In all cases of ceasing or withdrawal, the personal data held by the failing Certification Authority shall be destroyed in the presence of a sworn agent of NAICT.

ARTICLE 14.- (1) The electronic certification authority is responsible for emitting, issuing, keeping, suspending and revoking electronic certificates in accordance with a set of specifications.

(2) The specifications referred to in paragraph 1 above shall contain in particular:

- the costs of studies and follow-up of certificate application files;
- the deadlines for studying the files;
- the material, financial and human resources that must be provided for the exercise of the activity;
- the conditions to be fulfilled by the personnel responsible for carrying out the technical functions of the electronic certification authority;
- the conditions for emitting, issuing and storing certificates;
- the means necessary to protect the certificates from counterfeiting and falsification;
- the conditions for verification and control by NAICT of the premises and servers used for the provision of the service;
- the conditions for the storage of personal data and information;
- the conditions ensuring the interoperability of certification systems and the interconnection of certificate registers;
- the rules relating to information on its services and on the certificates issued and to be kept by the electronic certification authority;
- the periodicity of updating the certificate registry;
- the expiry of a certificate;
- the conditions for revoking a certificate;
- the requirements for national defence and public security;
- conditions for keeping certificate registers;
- conditions for keeping records of the issue, renewal, suspension and revocation of certificates;
- procedures for the management of equipment and computer programmes;

- the conditions for transferring their certificate registers to NAICT;
- the conditions for keeping any document which NAICT deems useful to consult regularly.

CHAPTER III
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 15.- Electronic certification authorities are subject, throughout the period of validity of their authorisations, to the payment of fees set by a joint order of the Minister in charge of telecommunications and the Minister in charge of finance.

ARTICLE 16.- The Minister of Posts and Telecommunications and the Minister of Finance shall be responsible, each in his / her area of competence, for the implementation of this decree which shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 22 May 2012

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2012/1639/PM OF 14 JUNE 2012 To lay down the declaration rules as well as the operating conditions of networks and installations subject to the declaration regime.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 to institute the minimum service in the telecommunication sector;
Mindful of Law No 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No.95/145-bis of 04 August 1995;
Mindful of Decree No.2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

CHAPITER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This decree lays down the terms and conditions of declaration, as well as the conditions of operation of networks and installations subject to the declaration regime.
(2) It is issued pursuant the provisions of Article 17 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon.

ARTICLE 2.- The activities of operating networks and installations, as well as the provision of electronic communication services subject to the declaration regime shall be carried out freely, subject to the receipt of the declaration issued by the Telecommunications Regulatory Board, hereinafter referred to as the Board.

CHAPTER II
PROCEDURES FOR DECLARATION

ARTICLE 3.- (1) Electronic communication activities subject to prior declaration shall be carried out on condition that a receipt of declaration is obtained from the Telecommunications Regulatory Board, hereinafter referred to as "the Board".
(2) There are two types of declaration:
- the prior declaration;
- the simple declaration.

SECTION I
PRIOR DECLARATION

ARTICLE 4.- The following activities shall be subject to a prior declaration against receipt:
- the provision of value-added services to the public;
- the provision of Internet services to the public;
- the resale of telephone traffic;
- the use of a leased line with a capacity of more than 10 megabits per second;
- any electronic communications service from Global Mobile Satellite Communications System (GMPCS) terminals.

ARTICLE 5.- The application file for a declaration receipt, submitted to the Board in five (05) copies, shall include the following documents:
- the stamped, duly completed and signed application form provided by the Board;
- the name or corporate name and full address of the applicant;
- articles of association of the company;
- a certified copy of the Trade and Personal Property Credit Register;
- a certified true copy of the taxpayer's card;
- the origin of the funds intended for the planned financing, specifying the main financial backers;
- the purpose and general characteristics of the service;
- the arrangements for opening the service;
- the nature of the services to be provided;
- the area of coverage and the provisional timetable for implementation;
- the location plan;
- expenditure and revenue forecasts over a period of two (02) to five (05) years;
- the experience acquired in the field of telecommunications, specifying the technical partners and their previous achievements;
- the nature and technical characteristics of the equipment;
- proof of payment to the Board of the application fees.

ARTICLE 6.- (1) Any request for a prior declaration file must be answered by the Board within a maximum of thirty (30) days from the date of acknowledgement of receipt of the request.
(2) During the period referred to in paragraph 1 above, the applicant may be required to provide additional information.

ARTICLE 7.- (1) The receipt of the application for prior declaration shall be accompanied by specifications issued by the Board and subject to operating conditions relating to:
- the nature and technical characteristics of the equipment, the coverage area and the provisional implementation schedule;
- the conditions of permanence, availability, quality and neutrality of the service;
- compliance with the technical requirements concerning access to the service, its interconnection with other support services and the compatibility of its operation with those services;
- the requirements for national defence and public security;
- the methods of calculating the contributions payable for participation in the development of electronic communications throughout the national territory.

(2) The specifications referred to in paragraph 1 above shall specify, where appropriate, the general conditions for the provision of service.

ARTICLE 8.- (1) The application for a receipt of declaration may be refused in the following cases:
- the safeguarding of public order;
- the needs of national defence or public security;
- the technical or financial inability of the applicant to meet the obligations of the performance of his/her activity on a long-term basis.

(2) Any refusal of a receipt for a declaration must be justified and notified to the applicant.

SECTION I
SIMPLE DECLARATION

ARTICLE 9.- The following may be established by simple declaration against receipt:
- private internal networks;
- independent private networks other than radio networks whose termination points are less than 300 metres apart and whose links have a capacity of less than 10 megabits per second;
- radio installations consisting exclusively of low-power, short-range equipment, the categories of which are determined by the Administration in charge of telecommunications.

ARTICLE 10.- (1) Activities subject to simple declaration may be carried out on the basis of a declaration receipt issued by the Board.
(2) The simple declaration file submitted to the Board in five (05) copies, shall include the following documents:
- the stamped, duly completed and signed application form provided by the Board;
- the name or corporate name and full address of the applicant;
- information on the natural person responsible for the network;
- information on the legal person responsible for the network;
- the technical characteristics and detailed description of the network, as well as the network equipment.

ARTICLE 11.- Within thirty (30) days, as from the date of deposit of the simple declaration file provided for in article 10 above, the Board issues a receipt of declaration or, if need be, invites the applicant to complete his/her declaration file. After this period, the receipt shall be deemed to have been issued.

CHAPTER III
OPERATING CONDITIONS OF NETWORKS AND INSTALLATIONS

ARTICLE 12.- The holder of a declaration receipt is bound to respect the essential requirements provided for by the provisions of Article 3 of the aforementioned law No. 2010/013.

ARTICLE 13.- (1) The operator of a radio network and or installations subject to simple declaration may request, if necessary, in accordance with the regulations in force, the connection of its network to the networks of electronic communications operators.
(2) The operator referred to in paragraph 1 above shall indicate the measures taken to avoid the exchange of electronic communications between persons other than those for whom the use of his/her network is reserved.

ARTICLE 14.- (1) The operator of a radio network and/or installations subject to simple declaration shall take all measures to preserve the integrity and security of networks open to the public to which its network is interconnected. It shall ensure that terminal equipment intended to be connected to its network is type-approved.
(2) The Board may, at the request of the operator of the network open to the public, order the suspension of the interconnection when it is likely to affect the integrity or security of its network.

ARTICLE 15.- The installation and maintenance of networks covered by the simple declaration must be carried out by approved installers in accordance with the regulations in force.

ARTICLE 16.- The Board may, without delay, prohibit the provision of the services covered by the declaration, if it appears that the provision of such services is detrimental to the safety or public order, or is contrary to morality and good behaviour.

CHAPTER IV
RIGHTS, OBLIGATIONS AND SANCTIONS

ARTICLE 17.- (1) The receipt of declaration is issued for a renewable period of five (05) years. Renewal shall be subject to the same formalities as the initial application.

(2) The receipt of declaration is issued on a provisional basis. It may be revoked at any time, without any compensation or justification by the Board.

ARTICLE 18.- (1) The holder of a declaration receipt shall inform the Board of any change in the distribution of the registered capital or in the management of the company.
(2) Where the modification provided for in paragraph 1 above is deemed to be contrary to the laws and regulations in force, the Board shall refer the matter to the Ministry in charge of telecommunications, with a view to cancelling the declaration receipt.

ARTICLE 19.- The holder of a receipt of declaration providing an electronic communication service to the public is required to submit to the client, the invoice for the services rendered.

ARTICLE 20.- (1) Declaration receipts issued in application of the provisions of this decree are personal and non-transferable.
(2) Where the holder of a declaration receipt does not comply with the obligations imposed on him/her by the regulations in force, he/she shall be given formal notice to comply with them.
(3) In the event of refusal to comply with the formal notice referred to in paragraph 2 above, the holder shall incur one of the penalties provided for by the above-mentioned Law No. 2010/013.
(4) Financial penalties imposed by the Board shall be enforceable by operation of law.

CHAPTER V
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 21.- The declarants of receipt and the holders of receipt of declaration are subject to the payment of fees and charges, the amounts and conditions of which are fixed by a specific text.

ARTICLE 22.- Providers of electronic communication services and holders of declaration receipts have a period of six (6) months to comply with the provisions of this Decree.

ARTICLE 23.- Specific texts issued by the Minister in charge of telecommunications or the General Manager of the Board, shall specify, as necessary, the modalities for the application of this Decree.

ARTICLE 24.- This Decree, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 14 June 2012

Philémon YANG

PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2012/1640/PM OF 14 JUNE 2012 To lay down conditions for interconnection, access to electronic communications open to the general public and sharing of infrastructure. -

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 to institute the minimum service in the telecommunications sector;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, Head of Government, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree lays down the conditions for interconnection, access to electronic communication networks open to the public and infrastructure sharing.
(2) It is issued pursuant to the provisions of Article 48 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon.

ARTICLE 2.- To implement this decree, the following definitions are accepted:
1. **Interconnection and access catalogue**: technical and tariff interconnection offer published by operators of electronic communications networks open to the public.
2. **Physical co-location**: service offered by an operator of a public electronic communications network, consisting of the provision of infrastructure, including premises, to other operators so that they can install and, where appropriate, operate their equipment there for the purposes of interconnection in particular;
3. **Essential requirements**: resources necessary to guarantee, in the general interest, the security of networks, of personnel operating electronic communications networks and of users, the protection of networks and in particular the exchange of associated control and management information, the interoperability of services and terminal equipment and the protection of personal data and, where appropriate, the proper use of radio spectrum;
4. **Interconnection link**: the transmission link connecting the point of presence of a third party operator to the switch open to interconnection of an operator of a publicly available electronic communications network;
5. **Infrastructure sharing**: making available easements, equipment, rights of way, civil engineering works,

trunk lines, ducts and high points that may be available to legal persons governed by public law and electronic communications network operators with a view to the installation and operation of equipment;

6. **Point of interconnection**: place where a network operator establishes the interface equipment allowing interconnection with the operators of other networks;
7. **Related facilities**: facilities associated with the provision of unbundled access to the local loop, including co-location, connecting cables and relevant IT systems to which access is necessary to enable a beneficiary to provide services on a competitive and fair basis.

ARTICLE 3.- Interconnection or access services shall comply with the following rules:

- the routing of electronic communications terminating at the points of interconnection or access must have the same quality of service as that of the electronic communications emanating from the network offering the interconnection or access;
- the quality requirements for the maintenance and operation of interconnection or access equipment must be the same as those of the network offering interconnection or access.

ARTICLE 4.- (1) The Telecommunications Regulatory Board, hereinafter referred to as "the Board", shall draw up a list of quality indicators for interconnection and access services for electronic communications networks open to the public. These indicators include in particular:

- the number and duration of interruptions to interconnection links;
- the speed of recovery from faults in interconnection links;
- the efficiency rate of calls using interconnection services;
- the rate of blocking and interruption of electronic communications within the call source network and within the electronic communications termination network.

(2) Operators shall be required to provide the indicators referred to in paragraph 1 above, and to transmit them in the form and within the time limits prescribed by the Board.

(3) Any deterioration in the quality of service of interconnection and access services observed by the Board shall give rise to the application of the penalties provided for by the texts in force.

ARTICLE 5.- (1) Operators providing interconnection and access services shall be required to communicate to third-party operators the same tariff information as that provided to interconnection or access applicants with whom they have contracted.

(2) Anti-competitive practices shall be prohibited, in particular unjustified preference or discrimination by operators.

ARTICLE 6.- (1) The Board shall adopt and publish the technical standards and specifications with which operators shall comply in order to ensure compliance with the essential requirements and the quality of service.

(2) In the absence of technical specifications adopted and published by the Board, the parties may freely determine the interfaces, subject to compliance with the standards recommended by the International Telecommunication Union or established by any other standardisation body and accepted by the Board.

(3) The Board shall be consulted before an operator implements new standards.

ARTICLE 7.- (1) Operators shall specify, in their interconnection and access agreements, all the measures necessary to guarantee compliance with the essential requirements, and in particular:

- network security;
- interoperability of services, including those necessary to guarantee end-to-end quality of service;
- the protection of personal data relating to privacy and the confidentiality of information processed, transmitted or stored.

(2) Operators shall identify the arrangements for ensuring continued interconnection or access to electronic communications networks and services in the event of network failure or force majeure.

ARTICLE 8.- (1) The interconnection or access points shall be defined in the catalogues of the operators, who shall be required to comply with the provisions of their specifications.

(2) Operators shall use interfaces that comply with the standards approved by the Board;

(3) Before their actual implementation and at the request of one of the parties, interconnection or access interfaces shall be subject to on-site tests, defined and carried out jointly by the two operators.

(4) In the event that the interconnection and access tests are not carried out under the technical conditions and within the deadlines laid down, either party may refer the matter to the Board.
(5) When one of the operators wishes to use an interconnection or access interface that is not included in its interconnection and access catalogue, or to supplement the specifications of an interface in the interconnection and access catalogue, it shall communicate the corresponding technical specifications and services to the Board.
(6) The Board shall examine and approve the supplements to the specifications referred to in paragraph 5 above, under the same conditions and in the same form as those applicable to the interconnection and access catalogue. It may publish these supplements to the specifications in order to safeguard the principle of non-discrimination. It may also do so in cases where such publication is of general interest to the community of operators.

ARTICLE 9.- (1) Network access consists of making resources or services available to another operator for the provision of electronic communications, under defined conditions.
(2) It shall cover in particular:
- network elements, associated facilities and possibly the connection of equipment by fixed or mobile means;
- the physical infrastructure, including buildings, ducts and masts;
- the relevant software systems including operational support;
- call number conversion or systems offering equivalent functionality;
- fixed and mobile systems;
- virtual network services.

ARTICLE 10.- (1) Cross-subsidies are prohibited, without prejudice to compensation for damage suffered by competitors.
(2) The Board shall assess the damage on the basis of the surplus interconnection unduly captured by the offending operator.

ARTICLE 11.- Operators shall provide interconnection and access under objective, transparent and non-discriminatory conditions, including vis-à-vis their own services, subsidiaries or partners.

CHAPTER II
INTERCONNECTION AND ACCESS

SECTION I
OBLIGATION AND REQUEST FOR INTERCONNECTION

ARTICLE 12.- Operators of electronic communications networks open to the public who hold a concession shall be obliged to grant, under objective, transparent and non-discriminatory conditions, requests for interconnection and access to the network from any operator of electronic communications services open to the public who holds a concession, a licence or a receipt of declaration.

ARTICLE 13.- Interconnection and access to the various electronic communications networks open to the public shall be the subject of a private law agreement between the parties, specifying the technical, financial and administrative conditions provided for by the provisions of this Decree.

ARTICLE 14.- (1) The request for interconnection or access, to which a copy of the operating licence is attached, shall be sent to the operator offering the interconnection and/or access service by registered letter or by any means in writing.
(2) The request for interconnection or access shall specify in particular the following information:
- corporate name, surname and first names;
- the trade and personal property credit register;
- the full address;
- the interconnection or access services requested;
- details of the interconnection and access locations and services requested;
- the envisaged date of implementation.

ARTICLE 15.- (1) Operators of electronic communications networks open to the public who receive a request for interconnection or access must negotiate in good faith.
(2) The operator providing the interconnection or access shall have a maximum period of sixty (60) days, from the date of submission, as attested by an acknowledgement of receipt, to comply with the request.

ARTICLE 16.- (1) Requests for interconnection or access may not be refused if they are reasonable in relation to the needs of the applicant and the capacity of the supplier operator to meet them.
(2) Any refusal of interconnection or access shall be justified and notified by the operator refusing interconnection or access. The Board shall be informed of decisions to refuse interconnection or access.
(3) In the event of refusal of interconnection or access, the dispute may be referred to the Board by either party.

ARTICLE 17.- (1) The Board may, if necessary, request, subject to penalties for each day of delay, that interconnection or access be provided immediately pending the conclusion of an interconnection or access agreement, if it deems it urgent to act in order to preserve competition and protect the interests of users.
(2) Where the refusal of interconnection or access causes prejudice to the applicant, the applicant may seek compensation.

SECTION II
CONTENT OF THE INTERCONNECTION AND ACCESS CATALOGUE

ARTICLE 18.- (1) Operators of electronic communication networks open to the public and holder of a concession shall be required to draw up, under the conditions determined by their specifications, a technical and tariff offer for interconnection or access in a single document known as the interconnection and access catalogue.
(2) The interconnection and access offers provided for in paragraph 1 above must be sufficiently detailed to meet the needs of operators who request for them.

ARTICLE 19.- The offers included in the interconnection and access catalogue shall contain the conditions relating to the interconnection and access needs of network operators and the needs of electronic communications service providers, taking into account the rights and obligations specific to each of these categories of users.

ARTICLE 20.- The interconnection and access catalogue of an operator holding a concession intended for other operators holding concessions shall determine the services provided, which shall include in particular:
- switched traffic routing services, offering technical access and tariff options likely to implement the principle of unbundling of the wired local loop;
- traffic routing services;
- transmission capacity leasing services;
- supplementary services and the terms and conditions for the provision of these services;
- billing services on behalf of third parties;
- leased link termination service;
- the provision of premises, underground ducts, antenna supports and energy sources.

ARTICLE 21.- The interconnection and access catalogue of an operator holding a concession intended for other operators holding concessions shall determine the technical conditions, which shall include in particular:
- measures guaranteeing the security of network operation, the maintenance of network integrity, the interoperability of services and the protection of data;
- the description of all physical points of interconnection and access and the conditions of access to those points, for the purposes of physical co-location, where the interconnection and access link is provided by a third party operator;
- the arrangements for implementing number portability and carrier selection to ensure equal access;
- a full description of the proposed interconnection and access interfaces, in particular the signalling protocol used at these interfaces and its conditions of implementation;
- the operating and interoperability test procedures for networks and services and certification of data protection methods;

- the conditions for sharing facilities linked to the physical connection of the networks;
- the technical conditions for the provision of interconnection and access links, including in particular the offer to third party operators of physical and logical access to the interconnection and access points of these operators and, in the event that the third party operator does not wish to provide this link, the technical and financial conditions for its provision by these operators;
- the designation of the interconnection and access points and sites proposed for sharing, their location, their characteristics, as well as the description of the physical arrangements for interconnecting them.

ARTICLE 22.- The interconnection and access catalogue of an operator holding a concession intended for other operators holding a concession shall determine the tariff conditions, which shall include in particular:

- pricing information provided at the interconnection or access interface;
- commercial and financial relations, including billing and collection procedures and payment terms;
- interconnection or access tariffs, taking into account medium and long-term cost increases and/or decreases;
- tariffs for the establishment and use of interconnection or access, including tariffs for the provision of sites and power sources for equipment located on the interconnection or access provider's right-of-way;
- the methods for determining the variable costs associated with the establishment of the interconnection or access.

ARTICLE 23.- The interconnection and access catalogues of the operators holding concessions, intended for electronic communication service providers, shall include the services and elements provided for in Articles 20, 21 and 22 above and shall include an offer:

- technical routing of traffic specifying, in particular, the interconnection and access points accessible;
- tariffs for the routing of traffic, indicating in particular the cases in which the service provider is remunerated by the operator holding a concession, the methods of payment and the revenue distribution keys;
- technical and tariff arrangements for the leasing of capacity with a view to the creation of interconnection or access links between the supplier's site and the concession holder operator's nearest interconnection and access point.

ARTICLE 24.- (1) The Board may request at any time the modification of the interconnection and access catalogue when it considers that the conditions of competition and interoperability of electronic communications networks and services are not guaranteed.

(2) The Board may, after verifying the technical capacity of the operator, decide to add, modify or delete services included in the catalogue in order to implement the principles of non-discrimination, cost-orientation of interconnection and access tariffs or to better meet the needs of the community of operators and providers of electronic communications services.

ARTICLE 25.- Services offered by operators of electronic communications networks open to the public, other than those referred to in Articles 20, 21 and 22 above, must be subject to non-discriminatory, reasonable and justified tariffs approved in advance by the Board.

ARTICLE 26.- The Board shall determine annually the list of services to be included in a technical and tariff offer for interconnection and access.

ARTICLE 27.- (1) Any interconnection and access condition not included in the operator's catalogue must be indicated in the interconnection and access agreement.

(2) Operators shall be required to inform interconnection applicants of changes in their offers, previously validated by the Board, at least ninety (90) days before they are made, unless the Board decides otherwise.

SECTION III
APPROVAL AND PUBLICATION OF THE INTERCONNECTION AND ACCESS CATALOGUE

ARTICLE 28.- (1) Electronic communication network operators holding a concession shall be required to publish their interconnection and access catalogue after approval by the Board.

(2) The interconnection catalogue submitted to the Board for approval shall be accompanied by all the supporting documents needed to assess the application of the criteria of objectivity, transparency and cost-orientation of tariffs.

(3) The operators referred to in paragraph 1 above shall be required to publish their interconnection and access catalogue in a legal notice publication, or in a regularly published general information newspaper and on their website. If the operator fails to publish the catalogue, the Board shall do so at the operator's expense.
(4) The operators referred to in paragraph 1 above shall be required to communicate their interconnection and access catalogue to any operator holding a concession or provider of electronic communications services that so requests.

SECTION IV
INTERCONNECTION AND ACCESS AGREEMENT

ARTICLE 29. The interconnection and access agreement shall be governed by the interconnection and access catalogues and shall respect the principles of transparency, objectivity and non-discrimination.

ARTICLE 30.- The interconnection and access agreement shall specify, inter alia, the following general principles:
- commercial and financial relations and, in particular, the applicable interconnection and access tariffs, invoicing and collection procedures, as well as payment conditions;
- the essential transfers of information between the two operators and the corresponding periodicity or notice periods;
- the procedures to be applied in the event of a proposed change in the interconnection and access offer by one of the parties;
- the definitions and limits of liability and compensation;
- possible intellectual and industrial property rights;
- the obligation to refer to the Board in the event of a dispute;
- the date of entry into force of the agreement, its duration and the conditions for amending and terminating the agreement.

ARTICLE 31.- The interconnection and access agreement shall specify in particular:
- the general provisions;
- the establishment of interconnection and access;
- the conformity of the system;
- operational security;
- the implementation of the interconnection and access service;
- minimum end-to-end quality of service;
- provisions for breach, suspension and cancellation of the offer;
- provisions relating to the security of personnel and the protection of systems;
- authorised representatives;
- procedures for implementing interconnection and access;
- the language in which the agreement is drawn up;
- provisions for dispute settlement;
- confidentiality clauses;
- penalties for breach of contractual terms;
- the modalities for the mutual exchange of information and the advance notice required in the event of modifications to the system of an interconnected operator obliging the other interconnected operator to adapt its own installations.

ARTICLE 32.- The interconnection and access agreement shall specify, as part of the description of the interconnection and access services provided and the corresponding remuneration, the following information:
- a description of the services provided by the parties;
- the conditions of access to the basic services: switched traffic and, for network operators, leased lines;
- the guaranteed level of service quality and the coordination measures for monitoring service quality;
- the conditions of access to supplementary services;
- billing services on behalf of third parties;
- the terms and conditions for the routing of back-up and emergency communications;
- the conditions for sharing facilities linked to the physical connection of the networks.

ARTICLE 33.- The interconnection and access agreement shall mention, under the technical characteristics of interconnection and access services, the following information:

- the measures implemented to achieve equal access for users to the various networks and services;
- measures to ensure compliance with the essential requirements;
- a full description of the interconnection and access interface;
- the charging information provided at the interconnection and access interface;
- the quality of the services provided, including availability, security, efficiency and synchronisation;
- traffic routing and planning arrangements.

ARTICLE 34.- The traffic routing and planning arrangements provided for in Article 33 above shall include, in particular:

- the principles for routing calls from one network to the other;
- the rules for ordering and testing interconnection or access capacity;
- test plans for switching, transmission and signalling;
- the conditions for commissioning services:
  - traffic forecasting and interconnection or access interface layout procedures;
  - procedure for identifying the ends of leased links;
  - availability times;
- the quality of the services provided: availability, security, efficiency and synchronisation;
- procedures for locating, identifying and rectifying faults;
- the methods of sizing interface equipment and common elements in each network in order to maintain the quality of service;
- the information that the parties must communicate to each other on the configuration of their respective networks, as well as the equipment and standards used at the points of interconnection or access, so as to facilitate, accelerate and plan their request for interconnection or access;
- the technical measures necessary for the implementation of complementary services;
- future projections, mainly concerning possible extensions and deletions of interconnection or access points, network evolution and quality of service improvements;
- the schedule of meetings between the two parties at which all the technical clauses and/or changes necessary to improve the operation of the interconnection or access are examined in detail for each interconnection or access point.

ARTICLE 35.- Interconnection and access agreements shall specify, as part of the procedures for implementing interconnection and access, the following information:

- the conditions for commissioning services: traffic forecasting methods and the location of interconnection and access interfaces, procedure for identifying the ends of leased lines, deadlines for making them available;
- the designation of interconnection and access points and the description of the physical arrangements for interconnecting with them;
- the arrangements for the mutual sizing of interface equipment and common elements in each network, in order to maintain the quality of service provided for in the interconnection and access agreement and compliance with the essential requirements;
- the procedures for testing the operation of interfaces and the interoperability of services;
- procedures for intervention and fault recovery.

SECTION V
COMMUNICATION OF INTERCONNECTION AND ACCESS AGREEMENTS

ARTICLE 36.- In cases where the conditions of competition and interoperability of networks are not guaranteed, the Board may require the parties to amend the interconnection and access agreement within a period that may not exceed sixty (60) days.

ARTICLE 37.- (1) The draft agreement initialled by the two parties shall be forwarded, within a period of thirty (30) days, by each co-contractor to the Board for approval, by registered letter with acknowledgement of receipt. The Board shall have a period of thirty (30) days in which to act on it.

(2) In the correspondence sent to the Board, the operators shall specify the information contained in the agreement and its annexes which they consider to be covered by the business secret.

(3) The Board may, at the request of the parties, communicate to interested third parties the information contained in the agreements, subject to the information covered by the business secret.

ARTICLE 38.- (1) Operators in possession of information in the context of the negotiation or implementation of an interconnection and access agreement may use it only for the purposes explicitly provided for at the time of its communication.
(2) The information provided for in paragraph 1 above may not be communicated to other services, subsidiaries or partners for whom it could constitute a competitive advantage.

ARTICLE 39.- Any interconnection and access agreement concluded with a foreign operator for the routing of international traffic shall be forwarded to the Board for information.

CHAPTER III
INTERCONNECTION AND ACCESS COSTS AND TARIFFS

SECTION I
INTERCONNECTION AND ACCESS COSTS

ARTICLE 40.- Interconnection costs for operators shall be based on the following principles:
- the direct or indirect correspondence of costs with the service actually rendered in terms of interconnection and access;
- the increase in economic efficiency which takes into account, on the one hand, the investments necessary for the renewal of the network on the basis of the best possible technologies and, on the other hand, the need for optimal scaling of the latter with a view to promoting a quality service.

ARTICLE 41.- (1) Operators providing interconnection and access shall keep the cost accounting enabling the costs of their interconnection and access activities to be identified.
(2) The cost of the interconnection and access service referred to in paragraph 1 above shall comprise:
- general network costs relating to network elements used both by the operator for services to its own users and for interconnection and access services;
- costs specific to interconnection services, directly incurred by interconnection and access services alone;
- costs specific to the operator's services other than those related to interconnection and access and incurred by those services alone;
- common costs, which do not fall into any of the above categories.

(3) The relevant elements of the information system and accounting data shall be kept at the disposal of the Board, at the latter's request.

ARTICLE 42.- (1) The costs specific to interconnection and access services shall be fully charged to the interconnection or access services.
(2) Costs specific to the operator's services other than those related to interconnection and access, in particular commercial costs, shall be excluded from the cost base for interconnection and access services.
(3) The commercial costs referred to in paragraph 2 above include, inter alia, advertising, marketing, sales, non-interconnection sales administration, non-interconnection billing and collection.
(4) The costs charged to network operators and providers of electronic communications services shall take account of the rights and obligations specific to each of these categories of operators.

ARTICLE 43.- (1) The cost accounting system shall be audited every two (2) years by an approved independent body chosen by the Board after a call for competition.
(2) The costs of the audit shall be borne by the audited operators and shall be included in the specific costs of interconnection and access services.

SECTION II
INTERCONNECTION AND ACCESS TARIFFS

ARTICLE 44.- The tariff conditions of the interconnection and access agreement shall respect the principles of objectivity, transparency and non-discrimination. They shall not lead to the excessive imposition of charges on operators using interconnection and access.

ARTICLE 45.- Interconnection and access tariffs shall be based on the following principles:
- the inclusion of a fair contribution, in accordance with the principle of proportionality, to the costs that are common to both interconnection and access services and to other services, in compliance with the principles of cost relevance;
- the inclusion of a fair return on investments made;
- the possibility of applying a tariff with hourly modulation to take account of congestion in the operator's general network.

ARTICLE 46.- (1) The tariffs for interconnection and access services offered by operators, whether included in their interconnection and access offer or offered in addition, shall remunerate the actual use of the network and reflect the corresponding costs.
(2) Operators must be able, at any time, to demonstrate that their interconnection and access tariffs do indeed reflect costs.

ARTICLE 47.- For interconnection and access services contained in the interconnection and access agreement but not included in the interconnection and access catalogue, the Board may request from operators any information enabling it to assess whether the tariffs for services reflect costs.

ARTICLE 48.- Tariffs shall be broken down into at least:
- a tariff reflecting the cost of the elements of the switch which are used for access to this switch;
- a tariff reflecting the cost of using the transmission elements between the switch and the interconnection and access point to which the requesting operator is already interconnected; and
- a tariff reflecting the cost of routing communications from the switch.

ARTICLE 49.- The Board may define the conditions for the reduction of interconnection and access tariffs in such a way as to encourage economic efficiency with regard to international benchmarks for interconnection and access tariffs and costs.

CHAPITER IV
INFRASTRUCTURE SHARING

SECTION I
REQUEST FOR INFRASTRUCTURE SHARING

ARTICLE 50.- (1) For the installation of its network, an operator may use the infrastructure belonging to another electronic communications network operator or to a public service concession holder.
(2) To this end, it shall send a written request for infrastructure sharing to the operator owning the infrastructure.

ARTICLE 51.- (1) The operator owning the infrastructures concerned shall be required to respond to the infrastructure sharing request within a maximum period of sixty (60) days, as from the date of submission, as attested by an acknowledgement of receipt.
(2) The period referred to in paragraph 1 above may be extended by the same amount of time if the site where sharing is sought is occupied by several other users and the owner of the site is required to consult them in order to avoid subsequent technical difficulties in the execution of the contract.
(3) A request for infrastructure sharing may not be refused if it does not create any disturbance or other technical difficulty with regard to the proper operation of the network and the proper operation of the service. Any refusal to share infrastructure shall be justified and communicated to the Board by any means that leaves a written record.
(4) In the event of failure to comply with the time limits referred to in paragraph 1 above, the applicant shall refer the matter to the Board.

SECTION II
INFRASTRUCTURE SHARING AGREEMENT

ARTICLE 52.- The infrastructure sharing agreement shall be the subject of a private law contract between the two parties concerned, who shall determine the administrative, technical and financial conditions thereof.

ARTICLE 53.- (1) The draft contract initialled by the two parties shall be sent to the Board for approval within a maximum period of thirty (30) days by registered letter with acknowledgement of receipt or by any other means in writing. The Board shall have a period of thirty (30) days in which to act on it.
(2) Where the Board considers it necessary to revise the infrastructure sharing contract in order to ensure fair access and competition, it may require the contracting parties to do so. The parties shall make the necessary changes within the period specified by the Board.

ARTICLE 54.- The minimum technical clauses of the contract shall include:
- the complete list of users of the shared infrastructure;
- a full description of the infrastructure, its technical characteristics and its size;
- the conditions of access to the infrastructure;
- the conditions for sharing the infrastructure in terms of space, management and maintenance, including a full technical description of the equipment;
- the information that the parties must communicate to each other on a regular basis to ensure the management of the infrastructure;
- future projections concerning the operation of the infrastructure by the users;
- the conditions relating to the respect of radio easements.

ARTICLE 55.- The minimum administrative and financial clauses of the contract concern:
- the invoicing and collection procedures and the payment terms;
- the definitions and limits of liability and compensation between users of the infrastructure;
- the modalities for allocating the costs of infrastructure sharing.

ARTICLE 56.- Operators shall be required to comply with the standards necessary for the installation of items of their network on the facilities or equipment of other operators.

SECTION III
ALTERNATIVE INFRASTRUCTURES

ARTICLE 57.- (1) Operators of alternative infrastructures are required to transfer, under the supervision of the Administration in charge of telecommunications, to the network operator, any surplus capacity they may have after having deployed infrastructures intended for their own needs, and/or rights of way over the public domain, easements, rights of way, civil engineering works, arteries and pipes as well as high points that they have.
(2) The surplus capacities of the operators of the alternative infrastructures shall be transferred to the State according to the terms and conditions agreed upon by the parties, within the framework of a memorandum of understanding signed between the State and the operator of the alternative infrastructure.
(3) The capacities referred to in paragraph 2 above shall be reassigned to the operator designated for the management of the electronic communications infrastructure in accordance with the terms and conditions agreed between the parties, within the framework of a reassignment agreement signed between the State and that operator.
(4) Requests for interconnection, access and sharing of these infrastructures shall be subject to the provisions of this Decree.

CHAPTER V
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 58.- (1) Where an interconnection or access affects the proper functioning of an operator's network or compliance with essential requirements, the operator shall, after technical verification of its network, inform the Board thereof.
(2) The Board may, if necessary, order the suspension of interconnection and access. It shall inform the parties thereof and shall lay down the conditions for its restoration.

(3) No operator shall suspend, in whole or in part, interconnection or access without a prior decision by the Board.

ARTICLE 59.- (1) The operator may, in the event of serious danger to the functioning of its network, in particular a power surge, disruptive traffic or a virus, interrupt the traffic. It shall inform the Board by any means in writing within twenty-four (24) hours.
(2) The Board shall take a decision on the appropriateness of the interruption of traffic. It may impose penalties on the operator responsible for an irregular suspension.

ARTICLE 60.- Specific texts issued by the Minister in charge of telecommunications shall specify, as necessary, the modalities for the application of this Decree.

ARTICLE 61.- This Decree, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 14 June 2012

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No.2012/1641/PM OF 14 JUNE 2012, To lay down portability conditions of subscribers' numbers of operators of electronic communication networks open to public.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No.2010/012 of 21 December 2010 relating to cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010, to govern electronic communications in Cameroon;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, as amended and supplemented by. Decree No. 95/145 bis of 4 August 1995;
Mindful of Decree No. 2005/124 of 15 April 2005, to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011, to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/203 of 20 April 2012, on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

CHAPTER I:
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree shall lay down portability conditions of subscribers' numbers of operators of electronic communication networks open to the public.
(2) It shall be pursuant to the implementation of Article 50 of Law No. 2010/013 of 21 December to govern electronic communications in Cameroon.

ARTICLE 2.- (1) Operators of electronic communications networks open to the public shall make sure that subscribers have the right to keep his/her subscriber number when they change from one operator to another.
(2) The operators shall make available to subscribers all necessary information relating to their right to maintain their number.

ARTICLE 3.- For the implementation of this Decree, the following definitions shall apply:

1. **Centralized database**: A database that includes all ported numbers associated with their recipient operators, open to all operators (fix and mobile) from which a call to a number is issued;
2. **Decentralized database**: A database that includes all numbers ported by a given operator, enabling the routing of calls to the recipient operator;
3. **Cost of installing the system**: Expenditures from renovations, modifications, software updates and hardware and network systems operator to provide the number portability service and / or make a call to ported numbers as well as expenses resulting from test procedures between operators;
4. **Routing Deadline**: porting deadline which corresponds to the number of calendar days between, on the one hand, the acquisition by the operator recipient of elements essential to process subscription request and of maintaining demand for the subscriber's number and, on the other hand, the effective porting of the number;

5. **E. 164**: ITU Recommendation, which describes the structure of an international telephone number. This recommendation is implemented by the ITU at world level, attributing to member countries national codes under which they allocate numbering resources, providing a plan in the world;
6. **Code**: Part of the telephone number which corresponds to a geographic area;
7. Subscriber Number: Number of the national plan for the use of telephone service and related services;
8. **Mobile Number**: Number of the national numbering plan E.164-type) with several figures;
9. **Geographic number**: number of the national numbering plan (E.164-type) with one or more codes referring to a specific geographic area;
10. **Non-geographic** number: A number of the national numbering plan (E. 164 type) that does not refer to a geographical area;
11. **Appointee Operator**: Operator of an electronic communications network open to the public to whom the Board allocates the ported number;
12. **Donor operator or transferor**: Operator of an electronic communications network open to the public from which a number is ported;
13. **Recipient operator**: Operator of an electronic communications network open to the public to which a number is ported;
14. **Number portability**: Possibility for a subscriber to use the same subscription number, regardless of the operator or the carrier of the network to which he subscribes, and even if they change operators or carrier;
15. **Operator Identity Statement (RIO)**: 12-digit alphanumeric code assigned by any mobile operator to every active mobile number for the purpose of inter-operator exchanges within the context of mobile number portability;
16. **Routing**: Method of transmitting calls from an electronic communication network open to the public.
17. **Direct routing**: Method of routing calls which consists of directing them to a ported number without passing through the donor operator and only after prior consultation of database of ported numbers;
18. **Indirect routing**: Method of routing calls which consists of directing them to the donor operator, which in turn routes the calls to the recipient operator and only after consulting a decentralized database of ported numbers;
19. **Prepaid service**: Service offered to an individual or a corporate body and who uses it in mobile telephony within the framework of a contract pursuant to which he/she is duly identified, issues or receives a call, an SMS, an MMS or refills credit, at least once during a specific period in the said contract;
20. **Post-paid service**: Service offered to an individual or a corporate body and who uses it in mobile telephony within the framework of a contract pursuant to which he is duly identified, issues or receives a call, an SMS, an MMS or refills credit at least once during a specific period in the said contract and the service upon presentation of a bill after the consumption;

ARTICLE 4.- (1) This decree shall cover, geographic fix lines, non-geographic fix lines and mobile numbers (post-paid and prepaid) from the national numbering plan.
(2) A subscriber to a fix network can only port his/her geographic fix line to the fix network of the same operator or another operator of an electronic communications network open to the public.
(3) A subscriber of a mobile network can only port his/her mobile number to the network of another operator of a mobile electronic communications network open to the public.

CHAPTER II
PROCEDURE FOR NUMBERS PORTABILITY

SECTION I
PORTING REQUEST

ARTICLE 5.- (1) Any subscriber wishing to keep his/her number when changing operators should submit an application to the recipient operator, by any means, with written record.
(2) The application referred to in paragraph 1 above, which may include one or more numbers under the same contract serves as service termination claim with the donor operator and purchase of a new subscription with the recipient operator.

(3) The application referred to in paragraph 1 above shall state:
- the date and time of application of number porting;
- the donor operator;
- telephone number or serial numbers to be ported;
- the Operator Statement Identity (RIO);
- Preferred time for porting;
- information on the subscriber:
  - if the subscriber is an individual, his/her full name and the number of his/her national identity card;
  - if the subscriber is a corporate body, its name and identification code.

ARTICLE 6.- The complete application accompanied by the date and time of porting is forwarded to the donor operator for acceptance and continuation of the information provided.

ARTICLE 7.- (1) Upon receipt of the application the donor operator shall verify the information showing the applicant's identity in its database and respond to the recipient operator within a period not exceeding twenty four (24) hours.
(2) If the donor operator informs the recipient operator that the application is not eligible, the latter shall inform the subscriber as soon as possible.

ARTICLE 8.- Acceptance of the porting request means termination of the subscription contract between the subscriber and the donor operator.

ARTICLE 9.- Once the response of the donor operator is issued or the time limit under Article 7 above is exceeded, the recipient operator has twenty-four (24) hours to achieve effective implementation of the porting operation requested.

ARTICLE 10.- Applications for portability shall be addressed by the recipient operator to donor operator, every working day of the week.

SECTION II
THE REFUSAL OF REQUEST OF PORTABILITY

ARTICLE 11.- The recipient operator can only refuse the subscriber's request in the following cases:
- Incomplete application or containing erroneous information;
- The number belongs to another person;
- Non-compliance with the management regulations of the national numbering plan.

ARTICLE 12.- The donor operator may only refuse the request for porting by the recipient operator to the subscriber's name in the following cases:
- incomplete or erroneous data;
- the mobile number is inactive on the day of port;
- the number is already the subject of a request of portability not yet executed;
- the existence of a customer request to change their number;
- the waiver of the subscriber;
- the annual limit of number porting has been reached.

ARTICLE 13.- The eligibility of the request of porting cannot be questioned in case of exceptional technical constraints involving a postponement of execution of porting from the original due date.

ARTICLE 14.- (1) Any refusal to porting request must be justified and notified by any means, with written record.
(2) Operators cannot mention a dispute with the customer or the existence of unpaid bills as reason to refuse a request for porting.
(3) The donor operator cannot mention the maintaining of the subscription to its other services as reason for refusal of number porting.

(4) Operators cannot mention the non-expiry of the term of a subscription contract as a legitimate ground for refusal of the port.
(5) Whatever the case, operators are required to inform their customers in advance of the eligibility requirements necessary for the implementation of the port, in accordance with the provisions in force.

SECTION III
SPECIAL CONDITIONS FOR NUMBERS PORTING

ARTICLE 15.- (1) In addition to the general conditions laid down by this Decree for number portability, operators are required to comply with the following special conditions:
- porting of numbers should be provided permanently by the operators concerned;
- the period during which the user cannot receive or make calls after the 'beginning of the port cannot exceed two (2) hours from the time of actual implementation of portability;
- donor and recipient operators should not receive for the porting process any payment from the user who requests it;
- the same quality of service should be ensured for a call to a ported number and a call to a non-ported number.

(2) A subscriber whose number was ported may only seek a port of the same number after a period sixty (60) days.

ARTICLE 16.- (1) A subscriber cannot port his/her number more than two (02) times a year.
(2)
The porting number referred to in Paragraph1 above cannot be made within a period of thirty (30) days in a row.

ARTICLE 17.- (1) Numbers that become free after a port are returned to the allottee operator.
(2) The recipient operator shall immediately inform the allottee operator of the termination of the ported number and give it back within a maximum of ten (10) days of termination.

ARTICLE 18.- Registration of ported number in the phone directory is the responsibility of the recipient operator.

ARTICLE 19.- Without prejudice to any other information or schedule set by the Board, operators are required to provide the Board with statistics of the past month on the ported numbers by type no later than the 15th of the following month, including:
- the number of ported numbers to each recipient operator;
- the number of ported numbers from each donor operator;
- the number of numbers returned by the recipient operator;
- the number of ports rejected with the reasons for refusal;
- the average time of porting done.

SECTION IV
THE IMPLEMENTATION OF THE PORTING PROCESS

ARTICLE 20:- (1) After a favourable response, the donor operator and recipient operator shall decide on the date and time of porting and notify the applicant and other third party operators.
(2) Before the porting hour, the recipient operator shall notify the other operators, the routing information that will enable them to make technical changes in their networks so that ported numbers are accessible from their networks.
(3) The donor operator shall deactivate the number, send a confirmation to the recipient operator and notify the other operators.

ARTICLE 21.- The porting process may, before the outcome, be stopped at the request of the applicant.
(2) In case the process is stopped, the recipient operator shall cancel the porting request and notify the donor operator and other operators.

ARTICLE 22.- (1) If the information provided by the applicant proves fraud, the recipient operator and the donor operator shall consult and put an end to the process if the port is not yet effective.
(2) If the port is completed, the transaction should be deleted and the number returned to the donor operator with notification to other operators.

CHAPTER III
OBLIGATIONS OF OPERATORS

ARTICLE 23.- Upon receipt of the request, the operator shall inform subscribers about the application procedure for portability, the information and documents required, the period of porting, information about the rates and associated costs.

ARTICLE 24.- (1) Operators are required to comply themselves with routing method of numbers portability defined by the Board.
(2) The portability method referred to in Paragraph 1 above shall be notified to operators by the Board.

ARTICLE 25.- If the donor operator or the recipient operator uses the network of another operator, the latter shall be subject to the same obligations as the first two.

ARTICLE 26.- Ported numbers shall be used in accordance with the following conditions:
- numbering charges for ported numbers shall be paid by the recipient operator;
- the allotee operator may not assign ported number to another subscriber, unless the subscription contract has been terminated with the recipient operator and the number returned to the allotee operator.

ARTICLE 27:- Operators are required to give RIO to subscribers who apply for it for free.

ARTICLE 28.- During the minimum period of sixty (60) days following the porting date, the recipient operator is required to inform for free any caller towards a previously ported number to establish the connection and the identity of its network.

ARTICLE 29.- The non-respect of obligations set out by this Decree shall incur the application of sanctions set out by the legislation in force.

CHAPTER IV
THE PORTABILIFIY DATABASE

ARTICLE 30.- (1) Under the supervision and pursuant to prescriptions of the Board, operators shall set up a shared centralized database with equal rights and responsibility.
(2) In case operators fail to establish a centralized database, the Board shall set the terms and conditions of managing it, and shall appoint, if necessary, the entity that will set it up and manage it.
(3) The centralized database, connected to the operators' systems is used to record requests, verify the information provided, and keep information on ported numbers and routing data.
(4) Each operator is required to set up a database in the network regardless of the centralized database. However, regardless of the establishment of the centralized database, each operator is obliged to provide number portability in accordance with this Decree and to ensure the routing of calls from one network to another.

ARTICLE 31.- (1) The use of the centralized database for purposes other than portability, is subject to prior approval of the Board.
(2) The operator shall take all necessary measures to ensure continuity of service.

ARTICLE 32.- All costs related to the establishment of the centralized database and payment of the managing structure shall be borne by the operators concerned.

CHAPTER V
PORTABILITY AGREEMENTS

ARTICLE 33.- (1) Within the framework of the implementation of portability, the agreements between the operators shall include:
- the technical conditions and schedule of the implementation of portability;
- terms of payment of costs associated with the implementation of portability;
- the terms of the quality of service and the penalties for non-compliance with the quality of service;
- definition of the responsibilities of the operators concerned.

(2) A copy of the agreement referred to in paragraph 1 above shall be transmitted within a maximum period of five (5) days from the date of its conclusion, to the Board by each operator.

ARTICLE 34.- Disputes relating to portability agreements shall be settled by the Board which may determine, where appropriate, the technical and tariff conditions pertaining thereto.

CHAPTER VI
FINANCIAL PROVISIONS AND PRINCIPLES OF COST-SHARING

ARTICLE 35.- (1) Operators shall take care of the cost of setting up the system, the costs derived from tests and changes to be made in their existing systems and Installation costs of hardware and software systems to route calls to ported numbers or to provide service portability.
(2) The costs incurred as a result of porting a number or many numbers shall be borne by the recipient operator.

ARTICLE 36.- The costs of establishing, maintaining and operating the central database are borne by all operators involved.

ARTICLE 37:- The costs associated with the implementation of number portability must be justified and shall be continuously monitored by the Board.

CHAPTER VII
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 38:- Operators are required to set up an automated interchange system, no later than twelve (12) months from the date of entry into force of this Decree, in order to secure exchanges between them and streamline the process of numbers portability.

ARTICLE 39.- Operators of electronic communications networks open to the public are required to implement number portability within the following deadlines:
- twelve (12) months for mobile number portability;
- twenty-four (24) months for the porting of geographic and non-geographic numbers.

ARTICLE 40.- Specific texts of the Minister in charge of telecommunications shall specify, when necessary, the implementing modalities of this Decree.

ARTICLE 41.- This Decree shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaoundé, 14 June 2012

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2012/1643/PM OF 14 JUNE 2012 To lay down the conditions and modalities for mandatory safety audit of electronic communications. -

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No.98/013 of 14 July 1998, on competition;
Mindful of Law No. 2010/012 of 21 December 2010 on Cybersecurity and Cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Law No. 2010/021 of 21 December 2010, to govern electronic commerce in Cameroon;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, as amended and supplemented by Decree No. 95/145 bis of 4 August 1995;
Mindful of Decree No. 2005/124 of 15 April 2005, to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011, to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree shall lay down the conditions and modalities for mandatory safety audit of electronic communications networks and information systems.
(2) The provisions of Article 13, paragraph 2 are adopted in application of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon.

ARTICLE 2.- The following information networks and systems shall be submitted to the obligatory and periodical security audit:
- Operators of electronic communications open to the public;
- Electronic certification authorities;
- Companies interconnected through the networks of operators of electronic communications open to the public;
- Companies carrying out the automated processing of their customers' personal data within the framework of services delivered through electronic communications open to the public.

ARTICLE 3.- The activities of certified auditor in the security of networks and information systems shall be freely carried out, subject to the issuance of an accreditation of a certified auditor.

CHAPITRE II
CONDITIONS AND MODALITIES FOR SECURITY AUDIT

SECTION I
CONDITIONS FOR THE SECURITY AUDIT

ARTICLE 4.- (1) Security audit operations shall be carried out by the National Agency for Information and Communications Technologies, hereby abbreviated "NAICT" or by certified auditor pre-authorised by the latter.
(2) Security audit costs shall be borne by the audited companies.

ARTICLE 5.- (1) Networks and information systems provided in Article 2 of this Decree shall be submitted to a security audit at least once (01) a year.
(2) The frequency mentioned in paragraph 1 above can be amended by decision of the Minister in charge of telecommunications, upon proposal of NAICT.

ARTICLE 6.- (1) NAICT shall annually put in place a security audit planning which it shall forward to the concerned companies.
(2) Any company requesting the postponement of its audit shall be required to send an application specifying the reasons to NAICT at least three (3) months before date.
(3) NAICT may defer the deadline when it deems the reasons given justifiable. The reasons for any refusal shall be specified and be notified.

ARTICLE 7.- (1) Any public or private company operating a network or an information system must inform NAICT of any attacks, intrusions and other disturbances liable to obstruct the functioning of another network or information systems.
(2) The company mentioned in paragraph above shall comply with the measures lay dawn by NAICT to put an end to these disruptions.

ARTICLE 8.- In the cases provided in Article 7 above, the Minister in charge of telecommunications may, upon proposal of NAICT, order the isolation of the network or the information systems concerned until the cessation of the disruptions.

SECTION II
NATURE AND REPORT OF THE SECURITY AUDIT

ARTICLE 9.- The security audit operation shall be carried out through an investigation on the field based on the following points, namely:
- organisational and structural aspects of the security function;
- the management and usage mode of security procedures and the availability of network security tools or information systems;
- the technical analysis of the security of all the components of the network and the information system;
- the conducting of the resistance test to all kinds of risks, penetration, intrusion and attacks;
- the risks analysis and assessment that might result from the study of flaws revealed after the audit operation;
- the risks classification according to the level of severity of impact defined by the regulation in force.

ARTICLE 10.- (1) At the end of each audit operation carried out by NAICT, the latter shall be forwarded to the Minister in charge of telecommunications a copy of the audit. A copy of the said report shall also be forwarded to the Telecommunications Regulatory Board.
(2) When the audit operation is carried out by a certified auditor, the audit report, complying with the format defined by NAICT, shall be forwarded to the latter by this certified auditor. A copy of this report shall be forwarded to the Minister in charge of telecommunications and to the Telecommunications Regulatory Board by the NAICT.

ARTICLE 11.- The report referred to in Article 10 above shall comprise the following:
- the complete description and assessment of the security of the network and information system;
- the measures that were taken since the last audit and the difficulties noticed in the implementation of the recommendations;
- the analysis shall specify the organizational and technical difficulties related to the adopted security procedures and tools;
- the risks assessment that might result from the study of the revealed flaws;
- the proposal of security organisational and technical solutions and procedures that will have to be adopted in order to tackle the difficulties noticed.

ARTICLE 12.- (1) After studying and analysing the report, NAICT may request the audited body to provide additional information or files and to carry out further controls and verifications.
(2) NAICT shall notify, by any written means, the concerned companies of the additional controls and verifications referred to in paragraph 1 above.

CHAPTER III
ACCREDITATION CONDITIONS AND PROCEDURES OF CERTIFIED AUDITORS

SECTION I
ACCREDITATIONS ISSUANCE CONDITIONS

ARTICLE 13.- Any individual or corporate body willing to practice as a certified auditor in the domain of security of networks and information systems shall have an accreditation issued by the Ministry in charge of telecommunications, within the conditions provided for in the provisions of this Decree.

ARTICLE 14.- (1) The accreditation application for a security of networks and information systems of auditor shall be forwarded to NAICT, by registered mail or any reliable electronic document, against an acknowledgement of receipt or by deposit at the NAICT, in exchange of a receipt.
(2) The application mentioned in paragraph 1 above include the following documents:
- **For an individual:**
  - an information sheet provided by NAICT duly filled and signed by the applicant and stamped at the rate in force;
  - a certified true copy of the National Identity Card or any other equivalent document;
  - a certificate of non-conviction (bulletin No.3) not older than three (3) months;
  - a certificate of registration in the National Order of Electrical Engineers (NOEE) or in a well-known equivalent Order;
  - a certification in networks or information systems security;
  - a taxation or tax-exemption certificate.
- **For a corporate body:**
  - an information sheet provided by NAICT duly filled and signed by the legal representative of the applicant and stamped at the rate in force;
  - a certified true copy of the National Identity Card of the corporate body's legal representative;
  - a copy of the employment contracts entered with three (3) auditor experts to be employed and all the documents required from the individual;
  - a copy of the excerpt of the Trade and Personal Property;
  - a taxation package.

(3) In addition to the documents required in paragraph 2 above, individuals or corporate bodies must show proof of the payment receipt of application fees, which amount is fixed by a joint Order of the Minister in charge of finance and the Minister in charge of telecommunications.

ARTICLE 15.- (1) The complete file shall be submitted to NAICT which shall forward it to the Commission provided in Article 16 below for notification.
(2) When the notification of the Commission is favourable, NAICT shall submit the file with the draft of accreditation as well as its reasoned opinion to the Minister in charge of telecommunications for signature.
(3) When the notification is unfavourable, NAICT shall notify the applicant of the reason for refusal.

ARTICLE 16.- (1) A Commission shall be set up within NAICT and shall be in charge of giving notice on the requests for the issue of accreditation application for the certified auditor occupation in the domain of networks and information systems security.
(2) The organisation and functioning modalities of the Commission provided in paragraph 1 above are laid down by a special legal instrument of the Minister in charge of telecommunications.

ARTICLE 17.- (1) The accredited certified auditor shall follow a continuous training organised by the NAICT in the domain of networks and information systems security at least once (01) every two (02) years.
(2) In case of non-respect of the continuous training requirement provided for in paragraph 1 above, the Minister in charge of telecommunications may suspend the accreditation, upon proposal of the NAICT until the certified auditor regularises his/her situation.
(3) If the certified auditor does not regularise his/her situation within a period of three (03) months after the suspension decision, the Minister in charge of telecommunications may, upon proposal of the NAICT, decide the withdrawal of the accreditation.

ARTICLE 18.- In case of breach of his/her professional obligation or violation of the provisions of the regulation in force by the certified auditor, the General Manager of NAICT may, after listening to the opinion of the Commission, propose to the Minister in charge of telecommunications, after notification by the Committee, the withdrawal of the accreditation of the certified security auditor concerned.

SECTION II
DURATION AND RENEWAL OF ACCREDITATIONS

ARTICLE 19.- (1) The accreditation of a security auditor expert shall last for five (05) years renewable.
(2) Six months at least before the expiring date provided by paragraph 1 above, the authorised auditor expert shall forward to NAICT an application for accreditation renewal.
(3) The application for renewal shall follow the same modalities provided by Article 14 of this Decree.

CHAPTER IV
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 20.- The special legal instrument of the Minister in charge of telecommunications specify, where necessary, the enforcement modalities of this Decree.

ARTICLE 21.- This Decree shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaoundé, 14 June 2012

Philémon YANG

PRIME MINISTER, THE HEAD OF GOVERNMENT

DECREE No. 2013/0261/PM OF 22 FEBRUARY 2013 To lay down the operating conditions of the electronic platform "One-Stop Shop for Foreign Trade Operation".-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2010/021 of 21 December 2010 to govern Electronic Commerce in Cameroon;
Mindful of Law No. 2010/012 of 21 December 2010 on Cybersecurity and Cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to regulate Electronic Communications in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This Decree shall lay down the terms and conditions for the operation of the electronic platform " one-stop shop for foreign trade operations " called e-GUCE.

ARTICLE 2.:- The platform referred to in Article 1 above shall be an information exchange system which receives and transmits messages in accordance with the procedures of the administrations involved in foreign trade operations.

ARTICLE 3.- The operation of the electronic platform "one-stop shop for foreign trade operations" shall be entrusted to the One-Stop Shop for Foreign Trade Operations (GUCE-GIE) hereinafter referred to as "the operator".

ARTICLE 4.- For the purpose of this decree, the following definitions shall be accepted:

a) **e-GUCE**: Virtual platform, secure communication infrastructure between the participants in foreign trade operations and users for all services based on information and communication technologies;
b) **Operator**: Service ensuring the technical management, operation, maintenance and security of the virtual platform;
c) **Partners**: All those involved in foreign trade procedures; d) Service: Transmission of information or personal data between a partner and users of the one-stop shop;
e) **Service provider**: A person providing services for the implementation of functions that contribute to the security of information exchanged electronically;
f) **Security product**: A device, hardware or software, implementing functions that contribute to the security of information exchanged electronically; g) Information system: refers to a set of means intended to prepare, process, store or transmit information exchanged by electronic means between administrative authorities and users and between administrative authorities;
h) **Teleservice**: Any information system enabling users to carry out administrative procedures or formalities by electronic means;
i) **User**: A natural or legal person who has signed a contract to use the virtual platform of the single window for external trade operations;

j) **Electronic signature**: A signature obtained by an asymmetric encryption algorithm that helps authenticate the sender of a message and check its integrity;
k) **Code**: An element of the electronic communications network or services enabling the operator to provide electronic communications services.

ARTICLE 5.- The architecture of the e-GUCE platform includes:
a) a secure infrastructure;
b) a user authentication system;
c) all the software associated with the services;
d) an Internet connection;
e) a secure communications network.

ARTICLE 6.- The secure infrastructure shall take into account all the computer systems involved in foreign trade operations. In this regard, it must:
a) be monitored by ad hoc systems;
b) have an authentication system for access to the servers;
c) be upgraded regularly.

ARTICLE 7.- (1) The rules guaranteeing the confidentiality and integrity of data exchanged within the framework of the one-stop shop shall be drawn up in accordance with the laws and regulations in force as well as the requirements of the National Agency for Information and Communication Technologies (NAICT).
(2) The rules referred to in the previous paragraph shall be defined according to the security levels provided for by the repository for security functions, such as identification, electronic signature, confidentiality or time stamping, which enable the security objectives mentioned in the previous paragraph to be achieved.

CHAPTER II
OPERATION OF THE e-GUCE PLATFORM

ARTICLE 8.- (1) The operator shall provide the user with personal and secret codes that allow him/her to access the services to which he/she is entitled.
(2) Access codes shall be permanently controlled by the secure infrastructure of the e-GUCE platform
(3) This control shall make it possible to:
(a) ensure the user's access rights to the one-stop shop;
(b) compel the user to create a new personal password on the first attempt to connect to the one-stop shop;
(c) require the user to change the password periodically;
(d) automatically block the user's access codes when repeated attempts are made to access the system using invalid codes;
(e) offer the user the possibility of invalidating and blocking his/her access codes at any time.

ARTICLE 9.- (1) The secure infrastructure shall include a system with a temporary history of user transactions.
(2) The data transmitted shall be kept in the temporary transaction history until the end of the services provided in the context of the processing of a file.

ARTICLE 10.- Before any use, operators shall sign a contract or a memorandum of understanding with the operator of the e-GUCE platform.

CHAPTER III
INTEROPERABILITY OF SERVICES OFFERED BY ELECTRONIC MEANS

ARTICLE 11.- The operator of the e-GUCE platform shall adopt and publish, in conjunction with the National Agency for Information and Communication Technologies (NAICT), the technical standards and specifications to ensure the interoperability of information systems. It determines in particular the data directories, norms and standards that must be used by other administrative structures.

ARTICLE 12.- Agents in charge of processing and using information collected within the framework of infor-

mation systems shall use, to access these systems, referenced security products approved by the operator of the virtual platform and the National Agency for Information and Communication Technologies (NAICT), or according to the standards in force.

CHAPTER IV
DATA PROTECTION

ARTICLE 13.- (1) The parties to the electronic platform who have access to information within the framework of the one-stop shop may only use it for the purposes explicitly provided for in the communication.
(2) The parties must respect the regulations in force concerning data protection, in particular the principles of legality, proportionality and good faith, accuracy and security.

ARTICLE 14.- The persons whose personal data are processed within the framework of the e-GUCE platform shall benefit from the rights guaranteed by the legislation on data protection, in particular the right of access, rectification and conservation.

ARTICLE 15.- (1) With the exception of the temporary history of user transactions provided for in Article 8 of this decree, the operator shall not keep the data transmitted by users within the framework of the services of the e-GUCE platform, nor shall it collect data on users with the exception of the constitution of anonymous statistics relating, in particular, to the number of visitors to the site, processing times and port and corridor passage.
(2) Without the user's consent, the recording of permanent data on the user's computer system is prohibited.

CHAPTER V
CONDITIONS OF USE OF ELECTRONIC SIGNATURE WITHIN THE FRAMEWORK OF THE e-GUCE PLATFORM

ARTICLE 16.- When their signatures shall be required, documents transmitted by electronic means or on an electronic physical media within the framework of foreign trade operations are signed electronically according to the methods defined in articles 17 to 20 of this decree.

ARTICLE 17.- (1) Within the framework of foreign trade formalities, economic operators shall use a signature certificate belonging to one of the categories of certificates:

a) constituting a security product in accordance with the regulations in force; or
b) issued by a certification authority appearing on the trusted list of a Member State, as drawn up, transmitted and made available to the public electronically by the National Agency for Information and Communication Technologies (NAICT); or
(c) issued by a Cameroonian or foreign certification authority that meets standards equivalent to those of the general security reference framework defined by the National Agency for Information and Communication Technologies (NAICT).

(2) The signatory shall transmit, together with the signed document, the instructions for use enabling the necessary checks to be carried out. These instructions for use shall contain at least the following information:

(a) the procedure for verifying the validity of the signature;
(b) the website address of the country of establishment's referral of the provider or, failing that, the public data relating to the signatory's certificate which shall include, at least, the revocation list and the certificate of the issuing electronic certification service provider.

(3) Where the signatory uses a category of certificate listed in paragraph 1 (a) or (b), he may be exempted from providing the information listed in paragraph 2 (b).

ARTICLE 18.- (1) The signature format shall comply with the general interoperability reference framework defined by the National Agency for Information and Communication Technologies (NAICT).
(2) The settlement procedure may provide for one or more additional formats.

ARTICLE 19.- To sign, the signatory shall use the signature tool of his/her choice.

ARTICLE 20.- (1) The provision of the procedure for verifying the validity of the signature mentioned in paragraph 2 of Article 17 is free of charge. It shall allow, at least, to verify :

- the identity of the signatory;
- that the signatory's certificate belongs to one of the categories of certificates mentioned in paragraph 1 of Article 17;
- compliance with the signature format mentioned in Article 18;
- the fact that the certificate has not expired or been revoked at the date of signing;
- the integrity of the signed file.

(2) The verifications may be carried out automatically, where the techniques used on the buyer profile so permit, with the exception of verification of the identity of the person signing the document.
(3) The economic operator who uses the signature creation device offered by the buyer profile is exempted from providing the signature verification procedure.

ARTICLE 21.- (1) The electronic signature may be affixed by means of an electronic signature pad.
(2) The electronic signature device shall be a tool with functions allowing, at least, the grouping of documents to be validated or signed, the signature of the same document by several signatories, without altering its integrity, whether it is used locally or online.
(3) Each signature must be verifiable independently of the others.

CHAPTER VI
TRANSMISSION OF DATA BETWEEN USERS AND ADMINISTRATIONS AND BETWEEN ADMINISTRATIONS

ARTICLE 22.- (1) The administrations participating in the dematerialisation of foreign trade procedures shall set up teleservices connected to the information system of the e-GUCE electronic platform.
(2) When they set up the teleservices referred to in paragraph 1 above, the administrations shall make available from these teleservices the modalities of use, in particular the possible methods of communication. These procedures shall be binding on users.
(3) The conditions of use shall relate in particular to:

- the various steps to be followed to complete the administrative procedure concerned;
- technical means enabling the user, before validating the procedure, to identify and correct any errors made in entering the data;
- languages proposed for data entry;
- arrangements for archiving by the supplier and the conditions for access to the archived form;
- means of consulting electronically the legislation governing this process.

ARTICLE 23.- (1) Requests for information within the framework of the dematerialisation of foreign trade procedures shall be addressed to the administrations by electronic means.
(2) Any party shall respond electronically to requests for information addressed to it by a user or an administration.
(3) A user who sends by electronic means to an administration a request or information of which the latter has acknowledged receipt, may not be asked to confirm or repeat its transmission in another form.

ARTICLE 24.- The service involved in the procedure shall acknowledge receipt of the message or form without undue delay and by electronic means.

ARTICLE 25.- With regard to any exchange between administrations and users within the framework of foreign trade procedures, the user shall be deemed to have received the administration's reply as soon as it can be accessed.

ARTICLE 26.- When a user must communicate to an administration operating in the framework of foreign trade information pertaining to it, emanating from another administration, this communication may, provided that the interested party has expressly accepted it beforehand, be made directly by electronic means by the authority from which the information emanates.

ARTICLE 27.- (1) When the administration sends an electronic message or document whose authenticity must be guaranteed, it shall use an electronic signature in accordance with the texts in force.
(2) A user who needs to authenticate an electronic message or document sent to an administration shall use an electronic signature according to the legislation in force.

ARTICLE 28.- (1) The requirement of a form to be filled in and returned or filed shall be met by an electronic process which allows the form to be accessed and returned filled in by the same means.
(2) The requirement of sending or filing in multiple copies shall be deemed to be satisfied in electronic form if the writing can be printed by the recipient.
(3) T he form must be capable of being retained and archived in electronic form by the user.

ARTICLE 29.- The documents required for foreign trade procedures must be kept in electronic form for a period of ten (10) years under the following conditions:

- the information contained in the data message must be accessible, readable and intelligible so that it can be consulted later;
- the data message must be preserved in a form that is not likely to have modified or altered the content of the message. The document transmitted and the document retained must be strictly identical;
- information which makes it possible to determine the origin and destination of the data message, as well as the date and time of sending or receiving, must be recorded.

CHAPTER VII
ONLINE PAYMENT AND ARCHIVING OF INVOICES

ARTICLE 30.- (1) When a procedure or contract requires payment by the user, this must be made online in such a way as to guarantee its security.
(2) The user must be offered the possibility of sending a proof of payment online.

ARTICLE 31.- Electronic documents shall be accepted for invoicing purposes in the same way as paper documents, provided that the authenticity of the origin of the data they contain is guaranteed by a valid electronic signature.

ARTICLE 32.- (1) The storage of an invoice by electronic means shall be carried out by means of electronic data storage equipment, including digital compression, guaranteeing the durability, integrity and legibility of the archived document.
(2) Data guaranteeing the authenticity of the origin and integrity of the content of each invoice shall also be kept for ten years.

CHAPTER VIII
LIABILITY

ARTICLE 33.- The partners shall be solely responsible for the data provided on the e-GUCE and for any damage they may cause to users.

ARTICLE 34.- Users shall be solely responsible for their computer system. They shall also bear all risks resulting from the use by a third party of their access rights.

CHAPTER IX
TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 35.- Users and administrations involved in foreign trade operations shall have a period of six (6) months from the date of signature of this decree to comply with this decree.

ARTICLE 36.- This Decree, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French. /-

Yaoundé, 22 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2013/0396/PM OF 27 FEBRUARY 2013
To lay down the operation and control conditions for the use of radio frequencies.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, Head of Government, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2012/1638/PM of 14 June 2012 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime,

HEREBY DECREES AS FOLLOWS:

PART I
GENERAL PROVISIONS

ARTICLE 1.- (1) This decree lays down the operating and control conditions for the use of radio frequencies.
(2) It is issued pursuant the provisions of Article 41 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon.

ARTICLE 2.- To implement this decree, the following definitions are accepted:

1. **Assignment agreement**: deed issued by the Telecommunications Regulatory Board authorising a natural or legal person to operate one or more radio communication stations and/or to use one or more specific radio frequencies or channels, in accordance with specified conditions;
2. **Interference**: effect on the reception in a radio system of unwanted energy due to an emission, radiation or induction or a combination of such emissions, radiations and inductions, manifested by a degradation of the quality of transmission, a distortion or a loss of the information which could have been extracted in the absence of this unwanted energy;
3. **Harmful interference**: interference which impairs the operation of a radionavigation service or other safety services or which seriously degrades, repeatedly interrupts or prevents the operation of a radio service used in accordance with the Radio Regulations;
4. **Termination control**: operation to verify the effectiveness of the discontinuation of the operation of a radio station or network, the use of assigned frequencies and the dismantling of radio installations;
5. **Coordination**: administrative and technical procedure aimed at preventing or mitigating interference between the various radio services using the shared or contiguous band(s);
6. **Radio equipment**: equipment producing radio energy;

7. **Transmitter**: equipment intended for radio transmission or any apparatus capable of producing electrical radio transmissions, whatever its use, function or design purpose;
8. **Radio transmission**: radiation produced, or radiation generated, from a transmitting radio station;
9. **Spectrum engineering**: a set of activities which includes the development of electromagnetic compatibility models and operating standards for radio systems, the establishment of limit values for radio systems, the establishment of limit values for human exposure to electromagnetic radiation, the development of technical analysis tools for frequency assignment.
10. **Inspection of radio stations and networks**: a set of administrative, technical and operational verification operations of a radio station or network and related facilities,
11. **National Frequency Register**: register of assigned frequencies;
12. **Frequency Notification**: operation aimed at ensuring the international recognition and protection of frequency assignments through their recording in the International Telecommunication Union (ITU) frequency reference file, hereinafter referred to as ITU;
13. **Qualified operator**: a person holding a certificate of competence in radiocommunications;
14. **Spectrum planning**: operation consisting in allocating frequency bands to the various radio services, in accordance with national regulations, the relevant provisions of the ITU Radio Regulations, the decisions of international bodies, and national specificities and trends;
15. **Radio station**: one or more transmitters or receivers, or a set of transmitters, including ancillary equipment, required to provide a radio service or for the radio astronomy service, at a given location;
16. **Spectrum monitoring**: the operation of measuring transmission characteristics with a view to locating and identifying sources of harmful interference and unauthorised transmissions;
17. **Table for National Frequency Allocations**: a matrix for the allocation of frequency bands among radio services.

ARTICLE 3.- (1) The radio frequency spectrum is part of the public domain of the State.
(2) The Administration in charge of telecommunications shall ensure, on behalf of the State, the management of the frequency spectrum provided for in subarticle 1 above. In this respect, its general mission is to coordinate, plan, control and optimize the use of the said frequency spectrum in accordance with national needs and in conformity with the standards in force.

ARTICLE 4.- (1) The allocation of radio frequency bands shall be ensured by Inter-ministerial Committee for Frequency Band Allocation.
(2) The frequency bands referred to in subarticle 1 above shall be included in the National Frequency Band Allocation Table drawn up by the Minister in charge of telecommunications.

PART II
ASSIGNMENT AND USE OF RADIO FREQUENCIES

ARTICLE 5.- The owning, establishment, installation, operation of a radio station or the use of a radio frequency in any place, including on board a boat, ship, aircraft or vehicle, shall be subject to the prior issue of a frequency assignment agreement by the Telecommunications Regulatory Board, hereinafter referred to as "the Board".

CHAPTER I
ASSIGNMENT OF RADIO FREQUENCIES

SECTION I
CONDITIONS FOR THE ASSIGNMENT OF RADIO FREQUENCIES

ARTICLE 6.- (1) The Board shall assign radio frequencies in accordance with the National frequency band allocation table, the regulations in force, the provisions of the ITU legal instruments, the Convention on International Civil Aviation, and other relevant legal instruments.
(2) The assignment of frequencies shall be made taking into account:
- the electronic communications development plan;
- the availability of spectrum for the type of service at the requested location;
- the possibility of offering the requested service by other means of communication;

- the effective and efficient use of all radio services;
- the need to protect radio services dedicated to distress and safety from harmful interference.

ARTICLE 7.- (1) The assignment of a frequency shall be the subject of an application addressed to the General Manager of the Board.

(2) The application for frequency assignment that complies with the template defined by the Board must be accompanied by administrative and technical files.

(3) The administrative file shall include the following items:

a) **For a natural person**:
- an application form duly filled in and stamped at the applicable tariff;
- copy of the authorisation to establish and operate the network or station or the provision of the concerned service;
- a copy of the National Identity Card or a Resident Permit or any other related document;
- a copy of the taxpayer's card;
- a receipt of payment of the fees for studying the file issued by the Board;
- a solemn declaration made in accordance with the template defined by the Board.

b) **For a legal person**:
- an application form duly filled in and stamped at the applicable tariff;
- a copy of the authorisation to establish and operate the network or station or the provision of the concerned service;
- a certified true copy of the taxpayer's card, where necessary;
- a copy of the National Identity Card or a Resident Permit or any other similar document; where appropriate of the applicant for application emanating from the Head of the Diplomatic or Consular and Representation of International Organisation;
- a tax clearance certificate;
- a solemn declaration made in accordance with the template defined by the Board;
- a receipt of payment of the fees for studying the file issued by the Board.

(4) The technical documents shall include the following information:
- The general description and specifications of the network and services to be offered;
- The technical specifications of equipment and related installations;
- The coverage area, technical description of the coverage area and places of establishment of stations;
- The administrative, technical and operating data relating to radio stations;
- The copy of the accreditation of the installer of equipment and radio installations, where appropriate;
- The copy of the accreditation and approval of equipment and radio installations;
- Certified notices issued by the competent authorities, where appropriate.

ARTICLE 8.- (1) In the event, where the Board receives a frequency assignment application file that meets all the required conditions, it must acknowledge receipt.

(2) The applicant may be asked to provide additional information.

(3) In the case where the review of the file is favourable, the Board shall issue the Frequency Assignment Agreement to the beneficiary within a reasonable time limit.

ARTICLE 9.- (1) The Frequency Assignment Agreement may be refused in the following cases:
- for the purpose of safeguarding public order, for the needs of national defence and public security;
- for purpose of saving human lives and protecting properties;
- the incompatibility of the application with either the commitments undertaken by Cameroon within the field of radiocommunication, either with the existing or predictable use of the frequency bands, or with other assignment agreements that do not allow a rational management of the frequency spectrum;
- the request has a detrimental effect on the rights attached to frequency assignments recorded in the International Frequency Register of ITU;
- the applicant has been subject to one of the sanctions provided for in the regulations in force;
- technical incompatibility or risk of harmful interference;
- non-payment of frequency usage fees within the prescribed time limits or the existence of overdue and unpaid fees.

(2) Any refusal to grant a frequency assignment agreement shall be justified and notified to the party concerned.

ARTICLE 10.- The frequency assignment agreement shall specify the conditions for the establishment and operation of radio stations, as well as those relating to the use of frequencies.

ARTICLE 11.- (1) The frequency assignment agreement may be issued only if the radio equipment for which the assignment agreement is sought has been previously approved by the Board.
(2) The Board shall seek the assent of the Aviation Authority before approving radio equipment or a rescue craft station installed on board an aircraft.

ARTICLE 12.- (1) The Administration in charge of telecommunications may, after consultation with the Board, limit the number of frequency assignment agreements.
(2) Where the number of frequencies is limited, the Board may issue frequency assignment agreements only after a call for competition.

SECTION II
RENEWAL, MODIFICATION, REVOCATION AND TERMINATION OF FREQUENCY ASSIGNMENT AGREEMENTS

ARTICLE 13.- A frequency assignment agreement shall be issued for a period of one (01) year, renewable by tacit agreement, upon proof of payment of the annual frequency use fee and charges.
(2) Notwithstanding the provisions of subarticle (1) above, the validity of an assignment agreement shall not be greater than that of the authorisation or licence to operate the electronic communications network for which the frequencies have been assigned.

ARTICLE 14.- The Board may, in case of necessity and subject to informing the holder, make changes to the frequency assignment agreement. In this regard, it may modify or delete one or more conditions additional to those for which the frequency assignment agreement was issued.

ARTICLE 15.- (1) The holder of a frequency assignment agreement shall request a modification of the said agreement, specifically to:
- change the constitution or operating conditions of the radio network;
- replace the equipment described in the assignment agreement or change its characteristics;
- operate its radio stations in conditions or locations not mentioned;
- use frequencies or locations other than those mentioned in the said Agreement;
- substitute new responsible persons for those already known;
- modify the administrative information contained in the file which gave rise to the issue of the Agreement.

(2) The request for modification of the frequency assignment agreement shall be addressed to the Board in accordance with the provisions of Article 7 of this Decree.

ARTICLE 16.- In the event of a change in the frequencies assigned to its network or in the standards imposed on the equipment, the holder of a frequency assignment agreement shall, upon simple notification by the Board, modify at its own expense the technical characteristics of the radio stations it operates.

ARTICLE 17.- (1) The holder of a frequency assignment agreement may request the termination of its agreement.
(2) The request shall be sent to the Board at least three (03) months before the planned date of cessation of operation of the network. It shall be accompanied by the frequency assignment agreement whose termination is requested.
(3) Upon receipt of the termination request provided for in subarticle 2 above, the Board shall check whether the applicant is in compliance with its administrative, technical and financial obligations, carry out the termination check, terminate the agreement and notify the holder thereof.
(4) If during the verification provided for in Article 17 subarticle 3 above, the Board finds that the applicant has not fulfilled its previous financial obligations, it shall order it to do so within fifteen (15) days.

ARTICLE 18.- (1) The Board may revoke a frequency assignment agreement for the requirements of national defence or public security or in particular in the event of:
- saturation of some frequency bands;
- non-payment of fees within the prescribed period;
- reorganisation of the frequency spectrum;
- disruption of the technical functioning of existing networks;
- non-compliance by the holder with one or more of the provisions of its frequency assignment agreement;
- the imposition of penalties on the holders of the frequency assignment agreement for failure to comply with the regulations in force;
- the expiry of the validity of the operating licence authorising the exercise of the electronic communications activity which gave rise to the assignment of frequencies.

(2) The revocation of the frequency assignment agreement referred to in subarticle 1 above shall be justified and notified to the holder of the said agreement.

SECTION III
TEMPORARY FREQUENCY ASSIGNMENT AGREEMENTS

ARTICLE 19.- (1) The Board may issue a temporary frequency assignment agreement for the following cases:
- testing or demonstration of equipment;
- coverage of media events;
- special events, at the discretion of the Board.

(2) The procedures for issuing temporary frequency assignment agreements shall be the same as those referred to in Article 7 of this Decree.
(3) The temporary frequency assignment agreement referred to in subarticle 1 above shall be issued for a period not exceeding ninety (90) days.

SECTION IV
PROVISIONS APPLICABLE TO RADIO STATIONS

ARTICLE 20.- Any radio station installed on a ship or aircraft must be accompanied by the authorization to operate the ship or aircraft station.

ARTICLE 21.- (1) Foreign aircraft and ships shall be authorised to use their radio equipment only for the exclusive purpose of navigation or operation of such aircraft or ships.
(2) Foreign aircraft and ships referred to in subarticle 1 above shall comply with the silence orders transmitted to them by the Cameroonian civil or military authorities.

ARTICLE 22.- (1) The use of a radio station installed on board a ship or aircraft intended for the amateur service may only be carried out by an authorised person holding an operator's certificate recognised by the Board.
(2) The conditions for the issue or mutual recognition of the operator's certificate shall be determined by a special text of the Minister in charge of telecommunications.

PARAGRAPH I
PROVISIONS RELATING TO THE AVIATION SERVICE

ARTICLE 23.- (1) The Board shall seek the assent of the Aviation Authority before issuing the frequency assignment agreement for the use of a radio station in the aviation service.
(2) The frequency assignment agreement issued by the Board shall serve as an aircraft licence within the meaning of the ITU Radio Regulations.
(3) The operator of a radio station on board an aircraft shall be bound to observe the provisions of the ITU Radio Regulations and any other national or international regulations applicable to aircraft stations.

ARTICLE 24.- No radio station on board an aircraft shall be operated or used when the aircraft is parked on land or in the territorial waters of Cameroon, except :
- for cases of emergency or distress or natural disaster;

- when communications through the national electronic communications systems are not available;
- for communications related to air navigation;
- when no communication is possible between that station and another station;
- for the purposes of experimental tests under conditions defined by the Board;
- for the purpose of functional tests intended to evaluate the capability of the station to offer the desired services, provided that such tests are not carried out on international distress frequencies.

ARTICLE 25.- (1) The radio stations in the aviation service are those corresponding to the:
- Aviation fixed service;
- aviation mobile service;
- aviation mobile satellite service;
- aviation radionavigation service;
- aviation radionavigation satellite service.

(2) The stations referred to in subarticle (1) above shall be installed either on the ground, including on board vehicles, or on board aircraft. They shall be established and operated either by bodies under the authority of the Civil Aviation Administration or by any natural or legal person, in particular operators of aircraft, aerodromes or aero clubs.

ARTICLE 26.- (1) Radio communications between the various stations referred to in Article 25 of this Decree must be limited to the safety and regularity of traffic or to experiments for the improvement and development of the equipment used.
(2) Any communication of a private or commercial nature is forbidden to the radio stations of the aviation service, except by derogation from the Board.

ARTICLE 27.- Technical specifications shall be established in accordance with the Convention on International Aviation or any other relevant legal instrument.

ARTICLE 28.- (1) The Civil Aviation Authority shall establish and operate aviation service stations that are necessary to provide air navigation services and to facilitate the operations of State aircraft.
(2) The Civil Aviation Authority may install and operate radio stations on State aircraft for technical or operational tests or experiments.

ARTICLE 29.- (1) The Board, after consultation with the Aviation Authority, may authorise approved air sports organisations to install aviation radio communication stations.
(2) The stations referred to in subarticle (1) above are intended to facilitate, under the conditions laid down by the Minister responsible for civil aviation, the practice of air sports.
(3) The electronic communications exchanged are strictly limited to aviation experience, phraseology and terminology.

ARTICLE 30.- The radio communication stations referred to in article 29 above may only be opened after a control carried out jointly by the authorised agents of the Board and the Aviation Authority.

ARTICLE 31.- (1) Radio stations which are neither established nor operated by an organisation under the authority of the Civil Aviation Authority may be required, by decision of the latter, to perform free of charge some general services relating to the safety and operation of aircraft.
(2) The radio stations referred to in subarticle 1 above may, depending on the circumstances and temporarily, be used free of charge, after agreement with their owners, by the agents of the aviation Authority authorised to carry out technical or operational tests of aviation equipment.

ARTICLE 32.- The Minister in charge of telecommunications and the Minister in charge of civil aviation shall determine by a specific text, the types and number of radio communication stations installed on board aircraft, according to the communication, navigation and surveillance requirements linked to the type of flight they are authorized to undertake.

ARTICLE 33.- The crew members likely to operate the equipment used for radio communication on board the aircraft must hold, in addition to civil aviation certificates, licences and qualifications, a radio operator certificate recognised by the Board.

ARTICLE 34.- (1) Authorised officers of the Board and the Aviation Authority shall exercise control over the aviation service radio stations by means of ground or in-flight visits.
(2) Users of radio stations referred to in subarticle 25 of this Decree and aircraft operators shall be obliged to admit on board the authorised officers of the Board and the Aviation Authority responsible for carrying out inspections and tests.

PARAGRAPH II
PROVISIONS RELATING TO THE MARITIME SERVICE

ARTICLE 35.- Radio communication stations on board ships may only be installed and operated on board ships after prior agreement from the Board.

ARTICLE 36.- (1) The Board shall ensure the control of radio communication stations on board ships in Cameroonian territorial waters as well as the qualifications of the personnel assigned to their use.
(2) The control referred to in subarticle (1) above shall also be exercised over foreign ships stationed in Cameroonian ports.

ARTICLE 37.- The Board may, following an inspection, impose sanctions on the operator and require modifications to be made to radio stations in accordance with the regulations in force.

ARTICLE 38.- The frequency assignment agreement for radio stations on board ships in Cameroonian territorial waters may only be issued if:
- the ship has a valid internationally recognised safety certificate;
- the radio station is operated by personnel holding the required certificates issued by the competent national or foreign authorities, except in the case of recreational vessels;
- the ship is registered with an accounting authority recognised or accepted by the Board;
- the ship complies with the requirements determined by the Board.

ARTICLE 39.- (1) The operator of a shipboard radio station shall carry the following documents on board the ship at all times:
- the frequency assignment agreement;
- the operator's certificates; and
- mandatory publications and any other documents required by the ITU Radio Regulations.

(2) The operator referred to in subarticle 1 above shall comply with the operating procedures established by the ITU Radio Regulations and any other requirements determined by the Board.

ARTICLE 40.- (1) A radio station on board a ship, duly authorised by the Board, may be used when the ship is in Cameroonian territorial waters, for the following purposes:
- the safety of navigation;
- the safeguarding of human life or the protection of property at sea;
- communications in the frequency bands specifically assigned under the conditions determined by the Board, provided that the operation of such a station does not cause harmful interference to the operation of other authorised stations or networks.

(2) Electronic communications of a private nature, transmitted from radio stations on board ships in Cameroonian territorial waters, shall be carried out through coastal radio stations designated by the Board.

PARAGRAPH III
PROVISIONS RELATING TO THE AMATEUR SERVICE

ARTICLE 41.- (1) A frequency applicant who wishes to operate radio stations in the amateur service shall first hold a radio operator's certificate issued by the Board or a certificate recognized as equivalent.

(2) The frequency assignment agreement for the operation of a radio station in the amateur service shall not be issued to a person under sixteen (16) years of age.

ARTICLE 42.- (1) The Board shall issue the frequency assignment agreement to radio stations in the amateur service according to one of the following classes:
- general class: for natural persons at least twenty-one (21) years of age and qualified to operate radio stations in the amateur service;
- restricted class: for natural persons between the ages of sixteen (16) and less than twenty-one (21) years.

(2) An application for the assignment of frequencies for the operation of radio stations in the amateur service by a person under twenty-one (21) years of age must be accompanied by a formal agreement from a parent, guardian or any person having a relationship with the applicant recognized by a competent authority.

ARTICLE 43.- (1) The holder of an amateur service frequency assignment agreement whose age is less than twenty-one (21) years may use an amateur service radio station only if he is assisted by a qualified person recognized by the Board and who agrees to supervise him.
(2) The supervisor referred to in subarticle (1) above shall ensure that the holder of the assignment agreement complies with the obligations specified in that agreement.

ARTICLE 44.- The operation of radio stations in the amateur service shall be subject to the following conditions, among others:
- the establishment of stations and all equipment shall be used in locations approved by the Board;
- the prohibition of interference with the efficient and proper operation of other authorised stations;
- the transmission of the call sign at the beginning and end of each transmission within a short time interval;
- the obligation to obtain the approval of the Board for any change of location, equipment, mast or antenna system prior to any implementation;
- the keeping, at all times, of a record showing the date and time of each transmission period, the frequencies and duration of transmissions;
- the storage of recordings for each entry made in the course of a year;
- the availability of the register to sworn agents appointed by the Board during inspections.

ARTICLE 45.- (1) The use of encryption devices and/or equipment for the communications of a radio station in the amateur service is prohibited.
(2) Messages transmitted through a radio station of the amateur service shall be in plain language or in an intelligible and comprehensible version and shall relate solely to the amateur services.

ARTICLE 46.- (1) An amateur radio station may not be used to transmit press, advertising, commercial or non-experimental information, messages for monetary reward, messages to the address or on behalf of a third party.
(2) Unless expressly authorised by the Board, the operator of a radio station in the amateur service may communicate only with another station in that service.
(3) Transmissions may not begin without first ensuring that the chosen frequency is free of transmissions.
(4) The Board may request in writing, where circumstances so require, the operator of a radio station in the amateur service to transmit any message by means of its station.
(5) The Board may authorise an amateur radio station to be operated as a mobile or transportable station under such conditions as it may determine.

PARAGRAPH IV

PROVISIONS RELATING TO SATELLITE RADIO STATIONS, EXPERIMENTAL RADIO STATIONS AND LOW-POWER AND SHORT-RANGE DEVICES

ARTICLE 47.- (1) The Board shall issue a frequency assignment agreement for the operation of any satellite radio station.
(2) The agreement referred to in subarticle (1) above shall cover in particular:
- very small aperture terminal (VSAT) stations;
- control, telemetry and tele-tracking stations;

- earth stations;
- transportable satellite receiving stations.

(3) Any operator of the satellite radio stations referred to in subarticle 2 above shall obtain prior authorisation for access to the space segment.
(4) The operator referred to in subarticle 3 above shall comply with the rules and procedures established by the satellite operator for access of stations to the space segment, capacity reservation and related fees.

ARTICLE 48.- (1) The Board may issue to a training institution a frequency assignment agreement for the operation of an experimental radio station intended for research and development, experimentation, testing or demonstration activities in radiocommunication.
(2) It shall define the conditions of use of the frequencies and operation of the stations referred to in subarticle 1 above.

ARTICLE 49.- The Board shall determine the conditions for the establishment and operation of low-power and short-range radio devices.

PARAGRAPH V
PROVISIONS RELATING TO THE RADIO STATIONS OF THE BROADCASTING SERVICE

ARTICLE 50.- (1) The frequency assignment agreement for the establishment and operation of radio stations of the broadcasting service shall be subject to the granting of the authorizations provided for by the regulations in force for the exercise of broadcasting and transport of sound and television programmes intended for reception by the public.
(2) The Board shall issue the frequency assignment agreement referred to in subarticle (1) above.

ARTICLE 51.- The Board shall exercise permanent control over the technical conditions of operation of radio stations of the broadcasting service.

CHAPTER II
CONDITIONS AND CONTROL OF FREQUENCY USE

SECTION I
CONDITIONS OF USE OF FREQUENCIES

ARTICLE 52.-The holder of a frequency assignment agreement shall be required to pay contributions, fees, charges and royalties, the amounts and payment terms of which shall be determined by a special text issued by the Minister responsible for telecommunications and the Minister responsible for finance.

ARTICLE 53.- (1) The frequency assignment agreement shall be issued on a precarious basis and may be revoked at any time without compensation. It shall not confer on its holder any exclusivity.
(2) The frequency assignment agreement shall be personal, non-transferable and not subject to any security.
(3) The Board may, at any time and without prior notice, request the temporary cessation of transmissions on assigned frequencies. Such a provision shall not give rise to any right to compensation.

ARTICLE 54.- The frequency assignment agreement shall be issued without any guarantee of protection against interferences due to the operation of other radio stations.

ARTICLE 55.- The Board may, in the interest of the economy of the frequency spectrum or for any other reason, require the holder of a frequency assignment agreement to share a frequency with other operators, under the conditions set by the Board.

ARTICLE 56.- (1) Radio stations shall be established, operated and maintained at the expense and risk of the holder of the frequency assignment agreement.
(2) The Board shall not be liable in any way for the operations referred to in subarticle 1 above.

ARTICLE 57.- (1) The Board shall coordinate the siting on the national territory of radio stations of all kinds in order to ensure the best use of available sites.
(2) Operations for the establishment, transfer or modification of radio stations shall be carried out only after a favourable opinion from the Board.

ARTICLE 58.- (1) Operators and providers of electronic communications networks shall be required to comply with the limit values for public exposure to electromagnetic fields set by the regulations in force.
(2) The Board shall ensure the implementation of protective measures against the effects of exposure of persons to radiation emitted by radio stations and shall ensure that operators and providers of electronic communication networks comply with them.

ARTICLE 59.- The holder of a frequency assignment agreement shall be required to comply with the technical standards applicable to the radio installations it operates and with the coordination agreements concluded with other States.

SECTION II
CONDITIONS OF CONTROL OF FREQUENCY USE

ARTICLE 60.- (1) The Board shall exercise permanent control over the entire radio spectrum.
(2) The control referred to in subarticle (1) above shall focus, in particular, on compliance with the conditions of use of the frequencies and operation of the radio stations, the quality of radio emissions, the rational use of the spectrum and the administrative and technical conformity of the installations.
(3) The holder of a frequency assignment agreement shall be required to submit to the control and measures prescribed by the Board.

ARTICLE 61.- (1) The sites of radio stations, information and data relating thereto shall be accessible without restriction to the authorised personnel of the Board.
(2) The owners and managers of the sites where radio stations are located shall be required to give free access to agents authorised by the Board.

ARTICLE 62.- Authorised personnel of the Board may:
- access any place where a radio installation, station or equipment is likely to be located in order to identify and examine it;
- proceed with the seizure, in any manner whatsoever, the operation and reproduction of documents or items, in particular books, reports, test or analysis results, files, dispatch notes and bills of lading found.

ARTICLE 63.- (1) A report shall be drawn up for any shortcomings found during an inspection.
(2) The offender shall be required to comply with the Board's instructions without delay, failing which he shall be liable to the penalties provided for by the regulations in force.

PART III
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 64.- (1) The Board shall draw up and implement spectrum engineering projects.
(2) It shall draw up and ensure the implementation of national and international coordination and notification procedures for frequency assignments.

ARTICLE 65.- The Board may consult the security and defence services before issuing a frequency assignment agreement for the operation of private radio networks.

ARTICLE 66.- Radio installations may only be built, maintained or serviced by legal entities or individuals holding an installer's licence issued by the Board.

ARTICLE 67.- Without prejudice to criminal proceedings, the Board may, on its own initiative or at the request of the Minister in charge of telecommunications, seize radio equipment if its use is likely to cause interference

with radiocommunications, undermine national defence or public safety, until the grounds for such seizure are removed.

ARTICLE 68.- In the event of an emergency, distress or natural disaster, the competent authorities may requisition all or part of the facilities of the holder of a frequency assignment agreement.

ARTICLE 69.- Holders of valid frequency assignment agreements have a period of six (06) months from the date of signature of this decree to comply with it.

ARTICLE 70.- Specific texts issued by the Minister in charge of telecommunications shall specify, as necessary, the modalities for the implementation of this Decree.

ARTICLE 71.- This Decree, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2013/0397/PM OF 27 FEBRUARY 2013 On the organisation and functioning of the Inter-ministerial Committee for Frequency Band Allocation.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2010/013 of 21 December 2010 governing electronic communication in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This decree shall provide for the organisation and functioning of the Inter-ministerial Committee for Frequency Bands Allocation , abbreviated "CIABAF", hereinafter referred to as "CIABAF".
(2) It is adopted pursuant to the provisions of Article 37 of the above-mentioned Law No. 2010/013 of 21 December 2010.

ARTICLE 2.- Placed under the authority of the Minister in charge of telecommunications, CIABAF shall ensure the allocation of radio frequency bands to radio services, in accordance with the provisions of the Radio Regulations of the International Telecommunication Union.

CHAPTER II
ORGANISATION AND FUNCTIONING

SECTION I
ORGANISATION

ARTICLE 3.- (1) CIABAF shall be composed as follows:
- **Chairperson**: The Minister in charge of telecommunications.
- **Members**:
  - the Minister in charge of defence;
  - the Minister in charge of communication;
  - the Minister in charge of finance;
  - the Minister in charge of transport;
  - the Minister in charge of territorial administration;
  - the Delegate General for National Security;
  - one (01) representative of the Presidency of the Republic;
  - one (01) representative of the Prime Minister's Office;
  - the General Manager of the Telecommunications Regulatory Board;
  - the Director General of External Research;
  - the Director General of the Aviation Authority.

(2) The members represented are designated by the administrations to which they belong.
(3) The composition of CIABAF shall be established by decision of the Minister in charge of telecommunications.

(4) The Chairperson may invite any person with expertise in the items on the agenda to attend the Committee's meetings in an advisory capacity.

ARTICLE 4.- (1) CIABAF shall have a secretariat provided by the Department in charge of frequency management of the Ministry in charge of telecommunications.
(2) The secretariat referred to in paragraph (1) above shall be responsible, in particular, for:
- preparing the Committee's meetings;
- drawing up the minutes, as well as the proceedings of the meetings and the reports of the Committee;
- preparing the draft budget of CIABAF to be submitted to the Committee for approval;
- collecting, keeping and classifying the documentation and archives of CIABAF;
- supervising all preparatory technical works at the Committee's meetings.

SECTION II
FUNCTIONING

ARTICLE 5.- (1) CIABAF shall meet, as and when necessary, upon convocation by its Chairperson.
(2) The invitations, accompanied by the documents to be submitted to CIABAF for examination, shall specify the date, time, place and agenda of the session. They shall reach the members at least fifteen (15) days before the date of the CIABAF meeting. This time limit may be reduced to seven (07) days for extraordinary sessions.
(3) CIABAF may only validly meet if two thirds (2/3) of the members are present. If the quorum is not reached, CIABAF shall be convened once again with the same agenda within a maximum period of fifteen (15) days. In this case, the session shall be held with half of the members present.

ARTICLE 6.- (1) The decisions of CIABAF shall be taken by a simple majority of the members present. In the event of a tie, the Chairperson shall have the casting vote.
(2) Each session of CIABAF shall give rise to minutes signed by the Chairperson and the members present, which shall be communicated to the members of CIABAF within fifteen (15) days following the session.

ARTICLE 7.- (1) The financial resources of CIABAF shall consist of a share of the fee for the use of radio frequencies
(2) The Minister in charge of telecommunications shall be the authorised vote holder for CIABAF's expenditure.
(3) An accounting officer appointed by order of the Minister in charge of finance, among the treasury accountants, shall be responsible for the execution of CIABAF's financial operations.
(4) The Central Financial Controller in the Ministry in charge of telecommunications shall carry out expenditure control in accordance with the laws and regulations in force.

ARTICLE 8.- At the end of each financial year, the Minister in charge of telecommunications shall draw up an administrative account of CIABAF's resources.

CHAPTER III
FINAL PROVISIONS

ARTICLE 9.- The duties of the Chairperson, members of the Committee and the Secretariat shall be free of charge. However, they may be allocated session fees, the amounts of which shall be determined by a decision of the Minister in charge of telecommunications, as well as those of invited persons.

ARTICLE 10.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaounde, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2013/0398/PM OF 27 FEBRUARY 2013 To lay down conditions for implementing the universal service and the development of electronic communications.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 to institute the minimum service in the telecommunications sector;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145 of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree lays down the conditions for implementing universal service and the development of electronic communications;
(2) It is adopted pursuant to the provisions of Article 33 of the above-mentioned Law No. 2010/013 of 21 December 2010.

ARTICLE 2.- (1) The Administration in charge of telecommunications shall draw up the strategy for the universal service and the development of electronic communications throughout the national territory.
(2) This Administration shall carry out a periodic review of the content of the universal service to take into account the technological progress, the market development, social and commercial evolutions as well as the needs of the national population.

ARTICLE 3.- (1) The Telecommunications Regulatory Board, hereinafter referred to as "the Board", shall ensure the implementation of the universal service and the development of electronic communications throughout the national territory.
(2) It shall set and adopt periodically, the minimum quality standards for the universal service.

ARTICLE 4.- (1) The provision of the universal service should initially be performed within the framework of the setting of a competitive market.
(2) The objectives of the universal service that are not covered by market rules shall be subject to the State and Special Fund for Telecommunications' support.

CHAPTER II
CONDITIONS FOR THE PROVISION OF UNIVERSAL SERVICE

ARTICLE 5.- (1) The universal service is a minimum set of defined good quality services which is accessible to the whole population on affordable tariff conditions irrespective of geographical location;
(2) The universal service shall include namely:
- public telephone service;
- access to the Internet at an adequate speed and to services enabling people to be included in the information society;
- free access to emergency services;
- access to the universal subscriber directory in printed and electronic form;
- access to the free information service.

ARTICLE 6.- (1) The operators of electronic communications networks shall be subject to the universal service obligation for electronic communications, in accordance with their specifications.
(2) The specifications referred to in paragraph (1) above shall specify the conditions for the provision of the universal electronic communications service, in particular:
- the nature and precise objectives for each of the services forming part of the universal service obligation;
- the minimum boundaries of the service area;
- the timetable for achieving the objectives;
- the conditions for setting tariffs;
- availability, performance and quality of service requirements;
- requirements for monitoring compliance with obligations;
- the financing of costs attributable to the universal service obligation.

ARTICLE 7.- (1) The Administration in charge of telecommunications shall ensure that all reasonable requests for connection to the public telephone network and for access to telephone and Internet services are met by at least one operator.
(2) The connection provided shall enable users to make and receive local, national and international telephone calls, fax communications and access to the Internet at an adequate speed.

ARTICLE 8.- (1) The Administration in charge of telecommunications shall ensure the establishment of a deployment schedule so that all communities with more than two hundred (200) inhabitants have a public access point for electronic communication services.
(2) Public access points for electronic communication services shall be installed in such a way that no person is obliged to walk more than three (03) kilometres to access them.

ARTICLE 9.- Emergency call services shall be accessible, free of charge and without the need for any means of payment, from any terminal equipment connected to an electronic communications network open to the public, including public access points.

ARTICLE 10.- (1) Operators of electronic communications networks shall be obliged to forward free of charge to the corresponding emergency call centre closest to the caller, taking into account the information transmitted by the public services concerned, emergency calls originating from their networks, including public access points, to public bodies responsible for:
- the safeguarding of human life;
- police and gendarmerie interventions;
- fire-fighting;
- social emergency;
- civil protection.

(2) Operators must be able to identify, at the request of the competent authorities, the origin of calls to these bodies.
(3) The costs incurred by the operators for the free routing of emergency calls shall not be subject to any compensation.

ARTICLE 11.- Under the authority of the competent services and the Board, the operators of electronic communications networks shall draw up plans and put in place arrangements for the rapid provision or restoration of electronic communications services adapted to emergency situations.

ARTICLE 12.- The Board shall ensure that:
- a universal directory containing all the contact details of electronic communications subscribers, whether printed or electronic, is made available to users;
- a free information service covering all listed subscribers is accessible to all users, from any fixed or mobile terminal equipment, including users of public access points;
- the companies responsible for providing the services described above shall apply the principles of non-discrimination to the processing and presentation of the information provided by the operators.

ARTICLE 13.- (1) Special measures in favour of disabled users and users with special social needs shall be taken in order to allow them equivalent access to electronic communications services at affordable tariffs.
(2) The special measures referred to in paragraph (1) above may include the development of tailored service offerings and the application of special tariffs.

ARTICLE 14.- (1) The production and publication of the universal directory shall be carried out by competitive bidding at the discretion of the Board, in accordance with the regulations in force.
(2) The Board shall determine the conditions for the editing, production, publication and distribution of the universal subscriber directory. These conditions shall relate in particular to:
- the methods of collecting the necessary data from operators;
- the data formats;
- the periodicity of production;
- typography;
- binding;
- advertising inserts;
- security;
- quantities;
- the conditions for making the directory available to the public.

ARTICLE 15.- (1) The constitution and publication of the universal directory shall be carried out in compliance with the applicable legislative and regulatory provisions on the protection of personal data relating to privacy.
(2) Every person has the right:
- to request that his or her details should not be included in the universal directory, subject to payment of the relevant charges;
- to object to the inclusion of any personal data, insofar as the removal of such data is compatible with the requirements of the directory and the information services.

ARTICLE 16.- Within the universal service coverage area allocated to them, the operators of electronic communications networks open to the public shall apply the same tariff bases, without discrimination related to the geographical location of customers. However, the tariffs may provide for:
- the payment of a supplement to the basic tariff for connection to the nearest network if the distance to the termination point of the connection line is greater than a limit set by the specifications. This supplement shall be calculated on the basis of an estimate approved by the Board;
- the implementation of tariff reductions linked to the volume of consumption, provided that these reductions are applied on the basis of conditions published by the operator concerned and in a non-discriminatory manner.

CHAPTER III
DEVELOPMENT OF ELECTRONIC COMMUNICATIONS

ARTICLE 17.- The development of electronic communications shall be aimed in particular at:
- serving rural areas not covered by the operators' specifications;

- reducing the deficit in the coverage of the national territory by means of electronic communications eligible for subsidy;
- readjusting the frequencies spectrum;
- supporting research, training and standardisation in the field of electronic communications;
- supporting the development of underprivileged sectors of the national economy through the use of electronic communications;
- supporting the development of emergency electronic communications.

SECTION I

SERVING RURAL AREAS AND REDUCING THE DEFICIT IN THE COVERAGE OF THE NATIONAL TERRITORY BY ELECTRONIC COMMUNICATIONS MEANS

ARTICLE 18.- Servicing rural areas shall consist in extending the coverage of operators' networks, setting up autonomous networks, public access points or community telecentres.

ARTICLE 19.- (1) The provision of services to rural areas not covered by the operators' specifications shall be carried out by the operators selected under the conditions provided for in this Decree.
(2) However, prior to the implementation of the selection procedure, one or more operators may be offered to extend their service area to cover the areas not covered.
(3) If no operator agrees to the proposal made in paragraph (1) above, or if it requires compensation to do so, service shall be provided in accordance with the provisions of this Decree.

ARTICLE 20.- (1) The proposal for the servicing of a rural area shall be sent by the Board to all the operators concerned, together with a technical file.
(2) Operators shall have a period of three (3) months from receipt of the notification to respond. Failure to respond within this period shall be considered as a refusal to serve the area concerned.

ARTICLE 21.- Where an electronic communications network operator agrees to extend its service area, it shall communicate to the Board the provisional timetable for the works and the opening of the service in the new area.

ARTICLE 22.- (1) In a bid to identify the needs to be met within the framework of the development of electronic communications, the Board shall keep up to date the data relating to the level of coverage of the councils.
(2) By latest 30 March each year, the Board shall draw up , a list of councils that do not benefit from access to electronic communications services.

ARTICLE 23:- (1) Councils and groups of councils wishing to benefit from access may submit a request to the Minister responsible for telecommunications.
(2) The request referred to in paragraph (1) above shall indicate, where appropriate, the financial or other contributions that the council or group of councils undertakes to make with a view to providing the service.

ARTICLE 24.- (1) The Board shall, as necessary, carry out technical and economic studies to assess the investment and operating costs of new services, taking into account the possible technological choices.
(2) The studies referred to in paragraph (1) above shall include:
- an assessment of the volume and nature of application;
- an assessment of the most economical technologies;
- a management of investment and operating costs and financial projections covering a period of at least five (05) years and taking into account the rates of return on capital in force at the time of the study;
- an evaluation of the amount of the initial subsidy that may be necessary to ensure the long-term financial balance of the service project.

ARTICLE 25.- (1) Within the framework of the study provided for in Article 24 above, the Board shall ask the operators, in particular, to provide the data needed to determine the estimated cost of serving the target areas.
(2) Operators shall be required to communicate to the Board the information mentioned in paragraph 1

above, indicating where appropriate, any information of a confidential nature which should therefore not be published.

(3) The Board shall prepare the tender documents and submit them to the Minister responsible for telecommunications for the selection of the service provider.

SECTION III

REORGANISATION OF THE FREQUENCY SPECTRUM

ARTICLE 26.- (1) Operations relating to the reorganisation of the frequency spectrum shall include:

- technical and economic studies to assess the impact of decisions to allocate or withdraw a frequency band to radio services;
- the financing, where applicable, of the transfer of State radio operations generated by decisions to allocate or withdraw frequency bands to radio services;
- the financing of network migration operations of operators entrusted with public service missions when circumstances so require.

(2) The Board shall carry out the operations referred to in paragraph (1) above.

SECTION IV

SUPPORT FOR RESEARCH, TRAINING AND STANDARDIZATION IN THE FIELD OF ELECTRONIC COMMUNICATIONS

ARTICLE 27.- Operations to support research, training and standardisation in the field of electronic communications shall include:

- funding research into innovative technical and technological solutions to improve access to electronic communications services for the underprivileged;
- support for capacity building initiatives in the implementation of universal service;
- support for initiatives to develop, disseminate and appropriate national electronic communications standards.

SECTION V

SUPPORT FOR THE DEVELOPMENT OF UNDERSERVED SECTORS OF THE NATIONAL ECONOMY THROUGH THE USE OF ELECTRONIC COMMUNICATIONS

ARTICLE 28.- Operations to support the development of underserved sectors of the national economy through the use of electronic communications shall focus on:

- the support for initiatives to improve access for the said sectors;
- the support for the development of content, applications and services adapted to the needs of these sectors.

SECTION VI

SUPPORT FOR THE DEVELOPMENT OF EMERGENCY ELECTRONIC COMMUNICATIONS

ARTICLE 29.- Support for the development of emergency electronic communications shall relate especially to the establishment of emergency telecommunications infrastructures and those dedicated to distress and safety at sea.

CHAPTER III

PROCEDURE AND CONDITIONS FOR THE FINANCING OF THE UNIVERSAL SERVICE AND THE DEVELOPMENT OF ELECTRONIC COMMUNICATIONS

ARTICLE 30.- The financing of the universal service and the development of electronic communications provided for in this decree is notably ensured by the resources of the Special Fund for Telecommunications, hereinafter referred to as the "SFT".

ARTICLE 31.- (1) The universal service and electronic communications development projects likely to be financed by the SFT are included in its budget in accordance with the regulations in force.
(2) The selection of the service provider for the execution of the projects referred to in paragraph (1) above shall be made in accordance with the competitive bidding procedure, where applicable.

ARTICLE 32.- (1) For projects to serve localities in terms of coverage by the operators' network or the setting up of public access points, the call for competition shall be restricted to operators under the concession regime.
(2) The tender documents for the projects referred to in paragraph (1) above shall be prepared by the Board, which shall forward them to the Minister in charge of telecommunications.
(3) The operator who is awarded the contract is subject to all the specific requirements of the contract. The localities and public access points shall form an integral part of its concession.

CHAPTER IV
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 33.- Specific texts issued by the Minister in charge of telecommunications shall specify, as necessary, the modalities for the implementation of this Decree.

ARTICLE 34.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2013/0399/PM OF 27 FEBRUARY 2013
To lay down the modalities for protecting consumers of electronic communication services.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2006/018 of 29 December 2006 to govern advertisement in Cameroon;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2012/1318/PM of 22 May 2012 to lay down conditions and modalities to grant authorisation to carry out electronic certification activity;
Mindful of Decree No. 2012/1638/PM of 14 June 2012 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree lays down the conditions for protecting consumers of electronic communications services.
(2) It guarantees the consumers referred to in paragraph (1) above the rights relating to privacy, quality and permanence of services, information and processing of personal data.

ARTICLE 2.- To implement this decree, the following definitions are accepted:

1. **Confidentiality**: the act of keeping private information and transactions in order to pre-empt the unauthorised disclosure of information to unauthorised recipients. This can give room to an illegal, intentional or accidental reading, hearing and copy during their storage, process or transfer;
2. **Consent**: a free, specific expression of will by a user or subscriber after he or she has received clear and complete information;
3. **Consumer**: a natural or legal person who uses electronic communications services to meet his or her own needs and/or those of his or her dependants and not for resale or processing, or any person who benefits from the provision of publicly available electronic communications services;

4. **Operator**: natural or legal person operating an electronic communications network open to the public or providing an electronic communications service to the public;
5. **Canvassing**: sending of any message intended to promote, directly or indirectly, goods, services or the image of a person selling goods or providing services;
6. **Electronic communications network open to the public**: a set of electronic communications networks established or used for public purposes.

ARTICLE 3.- (1) Network operators, electronic communications service providers and electronic certification authorities shall respect, in their contractual relations with the beneficiaries of electronic communications services, the principles of protection, satisfaction, equity and participation.
(2) They shall be bound by duty to inform, warn and advise their subscribers.

ARTICLE 4.- (1) The consumer of electronic communications services shall be entitled to:
- the protection of privacy, health, safety and the environment in the consumption of electronic communications technologies, goods and services;
- quality and permanence of service;
- information from the operator or service providers;
- full compensation for damages suffered by operators and providers of electronic communications services;
- the freedom to form autonomous and independent associations or organisations in order to carry out or participate in the promotion and defence of consumer rights.

(2) He/she shall also have the right to:
- access to electronic communication services, with standards of quality and regularity inherent to its nature, throughout the national territory;
- freedom to choose his/her service provider;
- non-discrimination in terms of access and conditions of use of the service;
- adequate information concerning the conditions of supply of services, tariffs and other charges relating thereto;
- inviolability and secrecy of his/her communications, except as provided for by the regulations in force;
- at his/her request, the non-disclosure of his/her access identifier;
- the non-suspension of the service provided, except for non-compliance with the clauses of his/her contract;
- prior information on the suspension clauses of the contract;
- answers from the service provider regarding his complaints;
- compensation for damages resulting from the breach of his rights.

CHAPTER II
PROTECTION OF THE PRIVACY OF CONSUMERS

ARTICLE 5.- (1) The network operators and electronic communications service providers, electronic certification authorities shall guarantee the rights of consumers of electronic communications services.
(2) The rights referred to in paragraph (1) above shall relate to:
- confidentiality and respect for the principle of inviolability and secrecy of messages transmitted through their electronic communications networks;
- the protection of consumers' personal data;
- the security of information conveyed through electronic communication networks and information systems.

ARTICLE 6.- Operators of networks open to the public are required to provide consumers with the possibility of masking their numbers by a simple means and free of charge.

ARTICLE 7.- (1) Network operators and electronic communication service providers shall ensure that electronic communications are not sent for canvassing purposes without the prior consent of consumers.
(2) Network operators and electronic communications service providers shall ensure that electronic messages for canvassing purposes are not sent through their networks, concealing the identity and contact details of the sender.

ARTICLE 8.- (1) Direct marketing by electronic communications shall be permitted if the recipient's contact details have been collected directly from him/her in the course of the provision of services.
(2) The canvassing referred to in paragraph (1) above concerns products or services provided by the same service provider. However, the canvasser shall be obliged to set up a mechanism enabling the recipient to terminate the canvassing in a simple manner and free of charge.

ARTICLE 9.- (1) Operators and providers of electronic communications services shall be obliged to set up a technical device for the control of malicious or unwanted electronic communications and to publicise its existence by any means.
(2) Network operators and providers of electronic communications services shall offer their subscribers systems for blocking malicious or unwanted electronic communications.

ARTICLE 10.- (1) Entry in a directory of subscribers as well as the verification, correction and deletion of personal data shall be free of charge, and subscribers shall not be required to contribute to the costs of preparing and publishing the directory.
(2) Operators and providers of electronic communications services shall guarantee the principle of refusal to be included in the directory for subscribers who so request.
(3) Natural persons who refuse to be included in the subscriber directory shall submit a written request to their operator or electronic communications service provider. An additional charge shall be applied for this purpose in accordance with the tariff in force on the subject.

ARTICLE 11.- Operators and providers of electronic communications services shall guarantee the inviolability of electronic communications. To this end, they shall put in place a technical device preventing any unauthorized person from listening to, intercepting or storing communications and traffic data without the prior consent of the consumers concerned.

CHAPTER III
CONSUMERS' RIGHT TO INFORMATION

ARTICLE 12.- (1) Operators, providers of electronic communications services and electronic certification authorities shall regularly publish and make available to consumers clear, transparent and updated information on all the services offered, on the costs of electronic communications and on the general conditions for the provision of services, before, during or after the conclusion of the contract.
(2) The contract referred to in paragraph (1) above shall include the following information:
- the business address, telephone number, fax number and e-mail address of the operator or service provider, where available;
- the geographical address of the operator's or service provider's commercial headquarters if different from the address of establishment;
- the service(s) provided and the time taken to provide them;
- details of prices and tariffs charged and the means by which up-to-date information on all applicable tariffs and maintenance charges may be obtained;
- the types of maintenance services offered or after-sales services offered, if any;
- the duration of the contract, the conditions for renewal and termination of the services and the contract;
- the compensation and reimbursement formulae, if any, applicable in the event that the quality levels of the services provided for in the contract are not achieved;
- the modalities for launching procedures for the settlement of disputes;
- the conditions under which the subscriber's consent must be given prior to any contractual modification;
- the conditions under which the subscription contract may be terminated;
- information on the possible limitations of contractual liability.

ARTICLE 13.- Operators, providers of electronic communications services and electronic certification authorities shall provide their subscribers with invoices that mention, in a transparent manner and in the official Cameroonian languages, accurate information on all charges for the billing period concerned, the due date for payment, outstanding balances, related administrative charges, and, where applicable, exact details of all amounts payable, as well as the due date for payment.

CHAPTER IV
QUALITY AND CONTINUITY OF ELECTRONIC COMMUNICATIONS SERVICES

ARTICLE 14.- Network operators, electronic communications service providers and electronic certification authorities shall provide consumers with quality services at all times.

ARTICLE 15.- (1) The Board shall continuously monitor the quality of services offered to consumers by network operators, electronic communications service providers and electronic certification authorities.
(2) The consumer shall have the right to claim compensation for any damage resulting from the failure of the operator to comply with the contractual terms for the provision of an electronic communications service.

ARTICLE 16.- (1) Network operators, electronic communications service providers and certification authorities shall take all necessary measures to ensure the continuity of services offered to consumers in accordance with the provisions of their specifications.
(2) The Board shall ensure that the services referred to in paragraph (1) above are not interrupted, except in cases of force majeure.
(3) Where a network operator or service provider intends to interrupt a service, it shall be obliged to inform consumers of the interruption at least forty-eight (48) hours in advance by any means in writing. The operator or service provider shall inform the Board within the same period.
(4) The interruption referred to in paragraph (2) above may not exceed one hundred and eighty (180) minutes. Beyond this period, the Board shall require the operator or service provider to take general remedial action, without prejudice to any individual action by consumers who have suffered particular damage.

ARTICLE 17.- Network operators and electronic communications service providers shall take all appropriate measures to guarantee their subscribers uninterrupted access to emergency services.

ARTICLE 18.- Operators of electronic communications networks and providers of electronic communications networks open to the public are prohibited from restricting or refusing the connection of electronic communications terminal equipment approved by the Board, except where such restriction or refusal is requested by the State services for the purposes of national defence or public security.

CHAPTER V
SETTLEMENT OF DISPUTES BETWEEN OPERATORS AND CONSUMERS

ARTICLE 19.- (1) The Board shall be competent to hear, before any court action is taken, disputes between communication network operators, service providers and certification authorities and consumers.
(2) The Board may, on its own initiative or at the request of one of the parties, attempt to conciliate in order to find an amicable solution to the dispute. It may take such measures as it considers appropriate for this purpose, including, where appropriate, the assistance of internal or external experts.

ARTICLE 20.- In the event of failure of the conciliation procedure initiated by the Board, the procedure followed shall be that provided for by the provisions of the above-mentioned Law No. 2010/013 of 21 December 2010 relating to the settlement of disputes between operators.

CHAPTER VI
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 21.- The Board may, either ex officio or at the request of a professional organization, an approved user association or a natural or legal person, sanction, after having observed or verified, the failures of operators and providers of electronic communications services, in accordance with the provisions of Article 66 et seq. of the aforementioned law No. 2010/013 of 21 December 2010.

ARTICLE 22.- (1) The Board shall consult consumers, manufacturers and electronic communications companies on any issue related to consumer rights where these have an impact on the market.

(2) The parties referred to in paragraph (1) above may, in accordance with the Board's guidelines, set up mechanisms to improve the general quality of services, in particular by drawing up codes of conduct and operating standards.

ARTICLE 23.- Specific texts issued by the Minister in charge of telecommunications shall specify, as necessary, the modalities for the application of this Decree.

ARTICLE 24.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2013/0400/PM OF 27 FEBRUARY 2013
To lay down prior statement and authorisation modalities, as well as conditions to obtain approval certificate to provide, export, import or use cryptographic means or services.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Law No. 2010/021 of 21 December 2010 to govern Electronic Commerce in Cameroon;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, Head of Government, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree lays down prior statement and authorisation modalities, as well as conditions to obtain approval certificate to provide, export, import or use cryptographic means or services.
(2) It is issued pursuant to the provisions of Article 58 of Law No. 2010/013 of 21 December 2010 and Article 7 paragraph (2) of Law No. 2010/012 of 21 December 2010 mentioned above.

ARTICLE 2.- To implement this decree, the following definitions are applied:
1. **Authentication**: procedure whose purpose is to ensure the identity of a person in order to control access to a software or an information system or to verify the origin of an information;
2. **Cryptanalysis**: all the means of analysing previously encrypted information in order to decrypt it;
3. **Cryptography**: a set of services implementing the principles, means and methods of transforming data in order to hide their semantic content, establish their authenticity, prevent their modification from going unnoticed, prevent their repudiation and prevent their unauthorised use;
4. **Cryptology**: science relating to the protection and security of information, in particular for the confidentiality, authentication, integrity and non-repudiation of transmitted data. It consists of cryptanalysis and cryptography;
5. **Integrity**: security criteria that determines the state of an electronic communication network, an information system or any terminal equipment which remained intact and ensure that resources are not al-

tered (modified or destroyed) intentionally or accidentally, so that it ensures their accuracy, reliability and sustainability.

CHAPTER II
PRIOR DECLARATION

ARTICLE 3.- The supply, import, marketing, use and export of cryptographic means or services associated with the transmission of information are subject to a prior declaration. These include:
- means or services whose sole purpose is to authenticate a communication or to ensure the integrity of the message transmitted;
- cryptographic means which are imported by training institutions to meet their training needs.

ARTICLE 4.- (1) The activities related to the security of electronic communications referred to in Article 3 above shall be carried out freely, subject to prior declaration to the National Agency for Information and Communication Technologies, hereinafter referred to as "NAICT".

(2) The declaration file submitted to the NAICT in five (05) copies, shall include the following documents:
- the application form provided by NAICT, stamped at the current rate, duly completed and signed;
- the name or corporate name and full address of the applicant;
- the information relating to the legal entity owning the equipment;
- the technical characteristics and detailed description of the equipment;
- the technical documents of the cryptographic means and/or description of the service;
- a document specifying the intended field of use of the means or service as well as the categories of users for whom the cryptographic means or service is intended;
- A receipt of payment of the fees for studying the file issued by the NAICT.

ARTICLE 5.- Within a period of thirty (30) days from the date of submission of the prior declaration file, the General Manager of NAICT shall issue a prior declaration receipt. After this period, the application shall be deemed to have been accepted.

CHAPTER III
PRIOR AUTHORISATION

ARTICLE 6.- The supply, import, marketing, use and export of cryptographic means or services associated with the transmission of information are subject to prior authorisation, when these means are imported for commercial purposes by service providers who do not hold an operating licence in the field of electronic communications or computer security.

ARTICLE 7.- The activities related to the security of electronic communications referred to in Article 6 above shall be carried out freely, subject to the prior authorization of the Minister in charge of telecommunications.

ARTICLE 8.- (1) The natural or legal person requesting the authorisation referred to in Article 7 above shall submit an application to NAICT against a receipt.

(2) The application referred to in paragraph (1) above shall comprise an administrative file and a technical file.

a) The administrative file shall include the following items:

- **Concerning natural person**:
  - a stamped application at the current rate addressed to NAICT;
  - a copy of the taxpayer's card;
  - a copy of the approval issued by the competent authority of the country of origin of the cryptographic equipment concerned, if applicable;
  - a receipt of payment of the fees for studying the file issued by the NAICT.

- **With regard to legal persons**:
  - a stamped application at the current rate addressed to NAICT;
  - a certified copy of the certificate of registration in the Trade and Personal Property Credit Register, if applicable;

- a certified true copy of the taxpayer's card;
- a tax clearance certificate for corporate bodies established in Cameroon, if necessary;
- a receipt of payment of the fees for studying the file issued by the NAICT.

b) The technical file produced in four (04) copies shall comprise the following documents:

- an application form for authorisation, the model of which is provided by NAICT, duly completed and signed by the applicant;
- an indication of the field of use;
- a declaration of conformity from the manufacturer of the equipment showing all the standards used for the manufacture of the equipment concerned;
- copies of test reports relating to electromagnetic compatibility and safety;
- the technical characteristics and detailed description of the equipment;
- the technical documents of the cryptographic means and/or description of the service;
- a document specifying the intended field of use of the means or service as well as the categories of users for whom the cryptographic means and/or service are/is intended;
- three (03) samples of the cryptographic equipment for which authorisation is requested, together with the user manual;
- the private agreement necessary for the decryption of the data encrypted by the said means.

ARTICLE 9.- (1) NAICT may request the applicant to install the cryptographic equipment for testing purposes.
(2) The tests referred to in paragraph (1) above may be entrusted to a cryptographic equipment test and measurement laboratory approved by the Telecommunications Regulatory Board, abbreviated "TRB", hereinafter referred to as "the TRB".

ARTICLE 10.- (1) The complete file submitted to NAICT shall be transmitted to the Commission provided for in Article 11 below for examination and opinion.
(2) Where the opinion of the Commission is favourable, the General Manager of NAICT shall forward the file together with the draft authorisation, as well as his/her reasoned opinion to the Minister in charge of telecommunications, for signature.
(3) In the event of an unfavourable opinion from the Commission, NAICT shall notify the applicant of the reasoned refusal.

ARTICLE 11.- (1) A Commission shall be set up within NAICT to issue opinions on applications for authorisation to import, export, market and/or use cryptographic equipment.
(2) The organizational and operational procedures of the Commission provided for in paragraph (1) above shall be determined by a text issued by the Minister in charge of telecommunications.

ARTICLE 12.- (1) The authorisation granted for the import, export, marketing or use of cryptographic equipment shall be issued for a renewable period of five (05) years.
(2) Six (06) months at least before the expiry of the period provided for in paragraph (1) above, the holder of the authorisation shall send NAICT a request for renewal of its authorisation.

ARTICLE 13.- The modification and renewal of the authorisation shall be carried out under the same conditions as those which prevailed when it was obtained.

CHAPTER IV
SUSPENSION AND WITHDRAWAL OF THE AUTHORIZATION

ARTICLE 14.- (1) The authorisation may be suspended by the General Manager of NAICT after a formal notice has been given by any means in writing and has not been followed up within fifteen (15) days, for failure to comply with the regulations in force.
(2) If the holder of the authorisation remedies the shortcomings noted in the formal notice, NAICT shall lift the suspension after a verification check.

ARTICLE 15.- (1) If at the end of the suspension period referred to in Article 14 above, the holder of the licence fails to comply with the formal notice, the General Manager of NAICT shall propose to the Minister in charge

of telecommunications the withdrawal of the licence. The withdrawal decision shall be notified to the licence holder within a maximum period of fifteen (15) days from the date of signature.

(2) Without prejudice to any criminal proceedings provided for by the laws and regulations in force, the Minister in charge of telecommunications may, ex officio, order the withdrawal of the authorisation when it has been obtained on the basis of false declarations or any other illegal means.

CHAPTER V
APPROVAL OF CRYPTOGRAPHIC MEANS

ARTICLE 16.- (1) The natural or legal person wishing to have a cryptographic means approved for the issuance of qualified electronic certificates, for making public keys available, for carrying out security audits, for publishing security software or for any other security service, shall submit an application to NAICT against receipt.
(2) The application referred to in paragraph (1) above shall comprise an administrative file and a technical file.
a) The administrative file shall include the following items:

- **Concerning natural persons**:
  - a stamped application at the current rate addressed to NAICT;
  - a copy of the taxpayer's card;
  - a copy of the approval issued by the competent authority of the country of origin of the cryptographic equipment concerned, if applicable;
  - a receipt of payment of the fees for studying the file issued by NAICT.

- **With regard to legal persons**:
  - a stamped application at the current rate addressed to NAICT;
  - a certified copy of the certificate of registration in the Trade and Personal Property Credit Register, if applicable;
  - a certified true copy of the taxpayer's card;
  - a tax clearance certificate for corporate bodies established in Cameroon, if necessary;
  - a receipt of payment of the fees for studying the file issued by NAICT.

b) The technical file produced in four (04) copies shall comprise the following documents:

- an application form for authorisation, the model of which is provided by NAICT, duly completed and signed by the applicant;
- an indication of the field of use;
- a declaration of conformity from the manufacturer of the equipment showing all the standards used for the manufacture of the equipment concerned;
- copies of test reports relating to electromagnetic compatibility and safety;
- the technical documents of the cryptographic means and/or description of the service;
- a document specifying the intended field of use of the means or service as well as the categories of users for whom the cryptographic means and/or service are/is intended;
- three (03) samples of the cryptographic equipment for which authorisation is requested, together with their user manual;
- the private agreement necessary for the decryption of the data encrypted by the said means.

ARTICLE 17.- (1) NAICT may request the applicant to install the cryptographic equipment for testing purposes.
(2) The tests referred to in paragraph (1) above may be entrusted to a cryptographic equipment test and measurement laboratory approved by the TRB.

ARTICLE 18.- (1) The complete file shall be submitted to NAICT for examination and issuance of the certificate.
(2) The General Manager of NAICT may request the opinion of the TRB.
(3) NAICT shall notify the applicant of the reasoned refusal of approval.

ARTICLE 19.- (1) The approval certificate granted with a view to importing, exporting, marketing or using cryptographic equipment is issued for a renewable period of three (03) years.
(2) At least six (06) months before the expiry of the period provided for in paragraph (1) above, the holder

of the certificate shall send NAICT a request for renewal of his/her certificate.

ARTICLE 20.- The modification and renewal of the approval certificate shall be carried out under the same conditions as those which prevailed when it was obtained.

CHAPTER VI
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 21.- The holders of certificates referred to in the provisions of this decree are responsible for any damage caused to persons during the use of their equipment.

ARTICLE 22.- The certificate of approval for the import, export, marketing or use of cryptographic equipment does not constitute a legal instrument which authorises the provision of electronic communication services or the use of radio frequencies.

ARTICLE 23.- The services relating to the prior declaration and authorization as well as the issuance of a certificate of approval provided for in this decree shall give rise to the collection of fees, the amounts and methods of payment of which shall be determined by a joint order of the Minister of Finance and the Minister of Telecommunications.

ARTICLE 24.- Specific texts issued by the Minister in charge of telecommunications shall specify, as necessary, the modalities for the implementation of this Decree.

ARTICLE 25.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2013/0401/PM OF 27 FEBRUARY 2013 To lay down the distribution scheme for the performance bonus under the penalties for the operators and carriers of electronic communications networks.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2010/012 of 21 December 2010 relating to cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010, to govern electronic communications in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992, to specify the duties of the Prime Minister, as amended and supplemented by. Decree No. 95/145 - bis of 4 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011, to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 to set out the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree shall lay down the distribution scheme for the performance bonus under the penalties from the operators and carriers of electronic communications networks.
(2) It shall apply pursuant the provisions of Article 69 of the aforementioned Law No. 2010/013/PM of 21 December 2010.
(3) The penalties referred to in Paragraph (1) above shall be collected by the Telecommunications Regulatory Board, hereinafter referred to as "TRB".

ARTICLE 2.- A performance bonus deducted from the resources recovered under the penalties shall be granted to staff in charge of the regulation and staff in charge of regulatory matters of the telecommunications sector and information and communication technologies.

CHAPTER II
PROCEDURES FOR PENALTY ALLOCATION

ARTICLE 3.- The distribution scheme for the penalties referred to in Article 1 above shall be set as follows:
- **forty percent (40%)** for the Telecommunications Regulatory Board;
- **sixty percent (60%)** for the performance bonus for staff in charge of regulation and staff in charge of regulatory matters of the telecommunications sector and Information and Communication Technologies.

ARTICLE 4.- The rate of sixty percent (60%) referred to in Article 3 above shall be distributed as follows:
- **fifty percent (50%)** for staff in charge of the regulation;

- **forty percent (40%)** for staff of the Telecommunications Regulatory Board;
- **ten percent (10%)** for staff of the National Agency for Information and Communication Technologies.

CHAPTER IV

MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 5.- The Minister in charge of Telecommunications, the General Manager of the Telecommunications Regulatory Board and the General Manager of the National Agency for Information and Communication Technologies shall, each in his/her respective capacity, implement this decree.

ARTICLE 6.- This decree, which shall repeal any previous and contrary provisions, shall be registered and published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2013/0402/PM OF 27 FEBRUARY 2013 To lay down the management modalities of naming and addressing resources.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998, on competition;
Mindful of Law No. 2001/010 of 23 July 2001, to institute the minimum service in the Telecommunications sector;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010, to govern electronic communications in Cameroon;
Mindful of Framework Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, as amended and supplemented by. Decree No. 95/145 - bis of 4 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/180 of 10 April 2012 to set out the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This Decree shall lay down the management modalities of naming and addressing resources.

ARTICLE 2.- For the implementation of this decree, the following definitions shall apply to:
1. IP address or addressing resource: a unique identification number assigned to each device or equipment connected to a computer network that uses the Internet Protocol (IP) for communicating;
2. Registrar of ".cm": legal person authorised to serve as a registrar of domain names, ".cm"
3. LIR (Local Internet Registry): legal person authorised to serve as a manager of an IP address.
4. Domain name or naming resource: an identifier having a set of properties that permit computers to communicate through IP addresses.

CHAPTER II
ADDRESSING RESOURCE MANAGEMENT

SECTION I
AWARDING OF AN APPROVAL TO MANAGE AN IP ADDRESS

ARTICLE 3.- (1) The exercise of the Local Internet Registry (LIR) activity shall be reserved to legal persons under Cameroonian law. It shall be subject to the grant of an approval issued by the General Manager of the National

Agency for Information and Communication Technologies, abbreviated "NAICT", hereinafter referred to as "NAICT".
(2) The approval referred to in the above paragraph (1) shall entitle the management of IP addressing resources granted by NAICT or the resources obtained from entities installed outside the national territory.

ARTICLE 4.- The approval application file submitted in duplicate, against receipt to NAICT shall include:
- one application stamped at the current rate, bearing the name or the corporate and full address of the applicant;
- a solemn commitment to respect the IP address management charter;
- proof of addressing resources held, if applicable;
- the company's articles of association;
- a dispatching of subscription deed to the Trade and Personal Property;
- a certified true copy of the National Identity Card or any other equivalent document of the applicant or company's representative;
- a duly completed technical sheet, the specimen of which is provided by NAICT;
- the certificate of residence issued by the tax authority;
- one payment receipt of the costs of the file study issued by the NAICT Accounting Officer.

ARTICLE 5.- (1) NAICT shall have a period of thirty (30) days to process the approval file from the date of receipt.
(2) NAICT may ask the applicant to provide additional information. In this case, the period shall start from the date of receipt of the information requested.
(3) Any rejection of an application for approval is substantiated and notified to the applicant by any means leaving a written record.
(4) After the deadline provided for in paragraph (1) above, the approval shall be deemed to be granted.

ARTICLE 6.- (1) The approval shall be granted for a period of five (5) years renewable.
(2) Six months at least before the expiry period of the current approval, the holder of the approval shall submit an application for the renewal of the approval to NAICT.
(3) The application for renewal shall be subject to the same conditions form and duration as for the initial application.

SECTION II
OPERATING CONDITIONS FOR THE APPROVAL OF AN IP ADDRESS MANAGER

ARTICLE 7.- The general operational conditions for approval to manage an IP address are contained in the IP address management charter attached to the approval. The charter shall relate in particular to:
- the general rules for activating, monitoring and deactivating IP addresses;
- conditions for the annual technical controls;
- specific staff management procedures;
- the annual costs for the allocation of IP addresses to be paid to NAICT.

ARTICLE 8.- Without prejudice to possible criminal proceedings, an IP address may be deactivated or blocked by the holder of the approval at the request of NAICT, in cases involving cybercrimes.

ARTICLE 9.- NAICT shall monitor permanently the technical operating conditions of the approval.

ARTICLE 10.- (1) In the event of non-compliance with the regulations in force or non-compliance with the IP address management charter, NAICT shall formally notify the offending LIR to comply with these regulations and this charter within the time limit set in said formal notice.
(2) If the offending LIR does not comply with the formal notice provided for in paragraph (1) above, NAICT imposes against the offender one of the following sanctions:
- suspension of the approval for a maximum period of one (01) month;
- reduction of one (01) year on the term of the approval;
- withdrawal of the approval.

(3) The decision to suspend or withdraw shall be notified without delay to the holder of the approval by any means leaving a written record.

CHAPTER III
MANAGEMENT OF NAMING RESOURCES OF THE ".CM"

SECTION I
PROCEDURES FOR THE GRANTING OF THE APPROVAL THE ".CM" REGISTRY

ARTICLE 11.- (1) The exercise of the activity of the ".cm" Registry shall be reserved to legal persons under Cameroonian law. It shall be subject to the grant of an approval issued by the General Manager of NAICT.
(2) The approval referred to in paragraph (1) above shall entitle to the management of domain names.

ARTICLE 12.- The approval application file submitted in duplicate, against receipt to NAICT shall include:
- one application stamped at the current rate, bearing the name or the corporate and full address of the applicant;
- a solemn commitment to respect the IP address naming charter;
- the company's articles of association;
- a dispatching of subscription deed to the Trade and Personal Property;
- a certified true copy of the National Identity Card or any other equivalent document of the applicant or company's representative;
- a duly completed technical sheet, the specimen of which is provided by NAICT;
- the certificate of residence issued by the tax authority;
- a payment receipt of the costs of the file study issued by the NAICT Accounting Officer.

ARTICLE 13.- (1) NAICT shall have a period of thirty (30) days to process the approval file from the date of receipt of the application.
(2) NAICT may ask the applicant to provide additional information. In this case, the period shall start from the date of receipt of the information requested.
(3) Any rejection of an application for approval shall be substantiated and notified to the applicant by any means leaving a written record.
(4) After the deadline provided for in paragraph (1) above, the approval shall be deemed to be granted.

ARTICLE 14.- (1) The approval shall be granted for a period of three (3) years renewable.
(2) Six months at least before the expiry period of the current approval, the holder of the approval shall submit an application for the renewal of the approval to NAICT.
(3) The application for renewal shall be subject to the same conditions form and duration as for the initial application.

SECTION II
OPERATIONAL CONDITIONS OF THE APPROVAL THE ".CM" REGISTRY

ARTICLE 15.- The general operational conditions for approval of the ".cm" Registry are contained in the IP address naming charter attached to the approval. The charter shall relate in particular to:
- the general rules for the domain names registration, reservation, activation, deletion and transfer;
- the profile of the Registry staff;
- protection of intellectual property rights and trademarks;
- conflict resolution procedures.

ARTICLE 16.- The activity of the registry of ".cm" shall be subject to the annual registration and renewal fees to be paid to NAICT.

ARTICLE 17:- Without prejudice to possible criminal proceedings, a domain name may be deactivated or blocked by the holder of the approval at the request of NAICT, in cases involving cybercrimes.

ARTICLE 18.- NAICT shall monitor permanently the technical operating conditions of the approval.

ARTICLE 19.- (1) In the event of non-compliance with the regulations in force or non-compliance with the IP address naming charter, NAICT shall formally notify the offending Registry to comply with these regulations and this charter within the time limit set in the said formal notice.
(2) If the offending Registry does not comply with the formal notice provided for in paragraph (1) above, NAICT shall impose against the offender one of the following sanctions:
- suspension of the approval for a maximum period of one (01) month;
- reduction of one (01) year on the term of the approval;
- withdrawal of the approval.

(3) The decision to suspend or withdraw shall be notified without delay to the holder of the approval by any means leaving written record.

ARTICLE 20. (1) Throughout the management period of the approval or in the event of a withdrawal, the activities of the holder, regarding aspects non contrary to the regulation in force, shall be carried out by NAICT.
(2) The holder of the suspended or withdrawn approval and NAICT are bound to inform, by any means leaving written record, the beneficiaries of IP addresses and domain names.

CHAPTER IV
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 21.- Specific texts of the Minister in charge of telecommunications shall specify, when necessary, the implementing modalities of this Decree.

ARTICLE 22.- Persons carrying out one of the activities under this decree shall have a period of three (03) months from the date of signature to comply with it.

ARTICLE 23.- This Decree which repeals all previous provisions repugnant thereto shall be registered and published according to the procedure of urgency and inserted in the Official Gazette, in English and French./-

Yaoundé, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2013/0403/PM OF 27 FEBRUARY 2013
To lay down the maximum thresholds for public exposure to electromagnetic radiation.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No 98/013 of 14 July 1998, on competitiveness;
Mindful of Law No 2010/013 of 21 December 2010, to govern electronic communications in Cameroon;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, Head of Government, amended and supplemented by Decree No. 95/145-a of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011, to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No 2012/203 of 20 April 2012, on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012, to organise the Ministry of Posts and Telecommunications,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree shall lay down the maximum thresholds for public exposure to electromagnetic radiation by equipment used in electronic communications networks or any other equipment transmitting electromagnetic radiation.
(2) It shall apply pursuant the provisions of Article 57 of the aforementioned law No. 2010/013/PM of 21 December 2010.

ARTICLE 2.- This decree shall apply in particular to persons holding an authorization to install or operate an electronic communications network to operators of radio networks or installations as well as persons holding a radio frequency assignment agreement.

CHAPTER II
LEVEL OF PUBLIC EXPOSURE TO ELECTROMAGNETIC RADIATION

ARTICLE 3.- (1) The level of public exposure to electromagnetic fields from radio installations shall be less than the limit values set in paragraph 2.1 of the appendix to this decree.
(2) The limit values referred to in paragraph 1 above shall be deemed to be complied with if the level of electromagnetic fields emitted by the radio equipment and installations concerned is less than the reference levels under paragraph 2.2 of the annex to this decree.

ARTICLE 4.- (1) When several radio equipment or installations are the source of electromagnetic fields in a given place, the level of public exposure to total electromagnetic radiation emitted by all the equipment and installations concerned shall be less than limit values under paragraph 2.3.A of the appendix to this decree.

(2) The exposure level referred to in paragraph 1 above shall be satisfactory when the electromagnetic radiation generally emitted by the equipment and installations comply with the reference levels defined in paragraph 2.3.B of the annex to this decree.

CHAPTER III
OBLIGATIONS OF OPERATORS AND CARRIERS OF RADIO EQUIPMENT AND INSTALLATIONS

ARTICLE 5.- the operators and carriers of equipment and radio installations disclose, at the request of the Telecommunications Regulatory Board, hereinafter referred to as "the Board", elements justifying compliance with the limit values for public exposure to electromagnetic radiation, by the radio communication installations that they establish or operate.

ARTICLE 6.- The operators and carriers of radioelectric equipment and installations take actions so that within schools, nurseries or health facilities which are located within a radius of one hundred (100) meters of the equipment or the installation, the public exposure to the electromagnetic radiation emitted by these equipment or installations shall be as low as possible, while preserving the quality of the service offered.

CHAPTER IV
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 7.- (1) The Board shall ensure that the operators and carriers of radio equipment and installations comply with the limit values defined by this decree. As such, it carries out or has carried in effect on the spot checks by any organization fulfilling the quality requirements.

(2) The body referred to in paragraph (1) above must in particular fulfil the following quality requirements:
- be holder of an approval for electronic communications testing and measurement laboratories;
- have the equipment and human resources necessary for measuring the quantities relating to electromagnetic radiation under in this decree;
- not to be an operator of an electronic communications network;
- not participate directly in the manufacture, sale, installation or maintenance of equipment used in electronic communications networks or radio installations, nor represent the parties involved in these activities.

ARTICLE 8.- Persons exercising one of the activities under this decree shall have a period of six (06) months from the date of signature to comply with it.

ARTICLE 9.- Specific texts of the Minister in charge of telecommunications shall specify, when necessary, the implementing modalities of this Decree.

ARTICLE 10.- This Decree which repeals all previous provisions repugnant thereto shall be registered and published according to the procedure of urgency and inserted in the Official Gazette, in English and French.

Yaoundé, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

ANNEX TO DECREE NO. 2013/0403 /PM OF 27 FEBRUARY 2013 to set the maximum levels of exposure of the public to electromagnetic radiation.-

1. Definitions

1.1. Physical quantities

- **Contact current (Ic)**: between a person and an object is measured in amperes (A). A conducting object in an electric field can be charged by the same field;
- **Current density (J)**: is defined as the current flowing through a unit area perpendicular to the current flow in a conductive volume such as the human body or part of the body, expressed in amperes per square metre (A/m^2);
- **Electric field strength**: is a vector quantity (E) which corresponds to the force exerted on a charged particle regardless of its movement in space. It is expressed in volts per metre (V/m);
- **Magnetic field strength**: is a vector quantity (H) which, together with magnetic induction, defines a magnetic field at any point in space. It is expressed in amperes per metre (A/m);
- **Magnetic induction**: or magnetic flow density is a vector quantity (B) defined in terms of the force exerted on circulating charges and is expressed in teslas (T). In free space and in biological materials, magnetic induction and magnetic field strength can be used interchangeably according to the equivalence 1 A/m = $4\pi\ 10^{-7}$ T;
- **Power density (S)**: is the appropriate quantity used for microwaves when penetration into the body is low. It is the quotient of the incident radiated power perpendicular to a surface by the area of that surface. It is expressed in Watts per square metre (W/m^2);
- **Specific Absorption Rate (SAR)**: of the average energy over the whole body or any part of the body is defined as the rate at which energy is absorbed per unit mass of body tissue. It is expressed in Watts per kilogram (W/kg).

1.2. Basic restrictions and reference levels

- **Basic restrictions**: Restrictions on exposure to time-varying electric, magnetic and electromagnetic fields, which are based directly on proven health effects and biological considerations, are referred to as "basic restrictions". Based on the frequency of the field, the physical quantities used to specify these restrictions are magnetic flow density (B), current density (J), specific absorption rate (SAR) and power density (S);
- **Reference levels**: These levels are used to measure exposure in practice so as to determine whether the basic restrictions are likely to be exceeded. Some reference levels are derived from the relevant basic restrictions by means of measurements and/or calculation techniques and some others relate to perception and indirect adverse effects of exposure to electromagnetic fields. The derived quantities are electric field strength (E), magnetic field strength (H), magnetic induction (B), power density (S) and induced currents in the tips (IL). Quantities relevant to perception and other indirect effects are the contact currents (IC) and for pulsed fields the specific absorption (SA). In a particular exposure situation, measured or calculated values of these quantities can be compared with the appropriate reference level. Compliance with the reference level will ensure compliance with the corresponding basic restriction. If the measured value is higher than the reference level, this does not necessarily mean that the basic restriction is exceeded.

2. Public exposure limit values

2.1. Basic restrictions

According to the frequency, different physical quantities are used to define the basic restrictions for electromagnetic fields.

Table 1: Public exposure limit values

Frequency range	Magnetic flow density (mT)	Current density S (mA/m²) (effective value)	Average Localized SAR (head and trunk) (W/kg)	Localized SAR (head and trunk) (W/kg)	Localized SAR (members) (W/kg)	Power density S (W/m²)
0Hz	**40**					
> 0 - 1 Hz		8				
1 - 4 Hz		8/f				
4 - 1000 Hz		2				
1000 Hz - 100 kHz		f/500				
100 kHz - 10 MHz		f/500	0,08	2	4	
10 MHz - 10 GHz			0,08	2	4	
10 - 300 GHz						10

Notes

1. f is the frequency in Hz
2. due to the heterogeneity of the body, the average value of the current densities should be evaluated over a 1 cm² section perpendicular to the current direction.
3. For frequencies up to 100 KHz, peak current density values can be obtained by multiplying the effective value by the square root of 2 (~ 1.414).
4. All average SAR values should be measured over a six-minute time interval
5. The mass used to evaluate the localised average SAR is 10 g of contiguous tissue. The maximum SAR thus obtained should be the value used for exposure estimation. This 10 g of tissue must be a contiguous tissue mass with near-uniform electrical properties. By specifying that it must be a contiguous tissue mass, it is recognised that this concept can be used in computational dosimetry, but may cause difficulties for direct physical measurements. A simple cube-shaped mass of tissue may be used, provided that the calculated dosimetric quantities have more conservative values than those given in the recommendations.

2.2. Reference levels

Compliance with the reference levels ensures compliance with the basic restrictions.
The reference levels for limiting exposure are obtained by using the basic restrictions for the maximum coupling of the field to the exposed individual, thus providing the maximum protection.

2.2.A. Field levels

Table 2: Field levels

Frequency RANGE	E (V/m)	H (A/m)	B (μT)	Equivalent plane wave power density Seq (W/m²)
0 - 1 Hz	-	$3,2 \times 10^4$	4×10^4	-
1 - 8 Hz	10 000	$3,2 \times 10^4/f^2$	$4 \times 10^4/f^2$	-
8 - 25 Hz	10 000	4000/f	5000/f	-
0,025 - 0,8 kHz	250/f	4/f	5/f	-
0,8 - 3 kHz	250/f	5	6,25	-
3 - 150 kHz	87	5	6,25	-
0,15 - 1 MHz	87	0,73/f	0,92/f	-
1 - 10 MHz.	$87/f_{1/2}$	0,73/f	0,92/f	-
10 - 400 MHz	28	0,073	0,092	2
400 - 2 000 MHz	$1,375f^{1/2}$	$0,003\ 7f^{1/2}$	$0,004\ 6\ f^{1/2}$	f/200
2 - 300 GHz.	61	0,16	0,20	10

Notes

1. f as indicated in the frequency range column.
2. For frequencies between 100 kHz and 10 GHz, the average value of Seq, E², H² and B² should be measured over a time interval of six minutes.
3. For frequencies higher than 10 GHz, the average value of Seq, E², H² and B² shall be measured over a time interval of $68/f^{1.05}$ minutes (f expressed in GHz).

2.2.B. Contact and induced currents in the limbs

For frequencies up to 110 MHz, additional reference levels shall be applied to avoid hazards due to contact currents.

Table 3: Maximum contact current

Frequency range	Maximum contact current (mA)
0 - 2 500 Hz	0,5
2,5 - 100 kHz	0,2 f
100 kHz - 110 MHz	20

For the frequency range between 10 MHz and 110 MHz, a reference level of 45 mA for the current through a limb is recommended. This is to limit the localised SAR over a six minute time interval.

2.3. Basic restrictions and reference levels in places where the public is exposed to multi-frequency sources

In situations where exposure to several fields of different frequencies occurs, the following criteria are checked for compliance with either the basic restrictions or the reference levels.

2.3.A. Restrictions de base

1) For frequencies from 1Hz up to 10 MHz, the induced current densities shall be summed according to the formula:

$$\sum_{i=1\ Hz}^{10MHz} \frac{j_i}{j_{Li}} \leq 1$$

2) For frequencies equal to or greater than 100 kHz, the specific energy absorption rates and power densities should be summed according to the formula:

$$\sum_{i=100\ KHz}^{10\ GHz} \frac{DAS_i}{DAS_L} + \sum_{i>10\ GHz}^{300\ GHz} \frac{S_i}{S_L} \leq 1$$

J_i : is the current density at frequency i ;
J_{Li} : is the basic restriction for the current density at frequency i, as given in the table in paragraph 2.1 above;
DAS_i : is the SAR caused by exposure at frequency i;
DAS_L : is the basic SAR restriction given in the table featuring in the table of paragraph 2.1 below;
S_i : is the power density at frequency i;
S_L : is the basic restriction for power density given in the table in paragraph 2.1 above.

2.3.B. Reference levels

1) For frequencies from 1Hz up to 10MHz, the following two field strength requirements shall apply:

$$\sum_{i=1\ Hz}^{1\ MHz} \frac{E_i}{E_{Li}} + \sum_{i>1\ MHz}^{10\ MHz} \frac{E_i}{\alpha} \leq 1 \qquad \sum_{j=1\ Hz}^{150\ KHz} \frac{H_j}{H_{Lj}} + \sum_{j>150\ kHz}^{10\ MHz} \frac{H_j}{b} \leq 1$$

E_i : electric field strength at frequency i
E_{Li} : reference level of electric field strength from the table in A of 2.2 above
H_i : magnetic field strength at frequency j
H_{Li} : reference level of magnetic field strength from the table in A of section 2.2 above
a *is equal to 87 V/m and* **b** *is equal to 5 A/m (6,25 µT)*

2) For frequencies equal to or greater than 100 kHz, the following two requirements shall be applied to the field levels:

$$\sum_{i=100\ kHz}^{1\ MHz} \langle \frac{E_i}{c} \rangle^2 + \sum_{i>1\ MHz}^{300\ GHz} \langle \frac{E_i}{E_{Li}} \rangle^2 \leq 1 \qquad \sum_{j=100\ kHz}^{150\ KHz} \langle \frac{H_j}{d} \rangle^2 + \sum_{j>150\ kHz}^{300\ GHz} \langle \frac{H_j}{H_{Lj}} \rangle^2 \leq 1$$

E_i : *electric field strength at frequency* i
E_{Li} : *reference level of electric field strength from the table in A of section 2.2 above*
H_j : *magnetic field strength at frequency* j
H_{Lj} : *reference level of magnetic field strength from the table in A of section 2.2 above*
c *is equal to 87/f1/2 V/m and* **d** *is equal to 0.73/f A/m*

for induced currents in the tips and contact currents, respectively, the following restrictions shall apply

$$\sum_{j=10\ kHz}^{110\ KHz} \langle \frac{I_k}{I_{L,k}} \rangle^2 \leq 1 \qquad \sum_{n=1\ kHz}^{110\ MHz} \langle \frac{I_n}{I_{c,n}} \rangle^2 \leq 1$$

I_k : *component of induced current in the tips at frequency* k*;*
$I_{L,k}$: *reference level for induced currents in the tips, 45 mA;*
I_n : *component of currents at frequency n;*
$I_{c,n}$: *reference level for contact currents at frequency* n*.*

Yaoundé, 27 February 2013

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2015/3759PM OF 03 SEPTEMBER 2015 To lay down the conditions for the identification of subscribers and terminal equipment of electronic communication networks opened to public.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon, amended and supplemented by Law No. 2015/006 of 20 April 2015;
Mindful of Framework Law No. 2011/012 of 06 May 2021 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992, to specify the duties of the Prime Minister, as amended and supplemented by. Decree No. 95/145bis of 4 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/203 of 20 April 2012, on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

SECTION I
PURPOSE

ARTICLE 1.- (1) This Decree shall lay down the conditions for the identification of subscribers and terminal operators of electronic communication networks.
(2) It shall be applied pursuant to the provisions of article 55 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, amended and supplemented by Law No. 2015/006 of 20 April 2015.

SECTION II
DEFINITIONS

ARTICLE 2.- For the purposes of this decree, the following definitions shall be acceptable:
- **Subscriber identity module**: a smart card inserted into terminal equipment or any other electronic device by which the network identifies the subscriber;
- **Operator**: an individual or a corporate body holding a concession or a license to operate a network or to provide an electronic communications service open to the public.

CHAPTER II
IDENTIFICATION OF SUBSCRIBERS AND TERMINALS

ARTICLE 3.- Operators shall be bound to identify their subscribers, as well as terminal equipment, when subscribing to any electronic communications service.

ARTICLE 4.- (1) An individual cannot hold more than three (03) subscriber identity modules by operator.
(2) Any request for a number of subscriber identity modules above the number specified in paragraph (1) above, shall be subject to prior authorization of the Board in charge of the regulation of electronic communications, upon the request of the operator.

ARTICLE 5.- A corporate body can subscribe to a fleet of subscriber identity modules for its staff. In this case, the number of modules shall depend on the demand and must be justified to the operator.

ARTICLE 6.- Operators shall be bound to require, when taking out a subscription:

- for individuals, in addition to their physical presence:
  - the original National Identity Card or any other equivalent document;
  - the valid residence permit for foreigners or any equivalent document;
  - the exact address and location plan of the applicant;
  - the International Mobile Equipment Identity (IMEI).
- for corporate bodies:
  - a dispatching of subscription deed to the Trade and Personal Property Credit Register;
  - the original of the identity document of its legal representative;
  - the exact address and location plan of the corporate body's head office;
  - the international identity number for each terminal equipment in the fleet;
  - the list of beneficiary personnel in the fleet as well as certified true copy of each staff's identity document;
  - the certificate of affiliation to the body in charge of social security, if appropriate.

ARTICLE 7.- (1) Operators shall be bound to require, in the event of a subscription by a minor who does not have the National Identity Card, in addition to the original birth certificate, the identity of the parent or guardian with the documents specified in Article 6 above.
(2) Operators shall be bound to require, in the event of a subscription by a minor having a National Identity Card, the identity of the parent or guardian with the documents specified in Article 6 above.

ARTICLE 8.- Operators shall be required to keep in electronic or digital format, information relating to the identification of their subscribers and terminal equipment throughout the period of validity of the subscription and ten (10) years after termination of said subscription.

ARTICLE 9.- (1) The operators shall each be required to set up a computerized database to identify their subscribers and terminal equipment as well as to ensure that they are regularly updated.
(2) The format, tools and methods for the collection and processing of the data identifying subscribers and terminal equipment are defined by the Board in charge of the regulation of electronic communications.
(3) The Board in charge of the regulation of electronic communications shall have remote access to the database referred to in paragraph 1 above, at the request of the operator.

CHAPTER III
ACTIVATION OF SUBSCRIBER IDENTITY MODULES

ARTICLE 10.- (1) The activation of a subscriber identity module by operators can only be done for subscriptions by holders who have been formally identified, in accordance with the provisions of this decree and upon registration in the database referred to in Article 9 above.
(2) At the end of the subscriber identification process, the operator shall inform him/her, free of charge, by any means leaving a written record.

ARTICLE 11.- (1) On the expiry of the validity period of the National Identity Card or
the equivalent document, the operator shall restrict the subscriber concerned in simple reception and inform him/her free of charge by message.
(2) The restriction referred to in paragraph (1) above shall be lifted upon presentation of a valid identity document by the subscriber within three (03) months from the date on which the restriction comes into force in simple reception.

(3) The operator shall carry into effect the complete suspension of services to the subscriber after the expiry of the period referred to in paragraph (2) above, in case of failure to present a valid identification document. He/she shall inform the subscriber by message free of charge.
(4) The operator shall restore the services in the event of presentation of a valid identity document by the subscriber within three (03) months from the suspension of services.
(5) On the expiry of the period referred to in paragraph (4) above, the operator shall carry to effect the systematic deactivation of the subscriber's identity module.
(6) The operator shall not be liable for reimbursement of current call credits
and shall not be liable to damages in the event of suspension or termination of a subscriber, pursuant to the provisions of this decree.

CHAPTER IV
THE SALE OF SUBSCRIBER IDENTITY MODULES

ARTICLE 12.- The sale of pre-activated subscriber identity modules by operators shall be prohibited.

ARTICLE 13.- (1) The resale of subscriber identity modules shall be prohibited.
(2) Notwithstanding the provisions of paragraph (1) above, persons holding an authorization to sell electronic communications equipment issued by the Board and having a partnership contract with the operators whose products they market shall be authorized to resell the subscriber identity modules.
(3) The partnership contract between a reseller of subscriber identity modules and an operator shall be written, personal and non-transferable.

ARTICLE 14.- (1) Selling of subscriber identity modules on the streets
shall be prohibited.
(2) Marketing can be done only in fitted out spaces equipped with devices allowing for the identification of subscribers and terminal equipment as provided for by this decree.

ARTICLE 15.- The purchase of a subscriber identity module shall be subject to a subscription contract with the operator responsible for providing electronic communications services.

ARTICLE 16.- Operators who sign agreements with service marketing companies shall be bound to make all necessary arrangements so that their authorized distributors can identify subscribers, when selling services.

CHAPTER V
CONFIDENTIALITY OF IDENTIFICATION INFORMATION

ARTICLE 17.- (1) Operators shall take appropriate measures to ensure the protection, integrity and confidentiality of identifying data they hold or process, as well as the information they hold on the location of their network subscribers.
(2) The Board in charge of the regulation of electronic communications shall take appropriate measures to ensure the confidentiality of the data identifying subscribers that the Board accesses.

ARTICLE 18.- Operators ensure that the data identifying subscribers shall not be used for commercial prospecting purposes, either by post or through electronic communications means, except for operations concerning the authorized activity and falling solely under the contractual relationship between the operator and the subscriber.

ARTICLE 19.- (1) Operators shall be bound to inform their agents of the obligations to which they are subject, and of the penalties they incur for breach of secrecy of data identifying their subscribers.
(2) When an operator uses marketing companies, he/she must ensure, in his/her contractual relations with the companies, in compliance with his/her obligations relating to the conditions of confidentiality and neutrality with regard to the messages transmitted and information related to communications.

ARTICLE 20.- The operator shall be bound to provide the subscriber free of charge, as long as he/she can provide evidence of his/her status as the holder of the subscription, communication of information identifying him/her, as well as their rectification, clarification or update.

CHAPTER VI
THEFT AND LOSS OF TERMINALS

ARTICLE 21.- The operator shall provide users with all the information relating to the procedure to be followed in the event of theft of their terminal equipment.

ARTICLE 22.-The subscriber shall be bound to notify without delay the operator by any means leaving a written record, of the loss or theft of his terminal equipment or of his /her subscriber identity module to allow the operator to deactivate the module concerned.

ARTIÇLE 23.- (1) The operator shall set up a system to block the mobile terminal equipment declared stolen to disable them on his/her electronic communications network.
(2) At the express request of the subscriber, the operator shall be bound to prohibit the use of terminal equipment reported stolen or lost on his/her network, subject to any other request by the competent police or judicial authorities.
(3) The operator's liability may be incurred for any infringement occurring through an identity module or a terminal if the loss or theft was reported regularly to the operator by the subscriber.
(4) Operators shall be bound to set up a mechanism for pooling data relating to terminal equipment reported stolen.
(5) The Board in charge of the regulation of electronic communications shall establish rules for the pooling of data referred to in paragraph 4 above.

ARTICLE 24.- If the subscriber does not report the theft or loss of his/her terminal equipment or his/her identity module, he/she may be held liable for any fraudulent, malicious or prejudicial use to public order of the stolen or lost identity module.

ARTICLE 25.- The reactivation by the operator of a terminal equipment or a module identity reported stolen or lost can only take place upon verification of the identity of the person evidencing that he/she is the legitimate holder of this terminal or module.

CHAPTER VII
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 26.- Operators shall be obliged to make information in their updated databases available to the Board.

ARTICLE 27.- Operators shall be required to comply with any requisition from the competent authorities under the conditions set forth by the laws and regulations in force.

ARTICLE 28.- Operators shall be bound to carry into effect, from the entry into force of this decree, the alignment of the contract with the general conditions of service offers, to notify the changes noted to their approved partners and to inform the subscribers.

ARTICLE 29.- (1) Operators of electronic communications networks shall have a period of sixty (60) days from the date of signature of this decree to comply with it.
(2) Operators who, upon expiry of the period provided for in paragraph (1) above, do not comply with the provisions of this decree are liable to the penalties provided for by the regulations in force.

ARTICLE 30.- Specific texts of the Minister in charge of telecommunications shall specify, when necessary, the implementing modalities of this decree.

ARTICLE 31.- All previous contrary provisions shall be repealed, in particular Decree No. 2012/1637/PM of 14 June 2012 laying down the procedures for identifying subscribers and terminals.

ARTICLE 32.- This Decree shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaoundé, 3 September 2015

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2017/2580/PM OF 06 APRIL 2017 To lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorisation regime.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 establishing the minimum service in the telecommunications sector;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Law No. 2013/010 of 24 July 2013 on the Civil Aviation Regime in Cameroon;
Mindful of Law No. 2015/007 of 20 April 2015 to govern audio-visual activities in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

PART I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Decree lays down the terms and conditions for the establishment or operation of networks and the provision of electronic communication services subject to the authorization regime.
(2) It is adopted in application of the provisions of Article 10 paragraph (2) of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, as amended and supplemented by Law No. 2015/006 of 20 April 2015.

ARTICLE 2.- The performance of the activities related to the establishment and operation of networks and the provision of electronic communications services shall be subject to the prior granting of a concession, a licence or an approval, under the conditions provided for by the legislation in force and the provisions of this decree.

ARTICLE 3.- To implement this Decree, the following definitions shall apply:

1. **Board**: autonomous public body responsible for the regulation, control and monitoring of telecommunications and information and communication technology activities;
2. **Compliance check**: data collection for the comparison of the parameters under the conditions of the authorisation when the network is operational;

3. **Control of commissioning data**: survey done before commissioning of the conditions under which the network has been established in order to compare them with those defined in the establishment agreement;
4. **Technical control of radio networks**: operation to measure the technical characteristics of radio transmissions and the occupation of the frequency spectrum of autonomous networks;
5. **Personal data**: information, irrespective of its origin or form, which directly or indirectly identifies a natural person or makes him or her identifiable, with the exception of information relating to his or her private life or considered as such by law;
6. **Minimum set**: the type of leased links that an operator of electronic communications networks open to the public is required to provide;
7. **Network operation licence**: a legal instrument representing an administrative operation allowing, for a specified period of time, some activities in the telecommunications and information and communication technologies sector to be performed in accordance with the specifications;
8 **Leased links**: transmission capacity between specific termination points of the telecommunications network leased to a telecommunications network operator;
9. **Public safety link**: a recognised link necessary to ensure public safety and leased to public utilities or concession holders of public utilities;
10. **Locality**: an inhabited urban area, town or village, the size of which is defined either by its administrative boundaries or by the coverage limits approved by the Board;
11. **Multiplex**: a digital stream carried by a frequency and used to carry a number of programmes, associated services, interactive services, signalling data;
12. **Broadcasting network**: technical device allowing the transport and distribution of audio-visual programmes and channels;
13. **Experimental network**: an electronic communications network intended for technical tests or scientific experiments which can only be used for the exchange of signals or control communications;
14. **Radio network**: electronic communications network using radio frequencies for the spread of waves in free space;
15. **Temporary network**: an electronic communications network whose establishment and operation are limited in time;
16. **Wireline network**: electronic communications network using cable transmission means (wire, guide or optical fibre);
17. **Radio station**: a transmitter or receiver or any combination of transmitters and receivers, including ancillary equipment, necessary to provide a radiocommunications service at a given location;
18. **Spectrum monitoring: the operation of measuring transmission characteristics with a view to locating** and identifying sources of interference and unauthorised transmissions;
19 **Processing of personal data**: operations carried out automatically or manually by a natural or legal person and whose purpose is, in particular, to collect, record, store, organize, modify, exploit, use, send, distribute, disseminate, destroy or consult personal data.

PART II
GENERAL CONDITIONS FOR THE ESTABLISHMENT AND OPERATION OF NETWORKS AND THE PROVISION OF ELECTRONIC COMMUNICATIONS SERVICES SUBJECT TO THE AUTHORIZATION REGIME

CHAPTER I
GENERAL PRINCIPLES

ARTICLE 4. – (1) The electronic communication services subject to the authorization regime shall comply with the principles of technological neutrality, convergence, multiplicity of services and interoperability of networks and information systems in a competitive environment.
(2) The establishment or operation of networks as well as the provision of electronic communications services shall be subject to the conditions of fair competition, in accordance with the legislation in force and accepted international practice in the field of electronic communications.
(3) The conditions of competition referred to in paragraph 2 above shall cover all measures intended to prevent operators from adopting or maintaining anti-competitive practices such as:
- Anti-competitive cross-subsidies;

- the use of information obtained from competitors for the purpose of unfair competition;
- refusal to make available to other authorised operators, in a timely manner, the technical information on essential facilities and relevant commercial information necessary for the provision of services.

ARTICLE 5.- Operators shall provide services under conditions of transparency and non-discrimination and under the same conditions as those granted to their subsidiaries or associates.

ARTICLE 6.- (1) Operators shall guarantee the principle of equality and non-discrimination in the pricing of services offered to users throughout the national territory.
(2) The non-discrimination referred to in paragraph 1 above shall not prevent reductions in tariffs linked to specific subscription conditions or high volumes of traffic, provided that such conditions are published with the tariffs and that the reductions are applicable without discrimination to any customer meeting such conditions.
(3) Tariffs applied by operators of networks open to the public, value-added service providers and traffic resellers must be geared to actual costs.

ARTICLE 7.- The tariffs for electronic communication services offered shall be set by operators in accordance with the principle of equal treatment of users and in such a way as to avoid discrimination based on geographical location.

ARTICLE 8.- (1) Operators shall be required to inform the public of their general conditions of service offers and shall publish the tariffs of services.
(2) Before marketing the service, operators shall submit to the Board a notice publishing the tariffs in accordance with the conditions laid down in the specifications.
(3) Operators shall be required to inform subscribers, free of charge, by any appropriate means, of the cost of calls, their duration and the balance of their account at the end of each call or communication session.

ARTICLE 9.- Where operators offer wholesale electronic communications services to providers of electronic communications services or value-added services with a view to resale, this offer shall be made under objective and non-discriminatory technical and tariff conditions.

ARTICLE 10.- (1) Operators shall keep cost accounting enabling the costs, revenues and results of each network operated and each service offered to be determined.
(2) The cost accounting referred to in paragraph (1) above may be presented according to a pattern specified by the Board.

ARTICLE 11.- (1) The Board may, within six (6) months of the end of the financial year, audit the accounts and summary statements of operators.
(2) The purpose of the audit referred to in paragraph (1)above is to ensure that the summary statements reflect the costs, products and results of each network operated or each service offered in a regular and accurate manner.
(3) The costs of the audit referred to in paragraph (1) above shall be borne by the operators.

ARTICLE 12.- Operators shall:
- guarantee the neutrality of their personnel with regard to the content and integrity of messages transmitted on their network;
- inform their personnel of their obligations and the penalties they incur in the event of violation of the criminal legislation relating to the secrecy of correspondences;
- ensure the protection, integrity and confidentiality of the personal information they hold and process;
- ensure that no information transmitted or stored is communicated to a third party without the consent of the person concerned.

ARTICLE 13.- Operators shall guarantee any user the right to:
- object, free of charge, to the use of billing data by the operator for canvassing purposes;
- prohibit, free of charge, the use of personal information concerning him/her from the subscriber lists for

commercial operations, except for operations concerning the authorised activity and falling within the contractual relationship between the operator and the subscriber;
- ensure that information concerning him/her be updated free of charge;
- include in the directory his full address or any other information that may enable him to be identified.

ARTICLE 14.- (1) Operators may use personal data concerning the subscriber only for the purposes of their contractual relationship.
(2) Access to the data provided for in paragraph (1) above shall be limited to authorized persons in charge of operations related to the purpose of their contractual relationship.
(3) With the exception of operations concerning an authorised activity and falling within the scope of the contractual relationship between the operator and the subscriber, the operator shall ensure that personal data are not used for canvassing purposes.

ARTICLE 15.- (1) The operator shall take all necessary steps to ensure the security of communications using its network. It shall comply with any technical security regulations issued by the competent body.
(2) The operator shall inform its clients of existing services that may be used to enhance the security of electronic communications.

ARTICLE 16.- All operators shall take all appropriate measures, notably to:
- ensure the regular operation of its installations;
- ensure the permanent provision of services;
- protect its facilities by appropriate preventive measures against risks, threats and attacks of any kind;
- guarantee the implementation, as soon as possible, of technical and human resources likely to mitigate the most serious consequences of failure, neutralisation or destruction of the facilities in exceptional circumstances;
- meet the needs of national defence and public safety and in particular to implement the means requested by the State, within the framework of emergency plans;
- establish links specially reserved for national defence or public security in times of crisis or in case of imperative need;
- routing emergency electronic communications free of charge and locating their origins;
- assist, at the request of competent authorities, the bodies dealing at the national level with electronic communications security issues;
- facilitate the tasks of the Board, in the event of the exercise of its control missions.

ARTICLE 17.- All operators shall respond to requests from the judicial, administrative, military or police authorities, as well as those of the Minister responsible for electronic communications and the Board, in accordance with the regulations in force.

ARTICLE 18.- (1) Any operator or provider of electronic communications networks shall be required to design and implement training and development programmes to ensure the provision of services, particularly with regard to:
- the qualification and technical competence of the personnel in charge of operating the network;
- the maintenance of electronic communications equipment;
- the development of engineering capacities for electronic communications services;
- the hosting of students from training schools in the field of electronic communications for academic training;
- the encouragement of innovation and the creation of content and services, particularly by young developers from universities and training schools.

(2) The operators shall participate in the training of the personnel in charge of the regulation of electronic communications according to the modalities fixed by the specifications.

ARTICLE 19.- Operators holding an operating licence for passive infrastructures supporting electronic communications networks shall be required to grant requests for access and sharing to any operator of electronic communications services open to the public holding a concession, a licence or a receipt of declaration, under objective, transparent and non-discriminatory conditions.

ARTICLE 20.- (1) Operators holding an operating licence for these passive electronic communications infrastructures shall be required to draw up a technical and tariff offer for access, in a single document known as an access catalogue, under the conditions determined by their specifications and the Board's directives.
(2) The offers provided for in paragraph (1) above must be sufficiently detailed to meet the needs of those who request them.
(3) The content, approval and publication of the catalogue provided for in paragraph (1) above shall comply with the requirements laid down in the regulations in force on access to the network and the sharing of electronic communications infrastructures.

CHAPTER II
COMMON CONDITIONS FOR THE ESTABLISHMENT AND OPERATION OF NETWORKS AND THE PROVISION OF ELECTRONIC COMMUNICATIONS SERVICES

ARTICLE 21.- (1) The Board may require that changes be made to the conditions of operation of networks, in particular:
- following a revision of international regulations and the need to comply with them;
- following the adoption of new provisions and rules for the use of frequencies or new planning;
- following interference on a frequency channel which requires a new frequency assignment for the continued operation of the network;
- for national defence or public security purposes.

(2) In the cases provided for in paragraph (1) above, the holder of the authorisation shall be required to make the prescribed changes within the time limits set by the Board. It shall inform the Board of the statements made for the application of the prescribed modifications, at the latest fifteen (15) days after their implementation.

ARTICLE 22.- The holder of an authorization shall, upon simple notification to the Board, modify at its own expense the technical characteristics of its equipment, in the event of a change in the frequencies assigned to its network or in the minimum regulatory standards imposed on equipment.

ARTICLE 23.- (1) Private independent networks may be connected to electronic communication networks open to the public, provided that they do not allow the exchange of electronic communications between persons other than those for whom the use of the independent network is reserved.
(2) Any violation of the provisions of paragraph (1) above shall lead to the withdrawal of the authorization, without prejudice to the legal proceedings that may be initiated against the holder of the authorization.

ARTICLE 24.- Authorisations shall be granted taking into account:
- the interest and importance of each project;
- the availability of the frequency spectrum in the service area concerned.

ARTICLE 25.- For the operation of some networks using radio frequencies, the number of licences may be limited, in view of the technical constraints inherent in the availability of frequencies. In this case, the Minister in charge of telecommunications shall issue the licences following a call for competition, the terms of which he/she shall determine.

ARTICLE 26.- In unprofitable geographical areas, the Minister in charge of telecommunications may take incentives to encourage operators to set up there.

ARTICLE 27.- Holders of concessions, licences or approvals are subject, throughout the period of validity of their authorizations, to the payment of the contributions, fees and charges provided for by the regulations in force.

ARTICLE 28.- Very Small Aperture Terminal (VSAT) and small earth stations shall be granted to a single master station installed in Cameroon, unless expressly exempted by the administration in charge of telecommunications.

PART III

SPECIFIC CONDITIONS FOR THE ESTABLISHMENT AND OPERATION OF NETWORKS AND THE PROVISION OF ELECTRONIC COMMUNICATIONS SERVICES SUBJECT TO THE AUTHORIZATION REGIME

ARTICLE 29.- Electronic communication activities subject to the authorization regime shall be subject to obtaining one of the following legal instruments:
- Concession;
- Licence;
- Approval.

ARTICLE 30.- The legal instruments referred to in Article 29 above are personal, non-transferable and do not confer on their holder any right of exclusivity.

CHAPTER I
CONCESSION

ARTICLE 31.- The following State domains may be the subject of a concession, in whole or in part, to one or more legal persons under public or private law by means of agreements fixing, in particular, the rights and obligations of the beneficiary of this concession:
- the establishment and operation of electronic communications networks with national coverage open to the public;
- re-establishment and operation of electronic communication transport networks.

ARTICLE 32.- The following may also be the subject of a concession to one or more legal persons under public or private law, under the conditions defined in this decree:
- the construction and operation throughout the national territory of landing points for submarine cables;
- the construction and operation of teleports to one or more satellite networks;
- the establishment and operation of multiplexes and broadcasting networks.

ARTICLE 33.- The concession is granted taking into account, in particular, the capacity to finance and carry out the project, the prospects of operating the service, the possible number of customers and the interest of the project for the public.

ARTICLE 34.- The concession holder is bound to respect the prescriptions contained in the specifications appended to the agreement and relating to:
a. the nature, characteristics and coverage area of the service;
b. the conditions of permanence, quality and availability of the service;
c. the conditions of confidentiality and neutrality of the service with regard to the messages transmitted;
d. the network and service norms and standards;
e. the use of allocated frequencies;
f. the requirements for national defence and public security, the protection of health and the environment and town planning objectives;
g. the operator's contribution to research, training and standardisation in the field of electronic communications;
h. the conditions of interconnection and, where applicable, the payment of charges for access to electronic communications networks open to the public;
i. the conditions of infrastructure sharing;
j. the terms of contribution to the general missions of the State and, in particular, to the missions and charges of universal service and regional planning;
k. the free routing of emergency electronic communications;
l. the commercial operating conditions necessary to ensure fair, objective, transparent, non-discriminatory competition at affordable prices, without distorting or hindering the exercise of free competition, ensuring equal treatment of all users;
m. the duration, termination and renewal conditions;

n. the modalities for calculating and revising the contribution payable for participation in the development of electronic communications throughout the territory.

ARTICLE 35.- The beneficiary of the concession undertakes to respect the general conditions for the establishment and operation of networks and the provision of electronic communication services as set out in the legislative and regulatory texts in force.

ARTICLE 36.- The concession is non-transferable, personal and does not confer on its holder any right of exclusivity.

ARTICLE 37.- (1) The concession agreement and its specifications are signed between the State, represented by the Ministers in charge of telecommunications and finance, on the one hand, and the concession holder on the other hand.
(2) Notwithstanding the provisions of paragraph (1) above, the State shall be represented by the Ministers in charge of electronic communications, audio-visual and finance, for the concessions of multiplexing and/or broadcasting of audio-visual communication signals.
(3) The concession agreement and its specifications shall be approved by a decree of the President of the Republic.

ARTICLE 38.- (1) No later than two (02) years before the expiry date of a concession agreement, the holder of the agreement shall submit to the Board a request for renewal of the agreement.
(2) The Board shall notify the concession holder of the conditions for renewal or the reasons for refusal, no later than one (01) year before the end of the concession.

CHAPTER II
LICENCE

SECTION I
CATEGORIES OF LICENCES

ARTICLE 39.- (1) A license is issued to any natural or legal person to establish and operate a network or to provide electronic communication services.
(2) There are two categories of licences:
- the first-class licence;
- the second-class licence.

ARTICLE 40.- The first-class licence covers:
- any supporting service;
- radio networks open to the public in one or more localities;
- collection and/or distribution networks for the provision of electronic communications services to the public;
- electronic communications networks open to the public in rural areas;
- virtual networks open to the public;
- passive infrastructures supporting electronic communications networks.

ARTICLE 41.- The second-class licence covers the establishment and operation of:
- independent private networks, excluding those subjects to the simple declaration regime;
- experimental networks;
- temporary networks.

SECTION II
APPLICATION FOR A LICENCE

ARTICLE 42.- (1 The application for a first-class licence, shall be sent to the Board in seven (07) copies and shall comprise:

- a form provided by the Board, duly completed and stamped at the current rate;
- proof of payment to the Board of the fees for the study of the application as set out in a specific text;
- the technical and financial files.

(2) The technical file shall include:

- the name or corporate name and full address of the applicant;
- the legal status of the company, as well as the composition of its capital and the distribution of voting rights;
- the declaration, purpose and characteristics of the services to be offered;
- the purpose and technical characteristics of the network;
- the technical specifications of the equipment;
- the timetable for implementation, specifying in particular the capacity and coverage area year by year;
- the experience acquired in the field of electronic communications, specifying the technical partners in the implementation of the project and their previous achievements.

(3) The financial file must:

- indicate the origin and the amount of the planned financing, specifying the identity of the main financial backers;
- provide the evidence of the company's financial capacity and the guarantee of financing for the project, if the licence is granted;
- specify the nature and level of the planned investments;
- understand the business plan of the company.

ARTICLE 43.- The application for a second-class licence, shall be sent to the Board in seven (07) copies and shall comprise:

- a form provided by the Board, duly filled in and stamped at the current rate including:
  - information on the natural person responsible for the network;
  - the name, address and activities of the natural or legal person responsible for the network;
  - the declaration, purpose and characteristics of the services to be operated in its private network;
- the technical characteristics and detailed description of the network, as well as the network equipment.

ARTICLE 44.- (1) The Board shall have a period of forty-five (45) days, as from the date of submission, attested by an acknowledgement of receipt, to act on the application.

(2) During the period referred to in paragraph (1) above, the applicant may be asked to provide additional information. In this case, the deadline for the Board's decision shall be suspended until the applicant provides the required information.

(3) If the request remains unanswered after the period referred to in paragraph (1) above, the applicant may refer the matter directly to the Minister in charge of telecommunications.

(4) The issue and renewal of a licence are subject to the payment of a fee known as the "entry fee" and "renewal fee" respectively.

ARTICLE 45.- (1) The file meeting all the required conditions is submitted for study.

(2) If the conclusion of the study of the file is favourable, the Board shall notify the applicant of the amount of the entry or renewal fees to be paid, as the case may be, in accordance with the regulations in force.

(3) The proof of payment of the fees referred to in paragraph (2) above shall be attached to the file, together with the specifications, if any, and forwarded to the Minister in charge of telecommunications for the formal issue of the licence.

SECTION III
ISSUANCE OF THE LICENCE

ARTICLE 46.- First- and second-class operating licences shall be issued by the Minister in charge of telecommunications, on the proposal of the Board.

ARTICLE 47.- First class licences may only be granted to companies under Cameroonian law with a minimum share capital of five million (5,000,000) CFA francs.

ARTICLE 48.- First- and second-class licences shall be granted for a maximum period of five (5) years.

ARTICLE 49.- (1) The issuance or renewal of a licence may be refused in particular in the following cases:
- the safeguarding of public order;
- the needs of national defence or public security;
- the technical or financial inability of the applicant to meet the obligations associated with the exercise of his activity;
- the applicant is subject to one of the sanctions provided for in the above-mentioned law governing electronic communications;
- non-compliance with the obligations under the operating licence.

(2) Reasons shall be given for any refusal of a licence and the applicant shall be notified thereof.
(3) The applicant may file, after making the necessary changes, a revised application. The revised application is considered as a new application.

ARTICLE 50.- The Minister in charge of telecommunications may terminate the operation of a second-class licence in a given locality, due to the opening of a radiocommunication service open to the public.

ARTICLE 51.- (1) No later than one (01) year before the expiry date of its licence, the holder shall submit an application for renewal to the Board.
(2) The Board shall notify the applicant of the conditions for renewal or the reasons for refusal, no later than (06) months before the end of the validity period.

SECTION IV
MODIFICATION OF THE OPERATING CONDITIONS OF A LICENCE

ARTICLE 52.- Modifications may be made to the operating conditions of the licence, either at the initiative of the Board or at the request of the licence holder.

ARTICLE 53.- The holder of a licence must request the modification of the operation of his/her legal instrument in one of the following cases:
- provision of services not provided for;
- modification of the constitution of its network as described in its licence.

ARTICLE 54.- The Board may, for technical reasons or in order to comply with new requirements, notably those relating to public security or national defence, or resulting from a change at the international level adopted by Cameroon, request, at any time, the holder of a licence to make changes to the operating conditions of his licence.

ARTICLE 55.- (1) Any licensee wishing to make changes to the conditions of establishment and operation of its network shall submit a reasoned application to the Board.
(2) The Board's decision shall be notified within three (3) months from the date of filing the application.

CHAPTER III
APPROVAL

ARTICLE 56.- (1) The following are subject to an approval:
- the activity of installer of electronic communications equipment and infrastructure;
- laboratories for testing and measuring electronic communications equipment;
- the sale of electronic communications equipment.

(2) The procedures for obtaining the approval referred to in paragraph (1) above shall be determined by an order of the Minister in charge of telecommunications.

PART IV
TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 57.- Holders of valid authorizations and persons carrying out one of the activities governed by this Decree shall have a period of six (06) months from the date of signature to comply with it.

ARTICLE 58.- Specific texts issued by the Minister in charge of telecommunications shall specify, where appropriate, the modalities for the implementation of the provisions of this decree.

ARTICLE 59.- This decree which repeals all previous contrary provisions, notably those of Decree No. 2012/l638 of 14 June 2012 to lay down the modalities for the establishment and/or operation of networks and the provision of electronic communications services subject to the authorisation regime, shall be registered, published according to the procedure of urgency, and then inserted in the Official Gazette in English and French./-

Yaoundé, 6 April 2017

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2017/6525/PM OF 07 JUNE 2017 Amending and supplementing some provisions of Decree No. 2013/0261/PM of 22 February 2013 to lay down the conditions for the operation of the electronic platform "One-stop shop for foreign trade operations".-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2010/021 of 21 December 2010 to govern electronic commerce in Cameroon;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Law No. 2016/004 of 18 April 2016 to govern external commerce in Cameroon;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No.2011/1521/PM of 15 June 2011 to lay down the implementing conditions of Law No. 2010/021 of 21 December 2010 to govern electronic commerce in Cameroon;
Mindful of Decree No. 2013/0261/PM OF 22 February 2013 to lay down the operating conditions of the electronic platform “One-Stop Shop for Foreign Trade Operation”,

HEREBY DECREES AS FOLLOWS:

ARTICLE 1.- The provisions of articles 4, 6, 8, 10, 17 and 29 of the aforementioned Decree No.2013/0261/PM of 22 February 2013 are amended and supplemented as follows:

ARTICLE 4 (new).- For the purposes of this decree, the following definitions shall apply:

a) **code**: an element of the electronic communications network or services enabling the operator to provide electronic communications services;
b) **e-GUCE**: virtual platform, secure communication infrastructure between the participants in foreign trade operations and users for all services based on information and communication technologies;
c) **provider**: entity ensuring the technical management, operation, maintenance and security of the e-GUCE virtual platform;
d) **partners**: all those involved in foreign trade procedures;
e) **service provider**: a person providing services for the implementation of functions that contribute to the security of information exchanged electronically;
f) **service**: transmission of information or personal data between a partner and economic operators or their representatives using the e-GUCE virtual platform;
g) **security product**: device, hardware or software, implementing functions which contribute to the security of information exchanged by electronic means;
h) **electronic signature**: a signature obtained by an asymmetric encryption algorithm that helps authenticate the sender of a message and check its integrity;
i) **information system**: a set of means intended for the preparation, processing, storage or transmission of information exchanged by electronic means between administrative authorities and economic operators or their representatives and between administrative authorities;
j) **teleservice**: any information system enabling users to carry out administrative procedures or formalities by electronic means;

k) **user**: a natural or legal person who has signed a contract to use the virtual platform of the one-Stop-Shop for external trade operations.

ARTICLE 6 (new).- The secure infrastructure shall take into account all the computer systems involved in foreign trade operations.
As such, it must:
a) be monitored by ad hoc systems;
b) have an authentication system for access to all the resources of the infrastructure;
c) be upgraded regularly.

ARTICLE 8 (new).- (1) The operator provides the user with personal and secret codes that allow him to access the services to which he is entitled.
(2) Access codes are permanently controlled by the secure infrastructure of the e-GUCE platform.
(3) The control referred to in paragraph 2 above makes it possible in particular to:
a) ensure the user's access rights to the one-stop shop;
b) compel the user to create a new personal password on the first attempt to connect to the one-stop shop;
c) require the user to change the password periodically;
d) automatically block the user's access codes when repeated attempts are made to access the system using invalid codes;
e) offer the user the possibility of invalidating and blocking his access codes at any time;
f) use, where applicable, the digital certificate issued by a certification authority accredited by the National Agency for Information and Communication Technologies (NAICT).
(4) The user shall, as far as possible, put in place systems to avoid re-entering data and information and allow the user to submit the information required for all actors once, in accordance with the United Nations recommendation on the one-stop shop.
(5) For any operation carried out on the platform, the user shall pay the operator a facilitation and follow-up fee, the amount of which shall be determined annually by the Minister in charge of prices, upon proposal by the operator.

ARTICLE 10 (new).- (1) Prior to any use of the platform, operators and private sector partners shall sign a contract or a memorandum of understanding with the operator.
(2) The said contract or memorandum of understanding shall specify, in particular, the rates and terms of payment of the contribution to the maintenance and improvement of the quality of service of the platform, to be paid by the operator.

ARTICLE 17 (new).- (1) Within the framework of foreign trade formalities, economic operators shall use a signature certificate belonging to the following categories:
a) certificate constituting a security element in accordance with the regulations in force;
b) certificate issued by a certification authority included in the trusted list of a Member State, as established, transmitted and made available to the public by NAICT;
c) a certificate issued by a Cameroonian or foreign certification authority that meets standards equivalent to those of the general security reference framework defined by NAICT.
(2) The signatory shall transmit, together with the signed document, the instructions for use enabling the necessary checks to be carried out. These operating instructions shall contain at least the following information:
(a) the procedure for checking the validity of the signature;
(b) the website address of the country of establishment's referencing of the provider or, failing that, the public data relating to the signatory's certificate, which shall include, at least, the revocation list and the certificate of the issuing electronic certification service provider.
(3) Where the signatory uses a category of certificate listed in paragraph 1 (a) or (b), he may be exempted from providing the information listed in paragraph 2 b) above.

ARTICLE 29 (new).- The keeping of documents required for foreign trade procedures in electronic means must be done in the form of electronic archives, for a period of ten (10) years for accounting documents and five

(5) years for other trade documents, under the following conditions:
- the information included in the data message must be accessible, readable and intelligible so that it can be consulted later;
- the data message must be preserved in a form that is not likely to have modified or altered the content of the message. The document transmitted and the document kept must be strictly identical;
- information which makes it possible to determine the origin and destination of the data message, as well as the date and time of sending or receiving, must be recorded.

ARTICLE 2.- This Decree, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 07 june 2017

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2018/0001/PM OF 05 JANUARY 2018 To create a dematerialization platform within the framework of public contracts and to set its rules of use.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2000/010 of 19 December 2000 to govern archives;
Mindful of Law No. 2010/012 of 21 December 2010 on Cybersecurity and Cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Decree No. 92/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No.95/145-bis of 04 August 1995;
Mindful of Decree No. 2004/275 of 24 September 2004 to institute the public contracts code;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No.2012/074 of 08 March 2012 on the creation, organisation and functioning of the Tenders Board of Public Contracts, amended and supplemented by Decree No. 2013/271 of 05 August 2013;
Mindful of Decree No. 2012/075 of 08 March 2012 to organise the Ministry of Public Contracts;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This decree establishes a dematerialization platform within the framework of public contract and sets out the rules of its use.
(2) The platform provided for in paragraph 1 above is a web portal for public contracts designated “Cameroon On Line E-procurement System”, abbreviated "COLEPS", hereinafter referred to as “the platform of dematerialisation”.

ARTICLE 2.- Within the meaning of this decree and subsequent texts taken for its implementation, the following definitions are accepted:

a) **Electronic certificate**: an electronic document secured by the electronic signature of the person who issued it and who, after verification, certifies that the content is authentic;
b) **User charter**: document drawn up with the aim of defining the rights and obligations regarding the use of the information and communication system;
c) **Encryption**: process by which clear information is transformed into information that is unintelligible to third parties who do not have knowledge of the key, using a secret convention called a key;
d) **Encoding**: the use of non-standard codes or signals to convert information to be transmitted into signals that cannot be understood by third parties;
e) **Decryption**: reverse operation of encryption;
f) **Dematerialisation**: replacement of physical documents or manual procedures by digital documents or automatic procedures. It consists in implementing electronic means to carry out processing, exchange and storage operations without paper support;

g) **Time-stamping**: a process aimed at associating a date and time to all actions and events in order to trace, in an opposable manner, all accesses, movements, creations and all updates made on the platform;
h) **Electronic signature**: a signature obtained by an asymmetric encryption algorithm that helps authenticate the sender of a message and check its integrity.

ARTICLE 3.- The public contracts dematerialisation platform shall enable:
- the programming of public contracts online;
- the conduct of online public contracts award procedures;
- the publication of proceedings and documents relating to the awarding and execution of public contracts;
- the guarantee, through a time-stamping mechanism, the certain date for the electronic transmission of bids and offers by tenderers and for their processing by contracting authorities;
- the guarantee of the confidentiality of tenders by means of a cryptographic process;
- the guarantee for authentication and non-repudiation of documents signed on 5the portal, by means of an electronic signature process;
- the integrity of the bids and offers transmitted through the portal is guaranteed;
- the guarantee for the speed and authenticity of the transmission of documents required for the award and execution of public contracts;
- the guarantee for the archiving and traceability of all documents and operations relating to the awarding and execution of public contracts;
- the hosting of the database of public contract actors, the database on public contracts or any other database created on the dematerialisation platform.

ARTICLE 4.- The dematerialisation platform shall also enable:
a) the contracting authorities or contract owners to:
- ensure that the system generates the encryption and decryption keys when the invitation to tender is published;
- decrypt the electronic bids and envelopes submitted by tenderers and bidders;
- publish the results of the bid opening and evaluation session;
- ensure the publication and wider dissemination of proceedings and documents relating to the award, execution and control of the execution of public contracts, in particular:
  - contract award plans programmed online;
  - Invitation to tender;
  - calls for expressions of interest and any addenda;
  - tender documents or any other consultation documents in lieu thereof and any addenda thereto;
  - extracts from the minutes of the meetings of the Tender Board;
  - decisions awarding contracts;
  - any decisions to cancel invitations to tender and those declaring, where appropriate, the invitation to tender to be unsuccessful;
  - communiqués making available the results of invitations to tender;
  - proceedings taken within the context of the execution of public contracts;
  - the list of companies sanctioned within the context of public contracts.

b) the Tender board to examine the electronic bids and decide on the outcome of the bid opening session;
c) tenderers and bidders:
- to submit their tenders electronically;
- to complete their files or rectify any material errors at the request of the competent Tender Board;
- to carry out all other actions inherent to the public contract procedure in which they are involved .

ARTICLE 5:- The functionalities offered by the dematerialisation platform must be such as to enable administrations and public or private organisations to directly deliver online, the information, documents and evidence justifying the administrative situation and capacities of candidates for a consultation.

ARTICLE 6.- The Ministry in charge of public contracts is responsible for hosting and administering the dematerialisation platform.

As such, it is responsible for:
- hosting the technical infrastructure of the platform;
- creating and managing user accounts;
- monitoring compliance with the platform's rules of use;
- technical and cryptographic security of the platform;
- electronic services allocated to the platform's users;
- maintenance of the platform and its upgrading;
- the support of the platform users through appropriate training.

ARTICLE 7.- The administrator of the dematerialisation platform is responsible for the publication, on the portal, of legislative and regulatory texts, as well as all proceedings and documents relating to public contracts.

CHAPTER II
CONDITIONS OF USE OF THE PLATFORM

ARTICLE 8.- (1) The registration of a user on the dematerialisation platform shall be carried out by the administrator, upon presentation of a registration form duly signed by the applicant or by his/her legal representative.
(2) The form provided for in paragraph 1 above can be downloaded from the dematerialisation platform.

ARTICLE 9.- The transactional use of the dematerialization platform is subject to obtaining an electronic certificate and a password, issued by the body in charge of information and communication technologies.

ARTICLE 10.- (1) The users of the dematerialisation platform remain solely responsible for the use of the account name and password allocated to them and for the accounts of the users they create.
(2) They are also responsible for the content of the information they publish on the dematerialisation platform.

ARTICLE 11.- The body in charge of regulating public contracts shall benefit from privileged access to the dematerialization platform within the framework of the exercise of its missions.

CHAPTER III
ARRANGEMENTS FOR THE PROCESSING AND OPERATION OF ELECTRONIC DATABASES ON THE DEMATERIALISATION PLATFORM

ARTICLE 12.- (1) Databases relating to public contracts and public contract stakeholders shall be created on the dematerialisation platform and shall be systematically updated, with a view to making the information system on public contracts more efficient.
(2) Other databases may be created and maintained on the dematerialisation platform, as necessary, for use by the stakeholders in the public contracts system.

CHAPTER IV
MISCELLANEOUS TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 13.- (1) The Minister in charge of public contracts shall determine each year, and for a period of five (05) years, the list of proceedings and documents that must be published on the dematerialization platform within the framework of the award and execution of public contracts, subject to the rules of publicity prescribed by the Public Contracts Code.
(2) At the end of the period sets out in paragraph 1 above, the publication on the dematerialisation platform of proceedings and documents relating to the award and performance of public contracts is compulsory for contracting authorities.

ARTICLE 14.- Public or private administrations and bodies may maintain within them and under their responsibility, sub-systems linked to the dematerialisation platform.

ARTICLE 15.- The other rules of operation and use of the dematerialisation platform are specified in the user charters drawn up by the Administrator.

ARTICLE 16.- An order of the Ministry in charge of public contracts shall specify, where appropriate, the implementing conditions of this decree.

ARTICLE 17.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 05 January 2018

Philemon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2018/0002/PM OF 5 JANUARY 2018 To lay down the terms and conditions for online procurement procedures in Cameroon.

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2000/010 of 19 December 2000 governing archives;
Mindful of Law No. 2010/012 of 21 December 2010 relating to cyber security and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 governing online communication in Cameroon, as amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Decree No. 92/089 of 4 May 1992 to specify the duties of the Prime Minister, as amended and supplemented by Decree No. 95/145(b) of 4 August 1995;
Mindful of Decree No. 2004/275 of 24 September 2004 instituting the Public Contracts Code;
Mindful of Decree No. 2011/408 of 9 December 2011 to organize the Government;
Mindful of Decree No. 2011/409 of 9 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/074 of 8 March 2012 relating to the establishment, organization and functioning of Public Tenders Boards, as amended and supplemented by Decree No.2013/271 of 5 August 2013;
Mindful of Decree No. 2012/075 of 8 March 2012 to organise the Ministry of Public Contracts;
Mindful of Decree No. 2018/0001/PM of 5 January 2018 to establish a public procurement dematerialisation platform and lay down rules for its use,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This decree lays down the terms and conditions for online procurement in Cameroon. It lays down rules applicable to:

- online programming of public contracts;
- the publication of tenders and obtaining related documents online;
- the procedure for submission of bids;
- the review of bids and award of contracts;
- the signing and notification of contracts and jobbing orders;
- the procedure for archiving data related to contracts awarded online.

(2) The procurement process mentioned in paragraph 1 above shall be done on the Cameroon Online E-Procurement System (COLEPS), hereinafter referred to as "the dematerialization platform"

ARTICLE 2.- Within the meaning of this decree and its implementing instruments, the following definitions shall apply:

a) **Electronic certificate**: an online document secured by the digital signature of its issuer,which attests to the authenticity of its content;
b) **Encryption**: a process of coding information with the use of a secret key to make it unreadable to unauthorized users with no knowledge of the key;
c) **Backup copy**: a duplicate of electronic application files and bids, meant to replace electronic application files and bids in case of specifically listed anomalies;
d) **Encoding**: the process of converting information into a code that is unintelligible to third parties;
e) **Decryption**: a reverse encryption operation;
f) **Dematerialisation**: the replacement of physical documents or manual procedures with digital documents or automated methods. It involves the use of automated and paperless methods of processing,

exchanging and storing information;

g) **Bidding document**: any document or file containing information related to a tender; this includes a bidding document or any document serving that purpose;
h) **Electronic document** : all data recorded or stored in any device by a computer system or similar device and which can be read or viewed by someone or by such a system or device;
i) **Electronic physical document**: an electronic document on a removable device.
j) **Date and time stamping**: a technique aimed at recording the date and time of actions and events in order to trace all access, activities and updates performed on the platform, in ways that can be used as evidence;
k) Mali**cious computer programme**: any programme or file that is harmful to the computer. Malicious programmes survive on the computer through replication or by interferring with the computer's programmes or memory etc.;
l) **Rematerialisation**: a reverse dematerialization operation;
m) **Electronic signature**: a signature someone affixes to an electronic document which authenticates the identity of the sender of a message.

CHAPTER II
PROGRAMMING, PUBLICATION OF TENDERS AND SUBMISSION OF BIDS

SECTION I
ONLINE PROGRAMMING OF CONTRACTS AND PUBLICATION OF TENDERS

ARTICLE 3.- (1) Public contracts published via an electronic medium shall be subject to prior online programming.
(2) The conditions and procedure of the programming referred to in paragraph (1) above shall be laid down by Order of the Minister in charge of Public Contracts.

ARTICLE 4.- Documents related to the tender shall, in addition to the items mentioned in the Public Contracts Code, contain the link to download the said documents.

ARTICLE 5.- (1) The documents referred to in Article 4 above shall be signed by the Contracting Authority using an electronic certificate. They shall be published on the dematerialisation platform following the procedures provided for by the Public Contracts Code.
(2) For expressions of interest, signing shall be done by the Project Owner.
(3) The signature referred to in paragraph 1 above shall be generated by an electronic certificate acquired from the competent authorities under conditions provided for by regulations in force.

ARTICLE 6.- (1) The bidding documents shall be uploaded to the dematerialization platform by the Contracting Authority, in a common and widely available format, to ensure free, direct and full access by bidders.
(2) The bidding documents shall especially indicate the method of response, the composition of online bids and the file formats to be submitted. Non-compliance with the said formats shall lead to the inadmissibility of the bid.
(3) The list of documents to be provided must be specified in the bidding documents.

ARTICLE 7.- (1) The Contracting Authority shall be required to store on a physical medium copies of bidding documents uploaded on the dematerialization platform.
(2) Subject to specificities of dematerialization, the bidding documents uploaded online shall be identical in content with those stored on the physical medium by the Contracting Authority.

ARTICLE 8.- Bidders shall have access to bidding documents, pursuant to the terms and conditions governing the use of the dematerialisation platform.

ARTICLE 9.- The contractors shortlist file may be downloaded using the link indicated in the call for tenders.

SECTION II
SUBMISSION OF BIDS

ARTICLE 10.- Bids, submitted together with the requisite documentation, shall be assembled in electronic files grouped by administrative, technical and financial nature. The documents produced making up the bids shall bear the electronic signature.

ARTICLE 11.- Before being submitted online, tenderers' bids shall be automatically encrypted.

ARTICLE 12.- (1) Before submitting their bids, bidders shall pay document acquisition fees in accordance with the terms and conditions set out in the consultants shortlist file.
(2) Bids shall be submitted before the closing date and time indicated in the bidding documents.
(3) Bids submission shall be subject to an automatic dating process mentioning the date and local time of electronic submission.
(4) This shall further be attested by the dispatch of an electronic acknowledgement of receipt to bidders, pursuant to the provisions of Article 16 of this decree.
(5) Several bids may validly be transmitted by one and the same bidder before the closing date and time. In that case, only the last bid received shall be considered during bids assessment. The others shall be rejected without being opened.

ARTICLE 13.- (1) Electronic bids shall be backed up on a physical electronic medium. The backup copy shall be placed in a sealed envelope legibly marked "backup copy", and must arrive before the bids submission deadline.
(2) Notwithstanding the absence of a backup copy, an electronic bid received within the prescribed time frame remains valid. Such absence of backup copy shall be attributed to the defaulting bidder, in case of need.

ARTICLE 14.- (1) The backup copy shall be opened in one of the following cases:
a) When a bid received within the prescribed period, could not be opened;
b) When a malicious programme is detected in a bid submitted via the electronic channel; trace of such malicious programme shall be preserved;
c) When a bid duly transmitted via the electronic channel is not received within the prescribed period, but the backup copy was deposited before the bids submission closing date.
(2) If the backup copy is opened, the one transmitted via the electronic channel shall no longer be opened.

ARTICLE 15.- In addition to being published on the dematerialization platform, changes made during the public procurement process shall be communicated directly to competing bidders, through alert mechanisms.

CHAPTER III
RECEIPT, OPENING, REVIEW OF BIDS, SIGNING AND NOTIFICATION OF CONTRACTS

SECTION I
RECEIPT AND OPENING OF BIDS

ARTICLE 16.- Bids submitted via the electronic channel shall be the subject of an acknowledgement of receipt message, sent by the administrator of the dematerialisation platform.

ARTICLE 17.- Before being transmitted to the Public Tenders Board for subsequent opening and review, bids submitted via the electronic channel shall be decrypted by the Contracting Authority. Decrypted bids shall be legible only to the competent tenders board.

ARTICLE 18.- The opening of bids transmitted via the electronic channel and those submitted in hard copy shall take place during the same session.

ARTICLE 19.- In order to open bids, access codes shall be issued to the Public Tenders Board, in accordance with the terms and conditions for the use of the dematerialization platform.

ARTICLE 20.- In case of technical difficulties caused by the unavailability of the dematerialization platform or any other malfunctioning preventing the opening of bids, the bids opening session shall be postponed to a date to be determined by the Public Tenders Board.

SECTION II
REVIEW OF BIDS

ARTICLE 21.- Bids shall be reviewed, where applicable, by a bids assessment sub-committee whose composition and operating conditions shall be governed by the regulations in force.

ARTICLE 22.- (1) The review of bids shall be done online.
(2) However, the bidding rules may provide for the possibility of reverting to hard copies for a physical review of bids. In that case, the Public Tenders Board shall forward to the bids assessment sub-committee a copy of each bid on a physical electronic medium for verification and review.
(3) In the case referred to in paragraph (2) above, the assessment report and other related documents shall be posted on the dematerialization platform.

ARTICLE 23.- In assessing rematerialized bids, the requirements with respect to presentation and form indicated in the bidding documents shall not be considered.

SECTION III
AWARD SIGNING AND NOTIFICATION OF CONTRACTS

ARTICLE 24.- (1) The award of public contracts via the electronic channel shall be governed by the same conditions as those provided for by the Public Contracts Code.
(2) The signing and notification of the contract award decision and publication of bidding results through the electronic channel shall also be allowed.
(3) However, only the date of publication of the award decision in the Public Contracts Journal or any other authorized publication shall be used as evidence in computing the deadline.

ARTICLE 25.- (1) Draft contracts may be underwritten, signed and notified via the electronic channel, except where their dematerialization is allowed by the bidding regulations.
(2) Instructions to contractors may also be underwritten, signed and notified following the same procedures as those mentioned in paragraph (1) above.

ARTICLE 26.- The dematerialization platform shall allow Contracting Authorities the possibility to contact via electronic means the Minister in charge of Public Contracts for prior endorsement during the public contracts award phase.

ARTICLE 27:- The bidders may file their appeals through the electronic channel, in accordance with the terms and conditions provided for by the regulations in force.
(2) In case of persistent disagreement between the Public Tenders Board and the Contracting Authority, the request for arbitration may be submitted online to the Minister in charge of Public Contracts, in accordance with the regulations in force.

CHAPTER IV
ONLINE ARCHIVING OF PROCUREMENT DOCUMENTS

ARTICLE 28.- The electronic archiving of documents shall be based on the principle of equivalence between the hard copy and soft copy.

ARTICLE 29.- (1) Electronic archive documents shall have the same probative value as physical archives.
(2) Archives generated by public procurement activity shall be and remain public archives. They shall be imprescriptible, non-transferable and attachable.

ARTICLE 30.- The time frame for conserving documents saved on electronic media shall be the same as for documents in paper version.

ARTICLE 31.-(1) Documents available on the dematerialization platform shall be archived by each Project Owner, Contracting Authority, Public Tenders Board and the public contracts regulation agency, independently of the central archiving system managed by the Minister in charge of Public Contracts.
(2) Access to the central archives of the platform shall be subject to a specific request addressed to the Minister in charge of Public Contracts.

CHAPTER V
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 32.- Procurement via the electronic channel shall be regulated by the same rules as those provided for by the Public Contracts Code.

ARTICLE 33.- Subject to their specificities, negotiated contracts may be awarded through the electronic channel, under conditions specified by this decree.

ARTICLE 34.- Dematerialized and physical procedures shall exist side by side until the effective establishment of a dematerialization system likely to be used exclusively.

ARTICLE 35:- (1) The choice of use dematerialized public procurement procedures shall be left to the Project Owner.
(2) Before the start of each budgetary year, the Minister in charge of Public Contracts shall issue an Order setting the thresholds and types of contracts to be awarded via the electronic channel.

ARTICLE 36.- Separate instruments of the Minister in charge of Public Contracts shall, as and when necessary, specify the conditions for implementing this decree.

ARTICLE 37.- This decree shall be registered, published according to the procedure of urgency, and inserted in the Official Gazette in English and French.

Yaoundé, 05 January 2018

Philemon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2020/5703/PM OF 15 OCTOBER 2020 Amending and supplementing some provisions of Decree No. 2012/1642/PM of 14 June 2012 to lay down the conditions for the allocation and use of numbering resources.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect consumers;
Mindful of Decree No. 92/089 of 04 April 1992 to specify the duties of the Prime Minister, Head of Government, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government, amended and supplemented by Decree No. 2018/190 of 02 March 2018;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2019/001 of 01 January 2019 to appoint a Prime Minister, Head of Government;
Mindful of Decree No 2012/1642/PM of 14 June 2012 to lay down conditions for the allocation and use of numbering resources,

HEREBY DECREES AS FOLLOWS:

ARTICLE 1.- The provisions of Article 20 of the aforementioned Decree No. 2012/1642/PM of 14 June 2012 are amended and supplemented as follows:

SECTION IV
CANCELLATION OF A RESERVATION AND WITHDRAWAL OF AN ALLOCATION

ARTICLE 20.*- (new)* (1) Where an operator wishes to cancel a reservation or return allocated numbering resources, it shall refer the matter to the Board, which shall act in accordance with the procedures laid down in the numbering resource management rules.
(2) The use of a numbering resource by an electronic communications operator in violation of the regulations in force shall give rise to the withdrawal of the said resource by the Telecommunications Regulatory Board, without prejudice to the sanctions provided for by the regulations in force.

ARTICLE 2.- This decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French. /-

Yaoundé, 15 October 2020

Joseph DION NGUTE

THE PRIME MINISTER, HEAD OF GOVERNMENT

DECREE No. 2022/10902/PM OF 07 DECEMBRE 2022 To lay down the conditions for reservation, allocation and use of numbering resources.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon, amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 April 1992 to specify the duties of the Prime Minister, Head of Government, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government, amended and supplemented by Decree No. 2018/190 of 02 March 2018;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2019/001 of 04 January 2019 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2019/002 of 04 January 2019 to reshuffle the Government;
Mindful of Decree No.2020/727 of 3 December 2020 on the reorganisation and functioning of the Telecommunications Regulatory Board,

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This Decree sets out the conditions for reservation, allocation and use of numbering resources.

ARTICLE 2.- For the implementation of this Decree, the following definitions shall apply:

1. **Board**: Telecommunications Regulatory Board;
2. **Assignment**: provision, in accordance with contractual clauses, of a number or series of numbers to end users by the operator;
3. **Cancellation of a reservation**: decision taken by the Board to cancel an operator's reservation of numbering resources;
4. **Allocation**: decision taken by the Board, after examination of the application file, to grant an operator the right to use the designated resource on its own behalf or on behalf of its customers, under the conditions of use specified or recalled by the allocation decision and, where applicable, by the specifications annexed to the operator's operating licence;
5. **Temporary allocation**: decision taken by the Board, after examining the application file, to grant a beneficiary the right to use a numbering resource for a specific period of time;
6. **Beneficiary**: an applicant for whom or which numbering resources have been reserved or allocated;
7. **Block of numbers**: a series of consecutive numbers which can be reserved and allocated simultaneously to the same applicant;
8. **Control**: a set of operations carried out by the Board to ensure that proper use is made of the resources allocated or reserved, in order to avoid their under-use or non-use in accordance with the forecasts

indicated in the application and to guarantee objective, transparent and non-discriminatory conditions for the allocation or provision of numbers;

9. **Numbering plan management**: a set of administrative and technical actions aimed at ensuring the rational use of numbering resources by beneficiaries;
10. **Provisioning**: action carried out by the assignee of a numbering resource, aimed at enabling a third party operator to assign a resource allocated by the Board to an end user, the third party's customer;
11. **Commissioning**: activation in the network of one or more interconnection provider operators of numbering resources regularly allocated by the Board;
12. **Number**: string of digits uniquely indicating the termination point of the public network. It contains the information necessary to route the call to that termination point. It may have a national or international format. The international format is known as the international public electronic communication number, which includes the country code and subsequent digits;
13. **Short number**: number of lesser length than the standard number defined in the numbering plan;
14. **Long number**: number of a length greater than or equal to the standard number defined in the numbering plan;
15. **Fixed number**: number activated on a telephone line identifying a customer of a fixed network operator, providing voice, SMS and data communication services;
16. **Mobile number**: number activated on a SIM card identifying a customer of a mobile network operator, providing Voice, SMS, USSD and Data communication services;
17. **Virtual number**: long number intended to be activated on application platforms for the provision of Voice, SMS and USSD services, enabling the identification of an operator's customer and accessible to the customers of interconnection provider operators;
18. **Operator**: natural or legal person operating an electronic communications network open to the public or providing an electronic communications service to the public;
19. **Numbering plan**: document containing the structured set of numbers and addresses enabling, in particular, the identification of fixed or mobile termination points of telephone networks and services, the routing of calls and access to internal network resources;
20. **Prefixes**: first digits of a number which identify the nature of the service, the destination operator, the carrier and possibly the geographical location of the destination;
21. **Applicant**: author of a request for reservation or allocation of a resource resulting from a national numbering plan;
22. **Numbering resource**: set of codes, numbers, names, addresses and indicators used for the provision or operation of electronic communications services;
23. **Number reservation**: decision taken by the Board, after examination of the application file, to grant a beneficiary an option on a numbering resource for a specified period of time;
24. **Withdrawal of an allocation**: decision taken by the Board to withdraw the resources allocated to an operator;
25. **Management rules for a national numbering plan**: structured reference framework which defines the general conditions for the management of numbering resources, for efficient operation and rational use of the said resources, and which specifies the obligations and limits of the perimeters of intervention of the stakeholders;
26. **Value Added Service (VAS)**: service offered to the public through public electronic communications networks by means of computer systems allowing access to data relating to specific domains with the aim of consulting or exchanging them.

CHAPTER II
PROCEDURES FOR RESERVING AND ALLOCATING NUMBERING RESOURCES

SECTION I
GENERAL RULES FOR RESERVATION AND ALLOCATION OF NUMBERING RESOURCES

ARTICLE 3.- The Telecommunications Regulatory Board, hereinafter referred to as "the Board", shall reserve or allocate resources under objective, transparent and non-discriminatory conditions for the benefit of operators who so request.

ARTICLE 4.- Numbering resources are reserved or allocated by decision of the Board, on the basis of the following elements:
- securing an authorisation or a prior declaration by the applicant;
- the existence of interconnection links with one or more concession holder operators;
- the rational use of the numbering plan;
- the scarcity of the resource;
- compliance with the structure of the numbering plan;
- geographical location criteria;
- network deployment and service coverage, and more generally the technical and financial capacity of the applicant to implement its project;
- equal treatment and the preservation of conditions for fair competition;
- compliance with other legislative and regulatory provisions in force.

SECTION II
RESERVATION OF NUMBERING RESOURCES

ARTICLE 5.- The reasoned reservation request shall be sent to the Board in two (02) copies, each including:
- the information sheet provided by the Board, duly completed, signed and stamped at the current rate;
- a copy of the applicant's operating licence;
- the reason for the reservation request;
- the report on the resources previously allocated to the applicant, if applicable;
- the service coverage area.

(2) The applicant shall provide any additional information that it considers appropriate to justify its application. The applicant may indicate for each mandatory or additional information provided whether it is considered appropriate to make it confidential.
(3) Numbering resources shall be reserved by the Board on a first-come, first-served basis.
(4) Notwithstanding the provisions of paragraph 3 above, the Board may, for reasons of security and public interest, derogate from this principle.

ARTICLE 6.- (1) The Board shall acknowledge receipt of the application provided for in Article 5 above, indicating any missing documents.
(2) In case of an incomplete application file, the applicant shall have a period of fifteen (15) days from the date of receipt of the acknowledgement of receipt referred to in paragraph 1 above to complete it. After this period, the Board shall reserve the right to notify the applicant that his application has been rejected.
(3) The Board shall have a maximum of thirty (30) days from the date of receipt of the complete file to respond to it.
(4) After examining the reservation application file in the light of the assessment criteria referred to in Article 4 of this Decree, the Board may:
- reserve the resource requested in whole;
- reserve only part of the resource requested;
- refuse to reserve the requested resource.

(5) Any refusal to reserve must be reasoned and notified to the applicant by any means in writing.

ARTICLE 7.- The duration of the reservation is fixed at two (02) calendar years, renewable.

ARTICLE 8.- (1) At least two (02) months before the expiry of the reservation period, the beneficiary shall submit to the Board a request for the allocation or renewal of his reservation.
(2) Once the period referred to in paragraph (1) above has expired, the numbering resource shall become free again and may be allocated by the Board to any other applicant.

SECTION III
CANCELLATION OF A RESERVATION

ARTICLE 9.- The cancellation of a reservation shall be recorded by a decision of the Board. It may occur:
- at the request of the beneficiary of the reservation;
- automatically, if the reserved resource has not been the subject of an application for allocation or renewal

within two (02) years of the reservation decision;
- if the beneficiary no longer meets the conditions on which the reservation decision was founded.

ARTICLE 10.- In the event that the beneficiary no longer fulfils the conditions on which the reservation decision was grounded, the Board shall declare the cancellation after the following procedure:
- notification to the beneficiary by registered letter with acknowledgement of receipt, of the grievances likely to justify the cancellation of the reservation decision by the Board;
- presentation of arguments in defence by the beneficiary within fifteen (15) days of the notification of cancellation. At the end of this period, if the defence has not been provided, or if it is not considered relevant, the Board shall cancel the reservation by a reasoned decision and the beneficiary shall be notified thereof;
- the cancellation of the reservation shall take effect from the date of notification to the beneficiary.

SECTION IV
ALLOCATION OF NUMBERING RESOURCES

ARTICLE 11.- (1) The application for the allocation of numbering resources, whether or not previously reserved, shall be submitted to the Board by registered letter with acknowledgement of receipt, in two (02) copies each including:
- the information sheet provided by the Board, duly completed, signed and stamped at the current rate;
- a copy of the applicant's operating licence;
- a description of the numbering resource requested;
- a description of the service envisaged for the use of the resources requested, specifying the conditions of access to the service, if applicable;
- the report on the use of the resources previously allocated to the applicant, if applicable;
- the service coverage area;
- forecasts for the use of the resource applied for over the first two years and traffic data.

(2) The Board may, if it considers it necessary, request any additional information to clarify the above elements.

(3) The application for the allocation of numbering resources provided for in paragraph (1) above may be made for a limited period.

(4) The Board shall acknowledge receipt of the application provided for in paragraph 1 above, indicating any missing documents.

(5) In case of an incomplete application file, the applicant shall have a period of fifteen (15) days from the date of receipt of the acknowledgement of receipt referred to in paragraph (4) above to complete it. After this period, the Board shall close the file and notify the applicant.

ARTICLE 12.- When the application for allocation is subsequent to a prior reservation, the applicant shall provide, in support of his application, any changes that may have occurred since the reservation.

ARTICLE 13.- (1) The Board shall have a maximum of thirty (30) days from the date of receipt of the complete application to respond to it.

(2) After examining the application in the light of the assessment criteria referred to in Article 4 of this Decree, the Board may:
- allocate the requested resource in whole or in part;
- refuse to allocate the requested resource.

(3) Reasons shall be given for any refusal of an allocation and the applicant shall be notified thereof.

ARTICLE 14.- (1) The allocation decision shall specify the conditions of use of the numbering resource, in particular:
- the conditions for putting the allocated resources into service;
- the type of service for which the use of the allocated resources is reserved;
- the requirements necessary to ensure proper use of the allocated resources;
- requirements relating to number portability;
- the duration of the allocation;
- the conditions for renewal of the allocation;
- obligations resulting from international agreements;

- the conditions for making allocated resources available.

(2) The Board shall notify the applicant of the allocation decision and shall forward it to the operators concerned by the commissioning of the allocated resources.

ARTICLE 15.- (1) The application for temporary allocation of numbering resources shall be made by the applicant in the same form and procedure as those described in Articles 11, 13 and 14 above, with the Board providing the applicant with the relevant information sheet.

(2) The Board shall notify the applicant of the temporary allocation decision and shall forward copies to the various operators concerned by the entry into service of the allocated resources.

ARTICLE 16.- (1) The beneficiary shall notify the Board of any change in the information provided in the application for allocation.

(2) A discrepancy between the actual conditions of use and the information provided to the Board when the decision was taken may justify a review of the award decision, which may lead to its withdrawal.

ARTICLE 17.- (1) Before 31 March each year, the beneficiary of the numbering resource shall submit to the Board, by registered letter with acknowledgement of receipt, a report on the use of the resources during the previous year. This report shall include the following information:

- the conditions and rate of use of the resources allocated;
- the number of numbers in service in total and by number block;
- the number of numbers assigned to end-users;
- the services using the allocated resources;
- the starting date of use of the product, if any;
- forecasted usage of the allocated resource;
- the conditions and status of availability of the resources, if any.

(2) In any case, the Board may ask the beneficiary to specify the conditions of use of a previously allocated resource and to give it access to the subscriber and number file.

(3) The Board shall ensure the proper use of the allocated resources.

SECTION V
WITHDRAWAL OF AN ALLOCATION

ARTICLE 18.- Withdrawal of an allocation shall be by decision of the Board. It may be withdrawn:

- at the request of the beneficiary of the allocation ;
- ex officio, in the event of non-use of allocated resources or non-compliance with allocation conditions and in the event of withdrawal of the operating licence;
- if the beneficiary no longer meets the conditions defined in Article 4 of this Decree.

ARTICLE 19.- In the event that the beneficiary no longer meets the conditions defined in Article 4 of this Decree, the Board shall declare the withdrawal of the allocation at the end of the procedure provided for in Article 10 of this Decree.

SECTION VI
PUBLICATION OF THE NUMBERING RESOURCES FILE

ARTICLE 20.- The information provided to the Board shall be confidential, with the exception of that for which publication is provided for by the numbering resource management rules laid down by the Board. However, operators may specify a level of confidentiality for information which they consider particularly sensitive and whose relevance is left to the Board's discretion.

ARTICLE 21.- (1) 1) The Board shall provide quarterly on its website, in a format that can be downloaded at any time, a file containing information on the structure and evolution of the numbering plan, as well as on the situation of reserved and allocated resources.

(2) The numbering resource management rules annexed to the numbering plan referred to in paragraph (1) above form an integral part thereof.

ARTICLE 22.- The numbering resource management rules are revised every two (02) years by the Board. They shall specify, in particular, the conditions for the rental and use of addresses, prefixes, numbers or blocks of numbers.

CHAPTER III
OBLIGATIONS AND SANCTIONS

ARTICLE 23.- The Board shall ensure that at least one operator providing interconnection or access to the network exists prior to the allocation of numbering resources.

ARTICLE 24.- The Board shall carry out an annual review of the resources allocated to each beneficiary. Resources that are not justified may be withdrawn.

ARTICLE 25.- (1) Operators providing interconnection and access shall be required to commission numbering resources duly allocated by the Board within seventy-two (72) hours from the date of notification of the allocation decision, failing which they shall be liable to the penalties provided for by the regulations in force, in particular the provisions of Articles 66 et seq. of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon.
(2) The date of commissioning of allocated numbering resources shall be notified to the Board by the operator providing interconnection and/or access, and by the assignee of the resources, within forty-eight (48) hours following the commissioning of the resources.

ARTICLE 26.- 1) In the case of the sending of SMS/MMS messages of an unsolicited advertising nature by a client of an operator, the latter is required to take the necessary measures to enable the recipient to reply free of charge with the keyword "STOP" if he no longer wishes to receive the message.
(2) In the case of sending SMS/MMS messages from the application platforms of customers or value-added service providers, the mobile network operator may authorise them to replace the sender's identifying number with a pre-registered alphanumeric name, provided that the content of the message contains the said number.

ARTICLE 27.- Any operator shall be guilty of misconduct and liable to the penalties provided for by the regulations in force if he/she:
- uses or commissions in its network a numbering resource not regularly allocated by the Board;
- refuses to commission in its network a numbering resource duly allocated by the Board within the period referred to in Article 25(1) above;
- refuses to terminate in its network traffic originating from platforms using declared virtual numbers;
- refuses to stop sending unsolicited advertising messages;
- invoices customers for the response referred to in Article 26, paragraph 1, above;
- fails to inform the Board within the period referred to in Article 25, paragraph 2, above, of the commissioning of an allocated numbering resource;
- fails to integrate in its messages the number identifying the origin of messages broadcast from application platforms.

ARTICLE 28.- (1) In the event of distortion of competition, in particular through abuse of a dominant position, the Board reserves the right, without prejudice to the sanctions provided for by the legislation in force, to withdraw the numbering resources duly allocated to the beneficiary in question.
(2) The withdrawal procedure shall be that provided for in Article 10 of this Decree.

CHAPTER IV
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 29.- Prefixes, numbers, blocks of numbers and codes allocated or reserved may not be protected by industrial or intellectual property rights.

ARTICLE 30.- Beneficiaries of temporary allocations, reservations and/or allocations are subject to the pay-

ment of fees and charges for the reservation, temporary allocation and allocation of numbering resources, the amounts and modalities of which are fixed by a specific text.

ARTICLE 31.- Decisions on the allocation, temporary allocation and reservation of numbering resources issued by the Board are strictly personal to their beneficiaries and may not be transferred to a third party.

ARTICLE 32.- (1) Only fixed numbers may be used as virtual numbers. In this case, the virtual number is not physically linked to a telephone extension. Calls to a virtual number are redirected to platforms.
(2) The numbering resources referred to in paragraph 1 above must be regularly allocated, made available or ported.
(3) The assigned operator shall declare the virtual numbers to the Board. The Board shall inform the operators providing interconnection by any means that leaves a written record.
(4) Interconnection-providing operators are required to terminate traffic from platforms using the declared virtual numbers.

ARTICLE 33.- Reservations and allocations made prior to the signing of this Decree shall retain their period of validity as provided for in the relevant decisions.

ARTICLE 34.- The management and control costs as well as the fees mentioned in article 30 above, due to the Board by operators operating exclusively under the licence or prior declaration regime, having benefited from allocations of resources not commissioned on the date of signature of this decree, are cancelled.

ARTICLE 35.- The Minister in charge of Telecommunications shall implement this Decree, which shall repeal Decree No.2012/1642/PM of 14 June 2012 laying down the conditions for allocation and use of numbering resources.

ARTICLE 36.- This Decree shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaounde, 07 Decembre 2022

Joseph DION NGUTE

THE PRIME MINISTER, HEAD OF GOVERNMENT

ORDERS

ORDER No.00080/MINEFI/MINPT OF 20 FEBRUARY 2002 Relating to the dues, costs, contributions and royalties collected by the Telecommunications Regulatory Board.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

THE MINISTER OF THE ECONOMY AND FINANCE,

Mindful of the Constitution;
Mindful of Law No. 98/014 of 14 July 1998 to govern telecommunications in Cameroon;
Mindful of Decree No. 97/205 of 07 December 1997 to organize the Government, amended and supplemented by Decree No. 98/067 of 28 April 1998;
Mindful of Decree No.97/207 of 07 December 1997 to form the Government and its various modifications;
Mindful of Decree No. 98/197 of 08 September 1998, on the organization and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 97/217 of 07 December 1997 to organize the Ministry of the Economy and Finance;
Mindful of Decree No. 99/151 of 13 July 1999 to organize the Ministry of Posts and Telecommunications, amended and supplemented by Decree No. 2000/185 of 14 July 2000,

HEREBY ORDER AS FOLLOWS:

TITRE I
DISPOSITIONS GENERALES

PART I
GENERAL PROVISIONS

ARTICLE 1.- (1) This joint order shall fix the dues, costs, contributions and royalties collected by the Telecommunications Regulatory Board in conformity with the provisions of articles 10, 11, 12, 13, 14, 15, 22 and 72 of Law No. 98/014 of 14 July 1998 governing telecommunications in Cameroon.

ARTICLE 2.- (1) In order to implement this Order, the following definitions shall apply:
"**Extension of the subscriber's line**": extension of the subscriber's line from its local telephone exchanges or from its line termination point;
"**Locality**": a given congested area;
"**Area of intense congestion**": urban area with a population density higher than 1,600 inhabitants per square km. The said area has a radius of 20 km;
"**Area of medium congestio**n ": urban or rural area with a population density comprised between 250 and 1,600 inhabitants per square km. The said area has a radius of 20 km;
"**Area of low congestion**": urban area with a population density less than 250 inhabitants per square km. The said area has a radius of 20 km;
"**Provincial network**": a network existing only in one province and covering at least two localities in that province;
"**National network**": network serving at least two localities in different provinces;
"**Local loop**": A link between the termination point of the subscriber's line and its local connecting point. This local loop can be cable-controlled or radio electric. When it is radio electric, it is said to be "wireless";
"**Radio frequency channel**": It is defined by its central frequency and the width of the associated frequency band;
"**Radio messaging service**": It is a radio electric service whereby a user may receive short messages composed of digits and / or letters. It is referred to as a radio searching when the message is sounded;

"**Radiodetermination**": determining position, speed or other characteristics of an object or obtaining data related to such parameters by use of the propagation of radio waves;
"**Radiodetermination service**": radio communication service for achieving radiolocation;
"**Citizen band (CB)**": frequency band of 26.9 to 27.5 MHz;
"**Space radio communication**": Radio communication operated by one or many space stations or by means of one or many reflecting satellites or other spaceships;
"**Radio astronomy**": astronomy based on the reception of radio electric waves of cosmic origin;
"**Terrestrial radio communication**": radio communication other than space or radio astronomy communications'
"**FM band**": frequency band of hectometric waves from 300 to 3,000 KHz;
"**HF band**": a frequency band of High frequency waves from 3 to 300 kHz;
"**VHF band**": a frequency band of very high frequency waves from 30 to 300 MHz;
"**UHF band**": a frequency band of ultrahigh frequency waves from 300 to 3,000 MHz;
"**SHF band**": a frequency band of super high frequency waves from 3 to 300 GHz;
"**EHF band**": a frequency band of Extremely high frequency waves from 30 to 300 GHz;
(2) Terms used in this order and which are not be defined in the above paragraph (1) will bear the meaning given to each of them by the Constitution, the Agreement or the Administrative Regulations of the International Telecommunication Union (ITU).

PART II
DUES, FEES, CONTRIBUTIONS AND ROYALTIES APPLICABLE TO NETWORKS, SERVICE DELIVERY, THE APPROVAL OF TERMINAL EQUIPMENT AND TELECOMMUNICATIONS SERVICE PROVIDERS INSTALLERS AGREEMENTS

CHAPTER I
RADIO NETWORKS

ARTICLE 3.- (1) Holders of concessions, applicants or the holders of authorizations and declaration receipts relating to radio networks shall be liable for the payment of the following charges, contributions and royalties:
- files processing fees;
- station control charges;
- contribution to the management and regulation fees of the sector's activities;
- the royalty for the use of a frequency or a radio channel.

(2) The amounts of fees, contributions and royalties defined above shall be fixed in Annex 1 of this Order.

ARTICLE 4.- Applicants or holders of authorizations for amateur radio stations shall be liable for payment of the following fees, the amounts being those in Article 3 above:
- Files processing fees;
- Control charges.

ARTICLE 5.- Applicants or holders of authorizations for radio stations to the Citizen Band (C.B.) shall be liable for the payment of the following fees, the amounts being those in Article 3 above:
- control charges;
- contribution to the management and regulation fees of the sector's activities calculated as per indivisible month;
- the royalty calculated as per indivisible month and multiplied by 0.5 for the use of frequencies.

ARTICLE 6.- Holders of authorizations for the establishment and operation of temporary radio networks shall be liable for the payment of the following charges, contributions and royalties:
- files processing fees;
- Station control charges for one year;
- contribution to the management and regulation fees of the sector's activities calculated as per indivisible month;
- the royalty for the use of frequencies calculated as per non indivisible month.

Amounts to be paid shall be calculated in conformity with Article 3 above.

ARTICLE 7.- Holders of authorizations for the establishment of an extension of the telephone lines shall be liable for the payment of the following charges and royalties:

- files processing fees;
- Royalties for the use the frequency;

Amounts to be paid shall be calculated in conformity with Article 3 above.

(2) For an extension within an area covered by a fix telephone line or an area served by a fix telephone to another area covered by a fix telephone line, the amount of the rental charges for the use of the frequency laid down by Article 3 above is multiplied by two (2).

(3) For an extension of a telephone line from an area served by a fix telephone line to an area not covered by a fix telephone line or an area covered by a fix telephone of which the network is not accessible, the rental fee is multiplied by 0.15.

ARTICLE 8.- For radio networks operational within the MF / HF / VHF bands used only for telegraphy, telex, remote control, pole signaling or data transportation, the rental charges due for the use of the frequency or the radio channel is multiplied by a ratio equal to 0.7.

ARTICLE 9.- (1) For a link between two localities, the rental charge for the use of the frequency or radio channel is that of the locality with the higher population density.

(2) For a radio network serving at least two localities, the rental charge applicable for the use of the frequency or radio channel is that of the locality with a higher population density.

ARTICLE 10.- For cases of interference signaled to the Board or cases of non-conformity of the installations, a flat rate of two hundred thousand (200,000) CFA francs shall be paid to the Board to control the conformity of the installations of the interfering frequency and / or irregular installations without prejudice of the application of criminal provisions set out in Law No. 98/014 of 14 July 1998 governing telecommunications in Cameroon, in particular in Articles 56 to 60.

ARTICLE 11:- A legal entity or a natural person wishing to carry out trial on radio propagation or frequency measurement and the radiated power, shall pay the following flat rates:

- Within the intervention area of a spectrum and network technical control centre: one hundred and fifty thousand (150,000) CFA francs;
- Out of the intervention area of a spectrum and network technical control centre: three hundred thousand (300,000) CFA francs.

ARTICLE 12.- Holders of radio networks installation licenses may duly commercialize radio equipment.

The technical reception of such equipment is done at the Board with a view to issuing a certificate of approval for their importation, the approved importer pays a non-refundable flat rate fixed as follows:

- less than five (5) pieces of equipment of the same type: one hundred thousand (100,000) CFA francs;
- more than five (5) pieces of the same type: thirty thousand (30,000) CFA francs per additional piece of equipment.

ARTICLE 13.- The payment of radio charges is ascertained each year by the issuing of one (or more) tax labels to the affixed on the equipment as well as on the windscreens of vehicles upon which the radio equipment is set up. The amounts shall be set as follows:

- fixed station equipment: two thousand (2,000) CFA francs;
- mobile or portable equipment: one thousand five hundred (1,500) CFA francs.

ARTICLE 14.- Holders of licenses for installations meant for collective reception or reception with the aim of redistribution, or broadcasting service, shall be liable for the payment of fees, taxes, contributions and royalties provided for in Article 3 above.

ARTICLE 15.- (1) Persons wishing to obtain a certificate of radio telegraph/radio telephone operator shall pay a review fee of fifteen thousand (15,000) CFA Francs before the start of the test.

(2) In case of loss of the original, a duplicate of the original certificate may be issued, against payment of the sum of seven thousand five hundred (7,500) CFA francs.

CHAPTER II

PRIVATE WIRELINE NETWORKS AND TELECOMMUNICATIONS SERVICES SUPPLY

ARTICLE 16.- (1) Concession holders, applicants for or holders of authorizations or declaration receipts for private wire lines telecommunications supply shall be liable for the payment of the following charges and contributions:

- Files processing fees;
- control charges;
- contribution to the management and regulation fees of the sector's activities;
- where applicable, rental charges for numbers.

(2) The amounts of fees, contributions and royalties defined above shall be fixed in Annex 2 of this Order.

CHAPTER III

APPROVAL OF TERMINAL EQUIPMENT INSTALLERS AND/OR TELECOMMUNICATIONS SERVICES PROVIDERS'LICENCES

ARTICLE 17.- (1) Applicants or holders of approval certificates for their terminal equipment shall be liable for the payment of the following stamp duties:

- files processing fees;
- drafting fees for the temporary admission certificate or approval attestation;
- approval charges;
- label fees.

(2) No complex terminal equipment may be commercialized but by a registered installer. The list of complex terminal equipment is published by the Telecommunications Regulatory Board.

(3) The amounts of charges and taxes specified in paragraph (1) above shall be laid down in Annex 3 of this order.

ARTICLE 18.- (1) Applicants or holders of installer authorizations and/or telecommunications services providers shall be liable for the payment of the following stamps duties:

- files processing fees;
- registration fees;
- label fees ;
- contribution to the management and regulation fees of the sector's activities.

(2) The amounts of charges, taxes and contributions specified in paragraph (1) above shall be fixed in Annex 4 to this Order.

PART III

METHODS FOR PAYMENT OF FEES, CONTRIBUTIONS AND ROYALTIES

ARTICLE 19.- (1) Methods for payment of fees, contributions and royalties specified in Articles 3, 4, 5, 6, 7, 16, 17, 18 and 21 shall be the following:

a) files processing fees, non-refundable flat charges to be paid when filing the application;
b) the control charges shall be paid once for the whole year no matter the date of issue of the license. They shall be paid in one instalment and for the whole year;
c) the contribution for management and regulation fee of the sector's activities is due upon the date of delivery of the authorization. It is paid in one instalment and for the whole year;
d) the charge for the use of frequencies is due from the date of assignment of the frequency and is paid in one instalment and for the whole year;
e) approval and registration charges shall be paid in once the study of the file has proven positive and in whatever case, before the issuing of approval or the registration;
f) Rental charges of numbers shall be due as from the date of allocation of numbers and shall be paid in one instalment and for the whole year.

(2) Control fees, contribution for management and regulation costs, as well as the frequency charge may be levied on the basis of a periodical billing agreed upon with the operator. The minimum billing period is one (1) month.

ARTICLE 20.- The frequencies chargesare reduced by half for public administrations and corporations and research centres certified by the statutory instruments in force.

ARTICLE 21.- Applicants of network modifications shall be liable for the payment of processing of record fees.

ARTICLE 22.- Payment in one instalment and at the beginning of the year of the total amount of control fees, contributions for management fees, and frequencies charges gives rise to a ten percent (10%) discount of the annual amount invoiced.

ARTICLE 23.- For service of the same type, the monthly contribution to the management and regulation of the sector's activities is collected once for each operator, no matter the number of networks it runs.

PART IV
FINANCIAL PENALTIES

ARTICLE 24.- The non-payment of rights, fees, contributions and royalties automatically leads to the suspension of authorizations and the affixing of seals on equipment.

ARTICLE 25.- Without prejudice to the implementation of the criminal provisions envisaged by Law No. 98/014 of 14 July 1998, the Board may, having considered the minutes of its sworn agents, inflict the following financial sanctions on the offenders:

a) affixing of seals for non-payment of bills: 10,000 to 50,000 CFA francs / component and per day.
b) refusal of control of an installation or of a station: 200,000 CFA francs.
c) element non declared of a private network: 50,000 francs / component.
d) non affixing of the label by the sellers, distributors, importers or license holders of private radio: 10,000 CFA francs / station or terminal.
e) non recognized equipment installer (of a network):
   - network opened to the public: 5,000,000 CFA francs;
   - independent private network: 2,000,000 CFA francs;
   - internal private network: 500,000 CFA francs.
f) non authorized contractor:
   - seller of telecommunications equipment : 1,000,000 CFA francs;
   - other service providers: 100,000 CFA francs.

(2) The Board receives all the sums indicated in the previous paragraph.
(3) Penalties envisaged in Article 24 above are public funds.

PART V
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 26.- (1) For any procedure before the Board, the applicant shall be bound to pay the procedure charges fixed by the Board and approved by the Minister in charge of telecommunications.
(2) These charges, whose amount depends on the nature and complexity of the disagreement, shall under no circumstance exceed five hundred thousand (500,000) CFA francs.

ARTICLE 27.- Annexes 1, 2, 3 and 4 shall be an integrant part of this order.

ARTICLE 28.- All previous contrary provisions to those of this Order are repealed, which will be registered, published under the procedure of urgency, and then inserted in the Official Gazette in English and French./-

Yaoundé, 20 February 2002

Michel MEVA'A m'EBOUTOU
The Minister of the Economy and Finance,

Maximin N'KOUE NKONGO
The Minister of Posts and Telecommunications

ANNEX 1 TO ORDER N°00080/MINEFI/MINPT OF 20 FEBRUARY 2002

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
A - Terrestrial radiocommunication Service				
Private networks (fixed or mobile)				
I-1 FM/HF Network (bandwith=3KHZ)	20 000			
a-Management control				
a. 1. Links between two localities served by telephone			15 000	
a.2 .Transmitter power less or equal to 50w		1900/Station		
- Fleet of less than 5 stations			15 000/Station	
- Fleet of 5 - 10 stations			13 000/Station	
- Fleet of more than 10 stations			5 600/extra Station	
- a.3. Transmitter power between 51 and 100 W		3 000/Station		
- Fleet of less than 5 stations			15 000/Station	
- Fleet of 5 - 10 stations			13 000/Station	
- Fleet of more than 10 stations			5 600/extra Station	
- a.4. Transmitter power higher than 100 W		12 000/Station		
- Fleet of less than 5 stations			15 000/Station	
- Fleet of 5 - 10 stations			13 000/Station	
- Fleet of more than 10 stations			5 600/extra Station	
b. Use of spectrum Spectral charge multiplied by K factor equal to [1+(N- 1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies				
b1.Link of 0-50 km				55 600
b2.Link of 51-100 km				66 600
b3.Link of 101-200 km				78 600
b4.Link of 201-500 km				111 100
b5.Link of more than 500 km				150 000
I-2 VHF/UHF Network (bandwidth=12.5KHZ)	20 000			
a1. Transmitter power lower than 10w		1000/ Transmitter or Station		
- Fleet of less than 10 Transmitters or Stations			2400/ Transmitter or Station	
- Fleet of 10 - 20 Transmitters or Stations			2000/ Transmitter or Station	
- Fleet of more than 20 Transmitters or Stations			700/extra Transmitter or Station	

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
- a2. Transmitter power between 10 and 25 W		1 000/Station or Transmitters		
- Fleet of fewer than 10 Transmitters or Stations			2400/ Transmitter or Station	
- Fleet of 10 - 20 Transmitters or Stations			2000/ Transmitter or Station	
- Fleet of more than 20 Transmitters or Stations			700/extra Transmitter or Station	
- a3. Transmitter power between 26 and 50 W		1000/Transmitter or Station		
- Fleet of fewer than 10 Transmitters or stations			2400/ Transmitter or Station	
- Fleet of 10 - 20 Transmitters or Stations			2000/ Transmitter or Station	
- Fleet of more than 20 Transmitters or Stations			700/extra Transmitter or Station	
- a4. Transmitter power between 51 and 100 W		2400/ Transmitter or Station		
- Fleet of fewer than 10 Transmitters or			2400/ Transmitter or Station	
- Fleet of 10 - 20 Transmitters or Stations			2000/ Transmitter or Station	
- Fleet of more than 20 Transmitters or Stations			700/extra Transmitter or Station	
- a5. Transmitter power higher than 100 W		2400/ Transmitter or Station		
- Fleet of fewer than 10 Transmitters or Stations			2400/ Transmitter or Station	
- Fleet of 10 - 20 Transmitters or Stations			2000/ Transmitter or Station	
- Fleet of more than 20 Transmitters or Stations			700/extra Transmitter or Station	
b. Use of spectrum spectral charges multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link				
b1. Link of 0-10 km				
Area of low congestion (rural area)				6 600
Area of medium congestion (urban area)				26 400
Area of intense congestion (urban area)				37 700
b2. Link of 11-50 km				
Area of low congestion (rural area)				13 000
Area of medium congestion (urban area)				52 100

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
Area of intense congestion (urban area)				74 400
b3. link of more than 50 km				
Area of low congestion (rural area)				22 700
Area of medium congestion (urban area)				91 000
Area of intense congestion (urban area)				130 000
I-3. Amateur radio station	20 000	4 000		
I-4. Experiment station	20 000	1 000	Nil	See charges applied to FM/HF/VHF/UHF according to the type of frequencies used
I-5. Radio links	300 000			
a. Management of networks				
a1.Network in a locality			43 000	
a2.Provincial Network			84 500	
a3. Inter- Provincial Network			107 500	
b. Stations monitoring				
b1 Terminal stations		4 700		
b2 Relay stations		2 800		
c. Use of spectrum spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link				
c1. Links fewer than 8 telephone circuits or of speed lower or equal to 512 kbit/s				72 000/link
c2. Links between 9-30 telephone circuits or of speed higher than 512 Mbit/s and less or equal to 2 Mbit/s				292 000/link
c3. Links of 31-120 telephone circuits or of speed higher than 2 Mbit/s				357 500/link
c4. Links between 121-600 telephone circuits or of speed higher than 8 Mbit/s and less or equal to 34Mbit/s				598 000/link
I-6 Network of radio paging/ one-way messaging in VHF/UHF (channel width=12.5 kHz				
a. Use of spectrum				

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link				
a1. Network in a locality	50 000			
a1.1 Area of low congestion (rural area)			11 600	
Radio paging				15 000/link
One-way messaging				30 000/link
a1.2 Area of medium congestion (urban area)			12 600	
Radio paging				25 000/link
One-way messaging				40 000/link
a1.3 Area of intense congestion (urban area)			15 100	
Radio paging				50 000/link
One-way messaging				100 000/link
a2. Provincial network (at least 2 localities)	150 000		30 900	
Radio paging				65 000/link
One-way messaging				130 000/link
a3 National network (in more than a province)	150 000		46 300	
Radio paging				100 000/link
One-way messaging				150 000/link
b. Stations monitoring				
b.1. Terminal stations		4 700		
b.2. Relay stations		3 700		
I-7 Trunked system in VHF/UHF(channel width=12.5 KHz)				
a. Use of spectrum spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link				
a1. Network in a locality	100 000			
- Area of low congestion (rural area)			11 600	77 700
- Area of medium congestion (urban area)			12 600	155 600
- Area of intense congestion (urban area)			15 600	252 200
a2. Provincial network (at least 2 localities)	150 000		30 600	298 100

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
Radio paging				65 000/link
One-way messaging				130 000/link
a3. National network (in more than a province)	150 000		46300	
b. Stations monitoring				
b.1 Base station		4 700		
b.2 Relay station		3 700		
I-8 Home loop				
a. Studies, monitoring and management				
a1. Relay station		3 000		
a2. Urban network: per base station	150 000	2800		
a3. Rural network: per base station	50 000	2800		
b. Spectral use per channel				
b1. Bandwidth of the working channel lower or equal to 20 KHz or speed of the working channel lower or equal to 20 kbps				
Area of low congestion (rural area)				500/channel
Area of medium congestion (urban area)				1500/channel
Area of intense congestion (urban area)				9200/channel
b2. Bandwidth of the working channel between 21-30 kHz or speed of the working channel between 21-30 kbps				
Area of low congestion (rural area)				500/channel
Area of medium congestion (urban area)				1 700/channel
Area of intense congestion (urban area)				9200/channel
b3. Bandwidth of the working channel between 31-100 kHz or speed of the working channel between 31-100 kbps				
Area of low congestion (rural area)				500/channel
Area of medium congestion (urban area)				1 900/channel
Area of intense congestion (urban area)				9 200/channel
b4. Bandwidth of the working channel between 101-200 kHz or speed of the working channel between 101-200kbps				
Area of low congestion (rural area)				2 100/channel
Area of medium congestion (urban area)				15 600/channel

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
Area of intense congestion (urban area)				22 200/channel
b5. Bandwidth of the working channel between 201-300 kHz or speed of the working channel between 201-300kbps				
Area of low congestion (rural area)				4 500/channel
Area of medium congestion (urban area)				18 100/channel
Area of intense congestion (urban area)				25 100/channel
B6. Bandwidth of the working channel between 301-600 kHz or speed of the working channel between 301-600kbps				
Area of low congestion (rural area)				5 100/channel
Area of medium congestion (urban area)				20 700/channel
Area of intense congestion (urban area)				29 600/channel
I-9 Radio network point to multipoint distribution with frequency hopping (Local Multipoint Distribution System), channel width=6 MHz				
a. Use of spectrum Spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link				
a1. Network in a locality	100 000		Percentage of the turnover to be mentioned in the licence	
- Area of low congestion (rural area)			11 600	36 200/channel
a1.1 Area of medium congestion (urban area)			12 600	108 800/channel
a2.1 Area of intense congestion (urban area)			15 600	326 400/channel
b. Stations monitoring		4 700		
II. Networks (fixed or mobile) opened to the public				
a. Use of spectrum Spectral charge multiplied by K factor equal to [(1+N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link				

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
a1. Network in a locality	400 000		Percentage of the turnover to be mentioned in the licence	
- Area of low congestion (rural area)				93 300
- Area of medium congestion (urban area)				137 500
- Area of intense congestion (urban area)				250 000
a2 Provincial network (at least 2 localities)	600 000		Percentage of the turnover to be mentioned in the licence	350 000
a3 National network (in more than a province)	2 500 000		Percentage of the turnover to be mentioned in the licence	500 000
Radio paging				100 000/link
One-way messaging				150 000/link
b. Stations monitoring				
b.1 Base station		5 600		
b.2 Relay station		4 600		
II-2 Trunked system in VHF/UHF(channel width=12.5 KHz)				
a. Use of spectrum spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link				
a1. Network in a locality	600 000		Percentage of the turnover to be mentioned in the licence	
-Area of low congestion (rural area)				150 300
-Area of medium congestion (urban area)				300 700
-Area of intense congestion (urban area)				429 600
a2. Provincial network (at least 2 localities)	1 000 000		Percentage of the turnover to be mentioned in the licence	637 000
a3. National network (in more than a province)	5 000 000		Percentage of the turnover to be mentioned in the licence	1 100 000
b. Stations monitoring				
b.1. Base station		5 600		
b.2. Relay station		4 600		
II-3 Cellular network and radio home loop				
3.1 Cellular network				

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
a. Base station		30 000	185 200	
b. Study and use of spectrum				
b1. Provincial network (total or partial coverage of a province) (width of the two-way link channel=200khz)				
Per two-way link channel in the 400 MHz band				518 500
Per two-way link channel in the 900 MHz band				592 500
Per two-way link channel in the 1 800 MHz band				481 400
Other bands (per two-way link channel)				300 000
b2. National network (total coverage of at least two provinces) (width of the two-way link channel=200khz)	8 000 000			
Per two-way link channel in the 400 MHz band				703 700
Per two-way link channel in the 900 MHz band				1 500 000
Per two-way link channel in the 1 800 MHz band				666 600
Other bands (per two-way link channel)				550 000
II-3.2 Radio home loop				
a. Studies, monitoring and management				
a1. Relay station		3 000		
a2. Urban network: per base station	700 000	2 800	92 600	
a3. Rural network: per base station	200 000	2 800	27 800	
b. Spectral charges per channel				
b1. Bandwidth of the working channel lower or equal to 20 KHz or speed of the working channel lower or equal to 20 kbps				
-Area of low congestion (rural area)				300/channel
-Area of medium congestion (urban area)				500/channel
-Area of intense congestion (urban area)				750/channel
b2. Bandwidth of the working channel between 21-30 kHz or speed of the working channel between 21-30 kbps				
-Area of low congestion (rural area)				500/channel
-Area of medium congestion (urban area)				750/channel
-Area of intense congestion (urban area)				1000/channel

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
b3. Bandwidth of the working channel between 31-100 kHz or speed of the working channel between 31-100 kbps				
-Area of low congestion (rural area)				500/channel
-Area of medium congestion (urban area)				1 000/channel
-Area of intense congestion (urban area)				1500/channel
b4. Bandwidth of the working channel between 101-200 kHz or speed of the working channel between 101-200kbps				
-Area of low congestion (rural area)				2 100/channel
-Area of medium congestion (urban area)				15 600/channel
-Area of intense congestion (urban area)				22 200/channel
b5. Bandwidth of the working channel between 201-300 kHz or speed of the working channel between 201-300kbps				
-Area of low congestion (rural area)				4 500/channel
-Area of medium congestion (urban area)				18 100/channel
-Area of intense congestion (urban area)				25 100/channel
B6. Bandwidth of the working channel between 301-600 kHz or speed of the working channel between 301-600kbps				
-Area of low congestion (rural area)				5 100/channel
-Area of medium congestion (urban area)				20 700/channel
-Area of intense congestion (urban area)				29 600/channel
II-4 Radio network point to multipoint distribution with frequency hopping (Local Multipoint Distribution System), channel width=6 MHz				
a. Use of spectrum Spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies				
a1. Network in a locality	200 000		Percentage of the turnover to be mentioned in the licence	

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
Area of low congestion (rural area)				60 400/channel
a1.1 Area of medium congestion (urban area)				181 300/channel
a2 .1 Area of intense congestion (urban area)				544 000/channel
Monitoring of stations		5600		
II-5 Microwave beam system				
a. Studies and management of networks				
a1. Network in a locality	500 000		429 700	
a2. Provincial Network	1 200 000		1 074 100	
a3. National Network	3 500 000		2 148 200	
b. Monitoring stations				
b1. Terminal station		5600		
b2. Relay station		3800		
c. Use of spectrum Spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link.				
c1. Link between 1-120 telephone channels or of speed lower or equal to 8 Mbps				640 000/ link
c2. Link between 121-600 telephone channels or of speed higher or equal to 34Mbps				973 000/ link
c3. Link between 601-1200 telephone channels or of speed higher than 34 Mbps or lower or equal to 8 Mbps				1 500 000/ link
c4. Link of more than 1200 telephone channels or of speed of more than 140Mbps				2 900 000 /link
III Terrestrial maritime radio service				
III-1 Private coast station	400 000	4 700	46 300	
a. Use of spectrum Spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link.				
a1. VHF/UHF bands (bandwidth=12.5KHz)				13 800/ link
a1. FM/HF bands(bandwidth=3KHz)				32 400/ link

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
III-2 Coast station opened to public correspondence	800 000	5 600	92 600	
a. Use of spectrum Spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link.				
a1. VHF/UHF bands(bandwidth=12.5KHz)				13 890/ link
a1. FM/HF bands(bandwidth=3KHz)				32 410/ link
III-3 Merchant ship station	20 000	4 700	16 300	
a. Use of spectrum Spectral charge multiplied by K factor equal to [(1+N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link.				
a1. VHF/UHF bands(bandwidth=12.5KHz)				100 000/ link
a1. FM/HF bands(bandwidth=3KHz)				42 800/ link
III-4 Fishing vessel station	20 000	4 700	11 600	
a. Use of spectrum Spectral charge multiplied by K factor equal to [1+(N-1)/10] for every frequency or radio channel granted for the same link, with N equal to the number of channels or to radio frequencies granted for the same link.				
a1. VHF/UHF bands				100 000/ link
a1. FM/HF bands				42 800/ link
III-5 Pleasure boat station	20 000	4 700	4 700	9 200
III-6 other ship stations	20 000	4 700	11 600	70 000
B. RADIOCOMMUNICATION SERVICE BY SATELLITE				
I. LINKS AND TERRESTRIAL STATIONS OF FIXED SERVICE BY SATELLITE OF PRIVATE USER NETWORKS.				
I-1 Terrestrial station				
a. Diameter of antenna				

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
a.1 Diameter of antenna lower than 1.5 m	60 000	2 800	11 200	
a.2 Diameter of antenna between 1.5 m-3m	100 000	4 700	37 100	
a.3 Diameter of antenna between 3 m-7m(diameter of 7m excluded)	150 000	5 700	47 100	
a.4 Diameter of antenna between 7 m-12m	500 000	7 500	518 600	
a.5 Diameter of antenna higher than 12 m	800 000	7 500	538 000	
b. Use of spectrum				
b1. Link of speed lower or equal to 64 Kbps				3 400/ link
b2. Link of speed higher than 64 Kbps lower or equal to 256 Kbps				22 500/ link
b3. Link of speed higher than 256 Kbps lower or equal to 512 Kbps				60 000/ link
b4. Link of speed higher than 512 Kbps lower or equal to 2 Mbps				270 000/ link
b5. Link of speed higher than 2 Mbps lower or equal to 8 Mbps				320 000/ link
b6. Link of speed higher than 8 Mbps lower or equal to 34 Mbps				538 000/ link
b7. Link of speed higher than 34 Mbps lower or equal to 140 Mbps				1 333 300 link
b8. Link of speed higher than 140 Mbit/s				5 416 000/ link
II. LINKS AND TERRESTRIAL STATIONS OF FIXED SERVICE BY SATELLITE OF NETWORKS OPENED TO THE PUBLIC.				
II-1 Terrestrial station				
a. Diameter of antenna				
a.1 Diameter of antenna lower than 1.5 m	100 000	4 800	13 400	
a.2 Diameter of antenna between 1.5 m-3m	150 000	6 700	44 500	
a.3 Diameter of antenna between 3 m-7m(diameter of 7m excluded)	300 000	7 700	56 500	
a.4 Diameter of antenna between 7 m-12m	800 000	9 500	622 300	
a.5 Diameter of antenna higher than 12 m	1 200 000	9 500	645 600	
b. Use of spectrum				
b1. Link of speed lower or equal to 64 Kbps				6 800/ link
b2. Link of speed higher than 64 Kbps lower or equal to 256 Kbps				45 000/ link
b3. Link of speed higher than 256 Kbps lower or equal to 512 Kbps				120 000/ link
b4. Link of speed higher than 512 Kbps lower or equal to 2 Mbps				540 000/ link

Networks or stations	Cost of processing of records (in CFAF)	Monthly cost of Stations/ Networks monitoring (in CFAF)	Monthly contribution to the management and regulation expenditures of the sector activities (in CFAF)	Monthly charges for the use of a frequency or a radio channel (in CFAF)
b5. Link of speed higher than 2 Mbps lower or equal to 8 Mbps				640 000/ link
b6. Link of speed higher than 8 Mbps lower or equal to 34 Mbps				1 072 000/ link
b7. Link of speed higher than 34 Mbps lower or equal to 140 Mbps				2 666 600/ link
b8. Link of speed higher than 140				10 832 000/ link
b.9 Spectral charge multiplied by K factor equal to [1+(N-1)/10] for every link piloted by a HUB based abroad.				
II-2 Community terrestrial station				
Broadcasting by point to multipoint system	200 000	4 700		
a. Management and use of spectrum				
a1. Emission fewer than 05 channels of 6MHz/channel				
Area of intense congestion			18 600	67 000/channel
Area of medium congestion			13 900	33 500/channel
Area of low congestion			9 300	22 000/channel
a2. Emission between 05-10 channels of 6 MHz/channel				
Area of low congestion			20 800	69 000/channel
Area of medium congestion			31 200	104 000/channel
Area of intense congestion			41 700	206 000/channel
a3. Emission of more than 10 channels of 6MHz/channel				
Area of low congestion			41 700	138 000/channel
Area of medium congestion			62 500	208 000/channel
Area of intense congestion			83 400	416 000/channel

Michel MEVA'A m'EBOUTOU

The Minister of the Economy and Finance

Maximin NKOU'É NKONGO

The Minister of Posts and Telecommunications

ANNEX 2 TO ORDER N°00080/MINEFI/MINPT OF 20 FEBRUARY 2002

TO ESTABLISH PRIVATE NETWORKS AND SUPPLY OF SERVICES

NETWORKS AND SERVICES	PROCESSING FEE	MONTHLY CONTROL TAX	MONTHLY CONTRIBUTION TO MANAGEMENT AND REGULATION FEE OF THE SECTORS' OBSER	OBSERVATIONS
I- PRIVATE WIRELINE NETWORKS				
I-1 Private independent networks for collective use		5000 CFAF		
a) Weak congested area b) mid congested area c) intense congested area	35 000 cfaf 40 000 cfaf 50 000 cfaf			
I- 2 Private independent networks for private use		5000 CFAF		
a) Weak congested area b) mid congested area c) intense congested area I-3 Internal private network	20 000 cfaf 30 000 cfaf 35 000 cfaf 20 000 cfaf			
II - NETWORKS OPENED TO THE PUBLIC				
II-1 Number leasing fee			16cfaf/number	
II-2 Telephone booths			See turnover percentage as set in the authorisation	
II- 2-1 Public telephone booths out of public road in different locations of the	150 000 cfaf		See turnover percentage as set in the authorisation	
II-2-2 Public telephone booth on public	250 000 CFAF			
II-3 Cybercafe (line speed ≥ 2Mbits) per unit	150 000 CFAF			
II- 4 Vocal server (unit)	20 000			
II- 5 Teleconference and videoconference centre	100 000 CFAF			
II-6 Videotext per unit	50 000			
II- 7 Cable operator (per flagship)	50 000 CFAF		-" -	
II- 8 Bearer service	150 000		-" -	
II- 9 Telecommunication service covering a rural area	250 000 F		-" -	
II-10 Telecommunications service from GMPCS terminals	250 000 CFAF		-" -	
II- 11 Service supply to free establishment(per unit)	50 000 CFAF		-" -	
II-12 Other value-added services	150 000		-" -	

Michel MEVA'A m'EBOUTOU

The Minister of the Economy and Finance

Maximin NKOU'É NKONGO

The Minister of Posts and Telecommunications

ANNEX 3 TO ORDER N°00080/MINEFI/MINPT OF 20 FEBRUARY 2002

CERTIFICATION OF TERMINAL EQUIPMENT

ITEM	PROCESSING FEE	HOMOLOGATION FEE	ART LABEL	CONTRIBUTIONS TO THE SPECIAL FUND FOR	CONTRIBUTION TO THE ACTIVITY MANAGEMENT AND CONTROL FEE
I- FIXED NETWORK SET					
I-1 Ordinary telephone set	10 000 CFAF	50000 CFAF	500 CFAF/unit		
I-2 Complex telephone set	20 000 CFAF	70 000 CFAF	1000 CFAF/unit		
II- TELEPHONE AIDS EQUIPMENT					
II-1 utomatic answering equipment	20 000 CFAF	150 000 CFAF	1000 CFAF/unit		
II- 2 Other telephone aid equipment	20 000 CFAF	150 000 CFAF	1000 CFAF/unit		
III-MOBILE TELEPHONE TERMINALS					
III-1 GSM terminals	20 000 CFAF	100 000 CFAF	500 CFAF/unit		
III-2 GMPCS terminals	See text on authorisation plan			(MOU)	
III-3 GPS terminals	See text on authorisation plan			PM	
III-4 Other mobile terminals	20 000 CFAF	150000CFAF	1000 CFAF/unit		
IV- INTERCOMMUNICATING EQUIPMENT					
IV-1 Private automatic switches					
IV-1-1 Fewer than 50 PS	30 000 CFAF	70 000 CFAF	1000 CFAF/unit		
IV-1-2 Between 50 and 100 PS	50 000 CFAF	100 000 CFAF	5000/CFAF unit		
IV-1-3 From 100 to 200 PS	50 000 CFAF	150 000 CFAF	10 000 CFAF/unit		
IV-1-4 From 201 to 500 PS	10 000 CFAF	20 0000 CFAF	15 000 CFAF/unit		
IV-1-5 More than 500 PS	150 000 CFAF	300 000 CFAF	25 000 CFAF/unit		
IV - 2 Inter switch	20 000 CFAF	70 000 CFAF	1 000 CFAF/unit		
V- OTHER TERMINALS					
V-1 Fax machines	20 000 CFAF	70 000 CFAF	1 000 CFAF /unit		
V-2 Modems	10 000 CFAF	50 000 CFAF	500 CFAF /unit		
V-3 Telex terminals	2 0 000 CFAF	70 000 CFAF	1 000 CFAF /unit		
V-3 Other terminals for public networks	20 000 CFAF	70 000 CFAF	1 000 CFAF /unit		

CERTIFICATES AND ATTESTATION OF ISSUANCE

DESCRIPTION	PROCESSING FEE
VI- TEMPORARY ADMISSION CERTIFICATE (non-certified terminals)	20 000 CFAF
VII- ATTESTATION OF CERTIFICATION	
VII - 1 Fixed network telephone set	50 000 CFAF
VII - 2 Peritelephony equipment	150 000 CFAF
VII - 3 Mobile telephony	100 000 CFAF
VII - 4 Dupplicate	20 000 CFAF
VII - 5 Other terminals	70 000 CFAF

Michel MEVA'A m'EBOUTOU

The Minister of the Economy and Finance

Maximin NKOU'É NKONGO

The Minister of Posts and Telecommunications

ANNEX 4 TO ORDER N°00080/MINEFI/MINPT OF 20 FEBRUARY 2002

CERTIFICATION OF TERMINAL EQUIPMENT

DESCRIPTION	PROCESSING FEE	LICENCE FEE	LABEL	CONTRIBUTIONS TO THE SPECIAL FUND FOR TELECOMMUNICATIONS	CONTRIBUTION TO THE ACTIVITY MANAGEMENT AND CONTROL FEE
VIII- TELECOMMUNICATIONS EQUIPMENT TRADER LICENCE	10 000 CFAF	40 000 CFAF	See annex 3		
IX- INSTALLER LICENCE	10 000 CFAF	50 000 CFAF	See annex 3		100 000 CFAF
X- TELECOMMUNICATIONS SERVICE PROVIDER LICENCE	20 000 CFAF	70 000 CFAF	See annex 3		100 000 CFAF

Michel MEVA'A m'EBOUTOU

The Minister of the Economy and Finance

Maximin NKOU'É NKONGO

The Minister of Posts and Telecommunications

ORDER No.00000013 /MINPOSTEL OF 27 JUNE 2012 To determine the terms and conditions for the approval of electronic communications terminal equipment and radioelectric installations.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution ;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 to establish the minimum service in the telecommunications sector;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 2005/124 of 15 April 2005 to organize the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organize the Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organization and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/1638/PM of 14 June 2012 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Order sets out the procedures for the approval of electronic communications terminal equipment and radio installations.
(2) It is taken pursuant to the provisions of Article 55 of Decree No. 2012/1638/PM of 14 June 2012 laying down the modalities for the establishment and/or operation of networks and the provision of electronic communications services subject to the authorization regime.

ARTICLE 2.- To implement this order, the following definitions are accepted:

1. **Conformity check**: data survey aiming at the confrontation of the parameters and the conditions object of the authorization when the network is operational;
2. **Terminal equipment**: equipment, installation or set of installations intended to be connected to a network termination point and which transmits, receives or processes electronic communications signals; it does not include equipment allowing access to audiovisual communication services broadcast over the air or distributed by cable, except where such equipment also allows access to other electronic communications services;
3. **Approval**: an expert assessment and verification operation carried out by an approved body to certify that the prototype of electronic communications equipment and systems meets the regulations and technical specifications in force.

ARTICLE .:- (1) Electronic communications terminal equipment intended to be connected to a public electronic communications network and equipment intended for radio installations, imported or manufactured in Cameroon, must be approved beforehand by type and model.

(2) Radio installations, whether or not they are intended to be connected to a network open to the public, shall be approved beforehand by make, type and model.

ARTICLE 4.- (1) The purpose of approval is to guarantee compliance with the essential requirements and to verify the conformity of electronic communications terminal equipment and radio installations with the norms and standards in force in Cameroon, as well as their interoperability.

(2) The essential requirements referred to in paragraph (1) above relate to:
- the safety of users;
- the safety of personnel operating electronic communications networks;
- the electromagnetic compatibility specific to the terminal equipment or radio installation;
- the protection of the public electronic communications network against damage;
- the efficient use of the radio frequency spectrum, where appropriate;
- the interconnection of terminal equipment with public electronic communications network equipment for the purpose of establishing, modifying, charging, monitoring, maintaining and releasing virtual or real connections;
- the interoperability of networks and terminal equipment, as well as the protection of personal data;
- the interconnection of terminal equipment to the electronic communications network open to the public in justified cases;
- the respect of the limits of public exposure to non-ionizing electromagnetic fields.

ARTICLE 5.- The approval of equipment may be requested by the manufacturer of the equipment, its duly authorized local representative or by any person wishing to market electronic communications terminal equipment or a radio installation or to use it privately.

CHAPTER II
APPROVAL PROCEDURE

SECTION I
THE APPLICATION FOR APPROVAL

ARTICLE 6.- (1) Any natural person or legal entity wishing to have electronic communications equipment or a radio installation approved shall submit an application for approval to the Telecommunications Regulatory Board, hereinafter referred to as "the Board".

(2) The application for approval provided for in paragraph (1) above shall comprise an administrative file and a technical file.

a) The administrative file shall include the following items:
- **Concerning natural persons**:
  - a stamped application at the current rate addressed to the Board;
  - a copy of the approval issued by the competent authority of the country of origin of the material concerned, if applicable;
  - a receipt of payment of the fees for studying the file issued by the Board.
- **With regard to legal persons**:
  - a stamped application at the current rate addressed to the Board;
  - a certified copy of the certificate of registration in the Trade and Personal Property Credit Register, if applicable;
  - a certified true copy of the taxpayer's card;
  - a copy of the approval issued by the competent authority of the country of origin of the material concerned;
  - a tax clearance certificate for corporate bodies established in Cameroon, if necessary;
  - a receipt of payment of the fees for studying the file issued by the Board.

b) The technical file produced in four (04) copies shall comprise the following documents:
- an application form for approval is provided by the Board, duly completed and signed by the applicant;
- an indication of the field of use;
- a declaration of conformity from the manufacturer of the equipment showing all the standards used for the manufacture of the equipment concerned;

- copies of test reports relating to electromagnetic compatibility and safety;
- a technical documentation written in French or English including:
  - a detailed description of the type and model of electronic communication equipment or radio installation, including its technical specifications;
  - design and manufacturing drawings with lists of components, sub-assemblies and circuits, as well as the descriptions necessary for their understanding;
  - the operating instructions including the programming and commissioning mode;
  - the user's manual;
  - three (03) samples of the terminal equipment for which approval is requested.

ARTICLE 7.- (1) The complete file is deposited at the Board against a receipt.
(2) The decision of the Board shall be made within ninety (90) days from the date of filing.
(3) After the deadline referred to in the above paragraph (2), the approval shall be deemed to be granted.

ARTICLE 8.- (1) The Board shall examine the approval files and carry out all necessary inspection and testing operations.
(2) The Board may ask the applicant to install the electronic communications equipment or the radio installation to be approved for testing purposes.
(3) The technical expertise for the purposes of certification may be entrusted by the Board to an approved electronic communications equipment test and measurement laboratory.

ARTICLE 9.- The Board may request the opinion of certain competent administrations for the approval or importation of certain terminal equipment or radio installations. In this case, the Board's decision is taken after receiving the opinion of the administration concerned.

ARTICLE 10.- (1) If the equipment complies with the requirements of this Order, the approval shall be issued by the Board.
(2) Any refusal of approval is justified and notified to the applicant.

ARTICLE 11.- A compulsory sticker is hereby instituted to be affixed to each piece of electronic communications equipment or approved radio installation before sale, distribution, installation or use in Cameroon.

ARTICLE 12.- (1) Approval is granted for a renewable period of three (03) years.
(2) Renewal shall follow the same rules of form and procedure as those for the initial application provided for in this Order.

ARTICLE 13.- Any approved electronic communications equipment or radio installation that has undergone, subsequent to approval, changes in the technical characteristics tested at the time of approval shall be subject to approval renewal.

SECTION III
TEMPORARY ADMISSION CERTIFICATE

ARTICLE 14.- (1) The certificate of temporary admission shall be issued by the Board for the Importation of Electronic Communications Equipment or Radio Installations for the purpose of submitting them for approval.
(2) The certificate mentioned in paragraph (1) above is also granted for demonstration, exhibition or temporary use.

ARTICLE 15.- (1) The application for a temporary admission certificate, together with the technical file referred to in Article 6 above, must be submitted to the Board at least thirty (30) days before the planned date of arrival of the equipment or the beginning of the event.
(2) The decision of the Board shall be taken within ten (10) days from the date of submission of the application.

ARTICLE 16.- The period of validity of the temporary admission certificate for the purpose of approval is valid for a period of two (02) months renewable once (01).

ARTICLE 17.- Notwithstanding the provisions of Articles 14 and 15 above, the Board shall take the necessary measures to facilitate the temporary admission of electronic communications terminal equipment and radio installations for relief operations in emergency, distress and disaster-stricken situations.

SECTION IV
APPROVED RADIO EQUIPMENT AND INSTALLATIONS

ARTICLE 18.- The Board shall issue the certification for the importation or manufacture of:
- approved electronic communications equipment;
- spare parts for equipment already approved and installed.

ARTICLE 19.- (1) The application for a certificate of approval shall specify the brand, model, type of equipment, quantities to be imported, the manufacturer and the country of origin.
(2) The application referred to in paragraph (1) above shall be accompanied by the technical file referred to in Article 6 of this Order.
(3) The decision of the Board shall be taken within fifteen (15) days from the date of reception of the application.

ARTICLE 20.- (1) The equipment to be sold, distributed or installed must be identical to the model of the equipment that received the approval.
(2) The approved model shall not be modified in any way without the prior approval of the Board.

ARTICLE 21.- (1) The approval granted under this Order shall under no circumstances be considered a guarantee by the Board for the proper operation, performance and quality of the equipment.
(2) It is the responsibility of the manufacturer, importer or distributor to ensure that the approved equipment functions properly in the public electronic communications network.
(3) The Board shall not be liable for any interference to other equipment, injury, loss of life or damage to property resulting from the direct or indirect use of certified equipment.

ARTICLE 22.- (1) The manufacturer, importer or distributor, before selling any electronic communications equipment, shall ensure that such equipment conforms to the standards and specifications accepted by the Board and ensure its compatibility with the electronic communications network.
(2) Any approved electronic communications terminal equipment may be connected to a public electronic communications network without prior inspection by the operator of that network.
(3) Subject to the provisions of paragraph (1) above, an electronic communications network operator may not refuse the connection to its network of approved equipment.

ARTICLE 23.- (1) The Board, on its own initiative or following a complaint from any person, may conduct investigations into the operation and use of approved radio equipment or installations.
(2) The Board may revoke a Certification Approval when:
- the holder has violated the terms and conditions of the approval;
- the radio equipment or installation is likely to cause damage or harmful interference to the electronic communications network or presents a risk to human health or the environment;
- the radio equipment or installation causes interference with the efficient provision of an electronic communications service.

CHAPTER III
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 24.- The approval type, the temporary approval type certificate or the certificate of approval does not constitute a legal instrument that authorizes the provision of electronic communications services or the use of radio frequencies.

ARTICLE 25.- (1) The Board may carry out measurements or checks to ensure compliance with the conditions under which the approval was granted.
(2) When the provisions of this Order are not complied with, or if modifications or violations of the technical elements contained in the approval are noted, the Board may impose the sanctions provided for in the regulations in force.

ARTICLE 26.- (1) In the event of a duly noted violation, the Board shall give the offender formal notice to comply with the legislative and regulatory provisions in force.
(2) When the offender does not comply with the formal notice provided for in paragraph (1) above, he/she is liable to the sanctions provided for by the regulations in force.

ARTICLE 27.- The services related to the approval provided for in this Order are subject to dues and fees, the nature, amounts and methods of payment of which are under a specific text.

ARTICLE 28.- The approval certificates delivered before the date of signature of this order shall remain valid.

ARTICLE 29.- This Order, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 27 June 2012

Jean-Pierre BIYITI bi ESSAM

THE MINISTER OF POSTS AND TELECOMMUNICATIONS

ORDER No.00000014 /MINPOSTEL OF 27 JUNE 2012 To lay down certificate qualification criteria and technical specifications of electronic signatures creation device.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 to establish the minimum service in the telecommunications sector;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Law No. 2010/021 of 21 December 2010 to govern E-Commerce in Cameroon;
Mindful of the Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/1318/PM of 22 May 2012 to lay down conditions and modalities to grant authorisation to carry out electronic certification activity,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Order sets out the qualification criteria for certificates and the technical characteristics of the electronic signature creation system.
(2) It is taken pursuant to the provisions of Articles 18, 20 paragraph (2) and (21) of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon.

ARTICLE 2.- Electronic certificates shall be issued in particular for the following operations:
- the identification of its holder;
- the certification of completion of a transaction, as well as the fixing of its date and time;
- the completion of electronic transactions.

ARTICLE 3.- To implement this Order, the following definitions are accepted:
1. **Algorithm**: sequence of elementary mathematical operations to be applied to data so as to lead to a desired result;
2. **Private key**: formula (key) used in asymmetric encryption mechanisms (or public key encryption), which belongs to an entity and which must be secret;
3. **Public key**: formula (key) used for the encryption of a message in an asymmetric system and therefore freely distributed;
4. **Confidentiality**: the act of keeping private information and transactions in order to pre-empt the unauthorized disclosure of information to unauthorized recipients. This can give room to an illegal, intentional or accidental reading, hearing and copy during their storage, process or transfer;

5. **Electronic signature creation device**: all public equipment and/or software used for encryption which are approved by an accredited certification authority and set up to create an electronic signature;
6. **Reliability**: the ability for an information system or electronic communications network to work trouble-free for a long period of time.

CHAPTER II
QUALIFICATION CRITERIA FOR ELECTRONIC CERTIFICATES

ARTICLE 4.- The electronic certificate is issued by an accredited electronic certification authority.

ARTICLE 5.- The electronic certification authority is required to issue electronic certificates in accordance with the standards prescribed by the National Agency for Information and Communication Technologies, hereinafter referred to as "the Agency".

ARTICLE 6.- (1) The electronic certificate shall contain the following mandatory information:
- the level of the certificate;
- the unique code identifying the certificate;
- the identity and address of the authority issuing the certificate;
- the unique identifier of the certification authority;
- the identity of the natural person or the corporate name of the legal entity holding the certificate;
- the domain name and identity of the server manager, and the name of the domain and the identity of the network manager;
- the date of commencement and expiration of the certificate in day, hour, minute, second and tenth according to Greenwich Mean Time (GMT);
- the unique identifier of the certificate holder;
- the certificate holder's signature verification scheme and related algorithms;
- the certification authority's electronic signature and related algorithms.

(2) Without prejudice to the provisions of paragraph (1) above, the electronic certificate may also contain the optional information provided for by the national and international standards in force.

CHAPTER III
TECHNICAL CHARACTERISTICS OF THE DEVICE FOR CREATING ELECTRONIC SIGNATURES

ARTICLE 7.- (1) A secure device for the creation of electronic signatures must guarantee, through appropriate technical means and procedures, that the data for the creation of the said signature are:
- confidential and cannot be created more than once;
- protected against falsification and cannot be found by inference;
- capable of being satisfactorily protected by the signatory against use by third parties.

(2) A secure electronic signature creation device must not result in any alteration of the content of the document to be signed, nor prevent the signatory from having exact knowledge of it before signing it.

ARTICLE 8.- Any person using an electronic signature creation device must:
- take the minimum precautions to avoid the illegal use of the encryption elements or the personal equipment related to his/her signature;
- inform the certification authority of any illicit use of the signature;
- ensure the veracity of all the data that he/she has declared to the electronic certification authority and to any person he/she has asked to rely on his signature.

ARTICLE 9.- (1) Any person wishing to create an electronic signature must use a device comprising:
- a key pair consisting of a private key used to create the signature and a public key used to verify the signature;
- a password or any other security method.

(2) The key pair referred to in paragraph (1) above is created by a reliable device and procedures, taking into account the technical progress in the field, the uniqueness, the length of the keys created and the level of assurance of the confidentiality of the private key.

ARTICLE 10.- The key pair creation device guarantees in particular:
- the creation of key pairs in a form that complies with the standards in force;
- the conformity of the key pairs to the conditions of the algorithms of creation and verification of the signature defined in the specifications of the certification authorities;
- the uniqueness of the key pairs.

ARTICLE 11.- The key pairs are unique and personal. They are neither assignable nor transferable for any reason whatsoever.

ARTICLE 12.- The holder of the private key guarantees the conditions of security and protection.

ARTICLE 13.- (1) The electronic certification authority controls access to the key creation system.
(2) It identifies each user of this device and registers all the operations carried out through the use of this device in a specific register.

ARTICLE 14.- (1) The key pairs must be kept at the electronic certification authority by means of any reliable security process.
(2) They are divided into several parts, each of which is kept at a different entity of the services of the electronic certification authority.

ARTICLE 15.- (1) The holder of a key and the electronic certification authority shall use a signature device that allows:
- to store and use the private key by means of any reliable security process;
- hide the private key after each use.

(2) In case of loss of the private key, the holder shall immediately inform the certification authority which shall take all appropriate measures.

ARTICLE 16.- (1) The certificates used by the electronic certification authority are classified, according to their functions, in three categories:
- the pairs used for the creation and verification of the electronic signature;
- pairs used for the creation and verification of the signature registered on the electronic certificate and the related records;
- pairs used for date and time registration.

(2) The key pairs referred to in paragraph (1) above may only be used for the functions to which they are dedicated.

CHAPTER IV
FINAL PROVISION

ARTICLE 17.- This Order shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 27 June 2012

Jean-Pierre BIYITI bi ESSAM

THE MINISTER OF POSTS AND TELECOMMUNICATIONS

ORDER No.00000015 /MINPOSTEL OF 27 JUNE 2012 To lay down the terms and conditions for unbundling the local loop of electronic communications networks.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 to institute the minimum service in the telecommunications sector;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 2005/124 of 15 April 2005 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY ORDERS AS FOLLOWS:

CHAPITER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Order sets out the procedures for unbundling the local loop of electronic communications networks.
(2) It concerns access to the wireline local loop of electronic communications networks.

ARTICLE 2.- For the purposes of this Order, the following definitions shall apply:
1. **Unbundled access to the local loop**: provision of fully unbundled access or shared access to the local loop, the local loop remaining the property of the operator offering this unbundled access;
2. **Fully unbundled access to the local loop**: provision to a beneficiary of access to the local loop of the operator offering unbundled access, authorizing the use of the entire frequency spectrum available on the metallic pair. The end customer is then no longer a subscriber of the operator offering unbundled access;
3. **Shared access to the local loop**: provision to a beneficiary of access to the local loop authorizing the use of the non-voice frequencies of the frequency spectrum available on the metallic twisted pair; the local loop continues to be used by the operator offering unbundled access to provide the traditional telephone service to the public. In this case, the subscription continues to be paid by the user to the operator offering unbundled access;
4. **Co-location**: provision of space and technical resources necessary for hosting and connecting the operators' technical equipment.

CHAPTER II
THE UNBUNDLING PROCEDURE

ARTICLE 3.- (1) Operators operating electronic communications networks open to the public for the provision of fixed electronic communications services shall be required to grant, under objective, transparent and non-discriminatory conditions, requests for access to the wired local loop and related resources.

(2) The related facilities referred to in paragraph (1) above include those associated with the provision of unbundled access to the local loop, such as co-location of connecting cables and relevant information technology systems to which access is necessary to enable a beneficiary to provide competitive basic services.
(3) The applications referred to in paragraph (1) above shall be made by operators holding an operating licence for electronic communications networks open to the public.

ARTCICLE 4.- (1) The operator requesting access to the wired local loop shall submit a request to the operator offering unbundled access by any means that leaves a written record against acknowledgement of receipt. The request shall be accompanied by a copy of its operating licence.
(2) The operator offering unbundled access shall have a maximum period of ten (10) days from the date of receipt of the request to act on it. It may refuse to grant a request only for duly justified technical reasons.

ARTICLE 5.- (1) Unbundling is the subject of an agreement between the parties.
(2) The technical and financial conditions of access to the local loop, of co-location and of joint use of the infrastructure shall be set out in the agreement referred to in paragraph (1) above.
(3) The agreement shall specify all the measures to be observed by the operators concerned, in particular:
- the security of network operations;
- the maintenance of network integrity;
- the interoperability of services;
- the technical characteristics of the facilities and infrastructures covered by the service;
- the conditions of physical access to the facilities and infrastructures;
- the operating conditions in terms of space, management and maintenance;
- the information that the parties must communicate to each other on a regular basis to ensure proper management of the sites, facilities and infrastructures;
- the conditions relating to the respect of radio easements;
- the duration of the provision of the sites, facilities and infrastructures;
- the rates for services and the billing and collection procedures, as well as the terms of payment;
- the limits of liability of users occupying the site or infrastructure;
- the implementation schedule.

ARTICLE 6.- (1) The draft agreement initialled by both parties shall be sent by each contractor to the Board for approval by registered letter with acknowledgement of receipt. The Board shall have a period of thirty (30) days in which to act on it.
(2) Where conditions of competition and network interoperability are not guaranteed, the Board shall require the parties to amend the draft unbundling agreement. In such cases, the period provided for in paragraph (1) above shall be suspended.

CHAPTER III
DESCRIPTION OF THE SERVICES AND TERMS AND CONDITIONS FOR THE PROVISION OF UNBUNDLED ACCESS

SECTION I
DESCRIPTION OF THE SERVICES

ARTICLE 7.- (1) The operator offering unbundled access to the local loop shall draw up and submit to the Board for approval, prior to publication, a technical and tariff reference offer establishing the conditions and procedures for access to the local loop of its network.
(2) The reference offer submitted to the Board for approval shall be accompanied by all the information needed to assess the application of the criteria of objectivity, transparency and cost-orientation of tariffs.
(3) The operator offering unbundled access to the local loop shall have a period of thirty (30) days following approval by the Board to publish its reference offer in a legal gazette or a general information newspaper, and on its website. If the operator fails to publish the catalogue, the Board shall do so at the operator's expense. The operator is obliged to communicate his offer to any other operator who requests it.
(4) The Board may request the modification of the offer, when circumstances so require.

ARTICLE 8.-The services described in the reference offer must be broken down in such a way as to enable operators to request only those services that are strictly necessary.

ARTICLE 9.- The information obtained within the framework of a negotiation of access to the local loop can only be used for the purposes explicitly foreseen during the communication. This information may not be communicated to other services, subsidiaries or partners for whom it could constitute a competitive advantage.

ARTICLE 10.- (1) Unbundling must enable the continuity of the supply of the services of the operator offering unbundled access.
(2) Where unbundling affects the essential requirements or the proper functioning of an operator's network, the operator shall inform the Board. In such a case, the Board shall order the suspension of access to that network, inform the parties thereof and set the conditions for its restoration.
(3) No operator shall have the right to suspend unbundling in whole or in part without a prior decision by the Board. (4) In the event of network failure or force majeure, the operator offering unbundled access to the local loop and co-location shall inform the Board and the applicant for the service of the measures to be taken to ensure continued access to the electronic communications networks and services.

ARTICLE 11.- (1) The local loop access service shall include, in particular, the provision of the information required for the implementation of local loop access, the co-location of equipment and its connection to the networks of the applicant operators.
(2) The local loop access service may be provided, at the request of the operators concerned, either in the form of fully unbundled access or in the form of shared access to the local loop.

ARTICLE 12.- (1) Access to the local loop shall include, in addition to the associated services, the provision of the information necessary for its implementation, an offer for the co-location of equipment and an offer enabling it to be connected to the networks of the access applicants.
(2) Requests for co-location shall be processed by the operators offering unbundled access under objective, transparent and non-discriminatory conditions.
(3) The co-location service consists of the provision of usable space enabling the applicant operator to deploy its equipment.

ARTICLE 13.- (1) Co-location may be physical, remote or virtual.
(2) In the case of physical co-location, the equipment is the property of the requesting operator, which is responsible for its maintenance.
(3) In the case of remote co-location, the requesting operator takes all necessary measures to connect its equipment to that of the operator offering unbundled access.
(4) In the case of virtual co-location, the requesting operator does not have access to the premises of the operator offering unbundled access. The interface between the two parties is located in room zero.
(5) The parties shall agree on the terms of use and management of the co-location spaces and on the list of equipment that may be co-located.

ARTICLE 14.- The operator providing the physical co-location service provides the following elements:
- backup power with a minimum capacity of 125 amps/220 volts to the main cabinet;
- redundant air conditioning;
- security and fire detection capabilities;
- the connection by appropriate links of the room reserved for the physical co-location to the nearest access point of its network;
- the necessary capacity in terms of bandwidth and connectivity on the routers and switches.

ARTICLE 15.- (1) The reference offers for unbundled access to the local loop and related resources shall include the general information, the conditions associated with unbundled access to the local loop, the co-location services and the tariff conditions.
(2) The general information to be provided to the applicant operators in the event of acceptance of their application shall include for each dispatch site:

- the address of the site;
- the characteristics of the distribution frame;
- a description of the right-of-way area and its specificity;
- the area available for physical co-location;
- the location of the zero (0) rooms and the availability of the cells upon explicit request.

ARTICLE 16.- The conditions associated with unbundled access to the local loop include the type of unbundling and the network elements to which access is offered. These elements cover especially:
- access to local loops;
- access to non-voice frequencies of the frequency spectrum of a local loop, in the case of partial unbundling;
- information on the location of physical access points and the availability of local loops in specific parts of the access network;
- technical details of access to and use of the local loops, including the technical characteristics of the twisted metallic pair in the local loop;
- information on the network topology and on the characteristics of the subscriber connections.

ARTICLE 17.- Co-location services include:
- information on the types of co-location;
- information on the types and sites of co-location;
- the characteristics of the equipment;
- measures implemented by operators to ensure the security of their premises;
- access conditions for personnel of competing operators;
- security standards;
- the rules for space allocation when the co-location space is limited;
- the conditions under which beneficiaries may inspect the sites where physical co-location is possible;
- the precise locations of the relevant sites of the operator offering co-location;
- indication of the availability of possible alternatives in case of unavailability of physical co-location space;
- information on the types of co-location available and on the availability of electrical and air-conditioning facilities at the sites, as well as on the rules applicable to the sub-letting of the co-location space;
- an indication of the time required for the feasibility study of any co-location order;
- the conditions under which competing operators and the regulator may inspect the sites on which physical co-location is possible, or those for which co-location has been refused on the grounds of insufficient capacity.

ARTICLE 18.- The information referred to in Articles 15, 16 and 17 above shall be provided at a level of detail equivalent to that used by the operator offering unbundled access for its own services, and shall be updated periodically.

SECTION II
UNBUNDLING SUPPLY ARRANGEMENTS

ARTICLE 19.- (1) The provision of the unbundling service shall include the provision and maintenance of pairs in operation or the creation and commissioning of new pairs.
(2) For subscribers located beyond a certain distance where the quality of the signal is no longer guaranteed, the operator offering unbundled access shall put in place technical solutions to rearrange the local loop.
(3) The technical solutions referred to in paragraph (2) above shall not entail additional costs for the applicant.

ARTICLE 20.- (1) The tariffs for local loop access and physical co-location services shall be cost-oriented. They shall be set in accordance with the following principles:
- non-discrimination on the basis of geographical location;
- the relevance of the costs taken into account;
- the valuation of network elements enabling the provision of the service on the basis of long-term incremental average costs;
- the tariffs charged for shared access to the local loop may not be lower than those for fully unbundled

access less the amount of the subscription to the public telephone service;

- the fair contribution to the costs that are common to both local loop access and the other services of the operator offering unbundled access.

(2) The Board shall establish and make public the nomenclature of relevant costs and shall define the method for calculating the long-run incremental average costs.

(3) At the Board's request and within the prescribed time limits, operators offering unbundling and physical co-location services shall be required to provide it, under penalty of payment, with all data enabling it to verify that the tariffs charged are cost-oriented.

CHAPTER IV
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 21. - The signatory operators of the unbundling agreement shall not install incompatible equipment that may cause interference to other equipment or hinder the use of the space allocated to them.

ARTICLE 22.- (1) The party introducing modifications to its network that require adaptation of the facilities of the other party must give notice of the modifications no later than six (06) months prior to their introduction.

(2) The modalities for bearing the costs of modification of the installations are specified in the unbundling agreement.

ARTICLE 23.- Each year, the Board shall publish the minimum list of items to be included in the reference offer for unbundled access to the local loop.

ARTICLE 24.- This Order shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 27 June 2012

Jean-Pierre BIYITI bi ESSAM

THE MINISTER OF POSTS AND TELECOMMUNICATIONS

ORDER No. 00000010/MINPOSTEL OF 17 APRIL 2013 To lay down the distribution scheme for the royalties for the use of radio frequencies.-

THEMINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications,

HEREBY O R D E R S AS FOLLOWS:

ARTICLE 1.- This Order shall lay down the distribution scheme for the royalties for the use of radio frequencies.

ARTICLE 2.- The royalty for the use of radio frequencies collected by the Telecommunications Regulatory Board, shall be distributed as follows:

- The Telecommunications Regulatory Board: **sixty-five per cent (65%)**;
- The Public treasury: **thirty percent (30%)** of which a share of **seventy percent (70%)** shall be paid to the National Agency for Information and Communication Technologies (NAICT);
- The Interministerial Committee for RadioFrequency Bands Allocation: **Five per cent (5%)**.

ARTICLE 3.- Budgetary surpluses of the Interministerial Committee for Radio Frequency Bands Allocation shall be transferred to the Telecommunications Regulatory Board.

ARTICLE 4.- The General Manager of the Board shall be responsible for the implementation of this Order.

ARTICLE 5.- This Order shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French./-

Yaoundé, 17 April 2013

Jean-Pierre BIYITI bi ESSAM

THE MINISTER OF POSTS AND TELECOMMUNICATIONS

ORDER No. 044/CAB/PM OF 02 MAY 2013
To establish the distribution key for fees collected for entry and renewal of authorizations in the field of electronic communications.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution ;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Decree No. 92/08B of 04 April 1992 to specify the duties of the Prime Minister, Head of Government, amended and supplemented by Decree No. 95/145-a of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organize the Government;
Mindful of Decree No. 2011/409 of 09 |December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organization and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organization and functioning of the Telecommunications Regulatory Board,

HEREBY ORDERS AS FOLLOWS:

ARTICLE 1.- This Order sets the distribution scheme for the fees collected for the entry and renewal of authorisations in the field of electronic communications.

ARTICLE 2.- (1) The entry and renewal fees for the issuance and renewal of concessions and licenses for electronic communications activities are collected by the Telecommunications Regulatory Board.
(2) The distribution scheme for the fees referred to in paragraph (1) above is fixed as follows:

a) For entry and renewal fees of concessions:
- Public Treasury: **seventy five percent (75%)**;
- Special Fund for Telecommunications: **five percent (5%)**;
- Special fund for electronic security activities: **five percent (5%)**;
- Telecommunications Regulatory Board: **five percent (5%);**
- National Agency for Information and Communication Technologies: f**ive percent (5%)**;
- Performance bonus for staff in charge of regulating the telecommunications and information and communication technologies sector: **five percent (5%)**.

b) For entry and renewal fees of licences:
- Public Treasury: **fifty percent (50%)**;
- Telecommunications Regulatory Board: **twenty percent (20%)**;
- National Agency for Information and Communication Technologies: **ten percent (10%)**;
- Performance bonus for staff in charge of regulating the telecommunications and information and communication technologies sector: **twenty percent (20%)**.

ARTICLE 3.- (1) The performance bonus allocated to the staff in charge of the regulation of the telecommunications and Information and Communication Technologies sector, referred to in Article 2 paragraphs a and b above, shall be distributed as follows:
- Presidency of the Republic: **twelve percent (12%)**;
- Prime Minister's Office: **twelve percent (12%)**;
- Ministry of Finance: **twelve percent (12%)**;
- Ministry of Posts and Telecommunications: **forty-five percent (45%)**;

- Telecommunications Regulatory Board: **twelve percent (12%)**;
- National Agency for Information and Communication Technologies: **seven percent (7%)**.

(2) The payment of the performance bonus to the staff of the administrations referred to in paragraph 1 above shall be made by a decision of the Minister in charge of telecommunications.

ARTICLE 4.- The Minister of Posts and Telecommunications, the Minister of Finance and the General Manager of the Telecommunications Regulatory Board shall be responsible, each in his or her own area of responsibility, for the implementation of this Order.

ARTICLE 5.- This Order, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 02 May 2013

Philemon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

JOINT ORDER No. 00000013/MINPOSTEL/MINFI OF 10 MAY 2013 To fix the amounts and payment conditions of charges collected by the National Agency for Information and Communication Technologies.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

THE MINISTER OF FINANCE,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2012/1318/PM of 22 May 2012 to establish the terms and conditions to authorise the operation of an electronic certification activity;
Mindful of Decree No. 2012/1643/PM of 14 July 2012 to establish the terms and conditions of compulsory security auditing of electronic communication networks and information systems;
Mindful of Decree No. 2013/0400/PM of 27 February 2013 to lay down the conditions for declaration and prior authorisation, as well as requirements for the award of an approval certificate for the supply, export, import or use of means or encryption support services,

HEREBY ORDER AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This order shall fix the amount and payment conditions of charges paid to the National Agency for Information and Communication Technologies, abbreviated "NAICT", hereafter referred to as "NAICT".

ARTICLE 2.- Charges paid to the NAICT shall include:
- electronic certification activities;
- the authentication of the cryptography means and security equipment;
- the operation of security auditing activities of information systems and electronic communication networks;
- naming and addressing resources.

CHAPTER II
CHARGES APPLICABLE TO ELECTRONIC CERTIFICATION ACTIVITIES

ARTICLE 3.- Accredited certification authorities are subjected to the payment of file review and management fees of electronic certificates.

ARTICLE 4.- The application fee referred to in Article 3 above shall be one million (1000,000) CFA F payable by cheque or by bank transfer at the time of submission of the application upon order of NAICT.

ARTICLE 5.- (1) Accredited certification authorities are subjected to the payment of management and electronic certificates charges applicable to the cost of each electronic certificate whose conformity is checked by NAICT.
(2) Management charges of electronic certificates referred to in paragraph (1) above shall be five per cent (5%) of the certificate cost.

ARTICLE 6.- Management charges of electronic certificate are payable not later than the 15 of the month following the reception of the NAICT invoice, recapping electronic certificates issued during the previous month.

ARTICLE 7.- Corporate bodies wishing to be granted electronic certificates issued by NAICT are bound to pay an annual amount of fifty thousand (50 000) CFA F per certificate, payable by cheque or bank transfer upon order from NAICT.

ARTICLE 8.- Individuals who wish to be granted electronic certificates issued by NAICT are bound to pay an annual sum of twenty thousand (20 000) CFA F per certificate, payable to the NAICT Accounting Officer.

CHAPTER III
CHARGES APPLICABLE TO A DECLARATION, PRIOR AUTHORISATION AND AUTHENTICATION OF CRYPTOGRAPHY MEANS AND SECURITY EQUIPMENT

ARTICLE 9.- (1) Receipt applicants of prior declaration for the supply, export, import of means or cryptography support services shall be subjected to application fees.
(2) Application fees referred to in Paragraph (1) above shall be fifty thousand (50 000) CFA F payable to the NAICT Accounting Officer at the time of submission of application.

ARTICLE 10.- (1) Applicants for a prior authorisation for the supply, export, import of means or cryptography support services shall be subjected to pay application fees.
(2) Application fees referred to in paragraph (1) above shall be five hundred thousand (500 000) CFA Francs payable by cheque or bank transfer upon order of NAICT at the time of the submission of application.

ARTICLE 11.- (1) Applicants for authentication of encryption means and security equipment shall be subjected to the payment of authentication charges for each authentication certificate issued by NAICT.
(2) Application fees referred to in paragraph (1) above shall be fifty thousand (50 000) CFA F payable to the NAICT Accounting Officer at the time of submission of application.
(3) Authentication charges referred to in paragraph (1) above shall be two hundred thousand (200 000) CFA F payable by cheque or bank transfer upon order from NAICT, after the approval of NAICT, notified to the applicant and before the issuance of the authentication certificate.
(4) Charges for the establishment of the approval certificate referred to in paragraph (1) above shall be one hundred and fifty thousand (150 000) CFA F payable by cheque or bank transfer upon order from the NAICT, after the approval of NAICT, notified to the applicant and before the establishment of the certificate.

CHAPTER IV
CHARGES APPLICABLE TO THE OPERATION OF SECURITY AUDITING ACTIVITIES OF INFORMATION SYSTEMS AND ELECTRONIC COMMUNICATIONS NETWORKS

ARTICLE 12.- (1) Corporate bodies specialised in computer security auditing activities and electronic communications networks shall be subjected to the payment of application and authentication fees.
(2) Application fees referred to in paragraph (1) above shall be one hundred thousand (100 000) CFA F payable by cheque or bank transfer upon order from NAICT.
(3) Authentication fees referred to in paragraph (1) above shall be five hundred thousand (500 000) CFA F payable by cheque or bank transfer upon order from NAICT.

ARTICLE 13.- (1) Corporate bodies subjected to the auditing obligation of compulsory security carried out by NAICT shall be subjected to the payment of auditing charges.
(2) Auditing charges are calculated on a scale annually set by the Minister in charge of telecommunications, upon proposal of the General Manager of the NAICT.

ARTICLE 14.- Auditing charges are payable in advance by the structure to be audited, no later than one (01) month after the reception of the NAICT invoice, prior to the carrying out of the audit.

CHAPTER V
CHARGES APPLICABLE TO NAMING AND ADDRESSING RESOURCES

ARTICLE 15.- (1) The Local Internet Registry (LIR) or Internet Protocol Addresses Managers are subjected to application fees and to the granting of IP addresses.
(2) Application fees referred to in paragraph (1) above shall be fifty thousand (50 000) CFA F payable to the NAICT Accounting Officer at the time of submission of application.
(3) Charges for the allocation of IP addresses mentioned in paragraph (1) above are annually fixed by decision of the General Manager of NAICT. They are payable to NAICT after validation of the application and prior to the granting of addresses.
(4) The payment of charges for granting IP addresses is yearly and renewable no later than the 15 January of the year following the expiry date of the term.

ARTICLE 16.- (1) The ".cm"(dot cm) registry is subject to the payment of application and domain name charges.
(2) Application fees referred to in Paragraph (1) above shall be fifty thousand (50 000) CFA F payable to NAICT during the submission of the file.
(3) The registration charges of domain name referred to in paragraph (1) above are annually fixed by decision of the Minister in charge of telecommunications, upon proposal of the General Manager of NAICT. They are payable to NAICT after validation of the application and prior to the registration of the domain name.
(4) The payment of the registration charges of the domain name is annual and renewable at the expiry date of the term.

CHAPTER VI
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 17.- Without prejudice to penalties provided by Law No. 2010/012 of 21 December 2012 on cyber-security and cybercriminality in Cameroon, the General Manager of NAICT may, after a formal notice that had been ignored after one (01) month, impose to offenders pecuniary penalties of 50 to 100 % of the amount owed under the late penalty fees.

ARTICLE 18.- The General Manager of the NAICT shall be responsible for the implementation of this Order.

ARTICLE 19.- This Order which repeals all previous provisions repugnant thereto shall be registered and published according to the procedure of urgency and inserted in the Official Gazette, in English and French./-

Yaoundé, 10 May 2013

ALAMINE OUSMANE MEY

THE MINISTER OF FINANCE,

Jean-Pierre BIYITI bi ESSAM

THE MINISTER OF POSTS AND TELECOMMUNICATIONS

ORDER No. 016/PM OF 20 FEBRUARY 2015 On the creation, organization and functioning of the Committee for Technological Watch and Control of the Conformity of the Software Park of the State, Regional and Local Authorities and their respective divisions.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 99/016 of 22 December 1999 on the general rules and regulations governing public establishments and public and para-public enterprises;
Mindful of Law No. 2004/017 of 22 July 2004 on the orientation of decentralization;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Decree No. 1992/089 of 04 May 1992 to specify the duties of the Prime Minister, amended and supplemented by Decree No. 95/145 (bis) of 05 August 1995;
Mindful of Decree No. 2002/092 of 08 April 2002 on the creation, organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- This Order covers the creation, organization and operation of the Committee for Technological Watch and Control of the Conformity of the Software Park of public and semi-public administrations, hereinafter referred to as "the Committee".

ARTICLE 2.- Placed under the authority of the Minister in charge of the Supreme State Audit, the Committee's mission is to ensure the proper functioning of IT projects and information systems of public administrations, public establishments and companies in the public and semi-public sector, and regional and local authorities. As such, it is responsible for:

- researching the best ways to acquire authentic software from publishers;
- supervising the replacement of non-authenticated software identified in the audited public administrations;
- the development and implementation of the government strategy for the prevention of threats induced by the use of non-authenticated software in public administrations, public establishments and companies in the public and parapublic sector in regional and local authorities;
- monitoring the use of authenticated software in IT projects of public administrations and regional and local authorities;
- carrying out the necessary audits to identify non-authenticated software used in public IT projects;
- the control of software licenses and the effectiveness of updates;
- the conduct of various studies aiming at improving the performance of public IT projects and information systems;

- the quantitative and qualitative identification of the different software used in public IT projects and the assessment of their relevance;
- the production of an annual report on the state of IT projects and information systems of public administrations and regional and local authorities;
- the design of a strategy to promote the use of open source software within these administrations;
- monitoring the implementation of security standards developed by the National Agency for Information and Communication Technologies (NAICT);
- controlling the implementation of the IT security policy within public and parapublic administrations;
- the establishment of control procedures for the information systems of public and semi-public administrations, public establishments, companies with public capital, semi-public companies and regional and local authorities.

CHAPTER II
ORGANISATION AND FUNCTIONING

ARTICLE 3.- (1) The Committee shall be composed as follows:
Chairperson: the Minister in charge of the supreme state audit.
Vice-Chairperson: the Minister in charge of scientific research and innovation.
Members:

- one (01) representative of the Presidency of the Republic;
- one (01) representative of the Prime Minister's Office;
- one (01) representative of the Ministry in charge of decentralization;
- one (01) representative of the Ministry in charge of defense;
- one (01) representative of the Ministry in charge of the supreme state audit;
- one (01) representative of the Ministry in charge of the economy;
- one (01) representative of the Ministry in charge of higher education;
- one (01) representative of the Ministry in charge of finance;
- one (01) representative of the Ministry in charge technological development;
- one (01) representative of the Ministry in charge of justice;
- one (01) representative of the Ministry in charge telecommunications;
- one (01) representative of the Ministry in charge of scientific research;
- one (01) representative of the General Delegation for National Security;
- A representative of the General Directorate for External Research;
- General Manager of the National Agency for Information and Communication Technologies (NAICT);
- General Manager of the Standard and Quality Agency (ANOR);
- The General Manager of the Telecommunications Regulatory Board (TRB).

(2) The Chairperson may invite any natural or legal person competent in the matters on the agenda to take part in the work of the Committee in an advisory capacity.
(3) The members of the Committee are appointed by the Administrations and Organizations to which they belong.
(4) The composition of the Committee shall be established by a decision of the Minister in charge of the supreme state audit.

ARTICLE 4.- (1) The Committee shall meet as often as necessary and at least once a quarter, upon invitation of its Chairperson.
(2) The Committee may validly deliberate only if at least half of its members are present.
(3) The decisions of the Committee shall be made by a simple majority of the members present. In the event of a tie, the Chairperson of the Committee shall have the casting vote.
(4) The sessions of the Committee shall be documented in minutes which the Chairperson shall send to the Prime Minister, Head of Government, as a report of the Committee's activities.

ARTICLE 5.- (1) The Committee shall have a Technical Secretariat headed by a Coordinator to carry out its duties.
(2) The Technical Secretariat shall be responsible for:

- the preparation and the material organisation of the meetings of the Committee;

- the drafting of the minutes and reports;
- keeping and preserving the Committee's documents;
- the preparation of draft correspondence of the Committee;
- the implementation of all other tasks entrusted to it by the Committee.

ARTICLE 6.- (1) The Technical Secretariat is made up as follows:
Coordinator: the Head of the Computer Unit of the Ministry in charge of the supreme state audit;
Deputy Coordinator: the Head of the Computer Unit of the Prime Minister's Office.
Members:

- one (01) representative of the Prime Minister's Office;
- one (01) representative of the Ministry in charge of scientific research;
- one (01) representative of the Ministry in charge telecommunications;
- one (01) representative of the National Agency for Information and Communication Technologies (NAICT).

(2) The members of the Technical Secretariat are designated by the administrations to which they belong.
(3) The composition of the Technical Secretariat is established by a decision of the Minister in charge of the supreme state audit.

ARTICLE 7.- The Coordinator of the Technical Secretariat may call upon any person, because of his or her competence in the matters on the agenda, to take part in the work of the Secretariat in an advisory capacity.

ARTICLE 8.- The Technical Secretariat meets as needed when convened by its Coordinator.

ARTICLE 9.- The heads of the IT services of public administrations and regional and local authorities are correspondents of the Committee in their respective structures.
In this capacity, they send a quarterly activity report to the Committee, which specifies notably the operating status of their respective information systems.

CHAPTER III
MISCELLANEOUS AND FINAL PROVISIONS

ARTICLE 10.- (1) The functions of the Chairperson, Vice-Chairperson, Member of the Committee, Coordinator, Deputy Coordinator and Member of the Technical Secretariat are free of charge.
(2) However, the persons concerned may receive a session allowance in accordance with the regulations in force.

ARTICLE 11.- (1) Expenses related to the operation of the Committee shall be included in the State budget.
(2) The Minister in charge of the supreme state audit is the authorized vote holder.

ARTICLE 12.- All previous contrary provisions to this Order are hereby repealed.

ARTICLE 13.- This Order shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 20 February 2015

Philemon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

ORDER No. 041/PM OF 07 APRIL 2017
To set out the distribution scheme of the fee for the use of addresses, prefixes and telephone numbers.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/2580/PM of 06 April 2012 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime,

HEREBY ORDERS AS FOLLOWS:

ARTICLE 1.- (1) This Order sets out the terms and conditions for the distribution of fees for the use of addresses, prefixes and telephone numbers.
(2) It is taken in accordance with the provisions of Article 50 paragraph (2) of the above mentioned Law No. 2015/006 of 20 April 2015.

ARTICLE 2.- The fee for the use of addresses, prefixes and telephone numbers is divided between the Public Treasury, the Board in charge of the regulation of electronic communications, the Agency in charge of information and communication technologies and the Special Fund for Electronic Security Activities.

ARTICLE 3.- The fees provided for in Article 2 above shall be distributed as follows:
- Public Treasury: **forty percent (40%)**;
- Board in charge of the regulation of electronic communications: **thirty percent (30%)**;
- Agency in charge of information and communication technologies: **twenty percent (20%)**;
- Special fund for electronic security activities: **ten percent (10%)**.

ARTICLE 4.- The Minister of Posts and Telecommunications and the General Manager of the Telecommunications Regulatory Board shall be responsible, each in his/her own area of responsibility, for the implementation of this Order, which shall be registered, published according to the procedure of urgency, and then inserted in the Official Gazette in English and French./-

Yaoundé, 07 April 2017

Philemon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

ORDER No. 0000005/MINPOSTEL OF 24 APRIL 2017 To establish the procedures for obtaining approval in the field of electronic communications.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No. 2015/006 of 20 April 2015;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 04 April 1992 to specify the duties of the Prime Minister, Head of Government, amended and supplemented by Decree No. 95/145-bis of 04 August 1995;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2015/434 of 02 October 2015 to reshuffle the Government;
Mindful of Decree No. 2012/2580/PM of 06 April 2017 to lay down conditions for establishing and/or operating networks and providing electronic communications service subject to an authorization regime,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This order lays down the conditions for obtaining approval in the field of electronic communications.
(2) It is adopted pursuant to the provisions of Article 14 of the above-mentioned Law No. 2015/006 of 20 April 2015.

ARTICLE 2.- The following are subject to an approval:
- the activity of installer of electronic communications equipment and infrastructure;
- laboratories for testing and measuring electronic communications equipment;
- the sale of electronic communications equipment.

ARTICLE 3.- To implement this order, the following definitions are accepted:
1. **ISO certificate**: a document containing the state of compliance of the product, of equipment and the quality process with regards to standards;
2. **Specific Absorption Rate (SAR)**: parameter expressed in W/kg that quantifies the maximum level of exposure of the user to electromagnetic waves, for use at the ear, cell phones;
3. **ISO**: International Standard Organisation of with the aim of producing international standards in the industrial and commercial areas, referred to as ISO standards.

ARTICLE 4.- (1) The application for approval shall be addressed to the Board in charge of the regulation, control and monitoring of the activities of operators and providers of electronic communications services, hereinafter referred to as "Board".
(2) The application for approval referred to in the above paragraph (1), includes the following items:

- an application form following a model provided by the Board, duly filled, signed and stamped at the rate in force;
- a dispatching of subscription deed to the Trade and Personal Property Credit Register;
- a certified true copy of the taxpayer's card;
- a localisation plan and any other elements that specify the applicant's contact;
- a detailed description of equipment and tools used;
- a tax clearance certificate for corporate bodies established in Cameroon, if necessary;
- a proof of payment to the Board of the application charges.

ARTICLE 5.- (1) The complete file is deposited at the Board against a receipt.
(2) The decision of the Board within a maximum deadline of sixty (60) days from the day of deposit of the file.
(3) The Board may request for additional information. In such cases, the period provided for in paragraph 2 above shall be suspended.
(4) Rejection of the application for approval shall be reasoned and notified to the applicant by any means in writing.

ARTICLE 6.- (1) Approval shall be granted by the Board for a three (03) years period renewable.
(2) The renewal application is governed by the same rules and conditions as those provided for in the application for approval.
(3) The renewal application is introduce at least ninety (90) days before the expiry period of the current approval. The Board's decision shall intervene before the expiry date.

ARTICLE 7.-All approval bearers shall submit to the Board, no later than 30 June of the current year, a report on their activities during the previous year.

CHAPTER II
APPROVAL OF AN ELECTRONIC COMMUNICATIONS EQUIPMENT AND INFRASTRUCTURE INSTALLER

ARTICLE 8.- (1) Any natural person or legal entity wishing to install or maintain equipment, infrastructure and electronic communications networks shall be required to obtain approval to install equipment in the field of electronic communications.
(2) No one can carry out installation or maintenance works on electronic communications equipment and infrastructures, if he has not been approved by the Board.

ARTICLE 9:- The application for approval of the activity of equipment and infrastructure installer includes, in addition to the documents listed in Article 3 above:
- for natural persons, a certificate of registration on the roll of the National Order of Electrical Engineers;
- for legal entities, a commitment to employ on a full-time basis at least one (01) engineer registered with the National Order of Electrical Engineers.

ARTICLE 10.- The approval referred to in Article 8 above is granted to carry out the following activities:
- installation and maintenance of terminal equipment and radio networks;
- building and maintenance of electronic communication networks infrastructures.

ARTICLE 11.- (1) The installation and maintenance activity of the terminal equipment and radio networks include:
- the company networks;
- telephone or data transmission terminals;
- radio installations.

(2) The building and maintenance activity of electronic communication network infrastructure is related to:
- signal transport and distribution networks;
- video and audiovisual communication transmission equipment;
- switching and routing systems;
- radio systems;

- civil engineering constructions of electronic communications networks;
- passive infrastructures for electronic communication networks.

ARTICLE 12.- Without prejudice to possible criminal proceedings, the General Manager of the Board may, ex officio, pronounce the withdrawal of the approval when it has been obtained on the basis of false declarations or any other illicit means.

ARTICLE 13.- The Board may, at any time, proceed to the verification of the conformity of the installations carried out.

ARTICLE 14.- The implementation and modification of any installation intended to be connected to an electronic communications network open to the public must be notified to the Board by the approved installer within thirty (30) days.

ARTICLE 15.- The installer is required to guarantee the proper functioning of the infrastructure for a period at least equal to six (06) months after it is put into service. He/she can intervene only on the approved equipment and the infrastructure of the networks of the operators and the holders of the concessions, the licenses and the receipts of declaration.

ARTICLE 16.- (1) At the end of its service, the installer shall be required to hand over to the beneficiary a maintenance register, the model of which shall be defined by the Board.
(2) For each intervention, the installer in charge of the maintenance is required to fill in the register referred to in paragraph (1) above.
(3) The information referred to in paragraph (2) above shall include the date of occurrence, the nature, the date of intervention and the follow-up given to the malfunction.

CHAPTER III
APPROVAL OF LABORATORIES FOR THE TEST AND MEASUREMENT OF ELECTRONIC COMMUNICATIONS EQUIPMENT

ARTICLE 17.- No one may establish or operate a laboratory for the test and measurement of electronic communications equipment unless it holds an approval issued by the Board.

ARTICLE 18.- The application for the approval of a test and measurement laboratory of electronic communications equipment includes beside the items listed in article 4 of this order:

- a commitment to employ on a full-time basis at least one (01) engineer registered with the National Order of Electrical Engineers;
- a list of measurement devices and their calibration;
- an ISO certificate for the laboratory equipment and/or other documents guaranteeing the quality of tests.

ARTICLE 19.- (1) The approved test and measurement laboratory shall present an annual report of its activities to the Board at the beginning of each financial year.
(2) The report referred to in paragraph (1) above shall indicate, in particular, the types, brands and models of terminal and radio electronic equipment on which tests and measurements have been carried out, as well as the results obtained.

ARTICLE 20.- Without prejudice to possible criminal proceedings, the General Manager of the Board shall order the withdrawal of the approval when it has been obtained on the basis of false declarations or any other illicit means.

ARTICLE 21:- The Board shall regularly evaluate the conformity of the operating conditions of approved laboratories with the regulations in force and the provisions contained in the operating permit. It shall establish and update the list of such laboratories.

CHAPTER IV
APPROVAL OF VENDORS OF ELECTRONIC COMMUNICATIONS EQUIPMENT

ARTICLE 22.- Any natural or legal person who imports, exports, holds for wholesale or retail marketing, for his/her own account or for the account of a third party, electronic communications equipment and products, is considered as a vendor of electronic communications equipment.

ARTICLE 23.- Any person exercising the activity of vendor of electronic communications equipment must justify an approval previously obtained from the Board.

ARTICLE 24.- The file of the application for approval of equipment vendor includes, in addition to the documents listed in Article 4 of this Order, the list of equipment likely to be marketed and the list of potential points of sale, their location plan, as well as the relevant certificates.

ARTICLE 25.- (1) In the event of a duly noted failure to comply, the Board shall give formal notice to the offender, by any means that leaves a written record, to comply with the legislative and regulatory provisions or the requirements of the legal instrument under which it operates, within a maximum period of fifteen (15) days.
(2) Where the offender fails to comply with the formal notice referred to in paragraph (1) above, the General Manager of the Board shall, notwithstanding the financial penalties provided for by the regulations in force, impose one of the following penalties:
- suspension of the approval for a maximum period of one (01) month;
- reduction of one (01) year on the approval period;
- withdrawal of the approval.

(3) During the period of suspension, the approved vendor shall continue to provide after-sales service for the equipment and products sold.
(4) If the holder of the vendor's license remedies the deficiencies noted in the notice, the Board shall lift the suspension after a control check.

ARTICLE 26.- Without prejudice to any criminal proceedings, the General Manager of the Board shall order the withdrawal of the license when it has been obtained on the basis of false declarations or any other illegal means.

CHAPTER V
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 27.- Approval holders are subject to the payment of contributions, fees and charges provided for by the regulations in force.

ARTICLE 28.- Current approvals shall remain valid until the date of their expiration.

ARTICLE 29.- The General Manager of the Board is responsible for the implementation of this Order.

ARTICLE 30.- This Order, which repeals all previous contrary provisions , in particular those of Order No. 00000011/MINPOSTEL of 17 April 2013 establishing the conditions for obtaining approval as an installer of equipment and infrastructure, test and measurement laboratories and vendor of electronic communications equipment, shall be registered, published in accordance with the procedure of urgency, and then inserted in the Official Gazette in English and French./-

Yaoundé, 24 April 2017

Minette LIBOM LI LIKENG

THE MINISTER OF POSTS AND TELECOMMUNICATIONS

ORDER No. 00000006/MINPOSTEL/MINFI OF 02 MAY 2017 To determine the amounts and payment conditions for entry and renewal fees of licenses in the electronic communications sector.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

THE MINISTER OF FINANCE,

Mindful of the Constitution;
Mindful of Law No. 2007/006 of 26 December 2007 on the financial regime of the State;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/1642/PM of 14 June 2012 to lay down conditions for the attribution and use of numbering resources;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2013/066 of 28 February 2013 to organise the Ministry of Finance;
Mindful of Decree No. 2013/160 of 15 May 2013 on the general rules and regulations governing public accounting;
Mindful of Decree No. 2015/434 of 02 October 2015 to reshuffle the Government;
Mindful of Decree No. 2012/2580/PM of 06 April 2012 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This joint order determines the amounts and payment conditions of entry and renewal fees for licences in the field of electronic communications.
(2) It is taken pursuant to the provisions of Article 20 paragraph (5) of Law No. 2015/006 of 20 April 2015, amending and supplementing some provisions of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon.

CHAPTER II
THE AMOUNT OF THE ENTRY FEE AND THE RENEWAL FEE FOR A LICENCE

ARTICLE 2.- The entry fee for a licence in the field of electronic communications shall be composed of a fixed share and a variable share indexed on the turnover.

ARTICLE 3.- The amounts of the entry and renewal fees of a licence, by type of network, are fixed and summarized in the following table:

TYPE OF NETWORK	AMOUNT OF THE ENTRY FEE		AMOUNT OF THE RENEWAL FEE
	Fixed share	*Variable share*	
Support service	3,000,00	0	5% of cumulative revenues over the last five years.
Networks for the provision of electronic communications services to the public	500,000 x Lk x N x d	0.5% of annual turnover	5% of cumulative revenues over the last five years.
Passive infrastructure supporting electronic communications networks	10,000,000	0.5% of annual turnover	5% of the cumulative turnover excluding taxes over the last five years.
Independent private networks excluding those subject to the simple declaration regime	1,000,000	0	1,000,000
Temporary networks	Free	Free	0
Experimental networks	Free	Free	0

ARTICLE 4.- (1) The values of the area coefficient (Lk) are determined as follows :

Area	Localities	L_K
Area 1	Yaoundé, Douala	10
Area 2	Bafoussam, Bamenda, Buea, Bertoua, Ebolowa, Garoua, Kribi, Limbe, Maroua, Ngaoundéré.	5
Area 3	Locations other than those defined for areas 1 and 2	2

(2) The classification of localities and the delineation of the value of the coefficient shall be updated periodically by decision of the Minister in charge of telecommunications, on the proposal of the Board in charge of the regulation of electronic communications.
(3) In a given area, where the number of localities (N) to be covered by the license is greater than ten (10), the degressivity factor (d) provided for in the table shall be applied in stages in accordance with the following table:

Interval	Decreasing factor (d)
$1 < N \leq 10$	1
$10 < N \leq 20$	0,7
$20 < N \leq 50$	0,5
$N > 50$	0,3

CHAPTER III
METHODS OF PAYMENT OF THE ENTRY FEE AND RENEWAL FEE

ARTICLE 5.- (1) The fixed share of the entry fee and the renewal fee shall be payable as from the notification date of the license to the beneficiary by the Board in charge of the regulation of electronic communications.
(2) The fixed share of the entry fee and the renewal fee are payable in full within three (03) working days following notification of the license to the beneficiary.

ARTICLE 6.- The variable share of the entry fee is paid for each year no later than 30 April of the following year.

ARTICLE 7.- The payment mentioned in Articles 5 and 6 above is made to the Accounting Officer of the Board in charge of the regulation of electronic communications.

CHAPTER IV
TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 8.- Persons operating one of the networks or providing the services referred to in Article 3 above shall have a period of six (06) months as from publication to comply with the provisions of this Order.

ARTICLE 9.- This Order shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 02 May 2017

Minette LIBOM LI LIKENG	**ALAMINE OUSMANE MEY**
THE MINISTER OF POSTS AND TELECOMMUNICATIONS,	THE MINISTER OF FINANCE

ORDER No. 000000007/MINPOSTEL/MINFI OF 02 MAY 2017 To determine the amounts and methods of recovery of fees and charges for the reservation and allocation of numbering resources.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

THE MINISTER OF FINANCE,

Mindful of the Constitution;
Mindful of Law No. 2007/006 of 26 December 2007 on the financial regime of the State;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon, amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/1642/PM of 14 June 2012 to lay down conditions for the attribution and use of numbering resources;
Mindful of Decree No. 2012/512 of 12 November 2012 on the organisation and functioning of the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2013/066 of 28 February 2013 to organize the Ministry of Finance;
Mindful of Decree No. 2013/160 of 15 May 2013 on the general rules and regulations governing public accounting;
Mindful of Decree No. 2015/434 of 02 October 2015 to reshuffle the Government;
Mindful of Decree No. 2012/2580/PM of 06 April 2012 to lay down conditions for establishing and/or operating networks and providing electronic communications service subject to an authorization regime,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Order shall determine the amounts and terms of collection of contributions, fees and charges for the reservation and allocation of numbering resources.
(2) It is taken pursuant to Article 24 of Decree No. 2012/1642/PM of 14 June 2012 setting out the conditions for the allocation and use of numbering resources.

ARTICLE 2.- For the purposes of this Order, the following definitions, acronyms and abbreviations are accepted:

a. **Board**: Board in charge of the regulation of electronic communications;
b. **DNIC**: data transmission network identifier code;
c. **ISPC**: International Signalling Point Code;
d. **NDC**: National Destination Code;
e. **Short number**: number of length lower than the standard number defined in the numbering plan;
f. **Long number**: number of length superior or equal to the standard number defined in the numbering plan;
g. **Special emergency numbers**: numbers used for access to emergency services;
h. **Special operator number**: number used by an operator for access to services related to the operation of its network;
i. **NPSC**: National Semaphore Point Code;
j. **National Numbering Plan**: document containing the structured set of numbers and addresses allowing,

in particular, to identify the fixed or mobile termination points of telephone networks and services, to route calls and to access internal network resources;

k. **Prefix**: first digits of a number allowing to identify the nature of the service, the operator, the carrier and, if necessary, the geographical location;
l. **Publication**: making available to the public by the Board in charge of telecommunications regulation, hereinafter referred to as the "Board", information relating to the structure and evolution of the plan, on the one hand, and to the situation and use of the reserved or allocated resources, on the other;
m. **Public utility service**: service of collective or general interest;
n. **TETRA**: Terrestrial Trunked Radio;
o. **USSD**: Unstructured Supplementary Service Data.

CHAPTER II
FEES AND CHARGES FOR THE RESERVATION AND ALLOCATION OF NUMBERING RESOURCES

ARTICLE 3.- For the reservation and allocation of numbering resources, operators are subject to the following fees and charges:

- fees for the study of the files;
- the fee for the reservation of numbering resources;
- the fee for the allocation of numbering resources;
- management and control fees for numbering resources.

ARTICLE 4.- For any request for reservation or allocation of numbering resources, the fees for studying the files are as follows:

- for the concession holders' operators: 300,000 CFA F;
- for suppliers of value-added services other than concession holders' operators: 20,000 CFA F.

ARTICLE 5.- (1) The amount of the reservation fee and the allocation fee mentioned in Article 3 above is set out in the table below:

Service	Type of number	Annual allocation fee/number/year (CFA F excluding taxes)	Annual reservation fee/number/year (CFA F excluding taxes)
Telephone service	long	200	150
Public utility service	4 digits	Free	Free
Value-added service	9 digits	5,000	3,750
	8 digits	15,000	7,500
	5 digits	50,000	35,00
	4 digits	200,000	100,000
	3 digits	600,000	400,000
USSD Code	--	100,000	50,000
NSPC Code		300,000	225,000
ISPC Code		500,000	375,000
Mobile Network Identifier Code (Mobile Network Identifiers-Mobile Network Code, MNC)	--	3,000,000 (payable only once)	0
Data transmission network Identification code (data network identification Code, DNIC)	--	2,500,000	0
National Destination Code (NDC, National Destination code)	**Dedicated**	2,000,000	0
	Shared	1,000,000	0
Terrestrial trunked radio (TETRA) mobile network code	--	500,000	0
Issue identifiers (Recommandation UIT-T.E118)	--	1,500,000	0
Emergency service	3 digits 4 digits	Free	Free

(2) The amount of the annual management and control fees mentioned in Article 3 above is fixed as follows:
- for operators of electronic communication networks open to the public: **ten million (10,000,000) CFA F**;
- for value-added service providers: **one hundred thousand (100,000) CFA F**.

(3) The allocation of numbers for emergency electronic communication services shall be free of charge.

CHAPTER III
COLLECTION OF CONTRIBUTIONS, FEES AND CHARGES FOR RESERVATION AND ALLOCATION OF NUMBERING RESOURCES

ARTICLE 6.- The fees for the study of applications are payable only once, at the time the application is submitted.

ARTICLE 7.- The fees for the reservation or allocation of numbering resources are payable annually. They are due from the date of reservation or allocation of the numbering resources.

ARTICLE 8.- The management and control fees for numbering resources are payable annually. Operators are obliged to pay them at the latest during the first quarter of the reference year.

ARTICLE 9.- (1) The Board shall collect the application study fees, the reservation and allocation fees, and the management and control fees. They shall be payable in a single payment to the Accounting Officer of the Board.
(2) The fees and charges referred to in paragraph (1) above shall be non-refundable and shall not be subject to compensation.
(3) For the temporary allocation of numbering resources, the allocation fees are indivisible and payable in advance.

ARTICLE 10.- In the event of failure to comply with the time limit for payment of the reservation and allocation fees as well as the management and control fees, as prescribed by the Board, the fees shall be recovered by force in accordance with the laws and regulations in force.

CHAPTER IV
FINAL PROVISION

ARTICLE 11.- This Order, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 02 May 2017

Minette LIBOM LI LIKENG
THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

ALAMINE OUSMANE MEY
THE MINISTER OF FINANCE

ORDER No. 00000008/MINPOSTEL OF 10 JULY 2017 To Specify the Terms and Conditions for the Application of Decree No. 2012/1641/PM of 14 June 2012 laying down the conditions for the portability of the numbers of subscribers of operators of electronic communications networks open to the public.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon, amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 2011/408 of 06 December 2011 to organize the Government;
Mindful of Decree No. 2012/512 of 12 November 2012 to organize the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organization and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/1641/PM of 14 June 2012 to lay down the conditions for number portability of subscribers of electronic communications network operators opened to the general public;
Mindful of Decree No. 2015/434 of 02 October 2015 to reshuffle the Government,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

Article 1.- (1) This Order shall specify the terms and conditions of application of Decree No. 2012/1641/PM of 14 June 2012 laying down the conditions for the portability of the numbers of subscribers of operators of electronic communications networks open to the public.
(2) It is taken pursuant to the provisions of Article 40 of Decree No. 2012/1641/PM of 14 June 2012 setting out the conditions for the portability of the numbers of subscribers of operators of electronic communications networks open to the public.

Article 2.- This Order applies to the portability operations of postpaid and prepaid mobile telephone numbers.

Article 3.- To implement this order, the following definitions are accepted:

a. **Porting order**: response of the donor operator to the request of the recipient operator;
b. **Date**: Day/hour/minute;
c. **Active number**: any mobile number assigned to a subscriber, activated in the network of the mobile electronic communications operator open to the public, including when the service provided is temporarily suspended by the mobile operator or at the request of the mobile subscriber;
d. **Inactive number**: number formerly assigned to a user but which is subject to a definitive suspension of any service provided by the operator, notified by any means in writing;
e. **Assigned Operator (AO)**: an operator of a public electronic communications network to which the Telecommunications Regulatory Board has assigned the number ported;

f. **Donor or Transferring Operator (DPO)**: operator of an electronic communications network open to the public from which a number is ported;
g. **Receiving operator (OPR)**: operator of a public electronic communications network to which a number is ported;
h. **Mobile Number Portability (or porting) (MNP)**: the possibility for a subscriber to use the same subscriber number, irrespective of the operator or network operator to which he or she subscribes, even if he or she changes operator or network operator;
i. **Operator Identity Record (OIR)**: 12-character alphanumeric code assigned by any operator of a mobile electronic communications network open to the public to each active mobile number, for the purposes of inter-operator exchanges in the context of mobile number portability;
j. **Backspace**: exceptional procedure consisting in putting the subscriber back to the situation he/she was in before a wrongly performed portability.

Article 4.- Any user of a mobile telephone number may, at his request, keep his/her number when he/she changes mobile electronic communications network operator open to the public.

Article 5.- A subscriber of a mobile electronic communications network open to the public may only port his/her mobile number to another mobile electronic communications network open to the public.

Article 6.- (1) Number porting entails the termination of the subscription contract with the donor operator and the subscription of a new contract for the provision of electronic communications services with the recipient operator.
(2) Number porting shall not entitle the applicant to the services he/she enjoyed in the network of his/her original operator.
However, the subscriber who has ported his number benefits from access to all the services of the offer to which he/she subscribed with the receiving operator, under the relevant tariff conditions.

Article 7.- Operators shall not discriminate in the treatment and provision of electronic communications services between their subscribers with ported numbers and those with non-ported numbers.

CHAPTER II
CONDITIONS FOR THE PROVISION OF PORTABILITY SERVICE

Article 8.- (1) The procedure for porting a number is triggered by a formal porting request duly filled in and signed by the subscriber and then submitted to the receiving operator against acknowledgement of receipt. This request can be included in the subscription form for a new subscription with the receiving operator.
(2) The specimen of the porting application is drawn up by the Telecommunications Regulatory Board, hereinafter referred to as "the Board".
(3) A number ported, at the request of its holder, from a donor operator to a recipient operator may only be ported back to the donor operator or to any other operator after a period of sixty (60) days has elapsed from the date of the previous port.

Article 9.- (1) The porting request is a mandate given to the receiving operator to take the necessary steps with the donor operator.
(2) The porting request may concern one or several numbers, subject of the same subscription contract.

Article 10.- Subject to the provisions of Article 20 of this Order, the receiving operator is the sole contact for the subscriber until the porting is actually implemented.

Article 11.- The receiving operator is required to inform the applicant, free of charge, of the conditions of eligibility for porting.

Article 12.- The receiving operator is required to remind the applicant of the consequences of porting, in particular that:
a) the applicant's request to port the number is tantamount to a request to terminate his subscription

contract with the donor operator as of the effective date of porting;
b) the porting of a number implies exclusively the conservation of the number he/she would have had with his/her original operator;
c) the interruption of the services offered by the donor operator will take place on the date of porting;
d) the effective porting of the number entails the loss of all types of advantages acquired with the donor operator;
e) the receiving operator can only offer him/her the services available in its network.

Article 13.- The donor operator will only terminate the contract for the provision of electronic communications services to the subscriber at the end of the porting process, which is marked by confirmation from the recipient operator.

Article 14.- The donor operator is obliged to deliver to the recipient operator, within 24 hours from the date of receipt of the porting request, a porting voucher materializing its acceptance or refusal accompanied, if necessary, by the precise reasons for its refusal.

Article 15.- Operators are required to take all necessary measures to ensure that communications to ported numbers are routed under the same quality conditions as communications to non-ported numbers, subject to the maximum period of service interruption linked to the implementation of portability.

CHAPTER III
CANCELLATION OF THE PORTING REQUEST

Article 16.- The applicant for porting may cancel his/her porting request by any means that leaves a written record at the latest 6 hours before the start of the porting time slot. In this case, he/she will notify the receiving operator who will transmit this cancellation request to the donor operator as soon as he/she receives it.

Article 17.- If the information provided by the applicant proves to be fraudulent:
a) the receiving operator and the giving operator agree and put an end to the process, in case the porting is not yet effective;
b) the transaction is cancelled and the number returned to the donor operator, with notification to the other operators, within four (04) hours, if the porting is already effective.

CHAPTER IV
REFUSAL OF THE PORTING REQUEST

Article 18.- (1) In the event of refusal for reasons not provided for by the regulations in force, the receiving operator shall, from the date of receipt of the porting order, send a request to the donor operator to grant the porting request.
The donor operator is obliged to comply with the request of the recipient operator.
(2) If the donor operator fails to comply, the recipient operator shall refer the matter to the Telecommunications Regulatory Board without delay.
(3) Any refusal to port shall be notified to the applicant by the receiving operator within six hours of the date of receipt of the porting order, which shall also inform the applicant of the reasons for the refusal.

Article 19.- (1) Any refusal of a porting request must be motivated and notified to the interested party by SMS or by any means that leaves a written record.
(2) The receiving operator can only refuse the subscriber's request in the following cases:
- the request is incomplete or contains incorrect information, in particular the RIO is not compliant;
- the number belongs to another person;
- a porting request is already in progress;
- non-compliance with the management rules of the national numbering plan.

(3) Non-compliance with the management rules of the national numbering plan referred to in paragraph (2) above concerns namely the following cases:
- the number has been ported;

- the subscriber's request is submitted before the 60-day deadline to be observed, within the limit of two porting operations in a 12-month period, for the porting of the same number.

(4) The conformity of the application file shall be verified at the time of submission and a receipt shall be issued to the Subscriber.

(5) The donor operator may refuse the porting request submitted by the recipient operator, on behalf of the subscriber, only in the following cases:

- the data transmitted by the receiving operator is incomplete or erroneous;
- the number is inactive on the day of the porting request;
- the number is already the subject of a porting request not yet executed;
- the existence of a request from the subscriber to change his/her number;
- the subscriber has waived the porting of his/her number;
- the subscriber has reached the limit for porting the same number, which is twice a year.

(6) Operators may not invoke the reason of a dispute with the subscriber or the existence of unpaid bills to refuse a porting request.

(7) Operators may not invoke the non-expiry of a subscription contract as a reason for refusing porting.

(8) The donor operator may not invoke continued subscription to other services as a reason for refusing number porting.

(9) The donor operator may not charge or demand payment of any kind from a subscriber for porting his mobile number.

CHAPTER V
NOTIFICATION AND PORTABILITY REPORTS

Article 20.- (1) Upon receipt of the porting request, the donor operator shall inform the requesting subscriber by SMS that it has received a porting request from the recipient operator.

(2) Within 6 hours from the date of receipt of the porting order, the receiving operator informs the subscriber by SMS of his/her eligibility, of the effective date of porting as well as of the time slot at which his/her number will be taken out of service.

Article 21.- (1) Operators are required to provide the Board with an annual report and a monthly report on the number porting activities carried out.

(2) Notwithstanding the provisions of paragraph (1) above, operators are required to comply with any request from the Board relating to number portability.

(3) The Telecommunications Regulatory Board shall define the framework for the reports mentioned in paragraph (1) above.

CHAPTER VI
COSTS RELATED TO NUMBER PORTABILITY

Article 22.- The costs associated with number portability shall consist of the costs of implementation in the networks, the costs of porting and the costs of the centralised reference database.

Article 23.- (1) The costs of implementation in the networks are the costs incurred by the introduction of portability in the operator's network and include in particular the costs of developing its infrastructure (network information system and internal processes, service platforms, etc.) and the costs of marketing and advertising.

(2) Each operator shall bear its own costs of implementing portability as referred to in paragraph (1) above. These costs shall not be passed on to the receiving operator in the case of outgoing porting, nor to the end customer in the case of incoming porting.

Article 24.- (1) The costs of porting shall include the charges relating to:

- the eligibility check and technical porting operations for the donor operator;
- support operations;
- the technical operations of porting for the receiving operator;
- the customer management information system linked to the porting.

(2) The costs of porting are invoiced to the receiving operator by the donor operator. The applicable rates are defined in the portability agreement provided for in Article 28 of this Order.

Article 25.- (1) The costs of the centralized reference database shall include the costs associated with its establishment, maintenance and operation.
(2) The costs of setting up the centralized database shall be borne equally by all operators.

Article 26.- (1) The costs related to the implementation of number portability incurred by the operators concerned must be relevant.
(2) The costs referred to in paragraph (1) above shall be justified by the operators at the request of the Board.

Article 27.- The costs invoiced correspond to the costs of porting. The tariffs shall be cost-oriented and shall respect the principles of effectiveness, efficiency, transparency, objectivity and non-discrimination.

CHAPTER VII
MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

Article 28.- (1) Operators shall conclude, within a period of two (02) months from the date of publication of this Order, a number portability agreement.
(2) The agreement referred to in paragraph (1) above shall be transmitted to the Board for approval before signature by the operators.

Article 29.- (1) Operators shall be required, within a period of one (01) year, to adapt their subscription contracts for the provision of mobile electronic communications services to the provisions of this Order.
(2) The draft models of the subscription contracts thus updated shall be submitted to the Board for approval.

Article 30.- The wording of the information transmitted by SMS and the standard models of forms are defined by the Board.

Article 31.- This Order shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 10 July 2017

Minette LIBOM LI LIKENG

The Minister of Posts and Telecommunications

ORDER No. 100/CAB/PM OF 02 NOVEMBER 2017
To lay down the modalities for collection, distribution and repayment of fees collected by the Board in charge of the regulation of electronic communications.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 2007/006 of 26 December 2007 on the financial regime of the State;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon, amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Law No. 2017/010 of 12 July 2017 to lay down the general rules and regulations governing public establishments;
Mindful of Decree No. 2011/408 of 09 December 2011 to organize the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2012/180 of 10 April 2012 on the organization and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organization and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2013/160 of 15 May 2013 on the general rules and regulations governing public accounting;
Mindful of Order No. 10/MINPOSTEL of 17 April 2013 to set out the distribution scheme for fee meant for the use of radio frequencies;
Mindful of Order No. 041/PM of 07 April 2017 to set out the distribution scheme for the fee for the use of addresses, prefixes and telephone numbers,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1.- (1) This Order sets out the terms and conditions for the collection, distribution and repayment of fees collected by the Board in charge of electronic communications regulation, on behalf of the beneficiary Administrations and bodies.

(2) The fees provided for in paragraph (l) above include the following:
- the annual fee of 1.5% of the turnover excluding tax of network operators and service providers, provided for in Article 34 paragraph (5) of Law No. 2010/013 of 21 December 2010 referred to above;
- the fee for the use of radio frequencies, provided for in Article 39 paragraph (1) of Law No. 2010/013 of 21 December 2010 referred to above, as well as in Article 26 paragraph (2) of Decree No. 2012/180 of 10 April 2012 on the organization and functioning of the National Agency for Information and Communication Technologies;
- the fee for the use of addresses, prefixes and telephone numbers, provided for in Article 50 paragraph (2) of Law No. 2010/013 of 21 December 2010 referred to above.

ARTICLE 2.- (1) The fees provided for in Article 1 above shall be collected by the Board in charge of the regulation of electronic communications, hereinafter referred to as "the Board".

(2) An exhaustive list of those liable for the fees referred to in Article 1, paragraph (2) above shall be drawn up by the Board and sent to the beneficiary administrations and bodies thirty (30) days before the beginning of each financial year.

CHAPTER II
THE ANNUAL FEE OF 1.5% OF THE PRE-TAX TURNOVER OF NETWORK OPERATORS AND SERVICE PROVIDERS

SECTION I
COLLECTION

ARTICLE 3.- (1) The annual fee for the operation of the electronic communications regulatory bodies due from network operators and electronic communications service providers shall be payable from the date of issue of the operating licence.
(2) A provisional deposit, determined on the basis of the turnover recorded on 31 December of the previous year, shall be made before 30 June of the current year. Its amount is corrected, if necessary, by the sum ensuring the regularization of the previous financial year.

ARTICLE 4.- (1) The network operator or the provider of electronic communications services shall be required to transmit to the Board, no later than 31 March of each year, its activity report together with its statistical and fiscal declaration for the previous year.
(2) Within thirty (30) days of receipt of the financial statements, the Board shall send to the network operator or the provider of electronic communications services an invoice showing the amount of the fee due for the year of the financial statements transmitted.
(3) The network operator or electronic communications service provider shall pay the fee within thirty (30) days of receipt of the invoice provided for in paragraph (2) above.
(4) Any network operator or provider of electronic communications services who fails to pay the fee within the period specified in paragraph (3) above shall be liable to a surcharge of 5% of the amount of the fee for each indivisible month of delay, but not exceeding a total of five (5) months of delay.
(5) The late payment surcharge provided for in paragraph (4) above shall apply automatically from the deadline for payment set by the Board in the invoice sent to the network operator or electronic communications service provider.

ARTICLE 5.- (1) Any network operator or electronic communications service provider that fails to send its financial statements to the Board within the period provided for in Article 4 above shall be given formal notice to do so within a maximum period of fifteen (15) days.
(2) Without prejudice to the penalties provided for by the regulations in force, any network operator or electronic communications service provider that fails to comply within the time limit prescribed in paragraph (1) above shall be automatically taxed and the amount of the fee due shall be that for the previous year or the last year in which it transmitted its last financial statements, increased by 25%.
However, the Board is entitled to use estimates of the turnover requested. Such estimates shall be binding until proven otherwise.
(3) In the event that the network operator or electronic communications service provider has never submitted certified financial statements, the Board shall make an estimate of the turnover, taking into account, inter alia, the information available from the competent State services.

ARTICLE 6.- (1) Where the Board finds discrepancies in the financial statements of the network operator or the provider of electronic communications services, it shall give notice to correct the said discrepancies in its statistical and tax return, within a period specified in the notice.
(2) If the electronic communications network operator fails to make the required adjustments within the period specified in the notice, the Board shall commission an audit, at the operator's expense, to examine the financial statements in question.
(3) If the audit confirms the discrepancies in part or in full, the amount of the fee resulting from the discrepancies shall be increased by 50%.
(4) Notwithstanding the provisions of paragraphs (1) to (3) above, the network operator or the provider of

electronic communications services shall be obliged to pay the amount of the fee resulting from the disputed financial statements in advance.

ARTICLE 7.- (1) The fee shall be payable by certified cheque, bank transfer or electronic payment to the Board.
(2) Notwithstanding the provisions of paragraph (1) above, the taxpayers shall pay all the fees, duties, contributions and charges within the stipulated time limits, even in cases where they dispute the amount, in whole or in part. If the amount is disputed and a refund is due to the taxable person, the amount shall be refunded by the Board after the dispute has been resolved.
(3) The costs generated by the implementation of contentious recovery actions shall be payable in addition to any surcharge or penalty/increase provided for in this Order.

ARTICLE 8.- The amounts of the surcharges shall be recovered at the same time as the basic amounts due.

SECTION II
DISTRIBUTION OF THE FEES

ARTICLE 9.- The annual fee of one and a half percent of the turnover excluding taxes of the network operators and electronic communication service providers is distributed as follows:
- Board in charge of the regulation of electronic communications: **two thirds (2/3)**;
- Agency in charge of information and communication technologies: **one third (1/3).**

SECTION III
THE PAYMENT

ARTICLE 10.- (1) As soon as the revenue statement or any document invoicing the fees due is issued, the Board shall send copies thereof to the beneficiary bodies.
(2) The beneficiary organizations shall be required to acknowledge receipt of the receipt slip provided for in paragraph (1) above, upon receipt.

ARTICLE 11.- (1) As soon as the annual fee of 1.5% of the turnover excluding tax of the network operators and electronic communication service providers is collected, the Board shall transfer it to the bank accounts of the beneficiary bodies, in accordance with the distribution scheme set out in Article 9 above.
(2) The beneficiary bodies shall be required to acknowledge receipt of the amounts paid out, by means of a receipt sent to the Board.

CHAPTER III
FEES FOR THE USE OF RADIO FREQUENCIES

SECTION I
COLLECTION

ARTICLE 12.- (1) The fee for the use of radio frequencies shall be due from the date of issue of the assignment agreement.
(2) As soon as the assignment agreement is issued, the Board shall send to the licensee an invoice together with a bill for collection.

ARTICLE 13.- (1) The licensee of the assignment agreement shall have fifteen (15) days from the date of receipt of the invoice to pay the fee.
(2) If the fee for the use of radio frequencies is not paid within the period specified in paragraph (1) above, the amount due shall be increased by 100%.
(3) The amount of the increase provided for in paragraph (2) above shall be collected at the same time as the basic amount due.
(4) Refusal to pay shall expose the licensee to the revocation of its assignment agreement.

ARTICLE 14.- The fee shall be payable by certified cheque, bank transfer or electronic payment to the Board.

SECTION II
DISTRIBUTION OF THE FEES

ARTICLE 15.- The fee for the use of radio frequencies shall be distributed as follows:
- Board in charge of the regulation of electronic communications: **sixty-five percent (65%)**;
- Public Treasury: **thirty percent (30%)** of which a share of **seventy percent (70%)** is paid to the Agency in charge of information and communication technologies;
- Interministerial Committee for Radio Frequency Band Allocations: **five percent (5%).**

SECTION III
THE PAYMENT

ARTICLE 16.- The fee for the use of radio frequencies shall be repaid by the Board to the beneficiary administrations and bodies under the same conditions as those laid down in Articles 10 and 11 of this Order, in accordance with the distribution scheme laid down in Article 15 above.

CHAPTER IV
FEES FOR THE USE OF ADDRESSES, PREFIXES AND TELEPHONE NUMBERS

SECTION I
COLLECTION

ARTICLE 17.- (1) The fee for the use of addresses, prefixes and telephone numbers shall be payable from the date of issue of the decision to allocate numbering resources.
(2) As soon as the decision to allocate numbering resources has been issued, the Board shall send to the operator or the value-added service provider an invoice together with a bill for collection.

ARTICLE 18.- (1) The operator or the value-added service provider shall have a period of fifteen (15) days from the date of receipt of the invoice to pay the fee.
(2) If the fee for the use of addresses, prefixes and telephone numbers is not paid within the period specified in paragraph (1) above, the amount due shall be increased by 100%.
(3) The amount of the increase provided for in paragraph (2) above shall be collected at the same time as the basic amount due.
(4) Failure to pay shall expose the operator or provider of value-added services to the withdrawal of the numbers allocated.

ARTICLE 19.- The fee shall be payable by certified cheque, bank transfer or electronic payment to the Board.

SECTION II
DISTRIBUTION OF THE FEES

ARTICLE 20.- The fee for the use of addresses, prefixes and telephone numbers shall be distributed as follows:
- Public Treasury: forty percent (40%);
- Board in charge of the regulation of electronic communications: **thirty percent (30%)**;
- Agency in charge of information and communication technologies: **twenty percent (20%)**;
- Special fund for electronic security activities: **ten percent (10%)**.

SECTION III
THE PAYMENT

ARTICLE 21.- The fee for the use of addresses, prefixes and telephone numbers shall be repaid by the Board to the beneficiary administrations and bodies under the same conditions as those laid down in Articles 10 and 11 of this Order, in accordance with the distribution scheme laid down in Article 20 above.

CHAPTER V
FINAL PROVISIONS

ARTICLE 22.- The General Manager of the Telecommunications Regulatory Board shall be responsible for the execution of this Order.

ARTICLE 23.- This Order shall be registered and published according to the procedure of urgency, and inserted in the Official Gazette in English and French./-

Yaoundé, 02 November 2017

Philémon YANG

THE PRIME MINISTER, HEAD OF GOVERNMENT

ORDER No.0000001/MINPOSTEL/MINFI OF 17 JANUARY 2018 To amend some provisions of Order No.0000006/MINPOSTEL/MINFI of 02 May 2017 establishing the amounts and terms of payment of entry and renewal fees for licenses in the field of electronic communications.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

THE MINISTER OF FINANCE,

Mindful of the Constitution ;
Mindful of Law No. 2007/006 of 26 December 2007 on the financial regime of the State;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Decree No. 2011/408 of 09 December 2011 to organize the Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organization and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012 to organize the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2012/1642/PM of 14 June 2012 to lay down conditions for the attribution and use of numbering resources;
Mindful of Decree No. 2013/066 of 28 February 2013 to organize the Ministry of Finance;
Mindful of Decree No. 2013/160 of 15 May 2013 on the general rules and regulations governing public accounting;
Mindful of Decree No. 2015/434 of 02 October 2015 to reshuffle the Government;
Mindful of Decree No. 2017/2580/PM of 06 April 2017 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime;
Mindful of Order No. 00000006/MINPOSTEL/MINFI of 02 May 2017 to establish the amounts and payment conditions for entry and renewal fees of licences in the electronic communication sector,

HEREBY ORDERS AS FOLLOWS:

ARTICLE 1.- Article 5 of Order No. 00000006/MINPOSTEL/MINFI of 02 May 2017 establishing the amounts and terms of payment of entry and renewal fees for licenses in the field of electronic communications is amended as follows:

> ***ARTICLE 5***.- ***(NEW)*** (1) The fixed portion of the entry fee and the renewal fee shall be payable as from the notification by the Board to the applicant, of the amount of the entry or renewal fee, as the case may be.
> (2) The fixed portion of the entry fee and the renewal fee shall be payable in full within three (03) business days after the applicant is notified of the amount of the entry or renewal fee."

ARTICLE 2.- This Order, which repeals all previous contrary provisions , shall be registered, published according to the procedure of urgency, then inserted in the Official Gazette in English and French./-

Yaoundé, 17 January 2018

Minette LIBOM LI LIKENG
The Minister of Posts and Telecommunications,

ALAMINE OUSMANE MEY
The Minister of Finance,

JOINT ORDER No. 00000004 /MINPOSTEL/MINFI OF 17 APRIL 2020 To establish the general procedures for determining the basis of contributions, dues and fees to which operators holding a first category license and receipt of prior declaration in the field of electronic communications are subject to.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

THE MINISTER OF FINANCE,

Mindful of the Constitution ;
Mindful of Law No. 2018/012 of 11 July 2018 on the financial regime of the State in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Decree No. 2012/1639/PM of 14 June 2012 to lay down the declaration rules as well as the operating conditions of networks and installations subject to the declaration regime;
Mindful of Decree No. 2012/308 of 26 June 2012 to lay down the terms and conditions for managing the Special Fund for Telecommunications;
Mindful of Decree No. 2012/512 of 12 November 2012 to organize the Ministry of Posts and Telecommunications;
Mindful of Decree no. 2013/066 of 28 February 2013 to organize the Ministry of Finance;
Mindful of Decree No. 2013/160 of 15 May 2013 on the general rules and regulations governing public accounting;
Mindful of Decree No. 2017/2580/PM of 06 April 2017 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime;
Mindful of Decree No. 2011/408 of 09 December 2011 to organize the Government, amended and supplemented by Decree No. 2018/190 of 02 March 2018 ;
Mindful of Decree No. 2019/002 of 04 January 2019 to reshuffle the Government,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

Article 1.- (1) This Order sets out the general procedures for determining the basis of assessment of contributions, dues and fees to which operators holding a first category license and a prior declaration receipt in the field of electronic communications are subject to.
(2) It is taken pursuant to the provisions of Articles 11, 23 and 103 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, as amended and supplemented by Law No. 2015/006 of 20 April 2015.

Article 2.- For the purposes of this Order, the following definitions shall apply:
- **Related activities or appendixes** : all activities carried out by a licensee or a holder of a prior declaration receipt that relate to the provision of services or benefits other than those referred to in its operating license;
- **Regulated activities**: a set of activities subject to the monitoring, control and regulation of the Board, carried out by a licensee or a holder of a prior declaration receipt with a view to providing the public or operators in the sector with services or benefits covered by its operating license;
- **Board**: autonomous public body responsible for the regulation, control and monitoring of telecommunications and information and communication technology activities;
- **Basis of assessment**: turnover excluding taxes specific to the provision to the public of electronic commu-

nications services or other services covered by the operating license;
- **Cost accounting**: system of management information processing that allows the calculation, analysis, control and management of costs in an organization, in order to inform decision-maker;
- **General accounting**: a system for processing financial information that makes it possible to observe, analyze, process, store and synthesize all operations that result in a movement of value, in order to provide, on the one hand, all the reports to which the organization is subject by law (balance sheet, income statement, notes to the financial statements, etc.) or by its articles of association, and, on the other hand, the information necessary for the needs of the various users;
- **Principle of non-discrimination**: a set of rules guaranteeing the equal treatment of customers in the provision of the services or benefits covered by the operating license;
- **Principle of objectivity**: a set of procedures to ensure that financial statements contain information that is both relevant, auditable and objectively determined;
- **Principle of transparency**: set of rules to ensure that information on costs and revenues allocated to the various services or benefits is detailed, clear and fair;
- **Reconciliation principle**: a set of rules to ensure that the information in the cost accounting system is based on the general accounting system;
- **Accounting separation**: a comprehensive set of accounting policies, procedures, and techniques that can be applied to the preparation of financial information and that consist of accounting isolation of certain regulated activities for the purpose of verifying the non-discrimination requirement.

CHAPTER II
THE BASIS FOR CALCULATING FEES, CHARGES AND CONTRIBUTIONS

Article 3.- (1) Operators holding a first category license and a prior declaration receipt shall be subject to the payment of fees, duties and contributions on the amount, exclusive of tax, of their annual turnover from the provision of the services covered by their operating license.

(2) The fees, duties and contributions mentioned in article 3 (1) above cover :
- the annual fee of 1.5% of the turnover excluding taxes, for the operation of the Board in charge of the regulation of telecommunications up to 1% and of the National Agency of Information and Communication Technologies up to 0.5%;
- the variable part of the entry fees and the renewal fees;
- the annual contribution to the Special Fund for Telecommunications, amounting to 3% of sales excluding tax;
- all other regulatory fees, duties and contributions based on revenues excluding taxes.

(3) The basis for calculating the fees, duties and contributions is the turnover excluding tax relating to the provision to the public of electronic communications services or other services covered by the operating license.

Article 4.- The fees, duties and contributions due on the pre-tax turnover generated by the activities of operators holding a first category license and a prior declaration receipt shall be paid to the Telecommunications Regulatory Board in accordance with the regulations in force.

CHAPTER III
DETERMINATION OF TAXABLE TURNOVER

Article 5.- (1) In order to determine the taxable turnover, operators holding first category licenses and prior declaration receipts shall be required to keep general accounting.

(2) In addition to general accounting, they shall be required to keep cost accounting in accordance with the provisions of Article 23 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, as amended and supplemented by Law No. 2015/006 of 20 April 2015, so as to ensure, where appropriate, a strict accounting separation between, on the one hand, the turnover of activities for the provision to the public of electronic communications services or other services covered by the operating licence, and, on the other hand, the turnover of related activities.

In the absence of a separate presentation of the turnover for each activity, the total turnover shall be considered the basis for calculating the fees, charges and contributions.

(3) Cost accounting must be established in accordance with the principles of objectivity, transparency and non-discrimination and must facilitate the determination of the costs, revenues and results of each network

operated and/or each service provided. To this end, first category licensees providing intermediate services to other operators in the sector shall ensure that the costs introduced in the tariffs for said services are appropriate.

Article 6.- (1) Operators holding a first category license and a prior declaration receipt shall provide the Board with the statements of costs and revenues recorded for the services concerned by the basis of assessment.
(2) The following headings of the income statement shall provide information on the revenues generated during a financial year:
- work and services invoiced;
- sale of goods;
- sale of manufactured products;
- incidental income.

(3) The Board shall ensure that the following non-exhaustive statements of return provided by the operators comply with accounting principles:
- the certified Statistical and Fiscal Declaration in which the profit and loss account shows:
  - the turnover of the activities for the provision of the services/subject of the licence under the heading " *Invoiced works and services* ". Where applicable and relevant, the headings " *sale of goods* " and "*sale of manufactured products*" may be included;
  - the turnover of related activities under the heading " *Ancillary products*";
- an analytical report including:
  - an exhaustive list of the services invoiced;
  - the analytical statement of income from invoiced services.

Article 7.- (1) The operator shall establish in a precise manner the relationship between its general accounting and its cost accounting in order to ensure the reliability of the data returned within the framework of the accounting obligations.
(2) The following steps must be documented when establishing the relationship referred to in Article 7 (1) above:
- transition from general accounting to cost accounting;
- transition from cost accounting to the tax base.

CHAPTER IV
AUDIT

Article 8.- (1) The annual accounts drawn up by the holders of licences and prior declaration receipts shall be certified by an auditor in order to approve their sincerity and regularity.
(2) The accounts and summary statements, drawn up at the latest within six (6) months of the closing date of the accounting period, may be submitted to audits, at the operators' expense, by an approved body designated by the Board.

CHAPTER V
FINAL PROVISIONS

Article 9.- First category network operators and holders of prior declaration receipts shall remain subject to all other levies provided for by the regulations in force.

Article 10.- The General Manager of the Telecommunications Regulatory Board shall be responsible for the execution of this Order, which shall be registered in accordance with the procedure of urgency, and then inserted in the Official Gazette in English and French./-

Yaoundé, 17 April 2020

Louis Paul MOTAZE

THE MINISTER OF FINANCE,

LIBOM LI LIKENG née MENDOMO Minette

THE MINISTER OF POSTS AND TELECOMMUNICATIONS

DECISIONS

DECISION No.00000054/MINPOSTEL OF 18 APRIL 2013 To lay down the installation conditions of telecommunications relay towers and masts in Cameroon.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No 2010/013 of 21 December 2010, to govern electronic communications in Cameroon;
Mindful of Framework Law No. 2011/012 of 06 May 2011 on consumer protection in Cameroon;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2011/410 of 09 December 2011 to form the Government;
Mindful of Decree No 2012/203 of 10 April 2012, on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/180 of 10 April 2012 to set out the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2012/1640/PM of 14 June 2012 to lay down the conditions for the interconnection and access to electronic communications networks opened to the public and the sharing of infrastructure;
Mindful of Decree No.77/526 of 23 December 1977 on the protection of telecommunications or power cables, water of gas pipes, of sanitation networks of the same type,

HEREBY DECIDES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

Article 1.- This decision shall lay down the installation conditions of telecommunications relay towers and masts. It shall apply particularly to operators, passive infrastructure managers and to telecommunications relay towers and antennas installers.

Article 2.- Terms used in this Decision shall have the following meanings:

1. **Antenna**: structure or device used to receive or transmit electromagnetic waves;
2. Co-location: use of a site, a telecommunications relay tower by more than one network carrier or operator;
3. **Guy connection**: hardware or mechanism by which a length of the guy strand is connected to the tower or guy anchor;
4. **Climbing safety devices**: devices other than cages, designed to minimize accidental falls, or to limit the distance of such falls;
5. **Tower height**: means the distance measured from ground level to the highest point of any and all components of the structure, including antennas, hazard lighting, and other appurtenances;
6. **Working facilities**: access runways and working platforms;
7. **Climbing facilities**: components especially designed or meant to ease access, such as fixed ladders, step bolts or structure compartments;
8. **Grounding**: establishing an electrical connection between the structure and the earth, adequate for lightening, high voltage or static discharges;

9. **Monopole**: a self-supporting telecommunications tower which made up of a single vertical pole fixed in the ground and/or attached to a foundation;
10. **Pylon**: metal structure generally used to support telecommunications antennas;
11. **Alternative mounting structure**: artificial tree, clock tower, church steeple, belt tower, utility pole, light standard, identification pylon, flagpole or similar structure designed to support and camouflage or conceal the presence of telecommunications antennas;
12. **Guyed tower**: a telecommunications relay tower supported in whole or in part by cables anchored to the ground;
13. **Self-supporting lattice**: a telecommunications support structure made up of an open network of metal braces forming a tower whose plan is usually triangular or square.

Article 3. - Types of relay towers, antennas and following installations are recognized in the electronic communications sector:

- Monopole towers or posts masts made up of steel conical tubes that nest with each other to form a stable pole. They can be guyed or self-supported and made up of climbing rungs, where necessary;
- Guyed Towers stabilized by tethered wires;
- Self-Supporting Towers composed of self supporting lattice structures.

CHAPTER II
GENERAL SPECIFICATIONS FOR TELECOMMUTICATION RELAY TOWERS AND MASTS

Article 4.- The following general specifications shall apply to electronic communication relay towers and masts installed in Cameroon:

a) Predominant load on the tower structures shall include wind load;
b) Each structure is made up of hot-dip galvanized steel sections;
c) Masts may be guyed or free-standing;
d) The height of free-standing Towers shall not exceed 150 metres;
e) Masts and relay towers may be installed on a property with a written consent of the property owner;
f) No relay towers and masts may be installed within 10 kilometres radius on the extension of an airport landing strip without prior approval from competent authorities;
g) The open space available on the site of a proposed tower or mast installation must be at least equal to three times the required area by the structure base, except in special cases of urban and rural areas;
h) Each completed tower or mast must have a name plate indicating its manufacturer and its owner;

Article 5.- The Telecommunications Regulatory Board shall specify the detailed technical features on the towers and masts especially those related to the load-carrying angle bar, thickness of gussets, cross bracings, materials, lattice structures and possibly engineering structures.

Article 6.- (1) The maximum height of a tower shall not exceed 150 metres.
(2) Notwithstanding paragraph (1) above, a tower above 150 metres in height, may be approved by the Telecommunications Regulatory Board, if it is convinced that the increased height of the tower:

a) Shall not be detrimental to public health, safety , air navigation or general welfare;
b) Shall not be harmful to the neighbourhood;
c) Shall comply with the development plan of the area and Regional and local authorities involved.

Article 7.- A Telecommunications Regulatory Board guideline shall specify the features of the security fencing, setbacks, rights-of-way, type of signalling lighting and safety marks.

Article 8.- (1) No tower or mast shall be installed in proximity to high voltage electrical cables. The nearest distance of a tower to a high voltage electrical cables line shall be equivalent to 120% of the tower's height.
(2) Owners of towers and masts installed in violation of the above provisions shall bear the removal cost of such facilities, under the supervision of the Telecommunications Regulatory Board.

Article 9.- A Telecommunications Regulatory Board guideline shall give specifications for alternative structures and antenna mounts.

Article 10.- (1) A tower that has not been used for a continuous period of three years may be deemed to have been abandoned.
(2) When the issue of abandonment is questioned, the Telecommunications Regulatory Board may request appropriate documentation from the owner in order to determine the effective date of abandonment.
(3) Upon the determination of abandonment, the Telecommunications Regulatory Board shall issue a dismantling notice to the owner who shall be in charge of dismantling and removing the tower from the property within ninety (90) days, following the receipt of the Board order.

CHAPTER III
IMPLANTATION OF RELAY TOWERS AND ANTENNAS

Article 11.- The installation of relay towers and antennas shall comply with the provisions of laws and regulations on urban planning, safety, public health and environmental protection. In this regard:

a) the installation of guyed relay towers is prohibited in urban and rural areas;
b) structures of towers and masts are designed to withstand dynamic loads especially, expected from antennas, feeders and wind loads pipes;
c) these structures shall particularly take into account geotechnical analyses and wind conditions on installation sites in order to determine the bearing surface;
d) the weight of the tower structure shall take into account antenna feeder lines and all related steel work as well as effects of wind load on the total surface;
e) three basic physical forces shall be taken into consideration while designing towers and masts foundations. These shall include: vertical downward load, base shear, and pressure charge;
f) for guyed towers, borings shall be carried out in anchorage areas and at the base of each location since conditions may widely vary from one point of the site to another;
g) foundations and anchors must be designed to support the structures and specified loads for specific soil conditions;
h) pillars, raft, foundations and anchors specially designed are to be considered in terms of a submerged, marshy or mud soil conditions;
i) foundation designs will be made and certified by licensed and qualified professional engineers.

Article 12.- The installation of relay towers and antennas shall comply with regulatory provisions on co-location, pooling and infrastructure sharing. In this regard:

a) The nearest distance between two neighbouring towers shall be of seven hundred and fifty (750) metres in residential areas and two (2) km in non-residential areas;
b) Towers located in cities must meet the guidelines and rules set out by the Telecommunications Regulatory Board as well as those mentioned above;
c) The implantation and installation of towers shall take into consideration infrastructures sharing for more than two (2) telecommunications network operators or carriers. Owners of towers must, under this article 12 provide proof to the Telecommunications Regulatory Board that their towers are meant to be used by other telecommunications service supplies on reasonable, transparent and non-discriminatory bases.

Article 13.- The assembly and installation of towers including roofs shall take into account the buildings structure analysis to make sure that the roof can withstand the additional load imposed by the facilities. In this regard:

a) Prior to the installation, all roof masts or towers must be certified by building structural engineers;
b) Roof assemblies shall be limited to lightweight structures of low height;
c) Roof assemblies can be installed in the penetrating or non-penetrating modes. They can be self-supported or guyed. However, non-penetrating roof assemblies are preferred for flat surfaces.

Article 14.- Towers and antenna installed in violation of this Decision shall be dismantled under the supervision of the Telecommunications Regulatory Board, at the owner's expense.

Article 15.- A guideline from the Telecommunications Regulatory Board shall specify the technical features of towers and antennas to be installed in Cameroon. This guideline shall include graded, joints, features of pipes, monopoles, depth of the overlay, structures, and segments, base diameter, platforms, superstructures, lighting markings and anchors.

CHAPTER IV
IMPLANTATION AND INSTALLATION OF INFRASTRUCTURE

Article 16.- All masts must be grounded and provided with lightening protection system.

Article 17.- The Telecommunications Regulatory Board shall specify the grounding and protection conditions through lightening arrestor especially the resistivity values, the target resistance and the depth to which the earth electrode is driven into the soil, the features of conductors and of airline terminals, and distances between electrodes.

Article 18.- Towers and masts exceeding forty-five (45) metres shall be equipped with security devices comprising the following:

a) fall arrest systems;
b) climb ladders or step bolts;
c) Guardrails;
d) working and testing platforms;
e) support platforms;
f) anti-climb systems.

Article 19.- The detailed features for safety devices shall be set out by the Telecommunications Regulatory Board.

Article 20.- (1) Any person or entity wishing to erect and install a telecommunications tower or mast must, at the instigation of the Telecommunications Regulatory Board, obtain a license issued by the Minister of Telecommunications, before starting works.

(2) Applications submitted to the Telecommunications Regulatory Board under Paragraph (1) above shall be accompanied by the following documents:

a) a site plan showing the location of the proposed structure in relation to adjoining structures;
b) A general plan of land in the area where the tower is to be installed for a perimeter of 750 metres, showing that there is no existing tower in residential areas and of two (2) kilometres for non-residential areas;
c) Ownership proof of the land on which the facility is to be built or a written consent of the owner;
d) The geographical coordinates of the proposed structure and that of the nearest airport, heliport or helipad;
e) A structure plan showing its effective height, foundation, guys (where used) compartments, ladders, support and working platforms, its grounding, lightning arrestor and aviation lighting.

CHAPTER V
MISGELLANEOUS AND TRANSITIONAL PROVISIONS

Article 21.- The installation of telecommunications masts and towers without authorization shall be sanctioned by the Telecommunications Regulatory Board.

Article 22.- (1) Non- compliance with the provisions of this decision shall be considered to be a default under the Law governing electronic communications in Cameroon.

(2) Notwithstanding the provisions of paragraph 1 above, telecommunications towers and masts installed in Cameroon as from the date of signature of this decision, shall benefit from derogation as regards their conditions of implantation and installation.

Article 23.- The Telecommunications Regulatory Board shall be responsible for implementing this Decision that shall be registered and published in English and French./-

Yaoundé, 18 April 2013

Jean Pierre BIYITI bi ESSAM

The Minister of Posts and Telecommunications

DECISION No.00000086/ART/DG/DAJPC OF 22 MAY 2014 To set out the terms and conditions for the launching of promotional offers of electronic communications services by operators.-

THE GENERAL MANAGER,

Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Framework Law No. 2011/012 of 6 May 2011 on consumer protection in Cameroon;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board (TRB);
Mindful of Decree No. 2012/1638 of 14 June 2012 to set out the terms and conditions for the establishment and/or operation of networks and supplies of electronic communication services subject to the authorisation regime;
Mindful of Decree No. 2012/1639 of 14 June 2012 to set out the terms and conditions for the declaration and operation of networks and installation subject to the declaration regime;
Mindful of Decree No. 2013/0399 of 27 February 2013 to lay down the rules for the protection of consumers of electronic communications services;
Mindful of Decision No. 11/ART/CA of 26 April 1999 to appoint the General Manager and Deputy General Manager of the TRB,
Considering Article 1.1.2 under the specifications of operators holding concession agreements;
Considering the need to guarantee the protection of consumers and users of electronic communications products and services,

HEREBY DECIDES AS FOLLOWS:

Article 1.- The purpose of this decision is to set the terms and conditions for the launch by operators of promotional offers for electronic communications services and the pricing of value-added services by phone.

Article 2.- For the purposes of this decision, a promotional offer is any commercial practice or operation undertaken by an operator in order to encourage some or all of the public, for a limited period of time and by means of financial and/or other advantages, to purchase its products or subscribe to its electronic communications services.

Article 3.- The conditions linked to a promotional offer, and in particular the tariffs, must be clear, exhaustive, fair and unequivocal.
Any indication of advantages or attributes that are not actually granted to the recipients under the offer covered by the promotion is prohibited.

Article 4.- Any promotional offer must be submitted to the Board for notification eight (08) working days before the launch of the promotion.
This offer shall be examined by the TRB in accordance with the regulations in force.

Article 5.- The duration of a promotion concerning an offer may not exceed three (3) months. The interval between two promotions on the same offer may not be less than two (2) months.
For promotions on top-ups, the interval between promotions may not be less than one (1) month, unless an exception is expressly granted by the Telecommunications Regulatory Board (TRB).

Article 6.- During the announced duration of the promotion, operators shall be required to meet all consumer demand in a fair manner, in accordance with the sales conditions fixed and published in advance.

Article 7 :- Operators shall give consumers the possibility of enabling or disabling a promotion by specifying the relevant codes.

Article 8.- Failure to apply this decision represents a breach leading to the sanctions provided by the existing laws and regulations.

Article 9.- This decision shall be published both in English and French, wherever necessary./-

Yaoundé, 22 May 2014

Jean Louis BEH MENGUE

THE GENERAL MANAGER OF ART

DECISION No. 00000087/ART/DG/DAJPC OF 22 MAY 2014 To prescribe to operators the modalities governing gaming and the sending of unsolicited messages by cellular phone.-

THE GENERAL MANAGER,

Mindful of Law No. 89/026 of 29 December 1989 to govern electronic communications in Cameroon;
Mindful of Law No. 2006/018 of 29 December 2006 to regulate advertising in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 on consumer protection in Cameroon;
Mindful of Decree No. 92/050/PM of 17 February 1992 to lay down the conditions for the authorisation, operation and control of games of entertainment and games of chance;
Mindful of Decree No. 2012/203 of 20 April 2012 to fix the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/1638/PM of 14 June 2012 to set out the conditions for the establishment and/or operation of networks and of supplying electronic communication services subject to prior authorisation;
Mindful of Decree No 2013/0399 of 27 February 2013 to lay down the rules for the protection of consumers of electronic communications services;
Mindful of Decision No. 11/ART/CA of 26 April 1999 to appoint the General Manager and the Deputy General Manager of TRB,
Considering Article 1.1.2 under the specifications of the operators' concession agreements;
Considering the need to ensure the protection of consumers and users of value-added services in electronic communications,

HEREBY DECIDES AS FOLLOWS:

Article 1.- This decision prescribes to operators the guidelines governing gaming and the sending of unsolicited messages by electronic communications.

Article 2.- For the purposes of this decision, the following definitions shall be applied:

a) **Game**: any activity organised under a system of rules that defines winners and losers;
b) **SMS**: short message service sent from the operator to the network subscriber;
c) **Spam**: unsolicited electronic bulk communications over e-mail or mobile messaging for the purpose of marketing commercial products or services. [b-ITU-T X.1240, supplement 11, September 2011];
d) **Medium**: anything that is used to store, transport, transmit information.

Article 3.- Conditions associated with gaming organised by the means of electronic communication network must be clear, exhaustive, honest and non-equivocal.

Article 4.- The price payable for a game must be legible, complete and accurate on any medium and/or communication channel without splitting or additional invoicing. It shall be made available to the consumer prior to any commitment on his/her part to participate.

Article 5.- (1) Gaming must not last longer than one (1) month.
2) During the gaming period, the operators shall treat fairly any request from consumers, and under the conditions of sale established and published beforehand.

3) During major events, gaming, sending of unsolicited short messages and spam emails shall be suspended 24 hours, before and after the date of said event.

Article 6.- In addition to gaming, any sending of short messages by the operator, within the framework of the contract, must only be done between 6 a.m. and 10 p.m., and must not exceed three (3) per day.

Article 7.- Spam sent must have the signature of the sender.

Article 8.- (1) Operators allow consumers to activate gaming by specifying the codes relating thereto. They must also indicate the codes for deactivating gaming, unsolicited short messages and spams.
(2) Activation and deactivation codes should be simple and free of charge. To avoid the risk of confusion on the part of the consumer, the activation and deactivation codes must consist of at least three (3) characters.

Article 9.- The consumer weary with the disregard for the terms of this decision can engage the Telecommunications Regulations Board (TRB).

Article 10.- Failure to observe this decision shall constitute a breach that would result in sanctions provided for in applicable regulations and laws.

Article 11.- This decision, which shall take effect from its date of signature, will be published in English and French, wherever necessary./-

Yaoundé, 22 May 2014

Jean Louis BEH MENGUE

THE GENERAL MANAGER OF ART

DECISION No. 00000191/ART/DG/DAJPC/SDAJ/SREG OF 02 OCTOBER 2014
To establish the terms of settlement of disputes between operators of electronic communications networks in Cameroon.-

THE GENERAL MANAGER
OF THE TELECOMMUNICATIONS REGULATORY BOARD,

Mindful of Law No. 67/LF /20 of 12 June 1967 to regulate private radio communication activities and to determine corresponding taxes settlement;
Mindful of Law No. 99/16 of 22 December 1999 on the general rules and regulations governing public establishments and public and para-public enterprises;
Mindful of Law No. 2001/010 of 23 July 2001 to establish the minimum service in the telecommunications sector;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of the Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/1638/PM of 14 June 2012 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime;
Mindful of Decree No.2012/1639/PM of 14 June 2012 to lay down the declaration rules as well as the operating conditions of networks and installations subject to the declaration regime;
Mindful of Decree No. 2012/1640/PM of 04 June 2012 to lay down conditions for interconnection, access to electronic communications open to the general public and sharing of infrastructures;
Mindful of Decree No 2012/1642/PM of 14 June 2012 to lay down conditions for the attribution and use of numbering resources;
Mindful of Order No.0000015/MINPOSTEL of 27 June 2012 to lay down the terms and conditions for unbundling the local loop of electronic communications networks;
Mindful of Decision No. 11/ART/CA of 26 April 1999 to appoint the General Manager and Deputy General Manager of the Telecommunications Regulatory Board;
Considering that one of the basic missions of the Board is to guarantee healthy and fair competition in the telecommunications and information and communication technologies sector;
Considering that for the accomplishment of this mission, the Board is required to receive and deal with disputes between operators of electronic communications networks according to a transparent procedure with a view to a fair and rapid settlement,

HEREBY DECIDES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

SECTION 1
PURPOSE

ARTICLE 1.-
This decision, taken pursuant to the provisions of Article 65 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, lays down the procedures for settling disputes between operators of electronic communications networks.

SECTION 2
DEFINITIONS

ARTICLE 2.-

(1) For the purposes of this Decision, the following definitions shall apply:

- **Board**: Autonomous public body responsible for the regulation, control and monitoring of telecommunications and information and communication technologies activities;
- **Conciliation**: any attempt at amicable resolution, initiated by the Board on the occasion of a dispute between the operators of electronic communications networks;
- **Conclusions**: procedural instrument by which a party sets out its claims;
- **Dispute resolution committee**: Body in charge of the settlement of disputes between operators;
- **Decision**: administrative instrument taken by the Board or the body of settlement of the dispute to consecrate the conciliation of the parties or the end of the arbitration of the dispute;
- **Deliberation**: phase of consultation at the end of which the dispute settlement body issues its decision;
- **Additional claim**: an instrument by which a new claim is formulated during the procedure;
- **Dispute**: disagreement on a point of law or fact, dispute, contradiction, opposition of legal theses or interests between the operators of the electronic communication networks submitted to the Telecommunications Regulatory Board;
- **Instruction**: phase of the procedure during which the elements necessary to the demonstration of the truth are gathered, like the evidence supporting the claims of the parties;
- **Interconnection link**: the transmission link connecting the point of presence of a third party operator to the switch open to interconnection of an operator of a publicly available electronic communications network;
- **Infrastructure sharing**: making available easements, equipment, rights of way, civil engineering works, trunk lines, ducts and high points that may be available to legal persons governed by public law and electronic communications network operators with a view to the installation and operation of equipment;
- **Parties**: operators of electronic communications networks involved in the dispute settlement procedure;
- **Minutes**: procedural document drawn up by the Board at the end of the partial or total conciliation or the non-conciliation of the parties;
- **Precautionary measure**: measure taken by the Board during the procedure, aimed at preserving the continuity of service or the operation of networks, disrupted by the dispute between the operators;
- **Notification**: formality by which the Board communicates to a party a decision or a procedural instrument concerning a dispute;
- **Principle of adversarial proceedings**: the principle according to which each of the parties is free, during the debates, to make known all that is necessary for the success of its claim or defence and to take cognizance of any document or evidence presented by the adversary before the supervisory body for the settlement of disputes;
- **Appeal**: a procedure by which a party may challenge the decision of the dispute settlement body before an arbitrator or a civil judge;
- **Request**: a written petition to the Board by a party for the settlement of a dispute;
- **Referral**: the formality by which a party brings a dispute before the Board;
- **Suspension of execution**: procedure allowing the civil judge to defer the execution of the decision taken by the dispute settlement body under the legal conditions in force.

(2) The terms used and not defined by this decision are in accordance with the definitions given in Article 5 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon or any other national or international text in force.

SECTION 3
SCOPE OF APPLICATION

ARTICLE 3.-

(1) The Board shall be competent to hear, before any referral to the courts, disputes between operators of electronic communications networks relating in particular to:

- interconnection or access to an electronic communications network;
- unbundling of the local loop;
- numbering;
- frequency interference;

- physical co-location;
- infrastructure porting.

(2) This decision shall apply to disputes between operators of electronic communications networks.

CHAPTER II
THE DISPUTE SETTLEMENT BODY

ARTICLE 4.-
A Dispute Settlement Committee, hereinafter referred to as the "**DSC**", is hereby established within the Board.

ARTICLE 5.-
(1) Placed under the authority of the General Manager of the Telecommunications Regulatory Board, the DSC shall be the investigating and deliberating body for the settlement of disputes in the Telecommunications and Information and Communication Technologies sector in Cameroon.

(2) The supervisory body is responsible for deliberating on the settlement and is composed as follows:
- **a chairperson**: the General Manager of the Board;
- **a vice chairperson**: the Deputy General Manager of the Board;
- **members**: the Technical Advisors, excluding the coordinator designated for the dispute in question; the Technical Director, the Director of Frequency Management, the Director of Licensing, Competition and Interconnection, the Director of Legal Affairs and Consumer Protection and the Regional Delegates.

(3) The technical body is responsible for investigating the dispute and is composed as follows:
- **a coordinator** designated by the General Manager of the Board among the Technical Advisers, according to the nature of the dispute;
- **members consisting of** the Sub-Director in charge of numbering, the Sub-Director in charge of technical controls, the Sub-Director in charge of spectrum control, the Sub-Director in charge of spectrum administration and the Sub-Director in charge of interconnection and infrastructure sharing;
- **two rapporteurs** in the capacity of the Sub-Director in charge of litigation and the Sub-Director in charge of licensing.

(4) If the Chairperson is held for other duties, the Vice-Chairperson shall substitute for him or her.

ARTICLE 6.-
(1) To carry out its missions, the DSC has a Technical Secretariat in charge of:
- the secretariat of the meetings of the DSC;
- the preparation of files for the meetings of the DSC;
- follow-up of the directives and orientations set by the DSC;
- archiving the documents of the DSC;
- drafting the activity report of the DSC.

(2) The Technical Secretariat is provided by the Sub-Director in charge of Legal Affairs.

ARTICLE 7.-
(1) The DSC may, as necessary, call upon any other natural or legal person, in view of his or her expertise, skills and the nature of the dispute, to participate in the work of the Committee.

(2) The DSC shall meet, as needed, at the call of its Chairperson.

CHAPTER III
THE INSTITUTION OF PROCEEDINGS

SECTION 1
REFERRAL TO THE BOARD

ARTICLE 8.-
(1) The Board may, at the request of any operator of electronic communications networks who can show an interest in acting, be called upon to settle disputes.

(2) However, the Board's competence as provided for in article 3 above is possible only if the facts, which are the subject of the dispute, do not constitute a criminal offence.

ARTICLE 9.-

(1) The matter shall be referred to the Board:
- either by a request addressed to the General Manager, deposited at the head office or in a Regional Delegation of the Board against a receipt;
- or by registered letter with acknowledgement of receipt addressed to the General Manager;
- or by any other means that leaves a written record.

(2) The date of receipt shall be that recorded by the Mail and Archives Service;

(3) All petitions addressed to the Board shall be recorded in a litigation log kept in the Litigation Department.

(4) The petition and exhibits shall be sent to the Board against a receipt, in as many copies as there are parties, plus two (02).

SECTION 2

ADMISSIBILITY OF THE PETITION

ARTICLE 10.-

Subject to being declared inadmissible, the petition for the settlement of disputes shall specify:
- the status of the applicant;
- its corporate name;
- its legal form;
- its registered office;
- the identity of its representative ;
- its articles of association in as many copies as there are parties involved, plus one (01).

ARTICLE 11.-

The applicant must specify the name, registered office, name and first name, the legal representative, as well as the complete address of the defendant or defendants.

ARTICLE 12:-

(1) The petition shall indicate the facts at the origin of the dispute, specify the grounds of the claim and set out the means invoked in support of the claim.

(2) The parties shall expressly indicate to the Board the address to which they wish to be notified of the procedural documents.

ARTICLE 13.-

(1) Upon filing the application, the applicant shall pay the procedural costs as provided for by the regulations in force.

(2) The procedural fees are non-refundable and the receipt of their payment must be attached to the application.

ARTICLE 14.-

If the referral document does not meet the conditions mentioned in article 12, the Board shall invite the applicant to complete, by any means that leaves a written record, his application within a period of eight (08) calendar days, otherwise it shall be inadmissible.

ARTICLE 15.-

(1) If the application file is found to be incomplete, the Board shall notify the applicant in writing of the missing documents that must be provided within eight (08) calendar days. In this case, the time limit envisaged for the examination of the file shall run only from the date of receipt of the required documents.

(2) The request for additional documents does not affect the admissibility of the referral.

ARTICLE 16.-

(1) When it appears that the referral is inadmissible, in the absence of capacity to act, or if the facts invoked do not fall within the scope of the Board's competence, the General Manager of the Board shall notify the applicant by letter stating the reasons.

(2) Where the referral is deemed admissible, the Board may, on its own initiative or at the request of one of the parties, attempt to reach an amicable settlement of the dispute.
(3) In either of the cases referred to in the above paragraph, the Board shall inform the parties.

SECTION 3
CONCILIATION

ARTICLE 17.-
(1) Conciliation hearings, which are presided over by the General Manager of the Board or his representative, shall be held in the absence of the parties' counsel.
(2) During the conciliation attempt, the General Manager of the Board is assisted by a secretary who records the statements of the parties in the special register provided for this purpose.

ARTICLE 18.-
(1) When an amicable solution to the dispute has been reached, a conciliation report shall be signed by the parties and the Board.
(2) In the event of consensus on all the points of the dispute, a report of total conciliation shall be drawn up.
(3) In the event of consensus on part of the issues in dispute, a report of partial conciliation shall be drawn up, to which a protocol shall be appended concerning the aspects settled.

ARTICLE 19.-
The minutes of conciliation signed by the parties shall contain the following information:
- the identification of the parties, in particular the names, first names, corporate name, nationality, address, legal representatives;
- the statement of the respective claims of the parties and the arguments raised;
- the outcome of the conciliation procedure and the mutual commitments of the parties;
- the precise schedule for the execution of the agreement;
- the date and place of signature of the minutes and the related protocol;
- the names of the signatories of the minutes.

ARTICLE 20.-
(1) The Board is the guarantor of compliance with the commitments made by the parties. The minutes and the protocol must be signed by the parties no later than ten (10) calendar days after their transmission.
(2) In the light of the minutes, which shall constitute an agreement between the parties, the Board shall take a conciliation decision establishing the amicable settlement of the dispute. This conciliation decision shall be notified to the parties by a Bailiff, who shall comply with it within thirty (30) calendar days.
(3) If the parties fail to sign, the Board shall give them formal notice to comply within a maximum period of fifteen (15) calendar days.
(4) In the event of non-compliance with the terms of the Memorandum of Understanding or its schedule, the Board shall give notice to the defaulting party to comply within fifteen (15) calendar days. Should it fail to do so, the defaulting party may be subject to the sanctions provided for by the regulations in force and/or the concession agreement and the specifications of the operators concerned.

ARTICLE 21.-
(1) In case of failure of conciliation, a report of non-conciliation is established and signed by the parties.
(2) The statement of non-conciliation shall contain the following information:
- identification of the parties;
- the statement of claims;
- the outcome of the proceedings and the indication that the Board will issue a decision to settle the dispute finally;
- the date and place of signing of the minutes of non-conciliation.

(3) The General Manager shall forward the minutes of non-conciliation, together with the file, to the Dispute Settlement Committee for adjudication of the dispute.

CHAPTER IV
INVESTIGATION OF THE DISPUTE

SECTION 1
THE PREPARATION OF THE FILE

ARTICLE 22.-
(1) The Technical Secretariat is responsible for archiving the documents of the DSC. As soon as a case is referred to the DSC, the file is stamped with the date of entry and entered in a register kept by the Technical Secretariat.
(2) Documents sent during the course of the examination are also stamped with the date of arrival.

ARTICLE 23.-
(1) The technical body is in charge of implementing the guidelines defined by the supervisory body.
(2) At the initiative of the technical body, the chairperson:
- sends, by any means that leaves a written record, to the opposing party a copy of the referral document and sets a time limit within which the party concerned must respond;
- invites the parties to meet in his presence to determine, by mutual agreement, a provisional schedule fixing the dates for the production of observations.

ARTICLE 24.-
(1) Upon receipt of the complete referral file, the parties shall transmit their observations and documents to the Technical Secretariat, in as many copies as there are parties concerned, plus two (02).
(2) All documents of the Technical Secretariat are subject to the secrecy of the investigation.
(3) The DSC shall rule on the petition within forty-five (45) calendar days from the date of filing of the petition. The parties shall be notified of the decision by a bailiff's writ.

ARTICLE 25.-
When the parties append documents to their petitions or observations, they shall simultaneously draw up an inventory and send them to the Committee in as many copies as there are parties, plus two (02).

ARTICLE 26.-
The coordinator is responsible for the implementation of the measures of investigation and communications with the parties.

ARTICLE 27.-
(1) The technical body may proceed, while respecting the principle of adversarial proceedings, to any investigative measure that it deems useful. It may, specifically, invite the parties to provide, orally or in writing, the explanations necessary for the settlement of the dispute.
(2) The members of the technical body may be mandated to carry out, in agreement with the party concerned, some findings.
(3) The parties shall be invited to be present at these findings, which shall be recorded in a report.
(4) The report thus drawn up shall be signed by the parties, who shall receive a copy for possible comment.
(5) The technical body may carry out technical, economic and legal consultations or expert opinions, while respecting the confidentiality of the investigation.
(6) During the investigation phase, the debates are recorded in minutes signed by all the participants.

ARTICLE 28.-
The investigation shall be closed no later than five (5) clear days to the hearing before the supervisory body.

SECTION 2
PRECAUTIONARY MEASURES

ARTICLE 29.-
Where the dispute between the operators is of such a nature as to paralyse the normal functioning of the

electronic communications networks or services, the Board may take, before any final settlement of the said dispute, any precautionary measure enabling the continuity of the service or the functioning of the networks.

CHAPTER V
DECISION OF THE DISPUTE SETTLEMENT COMMITTEE

SECTION 1
HEARINGS

ARTICLE 30.-
(1) At the end of the investigation, the technical body shall forward the file together with its report to the supervisory body.
(2) The Technical Secretariat initiates the summons of the parties to a hearing before the DSC, including when the latter decides on a request for precautionary measures.
(3) The summons to the hearing is sent to the parties five (5) clear days before the date of the hearing, by any means that leaves a written record and allows the date of receipt to be verified.
(4) For precautionary measures, the summons to the hearing shall be forwarded to the parties three (03) clear days before the date of the hearing, by any means that leaves a written record and allows for the verification of its date of receipt.

ARTICLE 31.-
(1) During the hearing, the technical secretariat shall orally expose the claims and means of the parties.
(2) The parties shall present their observations and may be assisted by a counsel.

ARTICLE 32.-
(1) At any time during the proceedings, the Board may request or accept from the parties, additional useful documents.
(2) All correspondence shall be exchanged between the Board and the parties to the dispute, either by registered letter with acknowledgement of receipt, or by hand delivery message with acknowledgement of receipt.

ARTICLE 33.-
As members of the DSC, the parties are bound by the obligation of secrecy of the dispute settlement proceedings that concern them. Likewise, no information or document from the proceedings may be used later by one party to the detriment of the other in the course of a proceeding or to gain any advantage.

SECTION 2
AGREEMENTS BETWEEN THE PARTIES

ARTICLE 34.-
(1) At any stage of the proceedings, the parties involved may agree to propose an amicable settlement of the dispute between them. In this case, the parties shall notify the terms of their agreement to the Board. The Board shall have a period of ten (10) days to decide on the said agreement.
(2) If necessary, the DSC may convene the parties within this period to hear their explanations on the terms and effects of the agreement.
(3) The Board may object to all or part of the terms of the amicable agreement between the two parties to the dispute if such terms are contrary to public policy, the development of healthy competition and the development of electronic communications. In this event, it may either invite the parties to modify their agreement or decide to continue the investigation of the dispute. The Board's decision shall be notified to the parties.

SECTION 3
DELIBERATIONS

ARTICLE 35.-
(1) The deliberations of the DSC are held in-camera, in the absence of the parties.

(2) The DSC may only deliberate if at least two-thirds of its members are present, and shall rule in-camera, without the presence of the parties.
(3) Decisions are taken by majority vote. In the event of a tie, the chairperson has a casting vote.

ARTICLE 36.-
(1) A record of the conclusions of the meetings is drawn up by the technical body of the DSC. It includes, in particular, the issues examined, the results of the deliberations and the names of the participants. The decisions and opinions adopted are appended thereto.
(2) The draft statement of conclusions is transmitted to the supervisory body and adopted at the beginning of the session following its transmission.

ARTICLE 37.-
(1) The decisions are signed by the chairperson.
(2) They shall be kept in chronological order.

CHAPTER VI
PROCEDURES FOR APPEALS

ARTICLE 38.-
(1) The decision of the Board on the merits of a dispute may be challenged only before an arbitrator or before the ordinary courts.
(2) An appeal against the decision of the Board shall not be suspensive.
(3) However, a stay of execution may be ordered by the appeal court or by the representative of the Board in accordance with the conditions laid down in Article 65(12) of the law governing electronic communications in Cameroon.
(4) Appeals to the court shall be made within the time limits and according to the procedures laid down by the legislation in force.
(5) Where operators of electronic communications networks resort to the ordinary courts, the procedure applicable is that of urgency. In this case, the civil court referred to shall be obliged to dispose of the case within a maximum of sixty (60) days from the commencement of the proceedings.

CHAPTER VII
FINANCIAL PROVISIONS

ARTICLE 39.-
(1) The operating expenses of the dispute settlement body shall be borne by the Board's budget.
(2) The functions of the members of the DSC shall be free of charge. However, session allowances may be allocated by the General Manager of the Telecommunications Regulatory Board.

ARTICLE 40.-
The amounts and methods of payment of the costs of the proceedings provided for in Article 13 (2) shall be determined by a special text.

CHAPTER VIII
MISCELLANEOUS AND FINAL PROVISIONS

Article 41.-
The members of the DSC are bound by professional secrecy with regard to information that comes to their knowledge in the course of their duties.

Article 42.-
When the preliminary investigations undertaken by the Board reveal the existence of a criminal offence, the Board forwards the file to the Public Prosecutor with territorial jurisdiction.

Article 43.-
All contrary provisions, prior to this decision, are hereby repealed.

Article 44.-
This decision, which shall take effect from the date of signature, shall be published wherever necessary, in English and French./-

Yaoundé, 2 October 2014

Jean Louis BEH MENGUE

THE GENERAL MANAGER

DECISION No. 0000110-2016/ART/DG/DT/SDSI OF 15 JUNE 2016 To define the methods for processing information from the electronic communications network and services subscription identification databases to be made available to the board.-

THE GENERAL MANAGER
OF THE TELECOMMUNICATIONS REGULATORY BOARD,

Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No. 2015/006 of 20 April 2015;
Mindful of Law No. 2010/012 of 21 December 2010 on Cybersecurity and Cybercrime in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 2015/3759/PM of 03 September 2015 to lay down the methods for identifying subscribers and terminal equipment of electronic communication networks;
Mindful of Decree No. 2013/0399/PM of 27 February 2013 to lay down the modalities for protecting consumers of electronic communication services;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board (TRB);
Mindful of Decision No. 1036/ART/CA of 26 April 1999 to appoint the General Manager and Deputy General Manager of the Telecommunications Regulatory Board;
Mindful of Decision No. 0023-2016/ART/DG/DT/SDSI of 27 January 2016 to the establish the organisation and operation of an ad hoc working group for the development of procedures for remote access to operators' databases, tools and methods for the collection and processing of identification data in accordance with Article 9 of Decree No. 2015/3759/PM of 3 September 2015;
Considering the needs for the development of telecommunications,

HEREBY DECIDES AS FOLLOWS:

Article 1.- (1) The purpose of this decision is to define the modalities for processing the information to be made available to the Board.
(2) It is taken in accordance with the provisions of Decree No. 2015/3759/PM of 03 September 2015 laying down the modalities for the identification of subscribers and terminal equipment of electronic communications networks.

Article 2.- An identified subscriber is any user for whom the operator with whom he has contracted the service has a complete identification file which includes:
- personal data: name(s), first name(s), address and location map;
- a photocopy of a valid identity document provided when the subscription is carry out or when a subscriber identity module is purchased.

The procedure for subscribing to more than three (03) subscriber identity modules is governed by a specific text.

Article 3.- (1) For the purpose of establishing the identity of their subscribers, operators shall update their computer databases dedicated to the management of the identification of the subscriber base.
The Board shall carry out missions to check the compliance of these databases.
(2) In addition to the information defined in Decision No. 0000021-2016/ART/DG/DT/SDSI of 27 January 2016, the IT database must include:
1. the nature of the official identity document;
2. the date of activation of the SIM card.

Article 4.- Information from the operators' identification database must be transmitted to the Board via a secure channel in accordance with the regulations in force.

Article 5.- Operators are required to put into service a mechanism to enable their clients find out about their identification status and the procedure to follow in order to identify themselves.

Article 6.- Operators shall provide the Board's General Management with a quarterly reporting statement, drawn up in accordance with the model appended to this decision, pending the implementation of remote access to their subscribers' identification databases.

Article 7.- The Technical Director of the Telecommunications Regulatory Board and the other departments concerned shall be responsible, each in his or her own area of responsibility, for the implementation of this decision, which shall be notified to the operators.

Article 8.- Non-compliance with the provisions of this decision shall entail the application of the sanctions provided for by the regulations in force, in particular Article 69 (6) of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, as amended and supplemented by Law No. 2015/006 of 20 April 2015.

Article 9.- This decision is applicable as from the date of its signature and shall be published wherever necessary.

Done in Yaoundé, 15 June 2016

Jean Louis BEH MENGUE

THE GENERAL MANAGER,

DECISION No. 0000111-2016/ART/DG/DT OF 15 JUNE 2016
To set out the terms of marketing of subscriber identity modules for electronic communications networks and services.-

THE GENERAL MANAGER
OF THE TELECOMMUNICATIONS REGULATORY BOARD,

Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communication in Cameroon;
Mindful of Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Law No. 2015/006 of 20 April 2015 to amend and supplement some provisions of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board (TRB);
Mindful of Decree No. 2013/0399/PM of 27 February 2013 to lay down the modalities for protecting consumers of electronic communication services;
Mindful of Decree No. 2015/3759/PM of 03 September 2015 to lay down the methods for identifying subscribers and terminal equipment of electronic communication networks;
Mindful of Decision No. 1036/ART/CA of 26 April 1999 to appoint the General Manager and Deputy General Manager of the Telecommunications Regulatory Board;
Mindful of Decision No. 0023-2016/ART/DG/DT/SDSI of 27 January 2016 to establish the organisation and operation of an ad hoc working group for the development of procedures for remote access to operators' databases, tools and methods for the collection and processing of identification data in accordance with Article 9 of Decree No. 2015/3759/PM of 3 September 2015;
Considering the needs for the development of telecommunications,

HEREBY DECIDES AS FOLLOWS:

Article 1.- This decision lays down the conditions for the marketing of subscriber identity modules for electronic communications networks and services.

Article 2.- The activity of marketing subscriber identity modules is authorised only for operators providing electronic communications services, their partners and the relay (sales) points of the said partners who have the related authorisations:

- Concession agreement for operators providing electronic communications services;
- Approvals to sell electronic communications equipment duly issued by the Telecommunications Regulatory Board for approved partners and their relay (sales) outlets.

Article 3.- (1) The marketing of subscriber identity modules shall only be authorized in fixed spaces equipped with devices enabling the identification of subscribers and the simultaneous transfer of the said identification elements into the database prior to the activation of the subscriber identity module, in accordance with the provisions of Decree No. 2015/3759/PM of 3 September 2015 laying down the modalities for the identification of subscribers and terminals of electronic communications networks.
(2) By way of exception, the marketing of subscriber identity modules is authorised for temporary events (periodic markets, fairs, exhibitions, etc.) in fixed spaces equipped with devices enabling the identification of subscribers and the simultaneous transfer of the said identification elements into the database prior to the activation of the subscriber identity module.

Article 4.- The sale of subscriber identity modules outside the authorised sales points described in Article 3 is prohibited.

Article 5.- The marketing of pre-activated subscriber identity modules is prohibited.

Article 6.- (1) The commercial relationship between the operator and its approved partner(s) within the framework of the resale of subscriber identity modules must be based on a written contract and sent to the Telecommunications Regulatory Board for information.
The commercial relationship between the operator's approved partners and its various relay (sales) outlets must be reported to the operator and the regulator.
(2) The operator is required to send to the Board an updated list of the relay points of each of its partners on a quarterly basis.

Article 7.- Non-compliance with the provisions of this decision shall entail the application of the sanctions provided for by the regulations in force, in particular Article 69 (6) of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, as amended and supplemented by Law No. 2015/006 of 20 April 2015.

Article 8.- This decision is applicable as from the date of its signature and shall be published wherever necessary.

Yaoundé, 15 June 2016

Jean Louis BEH MENGUE

THE GENERAL MANAGER,

DECISION No. 00000143/MPT/SG/DRPT OF 05 JULY 2018
To establish the procedure for processing an application for exemption in view of deploying in Cameroon of a radio network whose VSAT stations are connected to a master station installed outside Cameroon.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 2010/012 of 21 December 2010 on Cybersecurity and Cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Decree No. 2018/190 of 02 March 2018 to amend and supplement some provisions of Decree No. 2011/408 of 09 December 2011 to organise the Government;
Mindful of Decree No. 2018/191 of 02 March 2018 to reshuffle the Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2012/1640/PM of 14 June 2012 to lay down conditions for interconnection, access to electronic communications open to the general public and sharing of infrastructures;
Mindful of Decree No. 2012/1634/PM of 14 June 2012 to lay down the terms and conditions of compulsory security auditing of electronic communication networks and information systems;
Mindful of Decree No. 2013/0396/PM of 27 February 2013 to lay down the operation and control conditions for the use of radio frequencies;
Mindful of Decree No. 2017/2580/PM of 06 April 2017 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime;
Mindful of Decree No. 2017/286 of 08 June 2017 on the appointment of the General Manager of the Telecommunications Regulatory Board;
Mindful of Order No. 080/MINEFI/MINPT of 20 February 2002 on duties, fees, contributions and royalties collected by the Telecommunications Regulatory Board;
Mindful of Order No. 00000006/MINPOSTEL/MINFI OF 02 May 2017 to establish the amounts and payment conditions for entry and renewal fees of licences in the electronic communication sector,

HEREBY DECIDES AS FOLLOWS:

Article 1.- This Decision establishes the procedure for processing an application for an exemption in view of deploying in Cameroon a radio network whose VSAT stations are connected to a master station installed outside Cameroon.

Article 2.- (1) Any operator seeking a licence for the establishment and operation of a radio network whose VSAT stations are connected to a master station installed outside Cameroon shall first submit an application for exemption to the Telecommunications Regulatory Board.
(2) The exemption application form referred to in paragraph (1) above shall be provided by the Telecommunications Regulatory Board.

Article 3.- The Telecommunications Regulatory Board shall study the application and forward its opinion to the Minister of Posts and Telecommunications.

Article 4.- Where applicable, the Minister signs the exemption and forwards it to the Telecommunications Regulatory Board for notification to the interested party.

Article 5.- The waiver signed by the Minister constitutes a part of the licence application file.

Article 6.- This decision shall be communicated wherever necessary./-

Yaoundé, 05 July 2018

Minette LIBOM LI LIKENG

The Minister of Posts and Telecommunications

DECISION No. 00000064/MINPOSTEL OF 21 MAY 2019
Fixing the conditions of access and installation of radio equipment on the Mount Mbankolo radio site.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2001/010 of 23 July 2001 to institute the minimum service in the telecommunications sector;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications, amended and supplemented by Law No. 2015/006 of 20 April 2015;
Mindful of Law No. 2013/010 of 24 July 2013 to lay down the civil aviation regime in Cameroon;
Mindful of Law No. 2015/007 of 20 April 2015 to govern audiovisual activity in Cameroon;
Mindful of Decree No. 2018/190 of 02 March 2018 to supplement some provisions of Decree No. 2011/408 of 09 December 2011 on the organisation of the Government;
Mindful of Decree No. 2012/203 of 20 April 2012 on the organisation and operation of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/1640/PM of 14 June 2012 to set out the conditions for interconnection, access to electronic communications networks open to the public and infrastructure sharing;
Mindful of Decree No. 2019/001 of 04 January 2019 on the reorganisation of the government;
Mindful of Resolution No. 18/CIABAF/2013-07 on the evaluation of radio installations deployed on the Mount Mbankolo radio site with a view to its rehabilitation;
Considering the needs of the service,

HEREBY DECIDES AS FOLLOWS:

Article 1.- This decision sets out the conditions of access and installation of radio equipment on the Mount Mbankolo radio site.

Article 2.- (1) Placed under the management and control of Cameroon Telecommunications (CAMTEL), the installation of radio equipment on the Mount Mbankolo radio site is subject to the possession of an operating licence issued by the competent authority and a frequency assignment agreement.
(2) Notwithstanding the provisions of paragraph (1) above, any installation shall be subject to an infrastructure sharing agreement between the applicant and Cameroon Radio and Television (CRTV) or Cameroon Telecommunications (CAMTEL).
(3) The infrastructure sharing agreement referred to in paragraph (2) above shall specify the administrative, technical and financial conditions in accordance with the procedures defined by the regulations in force.

Article 3.- (1) Access to the Mount Mbankolo radio site is strictly reserved for the persons responsible for the equipment and installations deployed there, upon prior identification in a register provided for this purpose.
(2) Three badges co-signed by local Cameroon Radio and Television and Cameroon Telecommunications officials, which are not customised, are issued to each holder of an infrastructure sharing agreement for the purposes of intervention on the site.

Article 4.- Authorised persons have permanent access to the Mount Mbankolo radio site.

Article 5.- The owners of the radio installations on the Mount Mbankolo radio site have a period of two (02) months from the date of signature of this decision to comply with the provisions of the latter.

Article 6.- The General Manager of Cameroon Radio and Television and the General Manager of Cameroon Telecommunications are hereby entrusted, each in his or her area of responsibility, with the implementation of this decision which shall be registered and published wherever necessary./-

Yaoundé, 21 May 2019

Mrs LIBOM Li LIKENG née MENDOMO Minette

The Minister of Posts and Telecommunications

SPECIFICATIONS FOR THE MANAGEMENT OF THE MOUNT MBANKOLO RADIO SITE

Article 1.- PURPOSE
These specifications shall supplement Decision No. 00000064 of 21 MAY 2019 fixing the conditions for access and installation of radio equipment on Mount Mbankolo site and shall be an integrant part of this decision. They shall determine the terms and conditions applicable by the Cameroon Telecommunications for operating the site on which Cameroon Radio and Television is also located.

Article 2.- COMPLIANCE WITH REGULATIONS
The site manager shall be subject to observance of the laws and regulations in force in Cameroon as well as the decisions and directives of the Board in charge of telecommunications regulation.

Article 3.- HEALTH, TOWN PLANNING, ENVIRONMENT, SANITATION
The manager shall be bound to ensure that the occupants of the site comply with the laws and regulations in force in Cameroon relating to public health, urban planning and environment.

Article 4.- NATIONAL DEFENSE AND SECURITY
The manager shall be bound to ensure that the occupants of the site comply with the requirements relating to national defence, security, safety and the prerogatives of the judicial authority, in accordance with the laws and regulations in force in Cameroon.
The manager shall be required to bring the occupants to comply with the provisions prescribed by the Board, the judicial, military or police authorities, as well as the Minister in charge of telecommunications.

Article 5.- INSTALLATIONS
The manager shall be responsible for ensuring that the facilities on the Mount Mbankolo site are deployed by installers approved by the Board in charge of regulating telecommunications.

Article 6.:- APPROVAL
The manager shall be bound to ensure that the equipment and other radio installations deployed on the site have regularly been approved by the Board, in accordance with the regulations in force.

Article 7.- OPERATING LICENCE
The manager shall be bound, before signing any infrastructure sharing agreement, to ensure that the occupant justifies an operating licence duly issued by the competent authority.

Article 8.- FREQUENCY ASSIGNMENT AGREEMENT
The manager shall be bound to ensure that any occupant of the site holds a frequency assignment agreement duly issued by the competent authority.

Article 9.- SETTLEMENT OF DISPUTES
Any dispute arising from the infrastructure sharing agreement on the Mount Mbankolo site must be resolved in accordance with the regulations in force, in particular Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, amended and supplemented by Law No. 2015/006 of 20 April 2015.

Article 10.- COMPLIANCE CHECK
The Board may at any time verify compliance of the installations on the Mount Mbankolo site.

Article 11.- HARMFUL INTERFERENCE
The manager and occupants shall be required to report to the competent authority any harmful interference caused by the equipment deployed on the site and of which they are aware.

Article 12.- MANAGEMENT REPORTS
The manager shall be bound to submit to the Minister in charge of telecommunications a quarterly site management report.

Article 13.- ACCESS TO THE SITE
The manager shall be solely responsible for access to the site.

Article 14.- PENALTIES
Failure to comply with the clauses of these specifications shall be liable to the penalties provided for by the regulations in force./-

Yaoundé, le 21 mai 2019

Mme LIBOM Li LIKENG née MENDOMO Minette

The Minister of Posts et Telecommunications,

DECISION No. 00000248/MPT/CAB/IGT/CT2 OF 26 NOVEMBER 2019 To determine the conditions and rules of operation of the USSD resource for access to the national electronic communications aggregation platform.-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No.2015/006 of 20 April 2015;
Mindful of Framework-Law No. 2011/012 of 06 May 2011 to protect
consumers in Cameroon;
Mindful of Law No. 2018/012 of 11 July 2018 relating to fiscal regime of the State and other public entities;
Mindful of Decree No. 2004/095 of 23 April 2004 to create the Cameroon Postal Services company;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government, amended and supplemented by Decree No. 2018/190 of 02 March 2018;
Mindful of Decree No. 2012/203/PM of 20 April 2012 on the organisation and functioning of the Telecommunications Regulatory Board;
Mindful of Decree No. 2012/1640/PM of 14 June 2012 to lay down conditions for interconnection, access to electronic communications open to the general public and sharing of infrastructures;
Mindful of Decree No. 2012/1642/PM of 14 June 2012 to lay down conditions for the attribution and use of numbering resources;
Mindful of Decree No. 2012/512 of 12 November 2012 on the organisation and functioning of the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2015/434 of 02 October 2015 to appoint the Minister of Posts and Telecommunications;
Mindful of Decree No. 2017/2580 of 06 April 2017 to lay down conditions for establishing and/or operating networks and providing electronic communication service subject to an authorization regime;
Mindful of Decree No. 2019/002 of 04 January 2019 to reshuffle the Government,

HEREBY DECIDES AS FOLLOWS:

Article 1.- This decision determines the conditions and rules for the use of the USSD resource for access to the national electronic communications aggregation platform.

Article 2.- This decision shall apply to operators of electronic communications networks open to the public and to providers of electronic communications services using the USSD resource.

Article 3.- For the purposes of this decision, the following definitions shall apply:

1. **Board**: Telecommunications Regulatory Board;
2. **API**: Application Programming Interface;
3. **CAMPOST**: Cameroon Postal Services ;
4. **Customer**: Initiator or recipient of an electronic communication using the USSD resource;
5. **National Electronic Communications Platform**: Switching equipment enabling the aggregation of electronic communications made via the USSD resource and promoting the interoperability of the various networks;

6. **Session**: A mobile customer's journey from entry into the USSD portal to the completion of a transaction;
7. **USSD**: (Unstructured Supplementary Data Service): A resource used by customers to make requests to operator networks and receive responses, via a mobile terminal.

Article 4.- (1) The national electronic communications aggregation platform referred to in Article 3 above is hosted at CAMPOST, which manages it.
(2) Access to the platform referred to in paragraph (1) above shall be through the unique code #237#.

Article 5.- (1) Operators of electronic communication networks open to the public are required to implement in their various networks the unique code referred to in Article 4 above, under the conditions and within the time limits defined by the Board.
(2) Operators of electronic communications networks open to the public and providers of electronic communications services shall be required to interconnect with the national electronic communications aggregation platform to enable their customers to use the single code referred to in Article 4 above.

Article 6.- The request for interconnection or access, to which a copy of the operating licence is attached, shall be sent to the Board, with a copy to CAMPOST, by registered letter or by any other means that leave written record.

Article 7.- The Board shall ensure that the equipment of operators of electronic communications networks open to the public and providers of electronic communications services offer guarantees of security and quality of service, especially in terms of:
- technical and functional standards;
- security and efficiency of information systems;
- quality of transmissions and access to the network and platform;
- interoperability of the technical solution, where applicable.

Article 8.- (1) The equipment of the national electronic communications aggregation platform shall meet the specifications or requirements aimed at:
- ensuring the recording and processing of transactions in real time;
- ensuring high availability of the service;
- ensuring the integrity of messages;
- maintaining the confidentiality of information;
- guaranteeing the authenticity of transactions;
- ensuring the non-repudiation of transactions.

(2) CAMPOST is required to deliver an API to operators of electronic communications networks open to the public and to providers of electronic communications services meeting the conditions referred to in Article 7 above.

Article 9.- Operators of electronic communications networks open to the public and providers of electronic communications services are required to implement on their main server the standard APIs issued by CAMPOST, in accordance with the technical modalities communicated.

Article 10.- Operators of electronic communications networks open to the public and providers of electronic communications services are required to respect the confidentiality of transactions carried out on their platforms, in accordance with the regulations in force.

Article 11.- Operators of electronic communications networks open to the public and providers of electronic communications services shall transmit to the Board any information requested by the latter, in accordance with the regulations in force.

Article 12.- (1) In the event of failure by operators of electronic communications networks open to the public and providers of electronic communications services to comply with the obligations laid down in this decision, the Board shall give them formal notice to do so within thirty (30) days.

(2) On expiry of the period provided for in paragraph (1) above, the Board shall impose the penalties provided for by the regulations in force.

Article 13.- When a payment service is provided through the national electronic communications aggregation platform, the service provider is required to comply with the regulations of the banking sector.

Article 14.- The Board is responsible for the application of this decision, which shall be registered and published in English and French./-

Yaoundé, 26 November 2019

Mrs LIBOM Li LIKENG née MENDOMO Minette

The Minister of Posts and Telecommunications

DECISION No. 97 /MPT/CAB OF 22 JUNE 2020
To set the promotional costs for the registration of domain names in ".cm".-

THE MINISTER OF POSTS AND TELECOMMUNICATIONS,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 on competition;
Mindful of Law No. 2010/012 of 21 December 2010 on cybersecurity and cybercrime in Cameroon;
Mindful of Law No. 2010/013 of 21 December 2010 to govern electronic communications in Cameroon amended and supplemented by Law No. 2015/006 of 20 April 2015;
Mindful of the Framework-Law No. 2011/012 of 06 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2011/408 of 09 December 2011 to organise the Government, amended and supplemented by Decree No. 2018/190 of 02 March 2018;
Mindful of Decree No. 2019/002 of 04 January 2019 to reshuffle the Government;
Mindful of Decree No. 2019/150 of 22 March 2019 on the organisation and functioning of the National Agency for Information and Communication Technologies;
Mindful of Decree No. 2013/0402/PM of 27 February 2013 to specify the modalities of naming and addressing resources;
Mindful of The joint order No.00000013 MINPOSTEL/MINFI of 10 May 2013 to fix the amount and set up the payment conditions of fees paid to the National Agency for Information and Communication Technologies;
Mindful of Decision No.00128/ MINPOSTEL of 26 May 2015 to establish the annual registration cost of the '.cm' domain name,

HEREBY DECIDES AS FOLLOWS:

Article 1.- For the purpose of a promotional campaign of the ".cm" ccTLD, the cost of registration of domain names in ".cm" for the period running from 01 JUL 2020 to 01 OCT 2020 is set at two thousand (2000) FCFA including all taxes, that is, the annual amount.

Article 2.- The cost of sale of ".cm" domain names during the aforementioned period, by NAICT to approved registrars is fixed at one thousand (1,000) F CFA including all taxes, per domain name and per year.

Article 3.- The resale of these domain names by the approved Registrars shall not exceed an annual public cost of 2,000 FCFA, all taxes included.

Article 4.- This one-off operation does not repeal the provisions contained in Decision No. 00000128/MINPOSTEL of 26 May 2015 setting the annual registration costs for .cm domain names.

Article 5.- The General Manager of NAICT is responsible for the application of this decision which shall be registered, published according to the procedure of urgency and then inserted in the Official Gazette in English and in French./-

Yaoundé, 22 June 2020

Mrs LIBOM Li LIKENG née MENDOMO Minette

The Minister of Posts and Telecommunications

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